Unaware that a lawyer was in the county courthouse library late on a Friday afternoon, when it was unusual for anyone to be using the library, a clerk locked the library door and left. The lawyer found herself locked in when she tried to leave the library at 7:00 p.m. It was midnight before the lawyer's family could find out where she was and get her out. The lawyer was very annoyed by her detention but was not otherwise harmed by it.

Does the lawyer have a viable claim for false imprisonment against the clerk?

A. No, because it was unusual for anyone to use the library late on a Friday afternoon.
B. No, because the clerk did not intend to confine the lawyer.
C. Yes, because the clerk should have checked to make sure no one was in the library before the clerk locked the door.
D. Yes, because the lawyer was aware of being confined.

Explanation:

False imprisonment occurs when:

the defendant **intentionally** **confines** the plaintiff to a bounded area and
the plaintiff is **aware** of the confinement at the time it occurs OR sustains **actual harm** as a result of the confinement.
Here, the lawyer found herself locked in the library after the clerk locked the door (aware of confinement). However, the clerk did not lock the door with the intent to confine the lawyer because the clerk was *unaware* that the lawyer was in the library (no intent). Therefore, the clerk is not liable for false imprisonment.

(Choice A) The fact that it was unusual for anyone to use the library at that time may show that the clerk was not *negligent* in failing to detect the lawyer, but does not show whether the clerk acted *intentionally*. Therefore, this fact has no effect on the lawyer's false imprisonment claim.

(Choice C) Whether the clerk should have checked to make sure no one was in the library before locking the door is a *negligence* issue (ie, what a reasonably prudent person in the clerk's position would have done). It is irrelevant to a claim for false imprisonment (an *intentional tort* requiring intent to confine the plaintiff).

(Choice D) Although the lawyer was aware of the confinement, the clerk is not liable for false imprisonment because the clerk did not *intend to confine* the lawyer when the clerk locked the door.

Educational objective:

False imprisonment occurs when (1) a defendant intentionally confines the plaintiff to a bounded area and (2) the plaintiff is aware of the confinement at the time it occurs OR sustains actual harm as a result of the confinement.

References

Restatement (Second) of Torts § 35 (Am. Law Inst. 1979) (false imprisonment).

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An avid baseball fan purchased a ticket to an afternoon game at great expense. The fan hoped to not only see his favorite team's powerhouse player break the all-time single-season home run record, but also catch the record-breaking baseball. The fan brought his baseball glove and positioned himself in a section of the ballpark where the greatest number of the player's home runs had landed.

In the ninth inning, with the bases loaded and a full count, the player swung, and the baseball sailed over the right-field fence and descended toward the large crowd gathered in the fan's section. The fan shouted, "It's mine!" just as the baseball made contact with the palm of his glove, but a burly man reached for the ball at that same instant. In so doing, he propelled the baseball back onto the field, where it was retrieved by the opposing team's outfielder. The fan was unable to recover the baseball.

The fan has sued the man for trespass to chattels.

Is the fan likely to prevail?

A. No, because the man did not dispossess the fan of the baseball.

B. No, because the man did not intend to propel the baseball back onto the field.

C. Yes, because the man deprived the fan of his immediate right to possession of the baseball.

D. Yes, because the man intentionally intermeddled with the fan's personal property.

Explanation:

Trespass to chattels is an intentional interference with another's right of possession in tangible personal property (ie, chattel) through dispossession, use, or intermeddling. As a result, an action for trespass to chattels may be **brought by anyone who had possession** or the **right to immediate possession** of the chattel in question at the time of the interference.

Here, the fan sued the man for trespass to chattels after the man reached for the baseball and propelled it back onto the field. But the fan had not yet caught the baseball (no possession) and had no more right to possess it than any other person in the crowd **(Choice C)**. Therefore, the man could not dispossess the fan of the baseball, and the fan is unlikely to prevail.

(Choice B) The intent required for trespass to chattels is the intent to do the interfering act—eg, to reach out for the baseball. The defendant need not have intended to interfere with another's possession of tangible property—eg, to propel the baseball back onto the field.

(Choice D) The man intermeddled (ie, caused physical contact) with the baseball and deprived the fan of possessing and using it by propelling it back onto the field. But since the baseball was not the fan's personal property, his trespass-to-chattels claim will fail.

Educational objective:

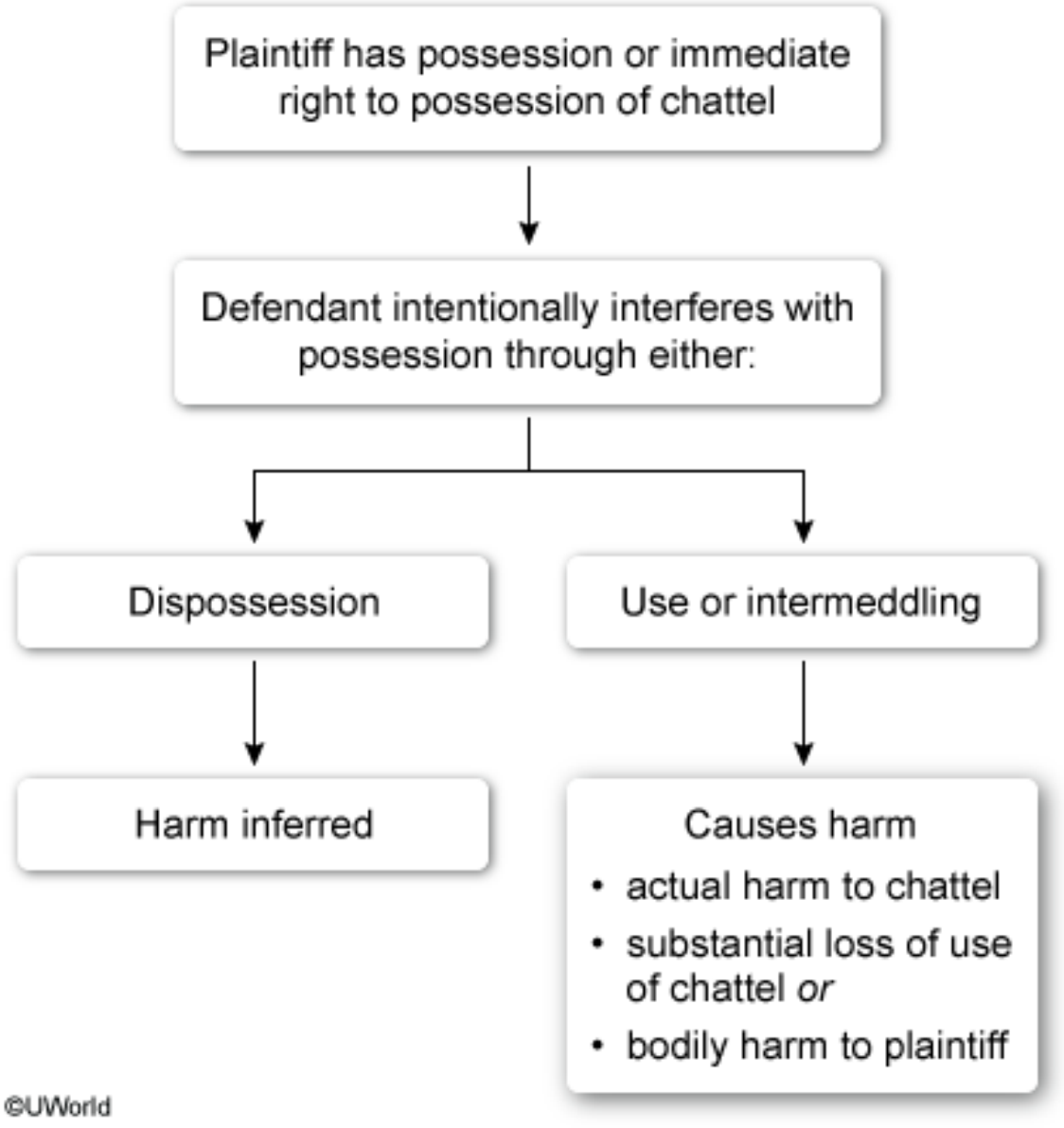
Anyone who had possession or the right to immediate possession of a chattel (ie, tangible personal property) at the time of the interference may bring an action for trespass to chattels.

References

Restatement (Second) of Torts §§ 216–17 (Am. Law Inst. 1981) (possession of and trespass to chattel).

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Trespass to chattels



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A professional football player signed a written consent for his team's physician to perform a knee operation. After the athlete was under a general anesthetic, the physician asked a world-famous orthopedic surgeon to perform the operation. The surgeon's skills were superior to the physician's, and the operation was successful.

In an action for battery against the surgeon, will the athlete prevail?

A. No, because the operation was successful.

B. No, because the surgeon's skills were superior to the physician's.

C. Yes, because the athlete did not agree to allow the surgeon to perform the operation.

D. Yes, because the consent form was in writing.

Explanation:

Battery requires that a defendant intend to create contact (or imminent apprehension of contact) and cause harmful or offensive contact with the plaintiff. Contact is harmful if it causes physical impairment (eg, alteration of the body), pain, or illness. However, a defendant is **not liable** for battery if the contact is **consensual**. Consent exists when the defendant's **conduct** is the **same** as, or **substantially similar** to, the conduct agreed to by the plaintiff. Therefore, consent is limited to the individual whose conduct was agreed to by the plaintiff.

Here, the surgeon operated on the athlete's knee (intentional act), which physically impaired the athlete's body (harmful contact). And since the athlete only gave the *physician* written consent to perform the operation, not the *surgeon* (nonconsensual contact), the surgeon is liable for battery.

(Choice A) Although the operation was successful, contact is harmful if it alters the plaintiff's body in any way, even if the alteration results in no other harm. Therefore, the surgeon is still liable for intentionally altering the athlete's body without his consent.

(Choice B) The surgeon's superior skill does not negate the fact that he operated on the athlete without his consent and, therefore, does not absolve the surgeon of liability.

(Choice D) Consent to contact can be verbal or written. But consent (verbal or written) is limited to the individual whose conduct was agreed to by the plaintiff.

Educational objective:

Consent only extends to conduct that is the same as, or substantially similar to, the particular conduct agreed to by the plaintiff. Therefore, consent is limited to the individual whose conduct was agreed to by the plaintiff.

References

Restatement (Second) of Torts § 13 (Am. Law Inst. 1965) (battery by harmful contact).

Restatement (Second) of Torts § 15 (Am. Law Inst. 1965) (meaning of harmful contact).

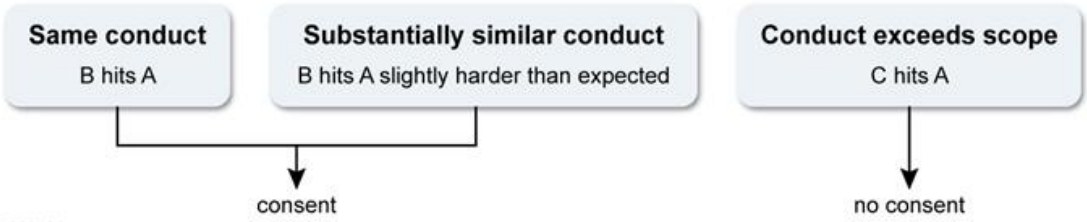
Restatement (Second) of Torts § 892A (Am. Law Inst. 1979) (effect of consent).

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Scope of consent

A tells B, “Go ahead and hit me,” while C watches.



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A car driven by the defendant entered land owned by and in the possession of the plaintiff, without her permission.

Which of the following allegations, without additional facts, would provide a sufficient basis for a trespass claim by the plaintiff against the defendant?

A. The defendant knew that the land was the plaintiff's private property.

B. The defendant negligently drove his car onto the plaintiff's land.

C. The defendant purposely drove his car onto the plaintiff's land.

D. The defendant's car damaged the plaintiff's land.

Explanation:

Types of trespass to land

	Conduct	**Consent**	**Harm**
Intentional	*Intentional* entry onto plaintiff's land	Without plaintiff's consent	(No harm required)
Reckless	*Reckless* entry onto plaintiff's land	Without plaintiff's consent	Causing harm to land or plaintiff
Negligent	*Negligent* entry onto plaintiff's land	Without plaintiff's consent	Causing harm to land or plaintiff

For an **intentional trespass**, a defendant must act with the **intent to enter** the plaintiff's land, which is either (1) the **purpose** to enter the plaintiff's land or (2) the **knowledge** that the entry is substantially certain to occur. If the plaintiff does **not consent** to the defendant's intentional entry, then the defendant is liable for intentional trespass.

Here, the plaintiff did not give the defendant permission to enter her land. Therefore, the plaintiff can prevail on an intentional trespass claim if she can show that the defendant drove his car with the *purpose to enter* the plaintiff's land (or knowledge that the entry was substantially certain to occur).

(Choice A) The fact that the defendant knew that the land was the plaintiff's private property has no bearing on the defendant's tortious conduct—the intentional, reckless, or negligent entry onto the plaintiff's land—and is therefore irrelevant to a trespass claim.

(Choices B & D) A defendant is liable for *negligent* or *reckless trespass* when the plaintiff does not consent to the defendant's negligent or reckless entry AND the entry *causes actual harm* to the land or the plaintiff. Here, the defendant entered the plaintiff's land without permission. However, neither (1) the fact that the defendant drove negligently (or recklessly) nor (2) the fact that the defendant's car damaged the plaintiff's land can—on its own—support a claim for trespass. Both allegations are required.

Educational objective:

A defendant who intentionally enters the plaintiff's land without permission is liable for intentional trespass, even if the entry does not harm the land or the plaintiff. In contrast, a defendant whose entry results from negligent or reckless conduct is only liable for trespass if he/she causes actual damages.

References

Restatement (Second) of Torts § 158 (Am. Law Inst. 1965) (intentional trespass).

Restatement (Second) of Torts § 165 (Am. Law Inst. 1965) (reckless or negligent trespass).

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A law student rented a furnished apartment. His landlord began to solicit his advice about her legal affairs, but he refused to provide it. The landlord then demanded that the student vacate the apartment immediately. The landlord also began engaging in a pattern of harassment, calling the student at home every evening and entering his apartment without his consent during times when he was at school. During these unauthorized visits, the landlord removed the handles from the bathroom and kitchen faucets, making the faucets unusable, but she did not touch any personal property belonging to the student. The lease has a year to run, and the student is still living in the apartment. The student has sued the landlord for trespass.

Is he likely to prevail?

A. No, because he has no standing to sue for trespass.

B. No, because the landlord caused no damage to his property.

C. Yes, for compensatory damages only.

D. Yes, for injunctive relief, compensatory damages, and punitive damages.

Explanation:

Types of remedies

Nominal damages	Trivial sum of money (eg, $1) awarded to vindicate plaintiff's rights when no actual loss or damage occurs
Compensatory damages	Money awarded to compensate plaintiff for actual loss or damage (ie, actual damages)
Punitive damages	Money awarded to punish defendant for outrageous or evil conduct & to deter similar conduct in the future (ie, exemplary damages)
Injunctive relief	Court order commanding or prohibiting a specified action

For **trespass**, the plaintiff must prove that the defendant **intentionally entered** land in the plaintiff's possession **without** the plaintiff's **permission**. If the plaintiff does so, he/she may receive nominal damages or compensatory damages, as well as punitive damages and/or injunctive relief.

Here, the student can establish a claim for trespass because the landlord intentionally (and repeatedly) entered the student's apartment without his consent. Therefore, the student will likely recover:

compensatory damages – for the removal of the faucet handles
punitive damages – to punish the landlord for his malicious and evil pattern of harassment
injunctive relief – to stop the landlord's repeated and ongoing trespasses
However, *nominal damages are not recoverable* because the student suffered actual loss and damage (ie, he can recover compensatory damages).

(Choice A) A plaintiff has standing to sue for trespass if he/she has a *possessory interest*—the right to occupy or control property—in the land that the defendant intentionally entered. Here, even though the student does not own the apartment, he has a possessory interest in it (a lease). Therefore, he has standing to sue for trespass.

(Choice B) The landlord did damage the student's leased property by removing the faucet handles, rendering them inoperable. But even if no damage had occurred, the student could still prevail because trespass does not require proof of actual loss or damage. However, the student could not recover compensatory damages.

(Choice C) The student's recovery is not limited to compensatory damages because there is evidence to support punitive damages (landlord's malicious pattern of harassment) and injunctive relief (landlord's repeated and ongoing trespasses).

Educational objective:

Trespass is an intentional, unauthorized entry onto land in the plaintiff's possession (ie, land the plaintiff occupies or controls). The plaintiff can recover nominal damages (eg, $1) for a *harmless* trespass or compensatory damages for a *harmful* trespass. Punitive damages and/or injunctive relief may also be available.

References

Restatement (Second) of Torts § 158 (Am. Law Inst. 1965) (trespass).

Restatement (Second) of Torts § 903 (Am. Law Inst. 1979) (compensatory damages).

Restatement (Second) of Torts § 907 (Am. Law Inst. 1979) (nominal damages).

Restatement (Second) of Torts § 908 (Am. Law Inst. 1979) (punitive damages).

Restatement (Second) of Torts § 945 (Am. Law Inst. 1979) (injunctive relief for recovery of land).

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A farmer kept antiques in an uninhabited farmhouse on his property. The farmhouse had been broken into several times in the past, and some of the farmer's goods had been stolen. Instead of posting "No Trespassing" signs, the farmer decided to install an alarm system to deter intruders. While the farmer was in the farmhouse installing the alarm system, he heard a window open in the adjoining room. The farmer crept very quietly to the door of the room, threw the door open, and found a 10-year-old intruder. The farmer immediately struck the child very hard in the face, breaking her nose.

In an action on behalf of the child against the farmer to recover for the injury to her nose, is the child likely to prevail?

A. No, because the farmer did not use deadly force.

B. No, because the farmer had probable cause to believe that the child was a thief.

C. Yes, because the farmer should have posted a "No Trespassing" sign.

D. Yes, because the farmer used excessive force.

Explanation:

A defendant is only **privileged** to use the amount of **force reasonably necessary** to prevent or **terminate** a **trespass** (ie, privileged to use proportionate force). Therefore, if a trespass could have been deterred by less forceful means, then the defendant is liable to the trespasser for harm caused by the use of **excessive force** (unreasonable or unnecessary force used in defense of oneself or property).

Here, the child entered the farmer's property without his consent (trespass), so the farmer was privileged to use *reasonable force* to remove her from his farmhouse (eg, by carrying the child off his property). Instead, the farmer used *excessive force* because he struck the girl very hard in the face and broke her nose. Therefore, the child will likely recover for the injury to her nose.

(Choice A) To prevail on a claim for battery, the child need only show that the farmer's intentional infliction of harmful contact constitutes excessive force—not deadly force (force likely to cause death or serious bodily harm).

(Choice B) Even if the farmer had probable cause to believe that the child was a thief, he was only privileged to use reasonable force to protect his property.

(Choice C) A defendant is not required to post "No Trespassing" signs to use reasonable force in defense of property. And though the absence of a warning sign may be considered in determining whether a defendant took reasonable steps to stop the trespass, that analysis is unnecessary since the farmer clearly used excessive force.

Educational Objective:

A defendant is only privileged to use the amount of force reasonably necessary to prevent or end a trespass. If the defendant uses excessive force (unreasonable or unnecessary force used in defense of oneself or property), then the defendant is liable for the harm caused to the plaintiff.

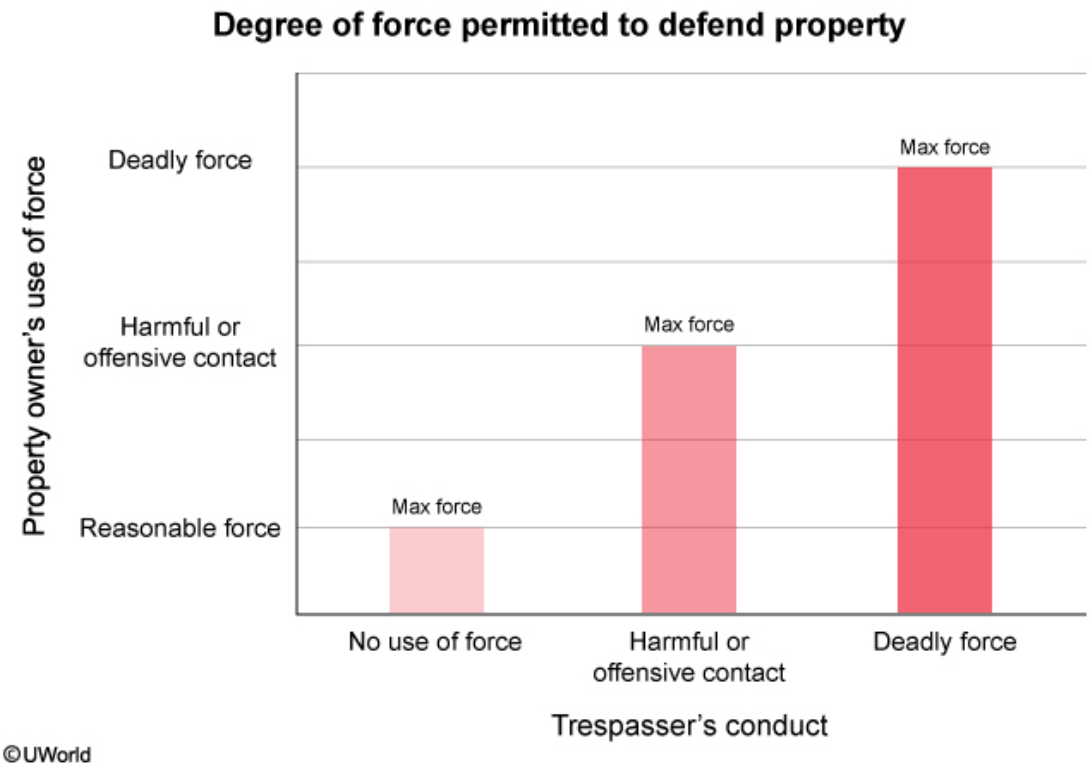
References

Restatement (Second) of Torts § 81 (Am. Law Inst. 1965) (amount of force allowed in defense of property).

Restatement (Second) of Torts § 82 (Am. Law Inst. 1965) (effect of excessive force).

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Degree of force permitted to defend property
Property owner's use of force
Deadly force
Harmful or offensive contact
Reasonable force
Max force
Max force
Max force
No use of force
Harmful or offensive contact
Deadly force
Trespasser's conduct

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A motivational speaker walked onto a stage to perform before a sold-out crowd. As he was about to sit on a stool located center stage, a stagehand decided, as a practical joke, to pull the stool from beneath the speaker. This caused the speaker to fall backwards, and the crowd erupted with laughter. The speaker was highly embarrassed but did not sustain any physical injuries.

The speaker has asserted a battery claim against the stagehand.

Is the speaker likely to prevail on his claim?

A. No, because the speaker did not suffer any physical harm.

B. No, because the stagehand only intended to pull a practical joke on the speaker.

C. Yes, because the stagehand acted negligently.

D. Yes, because the stagehand knew that the speaker was about to sit on the stool.

Explanation:

Battery occurs when a defendant intends to inflict harmful or offensive contact (or create the imminent apprehension thereof) AND causes such contact with the plaintiff. The **intent** requirement is met if the defendant acts with either:

purpose – the desire to cause harmful / offensive contact or imminent apprehension thereof *or*

knowledge – the substantial certainty that such contact or apprehension will result.

Contact is **harmful** if it causes physical impairment, pain, or illness. Contact is **offensive** if it would offend a reasonable person's sense of dignity.

Here, the stagehand *knew* that the speaker would fall to the ground (intent) because the stagehand saw that the speaker was about to sit when the stagehand pulled the stool out from under him. Since this intentional act caused the speaker to suffer an embarrassing fall (offensive contact), the speaker will likely prevail on his battery claim.

(Choice A) A plaintiff need not suffer physical harm to recover for battery. That is because a battery can also occur if the defendant causes *offensive* contact (as seen here).

(Choice B) The stagehand may have only acted with the desire to pull a practical joke on the speaker. But since the stagehand was substantially certain that harmful or offensive contact would result from pulling the stool out from under the speaker, the stagehand still acted with the requisite intent for battery.

(Choice C) Battery requires proof that the defendant acted intentionally—not negligently (ie, failing to act as a reasonable person would have acted under similar circumstances).

Educational objective:

For battery, intent exists when the defendant acts with the purpose (desire) or knowledge (substantial certainty) that harmful or offensive contact, or the imminent apprehension thereof, will result.

References

Restatement (Third) of Torts § 1 (Am. Law Inst. 2010) (definition of intent).

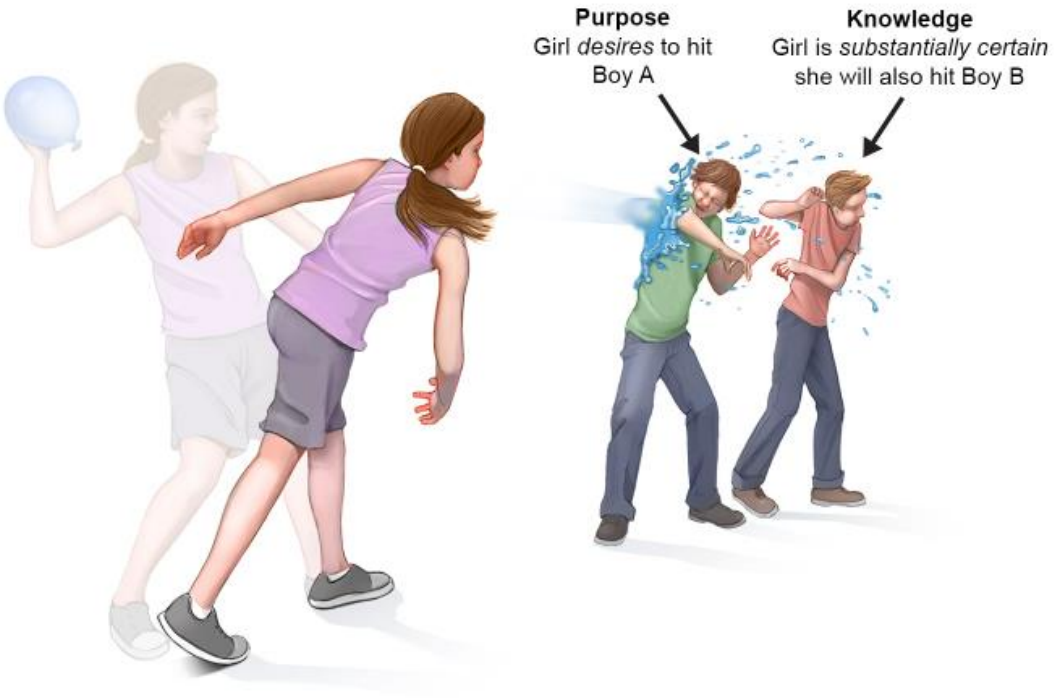
Restatement (Second) of Torts § 18 (Am. Law Inst. 1965) (battery by offensive contact).

Restatement (Second) of Torts § 19 (Am. Law Inst. 1965) (definition of offensive contact).

Garratt v. Dailey, 279 P.2d 1091, 1094 (Wash. 1955) (explaining that battery requires an intent to cause contact that results in harmful or offensive contact).

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Two types of intent



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The warden of a state prison prohibits the photographing of the face of any prisoner without the prisoner's consent. A news photographer wanted to photograph a notorious mobster incarcerated at the prison. To circumvent the warden's prohibition, the photographer flew over the prison exercise yard and photographed the mobster. A prisoner, who was imprisoned for a technical violation of a regulatory statute, happened to be standing next to the mobster when the photograph was taken.

When the picture appeared in the press, the prisoner suffered severe emotional distress because he believed that his business associates and friends would think he was consorting with gangsters. The prisoner suffered no physical harm as the result of his emotional distress. The prisoner brought an action against the photographer for intentional or reckless infliction of emotional distress.

What is the best argument that the photographer can make in support of a motion for summary judgment?

A. As a news photographer, he was privileged to take photographs that others could not.
B. No reasonable person could conclude that the photographer intended to photograph the prisoner.
C. No reasonable person could conclude that the photographer's conduct was extreme and outrageous as to the prisoner.
D. The prisoner did not suffer any physical injury arising from the emotional distress.

Explanation:

A defendant's **motion for summary judgment** will be granted when there is **no genuine issue of material fact** (ie, no reasonable jury could find in the plaintiff's favor) and the defendant is entitled to **judgment as a matter of law** (eg, at least one element of the plaintiff's claim lacks legally sufficient evidence). For **intentional or reckless infliction of emotional distress** (IIED), the defendant's motion should be granted if it disproves one or more of the following elements:

The defendant **intended** to cause the plaintiff severe emotional distress (or acted **recklessly** as to the risk of causing such distress).

The defendant's conduct was **extreme** and **outrageous**.

The defendant caused the plaintiff **severe emotional distress**.

Accordingly, the photographer's best argument is that no reasonable person could find that his conduct was extreme and outrageous.

(Choice A) News photographers are not immune from liability for IIED, so the photographer could be liable—like any other person—if all the elements of this claim are met.

(Choice B) IIED requires the specific intent to cause severe emotional distress—not intent to do the act that caused the distress. Therefore, even if no reasonable person could find that the photographer intended to photograph the prisoner, the photographer's summary judgment motion would fail if a reasonable person could still find that he intended to cause the prisoner severe emotional distress (or recklessly caused that distress).

(Choice D) Although most tort claims require proof of bodily harm before plaintiffs can recover for emotional harm, IIED claims allow plaintiffs to recover for stand-alone emotional harm (ie, emotional harm that does not result from bodily harm). Therefore, the prisoner's lack of physical injury does not support the photographer's motion for summary judgment.

Educational objective:

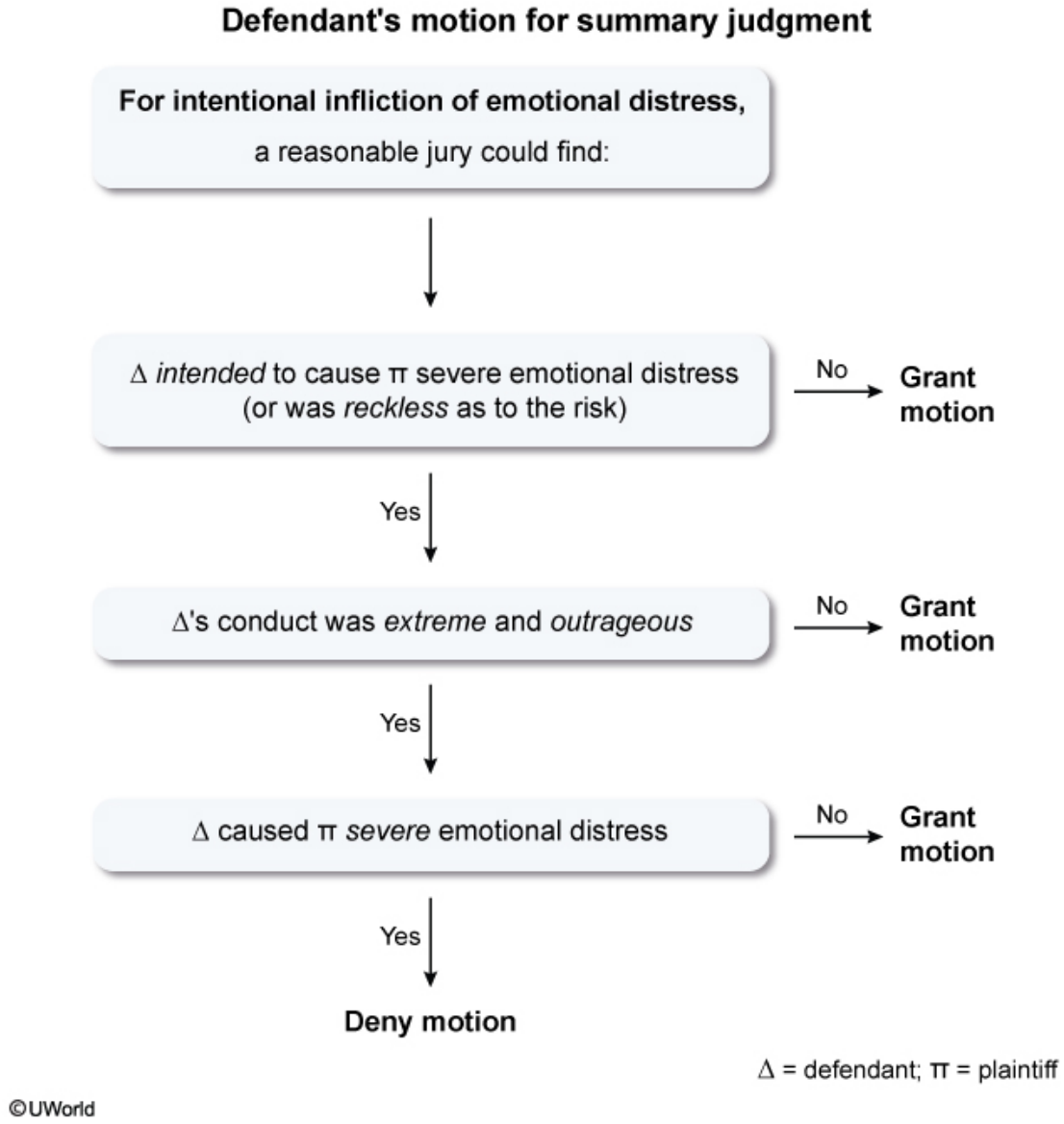
For intentional infliction of emotional distress, the plaintiff must prove that the defendant intentionally or recklessly caused the plaintiff severe emotional distress by acting in an extreme and outrageous manner.

References

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 46 (Am. Law Inst. 2012) (intentional or reckless infliction of emotional distress).

Fed. R. Civ. P. 56(a) (summary judgment).

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A boater, caught in a sudden storm and reasonably fearing that her boat would capsize, drove the boat up to a pier, exited the boat, and tied it to the pier. The pier was clearly marked with "No Trespassing" signs. The owner of the pier ran up to the boater and told her that the boat could not remain tied to his pier. The boater offered to pay the owner for the use of the pier but, over the boater's protest, the owner untied the boat and pushed it away from the pier. The boat was lost at sea.

Is the boater likely to prevail in an action against the owner to recover the value of the boat?

A. No, because the owner told the boater that she could not tie her boat to the pier.

B. No, because there was a possibility that the boat would not be damaged by the storm.

C. Yes, because the boater offered to pay the owner for the use of his pier.

D. Yes, because the boater was privileged to enter the owner's property to save her boat.

Explanation:

Under the doctrine of **private necessity**, a trespass to land is privileged when the **intrusion** is, or reasonably appears to be, **necessary to protect** oneself, third parties, or **property** from serious harm. The landowner cannot stop the privileged trespass and is liable to the trespasser for damages resulting from any attempt to do so.

Here, the boater tied her boat to the pier without the owner's consent (trespass) because she reasonably believed that the intrusion was necessary to protect her boat from capsizing in the sudden storm (private necessity). And though the owner had no right to stop her intrusion, he untied her boat and pushed it away from the pier, causing the boat to be lost at sea. As a result, the boater can recover the value of her boat from the owner.

(Choice A) The boater had the right to tie her boat to the pier over the owner's protest to save it from capsizing in the storm (private necessity). Therefore, the owner's objection to the boater's use of the pier is irrelevant.

(Choice B) Even if there was a possibility that the boat would not be damaged by the storm, the boater's trespass was still privileged because her intrusion *reasonably appeared* to be necessary to protect her boat.

(Choice C) A person does not have to pay to use the landowner's property for private necessity. Therefore, the owner would still be liable for damage to the boat even if the boater had not offered to pay for the use of the pier.

Educational Objective:

A landowner must permit a trespass arising from private necessity (an intrusion that is, or reasonably appears to be, necessary to protect oneself, third parties, or property from serious harm) and is liable for damages resulting from an attempt to stop a privileged trespass.

References

Restatement (Second) of Torts § 197 (Am. Law Inst. 1965) (definition of private necessity).

Restatement (Second) of Torts § 77 cmt. d & e (Am. Law Inst. 1965) (defense of property).

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Trespass excused by private necessity



Trespasser liable for broken flower pot

Landowner liable for dog bite

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A teenager was riding a bicycle when she saw a classmate walking toward her. The teenager rode quickly toward the classmate, knowing that he would think she would run into him on her current trajectory. The teenager was not purposefully trying to harm or touch him. The classmate saw the teenager riding toward him and yelled at her to stop. The teenager swerved at the last moment and avoided hitting him. The classmate had a panic attack because he thought that the teenager would hit him.

Is the classmate likely to succeed if he sues the teenager for assault?

A. No, because the teenager did not make contact with the classmate.

B. No, because the teenager did not purposefully try to harm or touch the classmate.

C. Yes, because the teenager acted with the requisite intent.

D. Yes, because the teenager's conduct was extreme and outrageous.

Explanation:

Assault occurs when a defendant's **intentional act** causes a plaintiff reasonable **apprehension** of imminent harmful or offensive **bodily contact**. The intent requirement is met when the defendant acts with either:

purpose – the **desire** to cause apprehension of contact *or*
knowledge – the **substantial certainty** that such apprehension will result.

Here, the teenager rode her bicycle directly at her classmate, causing him to think that she would hit him (reasonable apprehension of imminent contact). The teenager did not purposefully try to harm or touch the classmate **(Choice B)**. But the teenager knew with *substantial certainty* that the classmate would think she would run into him, so she acted with the requisite intent. As a result, the classmate is likely to succeed in a suit against the teenager for assault.

(Choice A) Assault merely requires that the plaintiff be placed in *apprehension* of imminent contact. Actual bodily contact is not required. Therefore, the fact that the teenager did not make contact with the classmate is irrelevant.

(Choice D) Extreme and outrageous conduct (ie, conduct that is unacceptable in civilized society) is an element of intentional infliction of emotional distress—not assault, which only requires intentional conduct.

Educational objective:

For assault, intent exists when a defendant acts with the purpose (desire) or knowledge (substantial certainty) that his/her conduct will cause apprehension of imminent harmful or offensive contact.

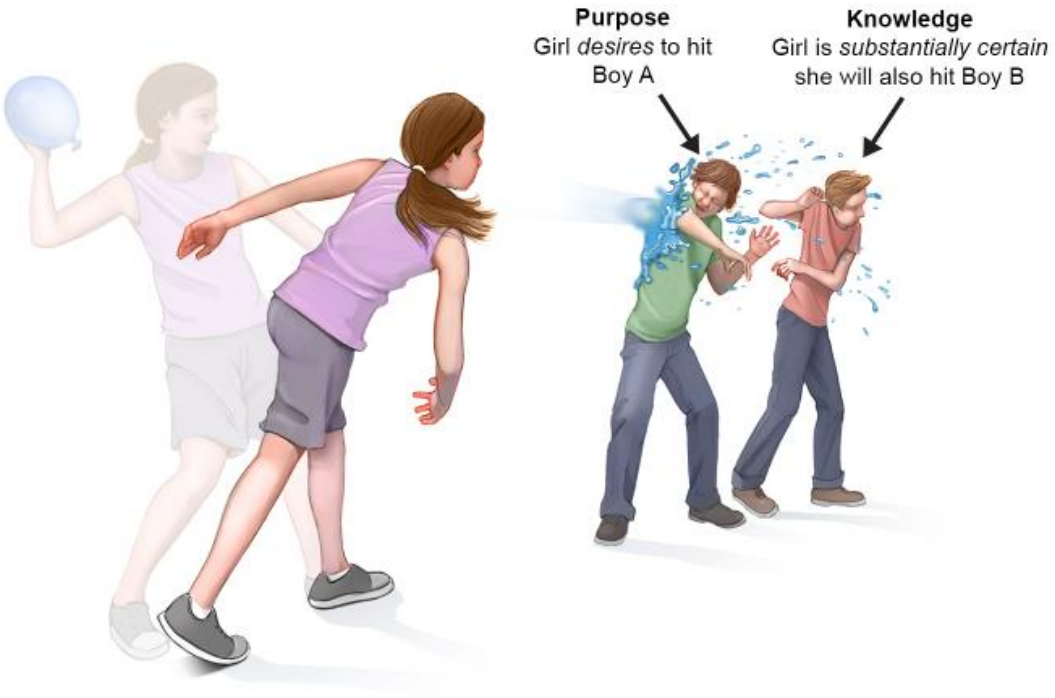
References

Restatement (Second) of Torts § 21 (Am. Law Inst. 1965) (defining assault).

Restatement (Second) of Torts § 32 (Am. Law Inst. 1965) (explaining the requisite intent for assault).

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Two types of intent



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A college student and her roommate were invited to a Halloween party. The roommate decided to dress up as an anime character whose defining feature was bright green hair. The roommate planned to buy a wig, but the student convinced the roommate to allow the student to dye the roommate's hair using a temporary green dye that would wash out after a single shampoo. They went to a store where the roommate accidentally purchased a bottle of permanent dye. The student noticed that the dye was permanent but did not point out the roommate's mistake. Instead, the student applied the permanent, bright-green dye to the roommate's hair. Unable to dye her hair back in time for her next shift, the roommate lost her part-time job as a server.

If the roommate sues the student for battery, is the roommate likely to prevail?

A. No, because the roommate consented to having her hair dyed by the student.

B. No, because the student did not misrepresent the permanent nature of the dye.

C. Yes, because the roommate lost her part-time job as a server.

D. Yes, because the student was aware of the roommate's mistake.

Explanation:

When a defendant intends to inflict contact (or imminent apprehension of contact) and causes harmful or offensive contact with the plaintiff, the defendant is liable for **battery** absent some defense. Actual or express **consent is a defense** to battery (and other intentional torts) when the plaintiff's words or actions manifested a willingness to submit to the defendant's conduct. However, consent is **not valid** and will not serve as a defense **if**:

the plaintiff consented because of a **substantial mistake** concerning the **nature of the invasion** of the plaintiff's interests or the **extent of the expected harm** *and*
the defendant **knew about the mistake** or caused it by affirmative misrepresentation or fraud.

Here, the student applied *permanent*, bright-green dye to the roommate's hair (harmful contact). Although she consented to having her hair dyed by the student, the roommate believed that the dye she had purchased was *temporary* (substantial mistake). The student was aware of the roommate's mistake but said nothing. Therefore, the roommate's consent is no defense, and the roommate will likely prevail in her suit against the student for battery **(Choice A)**.

(Choice B) Although the student did not misrepresent the permanent nature of the dye, the student *knew* that the roommate mistakenly believed it was temporary. This is enough to render the roommate's consent invalid.

(Choice C) Battery does not require proof of actual harm, so evidence that the roommate lost her job does not provide a basis for her to prevail. Instead, this evidence goes to how much she can recover in damages once her battery claim is established.

Educational objective:

Consent is no defense to battery (or other intentional torts) if (1) the plaintiff gave consent because of a substantial mistake concerning the nature of the invasion of the plaintiff's interests or the extent of the expected harm and (2) the defendant knew about the mistake or caused it by affirmative misrepresentation or fraud.

References

Restatement (Second) of Torts § 892B (Am. Law Inst. 1981) (consent under mistake, misrepresentation, duress).

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Consent to contact

Actual	Apparent	Implied by law
Plaintiff willingly submits to contact	Consent reasonably understood by plaintiff's conduct or implied by custom	Plaintiff cannot consent and contact required to prevent serious harm
		

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A tile contractor was hired to install ceiling tiles in a new, multi-story office building. To speed up the installation process, the tile contractor rented scissor lifts from an equipment rental company. A sprinkler-system contractor who was also working on the building owned several identical scissor lifts that he was using to install sprinkler systems in the ceiling of each of the building's floors. The tile contractor mistakenly directed one of his employees to the wrong floor to retrieve the scissor lift from that floor. Consequently, the employee retrieved one of the lifts owned by the sprinkler-system contractor. The tile contractor used the lift for more than two weeks before the sprinkler-system contractor found and regained possession of the lift. The lift was in the same condition as when the tile contractor had taken it.

The sprinkler-system contractor sued the tile contractor for trespass to chattels, and the tile contractor defended on the basis that his taking and use of the lift was a reasonable mistake.

For whom is the court likely to rule?

A. For the sprinkler-system contractor, because a reasonable mistake is no defense to a trespass-to-chattels action.

B. For the sprinkler-system contractor, because the tile contractor's mistake was not a mistake of law.

C. For the tile contractor, because the condition of the lift had not been changed by his actions.

D. For the tile contractor, because the sprinkler-system contractor's lift was identical to the ones rented by the tile contractor.

Explanation:

Trespass to chattels (ie, tangible personal property) occurs when the defendant **intentionally interferes** with the plaintiff's **possessory rights** by either:

dispossessing the plaintiff of the chattel *or*

using or intermeddling with the plaintiff's chattel.

Only the intent to do the interfering act is necessary. Therefore, the defendant's belief, because of a **mistake of law or fact**, that he/she was privileged to act is **no defense** to a trespass-to-chattels action **(Choice B)**. This is true **even if** the mistake was **reasonable**.

Here, the tile contractor intentionally dispossessed the sprinkler-system contractor of his scissor lift for more than two weeks. The tile contractor's apparent belief that the lift taken was one of the lifts he had rented (mistake of fact) is no defense—no matter how reasonable that mistake may have been given that the lifts were identical **(Choice D)**. For this reason, the court will likely rule for the sprinkler-system contractor.

(Choice C) In cases of dispossession (as seen here), the plaintiff can recover for loss of use of the chattel without proof of actual harm (eg, damage to the chattel). Therefore, the tile contractor can be liable to the sprinkler-system contractor even though the tile contractor's actions had not changed the condition of the lift.

Educational objective:

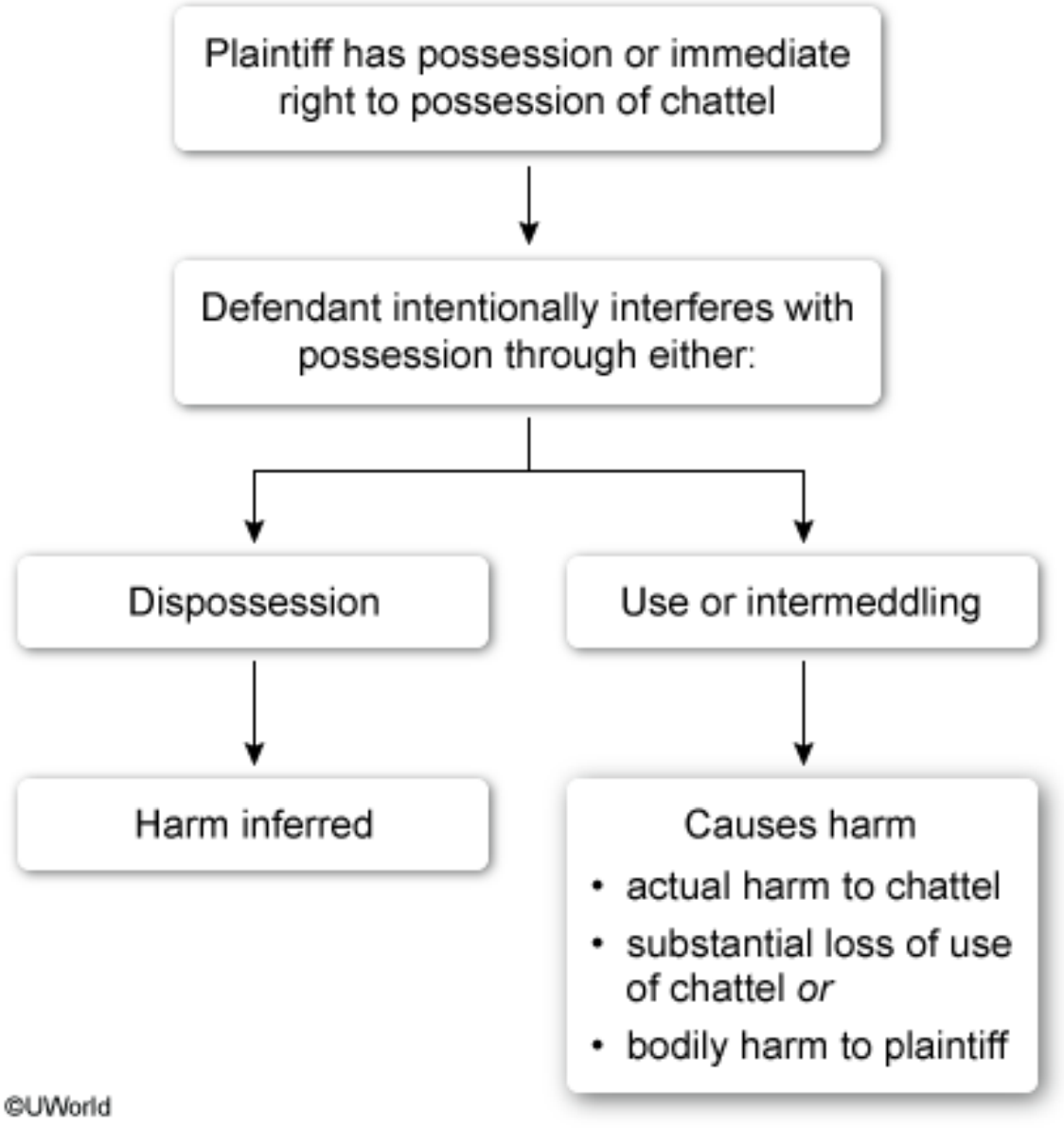
Trespass to chattels is an intentional interference with another's tangible personal property through dispossession, use, or intermeddling. The defendant's erroneous belief, because of a mistake of fact or law, that he/she was privileged to do the interfering act is no defense.

References

Restatement (Second) of Torts § 244 (Am. Law Inst. 1965) (effect of mistake on trespass to chattels).

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Trespass to chattels



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A restaurant building was expanded into a vacant lot north of its original location. The contractor who was working on the restaurant expansion found that the north wall of the enlarged structure needed extensive support, so anchor rods and concrete were added. The supporting anchor rods and concrete extended into a neighboring property farther to the north at a point 20 feet below the surface.

Although the anchor rods and concrete did not impact the surface of his land or its existing uses, the owner of the neighboring property has sued the restaurant owner for trespass.

Which party is likely to prevail?

A. The neighboring property owner, because he should have been given notice of the intrusion before it occurred.
B. The neighboring property owner, because the restaurant intruded upon his property without his permission.
C. The restaurant owner, because the decision to provide the additional support was reasonable.
D. The restaurant owner, because the anchor rods and concrete did not disturb the neighboring property owner's peaceful enjoyment of his land.

Explanation:

Trespass is the intentional entry onto another's property without permission. The entry can occur **on**, **beneath**, or **above** the property.

Here, the restaurant installed supporting anchor rods and concrete that entered the neighboring property 20 feet below the surface. Since the neighboring property owner did not consent to the sub-surface entry, he will likely prevail on his trespass claim.

(Choice A) Even if the neighboring property owner had been given prior notice, he would prevail on his trespass claim if he did not consent to the intrusion.

(Choice C) The reasonableness of the decision to provide additional support may show that the restaurant owner was not negligent—eg, he used reasonable care to prevent injury to the adjacent landowner. But reasonableness is irrelevant to trespass, which requires intentional conduct.

(Choice D) Disturbance of peaceful enjoyment of the neighboring property is relevant to an action for private nuisance (a substantial and unreasonable interference with another's use or enjoyment of land)—not trespass.

Educational objective:

Trespass (an intentional entry onto another's property without permission) can occur on, beneath, or above the surface.

References

Restatement (Second) of Torts § 158 (Am. Law Inst.1965) (intentional trespass).

Restatement (Second) of Torts § 159 (Am. Law Inst.1965) (trespass on, beneath, and above the surface).

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Ways of committing trespass



A customer pledged a stock certificate to a bank as security for a loan. Under its loan agreement with the customer, the bank was obligated to return the certificate once the loan was repaid. A year later, when the customer fully repaid the loan, the bank refused the customer's demand to return the certificate because the officer dealing with the loan had the mistaken belief that there was still a balance due. No one at the bank reviewed the records until two months later, at which time the error was discovered. The bank then offered to return the certificate, but the customer refused to accept it. At the time the customer pledged the certificate, the shares were worth $10,000; at the time the customer repaid the loan, the shares were worth $20,000; and at the time the bank offered to return the certificate, the shares were worth $5,000.

If the customer brings an action against the bank based on conversion, how much, if anything, should the customer recover?

A. Nothing, because the bank lawfully came into possession of the certificate.

B. $5,000, because that was the value of the shares when the customer refused to accept the certificate back.

C. $10,000, because that was the value of the shares when the bank came into possession of the certificate.

D. $20,000, because that was the value of the shares when the customer was entitled to the return of the certificate.

Explanation:

Conversion (an intentional and substantial interference with another's right to control a chattel) occurs when a defendant **refuses to return** a chattel upon demand to a plaintiff who is entitled to its **immediate possession**. In the event of a conversion, the plaintiff can recover the **fair market value** of the chattel **at the time of the conversion**.

Here, conversion occurred when the bank refused to return the customer's stock certificate even though the customer had fully repaid the loan and was entitled to immediate possession of the certificate pursuant to the loan agreement. Accordingly, the customer should recover the fair market value of the shares when the bank refused to return the certificate in response to the customer's rightful demand (the time of conversion)—$20,000.

(Choice A) A defendant who refuses to return the plaintiff's chattel may be liable for conversion even if the defendant initially acquired the chattel lawfully. Therefore, though the bank lawfully obtained the stock certificate as security for the customer's loan, it committed conversion by refusing to return the certificate when the customer was entitled to immediate possession.

(Choices B & C) The customer should recover the fair market value of the certificate *at the time of the conversion*—not when the bank first came into possession of the certificate or when the customer refused to accept it back two months later.

Educational objective:

Conversion occurs when a defendant refuses to return a chattel upon demand to a plaintiff entitled to its immediate possession, after which the plaintiff can recover the fair market value of the chattel at the time of the conversion.

References

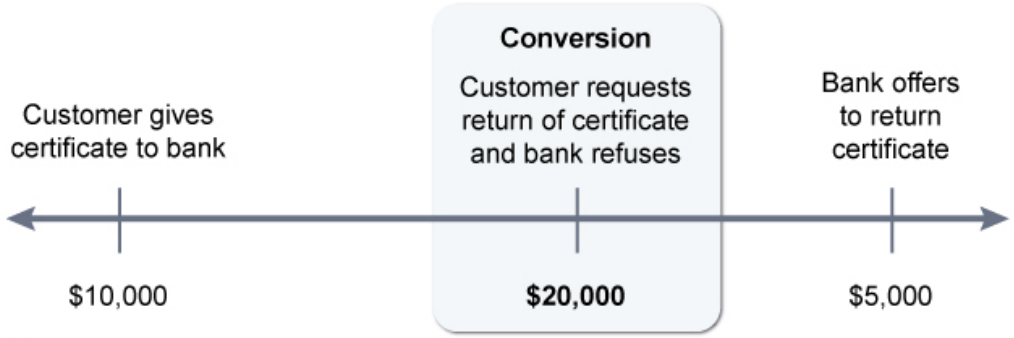
Restatement (Second) of Torts § 222A (Am. Law Inst. 1965) (definition of conversion).

Restatement (Second) of Torts § 237 (Am. Law Inst. 1965) (conversion by demand and refusal).

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Damages = fair market value at time of conversion



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While throwing warm-up pitches on the sidelines during a professional baseball game, a pitcher was continuously heckled by some spectators seated behind a wire mesh fence in the stands above the dugout. On several occasions, the pitcher turned and looked directly at the hecklers with a scowl on his face, but the heckling continued. The pitcher then wound up as though he was preparing to pitch in the direction of his catcher, but threw a fastball toward the hecklers instead. The ball passed through the wire mesh fence and struck a woman who was one of the hecklers. The woman brought an action against the pitcher and the team to recover damages for negligence and battery. The trial court entered judgment as a matter of law in favor of the defendants on the battery claim. The jury found for the defendants on the negligence claim because the jury determined that the pitcher could not foresee that the ball would pass through the wire mesh fence.

The woman has appealed the judgment on the battery claim, contending that the trial court erred in entering judgment as a matter of law in favor of the defendants.

On appeal, should the court affirm the judgment as a matter of law entered in favor of the pitcher on the battery claim?

A. No, because a jury could find that the pitcher's conduct was extreme and outrageous, and the cause of the woman's physical harm.

B. No, if a jury could find on the evidence that the pitcher intended to cause the hecklers to fear being hit.

C. Yes, because the jury found that the pitcher could not foresee that the ball would pass through the fence.

D. Yes, if a jury could find on the evidence that the pitcher was mentally ill and that his act was the product of his mental illness.

Explanation:

A defendant is entitled to judgment as a matter of law (ie, directed verdict) if the evidence presented at trial is not legally sufficient to support every element of the plaintiff's claim (ie, no reasonable jury could find in the plaintiff's favor). Therefore, on appeal, the court should affirm the trial court's judgment on the **battery** claim if no reasonable jury could find that the defendant:

intended to inflict harmful/offensive contact or imminent apprehension thereof *and* **caused** harmful/offensive **contact** with the plaintiff.

Here, however, a reasonable jury could find on the evidence that the woman was struck by a baseball thrown by the pitcher (harmful contact). If a reasonable jury could also find that the pitcher threw the baseball with the *intent* to hit the hecklers (contact) or cause them to fear being hit (imminent apprehension), then the appellate court should reverse (ie, not affirm) the judgment as a matter of law and remand the case for a jury to decide whether a battery occurred.

(Choice A) For battery, a jury does not need to find that the defendant's conduct was extreme and outrageous—only that the conduct was intentional. Therefore, even if a reasonable jury could find that the pitcher's conduct caused the woman's harm, the appellate court should reverse the judgment only if the jury could also find that the pitcher's conduct was intentional.

(Choice C) Foreseeability is not an element for battery. Therefore, the jury's finding that the pitcher could not foresee that the ball would pass through the fence has no effect on the woman's battery claim.

(Choice D) Although mental deficiency is considered when determining whether the defendant was capable of forming the intent required for battery, it is not a defense to battery. Therefore, the appellate court should not affirm the lower court's judgment merely because the jury could find that the pitcher was mentally ill and that his act was the product of his mental illness.

Educational objective:

For battery, the plaintiff must prove that the defendant (1) intended to inflict harmful/offensive contact or imminent apprehension thereof and (2) caused such contact with the plaintiff.

References

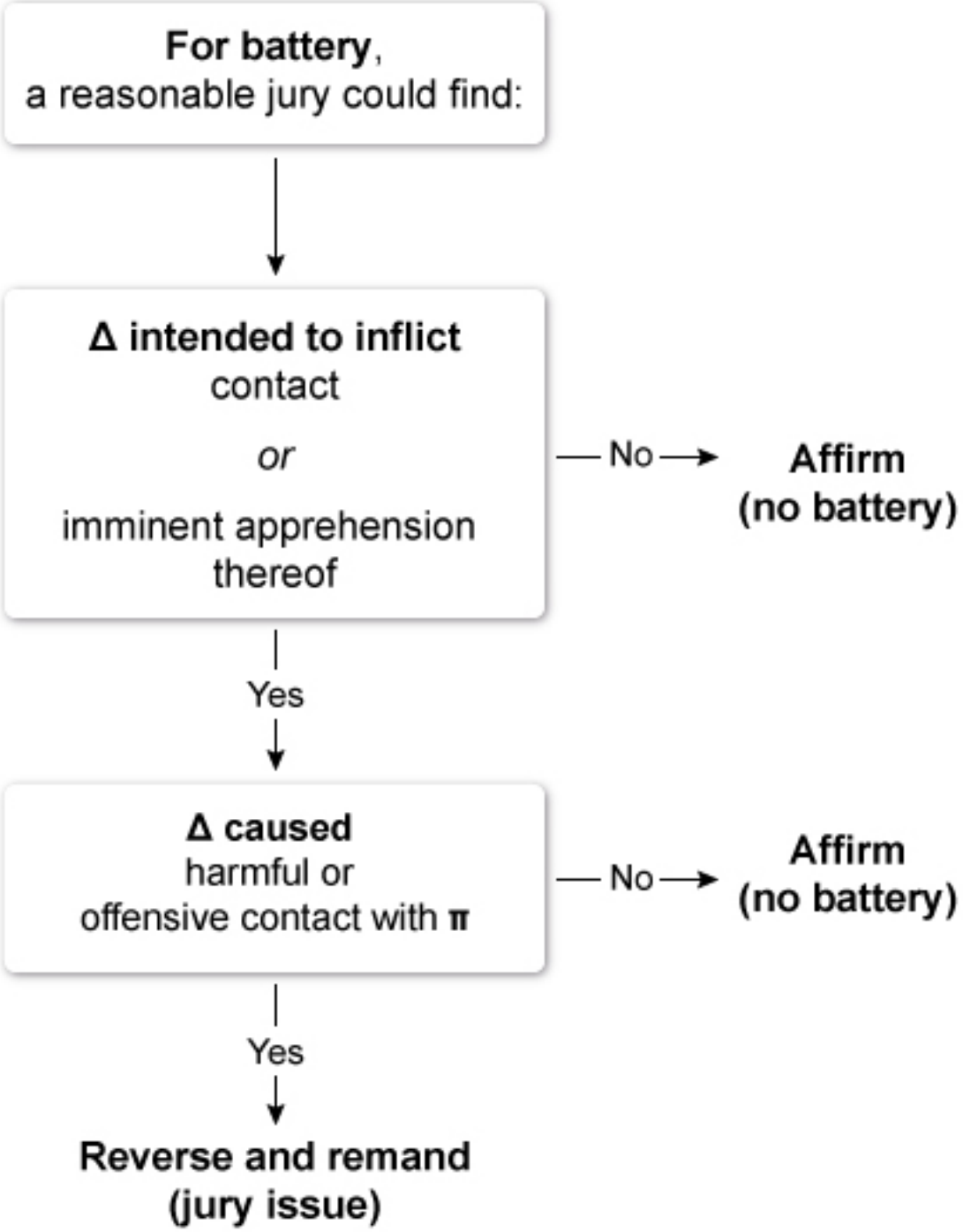
Fed. R. Civ. P. 50(a) (judgment as a matter of law).

Restatement (Third) of Torts § 1 (Am. Law Inst. 2010) (definition of intent).

Restatement (Second) of Torts § 13 (Am. Law Inst. 1965) (battery by harmful contact).

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Judgment as a matter of law for defendant



Δ = defendant; **π** = plaintiff

A disgruntled former employee of a corporation posted false job listings online for his former position. The false job listings directed applicants to email multiple documents, including a resume, to the employee's former manager. The employee intended to generate enough email responses to impede performance of the corporation's computer system.

However, the employee accidentally posted an email address belonging to a small business owner. As a result, the owner received hundreds of emails from job applicants. This made it hard for the owner to find emails relevant to her business but caused no functional disruption to her computer system. Upon discovering that the employee had posted the false job listings, the owner filed suit against the employee for trespass to chattels.

Should the owner prevail in her lawsuit?

A. No, because the employee intended to interfere only with the corporation's computer system.

B. No, because the owner cannot show that the employee's interference caused her actual damages.

C. Yes, because the emails constituted an intentional invasion of another's property without permission or legal privilege.

D. Yes, because the employee intentionally used or intermeddled with the owner's computer system.

Explanation:

Trespass to chattels (ie, tangible personal property) occurs when an actor **intentionally interferes** with another's **right of possession** by either:

dispossessing the other person of the chattel *or*

using or intermeddling with the other person's chattel.

And under the doctrine of **transferred intent**, an actor's **intent to commit** trespass to chattels **against one person** will **transfer to** the actor's **commission** of the tort **against a different person**.* However, in the absence of actual damages (eg, actual harm to chattels), an action for trespass to chattels based on use or intermeddling will fail.

Here, the employee intended to intermeddle with the *corporation's* computer system by having email responses to the false job listings sent to the employee's former manager. This intent to commit a trespass to chattels then transferred to the *owner* when the employee accidentally directed the emails to the owner instead **(Choice A)**. But since the emails caused no functional disruption to the owner's computer system, the owner cannot show that the employee's interference caused her actual damages. Therefore, the owner should not prevail **(Choice D)**.

*Transferred intent applies if an actor intends to commit an intentional tort against one person but commits a different intentional tort against the same person, the same intentional tort against a different person, or a different intentional tort against a different person.

(Choice C) A trespass to *land* (ie, *real* property) is defined as an intentional invasion of another's property without permission or legal privilege. But here, the owner is suing for trespass to *chattels* (ie, tangible *personal* property).

Educational objective:

Trespass to chattels is an intentional interference with another's tangible personal property through dispossession, use, or intermeddling. The intent to commit this tort against one person will transfer to the commission of the tort against another person.

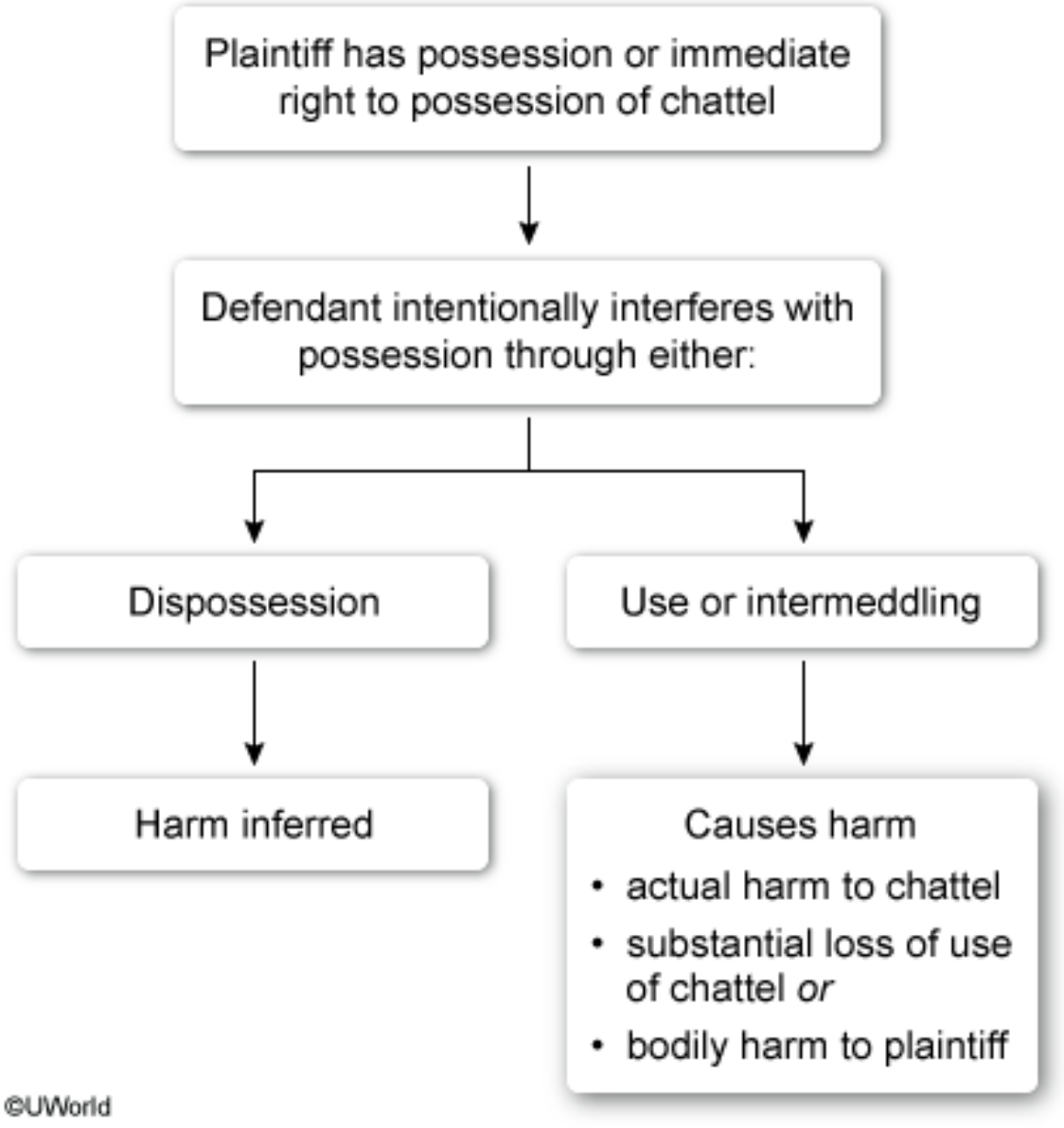
References

Restatement (Second) of Torts § 217 (Am. Law Inst. 1965) (ways of committing trespass to chattels).

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 110 (Am. Law Inst. 2015) (transferred intent).

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Trespass to chattels



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A pilot was flying his small plane when he experienced engine trouble and was forced to make an emergency landing. He landed the plane safely in a large yard behind a home located in a relatively remote area. Unfortunately, when he disembarked from the plane, he was attacked and injured by two large dogs kept by the homeowner to discourage trespassers. The homeowner, who had seen the plane land, had ordered the dogs to attack. Several months earlier, the homeowner had posted large signs around the perimeter of the yard warning of the dogs.

Does the pilot have a viable claim against the homeowner for battery?

A. No, because the homeowner had provided adequate warning.

B. No, because the pilot was a trespasser.

C. Yes, because the pilot can invoke the privilege of necessity.

D. Yes, because the pilot could not reasonably have been expected to see the warning signs posted by the homeowner.

Explanation:

Defenses for intentional harm to persons

(justifications & excuses)

Defenses	**Counterdefenses**
Consent	Consent revoked
	Exceeded scope of consent
	No capacity to consent (eg, youth, incompetence)
	Consented to crime (eg, statutory rape)
	Fraud, mistake, duress
Defense of self & others	Used excessive force
	Unreasonable mistake
	Defendant was initial aggressor
Defense of property	Used excessive force
	Necessity (public & private)
Arrest &	Used excessive force
prevention of crime	Unreasonable mistake
Parental discipline	Used excessive force

Battery requires that the defendant intend to inflict contact (or apprehension of contact) and cause harmful or offensive contact with the plaintiff. Although the defendant may generally use **reasonable force** (eg, battery) to stop a **trespass** (an intentional entry onto another's property without permission), force cannot be used to stop a trespass committed out of **private necessity** (an intrusion that is, or reasonably appears to be, necessary to protect oneself, third parties, or property).

Here, the homeowner committed a battery when he ordered his dogs to attack the pilot (intent to inflict contact) and the dogs then attacked and injured the pilot (harmful contact) to stop his trespass. However, the homeowner's battery was not justified because the pilot had been forced to make an emergency landing on the homeowner's property to *protect himself* (private necessity). Therefore, the homeowner is liable for battery.

(Choice A) The homeowner could use watchdogs to discourage trespassers, since he provided adequate warning of the dogs' presence. However, the homeowner could only use the dogs to inflict the same level of harm he was privileged to inflict directly. Since the homeowner could not use force to stop a trespass committed out of private necessity,

neither could the dogs. Therefore, the warning signs do not excuse the homeowner's battery.

(Choice B) Although the pilot intentionally entered the homeowner's property without permission (trespass), the homeowner could not use force to stop the pilot because his trespass was excused by private necessity.

(Choice D) A landowner must take reasonable care to make a watchdog's presence known to *probable* intruders, not *all* intruders. Here, the homeowner took reasonable care to warn probable intruders about his watchdogs by posting large warning signs around the perimeter of his yard. Therefore, it does not matter that the pilot could not reasonably have been expected to see the warning signs from the air.

Educational objective:

Although a defendant is generally privileged to use reasonable force (eg, battery) to stop a trespass, the defendant cannot use force to stop a trespass committed out of private necessity (an emergency intrusion that is, or reasonably appears to be, necessary to protect oneself, third parties, or property).

References

Restatement (Second) of Torts § 13 (Am. Law Inst. 1965) (battery by harmful contact).

Restatement (Second) of Torts § 77 (Am. Law Inst. 1965) (privilege to use reasonable force).

Restatement (Second) of Torts § 197 (Am. Law Inst. 1965) (private necessity).

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A man built a garage in his backyard that encroached two feet across the property line onto property owned by his neighbor. Thereafter, the man sold his property to a buyer. Prior to the man's sale to the buyer, the man and the neighbor were unaware that the garage encroached onto the neighbor's property.

The neighbor later learned of the encroachment and she sued the man for damages for trespass.

In this action, will the neighbor prevail?

A. No, because the man no longer owns or possesses the garage.

B. No, because the man was unaware of the encroachment when the garage was built.

C. Yes, because the man knew where the garage was located, whether or not he knew where the property line was.

D. Yes, unless the buyer was aware of the encroachment when he purchased the property.

Explanation:

Trespass to land

Requires proof that:

defendant intentionally entered land in question *and*
plaintiff did not consent to entry
For **trespass to land** (ie, trespass *quare clausum fregit*), a defendant must **intentionally** enter or cause something to **enter the land** in question. If the plaintiff did **not consent** to the defendant's intentional entry, then the defendant is liable for trespass. It does not matter whether the defendant knew that the property belonged to the plaintiff or believed that the entry was permissible.

Here, the man built a garage that encroached across the neighbor's property line. Although the man did not know that the garage was on his neighbor's property, he still intended for it to be on the land in question. And since the neighbor did not consent to that entry, the man is liable for trespass.

(Choice A) If the defendant intentionally causes an object to enter and remain on the plaintiff's property, the defendant is liable for its continued trespass even after the defendant transfers his/her legal interest in the object to another. Since the man intentionally built his garage on the land in question, he is liable for its continued trespass even though he no longer owns it.

(Choice B) Trespass requires that the defendant intend to be (or cause something to be) on the property in question, but the defendant need not know that the property belongs to the plaintiff. Therefore, it does not matter whether the man knew that the garage encroached onto the neighbor's property when it was built.

(Choice D) A person who purchases property that encroaches onto the land of another is liable for trespass if he/she knows about the trespass and fails to remedy it. However, the sale does not absolve the seller of liability for trespass. Therefore, the man is liable for trespass even if the buyer was aware of the garage's encroachment.

Educational objective:

Trespass to land requires the intent to enter the land in question, but does not also require that the defendant know that the property belongs to the plaintiff.

References

Restatement (Second) of Torts § 158 (Am. Law Inst. 1965) (definition of trespass to land).

Restatement (Second) of Torts § 164 (Am. Law Inst. 1965) (trespass to land by mistake).

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A mother and her six-year-old child were on a walk when the mother stopped to talk with an elderly neighbor. Because the child resented having his mother's attention diverted by the neighbor, the child angrily threw himself against the neighbor and knocked her to the ground. The neighbor suffered a broken wrist as a result of the fall.

In an action for battery by the neighbor against the child, what is the strongest argument for liability?

A. The child intended to throw himself against the neighbor.

B. The child was not justified in his anger.

C. The child was old enough to appreciate that causing a fall could inflict serious injury.

D. The child was old enough to appreciate the riskiness of his conduct.

Explanation:

Tort liability of minor children

Intentional tort	Liable if child was capable of forming requisite intent
Negligence	Liable if child failed to act as reasonable child of similar age, intelligence, & experience would have acted under similar circumstances

Battery requires that the defendant:

intend to inflict harmful or offensive contact (or imminent apprehension thereof) *and* cause harmful or offensive contact with the plaintiff.

Age is not a defense to intentional tort liability. Instead, a child's level of **maturity** is considered when determining whether he/she is capable of **forming the requisite intent**. Therefore, a child is liable for battery when the above elements are met, regardless of whether the child is old enough to appreciate the riskiness or consequences of his/her conduct **(Choices C & D)**.

Here, the strongest argument for liability is that the six-year-old child was mature enough to understand that he would cause harmful or offensive contact with the neighbor when he angrily threw himself against her. And since his intentional contact caused the neighbor to fall and break her wrist, the child is liable for battery.

(Choice B) Although justification (eg, consent, self-defense) is a defense to battery, anger is never a valid justification.

Educational Objective:

Battery requires the intent to inflict harmful or offensive contact (or imminent apprehension thereof). If a child is capable of forming that intent, the child may be held liable for battery.

References

Restatement (Third) of Torts § 1 (Am. Law Inst. 2010) (definition of intent).

Restatement (Second) of Torts § 13 (Am. Law Inst. 1965) (battery by harmful contact).

Restatement (Second) of Torts § 895I (Am. Law Inst. 1979) (tort liability for children).

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In an action for battery, the evidence established the following: The plaintiff was bad-tempered and, as the defendant knew, carried a gun and used it often; the plaintiff struck the defendant first; during the altercation, the plaintiff repeatedly tried to get to his gun; and the blows inflicted upon the plaintiff by the defendant resulted in the plaintiff being hospitalized.

Which finding of fact would be most likely to result in a verdict for the defendant?

A. The defendant feared death or serious bodily harm.

B. The defendant used no more force than he actually believed was necessary to protect himself against death or serious bodily harm.

C. The defendant used no more force than he reasonably believed was necessary to protect himself against death or serious bodily harm.

D. The defendant was justified in retaliating against the plaintiff because the plaintiff struck the first blow.

Explanation:

Deadly force in self-defense

Defendant reasonably believes:

plaintiff is about to intentionally inflict serious bodily harm or death upon defendant *and*
plaintiff can only be stopped by defendant's immediate use of deadly force

A defendant is not liable for an intentional tort (eg, battery) committed while acting in **self-defense**—the privilege to use reasonable force to protect oneself against the intentional infliction of harmful or offensive contact. However, the force used must be **proportionate** to the **anticipated harm**, so the defendant can only use **deadly force** in self-defense when he/she **reasonably believes** that the plaintiff:

is about to intentionally inflict **serious bodily harm** or **death** upon the defendant *and*
can only be stopped by the defendant's immediate use of deadly force.

Here, the plaintiff struck the defendant first and repeatedly tried to grab his gun during the fight. Therefore, the defendant could *reasonably believe* that (1) the plaintiff was about to intentionally inflict serious bodily harm or death and (2) he could only stop the plaintiff with deadly blows. And since the defendant used no more force than he reasonably believed was necessary to protect himself, he can establish the self-defense privilege and obtain a verdict in his favor.

(Choices A & B) Self-defense requires that the defendant reasonably fear serious bodily harm or death and reasonably believe that deadly force is required. Therefore, even if the defendant (1) feared that the plaintiff's actions threatened death or serious bodily harm or (2) used no more force than he actually believed was necessary to protect himself, he could still be liable for battery if his fear or actual belief was unreasonable.

(Choice D) The self-defense privilege never permits retaliation and terminates once there is no threat of further harm (eg, the defendant would not be privileged to use force in self-defense if the plaintiff walked away after striking the first blow). Here, the defendant's conduct was justified because he reasonably believed that the plaintiff was about to shoot him—not because the plaintiff struck the first blow.

Educational Objective:

A defendant is privileged to use force in self-defense when (1) the defendant reasonably believes that the plaintiff is about to intentionally inflict harmful or offensive contact and (2) the defendant uses no more force than he/she reasonably believes is necessary to prevent the threatened contact.

References

Restatement (Second) of Torts § 65 (Am. Law Inst. 1965) (force threatening death or serious bodily harm).

Tatman v. Cordingly, 672 P.2d 1286 (Wyo. 1983).

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A man owned a much-loved cat, worth about $25, that frequently trespassed on a neighbor's property. The neighbor repeatedly asked the man to keep the cat on his own property, but the trespasses did not diminish. Aware of the man's long-standing attachment to the cat, the neighbor killed the cat with a shotgun in full view of the man. As a consequence, the man suffered great emotional distress.

In an action by the man against the neighbor, which of the following claims would be likely to result in the greatest recovery of compensatory damages?

A. Battery.

B. Conversion.

C. Intentional infliction of emotional distress.

D. Trespass to a chattel.

Explanation:

Extreme and outrageous conduct

Flagrant indecency
Exploiting known & special vulnerability
Abusing authority
Repeated harassment
Mnemonic: **FEAR**

Compensatory damages are awarded as compensation for the plaintiff's **actual harm** (eg, medical bills, lost wages, repair costs). Generally, plaintiffs must prove bodily harm to receive compensation for emotional harm. However, **intentional infliction of emotional distress** (IIED) claims allow plaintiffs to recover compensatory damages for emotional distress *without* proof of bodily harm if they show that the defendant:

engaged in **extreme and outrageous conduct** (eg, conduct affecting the plaintiff's known and **special vulnerability**) *and*
intentionally or recklessly caused the plaintiff **severe emotional distress**.
Here, the neighbor knew of the man's long-standing attachment to the cat (special vulnerability) when he shot it in full view of the man (extreme and outrageous conduct). In doing so, the neighbor either knew his conduct would harm the man (intent) *or* disregarded the risk of harm (recklessness). And since that conduct caused the man great emotional harm (severe emotional distress), he can recover compensatory damages for that mental distress—an amount greater than the value of the cat—without proof of bodily harm.

(Choice A) Battery claims compensate plaintiffs for bodily harm. But since the neighbor did not cause harmful or offensive contact with the man, he cannot recover damages for battery.

(Choice B) Conversion claims compensate plaintiffs for the fair market value of their dispossessed (ie, lost) chattels. Although the man can prevail on a conversion claim because the neighbor shot his cat (dispossession of chattel), he can only recover the fair market value of the cat—$25.

(Choice D) Trespass to chattel claims compensate plaintiffs for actual harm to their chattel. Here, the neighbor committed trespass to chattel when he killed the man's cat (harm to chattel). But since the cat was worth $25 and is now worth nothing, the man can only recover $25.

Educational objective:

Intentional infliction of emotional distress (IIED) compensates a plaintiff for emotional harm—even without proof of bodily harm—if he/she can prove that the defendant (1)

engaged in extreme and outrageous conduct and (2) intentionally or recklessly caused the plaintiff severe emotional distress.

References

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 46 (Am. Law Inst. 2012) (intentional or reckless infliction of emotional harm).

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A basketball player suffered a serious injury while participating in an impromptu basketball game at a public park. The injury occurred when the player and an opponent each tried to obtain possession of the ball when it rebounded from the backboard after a missed shot at the basket. During that encounter, the opponent swung his elbow to strike the player and injured him. The player now seeks compensation from the opponent.

At the trial, evidence was introduced tending to prove that the game had been rough from the beginning, that elbows and knees had frequently been used to discourage interference by opposing players, and that the player had been one of those making liberal use of such tactics.

In an action by the player against the opponent for battery, will the player likely prevail?

A. No, because the opponent did not intentionally use force that exceeded the player's consent.

B. No, because the player impliedly consented to rough play.

C. Yes, because the opponent intended to cause a harmful or offensive contact with the player.

D. Yes, because the opponent intended to strike the player with his elbow.

Explanation:

Battery occurs when a defendant intends to inflict harmful or offensive contact (or imminent apprehension of such contact) and causes contact that harms or offends the plaintiff. Consent (actual, apparent, or implied) is a **defense** to battery. **Apparent consent** exists when a reasonable person would have understood the plaintiff's **conduct or custom**—ie, accepted behavior in the community—to indicate consent. However, consent is **ineffective** if the defendant's conduct **exceeds** the **scope of consent**.

Here, the opponent intentionally struck the player with his elbow, causing an injury (battery) **(Choices C & D)**. However, the opponent reasonably understood that the player had consented to kneeing and elbowing that customarily occurred during the game (apparent consent) and the opponent's conduct (elbowing) did not exceed the scope of the player's apparent consent. Therefore, the opponent is *not* liable for battery.

(Choice B) It is only implied that the player consented to *customary* rough play (eg, kneeing and elbowing)—not *all* rough play. Therefore, this question turns on whether the opponent's rough play was intentional and whether it exceeded the scope of the player's consent.

Educational objective:

Apparent consent is a defense to battery when consent can be reasonably implied from the plaintiff's conduct or from custom. However, consent is only a defense when the defendant's conduct falls within the scope of the plaintiff's consent.

References

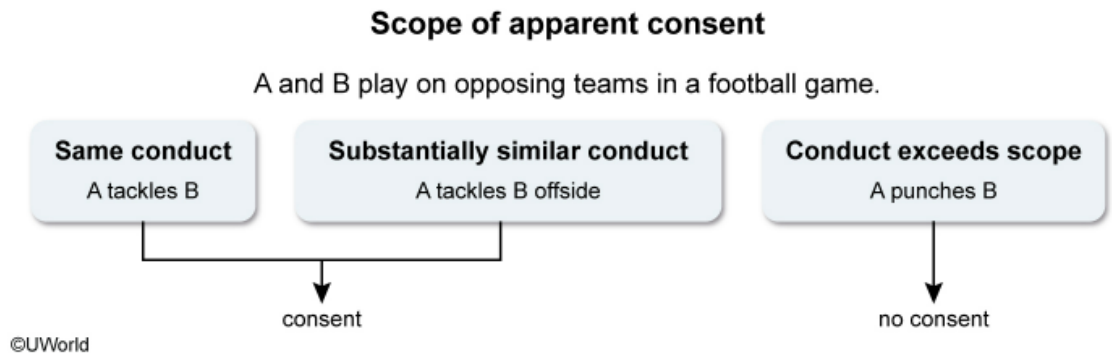
Restatement (Second) of Torts § 13 (Am. Law Inst. 1965) (battery by harmful contact).

Restatement (Second) of Torts § 18 (Am. Law Inst. 1965) (battery by offensive contact).

Restatement (Second) of Torts § 892A (Am. Law Inst. 1979) (effect of consent).

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While a woman was riding her horse on what she thought was a public path, the owner of a house next to the path approached her while shaking a stick and shouting, "Get off my property." Unknown to the woman, the path on which she was riding crossed the owner's private property. When the woman explained that she thought the path was a public trail, the owner cursed her, approached her horse, and struck the horse with his stick. As a result of the blow, the horse reared, causing the woman to fear that she would fall. However, the woman managed to stay on her horse, and then departed. Neither the woman nor the horse suffered bodily harm.

In an action against the owner for damages, will the woman likely prevail?

A. No, because the owner was privileged to exclude trespassers from his property.

B. No, because the woman suffered no physical harm.

C. Yes, for battery and assault.

D. Yes, for trespass to chattels.

Explanation:

Battery occurs when a defendant:

intends to inflict harmful or offensive contact (or imminent apprehension thereof) *and*

causes harmful or offensive **contact** with the plaintiff's body or an object intimately associated with the plaintiff's body (eg, clothing, dog on a leash).

In contrast, **assault** occurs when a defendant:

intends to inflict harmful or offensive contact (or imminent apprehension thereof) *and*

causes the plaintiff reasonable **apprehension** of imminent contact.

Here, the owner intentionally struck the woman's horse with a stick, which (1) caused harmful *contact* with the woman's horse (battery) and (2) caused the woman to *fear* that she was about to fall (assault). And though a plaintiff cannot recover twice for the *same* injury or harm (ie, no double recovery), the owner's act of striking the horse caused the woman two *distinct* harms (contact and apprehension). Therefore, the woman can recover for battery AND assault.

(Choice A) A landowner is privileged to use reasonable force to stop an unexcused trespass if the landowner (1) first asks the trespasser to leave and (2) reasonably believes that force is necessary to remove the trespasser. Although the owner told the woman to get off his property, there is no evidence that force was *necessary* to remove her (eg, had she told the owner she was staying). Therefore, the owner could not use force to exclude the woman.

(Choice B) The harm requirements for battery (harmful or offensive contact) and assault (apprehension of contact) can be satisfied without proof of bodily harm. Therefore, the woman's lack of physical harm will not prevent her from recovering damages.

(Choice D) Trespass to chattels (intentional interference with another's possession of tangible property) requires proof of actual damages—eg, impairment of the physical condition, quality, or value of the chattel. Since there is no evidence that the woman's horse was impaired (eg, unable to walk), she will not prevail on this claim.

Educational objective:

While the intent requirements for battery and assault are similar, the harm requirements for battery (harmful or offensive contact) and assault (apprehension of contact) are distinct.

References

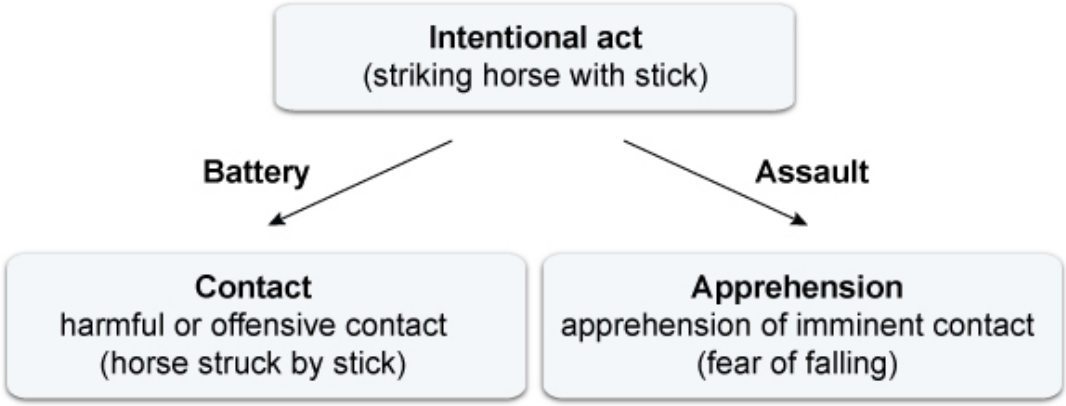
Restatement (Second) of Torts § 18 (Am. Law Inst. 1965) (battery by offensive contact).

Restatement (Second) of Torts § 21 (Am. Law Inst. 1965) (definition of assault).

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Battery v. Assault



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As an encyclopedia salesman approached the grounds on which a woman's house was situated, the salesman saw a sign that said, "No salesmen. Trespassers will be prosecuted. Proceed at your own risk." Although the salesman had not been invited to enter, he ignored the sign and drove up the driveway toward the house. As he rounded a curve, a powerful explosive charge buried in the driveway exploded, and the salesman was injured.

Is the salesman likely to recover damages from the woman for his injuries?

A. No, because the salesman ignored the sign, which warned him against proceeding further.

B. No, if the woman reasonably feared that intruders would come and harm her or her family.

C. Yes, if the woman was responsible for the explosive charge under the driveway.

D. Yes, unless the woman, when she planted the charge, intended only to deter, not to harm, a possible intruder.

Explanation:

Defenses & privileges to intentional torts

Defense of **P**roperty	Use of reasonable force to prevent or stop trespass
Defense of **O**thers	Use of force reasonably necessary to prevent harm to third party
Parental authority	Parent, guardian, or teacher may use reasonable force to discipline children
Consent	Actual – plaintiff willingly submits to contact Apparent – consent understood by plaintiff's conduct or custom Implied – plaintiff cannot consent & emergency action necessary to prevent serious harm
Arrest	Misdemeanor – plaintiff breached the peace in defendant's presence Felony – felony committed & defendant reasonably suspects plaintiff committed that felony
Necessity	Public – intrusion actually or apparently necessary to avert imminent public disaster Private – intrusion actually or apparently necessary to protect oneself, third parties, or property
Self-defense	Use of reasonable force to prevent harm to self

Mnemonic: **POPCANS**

A defendant is liable for **battery** if he/she **intends** to inflict harmful or offensive contact (or imminent apprehension thereof) and causes such contact with the plaintiff. Intent for battery exists when the defendant acts with either:

purpose – the **desire** to cause contact or imminent apprehension of contact *or*
knowledge – the **substantial certainty** that contact or imminent apprehension of contact will result.

Here, the salesman was injured by an explosive charge that detonated in the woman's driveway (harmful contact). And since the woman would have been substantially certain that the charge would contact a person driving over it had she planted it under the driveway (intent), the salesman would likely recover damages for battery absent some defense.

(Choice A) Assumption of the risk (the plaintiff's voluntary acceptance of a known risk of harm) is an affirmative defense to negligence or strict liability, but not intentional torts like

battery. Therefore, this defense does not apply here. Even if it did, the salesman did not knowingly or voluntarily accept the risk of harm because the woman's sign only warned of prosecution—not explosion.

(Choice B) A person is privileged to use reasonable force to defend his/her property against trespassers. However, deadly force (eg, explosive charge) is only reasonable if the defendant reasonably believes that the trespasser is about to inflict death or serious bodily harm. Here, there was no such evidence, so the woman was not privileged to use deadly force.

(Choice D) Battery requires the intent to inflict harmful / offensive contact or the immediate *apprehension* of such contact. Therefore, the woman would be liable for battery even if she only intended to deter possible intruders.

Educational objective:

Battery liability arises when a defendant intentionally (ie, purposefully or knowingly) inflicted harmful or offensive contact or (imminent apprehension thereof) and caused such contact with the plaintiff.

References

Restatement (Second) of Torts § 13 (Am. Law Inst. 1965) (battery by harmful contact).

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 1 (Am. Law Inst. 2010) (definition of intent).

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In a tavern, an intoxicated woman threatened to slash a man with a broken beer bottle she was holding. Another customer, who had not been threatened by the woman, forcefully grabbed the woman and locked her in the tavern's storeroom until the police could arrive. In the process, although the customer used reasonable force, the customer badly sprained the woman's wrist.

Is the woman likely to recover in an action against the customer?

A. No, because the customer's conduct was privileged as a defense of others.

B. Yes, based on battery only.

C. Yes, based on false imprisonment only.

D. Yes, based on both battery and false imprisonment.

Explanation:

Defense of others

Defendant reasonably believes:

plaintiff is about to inflict harmful or offensive contact upon person—ie, third party or plaintiff's own self

person has, or would have had, right of self-defense *and*

defendant's action is necessary to protect person

The **privilege** to use reasonable force in the **defense of others** exists when the defendant **reasonably believes** that:

the plaintiff is **about to inflict** harmful or offensive **contact** upon a third party

the third party has the right of **self-defense** *and*

the defendant's action is **necessary to protect** the third party.

Here, the customer was *privileged* to grab the woman and lock her in the tavern's storeroom (reasonable force) to defend the man because the customer reasonably believed that:

the woman was *about to slash* the man with the broken beer bottle in her hand

the man had the *right of self-defense* and

action was *necessary to protect* the man from the woman.

Since the customer had the right to use reasonable force in defense of the man, the woman will not recover in an action against the customer.

(Choices B & D) Battery occurs when a defendant intends to create contact (or imminent apprehension of contact) and causes harmful or offensive contact with the plaintiff. Although the customer committed battery when he intentionally grabbed the woman and sprained her wrist, the customer is not liable because he was privileged to use reasonable force in the defense of another.

(Choices C & D) False imprisonment occurs when the defendant intentionally confines the plaintiff within fixed boundaries and the plaintiff is aware of the confinement or harmed by it. Here, the customer falsely imprisoned the woman when he intentionally locked her in the storeroom, but the customer is not liable because his conduct was privileged.

Educational objective:

A defendant is privileged to use reasonable force in the defense of others when the defendant reasonably believes that (1) the plaintiff is about to inflict harmful or offensive contact upon a third party, (2) the third party has the right of self-defense, and (3) the defendant's action is necessary to protect the third party.

References

Restatement (Second) of Torts § 76 (Am. Law Inst. 1965) (defense of others).

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A college student was asleep in his bed in a college dormitory when his roommate, in a drunken fury, entered their room intending to attack the student with an ice pick while he slept. The phone rang and awakened the student. The roommate retreated quickly and threw the ice pick under his own bed in the same room. The next day, the student heard from friends about the roommate's murderous plans and later found the ice pick under the roommate's bed. Even though the college expelled his roommate, the student remained extremely upset and afraid to sleep.

In a suit against the roommate for assault, will the student prevail?

A. No, because the roommate did not touch the student.

B. No, because the student was not awake when the roommate entered the room and was unaware until later that the roommate had intended to attack him.

C. Yes, because it was reasonable for the student to feel afraid of sleeping in his room afterward.

D. Yes, because the roommate intended to inflict serious harm.

Explanation:

Assault occurs when a defendant:

intends to inflict (1) harmful or offensive contact or (2) imminent apprehension of such contact, *and*

causes the plaintiff reasonable apprehension of imminent contact.

Apprehension only exists when the plaintiff is **aware** of the defendant's act **at the time it occurs**.

Here, the roommate intended to attack the student with an ice pick (harmful contact). However, the attempted attack did not cause the student *apprehension* of imminent contact because he was *asleep* and *unaware* of the attempted attack until the *following day*. Therefore, there was no assault.

(Choice A) Assault only requires that the plaintiff be placed in *apprehension* of imminent contact. Actual bodily contact is not required, so the fact that the roommate never *touched* the student is irrelevant.

(Choice C) For assault, there must be apprehension of *imminent* contact (without significant delay). Although the student's apprehension (afraid to sleep) may be reasonable, it developed *after* the failed attack. Therefore, the imminent apprehension requirement is not met.

(Choice D) Proof of intent *and* harm is necessary for assault. Although the roommate had the requisite *intent* (to harm the student), he did not cause the requisite *harm* (apprehension of imminent contact).

Educational objective:

Assault requires proof of both intent AND harm. Harm for assault only exists when the plaintiff reasonably apprehends the defendant's intentional act at the time it occurs.

References

Restatement (Second) of Torts § 21 (Am. Law Inst. 1965) (definition of assault).

Restatement (Second) of Torts § 22 (Am. Law Inst. 1965) (attempt to cause harm unknown to other).

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Apprehension



No apprehension ≠ Assault



Apprehension = Assault

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A landowner who owned a large tract of land in the mountains sought to protect a herd of wild deer that lived on part of the land. Although the landowner had posted signs that said, "No Hunting—No Trespassing," hunters frequently intruded to kill the deer. Recently, the landowner built an eight-foot-high chain-link fence, topped by three strands of barbed wire, across a gully on her land that provided the only access to the area where the deer lived.

A wildlife photographer asked the landowner for permission to enter the land to photograph the deer. Because the landowner feared that any publicity would encourage further intrusions by hunters, she denied the photographer's request. Frustrated, the photographer attempted to climb the fence. He became entangled in the barbed wire and suffered extensive lacerations. The wounds became infected and ultimately caused his death.

The photographer's personal representative has sued the landowner.

Is the personal representative likely to prevail?

A. No, because the photographer entered the landowner's land after the landowner had refused him permission to do so and therefore was a trespasser.

B. No, because the potential for harm created by the presence of the barbed wire was apparent.

C. Yes, because the landowner had no property interest in the deer that entitled her to use force to protect them.

D. Yes, because the landowner may not use deadly force to protect her land from intrusion.

Explanation:

Use of mechanical device to defend property

Type of device	Examples	Privileged use
Unlikely to cause death or serious bodily harm	Barbed wire fence Spiked wall	Reasonably necessary to protect against intrusion not unreasonably dangerous *and* customarily used for this purpose *or* reasonable care taken to make use known
Likely to cause death or serious bodily harm	Spring gun Electric fence Man-trap	Reasonable belief that intruder threatens death or serious bodily injury

Almost every jurisdiction has enacted a survival statute that enables a decedent's personal representative to pursue tort claims on the decedent's behalf—so the photographer's personal representative can sue the landowner on the photographer's behalf. However, the landowner can assert that she was **privileged** to use reasonable force to **defend her property** from trespassers like the photographer. A **mechanical device** that is ***unlikely* to cause death or serious bodily harm** can be used for this purpose when:

the use of such a device is **reasonably necessary** to **protect the property** from intrusion
that **particular device** is **not unreasonably dangerous** *and*
the device is customarily used for this purpose *or* **reasonable care** is taken to **make its use known**.

Here, a barbed wire fence was reasonably necessary to protect the landowner's property since her "No Trespassing—No Hunting" signs were frequently disregarded. The fence was not unreasonably dangerous since an eight-foot-high fence topped with barbed wire threatens only the most determined of trespassers. And the potential for harm created by the barbed wire was apparent—not concealed. Therefore, the fence was a privileged means of protection, and the personal representative will not prevail.

(Choice A) The photographer would have been a trespasser regardless of whether the landowner had refused him permission to enter. And since trespassers can recover for injuries caused by *concealed or deadly* devices (eg, spring guns), the photographer's trespasser status is not enough to defeat his personal representative's claim.

(Choice C) Although the landowner had no property interest in the *deer*, she was entitled to use reasonable force to protect her property interest in the *land*.

(Choice D) Deadly force may never be used merely to defend property. But barbed wire is *not* deadly force since it does not usually cause death or serious bodily harm.

Educational objective:

Nondeadly mechanical devices are a privileged means of protecting property when (1) such a device is reasonably necessary to prevent intrusions, (2) the device used is not unreasonably dangerous, and (3) the device is customarily used for this purpose *or* reasonable care is taken to make its use known.

References

Restatement (Second) of Torts § 84 (Am. Law Inst. 1965) (use of mechanical device to defend property).

Restatement (Second) of Torts § 926 (Am. Law Inst. 1979) (survival actions).

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Local police notified local gas station attendants that a robber had recently committed armed robberies at five gas stations in the city. The police said that the robber was a 75-year-old woman with white hair who drove a vintage, cream-colored Ford Thunderbird. Attendants were advised to call police if they saw her but not to attempt to apprehend her. Armed robbery is a felony under state law.

A traveler was passing through the city on a cross-country journey. The traveler was a 75-year-old woman who had white hair and drove a vintage, cream-colored Ford Thunderbird. When the traveler drove into a gas station in the city, the owner thought that the traveler must be the robber wanted by the police. After checking the oil at the traveler's request, the owner falsely informed the traveler that she had a broken fan belt, that her car could not be driven without a new belt, that it would take him about an hour to replace it, and that she should stay in his office for consultation about the repair. The traveler was greatly annoyed that her journey was delayed, but she stayed in the owner's office while she waited for her car. The owner then telephoned the police and, within the hour, the police came and questioned the traveler. The police immediately determined that the traveler was not the robber, and the traveler resumed her journey without further delay.

If the traveler sues the owner for false imprisonment, will the traveler likely prevail?

A. No, because the owner reasonably believed that the traveler was the robber.

B. No, because the traveler suffered no physical or mental harm.

C. Yes, because the owner lied to the traveler about the condition of her car.

D. Yes, if the traveler reasonably believed she could not leave the owner's premises.

Explanation:

Private citizen's privilege to arrest

Felony	Felony was committed *and*
	Defendant reasonably suspects plaintiff committed that felony
Misdemeanor	Plaintiff committed breach of the peace (misdemeanor involving violence or likely causing imminent disturbance of public order) *and*
	Crime committed in defendant's presence

False imprisonment occurs when a defendant intentionally confines the plaintiff within fixed boundaries and the plaintiff is aware of, or harmed by, the confinement. However, when the defendant is a private citizen (ie, not a police officer), the confinement is **privileged** when (1) a **felony** has been **committed** and (2) the defendant **reasonably suspects** that the **plaintiff** committed the felony.

Here, the owner was privileged to confine—eg, arrest—the traveler because (1) five felony armed robberies had been committed at gas stations in the city and (2) the owner reasonably believed that the traveler committed those robberies since she and her car matched the police description. Therefore, the traveler will not prevail on her false imprisonment claim.

(Choice B) For false imprisonment, proof of physical or mental harm is unnecessary if the traveler was aware of her confinement. Instead, her claim will fail because the owner was privileged to confine her.

(Choices C & D) Even if the traveler can show that the owner lied to her about the condition of her car to prevent her from leaving (intent to confine) and that she reasonably believed she could not leave (confinement and awareness), her false imprisonment claim will fail because the owner had the right to confine her.

Educational objective:

A defendant is privileged to confine (eg, arrest) a plaintiff when a felony has been committed and the defendant reasonably suspects that the plaintiff committed it.

References

Restatement (Second) of Torts § 35 (Am. Law Inst. 1965) (definition of false imprisonment).

Restatement (Second) of Torts § 119(b) (Am. Law Inst. 1965) (arrest without a warrant).

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A gardener's backyard, which is landscaped with expensive flowers and shrubs, is adjacent to a golf course. While a golfer was playing golf on the course, a thunderstorm suddenly began. As the golfer was returning to the clubhouse in his golf cart, lightning struck a tree on the course, and the tree began to fall in the golfer's direction. To avoid being hit by the tree, the golfer deliberately steered his cart onto the gardener's property, causing substantial damage to the gardener's expensive plants.

In an action by the gardener against the golfer for damage to his plants, will the gardener likely prevail?

A. No, because the golfer's entry onto the gardener's property was occasioned by necessity and therefore privileged.

B. No, because the lightning was an act of God.

C. Yes, because the golfer's entry onto the gardener's property, though occasioned by necessity, was for the golfer's benefit.

D. Yes, for nominal damages only, because the golfer was privileged to enter the gardener's property.

Explanation:

A defendant is generally liable for **trespass** when he/she **intentionally enters** the plaintiff's property **without permission**. A trespass may be **excused** by either of the following **privileges**:

public necessity – an intrusion that is, or reasonably appears to be, necessary to protect a large number of people from a public disaster (eg, hurricane, oil spill, spreading fire)

private necessity – an intrusion that is, or reasonably appears to be, necessary to protect oneself, third parties, or property

But when a trespass arises from **private necessity**, the trespasser remains liable for **actual damages** caused by the trespass unless the entry was for the plaintiff's benefit (eg, to protect the plaintiff's property).

Here, the golfer deliberately steered his cart onto the gardener's property without permission (trespass). However, the golfer's trespass was *privileged* because he was trying to protect himself from a tree falling in his direction (private necessity). But since the golfer's entry was for his *own* benefit—not the gardener's—the golfer is liable for damage his entry caused to the gardener's plants (actual damages).

(Choice A) Although the golfer's trespass was excused by private necessity, the golfer is still liable for the damage he caused to the gardener's plants. In contrast, the golfer would not be liable for any damages had his trespass been committed out of *public necessity*.

(Choice B) Although an act of God (an extraordinary act of nature—eg, the sudden storm) created the emergency situation that excused the golfer's trespass (private necessity), the golfer is still liable for the damage he caused to the gardener's plants.

(Choice D) When a trespass is privileged due to private necessity, the landowner can recover *actual* damages—not nominal or punitive damages.

Educational objective:

Although a trespass is excused when it arises from private necessity (an intrusion that is, or reasonably appears to be, necessary to protect oneself, third parties, or property), the trespasser is still liable for actual damages caused by the trespass unless the entry was for the landowner's benefit.

References

Restatement (Second) of Torts § 158 (Am. Law Inst. 1965) (intentional trespass).

Restatement (Second) of Torts § 196 (Am. Law Inst. 1965) (public necessity).

Restatement (Second) of Torts § 197 (Am. Law Inst. 1965) (private necessity).

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Recoverable trespass damages

	Trespass	Private necessity	Public necessity
Nominal damages	✓		
Actual damages	✓	✓	
Punitive damages	✓		

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A bus passenger was seated next to a woman he did not know. The woman stood to exit the bus, leaving a package on the seat. The passenger lightly tapped the woman on the back to get her attention and to inform her that she had forgotten her package. Because the woman had recently had back surgery, the tap was painful and caused her to twist and seriously injure her back.

If the woman sues the passenger to recover for the back injury, will she likely prevail?

A. No, because she is presumed to have consented to the ordinary contacts of daily life.

B. No, because she was not put in apprehension by the touching.

C. Yes, because she did not consent to the harmful contact.

D. Yes, because the passenger's intentional touching seriously injured her.

Explanation:

A defendant is liable for **battery** if he/she intends to create contact (or imminent apprehension of contact) and causes harmful or offensive contact with the plaintiff. However, the defendant is not liable for battery if the plaintiff **consented** to such contact. There are three types of consent:

actual consent – the plaintiff willingly submits to contact (eg, the plaintiff orders the defendant to hit him/her)

apparent consent – consent is reasonably understood based on the plaintiff's conduct or social customs (eg, shaking hands and other ordinary social contact)

consent implied by law – the plaintiff is unable to consent and emergency action is required to save the plaintiff's life or prevent serious harm (eg, administering CPR)

Here, the passenger tapped the woman on her back to get her attention (intentional contact), causing her to seriously injure her back (harm). However, the passenger is not liable for battery because he could reasonably presume that the woman *consented* to ordinary contacts of daily life like a light tap on the back (apparent consent).

(Choice B) The harm required for assault is *apprehension* of contact, whereas battery requires *actual* contact. Therefore, the fact that the woman was not put in apprehension by the touching is irrelevant to her battery claim.

(Choice C) Although the passenger's intentional tap caused harmful contact with the woman, it is presumed that the woman consented to the passenger's ordinary social contact (*apparent consent*) unless she gave some indication suggesting otherwise (eg, had she told the passenger not to touch her). Since the woman gave no such indication, the passenger is not liable for battery.

(Choice D) The severity of harm caused by an intentional touching has no effect on liability for battery (eg, pinching and punching equally support a battery claim). Therefore, the seriousness of the woman's injury does not matter.

Educational objective:

Consent (actual, apparent, or implied) is a defense to battery. Apparent consent exists when consent is reasonably understood based on the plaintiff's conduct or social customs.

References

Restatement (Second) of Torts § 13 (Am. Law Inst. 1965) (battery by harmful contact).

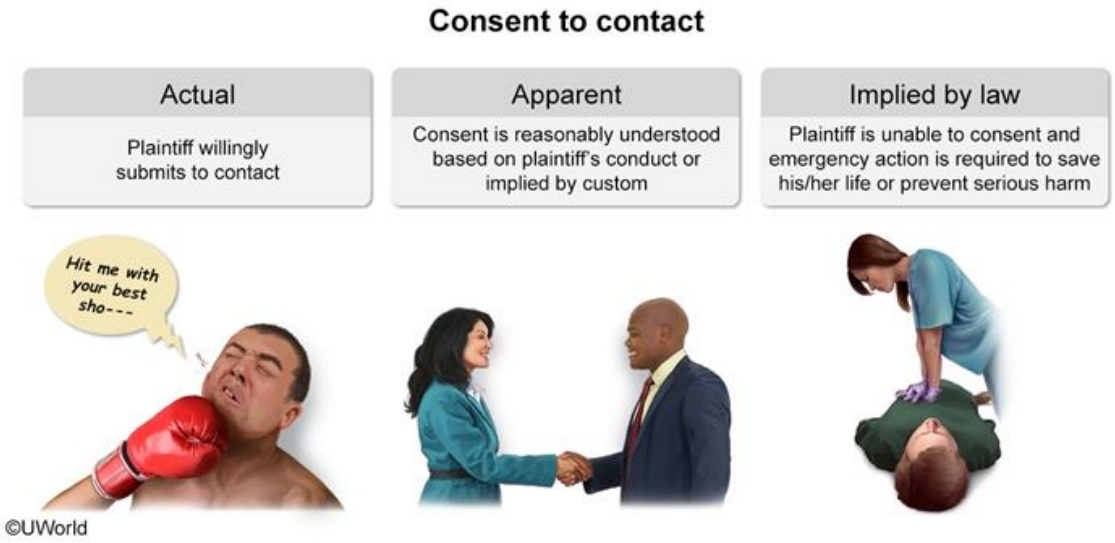
Restatement (Second) of Torts § 18 (Am. Law Inst. 1965) (battery by offensive contact).

Restatement (Second) of Torts § 892(2) (Am. Law Inst. 1979) (apparent consent).

Restatement (Second) of Torts § 892A (Am. Law Inst. 1979) (effect of consent).

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An ordinance in a small town required all restaurants to designate smoking and nonsmoking sections for their customers. A cigarette smoker and a nonsmoker were seated at adjoining tables in a small restaurant. The smoker's table was in the smoking section, and the nonsmoker's table was in the nonsmoking section. When the smoker lit a cigarette, the nonsmoker politely requested that he not smoke, explaining that she had a severe allergy to cigarette smoke. The smoker ignored the nonsmoker's request and continued to smoke. As a result, the nonsmoker was hospitalized with a severe allergic reaction to the smoke.

The nonsmoker brought a battery action against the smoker.

Which of the following questions will NOT be an issue in the battery action?

A. Did the smoker intend to cause the nonsmoker's contact with the cigarette smoke?
B. Does smoke have the physical properties necessary for making the kind of contact required for battery?
C. Is contact with cigarette smoke from a lawful smoking section in a restaurant the kind of contact one must endure as a voluntary restaurant patron?
D. Was the smoker's conduct unreasonable under the circumstances?

Explanation:

Battery exists when a defendant **intends** to inflict **harmful or offensive contact** (or imminent apprehension thereof) and causes **harmful or offensive contact** with the plaintiff. **Consent** to contact is a defense to battery. Therefore, the issues here are:

whether the smoker *intended* to cause the nonsmoker's contact with the cigarette smoke **(Choice A)**

whether smoke possesses the physical properties necessary to create *contact* **(Choice B)**

whether contact with the cigarette smoke *harmed* or *offended* the nonsmoker

whether the nonsmoker *consented* to the contact by voluntarily sitting near the lawful smoking section in the restaurant **(Choice C)**

However, whether the smoker's conduct was *unreasonable* will not be an issue here. Intentional torts require proof that the defendant acted with *intent* (ie, the purpose or knowledge that one's act will cause a particular result). In contrast, negligence requires proof that the defendant failed to use *reasonable care* (ie, the level of care an ordinarily prudent person would have used under similar circumstances). Since battery is an intentional tort, it requires proof of *intentional* conduct. Proof of *unreasonable* conduct will not suffice.

Educational objective:

Battery requires proof that the defendant intended to inflict harmful or offensive contact (or imminent apprehension thereof). Proof of unreasonable conduct by the defendant will not suffice.

References

Restatement (Third) of Torts § 1 (Am. Law Inst. 2010) (definition of intent).

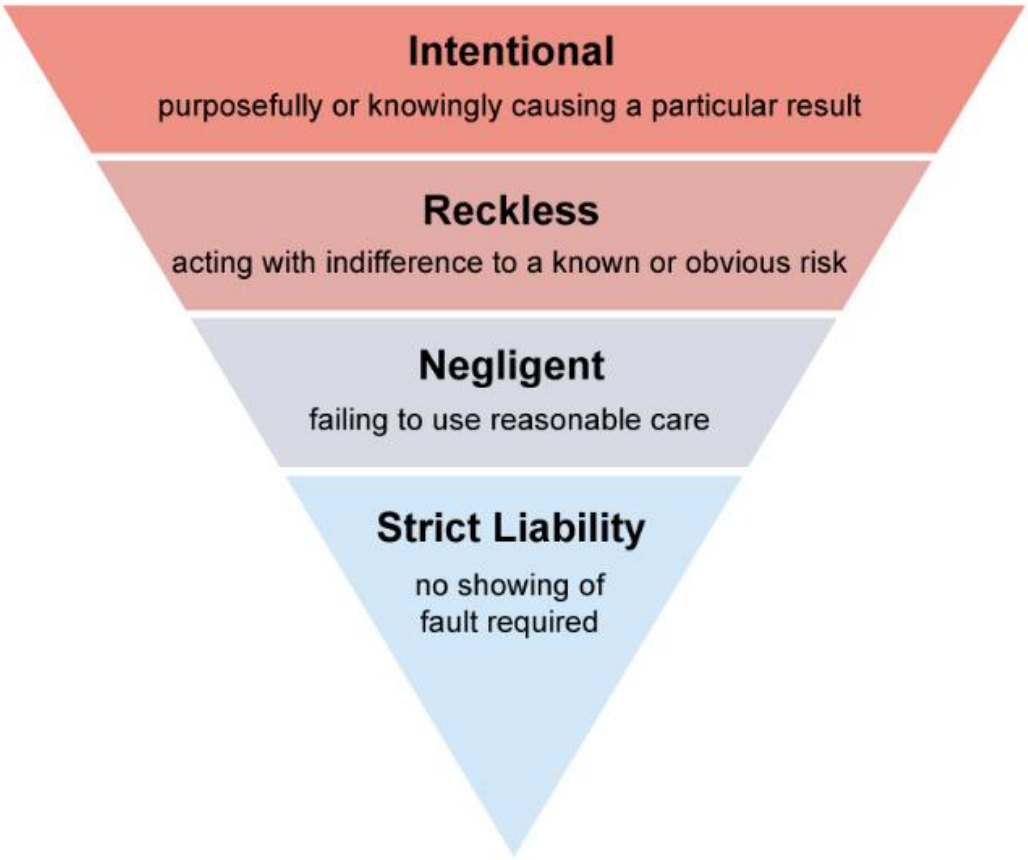
Restatement (Second) of Torts §§ 13, 18 (Am. Law Inst. 1965) (definition of battery).

Restatement (Third) of Torts § 3 (Am. Law Inst. 2010) (definition of negligence).

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Hierarchy of tortious conduct



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In the course of a bank holdup, a robber fired a gun at a guard. The guard drew his revolver and returned fire. One of the bullets fired by the guard ricocheted off the wall and struck a bystander.

If the bystander asserts a battery claim against the guard, will she prevail?

A. No, because the guard did not intend to shoot the bystander.

B. No, because the guard fired reasonably in his own defense.

C. Yes, under the doctrine of transferred intent.

D. Yes, unless the bystander was the robber's accomplice.

Explanation:

Self-defense is the privilege to use reasonable force to protect oneself against the intentional infliction of harmful or offensive contact by another. When acting in self-defense, the actor must **use reasonable care** to **avoid harming bystanders** (ie, refrain from unnecessarily dangerous conduct). If the actor fails to do so, then he/she is liable to any injured bystanders.

Here, the guard was acting in self-defense when he returned fire against the armed robber. And though one of the guard's bullets ricocheted off the wall and struck a bystander, the guard used *reasonable care* because his responsive fire was not unnecessarily dangerous given the exigency of the encounter (eg, the guard used a revolver instead of a machine gun). Therefore, the bystander will not prevail on her battery claim.

(Choices A & C) Liability for battery arises under the doctrine of transferred intent when the defendant intends to contact one person but instead contacts the plaintiff—even if the plaintiff was not a foreseeable victim. Here, although the guard only intended to shoot the robber, the guard's intent *transferred* to the bystander when she was hit by the guard's misfired bullet. But the bystander's battery claim will ultimately fail because the guard was *privileged* to shoot in self-defense and used *reasonable care* while doing so.

(Choice D) The self-defense privilege shields a defendant from liability for an intentional tort committed against any third party, regardless of the third party's connection to the initial aggressor. Therefore, the bystander's battery claim would fail even if she was the robber's accomplice.

Educational objective:

An actor must use reasonable care to avoid harming bystanders when acting in self-defense. Otherwise, the actor will be liable to bystanders for any resulting harm.

References

Restatement (Second) of Torts § 65 (Am. Law Inst. 1965) (self-defense by deadly force).

Restatement (Second) of Torts § 75 (Am. Law Inst. 1965) (liability to third party for privileged conduct).

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Liability to injured bystanders



Guard used *reasonable* care
in self-defense
(Not liable)

Guard used *unreasonable* care
in self-defense
(Liable)

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A man tied his dog to a bike rack in front of a store and left the dog there while he went inside to shop. The dog was usually friendly and placid. A five-year-old child started to tease the dog by pulling gently on its ears and tail. When the man emerged from the store and saw what the child was doing to the dog, he became extremely upset.

Does the man have a viable claim against the child for trespass to chattels?

A. No, because the child did not injure the dog.

B. No, because the child was too young to form the requisite intent.

C. Yes, because the child touched the dog without the man's consent.

D. Yes, because the child's acts caused the man extreme distress.

Explanation:

Trespass to chattels (ie, trespass *de bonis asportatis*) occurs when the defendant **intentionally interferes** with the plaintiff's **possession of a chattel** through dispossession, use, or intermeddling (ie, causing physical contact). Harm is inferred when the interference is through dispossession. But when the interference is through **use** or **intermeddling**, the plaintiff must **prove** one of the following harms:

actual harm to the chattel (ie, impairment of its physical condition, quality, or value)
substantial loss of use of the chattel or
bodily harm to the plaintiff.

Here, the child intentionally interfered with the man's dog (chattel) by pulling on its ears and tail (intermeddling). But there is *no evidence* that:

the man's dog was injured (no actual harm)
the man lost substantial use of his dog or
the man suffered bodily harm.

Therefore, the man does not have a viable claim against the child for trespass to chattels.

(Choice B) A child of any age can commit an intentional tort like trespass to chattels as long as the child is capable of forming the requisite intent. Here, the child formed the intent to interfere with the man's possession of his dog through intermeddling when the child teased the dog by pulling its ears and tail. But since the child's intentional act did not cause the requisite harm, the child is not liable for trespass to chattels.

(Choice C) Although the child touched the dog without the man's consent (intermeddling), the child is not liable for trespass to chattels because the child did not cause the requisite harm—actual harm to the dog, substantial loss of use of the dog, or bodily harm to the man.

(Choice D) Trespass to chattels requires proof that the defendant's use of or intermeddling with the plaintiff's chattel caused the plaintiff bodily harm—not merely emotional harm. Therefore, the man's extreme emotional distress does not support this claim.

Educational objective:

Trespass to chattels by intentionally dispossessing the plaintiff of a chattel requires no proof of harm. However, intentional use of or intermeddling with the plaintiff's chattel requires proof of (1) actual harm to the chattel, (2) substantial loss of use of the chattel, or (3) bodily harm to the plaintiff.

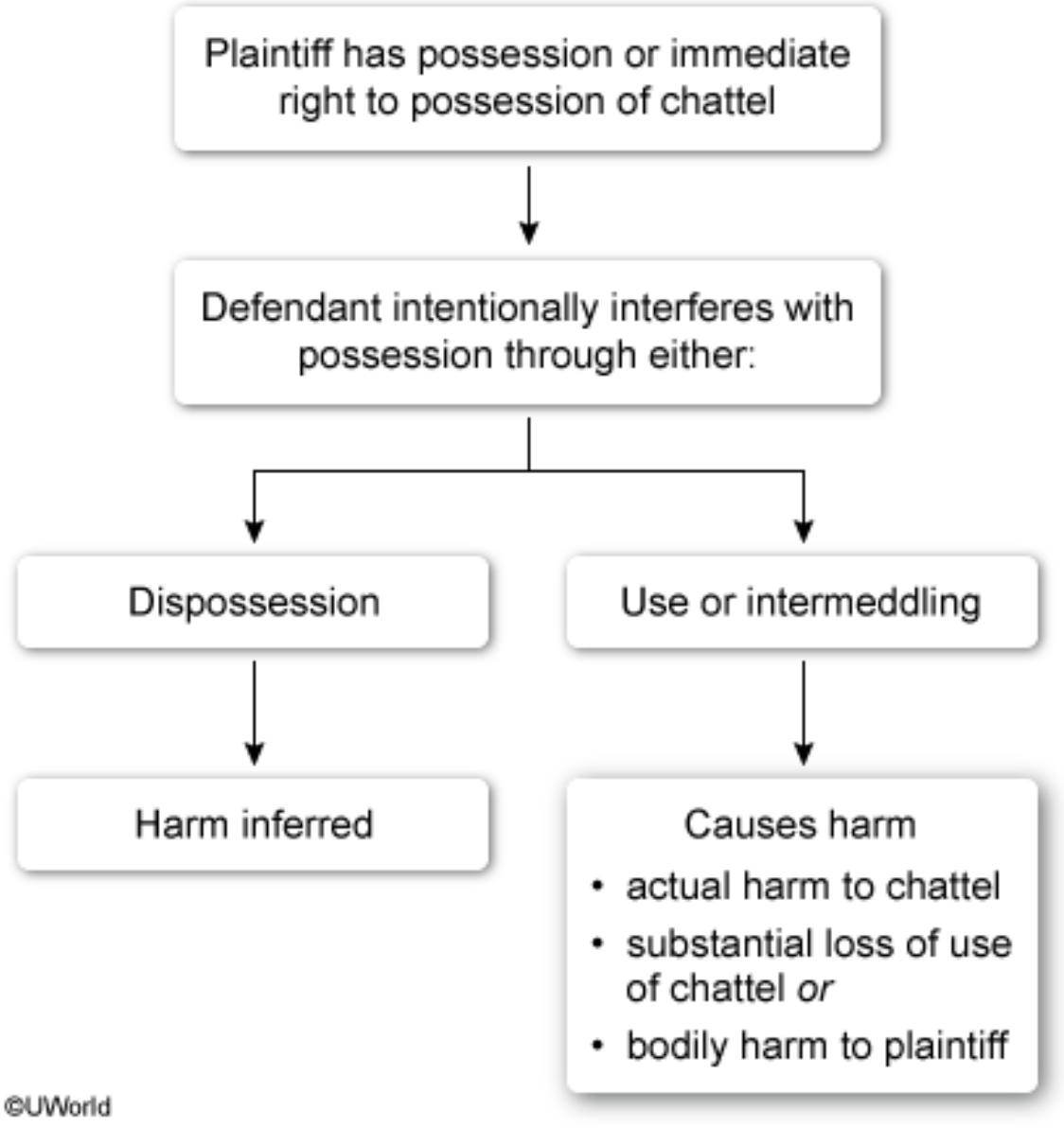
References

Restatement (Second) of Torts § 217 (Am. Law Inst. 1965) (trespass to chattels).

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Trespass to chattels



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A homeowner's next-door neighbor went into the homeowner's garage without permission and borrowed the homeowner's chain saw. The neighbor used the saw to clear broken branches from the trees on his property. After he had finished, the neighbor noticed several broken branches on the homeowner's trees that were in danger of falling on the homeowner's roof. While the neighbor was cutting the homeowner's branches, the saw broke.

In a suit for conversion by the homeowner against the neighbor, will the homeowner recover?

A. No, because the neighbor did not intend to keep the saw.

B. No, because the neighbor was using the saw to benefit the homeowner when it broke.

C. Yes, for the actual damage to the saw.

D. Yes, for the value of the saw when the neighbor borrowed it.

Explanation:

Trespass to chattels v. Conversion

Trespass to chattels	*Minor* intentional interference with plaintiff's right to control chattel Liable for *actual damages*—eg, cost of repairs, loss of use
Conversion	*Substantial* intentional interference with plaintiff's right to control chattel Liable for *fair market value* of chattel at time of conversion

For **conversion**, the plaintiff must prove that:

the defendant intentionally exerted dominion or control over the plaintiff's chattel and
the interference was so severe that the plaintiff should recover the **fair market value** of the chattel at the **time of the conversion**.

Here, the neighbor converted the homeowner's saw when he borrowed it without permission and used it to clear broken tree branches on his property. Since the neighbor then broke the saw, the homeowner should recover the fair market value of the saw at the time the neighbor borrowed it—the time of conversion.

(Choice A) Even though the neighbor did not intend to keep the saw, he is liable for conversion because he borrowed the saw without the homeowner's permission and broke it.

(Choice B) A defendant who uses the plaintiff's chattel without permission may be liable for conversion even if he/she acts with the intent to benefit the plaintiff (here, cutting the homeowner's tree branches).

(Choice C) Since the remedy for conversion is the *fair market value* of the chattel, the homeowner can recover the entire value of the saw—not just the actual damage to the saw (eg, repair costs). In contrast, the remedy for trespass to chattels is limited to actual damage.

Educational objective:

Conversion is an intentional exertion of dominion or control over chattel that so seriously interferes with the owner's right of control that the owner should recover the fair market value of the chattel at the time of the conversion.

References

Restatement (Second) of Torts § 222A (Am. Law Inst. 1965) (conversion).

Restatement (Second) of Torts § 227 (Am. Law Inst. 1965) (conversion by using chattel).

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A host pointed an unloaded revolver at her guest, threatening to shoot him. The guest knew that the revolver was not loaded, and that the ammunition for the revolver was stored in a locked basement closet, two stories below where the two were then standing.

In an action brought by the guest against the host for assault, will the guest be likely to prevail?

A. No, because the host did not intend to shoot her guest.

B. No, because the host did not put her guest in apprehension of imminent contact.

C. Yes, because the ammunition was accessible to the host.

D. Yes, because the host threatened her guest with a revolver.

Explanation:

Assault requires that the defendant:

intend to inflict (1) harmful or offensive contact or (2) imminent apprehension of such contact *and*

cause the plaintiff reasonable apprehension of imminent contact.

Apprehension only exists when the plaintiff **believes** that the defendant can cause **imminent contact**.

Here, the guest did not believe that the host could cause imminent contact because the guest knew that the host's revolver was not loaded and that her ammunition was in *a locked basement closet* below. As a result, the guest was not in apprehension of imminent contact, and the host is not liable for assault.

(Choice A) A defendant must intend to cause harmful or offensive contact OR imminent apprehension of such contact. Although the host did not intend to shoot the guest (the revolver was unloaded), she did intend to scare her guest by threatening to shoot him (imminent apprehension). Had the host succeeded in scaring the guest, the host would be liable for assault.

(Choice C) Assault requires apprehension of *imminent* contact. Imminent means without significant delay. Although the ammunition was accessible to the host, it could not be retrieved without significant delay because it was locked in a closet two stories below.

(Choice D) A threat alone does not constitute an assault. The threat must cause apprehension of imminent contact.

Educational objective:

An assault occurs when a defendant intentionally causes a plaintiff reasonable apprehension of imminent contact. Apprehension only exists when the plaintiff believes that the defendant can cause such contact.

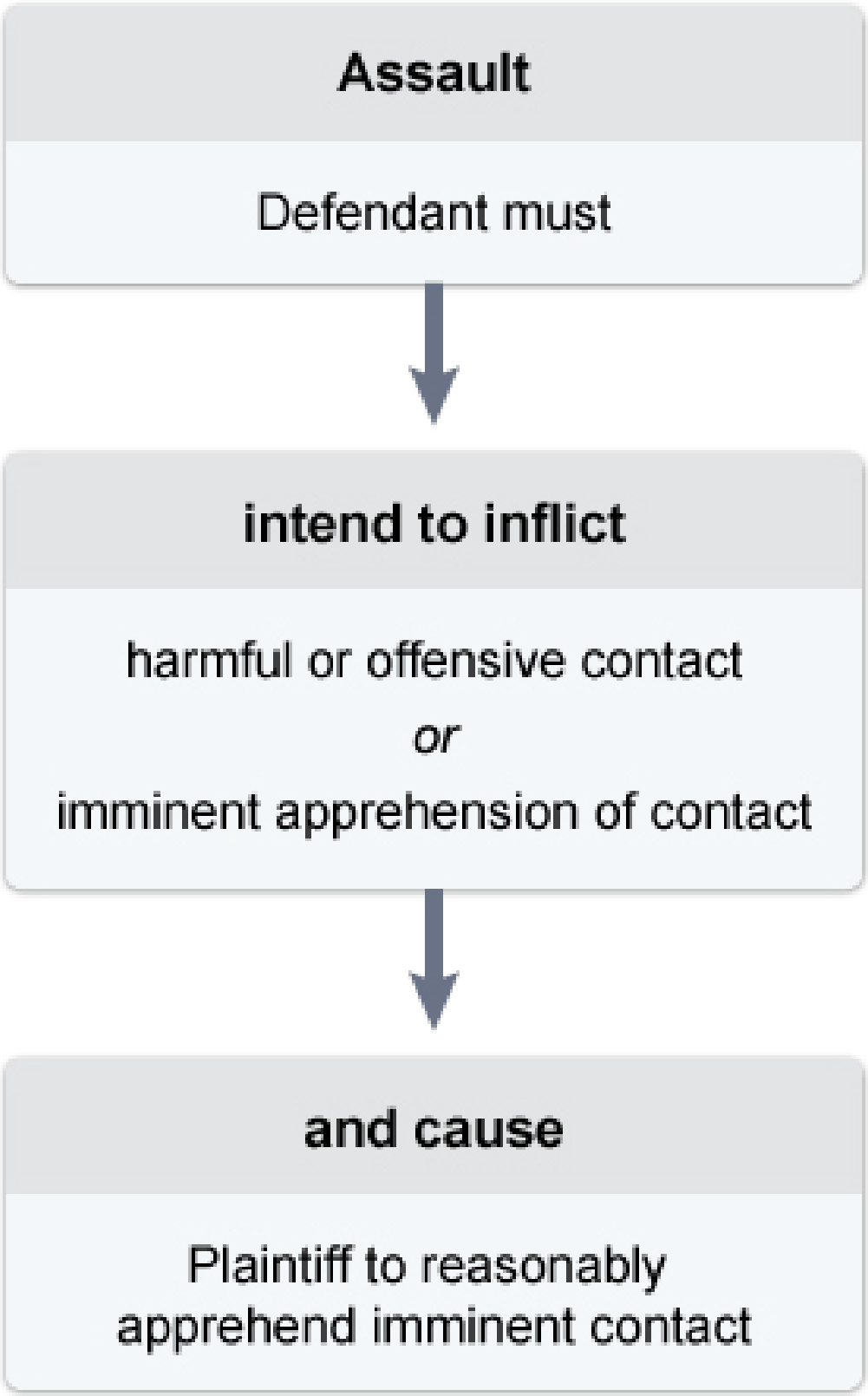
References

Restatement (Second) of Torts § 21 (Am. Law Inst. 1965) (definition of assault).

Restatement (Second) of Torts § 24 (Am. Law Inst. 1965) (apprehension requirement).

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Assault
Defendant must
intend to inflict
harmful or offensive contact
or
imminent apprehension of contact
and cause
Plaintiff to reasonably
apprehend imminent contact

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A well-known politician and former military service member had developed posttraumatic stress disorder (PTSD) after surviving a deadly explosion. A young woman, who had heard that the politician suffered from PTSD, decided to play a joke on him by setting off small fireworks several yards from him as he spoke at a college campus. The sudden loud noise startled the politician, causing him to lose his balance and fall down. For several months after the incident, the politician experienced flashbacks, nightmares, and severe anxiety.

The politician filed a tort action against the young woman seeking damages for his emotional distress resulting from her reckless behavior.

Will the politician be likely to prevail?

A. No, because the politician was not in the zone of danger as the fireworks were set off several yards away.
B. No, because the young woman lacked the malicious intent necessary to support the politician's claim.
C. Yes, because the young woman exploited the politician's known vulnerability.
D. Yes, because the young woman's intent to assault the politician transfers to his claim for emotional distress.

Explanation:

Extreme and outrageous conduct

Flagrant indecency
Exploiting known & special vulnerability
Abusing authority
Repeated harassment
Mnemonic: **FEAR**

To recover for **intentional infliction of emotional distress** (IIED), the plaintiff must prove that the defendant:

engaged in **extreme and outrageous conduct**

intended to cause the plaintiff severe emotional distress OR recklessly disregarded the risk of causing such distress *and*

caused the plaintiff severe emotional distress.

Conduct is more likely to be extreme and outrageous if, among other things, the **defendant knew of** the **plaintiff's special vulnerability** and **deliberately exploited it**.

Here, the young woman knew of and deliberately exploited the politician's PTSD (special vulnerability) when she set off fireworks within a few yards of him to play a joke on him (extreme and outrageous conduct). In doing so, she knew (intent) or was indifferent to the obvious risk (recklessness) that her conduct would cause the politician severe emotional distress. And because this conduct caused the politician to experience flashbacks, nightmares, and severe anxiety (severe emotional distress), he will likely prevail.

(Choice A) Zone of danger is a theory of recovery for *negligent* infliction of emotional distress. It requires proof that the plaintiff was in danger of bodily injury and that the danger caused the plaintiff serious emotional distress. But here, the politician can recover for the emotional distress *intentionally* inflicted on him by the young woman's extreme and outrageous conduct—deliberately exploiting the politician's known vulnerability.

(Choice B) A public figure (eg, politician) may recover for IIED by reason of *publication* only if the publication contained a false statement of fact that was made with actual malice. But since there was no publication here, actual malice is not needed for an IIED claim.

(Choice D) Transferred intent exists when a person intends to commit an intentional tort (eg, assault) against a person but instead commits a different intentional tort (eg, battery) against that person. However, transferred intent generally does not apply to intentional infliction of emotional distress.

Educational objective:

Intentional infliction of emotional distress requires proof of extreme and outrageous conduct. Conduct is more likely to be extreme and outrageous if the defendant deliberately exploited a known vulnerability of the plaintiff.

References

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 46 (Am. Law Inst. 2012) (intentional or reckless infliction of emotional distress).

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During a deer-hunting season open to rifle hunters, a hunter saw a deer in the forest. He shot his rifle at the deer, hoping to hit and kill it. Instead, he hit and injured a hiker. The hunter had not realized that the hiker was there.

Does the injured hiker have an actionable battery claim against the hunter?

A. No, because the hunter did not intend to shoot the hiker.

B. No, because the hunter did not make direct physical contact with the hiker.

C. Yes, because the bullet from the hunter's rifle made direct physical contact with the hiker.

D. Yes, because the hunter intentionally shot the rifle.

Explanation:

Battery requires that the defendant act with intent, which is either:

the **purpose** of inflicting harmful / offensive contact or creating imminent apprehension thereof *or*

the **knowledge** that such contact or apprehension is substantially certain to occur.

If the intentional act **causes** harmful or offensive **contact** with the plaintiff, then the defendant is liable for battery.

Here, the hunter shot his rifle with the *purpose* of hitting the deer—not the hiker. Additionally, the hunter had no *knowledge* that the hiker was there, so the hunter could not have been substantially certain that he would hit the hiker when he shot his rifle. Since the hunter did not shoot his rifle with the intent to hit the hiker, the hunter is not liable for battery.

(Choice B) Contact can be either *direct* (eg, the defendant punches the plaintiff) or *indirect* (eg, the defendant fires a bullet at the plaintiff). Although the hunter did not make direct physical contact with the hiker, the hunter made indirect contact by shooting the hiker.

(Choice C) Battery requires proof of both intent and contact. While the bullet from the hunter's rifle made physical *contact* with the hiker, the hunter is not liable for battery because he did *not intend* to shoot the hiker.

(Choice D) For battery, a defendant must intend to inflict harmful or offensive contact (or create the imminent apprehension thereof) with the plaintiff. Although the hunter intentionally shot the rifle, he is not liable for battery because he did not shoot with the intent to make *contact* with the hiker.

Educational objective:

Battery requires that a defendant act with the (1) purpose of inflicting harmful / offensive contact or creating the imminent apprehension thereof or (2) knowledge that such contact or apprehension is substantially certain to occur.

References

Restatement (Second) of Torts § 13 (Am. Law Inst. 1965) (battery by harmful contact).

Restatement (Third) of Torts § 1 (Am. Law Inst. 2010) (definition of intent).

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Purpose to hit man

Knowledge man is substantially certain to be hit

No intent to hit man

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A jockey was seriously injured in a race when a rider cut sharply in front of the jockey's horse without adequate clearance. The two horses collided, causing the jockey to fall to the ground, sustaining injury. The State Racetrack Commission ruled that, by cutting in too sharply, the rider committed a foul in violation of racetrack rules requiring adequate clearance for crossing lanes.

In an action by the jockey against the rider for battery, is the jockey likely to prevail?

A. No, because the jockey assumed the risk of accidental injury inherent in participating in a horse race.

B. No, unless the rider intended to cause impermissible contact between the two horses or apprehension of such contact by the jockey.

C. Yes, because the rider was reckless in cutting in front of the jockey's horse.

D. Yes, because the State Racetrack Commission determined that the rider committed a foul in violation of racetrack rules.

Explanation:

For **battery**, a defendant must (1) intend to inflict harmful/offensive contact or the imminent apprehension thereof and (2) cause harmful or offensive contact with the plaintiff. **Contact** can occur between the plaintiff and the defendant OR between objects **intimately associated** with either party (eg, dog on a leash).

Here, the jockey can prove that there was contact between the rider's and the jockey's horses (objects intimately associated with the parties) and that this contact caused the jockey to fall and sustain an injury (harmful contact). However, the jockey cannot prevail on her battery claim unless she can also prove that the rider cut in too sharply with the *intent* to cause harmful or offensive contact between the horses or cause the jockey imminent apprehension of such contact.

(Choice A) Assumption of the risk is an affirmative defense that prevents a plaintiff from recovering damages for a harm caused by *negligent* or *reckless* conduct. However, this defense is not available when the plaintiff's injury is caused by the defendant's *intentional* conduct (eg, battery).

(Choice C) Battery requires proof that the defendant acted *intentionally* (purpose or knowledge that one's act will cause a particular result), not merely *recklessly* (indifference to a known or obvious risk of harm). Therefore, evidence that the rider was reckless is irrelevant.

(Choice D) Although the State Racetrack Commission ruled that the rider committed a foul, that ruling does not prove that the rider acted with the *intent* required for battery.

Educational objective:

Battery requires that a defendant (1) intend to inflict harmful/offensive contact or create the imminent apprehension thereof and (2) cause harmful or offensive contact with the plaintiff. Contact can occur between the plaintiff and the defendant OR between objects intimately associated with either party.

References

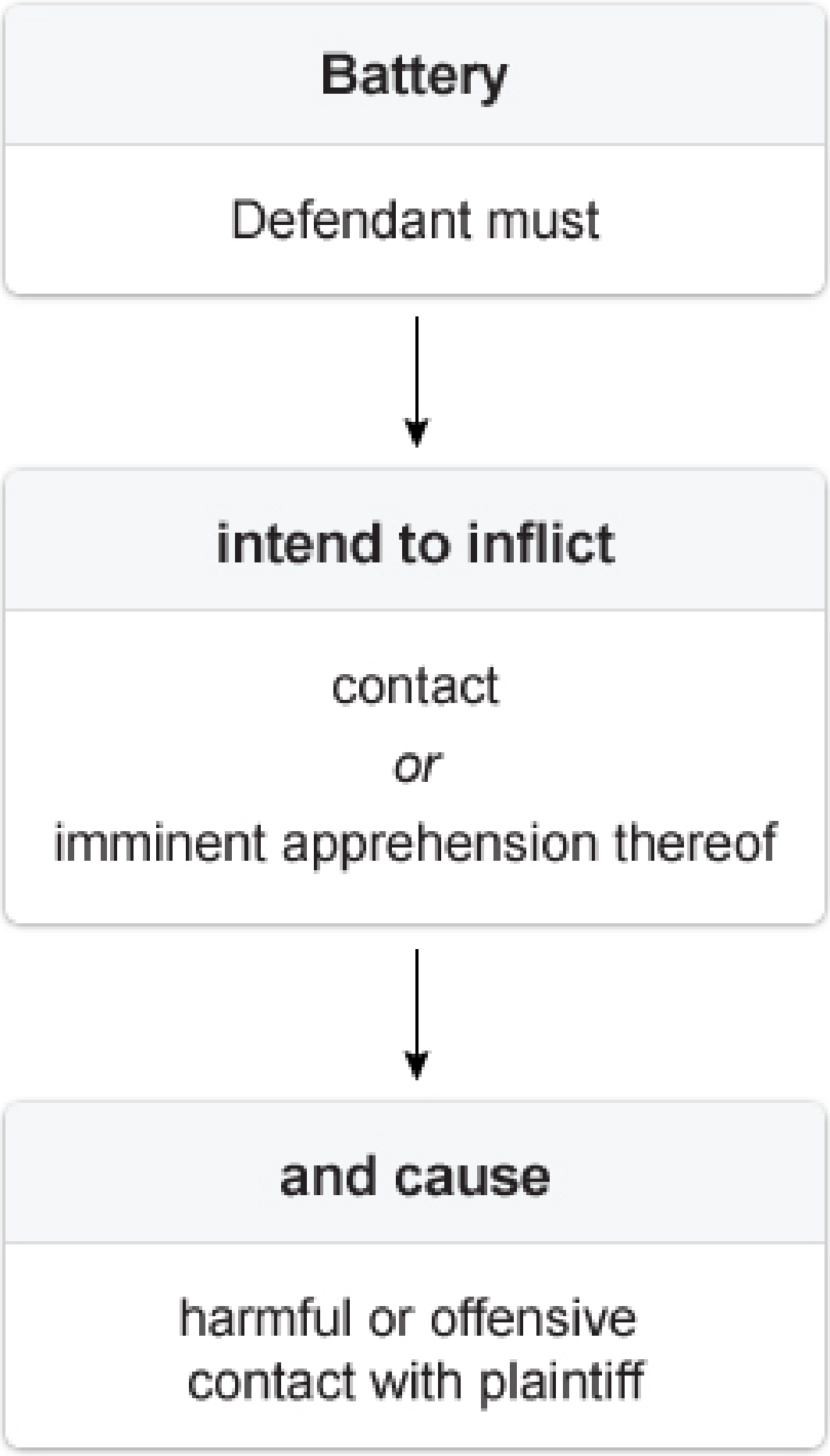
Restatement (Third) of Torts § 1 (Am. Law Inst. 2010) (definition of intent).

Restatement (Second) of Torts § 13 (Am. Law Inst. 1965) (battery by harmful contact).

Restatement (Second) of Torts § 18 cmt. c (Am. Law Inst. 1965) (definition of contact).

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Battery
Defendant must
intend to inflict
contact
or
imminent apprehension thereof
and cause
harmful or offensive
contact with plaintiff

An inexperienced driver borrowed a car from her friend for the express purpose of driving it several blocks to the local drug store. Instead, the driver drove the car, which was then worth $12,000, to another city 100 miles away. While she was safely driving in the other city the next day, the car was hit by a negligently driven truck and sustained damage that will cost $3,000 to repair. If repaired, the car will be fully restored to its former condition.

If the friend asserts a claim against the driver based on conversion, what is the maximum amount, if anything, that he can recover from the driver?

A. Nothing, because the driver was not negligent in causing the collision.

B. $3,000.

C. $3,000 plus damages for the loss of the use of the car during its repair.

D. $12,000.

Explanation:

Conversion is an intentional exertion of dominion or control over the plaintiff's chattel that so **seriously interferes** with the plaintiff's ownership rights that the defendant is liable for the fair market value of the chattel at the **time and place of the conversion**. A defendant who initially uses the plaintiff's chattel with permission commits conversion when the defendant:

intentionally uses the chattel in a manner that **exceeds the scope of permission** *and* **seriously violates** the plaintiff's **right to control** the chattel.

Here, the driver had the friend's permission to borrow his car for the express purpose of driving it to the local drug store *several blocks* away. Instead, the driver intentionally exceeded the scope of permission when she drove the friend's car to another city *100 miles* away and *kept it overnight*, which seriously violated the friend's right to control his car. Therefore, the driver committed conversion, and the friend can recover the fair market value of the car at the time the conversion occurred—$12,000.

(Choice A) Conversion requires that the defendant's conduct be *intentional* (the purpose or knowledge that one's act will cause a particular result)—not *negligent* (the failure to act in the same manner a reasonably prudent person would act under similar circumstances). Additionally, the conversion occurred when the driver intentionally drove the friend's car to another city and kept it overnight. Therefore, evidence that the driver was not negligent (ie, drove safely) in causing the collision has no bearing on the friend's conversion claim.

(Choice B & C) Trespass to chattels (*minor* intentional interference with the plaintiff's chattel) only allows the plaintiff to recover *actual damages* (eg, cost of repairs, loss of use). But because the friend sued for conversion, he can recover the *fair market value* of the car.

Educational objective:

A defendant who has permission to use the plaintiff's chattel commits conversion when he/she (1) intentionally uses the chattel in a way that exceeds the scope of permission and (2) seriously violates the plaintiff's right to control the chattel. The defendant is liable for the fair market value of the chattel at the time and place of the conversion.

References

Restatement (Second) of Torts § 222A (Am. Law Inst. 1965) (definition of conversion).

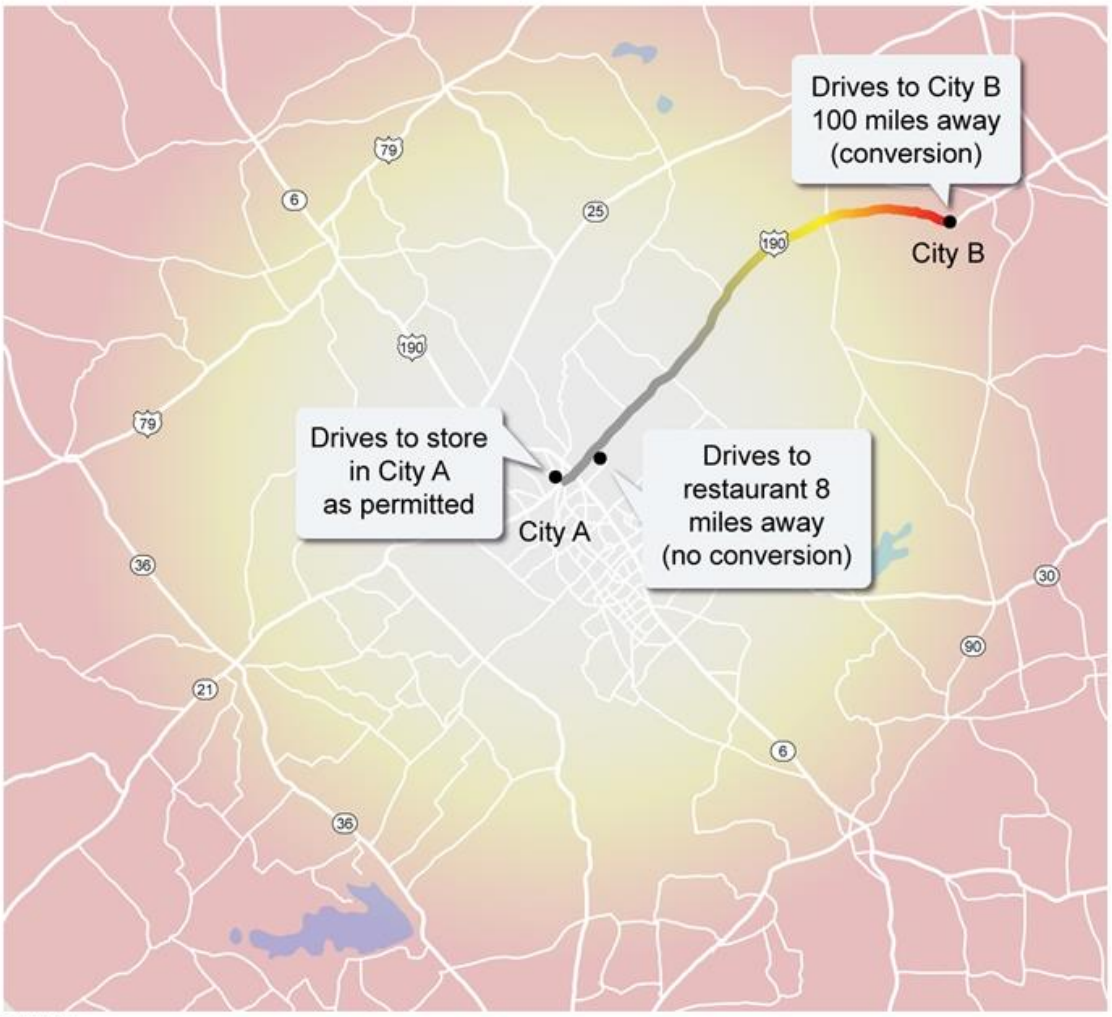
Restatement (Second) of Torts § 223 (Am. Law Inst. 1965) (ways to commit conversion).

Restatement (Second) of Torts § 228 (Am. Law Inst. 1965) (conversion by exceeding authorization).

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Conversion by exceeding the scope of permission



A driver was traveling along a highway during an unusually heavy rainstorm when the roadway began to flood. To protect his car from water damage, the driver pulled his car up a steep, unmarked driveway abutting the highway that led to a homeowner's residence. The driver left his car parked in the driveway and walked home, intending to return when the floodwater had subsided. Shortly after the driver started to walk home, the homeowner carefully rolled the car back down her driveway and parked it on the highway shoulder. The floodwater continued to rise and caused damage to the driver's car.

If the driver sues the homeowner to recover for damage to his car, is the driver likely to prevail?

A. No, because the driver intentionally drove his car onto the homeowner's property.

B. No, because the homeowner was privileged to remove the car from her property.

C. Yes, because the driver was privileged to park his car on the homeowner's property.

D. Yes, because the homeowner did not post any "no trespassing" signs.

Explanation:

Doctrine of necessity

Private necessity	An intrusion that is, or reasonably appears to be, necessary to protect oneself, third parties, or property
Public necessity	An intrusion that is, or reasonably appears to be, necessary to avert an imminent public disaster

A trespass is privileged when it arises out of **necessity**—ie, when an intrusion is, or reasonably appears to be, necessary to:

protect oneself, third parties, or property from **serious harm** (private necessity) or **avert** an imminent **public disaster** (public necessity).

A landowner cannot use force to stop a trespass arising from necessity and is liable for damages caused by force used against the trespassing person or property.

Here, the driver was privileged to park his car on the homeowner's driveway because it was, or reasonably appeared to be, necessary to protect his car from the flood (private necessity). Therefore, the homeowner had no right to forcibly remove the driver's car down her driveway and onto the highway shoulder **(Choice B)**. Since the homeowner's actions caused the car to flood, the driver will likely recover for damage to his car.

(Choice A) The driver trespassed when he intentionally drove his car onto the homeowner's property without permission. And though a landowner can generally use reasonable force to stop a trespass (ie, defense of property), the landowner cannot do so when the trespass is privileged—as seen here. Therefore, the driver's trespass does not preclude him from recovering for the damage to his car.

(Choice D) Trespass requires intent to enter the land—not intent to enter the land without the owner's consent. Therefore, the absence of "no trespassing" signs has no bearing on the driver's intent or his privilege to seek refuge on the landowner's driveway.

Educational Objective:

A landowner must permit a trespass caused by necessity—an intrusion that is, or reasonably appears to be, necessary to (1) protect oneself, third parties, or property from serious harm or (2) avert an imminent public disaster—for as long as the necessity exists.

References

Restatement (Second) of Torts § 197 (Am. Law Inst. 1965) (private necessity).

Restatement (Second) of Torts § 77 cmts. d–e (Am. Law Inst. 1965) (defense of property).

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A rancher and his neighbor were involved in a boundary dispute. In order to resolve their differences, each drove his truck to an open pasture area on his land where the two properties were separated by a fence. The rancher was accompanied by four friends, and the neighbor was alone. The neighbor got out of his truck and walked toward the fence. The rancher got out but simply stood by his truck. When the neighbor came over the fence, the rancher shot him, inflicting serious injury.

In a battery action brought by the neighbor against the rancher, the rancher testified that he actually thought his neighbor was armed. However, the rancher could point to nothing that would have reasonably justified this belief.

Is the neighbor likely to prevail?

A. No, because the rancher suspected that the neighbor was armed.

B. No, because the rancher was standing on his own property and had no obligation to retreat.

C. Yes, because deadly force is never appropriate in a property dispute.

D. Yes, because it was unreasonable for the rancher to consider the use of a gun necessary for self-defense.

Explanation:

The privilege to use reasonable force (eg, battery) in **self-defense** arises when the defendant **reasonably believes** that the plaintiff is about to inflict harmful or offensive contact on the defendant. The **force** used must be **proportionate** to the anticipated **harm**, so deadly force can only be used when the defendant reasonably believes that he/she is facing death or serious bodily injury.

Here, the rancher committed a battery when he shot the neighbor, inflicting serious injury. The rancher alleges that he shot the neighbor (deadly force) in self-defense because he thought that the neighbor was armed when he exited the truck and walked toward the fence. However, the rancher could point to no evidence that would have *reasonably justified* his belief (eg, a friend's testimony that the neighbor had a gun holstered to his waist). Therefore, the rancher cannot show that he was privileged to use deadly force in self-defense and the neighbor will likely prevail on his battery claim.

(Choice A) Since the rancher's suspicion that the neighbor was armed was not supported by any evidence (no reasonable belief), the rancher's use of deadly force was not justified.

(Choice B) A person has a duty to retreat in lieu of using deadly force in self-defense, unless confronted with deadly force inside his/her own home (ie, no duty to retreat inside one's castle). Since the rancher was in an open pasture on his property—not inside his home—he had an obligation to retreat if he could safely do so.

(Choice C) Although deadly force cannot be used to protect property, it can be used when a property dispute escalates into a situation in which a participant is in danger of death or serious bodily injury. However, the rancher could not reasonably believe that he was facing death or serious bodily injury during this property dispute, so he was not justified in using deadly force.

Educational objective:

The force used in self-defense must be proportionate to the anticipated harm. Therefore, deadly force can only be used when a person reasonably believes that he/she is facing death or serious injury.

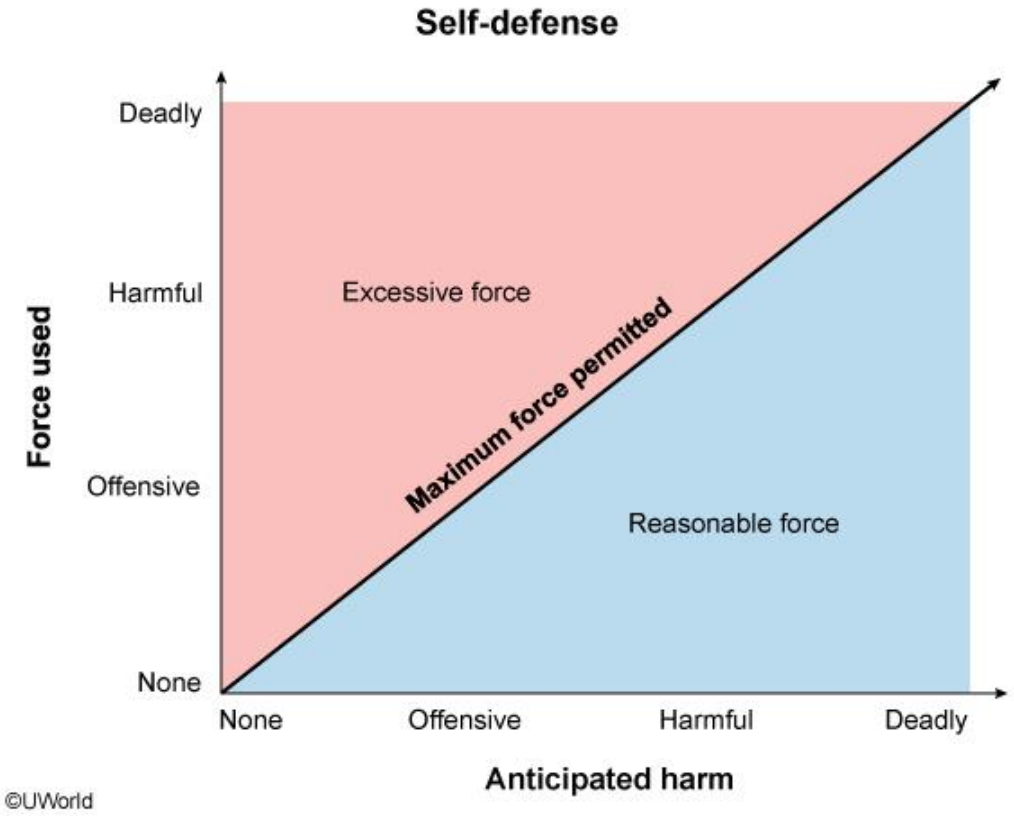
References

Restatement (Second) of Torts § 63 (Am. Law Inst. 1965) (self-defense).

Restatement (Second) of Torts § 65 (Am. Law Inst. 1965) (self-defense by deadly force).

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Self-defense
Deadly
Harmful
Offensive
None
Force used
Excessive force
Maximum force permitted
Reasonable force
None
Offensive
Harmful
Deadly
Anticipated harm
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A mother gave her daughter, a high school senior, permission to host a party at their house. Around midnight, the daughter's boyfriend confronted another boy, the daughter's neighbor, and the two boys began to push and throw punches at each other. The mother overheard the commotion and yelled at the boys to stop fighting. When they continued to fight, the mother approached the boys and placed herself between them. The boys were so angry that they were not aware that the mother had tried to intervene. Meaning to hit each other, the boyfriend and the neighbor both hit the mother.

In a suit against the boyfriend and the neighbor for battery, will the mother likely prevail?

A. No, because the boys intended to cause harmful contact with each other and not with the mother.

B. No, because the mother assumed the risk of injury when she placed herself between the boys.

C. Yes, because the boyfriend intended to hit the neighbor and the neighbor intended to hit the boyfriend.

D. Yes, because the boys, by continuing to fight, were substantially certain to cause harmful contact with the mother.

Explanation:

An actor may **intend to commit** an **intentional tort against one person** but **instead commit**:

a different intentional tort against that same person

the **same intentional tort against** a **different person** *or*

a different intentional tort against a different person.

When this occurs, the actor's **initial intent transfers** to the **tort that was actually committed** or to the **person who was actually harmed**. This doctrine of transferred intent applies to five intentional torts, including battery, which is the intentional infliction of harmful or offensive contact with another.

Here, the boys intended to cause harmful contact with each other since the boyfriend intended to hit the neighbor and the neighbor intended to hit the boyfriend (intent to commit battery). Because the boys hit the mother instead (same intentional tort; different person), each boy's initial intent to commit a battery against the other transferred to the mother **(Choice A)**. Therefore, she will likely prevail in her suit against the boys for battery.

(Choice B) Assumption of the risk is a defense to claims alleging negligent or reckless conduct. It negates or reduces the defendant's liability when the plaintiff voluntarily accepted a known risk of harm. But since battery requires proof of *intentional* conduct, this defense is irrelevant.

(Choice D) The intent element for battery is met if the defendant (1) acted with the purpose of causing harmful or offensive contact or imminent apprehension thereof or (2) knew that his/her action was substantially certain to cause that result. Here, the boys were *unaware* that the mother had tried to intervene, so they did not act with the intent (purpose or knowledge) to commit a battery against her.

Educational objective:

Under the doctrine of transferred intent, an actor's intent to commit an intentional tort against one person transfers to the actor's commission of (1) a different intentional tort against that same person, (2) the intended tort against a different person, or (3) a different intentional tort against a different person.

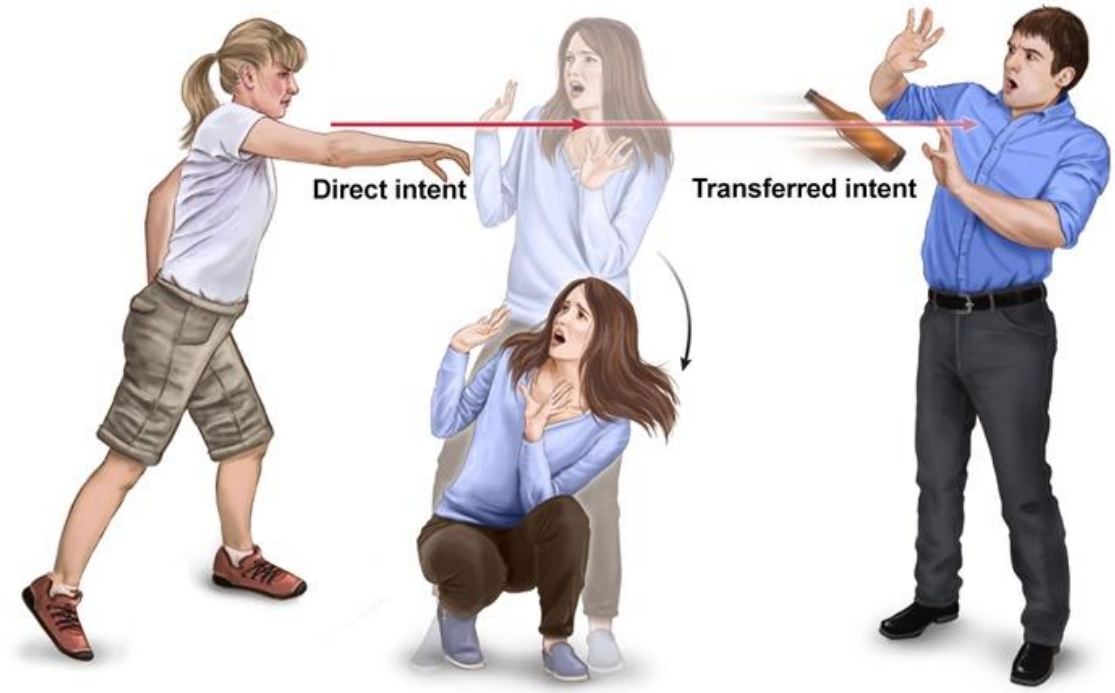
References

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 1 (Am. Law Inst. 2010) (intent defined).

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 110 (Am. Law Inst. 2015) (transferred intent).

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Transferred intent for battery



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A landowner owns a large tract of land on the shore of a lake. A woman used to live next to a stream that runs along one boundary of the landowner's tract and into the lake. A channel cuts across the landowner's tract and connects the stream to the lake. From where the woman lived, the channel served as a convenient shortcut to the lake. Erroneously believing that the channel was a public waterway, the woman used to make frequent trips through the channel in her motorboat. However, she did not harm the landowner's tract. The woman ceased using the channel when she later learned that the landowner owns it.

If the landowner asserts a claim for damages against the woman based on trespass, is the landowner likely to prevail?

A. No, because the woman did not cause any harm to the landowner's tract.
B. No, because the woman did not use the channel after learning of the landowner's ownership.
C. No, because the woman used the channel when she believed it was a public waterway.
D. Yes and the landowner is entitled to nominal damages, because the woman intentionally used the channel.

Explanation:

A defendant is liable for **trespass to land** (ie, trespass *quare clausum fregit*) if:

the defendant intentionally entered the plaintiff's property and

the plaintiff did not consent to the entry.

Since trespass only requires **intent to enter the property** in question—not intent to enter the property *of another*—the defendant's mistaken belief that he/she had the right to enter the property is irrelevant **(Choice C)**. Additionally, proof of **harm is not required**, so a defendant is liable for trespass even when the entry does not damage the plaintiff's land **(Choice A)**. However, the plaintiff can only recover **nominal damages** (a small sum of money—eg, $1—awarded to vindicate the plaintiff's rights when no actual loss or damage occurred) for a harmless trespass.

Here, the woman is liable for trespass because she (1) *intentionally* used the landowner's channel and (2) did *not* have his *consent* to do so. And though her trespass did not harm the landowner's tract, the landowner can still recover *nominal damages*.

(Choice B) Since the woman intentionally entered the landowner's channel without his consent, she is liable for trespass. The fact that she ceased using the channel after learning of the landowner's ownership does not excuse her earlier trespass.

Educational objective:

Trespass (an intentional entry onto another's property without permission) does not require proof of harm, but the plaintiff can only recover nominal damages for a harmless trespass. And since trespass only requires intent to enter the land, the defendant's mistaken belief that the entry was permissible is no defense.

References

Restatement (Second) of Torts § 158 (Am. Law Inst. 1965) (definition of trespass to land).

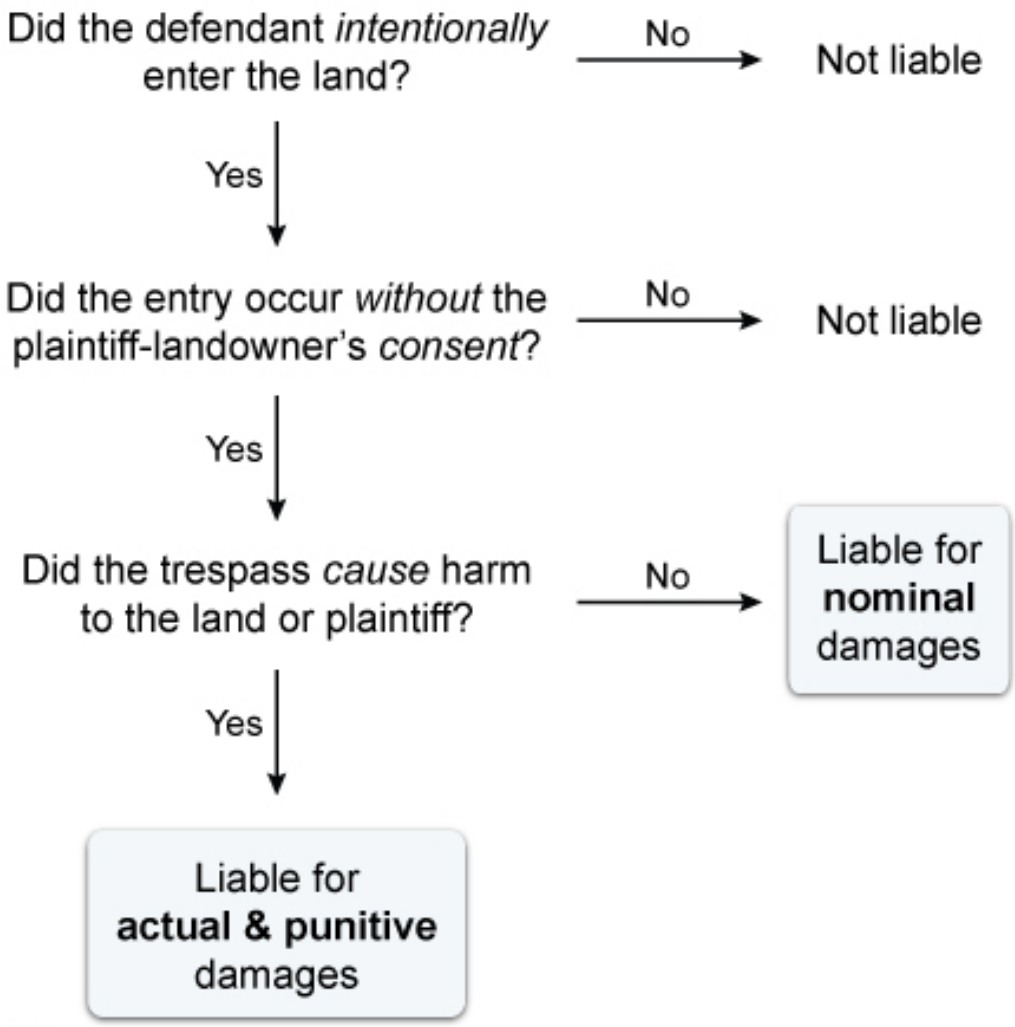
Restatement (Second) of Torts § 163 (Am. Law Inst. 1965) (harmless trespass).

Restatement (Second) of Torts § 164 (Am. Law Inst. 1965) (mistaken trespass).

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Trespass liability



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A real estate developer was trying to purchase land on which he intended to build a large commercial development. An elderly widow had rejected all of the developer's offers to buy her ancestral home, where she had lived all her life and which was located in the middle of the developer's planned development. Finally, the developer offered her $250,000. He told her that it was his last offer and that if she rejected it, state law authorized him to have her property condemned.

The widow then consulted her nephew, a law student, who researched the question and advised her that the developer had no power of condemnation under state law. The widow had been frightened by the developer's threat and was outraged when she learned that the developer had lied to her.

If the widow sues the developer for emotional distress damages, will she prevail?

A. No, because it was not the developer's purpose to cause emotional distress.

B. No, because the widow did not suffer emotional distress that was severe.

C. Yes, because the developer's action was extreme and outrageous.

D. Yes, because the widow was frightened and outraged.

Explanation:

For **intentional infliction of emotional distress** (IIED), the plaintiff must prove that the defendant intentionally or recklessly caused the plaintiff **severe emotional distress**—ie, distress that no reasonable person could be expected to endure—through extreme and outrageous conduct. The severity of the emotional distress depends on:

the **intensity and duration** of the distress

the **egregiousness** of the defendant's conduct *and*

the presence of **bodily harm**.

Here, the developer's threat to condemn the widow's ancestral home may have been reckless and possibly was extreme and outrageous. However, there is no evidence that her fright and outrage were intense or prolonged (eg, had she been scared for months, not moments) or that she suffered bodily harm (eg, had she experienced a heart attack upon hearing the threat). Therefore, the widow's emotional distress was not *severe* and her claim will fail.

(Choice A) IIED requires *intent* (ie, purpose or knowledge) to cause severe emotional distress OR *reckless* disregard of the risk of causing that distress. Therefore, even if it was not the developer's purpose to cause the widow severe emotional distress, he could still be liable for IIED if he knew of or recklessly ignored that risk.

(Choice C) Even if the developer's conduct was extreme and outrageous, the widow will not recover emotional distress damages since that conduct did not cause her severe emotional distress.

(Choice D) Some degree of emotional distress (eg, temporary fright or anger) is expected as a part of life, so IIED requires that the plaintiff's emotional distress be *severe* (and the result of extreme and outrageous conduct). Here, though the widow was frightened and outraged, her emotional distress was not severe.

Educational objective:

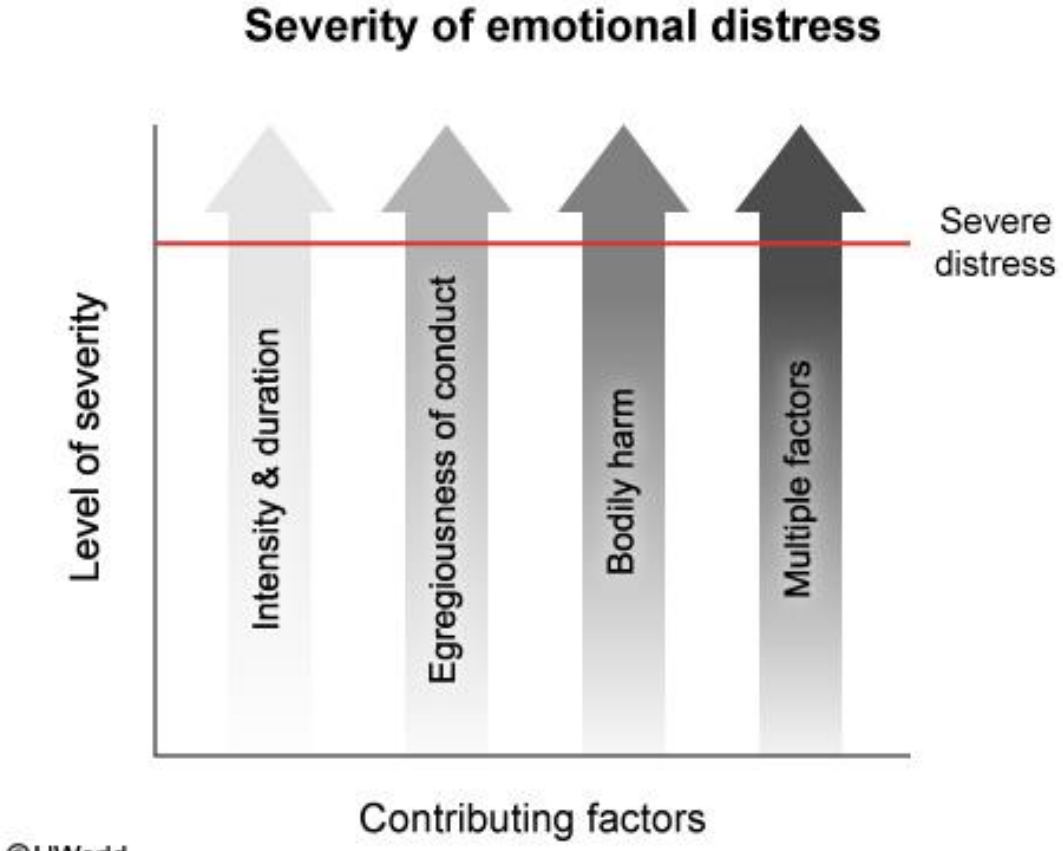
Intentional infliction of emotional distress requires proof of severe emotional distress—ie, emotional distress beyond what a reasonable person could be expected to endure. The severity of emotional distress depends on (1) its intensity and duration, (2) the egregiousness of the defendant's conduct, and (3) the presence of bodily harm.

References

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 46 (Am. Law Inst. 2012) (intentional or reckless infliction of emotional distress).

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Severity of emotional distress
Level of severity
Intensity & duration
Egregiousness of conduct
Bodily harm
Multiple factors
Severe distress
Contributing factors

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A young man was walking peacefully along a public street when he encountered a woman he had never seen before. Without provocation or warning, the woman picked up a rock and struck the young man with it. It was later established that the woman was mentally ill and suffered recurrent visual hallucinations.

In an action by the young man against the woman for battery, which of the following, if supported by evidence, will be the woman's best defense?

A. The woman did not desire to cause harm to the young man.

B. The woman did not know that she was striking a person.

C. The woman did not understand that her act was wrongful.

D. The woman thought the young man was about to attack her.

Explanation:

Deficient mental capacity is not a defense to liability for intentional torts. Instead, mental capacity is considered when determining whether the defendant acted with the requisite **intent**. For **battery**, the defendant must act with the intent to **cause contact** (or imminent apprehension of contact) with the plaintiff.

Although the woman struck the young man with a rock, she is only liable for battery if she did so with the *intent* to strike the young man or cause him apprehension. Therefore, the woman's best defense is that she did not *know* (intent) she was striking a person (eg, her recurrent visual hallucinations caused her to perceive the young man as a tree or wild dog).

(Choice A) Battery requires intent to cause *contact* or imminent apprehension of contact—not *harm*. Therefore, it only matters whether the woman intended to cause contact or apprehension, not whether she desired to harm the young man.

(Choice C) To meet the intent requirement for battery, the woman only had to understand that she struck the young man with the rock. She did not need to understand that her act was wrongful.

(Choice D) Self-defense is only available as a defense if the defendant *reasonably believed* that force was necessary. Here, the woman could not have reasonably believed that the young man was about to attack her because the young man was walking peacefully. Therefore, this defense is not available.

Educational objective:

Deficient mental capacity is not a defense to liability for intentional torts, but is considered in determining whether the defendant acted with the requisite intent. Battery requires the intent to cause contact or imminent apprehension of contact.

References

Restatement (Second) of Torts § 895J (Am. Law Inst. 1979) (deficient mental capacity).

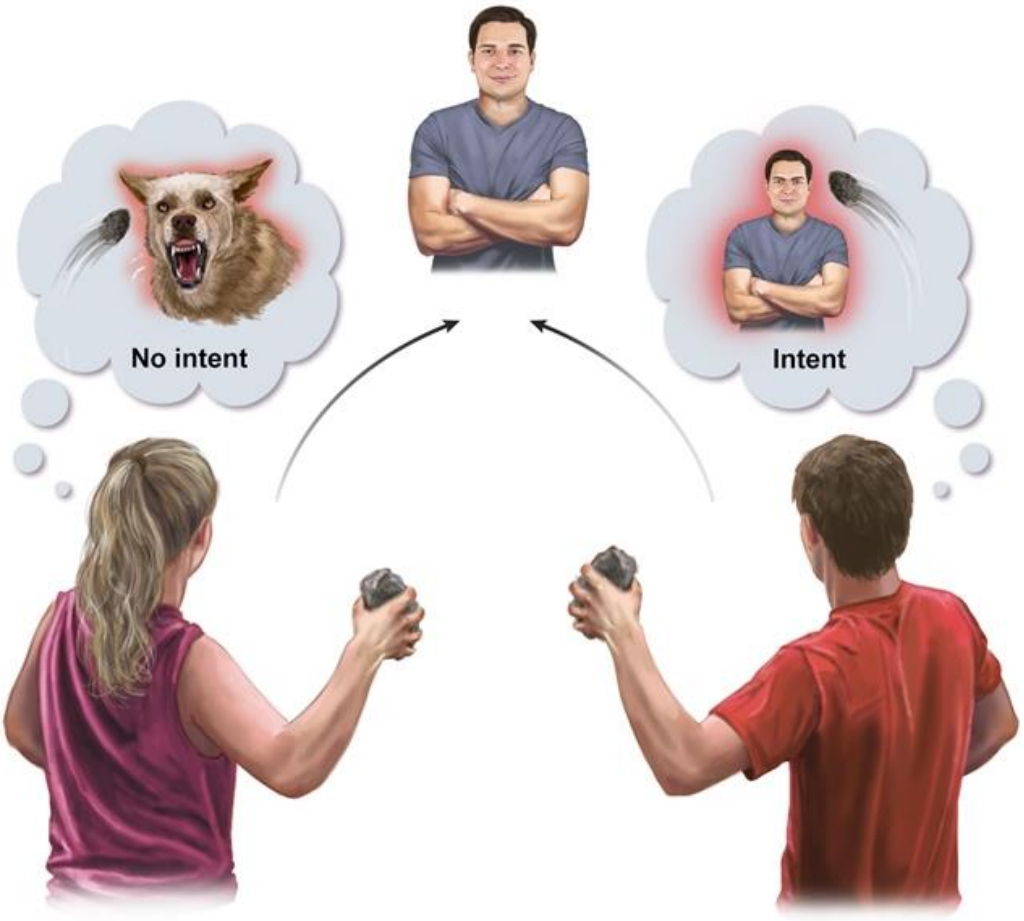
Restatement (Second) of Torts § 13 (Am. Law Inst. 1965) (battery by harmful contact).

Restatement (Second) of Torts § 8A (Am. Law Inst. 1965) (definition of intent).

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Effect of mental deficiency on intent



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A company owned and operated a private golf course. One of the fairways on the course ran parallel to a navigable body of water that is rarely used by boats. The company was aware that golfers frequently but unintentionally hit golf balls into the water when playing that hole because there were no barriers to prevent the balls from going into the water. The golf balls resulted in pollution of the water in violation of a local ordinance that prohibits the pollution of bodies of water in the jurisdiction.

A 12-year-old child was sailing on the water with his family when he was struck by a golf ball that a golfer unintentionally hit from the golf course toward the water. The child suffered a serious physical injury.

The injured child's parents have filed a public nuisance action against the company, on behalf of their child, to recover for his injuries.

Are the parents precluded from recovery?

A. No, because of the attractive nuisance doctrine.

B. No, because the child suffered harm that was different from that suffered by the public at large.

C. Yes, because the child did not have an ownership interest in land.

D. Yes, because the golfer's action was unintentional.

Explanation:

Public nuisance is an unreasonable interference with a right common to the general public, which requires proof that:

the defendant **interfered with a public right**—eg, affecting the public by polluting bodies of water—*and*

that interference was **unreasonable**—ie, it (1) significantly affected public health, safety, peace, or property rights or (2) **violated an ordinance**, statute, or administrative regulation.

Generally, only a public entity (eg, a state) can sue for public nuisance. However, a **private individual** can bring an action for public nuisance if that individual suffered **special damage**—ie, **harm different** from (not merely greater in extent or degree than) the harm sustained by the public at large.

Here, the company interfered with a public right by polluting the navigable body of water with golf balls from its course. This interference was unreasonable because it violated a local ordinance. But since the child is a private individual, his parents will prevail on a public nuisance claim on his behalf only if they can prove that his harm was different from the harm (pollution) sustained by the public. The parents can likely do so because the child was struck by a golf ball while sailing (a rare use of the water). Therefore, they are not precluded from recovery.

(Choice A) The attractive nuisance doctrine applies when a child trespasses on the defendant's property and is injured by an artificial condition on that property (not seen here).

(Choice C) *Private* nuisance requires proof that the defendant interfered with the plaintiff's use and enjoyment of property in which the plaintiff has an ownership interest. However, *public* nuisance (the claim asserted here) does not require that the plaintiff have an ownership interest.

(Choice D) The fact that the golfer unintentionally hit the golf ball toward the water is irrelevant to determining whether the parents may recover from the company for public nuisance.

Educational objective:

A private individual can prevail in an action for public nuisance—ie, an unreasonable interference with a public right—if that individual can show harm different from that suffered by the public at large (ie, special damage).

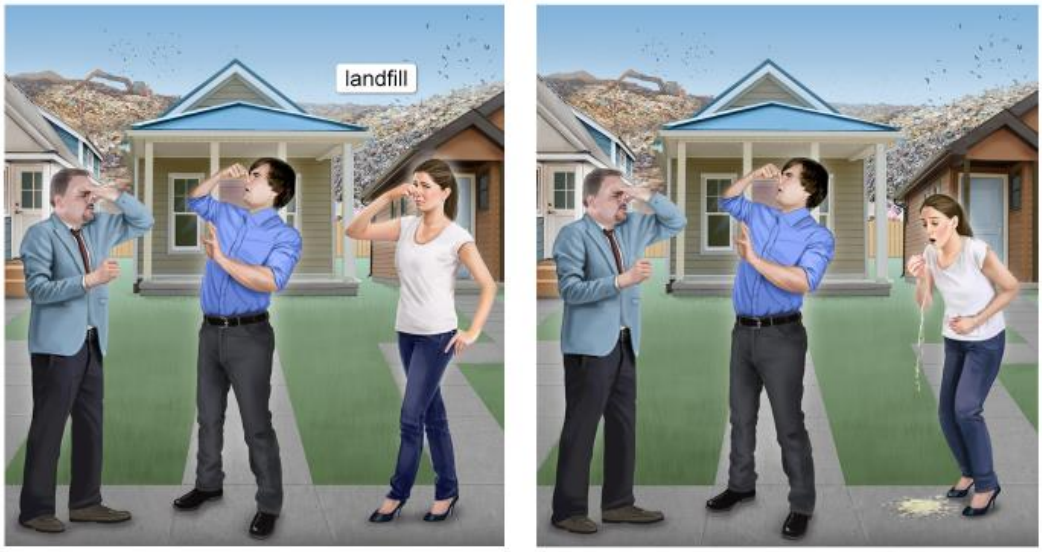
References

Restatement (Second) of Torts § 821B (Am. Law Inst. 1977) (defining public nuisance).

Restatement (Second) of Torts § 821C (Am. Law Inst. 1977) (explaining that a private plaintiff must prove special damage).

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Public nuisance by private plaintiff
(special damage requirement)



Same harm ≠ special damage

Different harm = special damage

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An elderly woman had no living relatives or close friends. A much younger man who lived nearby befriended the woman in order to convince her to leave her house and other property to him. Shortly thereafter, a new family moved next door to the woman. The woman developed a close friendship with the family's 10-year-old child. When the woman later refused to execute a will in the man's favor, he blamed the child. He decided to cause the woman severe emotional distress by molesting the child in the woman's home while she was away. The man did so and told the woman about it. She suffered severe emotional distress that caused her to suffer a heart attack.

The woman sued the man for intentional infliction of emotional distress.

Will the woman be likely to prevail in that action?

A. No, because the woman was not present when the man molested the child.

B. No, because the woman was not related to the child.

C. Yes, because the man, in molesting the child, acted with the purpose of causing the woman severe emotional distress.

D. Yes, because the woman suffered bodily injury.

Explanation:

Intentional infliction of emotional distress (IIED) requires proof that the defendant was at least reckless as to the risk that his/her extreme and outrageous conduct would cause the plaintiff severe emotional distress. To establish this element in cases where the plaintiff's distress stems from conduct that **physically or emotionally harmed a third party**, the plaintiff **must generally prove** the following facts:

The plaintiff **contemporaneously perceived** (ie, saw or overheard) the defendant's conduct.

The plaintiff was a **close relative** (ie, immediate family member) of the harmed third party.

The defendant **knew** that the plaintiff was present and closely related to the harmed third party.

However, the plaintiff **need not prove** the above facts if the defendant's **design or purpose** was to **cause severe emotional distress** to the plaintiff.

Here, the man molested the child (a third party) in the woman's home, which caused the woman to suffer severe emotional distress. The woman was neither present when the man molested the child (no contemporaneous perception) nor related to the child, which ordinarily would defeat her claim for IIED. But since the man acted with the *purpose* of causing the woman severe emotional distress, she will likely prevail **(Choices A & B)**.

(Choice D) Severe emotional distress is often accompanied by bodily injury (eg, heart attack). Although this helps prove that the emotional distress is genuine, recovery for IIED is not limited to cases in which bodily injury occurs.

Educational objective:

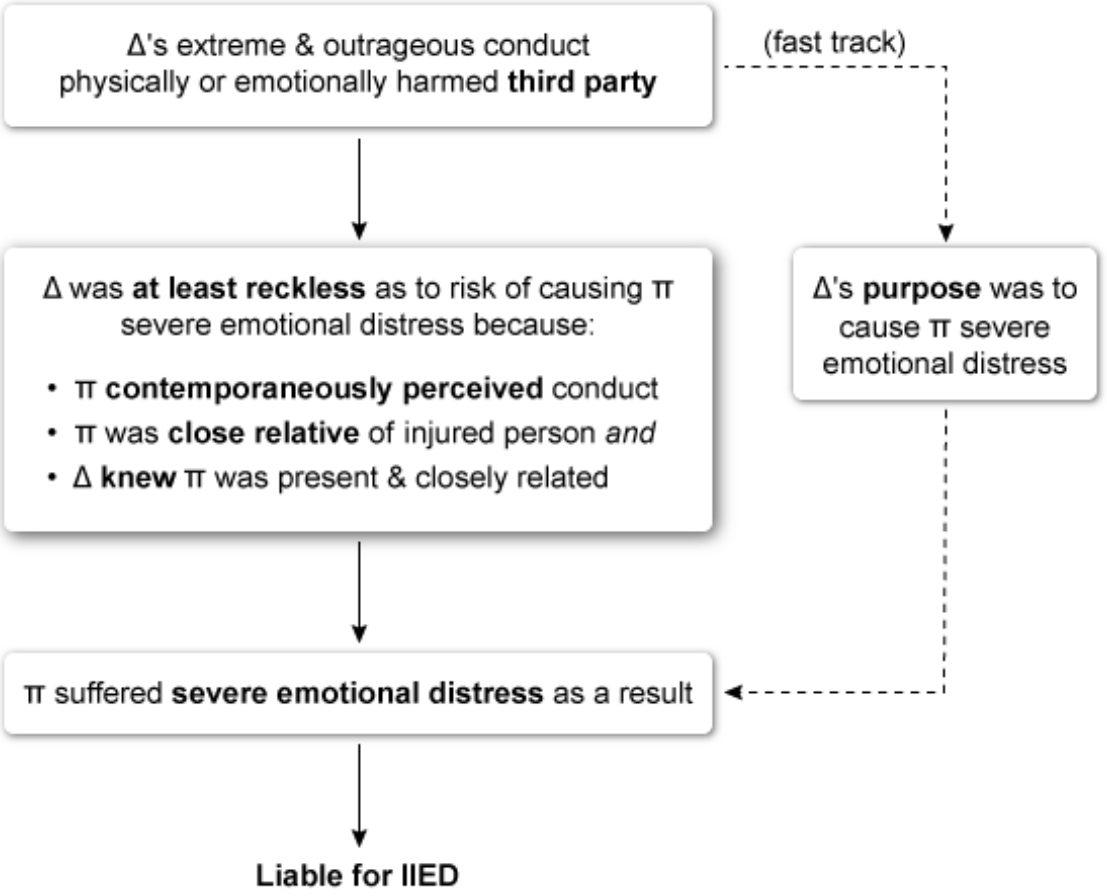
A defendant whose extreme and outrageous conduct has harmed a third party may be liable for intentional infliction of emotional distress if the defendant acted with the purpose of inflicting (and did inflict) severe emotional distress on the plaintiff—regardless of whether the plaintiff witnessed the conduct or was closely related to the third party.

References

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 46, cmt. m (Am. Law Inst. 2012) (emotional harm caused by harm to a third person).

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IIED liability for emotional distress caused by harm to third party



Δ = Defendant; **π** = Plaintiff;
IIED = Intentional infliction of emotional distress.

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A businessman operates a collection agency. He was trying to collect a $400 bill for medical services rendered to a young woman by a doctor.

The businessman went to the young woman's house. When the young woman's mother answered the door, the businessman told her that he was there to collect a bill owed by the young woman. The mother told the businessman that because of the young woman's illness, she had been unemployed for six months, that she was still ill and unable to work, and that she would pay the bill as soon as she could.

The businessman, in a loud voice, demanded to see the young woman and said that if he did not receive payment immediately, he would file a criminal complaint charging her with fraud. The young woman, who was severely distressed after hearing the conversation, came to the door. The businessman, in a loud voice, repeated his demand for immediate payment and his threat to use criminal process.

If the young woman asserts a claim against the businessman based on infliction of emotional distress, is she likely to prevail?

A. No, because the businessman's conduct created no risk of physical harm to the young woman.

B. No, unless she suffered physical harm as a result of the businessman's conduct.

C. Yes, because she suffered severe emotional distress as a result of the businessman's conduct.

D. Yes, unless the bill for medical services was valid and past due.

Explanation:

For **intentional infliction of emotional distress** (IIED), the plaintiff must prove that the defendant:

behaved in an extreme and outrageous manner

intended to cause the plaintiff severe emotional distress OR recklessly disregarded the risk of causing such distress *and*

caused the plaintiff severe emotional distress.

Abusing a position of authority amounts to **extreme and outrageous conduct** when the conduct goes **far beyond what is necessary** to exercise that authority. For example, a creditor abuses his/her position of authority by threatening a debtor with **unjustified criminal prosecution** or by contacting the debtor's employer or neighbors.

Here, the businessman (creditor) abused his position of authority when he unjustifiably threatened to file a criminal fraud complaint against the young woman for merely failing to pay a bill (extreme and outrageous conduct). In doing so, he was indifferent to the obvious risk that the threat would cause her severe emotional distress (recklessness). And since the young woman suffered such distress after hearing the businessman's threat, she will likely prevail on an IIED claim.

(Choice A) Risk of physical harm is an element of the zone-of-danger theory for *negligent* infliction of emotional distress—not IIED. Therefore, the young woman can prove IIED even if the businessman's conduct created no risk of physical harm.

(Choice B) IIED compensates persons who suffered severe emotional distress even when there is no proof of physical harm. As a result, the young woman's lack of physical harm will not affect the viability of her IIED claim.

(Choice D) Even if the bill was valid and past due, the businessman could only use *reasonable* means to collect that debt. But since the businessman engaged in extreme and outrageous conduct that recklessly caused the young woman severe emotional distress, he is liable for IIED.

Educational objective:

Intentional infliction of emotional distress (IIED) requires proof that the defendant engaged in extreme and outrageous conduct—eg, abusing a position of authority by going far beyond what is necessary to exercise that authority.

References

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 46 cmts. d–e (2012) (intentional or reckless infliction of emotional distress).

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A bank employee took substantial kickbacks to approve certain loans that later proved worthless. Upon learning of the kickbacks, the bank president fired the employee, telling him, "If you are not out of this bank in ten minutes, I will have the guards throw you out bodily." The employee left at once.

If the employee asserts an assault claim against the bank president, will the employee prevail?

A. No, because the bank president gave the employee ten minutes to leave.

B. No, because the guards never touched the employee.

C. Yes, because the bank president threatened the employee with harmful or offensive bodily contact.

D. Yes, if the bank president intended to cause the employee severe emotional distress.

Explanation:

Assault requires that a defendant cause the plaintiff reasonable apprehension of **imminent** harmful or offensive contact. Imminent means **without significant delay**. Therefore, a defendant is **not liable** for assault if he/she only causes apprehension of **future contact**.

Here, the employee was not placed in apprehension of *imminent* contact because the bank president threatened *future* harm—that he would have the guards throw the employee out bodily if he did not leave in *ten minutes*. Because the threat of future harm does not satisfy the imminent contact requirement, the bank president is not liable for assault.

(Choice B) Assault only requires *apprehension* of imminent contact, so the employee does not need to prove that the guards actually touched him. In contrast, *battery* (an intentional act that causes harmful or offensive contact with another) requires proof of *actual* contact.

(Choice C) Although the bank president threatened the employee with bodily contact, assault requires apprehension of *imminent* contact. Since the bank president threatened *future* contact (after ten minutes), he is not liable for assault.

(Choice D) Severe emotional distress is not an element of assault. Rather, it is an element of *intentional infliction of emotional distress* (extreme or outrageous conduct that intentionally or recklessly causes a plaintiff severe emotional distress).

Educational objective:

Assault requires apprehension of imminent contact. Therefore, a threat of future contact does not support an assault claim.

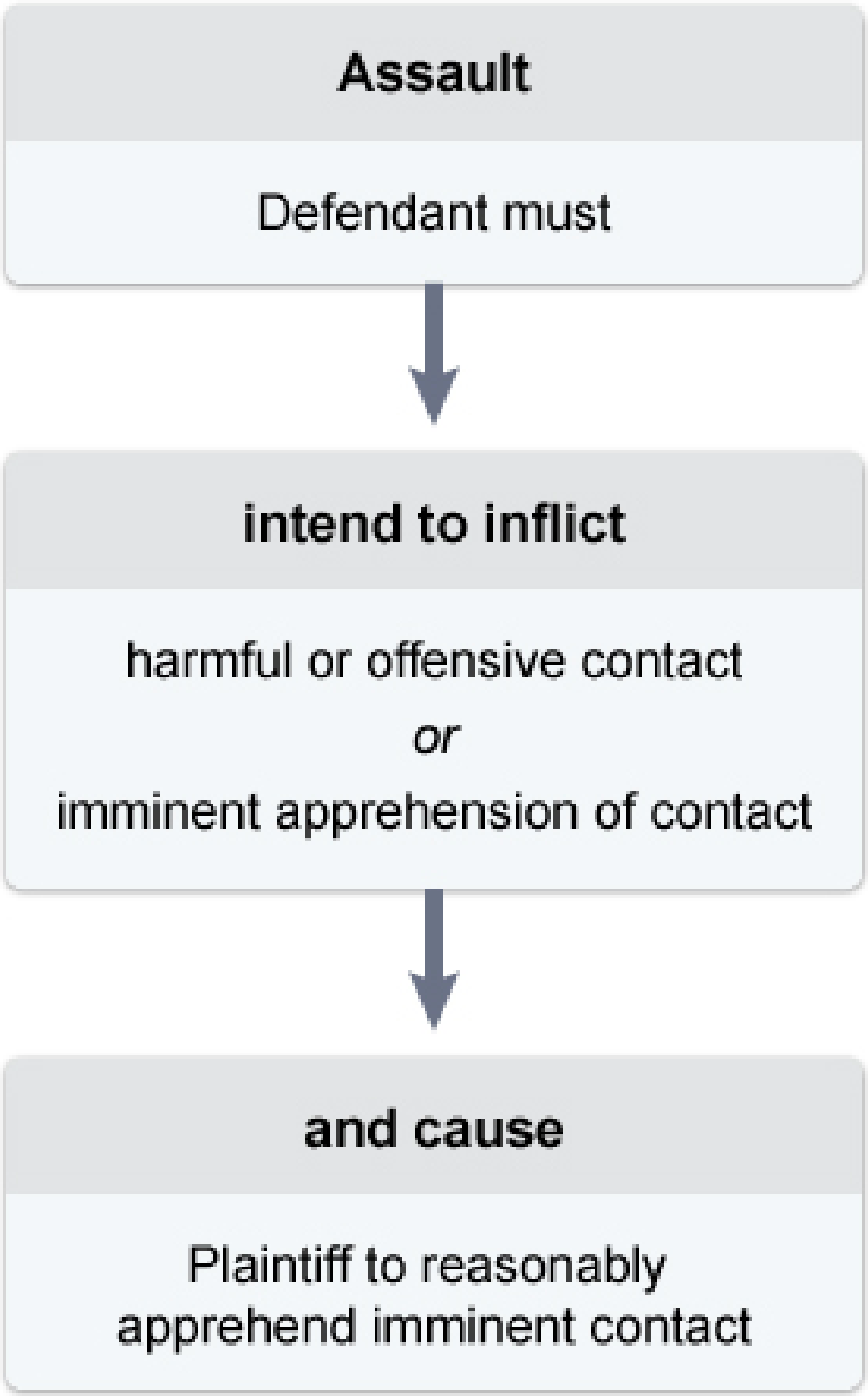
References

Restatement (Second) of Torts § 21 (Am. Law Inst. 1965) (definition of assault).

Restatement (Second) of Torts § 29 (Am. Law Inst. 1965) (imminence requirement).

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Assault
Defendant must
intend to inflict
harmful or offensive contact
or
imminent apprehension of contact
and cause
Plaintiff to reasonably
apprehend imminent contact

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A woman was crossing the street at a crosswalk. A man on the nearby sidewalk thought he saw a speeding automobile headed in the woman's direction even though the car was clearly about to turn onto a different street before it would reach her. As a result, the man ran into the street and pushed the woman out of the path of the car. The woman fell to the ground and broke her leg.

In an action for battery brought by the woman against the man, will the woman likely prevail?

A. No, because the man believed that the woman was actually in danger.

B. No, because the man's intent was to save the woman, not to harm her.

C. Yes, because the man could have shouted a warning instead of pushing the woman out of the way.

D. Yes, because the man should have realized that the woman was not actually in danger.

Explanation:

If a defendant's intentional act causes harmful or offensive contact with the plaintiff, then the defendant is liable for **battery** absent some **defense** (eg, actual, apparent, or implied **consent**). Consent is **implied by law** when:

the plaintiff was in an **emergency situation**

the defendant's contact was actually or apparently necessary to protect the plaintiff from the emergency

the plaintiff could not consent to the defendant's action *and*

the defendant reasonably believed that the plaintiff would have consented if given the opportunity.

Here, the man intentionally pushed the woman, causing her to fall and break her leg (battery) because he believed that he needed to push the woman to prevent her from being hit by the car. However, he should have realized that there was no need to protect her because the car was *clearly* about to turn onto a different street before it would reach her **(Choice A)**. Since there was no emergency, consent cannot be implied by law and—because the man has no other defense to the woman's battery claim—she will likely prevail.

(Choice B) Battery requires intent to cause contact—not intent to cause harm. As a result, though the man never intended to *harm* the woman, he is still liable for battery because he intended to *push* her.

(Choice C) The man's ability to shout a warning instead of pushing the woman would be relevant to whether the man's contact was actually or apparently necessary to protect her. However, this analysis is unnecessary because there was no emergency.

Educational objective:

Implied consent exists when (1) the plaintiff is in an emergency situation, (2) the defendant's contact is actually or apparently necessary to protect the plaintiff from the emergency, (3) the plaintiff is unable to consent, and (4) the defendant reasonably believes that the plaintiff would consent if given the opportunity.

References

Restatement (Second) of Torts § 892D (Am. Law Inst. 1979) (consent implied by law).

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Consent to contact

Actual	Apparent	Implied by law
Plaintiff willingly submits to contact	Consent reasonably understood by plaintiff's conduct or implied by custom	Plaintiff cannot consent and contact required to prevent serious harm
		

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The manager of a department store noticed that a customer was carrying a scarf with her as she examined various items in the blouse department. The manager recognized the scarf as an expensive one carried by the store. The customer was trying to find a blouse that matched a color in the scarf and, after a while, found one. The manager then saw the customer put the scarf into her purse, pay for the blouse, and head for the door. The manager, who was eight inches taller than the customer, blocked the customer's way to the door and asked to see the scarf in the customer's purse. The customer produced the scarf, as well as a receipt showing that it had been purchased from the store on the previous day. The manager then told the customer there was no problem and stepped out of her way.

In an action by the customer against the store for false imprisonment, which of the following, if supported by the evidence, will be the store's best defense?

A. The customer assumed the risk of being detained by carrying the scarf in public view and then putting it into her purse.

B. The customer should have realized that her conduct would create a reasonable belief that facts existed warranting a privilege to detain her.

C. The customer was not detained, but was merely questioned about the scarf.

D. The manager had a reasonable belief that the customer was shoplifting and detained her only briefly for a reasonable investigation of the facts.

Explanation:

False imprisonment occurs when the defendant intentionally confines the plaintiff within fixed boundaries AND the plaintiff is aware of the confinement at the time it occurs or suffers actual harm as a result. The **shopkeeper's privilege** is a **defense** to false imprisonment when:

the defendant **reasonably believes** that the plaintiff was **shoplifting** and **detains** the plaintiff for a **reasonable** amount of time necessary to conduct an **investigation**.

Here, the manager reasonably believed that the customer was shoplifting when the customer put a scarf carried by the store in her purse and headed for the door without paying for the scarf. As a result, the manager stopped the customer to ask her about the scarf (conduct an investigation) and only detained her long enough to ask a question and see her receipt (reasonable amount of time). Therefore, the shopkeeper's privilege is the store's best defense to the customer's false imprisonment claim.

(Choice A) Assumption of the risk (the plaintiff's voluntary acceptance of a known risk of harm) is only a defense to claims alleging *negligent* or *reckless* conduct. Since false imprisonment requires proof of *intentional* conduct, this defense is irrelevant.

(Choice B) What the customer should have realized is an issue of *contributory negligence* (conduct that falls below the standard of care a plaintiff should use for his/her own protection). Contributory negligence is only a defense to *negligence*—not recklessness or intentional torts like false imprisonment.

(Choice C) For false imprisonment, confinement occurs when the defendant restricts the plaintiff within fixed boundaries and causes an apparent lack of reasonable escape. The confinement can be for any length of time (eg, 1 minute or 1 day). Therefore, the customer was confined even though the manager only *briefly* blocked her exit to question her about the scarf.

Educational objective:

The shopkeeper's privilege is a defense to false imprisonment when the defendant reasonably believes that the plaintiff was shoplifting and detains the plaintiff for a reasonable amount of time to investigate the facts.

References

Restatement (Second) of Torts § 35 (Am. Law Inst. 1965) (false imprisonment).

Restatement (Second) of Torts § 120A (Am. Law Inst. 1965) (shopkeeper's privilege).

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Available defenses for tortious conduct

	Privilege	Assumption of the risk	Contributory negligence
Intentional conduct	✓		
Reckless conduct	✓	✓	
Negligent conduct	✓	✓	✓

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A mother took her five-year-old child to a hospital emergency room for treatment. A doctor on the hospital staff molested the child while treating her. At the time, no one was in the treatment room except the doctor and the child; the mother had left the room to get a cup of coffee. Two weeks later, when the child told her mother what had occurred in the treatment room, the mother suffered severe emotional distress that caused her to become physically ill.

In an action against the doctor by the mother on her own behalf to recover for intentional infliction of emotional distress, is the mother likely to prevail?

A. No, because the mother was contributorily negligent in leaving the child alone with the doctor during treatment.

B. No, because the mother was neither the direct victim of the doctor's conduct nor a contemporaneous witness.

C. Yes, because the doctor's conduct was outrageous.

D. Yes, because the mother's distress was the natural and foreseeable consequence of the doctor's conduct.

Explanation:

Theories of recovery for

intentional or reckless infliction of emotional distress

Direct	Defendant engaged in extreme & outrageous conduct *and* Defendant intentionally or recklessly caused plaintiff severe emotional distress
Bystander	Defendant's extreme & outrageous conduct physically harmed plaintiff's close relative Defendant's conduct was intentional or reckless (ie, defendant knew plaintiff was present & closely related to injured person) *and* Plaintiff contemporaneously perceived defendant's conduct & suffered severe emotional distress

There are two theories of recovery for **intentional infliction of emotional distress** (IIED): (1) direct and (2) bystander. The **direct theory** applies when the plaintiff was the **direct victim** of the defendant's extreme and outrageous conduct. In contrast, the **bystander theory** applies when the plaintiff **witnessed** the defendant harming a close relative.

Here, the child—not the mother—was the direct victim of the doctor's abusive conduct (no direct liability to mother). And though the doctor's conduct was extreme and outrageous **(Choice C)**, the mother did not witness the doctor molest her child (no bystander liability). Therefore, the mother's IIED claim will likely fail.

(Choice A) Contributory negligence (the failure to use the level of care a reasonable person would have used for his/her own protection) is an affirmative defense to claims for negligence—not intentional or reckless torts like IIED.

(Choice D) Although the doctor's conduct caused the mother's distress, she cannot recover under either theory for IIED since she was not the direct victim of, or a witness to, that conduct.

Educational objective:

There are two theories of recovery for intentional infliction of emotional distress: (1) the direct theory—applies when the plaintiff was the direct victim of the defendant's conduct and (2) the bystander theory—applies when the plaintiff witnessed the defendant harming a close relative.

References

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 46 cmt. m (Am. Law Inst. 2012) (intentional infliction of emotional distress).

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A judge in State A signed a death warrant for a convicted murderer. At a demonstration protesting the execution of the murderer, two opponents of the death penalty carried large signs that stated, "The judge is a murderer!" A television station broadcasted news coverage of the demonstration, including pictures of the signs carried by the two protestors. The broadcast caused the judge severe emotional distress.

If the judge asserts a claim for damages for intentional infliction of emotional distress against the television station, will he likely prevail?

A. No, because the judge did not suffer physical harm as a consequence of the emotional distress caused by the signs.

B. No, because the television station did not publish a false statement of fact with actual malice.

C. Yes, because the assertion on the signs was extreme and outrageous.

D. Yes, because the broadcast showing the signs caused the judge severe emotional distress.

Explanation:

Intentional infliction of emotional distress (IIED) occurs when the defendant intentionally or recklessly causes the plaintiff severe emotional harm by engaging in extreme and outrageous conduct. But when the plaintiff is a **public figure** who alleges that his/her emotional distress was caused by the defendant's **publication** (eg, newspaper article, television broadcast), then the plaintiff must *also* show that the defendant published a **false statement of fact** with actual malice.

Here, the judge (public figure) can show that the television station's broadcast caused him severe emotional distress. But since the broadcast merely published the protestors' political opinions—not false statements of fact—the judge's IIED claim will likely fail **(Choice D)**.

(Choice A) Proof of physical harm is generally required to recover damages for emotional harm. However, IIED does not require proof of physical harm—only proof of *severe* emotional distress. Therefore, the fact that the judge did not suffer physical harm due to his emotional distress will not defeat his IIED claim.

(Choice C) Even if the protestors' message on the signs was extreme and outrageous, that message expressed an opinion—not a fact.

Educational objective:

To recover for intentional infliction of emotional distress (IIED) based on the defendant's publication, a public figure must show that the defendant (1) acted in an extreme and outrageous manner, (2) intentionally or recklessly caused the public figure severe emotional distress, and (3) published a false statement of fact with actual malice.

References

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 46 cmt. f (Am. Law Inst. 2012) (intentional infliction of emotional distress).

Hustler Magazine v. Falwell, 485 U.S. 46, 56 (1988) (analyzing intentional infliction of emotional distress claims brought by public figures and public officials).

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Intentional infliction of emotional distress against a public figure

Standard elements for IIED

- Defendant acted intentionally or recklessly
- Defendant engaged in extreme and outrageous conduct
- Plaintiff suffered severe emotional distress

+

Publication requirement

- Defendant published a false statement of fact with actual malice

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A woman who was driving down a busy street was lost, but she did not want to stop to figure out where she was going. Instead, she used her knees to control the steering wheel while she pulled up a map on her smartphone. As the woman approached an intersection, a truck driver coming from the opposite direction tried to make an illegal U-turn in front of her car. The woman looked up from her smartphone and immediately tried to grasp her steering wheel, but she was unable to swerve out of the way in time, so the truck crashed into her car.

The woman filed a negligence action against the truck driver to recover $100,000 in damages for injuries sustained in the accident. At trial, the trier of fact established that the woman and the truck driver were equally at fault.

Which of the following is an accurate statement of the damages that the woman can recover?

A. In a contributory negligence jurisdiction, the woman can recover $50,000.

B. In a modified comparative-negligence jurisdiction, the woman can recover $50,000.

C. In a modified comparative-negligence jurisdiction, the woman can recover nothing.

D. In a pure comparative-negligence jurisdiction, the woman can recover nothing.

Explanation:

In traditional contributory-negligence jurisdictions, a plaintiff who fails to use reasonable care for his/her own safety and thereby contributes to his/her own injury is barred from recovering damages. However, **almost all jurisdictions** have adopted some form of **comparative fault** (ie, comparative negligence). There are two forms of comparative fault:

Pure comparative fault (default rule on the MBE) – **recovery is *reduced*** by the plaintiff's percentage of fault

Modified comparative fault – the same as pure comparative fault, except that recovery is ***barred*** **if** the **plaintiff's fault exceeds 50%***

Here, the woman sought to recover $100,000 in damages from the truck driver. The trier of fact established that the woman and the truck driver were equally at fault for the accident.

In a *contributory negligence* jurisdiction, the woman's fault would preclude her from recovering any damages **(Choice A)**.

In a *pure comparative-fault* jurisdiction, the woman's full damages would be calculated by the trier of fact and then reduced by the proportion that the plaintiff's fault bears to the total harm ($100,000 - $50,000 = $50,000) **(Choice D)**.

In a *modified comparative-fault* jurisdiction, the woman can recover because her fault did not *exceed* 50% **(Choice C)**.* However, her total damages will be reduced by her percentage of fault ($100,000 - $50,000 = $50,000).

Therefore, the most accurate statement of damages is that the woman can recover $50,000 in a modified comparative-fault jurisdiction.

*This is the view in the vast majority of modified comparative-fault jurisdictions. However, in a small minority of these jurisdictions, a plaintiff recovers nothing when the plaintiff and defendant are equally at fault.

Educational objective:

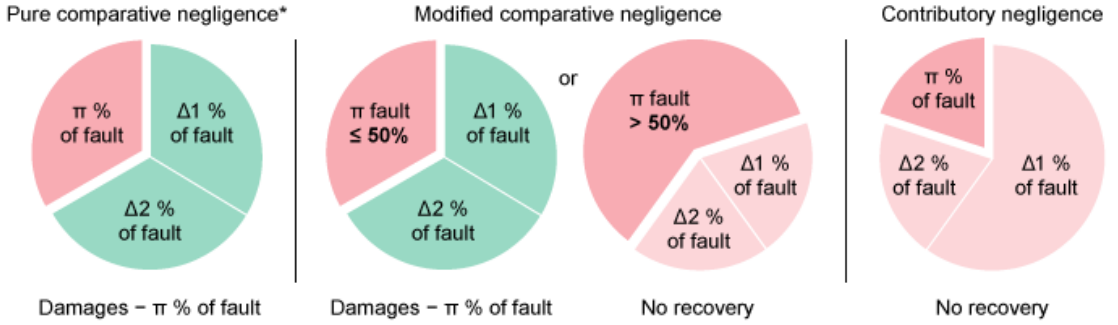
In a pure comparative-fault jurisdiction, recovery is reduced by the plaintiff's percentage of fault. The same is true for a modified comparative-fault jurisdiction, except that recovery is barred if the plaintiff's fault *exceeds* 50%.

References

57B Am. Jur. 2d Negligence § 954 (2020) (comparative negligence, generally).

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Negligence rules of recovery



*Default rule on MBE; **π** = plaintiff; **Δ** = defendant

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A plumbing company hired a worker to work at various construction sites. The worker used his own truck to travel between the company's warehouse and the construction sites, but the company fitted the truck with a rack for carrying plumbing pipes. The company paid the worker for traveling between the warehouse and the construction sites, but not for his drive to and from work.

Because the worker was required to haul pipes on his truck while driving between the warehouse and the construction sites, the company asked the worker, before hiring him, whether he had a valid driver's license. The worker represented that he did, although in fact his license had been suspended because he had been convicted of recklessly causing motor vehicle collisions. The company made no effort to verify the worker's representation.

While driving to work one morning in his truck, the worker carelessly caused a collision in which a woman was injured.

In her subsequent action against the plumbing company, based on a theory of negligent hiring, is the woman likely to prevail?

A. No, because the actions taken by the worker were not in the performance of his employment or job duties.

B. No, because the worker was an independent contractor.

C. Yes, because the company fitted the worker's truck with a pipe rack.

D. Yes, because the company had a duty to ensure that its workers had valid driver's licenses.

Explanation:

Liability for **negligent hiring** arises when a defendant's failure to use reasonable care in hiring a competent worker causes the plaintiff harm. Therefore, a defendant is only liable for negligent hiring if there is a **causal connection** between the defendant's **negligence in hiring the worker**, the **worker's employment or job duties**, and the **plaintiff's harm**.

Here, the plumbing company failed to use reasonable care when it made no effort to verify that the worker—who was paid to drive between the warehouse and various construction sites—had a valid driver's license **(Choice D)**. But even though the worker carelessly collided with the woman, it occurred during his commute to work—not during his employment or performance of job duties (no causal connection). Therefore, the plumbing company is not liable for negligent hiring.

(Choice B) A defendant can be liable for negligent hiring of an employee or an independent contractor. Therefore, the fact that the worker was an independent contractor will not defeat the woman's claim. Instead, her claim will fail because the worker was not acting in performance of his employment or job duties when the collision occurred.

(Choice C) Although the plumbing company fitted the worker's truck with a pipe rack, it only paid him to drive the truck between the warehouse and construction sites—not to and from work. And since the collision occurred while he was driving to work (not while performing job duties), the company is not liable for the woman's injury.

Educational objective:

Liability for negligent hiring arises when a defendant's failure to use reasonable care in hiring a competent worker causes the plaintiff harm—ie, there must be some causal connection between the defendant's negligence in hiring the worker, the worker's employment or job duties, and the plaintiff's harm.

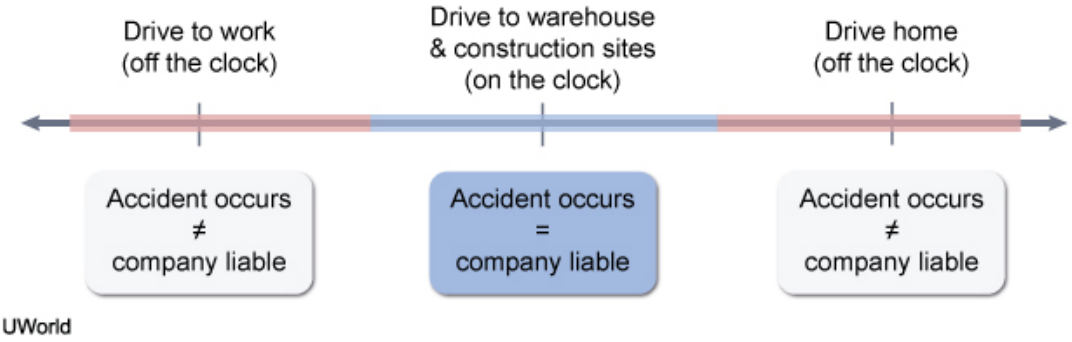
References

Restatement (Third) of Agency § 7.05 (Am. Law Inst. 2006) (negligent hiring).

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Liability for negligent hiring
(requires causal connection with employment or job duties)



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A photographer with no climbing experience fell while attempting to climb a mountain alone. He lay unconscious and critically injured on a ledge that was difficult to reach. A nearby tourist was seriously injured while trying to rescue the photographer. The tourist made a reasonable attempt to rescue the photographer, but his attempt failed, and the photographer died from his injuries before he could be reached.

The tourist brought an action against the photographer's estate for compensation for his injuries. In this jurisdiction, the traditional common law rules relating to contributory negligence and assumption of risk remain in effect.

Will the tourist prevail in his action against the photographer's estate?

A. No, because the tourist was contributorily negligent for undertaking a dangerous rescue.

B. No, because the tourist's rescue attempt failed and therefore did not benefit the photographer.

C. Yes, because the law should not discourage attempts to assist persons in helpless peril.

D. Yes, because the photographer's peril arose from his own failure to use reasonable care.

Explanation:

Persons who endanger themselves or others owe a duty of reasonable care to potential rescuers because it is foreseeable that they could be injured in a rescue attempt. Under this **rescue doctrine**, a plaintiff-rescuer can establish a prima facie negligence case by proving that:

he/she was **injured while attempting to rescue** another *and*

that person's **peril was caused by** the defendant's **failure to use reasonable care** (ie, negligence).

Here, the tourist was seriously injured while trying to rescue the photographer. The photographer's peril arose from his own failure to use reasonable care since he went mountain climbing alone and with no prior experience. Therefore, the tourist can establish a prima facie negligence case. But in this **common law jurisdiction**, the tourist is **barred from recovery if** he:

knew that the rescue attempt was dangerous and could have proceeded in a reasonable alternative manner (ie, **assumption of the risk**) *or*

acted unreasonably during the rescue attempt (ie, **contributory negligence**).

There is no evidence that the tourist could have helped the photographer in a reasonable alternative manner since he was critically injured on a ledge that was difficult to reach (no assumption of risk). And the tourist acted reasonably during the rescue attempt (no contributory negligence) **(Choice A)**. As a result, he will likely prevail in an action against the photographer's estate.

(Choices B & C) The rescue doctrine seeks to encourage (not discourage) attempts to assist persons in helpless peril. As a result, the tourist can prevail even though his reasonable rescue attempt failed and did not benefit the photographer. But the tourist must first show that the photographer's peril arose from his own negligence.

Educational objective:

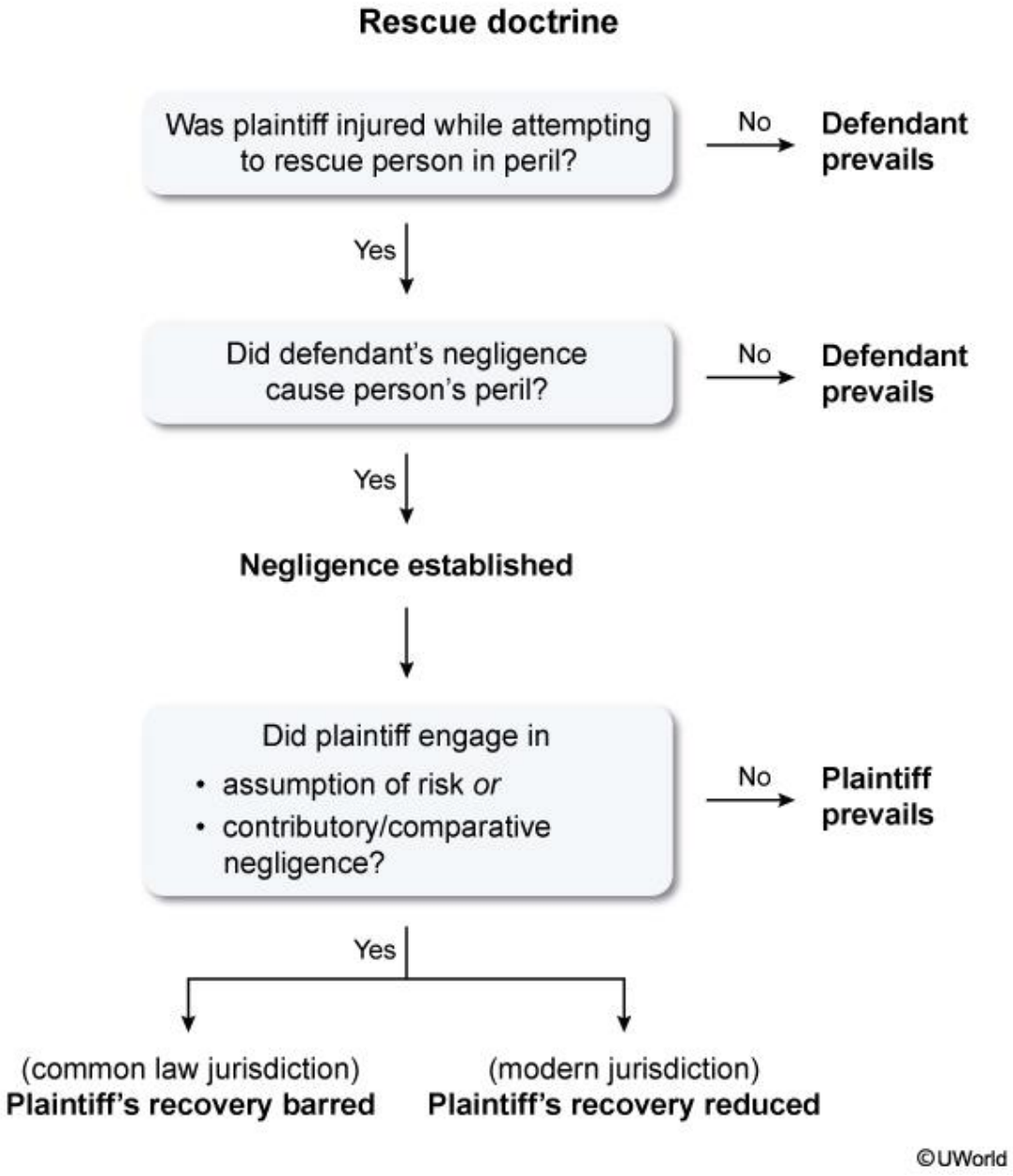
The rescue doctrine allows a plaintiff-rescuer to establish a prima facie negligence case by proving that (1) he/she was injured while attempting to rescue another and (2) that person's peril was caused by the defendant's failure to use reasonable care.

References

Restatement (Second) of Torts § 472 (Am. Law Inst. 1965) (explaining that a rescuer is not contributorily negligent for confronting danger unless the rescue attempt is unreasonable or he/she acts unreasonably).

Restatement (Second) of Torts § 496E (Am. Law Inst. 1965) (explaining that a rescuer does not voluntarily assume the risk if the defendant's tortious conduct left no reasonable alternative to avert harm to the rescuer or another).

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A door attendant at a downtown hotel also served as the hotel's security guard. He regularly exchanged greetings with a woman who passed the hotel on her way to and from work. One day, the attendant saw a first-time hotel guest exit the hotel and proceed down the street behind the woman. Just after the two left the hotel's property, the attendant observed the guest reach into the woman's purse and remove her wallet. The attendant later confessed to the woman that he had failed to act despite seeing the guest take the wallet.

The woman has brought a negligence action against the hotel to recover the money taken from her by the guest.

Which of the following best describes the standard by which the attendant's conduct as an employee of the hotel should be judged in this matter?

A. As a security guard employed by an innkeeper, the attendant had a duty to prevent the hotel guest from harming the woman.

B. As an employee of a business with no special relationship with the woman, the attendant was not under an affirmative duty to act.

C. As an employee of a property owner, the attendant had a duty to warn the woman of the concealed danger that the pickpocketing guest presented.

D. As an employee of an innkeeper, the attendant was required to act with the highest degree of care with regard to the woman and is responsible for even slight negligence.

Explanation:

Special relationships

imposing duty to protect others

Parent/child
Hospital/patient
Employer/employees
Shopkeeper/business invitees
Common carrier/passengers
Custodian/person in custody
Innkeeper/guests
Mnemonic: **P**lease **H**elp **E**liminate **S**afety **C**oncerns **C**ausing **I**njuries

A person generally has **no duty to protect** another from harm. However, a person in a **special relationship** with another may have an **affirmative duty** to **use reasonable care** to protect the other from harm arising within the **scope of that relationship**. For example, an **innkeeper** has a duty to use reasonable care to **protect its guests** while they are **on the premises**.

Here, the hotel (innkeeper) did not have a special relationship with the woman, who was merely a passerby and not a guest at the hotel. Consequently, neither the hotel nor its employees had an affirmative duty to protect her from the pickpocketing guest. Therefore, the attendant's conduct as an employee of the hotel should be judged by this standard.

(Choice A) A person with the actual ability and authority to control another may have a duty to use reasonable care to prevent that person from injuring others.* But here, even as the hotel's security guard, the attendant had no control over a hotel guest off the premises.

*This duty generally is only imposed if the person in control knows or should know that the other is likely to commit the injuring act. And here, the attendant had no reason to know that the first-time guest was a pickpocket.

(Choice C) Property owners (the hotel) generally owe no duty to persons *off* the premises (the woman) unless the owner or someone under his/her control conducts an activity on the premises that poses an unreasonable risk of harm to persons off the premises. Here, the pickpocketing guest was not under the hotel's control and did not act on the hotel's premises.

(Choice D) At common law, innkeepers and their employees owed the highest duty of care to their guests and could be liable for even slight negligence. But here, the woman was not the hotel's guest. And even if she were, most courts today hold that an innkeeper and its employees are liable only for ordinary negligence.

Educational objective:

A person in a special relationship with another (eg, an innkeeper with its guests) has a duty to use reasonable care to protect the other from harm arising within the scope of that relationship.

References

Restatement (Third) of Torts: Phys. & Emot. Harm § 40 (Am. Law Inst. 2012) (duty based on special relationship).

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A construction company was digging a trench for a new sewer line in a street in a high-crime neighborhood. During the course of the construction, there had been many thefts of tools and equipment from the construction area. One night, the construction company's employees neglected to place warning lights around the trench. A delivery truck drove into the trench and broke an axle. While the truck driver was looking for help, thieves broke into the truck and stole $350,000 worth of goods.

The delivery company sued the construction company to recover for the $350,000 loss and for the damage to its truck. The construction company has stipulated that it was negligent in failing to place warning lights around the trench and admits liability for damage to the truck, but it denies liability for the loss of the goods.

On cross-motions for summary judgment on the claim for the goods, how should the court rule?

A. Deny both motions, because there is evidence to support a finding that the construction company should have realized that its negligence could create an opportunity for a third party to commit a crime.

B. Grant the construction company's motion, because no one could have foreseen that the failure to place warning lights could result in the loss of a cargo of valuable goods.

C. Grant the construction company's motion, because the criminal acts of third persons were a superseding cause of the loss.

D. Grant the delivery company's motion, because but for the construction company's actions, the goods would not have been stolen.

Explanation:

Summary judgment should be granted when (1) there is no genuine issue of material fact and (2) no reasonable jury could find for the opposing party—thereby entitling the movant to judgment as a matter of law. Such motions are often brought in **negligence** claims, which require proof of the following elements: duty, breach, **causation**, and damages. The causation element consists of two prongs:

actual cause – the plaintiff's harm would not have occurred **but for** the defendant's negligence *and*

proximate cause – the plaintiff's harm was a ***foreseeable*** **consequence** of the defendant's negligence.

The proximate-cause prong **cannot be satisfied** if there was a **superseding cause**—ie, an ***unforeseeable*** act or force that (1) occurred after the defendant's negligence and (2) contributed to the plaintiff's harm. And though criminal acts of third parties are generally unforeseeable, these acts are not superseding causes if the defendant had reason to know that his/her conduct would increase the risk that such acts would occur.

Here, the construction company admitted liability for the damaged truck but argued that it was not liable for the stolen goods because the theft was a superseding cause. Since the construction site was in a high-crime neighborhood with many prior thefts, it is possible (but not certain) that the construction company should have known that its negligence could create an opportunity for a third party to commit a crime. As a result, there is a genuine issue of material fact that warrants the denial of both motions **(Choices B & C)**.

(Choice D) The goods would not have been stolen from the disabled truck but for the construction company's negligence (actual cause). However, this alone does not justify summary judgment for the delivery company since it must also establish proximate cause.

Educational objective:

Criminal acts of third parties are a superseding cause unless the defendant had reason to know that his/her negligence would increase the risk that such acts would occur.

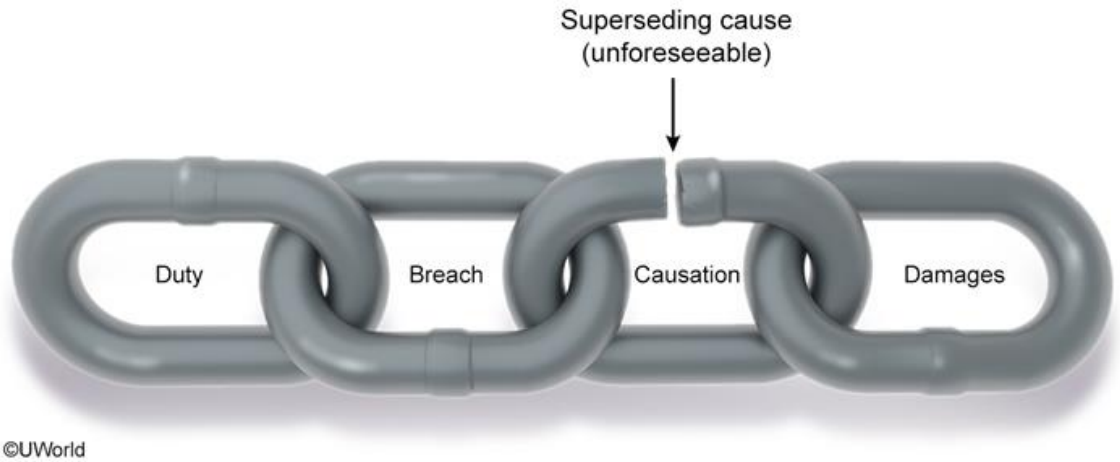
References

Restatement (Second) of Torts § 448 (Am. Law Inst. 1965) (explaining when a criminal act of a third party constitutes a superseding cause in a negligence action).

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Chain of causation for negligence



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A man and his friend, who were both adults, went to a party. The man and the friend had many drinks at the party and became legally intoxicated. They decided to play a game of chance called "Russian roulette" using a gun loaded with one bullet. As part of the game, the man pointed the gun at the friend and, on her command, pulled the trigger. The man shot the friend in the shoulder.

The friend has brought a negligence action against the man. Traditional defenses based on the plaintiff's conduct apply. What is likely to be the dispositive issue in this case?

A. Whether the friend could validly consent to the game.

B. Whether the friend was also negligent.

C. Whether the game constituted a joint venture.

D. Whether the man was legally intoxicated when he began playing the game.

Explanation:

Contributory neligence

(defense to negligence)

Traditional*contributory*negligence jurisdiction	Plaintiff's negligence completely bars recovery
Pure*comparative*negligencejurisdiction*	Plaintiff's negligence reduces recovery by plaintiff's proportionate fault (eg, plaintiff 90% at fault can recover 10% of damages)

*Default rule on MBE.

In **traditional common law** jurisdictions (as seen here), **contributory negligence** is a **complete defense** to negligence when the plaintiff's failure to use reasonable care contributed to his/her injury. Here, the man negligently shot his friend during a game of Russian roulette. But the friend cannot recover from the man if she was contributorily negligent in becoming intoxicated at the party and agreeing to play the game. Therefore, whether the friend was also negligent is likely to be the dispositive issue in her negligence action against the man.

(Choice A) Consent may be a defense to negligence if the plaintiff assumed the risk of harm. Here, the friend did not assent to a liability waiver (no express assumption). And since the friend was intoxicated, she may not have understood and voluntarily accepted the risk of Russian roulette (no implied assumption). As a result, the friend's case is more likely to turn on whether she was contributorily negligent.

(Choice C) When multiple tortfeasors participate in a joint venture (eg, playing Russian roulette together), they are jointly and severally liable for any harm caused to *nonparticipants*. But the existence of a joint venture is irrelevant when the participants harm *each other*.

(Choice D) Voluntarily intoxicated persons are held to the same "reasonable person" standard as sober persons in negligence actions, so the man's intoxication would not shield him from liability in this case.

Educational objective:

Under traditional common law rules, contributory negligence is a complete defense to negligence if the plaintiff's failure to use reasonable care contributed to his/her harm.

References

Restatement (Second) of Torts § 467 (Am. Law Inst. 1965) (explaining that a plaintiff's contributory negligence is a complete bar to recovery for negligence).

Restatement (Second) of Torts § 496D (Am. Law Inst. 1965) (explaining that implied assumption of the risk is only a defense if the plaintiff understood the unreasonable character of the risk).

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A candidate for state senate campaigned by going door-to-door throughout his community. One day, the candidate visited the home of his wife's childhood friend. The friend was having an in-ground swimming pool installed in her backyard. After digging a deep hole, the pool contractor had temporarily suspended work due to a heavy rainstorm and had left the site without installing safety fencing around the hole.

As the candidate and the friend were talking, they saw the friend's five-year-old child fall into the hole. The candidate ran outside, jumped into the hole, and pushed the child to safety. However, the candidate fell backward into the hole and lay submerged for several minutes in standing water left by the rainstorm. He was rushed to the hospital where he lingered in and out of consciousness for two months and then died. In a statement to the press, the pool contractor falsely asserted that the candidate and the friend were at fault because they were "carrying on an extramarital affair instead of supervising the child."

The personal representative of the candidate's estate has brought a survival action against the pool contractor and seeks to recover damages for the candidate's medical expenses, loss of income, and pain and suffering, as well as for harm to the candidate's reputation as a result of defamation.

For which of the following is the personal representative LEAST likely to recover?

A. Loss of income.

B. Medical expenses.

C. Pain and suffering.

D. Reputational harm.

Explanation:

Civil actions for tortious death

Type of action	Proper plaintiff	Recoverable damages*
Survival	Decedent's personal representative	Damages suffered by decedent prior to death Eg, medical expenses, pain & suffering
Wrongful death	Decedent's spouse, next of kin, or personal representative	Damages suffered by spouse or next of kin as a result of decedent's death (no pain & suffering) Eg, loss of income, loss of companionship

*If jurisdiction allows both actions, double recovery not permitted.

At common law, a tort action was extinguished upon the death of either the tortfeasor or the victim. But most states today have enacted **survival statutes** that enable the **personal representative** of a decedent's estate to pursue **any claims** the **decedent would have had** at the **time of death**. This includes claims for damages resulting from both personal injury and property damage, such as:

the decedent's **medical expenses** from the time of injury to the time of death **(Choice B)**
the decedent's **loss of income** during this time **(Choice A)** *and*
the **pain and suffering** the decedent experienced as a result of his/her injury **(Choice C)**.

However, most states **do not allow** survival of tort actions involving **intangible personal interests**—eg, defamation, invasion of privacy. The reason is that these actions are considered too personal to survive the decedent's death. Therefore, the candidate's personal representative is *least* likely to recover for reputational harm resulting from defamation.

Educational objective:

The personal representative of a decedent's estate can bring a survival action to pursue claims the decedent would have had at the time of death, including claims for damages resulting from personal injury or property damage. But most states do not allow survival of tort actions involving intangible personal interests (eg, defamation).

References

Restatement (Second) of Contracts § 926 (Am. Law Inst. 1981) (survival actions in tort).

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A driver negligently ran over a pedestrian. A bystander witnessed the accident from across the street. The bystander ran to the pedestrian, whom the bystander did not know, and administered first aid, but the pedestrian died in the bystander's arms. The bystander suffered serious emotional distress as a result of his failure to save the pedestrian's life, but he experienced no resulting physical manifestations. The bystander has brought a negligence action against the driver.

Is the bystander likely to prevail?

A. No, because the bystander assumed the risk.

B. No, because the bystander had no familial or other preexisting relationship with the pedestrian.

C. Yes, because danger invites rescue.

D. Yes, because the bystander was in the zone of danger.

Explanation:

Negligent infliction of emotional distress (NIED) has three theories of recovery: (1) zone of danger, (2) bystander, and (3) special situation. Liability under the **bystander theory** arises when:

the defendant **negligently** causes serious **bodily injury** to a **close relative** of the plaintiff–bystander

the plaintiff **contemporaneously perceives** (ie, sees or hears) that event *and*

the plaintiff consequently suffers **serious emotional distress**.

Here, the driver negligently caused the pedestrian serious bodily injury when the driver ran over the pedestrian. And though the bystander witnessed that accident, he will not prevail in an NIED claim because the pedestrian was a stranger—not the bystander's close relative.

(Choice A) *Assumption of risk* is an affirmative defense to liability for negligence or recklessness when the plaintiff voluntarily exposed himself to a known or obvious risk of harm. Here, the bystander may have assumed the risk of emotional harm by voluntarily administering first aid to the pedestrian. But since the bystander cannot prove all the elements of an NIED claim, the merits of this defense are irrelevant.

(Choice C) "Danger invites rescue" refers to the *rescue doctrine*, which applies when a defendant endangers a person and a rescuer attempts to aid that person. The defendant is liable for the rescuer's resulting physical harm. Although the bystander attempted to aid the pedestrian and suffered *emotional* distress, the bystander cannot recover under the rescue doctrine because he suffered no *physical* harm.

(Choice D) Liability under the *zone-of-danger* theory of NIED arises when (1) the defendant's negligent conduct places the plaintiff in danger of immediate bodily harm and (2) that danger causes the plaintiff serious emotional distress. Here, the bystander cannot recover under this theory since he witnessed the accident from across the street and therefore was not in danger of immediate bodily harm.

Educational objective:

A defendant is liable for negligent infliction of emotional distress under the *bystander theory* when (1) the defendant negligently causes serious bodily injury to the plaintiff's close relative, (2) the plaintiff contemporaneously witnesses that event, and (3) the plaintiff consequently suffers serious emotional distress.

References

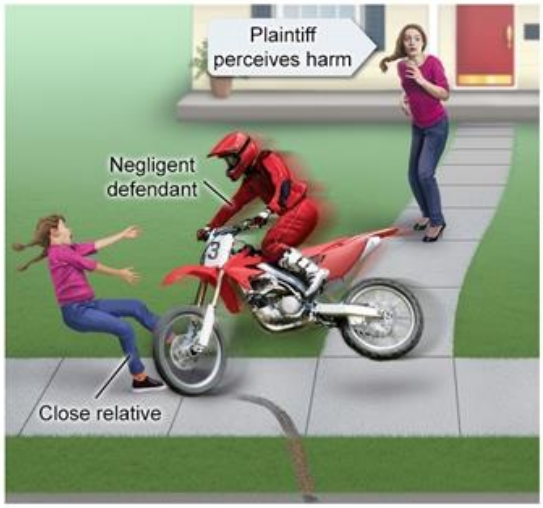
Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 48 (Am. Law Inst. 2012) (bystander theory of recovery for negligent infliction of emotional distress).

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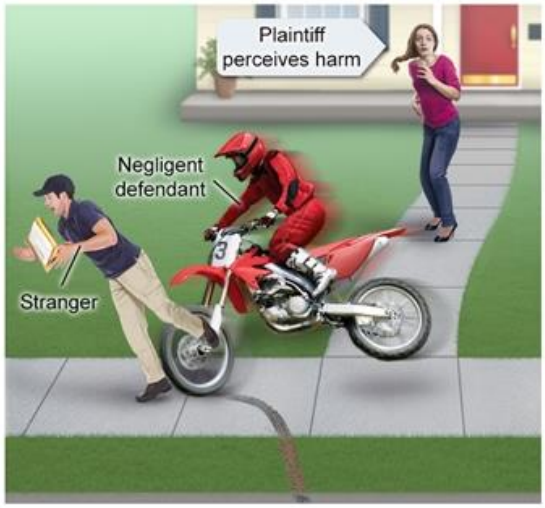
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Bystander recovery for negligent infliction of emotional distress (NIED)

NIED



No NIED



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A pregnant woman, whose due date for the delivery of her viable fetus was less than a month away, was walking in a parking lot and looking at her cell phone. She was hit by a car driven by a police officer, who had just received word of an emergency and carelessly failed to see the woman. Several days later, the woman gave birth to a child who suffered neurological damage as a result of the accident.

The woman, on behalf of her child, brought a negligence suit against the police officer for damages associated with the physical injuries suffered by the child. The woman and the police officer were found to be equally at fault for the accident.

The jurisdiction has adopted a modified comparative fault statute that bars a plaintiff from recovery against a defendant whose fault is less than or equal to that of the plaintiff.

In the child's suit against the police officer, will the child be likely to recover for her injuries?

A. No, because the child was in utero at the time of the accident.

B. No, because the firefighters' rule applies to police officers.

C. Yes, because the child was viable at the time of the accident.

D. Yes, because the woman was not at greater fault than the police officer.

Explanation:

Scope of defendant's duty of care

Cardozo view (majority rule)	Duty owed only to persons who might be foreseeably harmed as a result of defendant's negligence (ie, persons within zone of foreseeable harm)
Andrews view (minority rule)	Duty owed to everyone on earth if anyone might be foreseeably harmed as a result of defendant's negligence

To recover in a **negligence action**, the plaintiff must establish four elements: duty, breach, causation, and damages. The majority rule is that the defendant owes a **duty of care** to the plaintiff only if the plaintiff is a member of the **class of persons** who might be **foreseeably harmed** as a result of the defendant's negligent conduct (sometimes called "foreseeable plaintiffs"). If a pregnant woman is a member of this class, then a duty is also owed to her **unborn child**—but **only if** the **fetus was viable** at the **time the injury occurred**.

Here, the police officer owed a duty of care to the pregnant woman because it was foreseeable that someone in the parking lot might be harmed by the police officer's negligent driving. As a result, the police officer also owed a duty to the woman's child, who was unborn (ie, in utero) but *viable* at the time of the accident **(Choice A)**. And since the police officer breached that duty by carelessly failing to see the woman and caused the child's neurological damage, the child can recover from the police officer for her injuries.*

*The result would be the same under the minority rule (Andrews view) because the scope of duty under this rule is much broader—it extends to everyone if anyone might be foreseeably harmed.

(Choice B) Although the firefighters' rule applies to police officers (and other emergency professionals), it does not excuse their negligence. Instead, it bars emergency professionals from recovering damages for injuries attributable to the special dangers of their job.

(Choice D) The woman and the police officer were equally at fault for the accident. So had the woman been the plaintiff, she could not recover under this jurisdiction's modified comparative fault statute. But the plaintiff in this action is the child—not the woman. And since a negligent parent's fault is not imputed (ie, assigned) to a child plaintiff in a suit against a third party, the woman's relative fault is of no consequence here.

Educational objective:

Under the majority rule, a duty of care is owed to any person who might be foreseeably harmed by the defendant's negligent conduct. Additionally, any duty to a pregnant woman is also a duty to her unborn, viable child.

References

Restatement (Second) of Torts § 281, cmt. c (Am. Law Inst. 1965) (explaining that an actor can only be negligent toward the class of persons who might be foreseeably harmed by his/her conduct).

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A saleswoman, who was driving at an excessive speed, applied her brakes to stop at a traffic light. Due to damp, fallen leaves, her car skidded and came to a halt perpendicular to the roadway. A delivery truck driver, who was also driving at an excessive speed and was immediately behind the saleswoman, saw her car perpendicular to the roadway. Although the truck driver had sufficient distance to come to a slow, controlled stop, he decided not to slow down but, rather, to swerve to the left in an effort to go around the saleswoman's car. Due to oncoming traffic, the space was insufficient and the delivery truck collided with the car, severely injuring the saleswoman.

The saleswoman filed a personal injury action against the truck driver in a jurisdiction in which contributory negligence is a bar to recovery.

Will the saleswoman prevail?

A. No, if the jury finds that, in speeding, the saleswoman assumed the risk.

B. No, if the jury finds that the saleswoman's conduct was in any way a legal cause of the accident.

C. Yes, if the jury finds that the truck driver had the last clear chance.

D. Yes, if the jury finds that the truck driver was more than 50% at fault.

Explanation:

Contributory negligence

(traditional common law)

General rule	Plaintiff's negligence completely bars recovery
Exception	Recovery permitted if defendant:
(last clear chance)	had last clear chance to avoid plaintiff's injury *and* failed to use reasonable care to do so

In this jurisdiction and at common law, the plaintiff's **contributory negligence**—ie, failure to use reasonable care for his/her own safety—is a **complete bar to recovery**. This is a harsh rule for plaintiffs because it ignores any negligence by the defendant. To mitigate this harshness, courts recognize an **exception** called the **last-clear-chance rule**. This rule allows a contributorily negligent plaintiff to **recover if** the **defendant** (1) had the **last clear chance** to avoid the plaintiff's injury but (2) **failed to use reasonable care** to do so.

Here, the saleswoman's negligent, excessive speeding caused her car to skid and stop in the roadway. The truck driver saw this and had sufficient distance to come to a slow, controlled stop (last clear chance). Instead, he decided to swerve in an effort to go around her car (failure to use reasonable care). As a result, the saleswoman will likely prevail in her personal injury action against the truck driver.

(Choice A) Assumption of the risk is a defense to negligence when the plaintiff voluntarily exposed him/herself to a known risk of harm. Here, although the saleswoman voluntarily exposed herself to the risks of her *own* excessive speeding, she did not voluntarily expose herself to the *truck driver's* negligence.

(Choice B) The saleswoman's conduct may have been a legal (ie, proximate) cause of the accident if it was a foreseeable consequence of her excessive speed. But this would not preclude her recovery since the accident was also a foreseeable consequence of the truck driver's negligence and he had the last clear chance.

(Choice D) Had this been a modified *comparative* negligence jurisdiction, the saleswoman's (plaintiff's) negligence would completely bar recovery unless the truck driver (defendant) was more than 50% at fault. But comparative fault is irrelevant in this traditional *contributory* negligence jurisdiction.

Educational objective:

The last-clear-chance rule allows a plaintiff to recover despite his/her contributory negligence if the defendant (1) had the last clear chance to avoid the plaintiff's injury and (2) failed to use reasonable care to do so.

References

Restatement (Second) of Torts §§ 479–80 (Am. Law Inst. 1965) (explaining that a contributorily negligent plaintiff can still recover if the defendant had the last clear chance to avoid the plaintiff's harm).

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A patron at a diner suffered a severe allergic reaction after her waiter accidently served her the wrong meal. A doctor sitting at the adjoining booth noticed that the patron was struggling to breathe. However, the doctor did not provide any medical assistance because he had just completed a hectic 12-hour shift and wanted to enjoy his meal. The patron's throat swelled, and she eventually passed out. Later, the patron died due to oxygen deprivation. It was determined that swift medical attention would have prevented her death.

The patron's spouse has brought a wrongful death action against the doctor in a jurisdiction that has enacted a Good Samaritan statute.

Will the spouse likely recover?

A. No, because the doctor had no duty to aid the patron.

B. No, because the patron assumed the risk of eating in the diner.

C. Yes, because a reasonable doctor would have assisted the patron.

D. Yes, because the jurisdiction has enacted a Good Samaritan statute.

Explanation:

A wrongful death action allows a decedent's spouse, next of kin, or personal representative to sue a defendant for wrongfully causing the decedent's death. These actions are typically based on **negligence**—ie, a breach of the defendant's duty to use reasonable care that caused physical harm. However, a defendant generally has **no duty to aid** a person facing a foreseeable risk of physical harm **unless**:

the **defendant's conduct created that risk** *or*

the defendant and that person share a special relationship.

Here, the patron suffered a severe allergic reaction while she was eating at a diner. Although swift medical attention would have saved her life, the doctor sitting at an adjoining booth had no duty to aid her since his conduct did not create this risk and they did not share a special relationship. Therefore, the patron's spouse likely will not recover from the doctor.*

*However, the patron's spouse may be able to recover from the diner since one of its employees created the risk by accidently serving the patron the wrong meal and a special relationship existed between the patron and the diner.

(Choice B) Assumption of the risk is a defense that reduces or bars recovery if the injured person voluntarily exposed him/herself to a known risk of harm. This defense does not apply here because the patron did not know that the wrongly served meal would cause an allergic reaction.

(Choice C) The fact that a reasonable doctor would have assisted the patron does not mean that the doctor here had a duty to do so. That is because the law generally does not require a defendant to aid another unless the defendant created the foreseeable risk of physical harm or had a special relationship with that person.

(Choice D) Many states have enacted Good Samaritan laws that relieve medical professionals of malpractice liability for voluntarily rendering emergency first aid. These laws are designed to *encourage* medical professionals to provide such assistance without the threat of a lawsuit, but they do not create a *duty* to aid.

Educational objective:

A defendant generally has no duty to aid a plaintiff who is at risk of physical harm unless the defendant's conduct created that risk OR the defendant and the plaintiff share a special relationship.

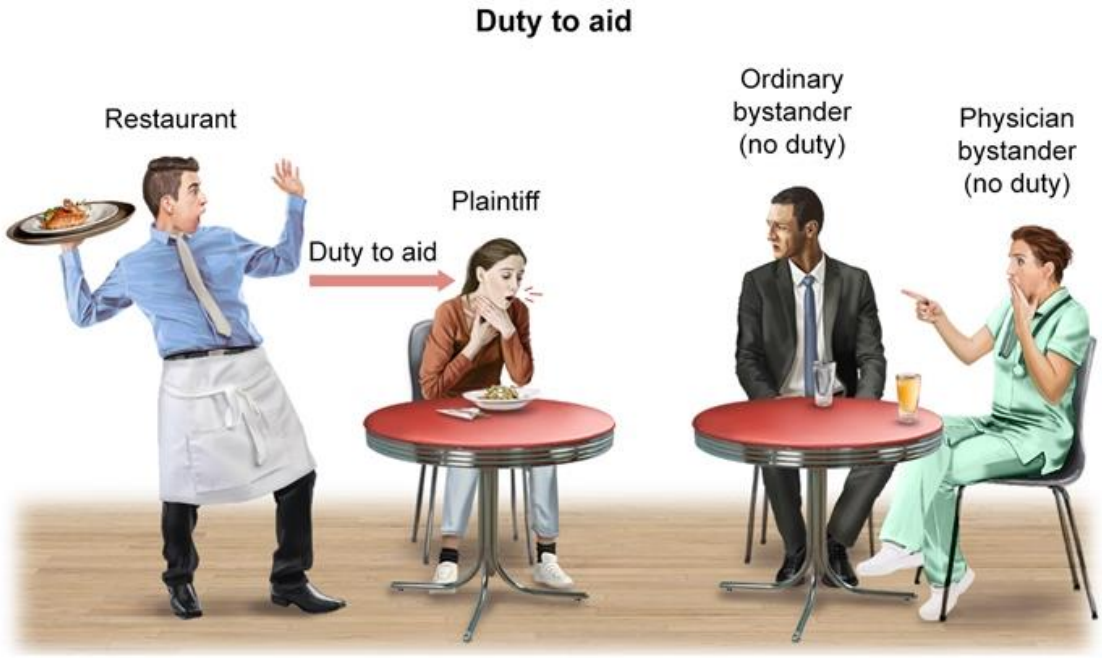
References

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 6 (Am. Law Inst. 2010) (negligence liability).

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 7 (Am. Law Inst. 2010) (general duty requirement).

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 37 (Am. Law Inst. 2012) (no duty to aid).

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While driving his pickup truck with a friend riding in the open bed, the driver swerved, throwing his friend to the pavement. The friend sustained severe injuries. The friend had often ridden in the open bed of the truck, and on some of those occasions the driver had swerved to frighten his friend. The friend sued the driver to recover both compensatory damages for his injuries and punitive damages.

Which cause of action would NOT permit the friend to recover punitive damages?

A. Assault.

B. Battery.

C. Negligence.

D. Recklessness.

Explanation:

Damages in tort law fall into three main categories:

Compensatory (ie, actual) damages – money awarded to compensate the plaintiff for his/her **actual loss or harm**

Nominal damages – a **trivial sum** of money (eg, $1) awarded to vindicate the plaintiff's rights when no actual loss or harm occurred

Punitive (ie, exemplary) damages – money awarded to **punish** the defendant for **outrageous, malicious, or evil conduct** and to **deter** the defendant and others from engaging in **similar conduct** in the future

Compensatory damages are available for any tort. But nominal and punitive damages are only available for torts involving intentional conduct (eg, assault, battery) or reckless conduct (eg, reckless driving) **(Choices A, B & D)**.* A plaintiff cannot recover **nominal damages** for negligence since this claim requires proof of actual harm. **Punitive damages** are also ***not*** **recoverable** for **negligence** because these damages are designed to punish and deter outrageous, malicious, or evil conduct—not unreasonable conduct.

*Punitive damages are prohibited in Nebraska and extremely limited in Louisiana, Massachusetts, Michigan, New Hampshire, and Washington.

Educational objective:

Punitive damages are imposed to punish and deter outrageous, malicious, or evil conduct. As a result, punitive damages may be awarded for torts involving intentional or reckless conduct. But these damages cannot be awarded for negligence, which involves mere unreasonable conduct.

References

Restatement (Second) of Torts § 908 cmt. b (Am. Law Inst. 1979) (availability of punitive damages).

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Recoverable personal-injury damages

	Intentional torts	Reckless torts	Negligence
Compensatory damages	✓	✓	✓
Nominal damages	✓	✓	
Punitive damages	✓	✓	

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A shopping mall located near an interstate highway exit is surrounded by a paved parking area. Each entrance to the parking area has a sign reading, "City Ordinance: NO TRESPASSING from midnight to 6 a.m."

A weary cross-country traveler had begun to doze while driving. Concerned that he would cause a car accident, he looked for a place to sleep. At 2:00 a.m., the traveler saw the shopping mall from the road and exited the highway. In his exhausted state, the traveler failed to notice the city ordinance signs. The traveler pulled into the open gates of the parking area to rest and immediately fell asleep.

An hour later, the traveler suffered a serious personal injury when a light pole fell onto his car. Unbeknownst to the mall owner, a mall patron had backed her truck into the pole the previous day. The damage to the light pole was not readily visible upon a reasonable inspection. However, an inspection by the maintenance company hired by the mall owner would have revealed that the pole was dangerously off-balance.

The traveler sued the mall owner in a negligence action for damages stemming from personal injuries and property damage suffered when the light pole fell.

In a jurisdiction that follows the traditional approach regarding a land possessor's duty to land entrants, which of the following is likely to be the mall owner's best defense?

A. The mall owner did not know of the risk posed by the light pole.
B. The mall owner could not reasonably foresee that the traveler would enter the parking area.
C. The traveler assumed the risk of injury when he entered the parking area at a prohibited time.
D. The traveler's violation of the ordinance prohibiting trespassing was negligence per se.

Explanation:

To be liable for negligence, the defendant must have breached a duty owed to the plaintiff. Under the traditional approach, **land possessors** owe no duty to unknown or unanticipated trespassers.* But they do owe a **limited duty** to **known or anticipated trespassers** to:

warn the trespasser about **hidden, artificial dangers** (ie, man-made dangers) that are **known** to the land possessor **but unlikely to be discovered** by the trespasser *and*

use reasonable care while conducting activities on their land.

Here, the traveler trespassed when he entered the parking lot at 2:00 a.m. because entry is prohibited between midnight and 6:00 a.m. Not only was his presence foreseeable, it was anticipated—as evidenced by the "no trespassing" sign at each entrance—so the mall owner owed the traveler a limited duty of care **(Choice B)**. But since the mall owner did not know of the risk posed by the light pole, the mall owner did not breach any duty owed to the traveler and so cannot be liable for negligence. Therefore, that is the mall owner's best defense.

*The traditional approach is followed in about half the jurisdictions. The other half follow the modern approach, under which land possessors owe a duty of reasonable care to all land entrants (except flagrant trespassers).

(Choice C) Implied assumption of the risk arises when a plaintiff voluntarily encounters a known, specific risk. Here, the traveler did not know of the risk posed by the light pole. But even if he had, in most comparative fault jurisdictions (the default rule on the MBE), a plaintiff's assumption of the risk merely reduces recovery.

(Choice D) The traveler's violation of the ordinance was not negligence per se since the harm he suffered as a result of the damaged light pole was likely not of the type that the "no trespassing" ordinance was designed to prevent. Even if it were, this would only establish that he was contributorily negligent, which would reduce (but not bar) his recovery.

Educational objective:

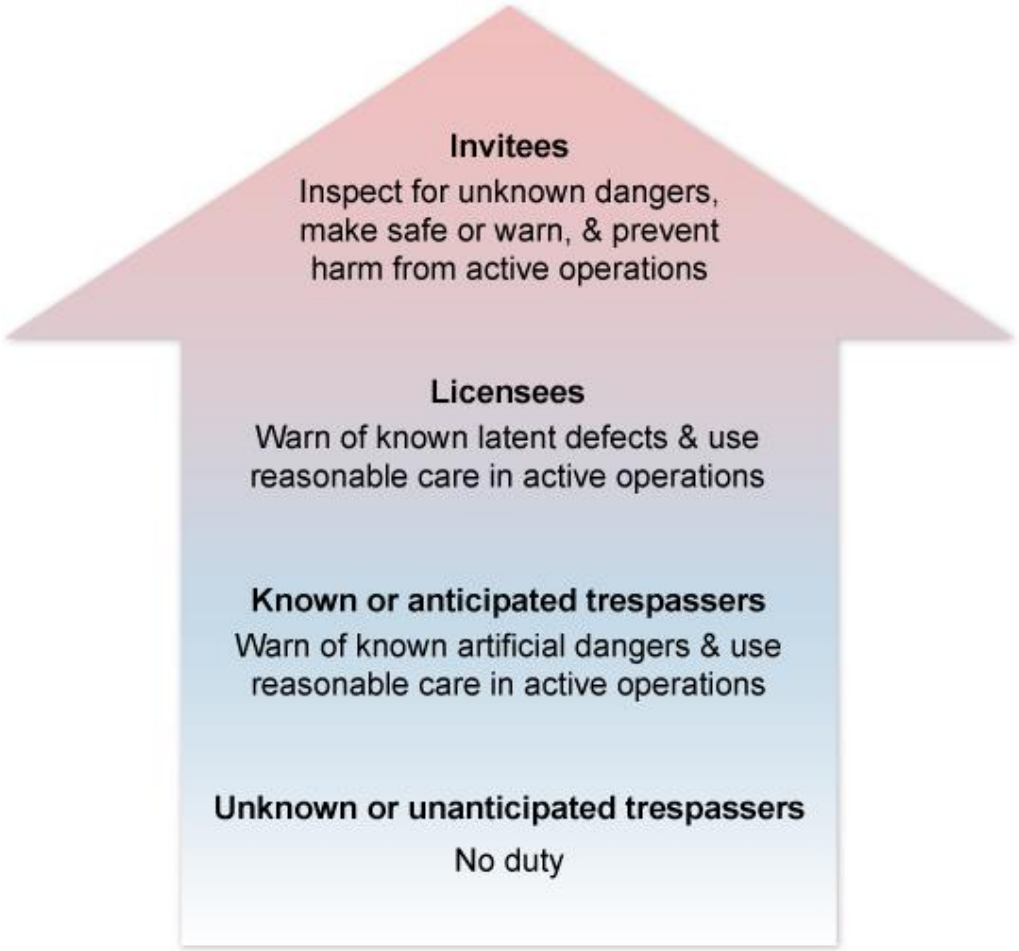
A land possessor owes a duty to known or anticipated trespassers to (1) warn them about hidden, artificial dangers that are known to the land possessor but unlikely to be discovered by trespassers and (2) exercise reasonable care while conducting activities on the land.

References

Restatement (Second) of Torts § 337 (Am. Law Inst. 1965) (duty to known trespassers).

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Land possessor's duty to land entrants



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A patient received anesthesia while giving birth. Upon awakening from the anesthesia, she discovered a severe burn on the inner portion of her right knee.

The patient has brought a medical malpractice action in which she has joined all of the physicians and nurses who exercised control over her person, the delivery room, the medical procedures, and the equipment used during the period in which she was unconscious.

The defendants have jointly moved for summary judgment. The patient has produced affidavits that establish that the applicable professional standard of care was violated.

What would be the patient's best argument against the motion?

A. At least one of the defendants had control over whatever agency or instrumentality caused the patient's injury.
B. The defendants were acting in concert.
C. The patient has produced affidavits that establish that the applicable professional standard of care was violated.
D. The patient was in no way responsible for her injury.

Explanation:

Res ipsa loquitur

(medical malpractice claims)

Applicability	Plaintiff suffered unusual injury while unconscious during medical treatment At least one member of medical team had control over patient's body or instrumentality that caused injury
Effect	Creates inference that every member of medical team was negligent Places burden on each member to establish that he/she was not negligent

Medical malpractice claims are based on negligence and generally require proof that the defendant violated a professional standard of care. But this can be difficult to prove when a complex procedure (eg, surgery) was performed by a team of medical professionals. In that case, the doctrine of **res ipsa loquitur** lets the fact finder **infer** that *every* member of the medical team was **negligent** when:

the patient suffered an **unusual injury** (ie, one that is usually caused by negligence) while **unconscious** and in the **course of medical treatment** *and*

at least one member of the medical team had **control over** the **patient's body or instrumentalities** that might have caused the patient's injury.

Here, the patient sued her medical team for a severe burn that she discovered upon awakening from anesthesia. And though the patient has affidavits showing that the professional standard of care was violated, she cannot identify which defendant was negligent **(Choice C)**. But since at least one of the defendants had control over whatever instrumentality caused her unusual injury, the negligence of *every* defendant can be inferred. Therefore, this is the patient's best argument against the defendants' motion for summary judgment.

(Choice B) Tortfeasors who act in concert (ie, by agreement) and injure the plaintiff are jointly and severally liable for the entire injury. But here, there is no evidence that the defendants were acting in concert, and it is possible that a single defendant caused the patient's burn.

(Choice D) The patient was not responsible for her injury since she was anesthetized when it occurred. But her lack of responsibility does not prove that someone on her medical team was negligent.

Educational objective:

Under the doctrine of res ipsa loquitur, it can be inferred that every member of a medical team was negligent when (1) the patient suffered an unusual injury while unconscious during medical treatment and (2) at least one member of the team had control over the patient's body or instrumentalities that might have caused the injury.

References

Restatement (Second) of Torts § 328D (Am. Law Inst. 1965) (explaining when a defendant's negligence can be inferred based on the type of accident that injured the plaintiff).

Ybarra v. Spangard, 25 Cal. 2d 486, 494 (1944) (holding that all defendants who control an unconscious patient's body while the patient suffers unusual injuries are subject to an inference of negligence).

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An eight-year-old boy sometimes rode his bicycle down his driveway into a busy highway while unsupervised. The boy's parents were aware of this behavior but did nothing to stop it. One day, a driver had to stop her car suddenly to avoid colliding with the bike. Because of the sudden stop, the driver's two-year-old daughter, who was sitting on the seat without any restraint, was thrown into the dashboard and injured. Had the daughter been properly restrained in a baby car seat, as required by a state safety statute of which her mother was aware, she would not have been injured.

In an action brought on the daughter's behalf against the eight-year-old boy's parents for her injuries, will she prevail?

A. No, because parents are not vicariously liable for the negligent acts of their children.
B. No, because the daughter's injury was attributable to the driver's knowing violation of a safety statute.
C. Yes, because the boy riding into the highway was negligent and the proximate cause of the daughter's injuries.
D. Yes, because the boy's parents knew that he sometimes drove into the highway, and they took no steps to prevent it.

Explanation:

Special relationships

imposing duty to control others

Parent/Child
Mental health professional/Patient
Employer/Employee
Custodian/Prisoner
Mnemonic: **P**lease **M**ake **E**veryone **C**areful

A defendant generally has no duty to control another's conduct unless the parties have a special relationship. Since parents and children have a special relationship, **parents** have a **duty to exercise reasonable care to prevent** their minor child from causing **foreseeable harm to others**. Therefore, parents are liable for **negligence** if they breach this duty and cause the plaintiff harm.

Here, the parents had a duty to use reasonable care to prevent their eight-year-old son from harming others since they knew that he sometimes rode his bicycle into the highway (ie, it was *foreseeable* that he might harm others). They breached that duty when they failed to take reasonable steps to prevent their son from doing so (eg, by supervising him). And since their negligence caused (at least in part) the daughter's injuries, she will prevail.

(Choices A & C) Parents are generally not vicariously liable for their child's negligence unless the child was acting as their agent (ie, with the authority to act on their behalf). Since there is no evidence that the boy was acting as his parents' agent, they are not *vicariously* liable for his negligence—even though that negligence was a cause of the daughter's injuries. However, the parents are still *directly* liable for their own negligence.

(Choice B) Under the doctrine of joint and several liability, multiple tortfeasors can be liable together or separately for the plaintiff's entire harm. Here, the daughter's injury is attributable to multiple tortfeasors—the driver who knowingly violated a safety statute and the negligent parents. Therefore, the daughter could seek recovery for all her injuries from the driver *and/or* the parents.

Educational objective:

Parents owe a duty to exercise reasonable care to prevent their minor child from causing foreseeable harm to others.

References

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 3 (Am. Law Inst. 2010) (negligence defined).

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 41 (Am. Law Inst. 2012) (parental duty to control child).

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A pedestrian who was blind took her guide dog to the veterinarian for a checkup. While she was waiting, she decided to get a coffee at the coffee shop across the street from the veterinarian's office. Without the assistance of her guide dog, the pedestrian left the veterinarian's office. She was able to find the crosswalk because it was just outside the entrance to the office. Once there, she pressed the crosswalk button on the light post. When the audible pedestrian signal indicated that it was safe to cross the street, the pedestrian stepped out into the crosswalk. Another person walking in the crosswalk accidentally bumped into the pedestrian, causing the pedestrian to unknowingly veer out of the crosswalk and into oncoming traffic. At the same time, the plaintiff was driving his car toward the pedestrian. In order to avoid hitting the pedestrian, the plaintiff swerved into a lamppost. The plaintiff sustained injuries as a result of the accident.

The plaintiff has filed a negligence action against the pedestrian to recover damages for his injuries.

Which of the following standards will the court apply to the pedestrian's conduct?

A. Whether the pedestrian acted in good faith when she crossed the street without her guide dog.
B. Whether the pedestrian exercised the care of a reasonably careful blind person.
C. Whether the pedestrian exercised the care of a reasonably prudent person under the circumstances.
D. Whether the pedestrian used her best efforts to safely cross the street without her guide dog.

Explanation:

Standards of care for negligence

Adult	Must act in same manner as ordinary, reasonable adult in similar circumstances
	Standard adjusted for physical disabilities, superior skill & knowledge, involuntary intoxication
	Standard not adjusted for mental & emotional disabilities, voluntary intoxication
Professional	Must demonstrate same knowledge, skill & care as another professional in similar community
	National (not community) standard applied to medical specialists*
Child	Must act in same manner as reasonable child of same age, intelligence & experience
	Adult standard applied to children engaged in dangerous adult activity
	Children under five years old incapable of negligence

*A modern trend applies a national standard of care to *all* physicians.

The **standard of care** most often imposed in negligence cases is that of a **reasonably prudent person** under the circumstances. A defendant's *mental or emotional* disabilities are not considered in determining whether conduct was negligent unless the defendant is a child. This means that the conduct of a defendant with a mental disability will be measured by the standard of someone of ordinary intelligence and knowledge.

However, a defendant's particular *physical* characteristics (eg, blindness) are considered. This means that the conduct of a **defendant with a physical disability** will be measured by the standard of a **reasonably careful person with the same disability**. Therefore, the standard that the court will apply to the pedestrian's conduct is whether she exercised the care of a reasonably careful blind person **(Choice C)**.

(Choices A & D) The standard of care for negligence is an objective one, measured by what a reasonably prudent person with the same physical characteristics would have done. Whether a particular defendant acted in good faith or used his/her best efforts is irrelevant.

Educational objective:

In negligence cases, the conduct of a defendant with a physical disability (eg, blindness) will be measured by the standard of a reasonably careful person with the same disability.

References

Restatement (Third) of Torts: Liability for Physical and Emotional Harm § 11 (2010) (standard of care for persons with a disability).

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A firstborn child was examined as an infant by a doctor who was a specialist in the diagnosis of speech and hearing impairments. Although the doctor should have concluded that the infant was totally deaf due to a hereditary condition, the doctor negligently concluded that the infant's hearing was normal. After the diagnosis, but before they learned that the infant was in fact deaf, the parents conceived a second child who also suffered total deafness due to the hereditary condition.

The parents claim that they would not have conceived the second child had they known of the high probability of the hereditary condition. They have sought the advice of their attorney regarding which negligence action against the doctor is most likely to succeed.

What sort of action against the doctor should the attorney recommend?

A. A medical malpractice action seeking damages on the second child's behalf for expenses related to his deafness, on the ground that the doctor's negligence caused him to be born deaf.

B. A wrongful birth action by the parents for expenses they have incurred due to the second child's deafness, on the ground that but for the doctor's negligence, they would not have conceived the second child.

C. A wrongful life action by the parents for expenses for the entire period of the second child's life, on the ground that but for the doctor's negligence, the second child would not have been born.

D. A wrongful life action on the second child's behalf for expenses for the entire period of his life, on the ground that but for the doctor's negligence, he would not have been born.

Explanation:

Negligence claims for wrongfully causing conception, birth, or life

Type of claim	Description	Damages
Wrongful pregnancy/conception	Parent's claim for birth of healthy but unwanted child Eg, negligently performed vasectomy, defective contraceptive device	Cost of defective procedure/device Pregnancy/delivery expenses Cost of remedial measures Emotional distress
Wrongful birth	Parent's claim for birth of unhealthy child Eg, doctor failed to disclose information that would have led parent to avoid or terminate pregnancy	Majority view: Cost of accommodating child's special needs minus benefit of having child Pain & suffering Emotional distress Minority view: no recovery
Wrongful life	Unhealthy child's claim for unwanted life Eg, disabled child would not have been born absent physician's negligence	Majority view: no recovery Minority view: cost of accommodating child's medical needs

A **negligence** action based on a theory of **wrongful birth** can only be brought by a parent and requires proof that:

the parent and defendant had a **patient-doctor relationship** (duty)

the defendant negligently **failed to diagnose or inform** the parent of the substantial risk that his/her future child may suffer from a **birth defect** (breach)

had the parent known about that risk, the **child would not have been conceived or born** (causation) *and*

the parent suffered **monetary loss** due to the additional care and treatment of the child (damages).

Here, the doctor negligently failed to conclude that the parents' first child was deaf due to a hereditary condition. Because of that negligence, the parents did not learn that their future children had a substantial risk of being born deaf until after their second child had been conceived. Since the parents would not have conceived their second child had the doctor

informed them of that risk, they should file a *wrongful birth* action for expenses incurred due to the second child's deafness.

(Choice A) A *medical malpractice* action on behalf of the second child would require proof that the doctor's negligence caused the child *physical harm*. Here, though the doctor's negligence caused the child to be born, it did not cause the child to be born deaf (a hereditary condition).

(Choices C & D) A wrongful life action alleges that an unhealthy child would not have been born absent a doctor's negligence. Most states do not permit wrongful life actions. In the states that do, the action can only be brought by or on behalf of the unhealthy child—not by the parents. Additionally, those states generally limit the child's recovery to expenses attributable to the disability—not all life expenses.

Educational objective:

A wrongful birth claim allows parents to recover for the birth of an unhealthy child if they can prove that (1) the doctor negligently failed to inform them of the substantial risk that their future child may have a birth defect and (2) had the parents known about that risk, the child would not have been conceived or born.

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A bright 12-year-old child attended a day-care center after school. The center was located near a man-made duck pond on the property of a corporation. During the winter, the pond was used for ice-skating when conditions were suitable. At a time when the pond was obviously only partially frozen, the child sneaked away from the center's property and walked out onto the ice over the pond. The ice gave way, and the child fell into the cold water. He suffered shock and would have drowned had he not been rescued by a passerby.

At the time of the incident, the pond was clearly marked with numerous signs that stated, "THIN ICE—KEEP OFF." When the child sneaked away from the day-care center, the center was staffed with a reasonable number of qualified employees, and the employees were exercising reasonable care to ensure that the children in their charge did not leave the premises. There had not been a previous instance of a child coming onto the corporation's property from the day-care center. The jurisdiction follows a rule of pure comparative negligence.

In a suit brought on the child's behalf against the day-care center and based only on the facts above, who is likely to prevail?

A. The child, because he left the center while he was under the center's care.

B. The child, because the day-care center is located near a pond.

C. The day-care center, because it was not negligent.

D. The day-care center, because the child was a trespasser.

Explanation:

Special relationships

imposing duty to protect others

Parent/child
Hospital/patient
Employer/employees
Shopkeeper/business invitees
Common carrier/passengers
Custodian/person in custody
Innkeeper/guests
Mnemonic: **P**lease **H**elp **E**liminate **S**afety **C**oncerns **C**ausing **I**njuries

Negligence requires proof of all of the following elements: duty, breach, causation, and damages. The **duty** element is satisfied if (1) the defendant's conduct created a foreseeable risk of harm to others or (2) the defendant had a **special relationship** with the plaintiff (eg, custodian of a child). To prove **breach**, the plaintiff must introduce evidence that the defendant **failed to use reasonable care**. If such evidence is lacking—or if the defendant introduces sufficient counterevidence—then the defendant will prevail.

Here, the 12-year-old child sneaked away from the day-care center and suffered shock after falling into a nearby duck pond. The center had a duty to protect the child since he was under its care **(Choice A)**. And this duty may have required extra vigilance since the center was located near a pond **(Choice B)**. But there is no evidence that the center breached this duty by failing to use reasonable care. Instead, the following facts tend to show that the center was *not* negligent:

The center was staffed with a *reasonable* number of qualified employees.

The employees were exercising *reasonable care* to ensure that the children in their charge did not leave the premises.

No child had previously come onto the corporation's property from the center.

Therefore, the day-care center will likely prevail.

(Choice D) The duck pond is located on the property of the corporation—not the day-care center. As a result, the child's status as a trespasser would only be relevant had he sued the corporation instead of the center.

Educational objective:

For a negligence claim, the duty element is satisfied if (1) the defendant's conduct created a foreseeable risk of harm to others or (2) the defendant had a special relationship with the plaintiff (eg, custodian of a child). That duty is breached if the defendant failed to use reasonable care.

References

Restatement (Second) of Torts § 314A (Am. Law Inst. 1965) (explaining that certain special relationships give rise to a duty to aid or protect).

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A man decided to cut back a tree on his property. The man borrowed his neighbor's chainsaw and, as an expression of gratitude, offered to also cut down a tree on her property. The man cut back his tree according to the chainsaw instructions, which stated that the chainsaw should not run continuously for more than five minutes at a time. The man then attempted to cut down the neighbor's tree, which took considerably longer due to the thickness of the tree trunk. At one point, the man ran the chainsaw for seven minutes in a row, causing the motor on the chainsaw to overheat and break.

The man returned the broken chainsaw to the neighbor. When the neighbor demanded that he pay for a new one, the man refused.

If the neighbor files a negligence action against the man, will the neighbor likely prevail?

A. No, because the man used the chainsaw for the neighbor's benefit.

B. No, because the man used the chainsaw in a reasonable manner when he cut back his own tree.

C. Yes, because the man failed to use reasonable care when cutting down his neighbor's tree.

D. Yes, because the man owed the neighbor a duty of extraordinary care and breached that duty while cutting both trees.

Explanation:

Bailment occurs when one party (the bailor) **temporarily entrusts** his/her **personal property to another** (the bailee) without transferring ownership of the property. The **bailee's duty of care** with respect to that property **depends on who benefits** from the bailment transaction:

Bailor receives the sole benefit – the bailee has a lesser duty to care for the property and is liable for harm to the property only if the bailee has been *grossly negligent*

Bailee receives the sole benefit – the bailee must exercise *extraordinary care* for the property and is liable for harm to the property even if the bailee has been only slightly negligent

Bailor and bailee both benefit – the bailee **must take *reasonable care* of the property** and is liable for harm to the property under ordinary negligence principles

Here, the bailment was a single transaction that benefited *both* the neighbor (bailor) and the man (bailee) because the man borrowed the chainsaw to cut back his own tree and to cut down the neighbor's tree. Consequently, the man had a duty to take *reasonable care* of the chainsaw **(Choice D)**. He breached that duty by running the chainsaw for seven minutes in a row—when the instructions stated that it should not run continuously for more than five minutes—while cutting the neighbor's tree. Therefore, the neighbor will likely prevail **(Choice A)**.

(Choice B) The man may have used the chainsaw in a reasonable manner when he cut back his own tree. But he failed to use reasonable care when he cut down his neighbor's tree by running the chainsaw for more than five continuous minutes.

Educational objective:

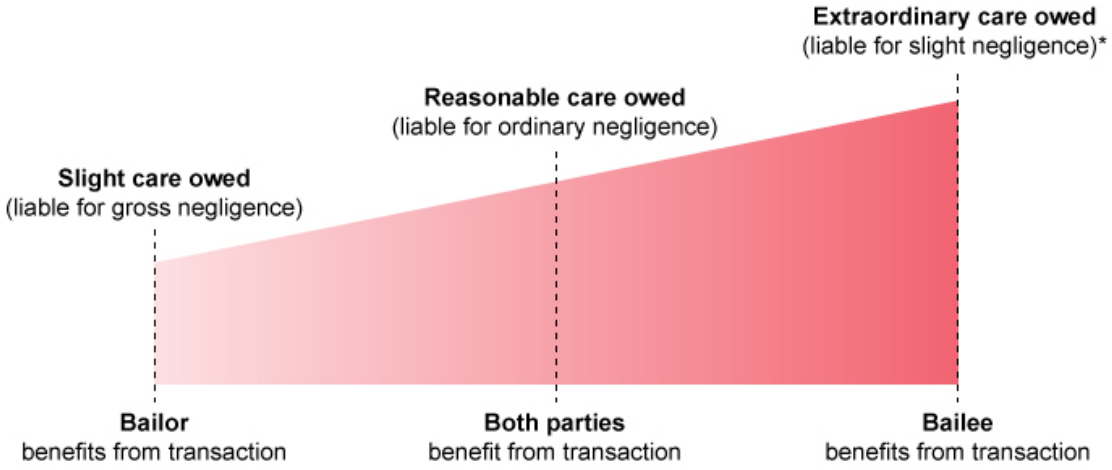
A bailee's duty of care with respect to bailed property depends on who benefits from the bailment transaction: (1) if only the bailor benefits, the bailee has a lesser duty of care; (2) if only the bailee benefits, the bailee must exercise extraordinary care; and (3) if both parties benefit, the bailee must exercise reasonable care.

References

8A Am. Jur. 2d Bailments §§ 7–9 (2020) (classification of bailments).

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Bailee's duty of care for bailed property



*Bailees are strictly liable for violating the express conditions of the bailment.

A homeowner and a group of his friends are fanatical basketball fans who regularly meet at each other's homes to watch basketball games on television. Some of the group are fans of team A, and others are fans of team B. When the group has watched televised games between these two teams, fights sometimes have broken out among the group. Despite this fact, the homeowner invited the group to his home to watch a championship game between teams A and B.

During the game, the homeowner's guests became rowdy and antagonistic. Fearing that they would begin to fight and that a fight would damage his possessions, the homeowner asked his guests to leave. They refused to go and soon began to fight. The homeowner called the police, and an officer was sent to the homeowner's home. The officer sustained a broken nose in his efforts to stop the fighting.

The officer brought an action against the homeowner alleging that he was negligent in inviting the group to his house to watch this championship game. The homeowner has moved to dismiss the complaint.

What is the best argument in support of this motion?

A. A police officer is not entitled to a recovery based upon the negligent conduct that created the need for the officer's professional intervention.

B. A rescuer injured while attempting to avert a danger cannot recover damages from the endangered person.

C. As a matter of law, the homeowner's conduct was not the proximate cause of the police officer's injury.

D. The homeowner did not owe the police officer a duty to use reasonable care, because the officer was a mere licensee on the homeowner's property.

Explanation:

Rescue doctrine

General rule	Rescuers can recover for injuries sustained while attempting to rescue another if that person's peril was caused by defendant's negligence
Exception (firefighter's rule)	Professional rescuers cannot recover for injuries attributable to special dangers of their job—eg: firefighter entering burning building police officer arresting suspect paramedic/lifeguard attempting risky rescue

Under the rescue doctrine, persons who negligently endanger themselves or others are liable for injuries sustained by rescuers. But the **firefighter's rule** is a limitation on the rescue doctrine that applies to *all* professional rescuers (eg, police officers). This rule **bars professional rescuers from recovering** for harm that resulted from the **special dangers** of their jobs—eg, the **negligent conduct** that created the need for their professional intervention.

Here, the police officer was injured in his efforts to stop the fighting among the homeowner's guests. The officer then sued the homeowner, alleging that he was negligent in inviting the group (who were prone to fighting) to his house to watch the game. But since the officer cannot recover based upon the negligent conduct that created the need for his professional intervention, this is the best argument for dismissing his complaint.

(Choice B) An injured rescuer *can* recover damages from an endangered person if that person's own negligence created the need for his/her rescue. But the firefighter's rule still bars the police officer's recovery in this instance.

(Choice C) The homeowner's conduct *was* a proximate cause of the police officer's injury since harm to rescuers is always a foreseeable consequence of negligence.

(Choice D) Police officers are mere licensees when they enter a person's land. But land possessors (eg, the homeowner) owe licensees a duty to use reasonable care in conducting activities (eg, parties) on the land.

Educational objective:

The firefighter's rule bars firefighters and other professional rescuers from recovering for harm that resulted from the special dangers of their jobs—eg, the negligent conduct that created the need for their professional intervention.

References

62 Am. Jur. 2d Premises Liability § 421 (2019) (explaining that the firefighter's rule prevents professional rescuers from recovering for injuries arising out of the special risks of their professions).

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An adult gave a pack of cigarettes to a minor whom the adult incorrectly believed to be an adult. The minor took the cigarettes to a nearby property where he climbed on top of a stack of fence posts, lit a cigarette, and began smoking it. Shortly thereafter, the minor unintentionally dropped the lit cigarette into the stack of fence posts. The minor tried to retrieve the cigarette so that he could extinguish it, but he was unable to do so. Then the minor wandered away. The lit cigarette subsequently set fire to the fence posts, resulting in the destruction of the posts as well as an adjacent garage and its contents.

The jurisdiction has a strict liability statute that makes it a misdemeanor to provide a minor with cigarettes. Violation of the statute is punishable by a $200 fine.

The owner of the destroyed property initiated a negligence lawsuit against the adult.

Which of the following is the adult's WEAKEST defense to this action?

A. The adult did not know that the minor was underage when he gave the cigarettes to him.
B. The destruction of the property is not a type of harm against which the statute was intended to protect.
C. The destruction of the property was not proximately caused by the adult's violation of the statute.
D. The property owner is not in the class of people intended to be protected by the statute.

Explanation:

Negligence requires proof of the following elements: duty, breach, causation, and damages. **Duty and breach** are **presumed** under the **doctrine of negligence per se** when the following facts are proved:

The defendant **violated a statute or ordinance**.

The plaintiff suffered a **type of harm** that the statute or ordinance was **intended to protect against**.

The plaintiff was in the **class of persons intended to be protected** by the statute or ordinance.

Here, the jurisdiction's statute makes it a strict liability offense to provide a minor with cigarettes. This means that liability can be imposed without proof of fault. Therefore, the fact that the adult did not know that the minor was underage when he gave the cigarettes to him is no defense to the adult's violation of the statute—or to this negligence per se action.

However, the adult may be able to successfully defend this action on one or more of the following grounds:

The harm that the statute was intended to protect against is harm to minors from smoking—not property destruction caused by cigarettes **(Choice B)**.

The class of persons that the statute was intended to protect is minors—not property owners who suffer property destruction caused by cigarettes **(Choice D)**.

While the adult's violation of the statute was the actual ("but-for") cause of the property destruction, this violation was not a proximate (legal) cause of the property destruction since this type of harm was not a risk that made the adult's conduct tortious **(Choice C)**.

Educational objective:

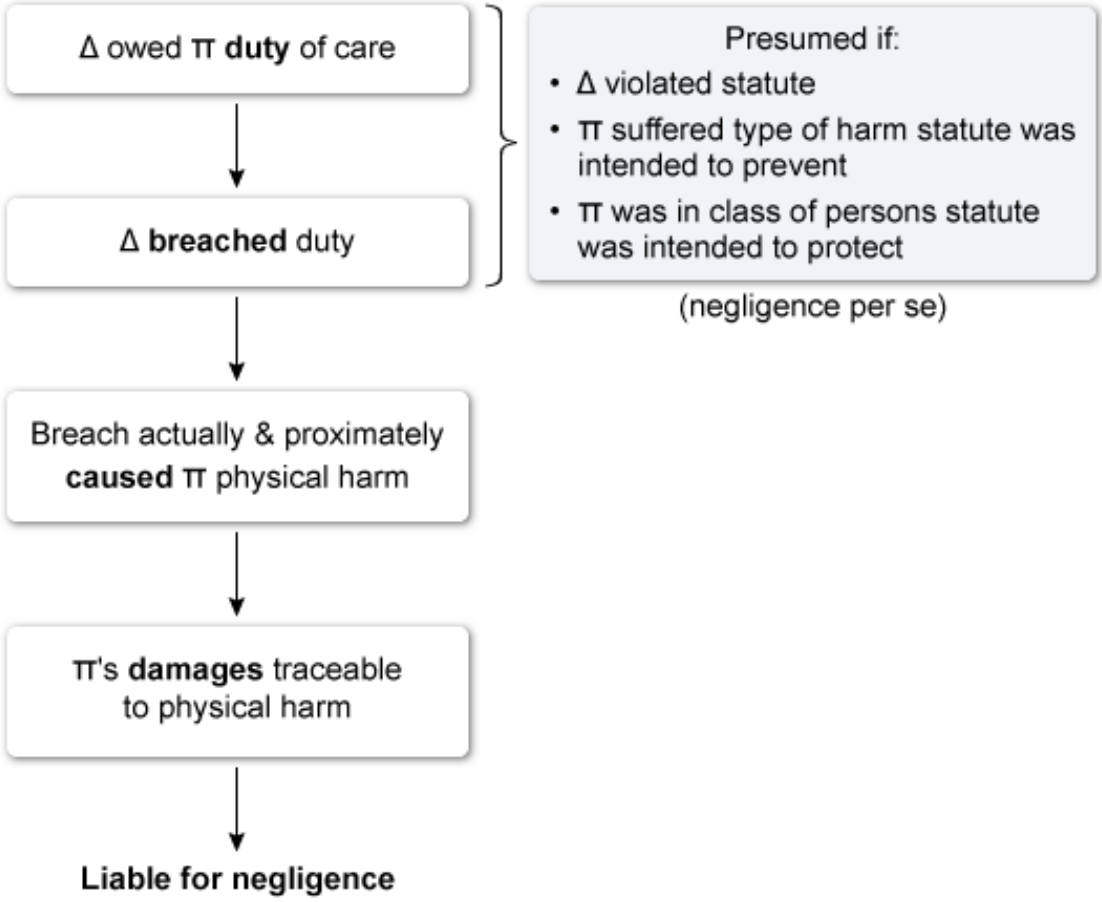
Duty and breach are presumed under the doctrine of negligence per se when (1) the defendant violated a statute or ordinance, (2) the plaintiff suffered a type of harm that the statute or ordinance was intended to protect against, and (3) the plaintiff was in the class of persons intended to be protected by the statute or ordinance.

References

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 14 (Am. Law Inst. 2010) (negligence per se).

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Negligence liability



Δ = defendant; **π** = plaintiff.

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A schizophrenic patient who was institutionalized in a psychiatric facility pushed a nurse down a stairwell at the facility. The nurse, a paid employee of the facility who was trained to care for schizophrenic patients, was injured. The patient is an indigent whose care is paid for by the government.

The jurisdiction generally follows the rule that a person with a mental deficiency is held to the standard of a reasonable person. In a negligence action brought by the nurse against the patient, the patient's lawyer will argue that the patient should not be held responsible for the nurse's injury.

Which of the following facts will be LEAST helpful to the patient's lawyer's argument?

A. At the time she pushed the nurse, the patient thought she was being attacked by an elephant.
B. The nurse was a professional caregiver.
C. The nurse was trained to care for patients with schizophrenia.
D. The patient is an indigent whose care is paid for by the government.

Explanation:

Assumption of the risk

(voluntary exposure to known risk of harm)

Traditional *contributory* negligence	Bars plaintiff's recovery
Pure *comparative* negligence*	Majority view: Reduces recovery by plaintiff's proportionate share of fault Minority view: Bars plaintiff's recovery

*Default rule on MBE.

In this jurisdiction, persons with mental deficiencies (eg, schizophrenia) are held to the standard of care of a reasonable person, which means that mental deficiency is not a defense to **negligence**. But in pure comparative negligence jurisdictions (default rule on the MBE), **assumption of the risk** is a **defense** that can either reduce (majority view) or bar (minority view) the plaintiff's recovery. This defense applies if the **plaintiff**:

knew about the **risk of harm** (eg, based on prior training or experience) *and*
voluntarily accepted that risk (eg, by agreeing to confront the risk for compensation).
Here, the schizophrenic patient pushed the nurse down a stairwell, and the nurse sued the patient for negligence. But the nurse should have known about this risk since he was a professional caregiver trained to care for patients with schizophrenia **(Choices B & C)**. And by agreeing to work at a psychiatric facility, the nurse voluntarily accepted the risks posed by hallucinating patients **(Choice A)**. Therefore, these arguments are helpful to establishing assumption of the risk, which would reduce or negate the patient's responsibility for the nurse's injury.

However, **inability to pay** is **never a defense** to tort liability. As a result, the patient's least helpful argument is that she is an indigent whose care is paid for by the government.

Educational objective:

Assumption of the risk is a defense to negligence that either reduces or bars recovery if the plaintiff knew about and voluntarily accepted the risk that caused that plaintiff's harm. But inability to pay is never a defense to tort liability.

References

Restatement (Second) of Torts § 496C (Am. Law Inst. 1965) (explaining that a plaintiff cannot recover for negligence when he/she fully understood and voluntarily confronted a risk).

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A man's dog ran into the street in front of his home and began chasing cars. The man had seen the dog behave similarly on several prior occasions. A ride-share driver, who was driving a car on the street, swerved to avoid hitting the dog, struck a telephone pole, and was injured.

There is no statute or ordinance requiring dogs to be leashed on a public street.

If the driver asserts a claim against the man, will the driver prevail?

A. No, because a dog is a domestic animal.
B. No, because no statute or ordinance made it unlawful for the owner to allow a dog to be unleashed on a public street.
C. Yes, because the man is strictly liable for injuries caused by his dog.
D. Yes, because the man knew his dog had a propensity to chase cars and did not restrain it.

Explanation:

Elements of negligence

Duty – defendant owed duty of reasonable care because his/her conduct created foreseeable risk of harm to others

Breach – defendant breached duty by failing to use reasonable care

Causation – defendant's breach actually & proximately caused plaintiff's harm

Damages – plaintiff suffered physical harm (ie, bodily injury or property damage)

Negligence is the typical tort claim for unintentional harms (eg, car-accident injuries). To prevail on a negligence claim, the plaintiff must prove all of the following elements by a preponderance of the evidence:

Duty – the defendant owed a duty of reasonable care because his/her conduct created a foreseeable risk of harm to others

Breach – the defendant breached that duty by **failing to use reasonable care**

Causation – the defendant's breach actually and proximately caused the plaintiff's harm

Damages – the plaintiff suffered physical harm (ie, bodily injury or property damage)

A defendant fails to use reasonable care when he/she **does not take reasonable steps** to **reduce the risk** posed by his/her conduct.

Here, the man had a duty to use reasonable care since he knew that his dog had a propensity to chase cars. But he breached that duty when he failed to take reasonable steps to prevent the dog from running into the street (eg, by restraining it). And since this caused the driver to crash and sustain injuries, the driver will likely prevail.

(Choices A & C) The owner of a domestic animal is not strictly liable for injuries caused by that animal unless the owner knew, or should have known, that the animal had propensities that are *more dangerous than normal* for the species. So here, the dog's mere propensity to chase cars would not subject the man to strict liability. But the man is still subject to negligence liability for injuries caused by his dog.

(Choice B) Had the man violated a statute or ordinance requiring dogs to be leashed on public streets, his negligent conduct could be presumed under the doctrine of negligence per se. But the man's negligent conduct can still be proved since he knew of his dog's propensity to chase cars and did not restrain it.

Educational objective:

Persons owe a duty of reasonable care when their conduct poses a foreseeable risk of harm to others. Therefore, persons who fail to take reasonable steps to mitigate that risk and cause another physical harm are liable for negligence.

References

Restatement (Second) of Torts § 281 cmt. e (Am. Law Inst. 1965) (explaining that conduct is negligent when it tends to subject another to an unreasonable risk of harm).

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A man rented a car from a car rental agency. Unbeknownst to the rental agency, the car had a bomb hidden in it at the time of the rental. The bomb exploded an hour later, injuring the man.

Immediately prior to renting the car to the man, the rental agency had carefully inspected the car to be sure it was in sound operating condition. The rental agency did not inspect for hidden explosive devices, but such an inspection would have revealed the bomb.

There had been no previous incidents of persons hiding bombs in rental cars.

In a negligence action by the man against the car rental agency, is the man likely to prevail?

A. No, because the rental agency could not have reasonably foreseen the likelihood of someone placing a bomb in the car it was about to rent to the man.
B. No, because the rental agency did not hide the bomb in the car.
C. Yes, because an inspection for explosive devices would have revealed the bomb.
D. Yes, because the bomb made the car abnormally dangerous.

Explanation:

Relevance of foreseeability for negligence

Duty	Defendant's duty only extends to *foreseeable* risks of his/her conduct
Breach	Defendant fails to act like reasonable person under similar circumstances by not mitigating *foreseeable* risks
Causation	Actual (but for) cause – foreseeability irrelevant Proximate cause – plaintiff's harm must have been *foreseeable* consequence of defendant's breach
Damages	Foreseeability irrelevant (ie, eggshell-skull rule)

Negligence has four elements, three of which require proof of foreseeability: duty, breach, and causation. The **duty** element can only be satisfied if the defendant's conduct created a **reasonably foreseeable risk of harm** to others. This occurs when the defendant **knows or has reason to know** of the risk—eg, from past occurrences leading to harm. And since foreseeability is needed to establish duty, as well as breach and proximate cause, plaintiffs harmed by an unforeseeable risk cannot prevail.

Here, the man was injured when a hidden bomb exploded in his rental car. But the rental agency did not know about the bomb. And it could not have reasonably foreseen such a risk since there had been no previous incidents of persons hiding bombs in rental cars. Therefore, the rental agency had no duty to inspect for explosive devices, and the man likely will not prevail.

(Choice B) Although the rental agency did not hide the bomb in the car, it could have been liable for failing to inspect for explosive devices had it been reasonably foreseeable that one might be planted in a rental car—eg, because this was a common occurrence in the area.

(Choice C) An inspection for explosive devices would have revealed the bomb and prevented the man's harm, so the rental agency's failure to conduct such an inspection was an actual cause of that harm. But the man still cannot prevail since the agency had no duty to inspect for explosive devices.

(Choice D) A person is strictly liable for harm caused by his/her abnormally dangerous activity. And though storing explosives can be abnormally dangerous, the rental agency did not store (or even know about) the bomb.

Educational objective:

Every person has a duty to mitigate the reasonably foreseeable risks of his/her conduct—ie, risks that the person knows or should know about. But no such duty exists for unforeseeable risks.

References

Restatement (Second) of Torts § 281 cmt. f (Am. Law Inst. 1965) (explaining that a defendant is not liable for negligence when the plaintiff's harm was not a recognizable risk of the defendant's conduct).

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A driver, returning home from a long work shift at a factory, fell asleep at the wheel and lost control of his car. As a result, his car collided with a police car driven by an officer who was returning to the station after having responded to an emergency. The officer was injured in the accident and later sued the driver in negligence for her injuries. The driver has moved for summary judgment, arguing that the common law firefighter's rule bars the suit.

Should the court grant the motion?

A. No, because the firefighter's rule does not apply to police officers.

B. No, because the police officer's injuries were not related to any special dangers of her job.

C. Yes, because the accident would not have occurred but for the emergency.

D. Yes, because the police officer was injured on the job.

Explanation:

Rescue doctrine

General rule	Rescuers can recover for injuries sustained while attempting to rescue another if that person's peril was caused by defendant's negligence
Exception (firefighter's rule)	Professional rescuers cannot recover for injuries attributable to special dangers of their job—eg: firefighter entering burning building police officer arresting suspect paramedic/lifeguard attempting risky rescue

When a person's conduct creates a risk of harm, he/she owes a duty to all foreseeable plaintiffs. Under the rescue doctrine, foreseeable plaintiffs include rescuers who might be harmed while attempting to aid victims of the risky conduct. But the rescue doctrine is limited by the common law **firefighter's rule**, which applies to ***all* professional rescuers** (eg, police officers) **(Choice A)**. This rule **bars recovery in negligence** if the professional rescuer's harm resulted from a **special danger** of his/her job.

Here, the officer was injured in a car accident and later sued the driver in negligence for her injuries. The officer's injuries were not related to any special dangers of her job since the risk of being struck by a car in normal traffic applies to everyone on the road. Therefore, the firefighter's rule does *not* bar the officer's recovery, and the court should deny the driver's motion for summary judgment.

(Choice C) The emergency—from which the officer was returning—was an actual cause of the accident since it would not have occurred but for the emergency. But this does not justify summary judgment for the driver since his conduct (ie, falling asleep at the wheel) was also an actual cause of the accident.

(Choice D) Although the police officer was injured on the job, her injury did not result from any special danger of police work. Therefore, summary judgment for the driver would be improper.

Educational objective:

The firefighter's rule is a limitation on the rescue doctrine that bars firefighters and other professional rescuers from recovering in negligence for harm that resulted from the special dangers of their jobs. But they can still recover for injuries that arose from risks applicable to everyone.

References

62 Am. Jur. 2d Premises Liability § 421 (2019) (explaining that the firefighter's rule prevents professional rescuers from recovering for injuries arising out of the special risks of their professions).

Vasquez v. N. Cty. Transit Dist., 292 F.3d 1049, 1054–55 (9th Cir. 2002) (explaining that the firefighter's rule extends to police officers).

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A car owner washed her car while it was parked on a public street, in violation of a local ordinance that prohibits the washing of vehicles on public streets during specified hours. The ordinance was enacted only to expedite the flow of automobile traffic. Due to sudden and unexpected cold weather, the car owner's wastewater formed a puddle that froze in a crosswalk. A pedestrian slipped on the frozen puddle and broke her leg.

The pedestrian sued the car owner to recover for her injury. At trial, the only evidence the pedestrian offered as to negligence was the car owner's admission that she had violated the ordinance. At the conclusion of the evidence, both parties moved for a directed verdict.

How should the trial judge proceed?

A. Deny both motions and submit the case to the jury, because, on the facts, the jury may infer that the car owner was negligent.

B. Deny both motions and submit the case to the jury, because the jury may consider the ordinance violation as evidence that the car owner was negligent.

C. Grant the car owner's motion, because the pedestrian has failed to offer adequate evidence that the car owner was negligent.

D. Grant the pedestrian's motion, because of the car owner's admitted ordinance violation.

Explanation:

Establishing breach of duty

Doctrine	Standard	Effect
Default	Defendant failed to act in same manner as reasonably prudent person in similar circumstances	Proof of breach
Custom / industry standards	Defendant failed to act according to local custom or industry standards	Evidence (but not proof) of breach
Negligence per se	Defendant violated law Law was intended to prevent plaintiff's type of harm Plaintiff is in class of persons law intended to protect	Breach presumed unless rebutted
Res ipsa loquitur	Plaintiff suffered injury usually caused by negligence of someone in defendant's position Evidence tends to eliminate other causes of injury	Allows (but does not require) inference of breach

To prevail on a negligence claim, the plaintiff must prove the following elements: duty, breach, causation, and damages. The elements of **duty and breach can be presumed** under the doctrine of **negligence per se** if the plaintiff proves that:

the defendant **violated a statute or ordinance**
that statute or ordinance was **intended to prevent** the **type of harm** suffered by the plaintiff *and*
the plaintiff is within a **class of persons** that the statute or ordinance was intended to protect.
If the plaintiff fails to present **legally sufficient evidence** to support all the elements of negligence at trial—ie, no reasonable jury could find in the plaintiff's favor—the court should grant the defendant's motion for a **directed verdict**.

Here, the pedestrian slipped on a frozen puddle and broke her leg. The puddle had been left by the car owner, who washed her car on a public street in violation of a local ordinance. But that ordinance was enacted to expedite traffic flow—not to protect pedestrians from slipping. Therefore, negligence per se does not apply. And since the pedestrian offered no other evidence supporting her negligence claim, the judge should grant the car owner's motion for a directed verdict **(Choices A, B, & D)**.

Educational objective:

The requirements for negligence per se are that (1) the defendant violated a statute or ordinance, (2) the statute or ordinance was intended to prevent the type of harm suffered by the plaintiff, and (3) the plaintiff is within a class of persons that the statute was intended to protect.

References

Restatement (Second) of Torts § 328B (Am. Law Inst. 1965) (explaining that the trial judge determines whether the evidence is adequate to raise a factual dispute in a negligence action).

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During a comprehensive evaluation of an adult patient's psychiatric condition, a psychiatrist failed to diagnose her patient's suicidal state. One day after the misdiagnosis, the patient committed suicide. The patient's father, immediately after having been told of his son's suicide, suffered severe emotional distress, which resulted in a stroke. The patient's father was not present at the patient's appointment with the psychiatrist, nor did he witness the suicide. The father has brought an action against the psychiatrist to recover for his severe emotional distress and the resulting stroke.

Is the father likely to prevail?

A. No, because the father did not sustain a physical impact.

B. No, because the psychiatrist's professional duty did not extend to the harms suffered by the patient's father.

C. Yes, because the father was a member of the patient's immediate family.

D. Yes, because the psychiatrist reasonably could have foreseen that a misdiagnosis would result in the patient's suicide and the resulting emotional distress of the patient's father.

Explanation:

Mental-health professional's

duty to control patient's conduct

Must use reasonable care to:

determine whether patient poses risk of harm to others *and*
mitigate that risk—eg:
treat patient
warn potential victims
notify law enforcement
seek patient's commitment

For **negligent infliction of emotional distress** (NIED), the plaintiff must prove that the defendant acted negligently by **breaching a duty** owed to the plaintiff. Mental-health professionals owe their **patients** a duty to use reasonable care. And because they have a special relationship with their patients, mental-health professionals also owe **others** a duty to use reasonable care to:

identify patients who pose a foreseeable **risk of physical harm to others** *and*
take steps to **mitigate** that risk.

Here, the psychiatrist may be liable to the patient's estate for failing to diagnose his suicidal state. However, the psychiatrist is *not liable* to the father because the patient only posed a threat of physical harm to himself—not to his father. Therefore, the psychiatrist did not breach her duty to the father, and the father will not recover for his severe emotional distress or resulting stroke.

(Choice A) The zone-of-danger theory of NIED requires proof that the plaintiff was in danger of physical harm—not actually harmed by a physical impact. Therefore, had the psychiatrist breached her duty to the father by placing him in a zone of physical danger, then the father may have prevailed despite his lack of physical impact.

(Choice C) The father's relation to the patient is relevant under the bystander theory of NIED, which applies when a plaintiff suffers emotional distress upon witnessing bodily harm to a close relative. But since the father did not witness the patient's suicide, this theory does not apply.

(Choice D) The psychiatrist's ability to foresee that her misdiagnosis would result in the patient's suicide shows that she breached her duty to the patient—not the father. And though the father's resulting *emotional* distress may have been foreseeable, the psychiatrist's duty to the father only extended to foreseeable risks of *physical* harm.

Educational objective:

Mental-health professionals have a duty to use reasonable care to identify and mitigate any foreseeable risk of physical harm that their patients pose to others.

References

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 41 cmt. g (Am. Law Inst. 2012) (duty of mental-health professionals to control patients).

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 47 cmt. i (Am. Law Inst. 2012) (duty arising from a special relationship is limited to foreseeable physical harm).

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Two coworkers agreed to carpool to work each day. The driver agreed to pick the passenger up each morning and return her home after work. In exchange, the passenger agreed to pay the driver a monthly fee. One morning, while on their way to work, the driver and the passenger drove down a city street. As they approached a busy intersection, the driver's cell phone made a beeping sound, indicating that she had received a text message. The driver glanced over at her cell phone, which was attached to her dashboard, to read the message. As a result, the driver failed to notice that she was driving through a red light. As the driver's vehicle entered the intersection, a car that had the right-of-way struck the vehicle on the passenger's side. The driver was not injured, but the passenger sustained a broken arm and bruised ribs. The passenger subsequently filed a negligence action against the driver.

What standard of care should the court apply to determine if the driver breached her duty to the passenger?

A. Duty to refrain from gross or wanton and willful misconduct.

B. Extraordinary care.

C. Ordinary care.

D. That of a reasonable person of similar age, intelligence, and experience.

Explanation:

Standards of care for negligence

Adult	Must act in same manner as ordinary, reasonable adult in similar circumstances
	Standard adjusted for physical disabilities, superior skill & knowledge, involuntary intoxication
	Standard not adjusted for mental & emotional disabilities, voluntary intoxication
Professional	Must demonstrate same knowledge, skill & care as another professional in similar community
	National (not community) standard applied to medical specialists*
Child	Must act in same manner as reasonable child of same age, intelligence & experience
	Adult standard applied to children engaged in dangerous adult activity
	Children under five years old incapable of negligence

*A modern trend applies a national standard of care to *all* physicians.

In **negligence** actions, the standard most often applied to determine if the defendant breached a duty to the plaintiff is one of ordinary care. Ordinary care is the care that a reasonably prudent person would use under the circumstances. In most jurisdictions, **automobile drivers** owe a **duty of ordinary care** to their **passengers** (those who pay money for the ride) **as well as** their **guests** (those who ride for free).

A few jurisdictions have enacted "guest statutes," under which an automobile driver's only duty to *guests* is to refrain from gross or wanton and willful misconduct. However, there is no indication that this jurisdiction has enacted such a statute. And even if it had, guest statutes do not apply to *passengers* **(Choice A)**. Therefore, the court should apply the ordinary-care standard in this passenger's negligence action against the driver.

(Choice B) A duty of extraordinary care imposes liability on a defendant who is slightly negligent. This standard of care has been imposed on common carriers, innkeepers,* and bailees—but not automobile drivers.

*Most modern courts hold innkeepers (ie, hotel operators) to an ordinary standard of care.

(Choice D) The standard of care generally imposed upon a *child*, age five or older, is that of a reasonable child of similar age, intelligence, and experience. However, a child who engages in a high-risk activity usually undertaken by adults (eg, driving a car) is held to the same ordinary standard of care as an adult.

Educational objective:

In most jurisdictions, automobile drivers owe a duty of ordinary care to both their guests (who ride for free) and passengers (who pay money for the ride).

References

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 7 (Am. Law Inst. 2010) (duty).

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A farmer owns a large farm on which he allows his friends to hunt during quail-hunting season. He does not provide his friends with any instructions about gun safety. The neighbor who owns property adjacent to the farm knows of the friends' use of the property during the hunting season.

One day during the hunting season, without the farmer's knowledge or permission, the neighbor took a shortcut across the farm to visit an acquaintance. The neighbor was wounded by a shot fired by one of the farmer's friends, who was shooting at quail and carelessly failed to see the neighbor.

Traditional rules of landowners' and occupiers' liability apply.

In an action by the neighbor against the farmer to recover for the injuries, will the neighbor be likely to prevail?

A. No, because the farmer is not responsible for his friends' conduct.

B. No, because the neighbor was trespassing.

C. Yes, because the careless friend was permitted to hunt without safety training.

D. Yes, because the use of firearms is an abnormally dangerous activity.

Explanation:

Land possessor's duty to land entrants

(traditional approach)*

Status	Characteristics	Duty
Trespasser	Intentionally enters land without permission	Known or frequent trespassers – warn of known artificial dangers & use reasonable care in active operations Unknown or unanticipated trespassers – no duty
Licensee	Enters land with permission (eg, social guest)	Warn of known latent dangers & use reasonable care in active operations
Invitee	Enters land open to public (eg, churchgoer) Enters land for business purpose (eg, store customer)	Inspect for unknown dangers Make premises safe or provide adequate warnings Prevent harm from active operations

*In jurisdictions that follow the modern approach, land possessors owe a duty of reasonable care to all land entrants, except flagrant trespassers.

Under the traditional approach, persons who occupy and control land (ie, **land possessors**) owe foreseeable land entrants a duty to exercise reasonable care. But a land possessor owes **no duty to trespassers**—ie, those who intentionally enter another's land without permission—**unless** the land possessor **knows of**, or can **reasonably anticipate**, their **presence**. The land possessor is then liable for negligence if he/she breaches this duty and causes the trespasser physical harm.

Here, the neighbor was a trespasser since the neighbor intentionally entered the farmer's land without permission. And the farmer did not know that the neighbor was on the farmer's land. Nor is there any indication that the farmer had reason to anticipate the neighbor's presence (eg, from frequently witnessing the neighbor cut across the farm). As a result, the farmer did not owe his neighbor a duty of care, and the neighbor is unlikely to prevail.

(Choice A) Although the farmer is not responsible (ie, vicariously liable) for his friends' conduct, the farmer could have been liable for his *own* negligent conduct had he owed his neighbor a duty (not seen here).

(Choice C) Had the neighbor been a foreseeable land entrant, the farmer would have owed the neighbor a duty to use reasonable care in active operations on the farm—eg, by

ensuring that his friends had gun-safety training. But since the neighbor was an *unknown* and *unanticipated* trespasser, the farmer owed the neighbor no duty.

(Choice D) Using firearms in rural areas during hunting season is not an abnormally dangerous activity that subjects a defendant to strict liability—ie, liability imposed regardless of fault—since this is a common activity whose risks can be mitigated by reasonable care.

Educational objective:

A land possessor only owes a duty of reasonable care to foreseeable land entrants—not unforeseeable ones (eg, unknown and unanticipated trespassers).

References

Restatement (Second) of Torts § 333 (Am. Law Inst. 1965) (no duty to unknown trespassers).

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A man suffered from a serious, though not immediately life-threatening, impairment of his circulatory system. The man's cardiologist recommended a cardiac bypass operation and referred the man to a cardiothoracic surgeon. The surgeon did not inform the man of the 2% risk of death associated with this operation. The surgeon defended this decision based on his best personal judgment that "the man was a worrier and it would have significantly lessened his chances of survival to be worried about the nonsurvival rate."

After obtaining the patient's consent, the surgeon successfully performed the bypass operation and the man made a good recovery. However, when the man learned of the 2% risk of death associated with the operation, he was furious that the surgeon had failed to disclose this information to him. The man would have refused the operation had he been informed of the risk.

If the man asserts a claim against the surgeon based on negligence, will the man prevail?

A. No, because the operation was successful, and the man suffered no harm.

B. No, because the surgeon used his best personal judgment in shielding the man from the risk statistic.

C. Yes, because a patient must be told the risk factor associated with a surgical procedure to give an informed consent.

D. Yes, because the man would have refused the operation had he been informed of the risk.

Explanation:

Physicians have a **duty to disclose** the **risks of a medical treatment** or procedure to a patient so that the patient can give informed consent to the treatment or procedure. In most jurisdictions, the required level of disclosure of risks is governed by custom among physicians.* **Failure to make** the **required disclosure** subjects the physician to **negligence liability**** when:

the failure to disclose **caused the patient to consent** to the treatment or procedure (ie, the patient would not have done so had the risk been disclosed) *and*

the **undisclosed risk materialized** and caused the plaintiff **physical harm**.

Here, the surgeon failed to inform the man of the 2% risk of death associated with the operation before performing it. The man likely needed to be told of this risk to give informed consent, and he would have refused the operation had he been so informed. But since the surgery was successful and the man suffered no harm, he will not prevail in a negligence suit against the surgeon **(Choices C & D)**.

*A significant minority holds that the physician must disclose "material risks." A material risk is one that a reasonable person in the patient's position would consider when deciding whether to undergo the treatment or procedure.

**In contrast, failure to obtain the patient's consent to a treatment or procedure may subject the physician to battery liability.

(Choice B) A physician has no duty to disclose a risk when the physician reasonably believes that disclosure would threaten a patient's well-being. However, that belief must be based on the physician's sound medical judgment—not the physician's best personal judgment (as seen here).

Educational objective:

Under the informed-consent doctrine, a physician who fails to disclose the risks of a medical treatment or procedure to a patient is liable for negligence if (1) the failure to disclose caused the patient to consent and (2) the undisclosed risk materialized and resulted in physical harm.

References

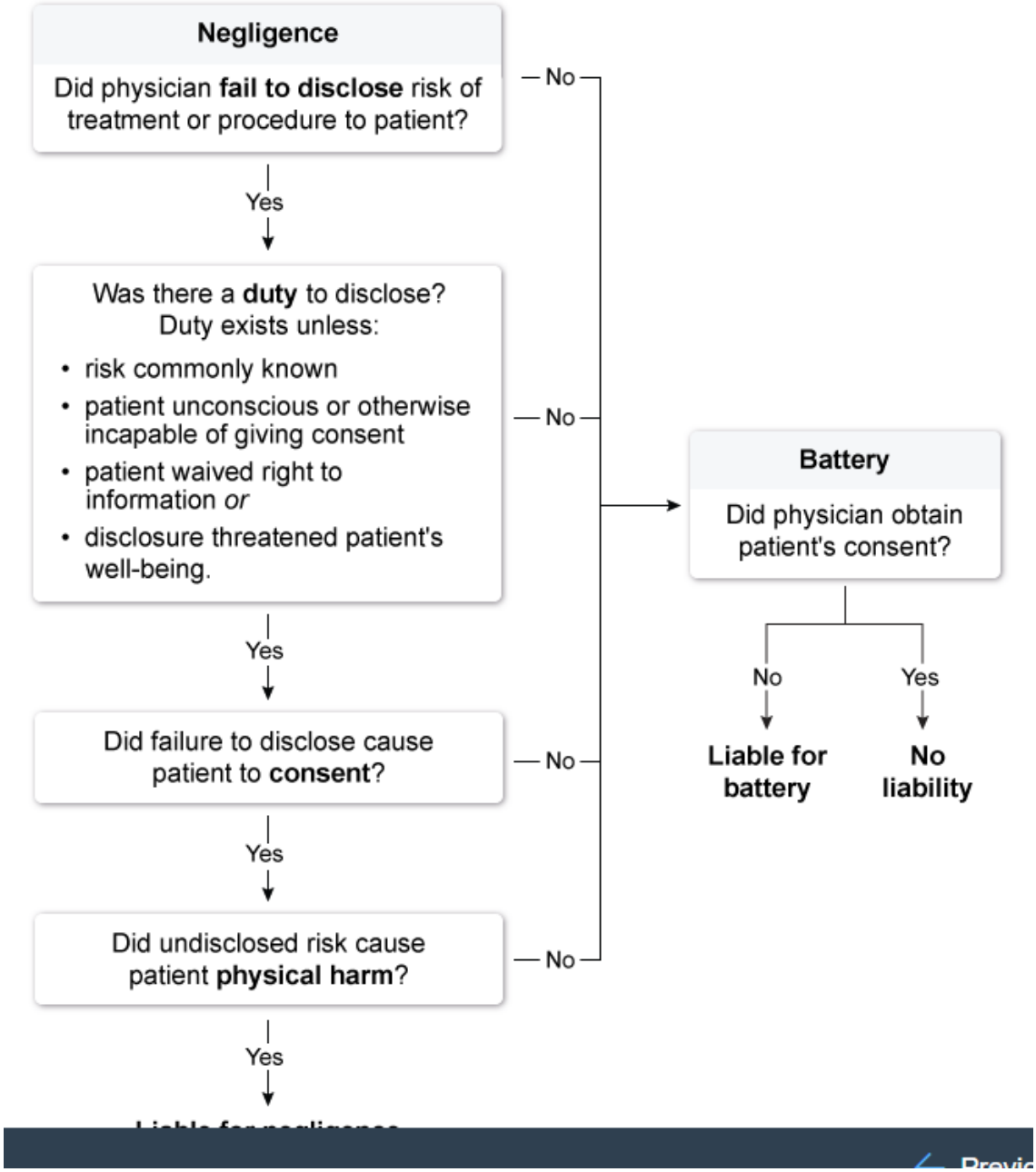
Canterbury v. Spence, 464 F.2d 772, 790 (D.C. Cir. 1972) (establishing that negligence based on informed-consent doctrine requires that the patient suffer physical harm).

61 Am. Jur. 2d Physicians, Surgeons, and Other Healers § 167 (2020) (discussing the informed-consent doctrine).

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Tort liability under informed-consent doctrine



A woman signed up for a bowling class. Before allowing the woman to bowl, the instructor required her to sign a waiver explicitly stating that she assumed all risk of injuries that she might suffer in connection with the class, including injuries due to negligence or any other fault. After she signed the waiver, the woman was injured when the instructor negligently dropped a bowling ball on the woman's foot.

The woman brought a negligence action against the instructor. The instructor has filed a motion for summary judgment based on the waiver.

What is the woman's best argument in opposition to the instructor's motion?

A. Bowling is an inherently dangerous activity.

B. In circumstances like these, it is against public policy to enforce agreements that insulate people from the consequences of their own negligence.

C. It was unreasonable to require the woman to sign the waiver before she was allowed to bowl.

D. When she signed the form, the woman could not foresee that the instructor would drop a bowling ball on her foot.

Explanation:

Assumption of risk

(tort defense)

	Applicability	**Public policy limitations**
Express	Plaintiff assented to liability waiver intended to cover type of conduct that caused plaintiff's harm	Not a defense when defendant: is plaintiff's employer is a hotel or common carrier is a public servant/service has substantially more bargaining power
Implied	Plaintiff voluntarily accepted known risk of harm	Not a defense when plaintiff: suffered intentional harm is member of statutorily protected class

A person can **assume the risk** of another's tortious conduct by **expressly waiving** the right to sue. Such waivers are **generally valid** if the plaintiff assented (eg, by signing the waiver) AND the waiver was intended to cover the type of conduct that caused the plaintiff's harm. But liability waivers are **invalid** and cannot justify summary judgment if they are **against public policy**—ie, when the defendant (1) is the plaintiff's employer, (2) is a hotel or common carrier, (3) is a public servant or service, or (4) has substantially more bargaining power.

Here, the woman signed a waiver assuming all risk of injuries that she might suffer in connection with a bowling class. Since this waiver included injuries due to negligence or any other fault, it was intended to cover the instructor's negligence in dropping a ball on the woman's foot. But the woman can still oppose the instructor's motion for summary judgment by arguing that it is against public policy to enforce the waiver in circumstances like these—eg, due to a substantial imbalance in bargaining power.

(Choice A) Bowling is not inherently dangerous since it rarely results in serious injuries. And even if bowling were inherently dangerous, this would be irrelevant to whether the waiver violates public policy.

(Choice C) In determining the validity of liability waivers, courts will consider whether the defendant had significantly more bargaining power than the plaintiff—but not the reasonableness of requiring the plaintiff to sign the waiver.

(Choice D) The woman assumed *all* risk of injuries, including unforeseeable risks. Therefore, the validity of the waiver does not depend on whether the woman could foresee that the instructor would drop a ball on her foot.

Educational objective:

A person can expressly waive the right to sue over another person's tortious conduct. Such waivers are generally valid unless they violate public policy—ie, when the defendant (1) is the plaintiff's employer, (2) is a hotel or common carrier, (3) is a public servant or service, or (4) has substantially more bargaining power.

References

Restatement (Second) of Torts § 496B cmts. c–j (Am. Law Inst. 1965) (explaining that a person can expressly assume the risk of another's negligence unless the waiver is against public policy).

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While walking on a public sidewalk, a pedestrian was struck by a piece of lumber that fell from the roof of a homeowner's house. The homeowner had hired a roofer to make repairs to his roof, and the lumber fell through negligence on the roofer's part.

If the pedestrian brings an action against the homeowner to recover damages for the injury caused to him by the roofer's negligence, will the pedestrian prevail?

A. No, because the roofer was an independent contractor rather than the homeowner's servant.

B. No, if the homeowner exercised reasonable care in hiring the roofer to do the repair work.

C. Yes, because the roofer's act was a breach of a nondelegable duty owed by the homeowner to the pedestrian.

D. Yes, under the res ipsa loquitur doctrine.

Explanation:

Nondelegable duties

(duties that cannot be assigned to another to avoid liability)

Maintain safe conditions on premises open to public (eg, store, restaurant)
Safely perform activities that:
are abnormally or highly dangerous
infringe on private property right (eg, nuisance, trespass)
are regulated by law *or*
are conducted in public place
A principal is generally not vicariously liable for torts (eg, negligence) committed by his/her independent contractor. But **vicarious liability** can be imposed when the **independent contractor's work** involves a **nondelegable duty**—ie, a duty of care that cannot be assigned to a third party to avoid liability. This includes a **land possessor's duty to safely conduct activities on the land** that pose foreseeable risks of harm to others (eg, construction, repairs).

Here, the homeowner (land possessor) hired the roofer (independent contractor) to repair the homeowner's roof. Since repairing a roof poses a foreseeable risk of harm to others, the homeowner had a nondelegable duty to ensure that the repairs were conducted safely. And since the roofer's act (negligently allowing lumber to fall from the roof) breached that duty, the homeowner is vicariously liable for the resulting harm (the pedestrian's injury).

(Choice A) Employers are vicariously liable for torts committed by their employees (ie, servants) while acting within the scope of employment. But the fact that the roofer was an independent contractor—not an employee—does not defeat the pedestrian's claim since the roofer's work involved a nondelegable duty.

(Choice B) The fact that the homeowner exercised reasonable care in hiring the roofer would show that the homeowner is not *directly* liable for negligently hiring an incompetent contractor. But the homeowner can still be *vicariously* liable for the roofer's negligence since the roofer's work involved a nondelegable duty.

(Choice D) When there is no direct evidence of negligence, the doctrine of res ipsa loquitur allows negligence to be inferred from circumstantial evidence if (1) the event that caused the plaintiff's harm would not ordinarily occur absent negligence by someone in the defendant's position and (2) the evidence tends to eliminate other potential causes of that harm. But this doctrine does not apply since the roofer's negligence is stated.

Educational objective:

A principal is generally not vicariously liable for its independent contractor's torts. However, vicarious liability can be imposed when the principal owed a nondelegable duty of care—eg, a land possessor's duty to safely conduct activities on the land that pose a foreseeable risk of harm to others.

References

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 57 (Am. Law Inst. 2012) (general rule: no vicarious liability for independent contractors' torts).

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm §§ 54, 62 (Am. Law Inst. 2012) (exception: land possessor's nondelegable duty to safely conduct activities on the land).

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A four-year-old child sustained serious injuries when a playmate pushed him from between two parked cars into the street, where he was struck by a car. The child, by his representative, sued the driver of the car, the playmate's parents, and his own parents. At trial, the child's total damages were determined to be $100,000. The playmate's parents were determined to be 20% at fault because they had failed to adequately supervise her. The driver was found to be 50% at fault. The child's own parents were determined to be 30% at fault for failure to adequately supervise him.

The court has adopted the pure comparative negligence doctrine, with joint and several liability, in place of the common law rules relating to plaintiff's fault. In addition, the common law doctrines relating to intra-family liability have been abrogated.

What is the maximum amount, if anything, that the child's representative can recover from the driver?

A. $30,000.

B. $50,000.

C. $100,000.

D. Nothing.

Explanation:

Liability of multiple tortfeasors for indivisible harm

Joint & several liability*	Any tortfeasor can be held liable for plaintiff's *total* amount of damages Tortfeasors can sue each other for contribution
Several liability	Each tortfeasor is liable for *portion* of damages corresponding to his/her proportionate fault (eg, 15% of damages for 15% fault)

*Default rule on MBE.

This jurisdiction has **adopted** the following:

Pure comparative negligence (default rule on MBE) – when the plaintiff's own negligence contributes to his/her harm, the plaintiff's **recovery is reduced** by his/her **proportionate share of fault**

Joint and several liability – when multiple defendants cause the plaintiff indivisible harm, the plaintiff can recover the **total amount of damages** from **any defendant** (who can then sue the others for contribution)

Additionally, this jurisdiction has **abandoned** the common law rules of intra-family liability. As a result, the fault of a child's parents will not be imputed to the child or vice versa.

Here, the court determined that multiple defendants were at fault for causing the child's injuries: the playmate's parents (20%), the driver (50%), and the child's parents (30%). The child was not at fault. And since his parents' fault will not be imputed to him, his recovery will not be reduced for comparative negligence. Therefore, the child can recover his total damages ($100,000) from *any* of the defendants—including the driver.

(Choices A & B) If liability were only several (not seen here), each tortfeasor would only be liable for the portion of damages that corresponds to his/her proportionate fault. In that case, the child could only recover $30,000 from his parents (30% of total damages) and $50,000 from the driver (50% of total damages).

(Choice D) If traditional common law rules regarding intra-family liability and contributory negligence applied, the fault of the child's parents would be imputed to the child and bar all recovery. But these rules have been abandoned or replaced in this jurisdiction.

Educational objective:

Under the pure comparative negligence doctrine, a negligent plaintiff's recovery is reduced by his/her proportionate share of fault. And under joint and several liability, any one of

multiple tortious defendants who caused the plaintiff indivisible harm can be held liable for the plaintiff's total amount of damages.

References

Restatement (Second) of Torts § 488 (Am. Law Inst. 1965) (explaining that a parent's negligence is no longer imputed to his/her child and a child's negligence will not be imputed to his/her parent).

Restatement (Second) of Torts § 875 (Am. Law Inst. 1979) (explaining that multiple tortfeasors who cause an indivisible harm can be held liable individually for the entire harm).

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A politician and a businessman were passengers sitting in adjoining seats on an airline's flight. There were many empty seats on the aircraft.

During the flight, a flight attendant served the businessman eight drinks. As the businessman became more and more obviously intoxicated and attempted to engage the politician in a conversation, the politician chose to ignore the businessman. This angered the businessman, who suddenly struck the politician in the face, giving her a black eye.

If the politician asserts a claim for damages against the airline based on battery, will she prevail?

A. No, because the businessman was not acting as an agent or employee of the airline.
B. No, unless she can establish some permanent injury from the contact.
C. Yes, because she suffered an intentionally inflicted harmful or offensive contact.
D. Yes, if the flight attendant acted recklessly in continuing to serve liquor to the businessman.

Explanation:

Vicarious liability

(liability for tortious acts of another)

Respondeat superior	Employee's conduct occurred within scope of employment—ie, under employer's control or while performing assigned work
Nondelegable duty	Independent contractor's work involved abnormally or inherently dangerous activity, condition on land open to general public, or activity regulated by law
Parent	Child committed tort while acting as parent's agent
Business partner	Business partner's conduct occurred within scope of business
Automobile owner	Family member drove car with permission (family-car doctrine) *or* any person drove car with permission under owner-liability statute
Dram shop* & social host	Alcohol sold (dram shop) *or* served at noncommercial setting (social liability) to visibly intoxicated person or minor

*Only applies when question provides dram-shop statute.

Vicarious liability is a type of strict liability in which a principal is liable for the tortious act (e.g., battery) of his/her agent if the act was committed within the scope of an agency relationship. An **agency relationship** exists when the parties mutually agree that the agent will **act on the principal's behalf** and subject to the principal's control (e.g., employer–employee).

Here, the businessman intentionally struck the politician in the face (battery) on the airline's flight. But since the businessman was not an employee of the airline or otherwise acting on its behalf (no agency relationship), the airline is not vicariously liable for the businessman's battery. Therefore, the politician will not prevail in her battery claim against the airline.

(Choice B) Battery merely requires proof of harmful or offensive contact—not permanent injury. Therefore, the politician's ability to show permanent injury will not affect the success of her claim against the airline. Instead, her claim will fail because the airline is not vicariously liable for the businessman's conduct.

(Choice C) The fact that the politician suffered an intentionally inflicted harmful or offensive contact when the businessman struck her face would support a battery claim against the *businessman*. But since the businessman was not the airline's agent, this fact will not allow the politician to prevail against the *airline*.

(Choice D) The airline could be vicariously liable for the flight attendant's (i.e., an employee's) negligence or recklessness in continuing to serve liquor to the businessman. But since the politician's battery claim against the airline is based on the businessman's conduct—not the flight attendant's negligence—the politician's claim will fail.

Educational objective:

A principal is vicariously liable for a tort committed by his/her agent if the tort was committed within the scope of an agency relationship. An agency relationship exists when both parties agree that the agent will act on the principal's behalf and subject to the principal's control (e.g., employer–employee).

References

Restatement (Third) of Agency § 7.03 (Am. Law Inst. 2006) (principal's liability for acts of its agents).

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A seven-year-old child regularly visited a neighboring farm to play and to visit the neighbor's horses. The neighbor told the child that he was welcome at the farm anytime. However, the neighbor warned the child that the horses had to remain in their stable or in their paddock unless the neighbor was present. One day while the neighbor was away, the child went to visit the horses. The child wanted to watch the horses run, so he let them out of their paddock and into an adjoining pasture. One horse escaped from the pasture and ran across a busy road. A driver who swerved to avoid hitting the horse lost control of her car, sustaining serious injuries to herself and damage to the car.

This jurisdiction has a statute that states, in part: "Any person who knowingly releases or causes the release of a domesticated animal is liable in negligence for damage caused by that animal."

The driver of the car sued the child and the child's parents for her injuries and the damage to her car, alleging negligence per se.

Which of the following would likely be the child's best defense?

A. Neither the child nor the child's parents had ownership or control of the horse.
B. The child exercised the care that a child of his age and maturity would have exercised.
C. The driver's harm was not of the type that the statute was designed to prevent.
D. The driver's harm was not proximately caused by the child's actions.

Explanation:

Defenses to negligence per se

Violation of law excused by:

use of reasonable care
incapacity
need to avoid greater risk of harm
impossibility of complying
vagueness of law
reasonable ignorance (rare)

Negligence requires proof of duty, breach, causation, and damages. **Duty and breach** are **presumed** under the doctrine of **negligence per se** when the following facts are proved:

The defendant **violated a statute or ordinance**.
The plaintiff suffered a **type of harm** that the statute or ordinance was **intended to protect against**.
The plaintiff was in the **class of persons intended to be protected** by the statute or ordinance.
However, the defendant's **violation** of an applicable statute or ordinance will be **excused** if the violation was reasonable in light of the defendant's **physical disability or incapacity** OR because the defendant is a **child**. This means that a child's violation will be excused, and negligence per se will not apply, if the child acted with the same level of care as other children of similar age and maturity. Therefore, this would likely be the child's best defense.

(Choice A) The statute applies to *any* person who releases a domestic animal; it is not limited to persons who own or control the animal.

(Choice C) While the statute does not specify the exact type(s) of harm it was designed to prevent, it seems likely that traffic accidents caused by escaped domestic animals is one of them.

(Choice D) Proximate (legal) cause requires that the plaintiff suffer a *foreseeable* harm that is not too remote from, and is within the risk created by, the defendant's conduct. Here, it is foreseeable that letting a horse out of its enclosure could result in the horse entering a nearby roadway and causing a traffic hazard.

Educational objective:

A defendant's violation of an applicable statute or ordinance will be excused, and negligence per se will not apply, if the violation was reasonable in light of the defendant's childhood, physical disability, or physical incapacitation.

References

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 15 (Am. Law Inst. 2010) (discussing excused violations of a statute).

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A shopper was riding on an escalator in a department store when the escalator stopped abruptly. The shopper lost her balance and fell down the escalator steps, sustaining injuries. Although the escalator had been regularly maintained by an independent contractor, the store's obligation to provide safe conditions for its invitees was nondelegable. The shopper has brought an action against the store for damages, and the above facts are the only facts in evidence.

The store has moved for a directed verdict.

Should the court grant the motion?

A. No, because the finder of fact could infer that the escalator malfunction was due to negligence.

B. No, because the store is strictly liable for the shopper's injuries.

C. Yes, because an independent contractor maintained the escalator.

D. Yes, because the shopper has not produced evidence of negligence.

Explanation:

A court should grant a defendant's motion for a directed verdict if the plaintiff fails to present legally sufficient evidence to support any theory of recovery. A plaintiff can recover for **negligence** under theories of:

direct liability (for the defendant's own conduct) – requires proof that the **defendant's failure to exercise reasonable care** caused the plaintiff harm *or*

vicarious liability (for an independent contractor's conduct) – requires proof that a contractor's work involved a **nondelegable duty** owed by the defendant—a duty that cannot be assigned to a third party to avoid liability—and the **contractor's breach** of that duty (ie, negligence) caused the plaintiff harm.

Since businesses have a **duty to provide safe conditions** for their invitees (eg, customers), the store could be directly liable if the shopper can show that her injuries were caused by the store's negligence. And since that duty is **nondelegable**, the store could also be vicariously liable for its independent contractor's negligence **(Choice C)**. And though there is no direct evidence of the store's or the contractor's negligence, the doctrine of **res ipsa loquitur** allows **negligence to be inferred** from circumstantial evidence when:

the type of accident that caused the plaintiff's harm would not ordinarily occur absent negligence by someone in the defendant's (or the contractor's) position *and*

the evidence tends to eliminate other potential causes of that harm.

Here, an escalator would not ordinarily malfunction in the absence of negligence by someone operating or maintaining the escalator, and there is no evidence of other possible causes of the shopper's harm. The fact finder could therefore infer that the malfunction was due to either the store's or the contractor's negligence and that this negligence caused the shopper's injuries **(Choice D)**. As a result, the evidence is legally sufficient to support the shopper's recovery under either theory, and the court should deny the store's motion for a directed verdict.

(Choice B) Strict liability applies to strict products liability, certain animals, and abnormally dangerous activities. But here, the shopper was not harmed by a product sold by the store (no strict products liability), an animal, or an abnormally dangerous activity.

Educational objective:

A defendant can be (1) directly liable for his/her own negligence or (2) vicariously liable for an independent contractor's negligence if the contractor's work involved a nondelegable duty owed by the defendant—eg, a business's duty to maintain safe premises for its invitees.

References

Fed. R. Civ. P. 50(a) (judgment as a matter of law).

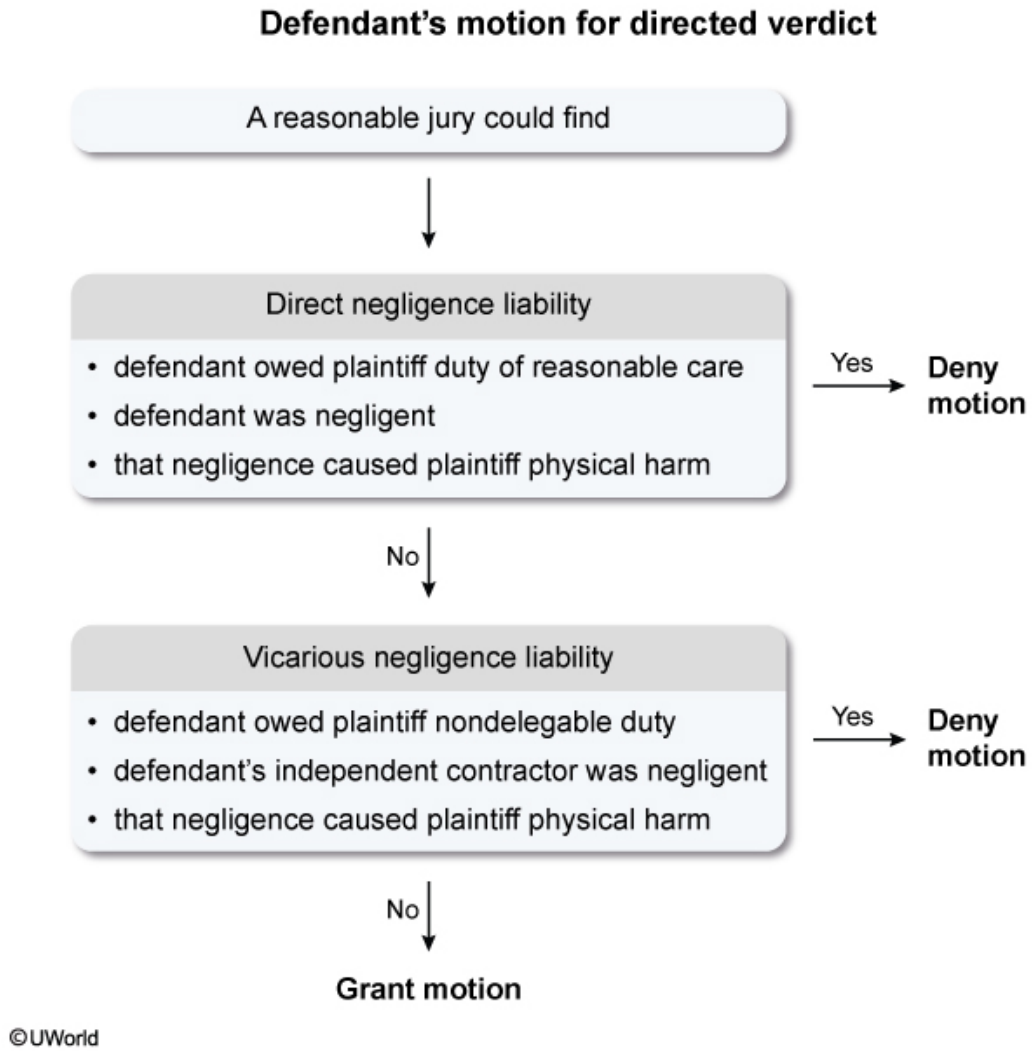
Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 6 (Am. Law Inst. 2010) (direct liability for negligence).

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 62 (Am. Law Inst. 2012) (vicarious liability for independent contractor's negligence).

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 17 (Am. Law Inst. 2010) (res ipsa loquitur).

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A customer bought a can of corn at a grocery store. While eating the corn later that evening, the customer was injured by a small piece of glass in the corn. The customer sued the canning company that had processed and canned the corn.

At trial, the customer presented evidence that neither the customer nor any third party had done anything after the can of corn was opened that would account for the presence of the glass.

Without any other evidence, is the customer likely to prevail?

A. No, because it is possible that someone tampered with the can before the customer bought it.

B. No, because the customer has not shown any direct evidence that the canning company acted negligently.

C. Yes, because a jury may reasonably infer that the canning company acted negligently.

D. Yes, because the grocery store could not have discovered the piece of glass by reasonable inspection.

Explanation:

A plaintiff harmed by a defective product can prevail on a **negligence** claim against a commercial or noncommercial seller when the plaintiff can prove that the seller's failure to use reasonable care caused the plaintiff harm. But when there is no *direct* evidence of the seller's failure to use reasonable care, the seller's negligence will be **inferred** under the doctrine of **res ipsa loquitur** if:

the plaintiff was harmed by a **type of accident** that is **usually caused by negligence** of a seller in the defendant's position (eg, manufacturer) *and*

the evidence tends to **eliminate other potential causes** of the plaintiff's harm.

Here, the customer was injured by a piece of glass *inside* a can of corn—an accident usually caused by a canner's negligence. And by presenting evidence that neither he nor a third party was responsible for the presence of the glass, the customer eliminated other potential causes of the harmful glass's presence. Therefore, the canning company's negligence can be inferred under res ipsa loquitur, and the customer is likely to prevail.

(Choice A) It is possible that someone tampered with the can, but there is no evidence to support that contention. Instead, the canning company's negligence is the most likely explanation for the glass's presence.

(Choice B) Direct evidence of the canning company's negligence is unnecessary because its negligence can be inferred from indirect evidence under the doctrine of res ipsa loquitur.

(Choice D) Although the grocery store had a duty to use reasonable care to discover obvious defects in its canned corn, that duty does not eliminate the canning company's prior negligence in sealing the glass in the can.

Educational objective:

Res ipsa loquitur allows the defendant's negligence to be inferred when (1) the plaintiff's harm resulted from a type of accident that is usually caused by negligence of someone in the defendant's position and (2) the evidence tends to eliminate other potential causes of the plaintiff's harm.

References

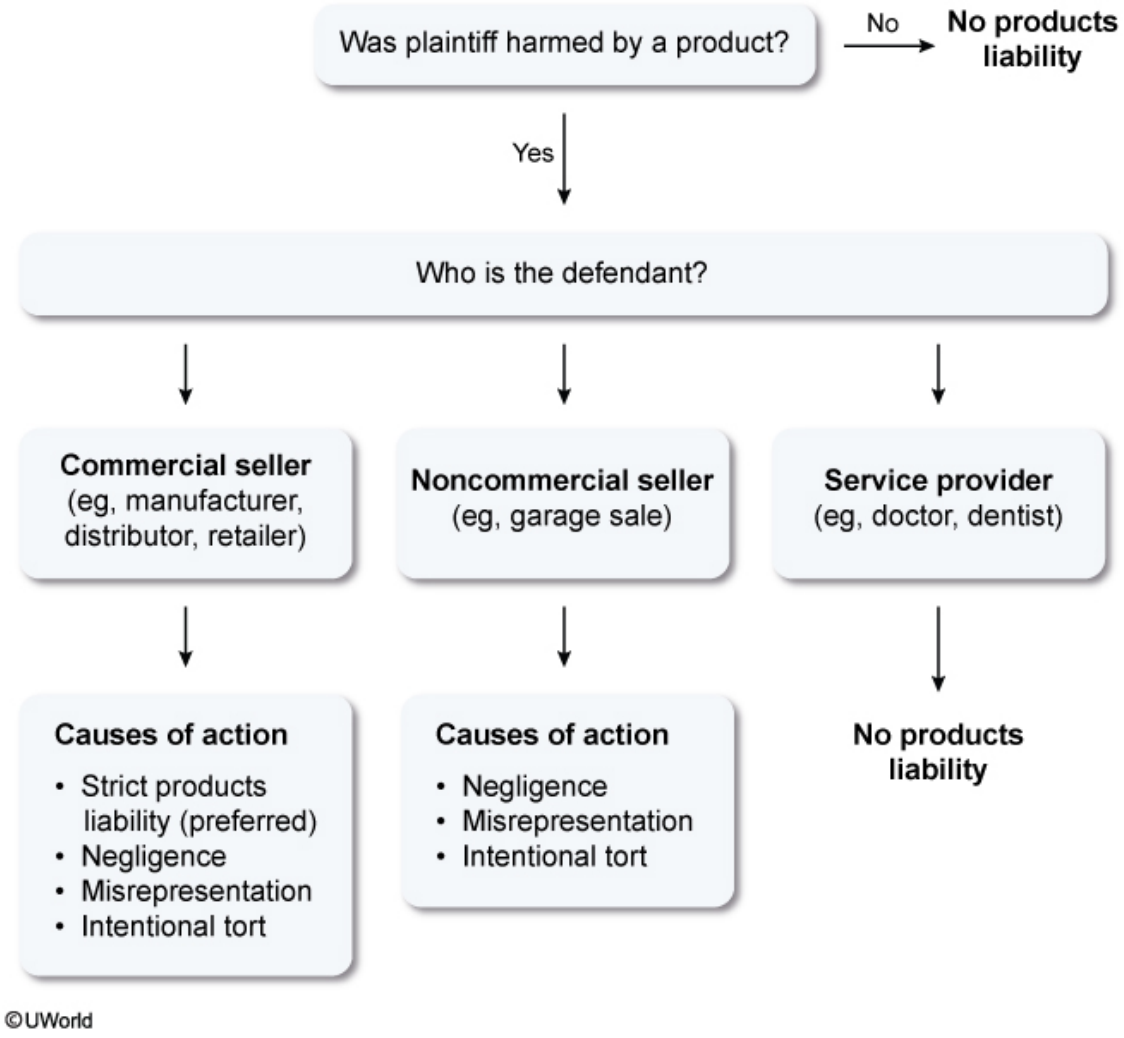
Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 6 (Am. Law Inst. 2010) (negligence liability).

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 17 (Am. Law Inst. 2010) (res ipsa loquitur).

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Products liability



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A man and a woman had been dating for two years and decided to go to a baseball game for their anniversary. Before the game started, the woman decided to listen to music on her headphones while the man went to get snacks. Another fan, bored before the game, found a baseball in the stands and tossed it as hard as he could into the air. As the ball came back down, despite the fan's attempt to get the woman's attention, the ball hit her in the head, causing her to collapse.

When the man returned, he administered CPR to resuscitate the woman while waiting on an ambulance. However, the man did not know CPR and broke the woman's ribs in the process. The paramedics then transported the woman to the hospital, where a triage nurse did a head-to-toe examination and determined that the woman did not need immediate medical attention. While waiting to see the doctor, the woman suffered a brain hemorrhage.

Which of the woman's injuries will the fan be liable for causing?

A. None, because the woman was contributorily negligent by wearing headphones at the ballpark.

B. Head injury, because the man's negligent administration of CPR was a superseding cause that cut off the fan's liability.

C. Head injury and broken ribs, because the triage nurse's specialized training imposed a higher duty of care that, when breached, cut off the fan's liability.

D. Head injury, broken ribs, and brain hemorrhage, because all of the injuries were a foreseeable result of the fan's actions.

Explanation:

Intervening causes

Foreseeable cause	*Foreseeable* intervening act or force that contributes to plaintiff's harm Defendant remains *liable*
Superseding cause	*Unforeseeable* intervening act or force that breaks chain of causation between defendant's tortious conduct & plaintiff's harm Defendant is *not liable*

Negligence requires proof of the following elements: duty, breach, causation, and damages. To prove causation, the plaintiff (the woman) must show that the defendant (the fan) was the actual *and* proximate cause of the plaintiff's injuries:

Actual (factual) cause – the plaintiff's harm would not have occurred **"but for"** the defendant's actions. Here, the head injury would not have occurred if the fan had not thrown the ball in the air.

Proximate (legal) cause – the plaintiff's harm was a **reasonably foreseeable consequence** of the defendant's conduct.* Here, it was reasonably foreseeable that throwing a ball in the air could result in the ball injuring someone nearby.

However, the chain of proximate causation can be **broken by** a superseding cause—ie, an ***unforeseeable*, intervening act** or force that occurred after the defendant's negligence and contributed to the plaintiff's harm. But **negligent intervening acts** (eg, medical malpractice) are typically regarded as ***foreseeable*** and therefore **do not break the chain** of proximate causation.

Here, the man may have been negligent when he administered CPR since he did not know how to do so **(Choice B)**. And the triage nurse may have committed medical malpractice when she incorrectly assessed the woman's need for medical attention **(Choice C)**. But since their negligence is considered foreseeable, it does not break the chain of proximate causation. Therefore, the fan will be liable for causing *all* of the woman's injuries.

*This is the majority rule for proximate causation that should be applied unless the question states otherwise.

(Choice A) In a pure comparative-fault jurisdiction (default rule on the MBE), a plaintiff's contributory negligence is *not* a complete bar to recovery. Instead, the plaintiff's full damages are calculated by the trier of fact and then reduced by the proportion that the plaintiff's fault bears to the total harm.

Educational objective:

Superseding causes—ie, *unforeseeable*, intervening acts that occur after the defendant's negligence and contribute to the plaintiff's harm—break the chain of proximate causation. But negligent intervening acts (eg, medical malpractice) are typically regarded as *foreseeable* and therefore do not cut off the defendant's liability.

References

Restatement (Second) of Torts § 447 (Am. Law Inst. 1965) (negligence of intervening acts).

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A grandmother had her grandson and his friend, both eight years old, over to visit at her house. The grandson and his friend explored her home and discovered a hunting rifle in an unlocked gun cabinet. They removed it from the cabinet and were examining it when the rifle, while in the grandson's hands, somehow discharged. The bullet struck and injured his friend. The gun cabinet was normally locked, but the grandmother had opened it for dusting several days before the boys' visit and had then forgotten to relock it. She was not aware that it was unlocked when the boys arrived.

The friend brought a suit against the grandmother to recover for his injuries. The friend introduced evidence supporting all the facts listed above. At the end of the friend's case-in-chief, the grandmother moved for a directed verdict.

The jurisdiction has abolished traditional rules of landowner liability.

How should the court rule on the grandmother's motion?

A. Deny the motion, because a jury could find that the grandmother breached a duty of care she owed to the friend.

B. Deny the motion, because keeping a firearm in one's home is an abnormally dangerous activity.

C. Grant the motion, because the grandmother did not recall that the gun cabinet was unlocked.

D. Grant the motion, because the grandmother is not legally responsible for the acts of her grandson.

Explanation:

A court should grant a defendant's motion for a **directed verdict** if the plaintiff fails to present legally sufficient evidence to support every element of his/her claim—ie, **no reasonable jury could find** in the plaintiff's favor. In a **negligence claim**—the typical claim for **unintended** physical harm—the plaintiff must prove all of the following:

The defendant owed the plaintiff a **duty**.

The defendant **breached** that duty.

The defendant's breach **caused** the plaintiff's harm.

The plaintiff is entitled to **damages** (ie, suffered physical harm).

Traditionally, the duty owed to land entrants depends on their status on the land (eg, licensee). But under the **modern approach**—adopted in this jurisdiction and about half the others—**land possessors** owe ***all*** **land entrants** (except flagrant trespassers) a **duty of reasonable care**.

Here, the grandmother (land possessor) owed a duty of reasonable care to her grandson's friend because he was visiting her home (land entrant). A reasonable jury could find that she breached that duty by failing to lock the gun cabinet, which ultimately caused the friend to get shot and suffer damages. As a result, the court should deny her motion for a directed verdict and allow the case to proceed.

(Choice B) Keeping a firearm in one's home is *not* an abnormally dangerous activity that subjects the actor to strict liability (ie, liability regardless of fault). That is because it is a common activity whose risks can be mitigated by reasonable care.

(Choice C) The fact that the grandmother did not recall that the gun cabinet was unlocked does not shield her from liability for negligence since she owed the friend a duty to ensure that it was locked.

(Choice D) The grandmother is not legally responsible for her grandson's acts because they do not share a special relationship (eg, parent-child). But she is responsible for her *own* failure to lock the gun cabinet.

Educational objective:

Under the modern approach to land-possessor liability, land possessors owe a duty of reasonable care to *all* land entrants (except flagrant trespassers).

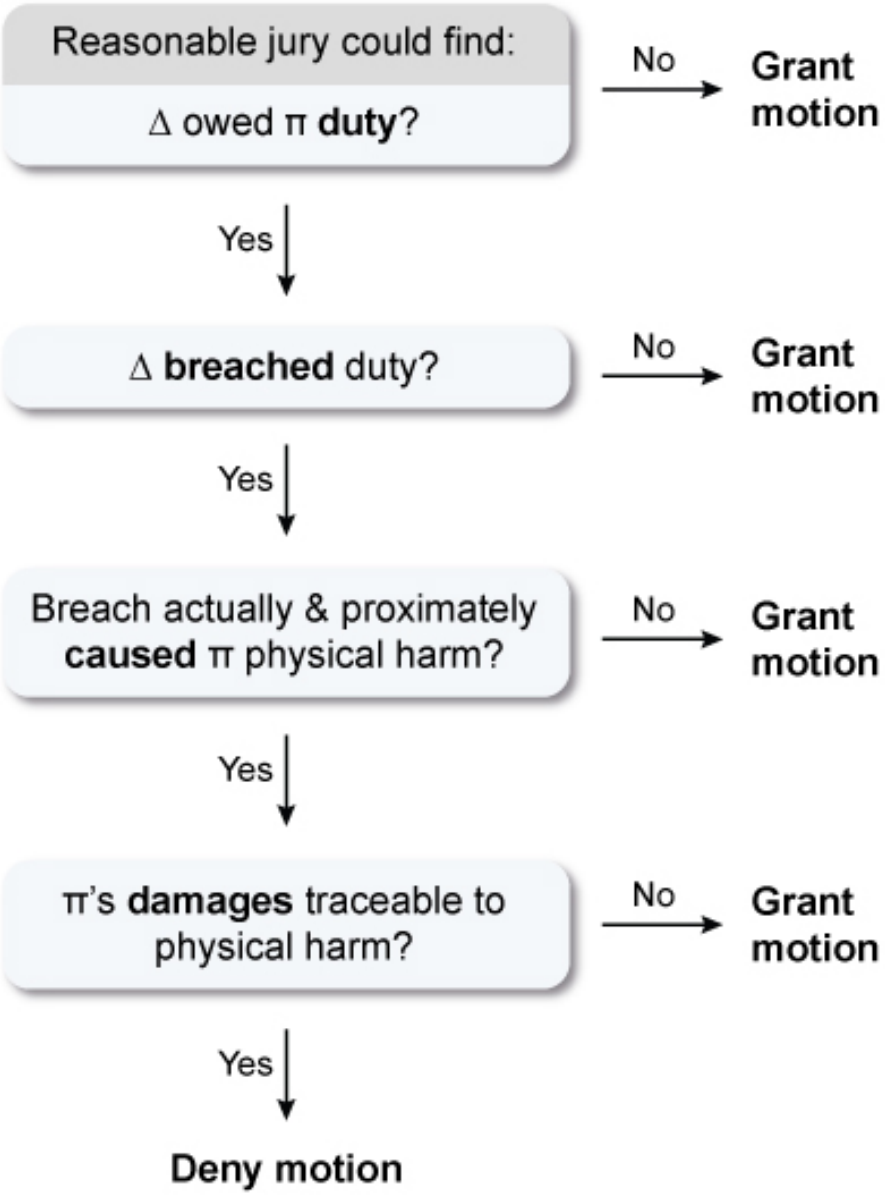
References

Restatement (Third) of Torts § 51 (Am. Law Inst. 2012) (general duty of land possessors).

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Defendant's motion for directed verdict
(negligence claim)



Δ = defendant; **π** = plaintiff

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A hiker sustained a head injury when he was struck by a limb that fell from a tree. At the time of his injury, the hiker was walking through a forest on private property without the property owner's knowledge or permission. It was determined that the limb fell because the tree was infested with termites.

In an action by the hiker against the property owner to recover for his head injury, will the hiker likely prevail?

A. No, because the property owner breached no duty to the hiker, who was a trespasser.

B. No, because the property owner could not foresee that anyone would be injured.

C. Yes, because the property owner had a duty to prevent the trees on his property from becoming dangerous.

D. Yes, because the property owner is liable for hidden dangers on his property.

Explanation:

Land possessor's duty to land entrants

(traditional approach)*

Status	Characteristics	Duty
Trespasser	Intentionally enters land without permission	Known or frequent trespassers – warn of known artificial dangers & use reasonable care in active operations Unknown or unanticipated trespassers – no duty
Licensee	Enters land with permission (eg, social guest)	Warn of known latent dangers & use reasonable care in active operations
Invitee	Enters land open to public (eg, churchgoer) Enters land for business purpose (eg, store customer)	Inspect for unknown dangers Make premises safe or provide adequate warnings Prevent harm from active operations

*In jurisdictions that follow the modern approach, land possessors owe a duty of reasonable care to all land entrants, except flagrant trespassers.

Land possessors are in the best position to prevent harm to those who enter their land. As a result, they owe a **duty** of reasonable care **to *foreseeable* land entrants**. But **no such duty** is owed to **trespassers**—ie, persons who intentionally enter another's land without permission—**unless** the land possessor knows of, or has **reason to anticipate**, their **presence on the land**.

Here, the hiker was injured by a falling tree limb while walking through a forest on private property. The hiker was a trespasser because he intentionally entered the forest without the property owner's permission. And since there is no evidence that the owner knew of—or had reason to anticipate—the hiker's presence, he was an *unforeseeable* trespasser. As a result, the owner owed no duty to the hiker and the hiker will not recover for his injury.

(Choice B) Had the hiker been an invitee, the owner would have owed him a duty to make reasonable inspections of the property. In that case, the owner likely would have discovered the weak tree limbs and foreseen that they could injure someone. But the owner owed no such duty to the hiker since he was a trespasser.

(Choice C) The owner would have owed the hiker a duty to prevent the trees on his property from becoming dangerous (or to provide adequate warnings) had the hiker been an invitee—not a trespasser.

(Choice D) Land possessors must warn discovered or anticipated trespassers about hidden, *artificial* (ie, man-made) dangers on the land of which the land possessor is aware. But even if the hiker had been such a trespasser, the owner would not be liable since he had no knowledge of this hidden, *natural* danger.

Educational objective:

A land possessor owes a duty of reasonable care to *foreseeable* land entrants. But no such duty is owed to *unforeseeable* land entrants (eg, undiscovered or unanticipated trespassers).

References

Restatement (Second) of Torts § 333 (Am. Law Inst. 1979) (no duty to unknown trespassers).

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A lawyer and an accountant were passengers sitting in adjoining seats on an airline's flight. There were many empty seats on the aircraft.

During the flight, a flight attendant served the accountant nine drinks. As the accountant became more and more obviously intoxicated and attempted to engage the lawyer in a conversation, the lawyer chose to ignore the accountant. This angered the accountant, who suddenly struck the lawyer in the face, giving her a black eye.

If the lawyer asserts a claim for damages against the airline based on negligence, will the lawyer prevail?

A. No, because a person is not required by law to come to the assistance of another who is imperiled by a third party.

B. No, because the lawyer could easily have moved to another seat.

C. Yes, because a common carrier is strictly liable for injuries suffered by a passenger while aboard the carrier.

D. Yes, because the flight attendant should have perceived the accountant's condition and acted to protect the lawyer before the blow was struck.

Explanation:

Affirmative duty to act

Assumption of duty	Defendant who voluntarily aids or rescues another has duty to use reasonable care when rendering aid or performing rescue
Creation of risk	Defendant whose conduct creates foreseeable risk of harm or places another in peril has duty to exercise reasonable care to prevent further harm by rendering care or aid
By contract	Duty to use care when performing contractual obligations
By authority	Duty to exercise reasonable control over third party whom defendant has actual ability & authority to control Examples: parent over child, custodian over person in custody, employer over employee, mental-health professional over patient
By relationship	Duty to protect, aid, or assist plaintiff with whom defendant shares unique relationship Examples: business proprietor with patron, common carrier with passenger, innkeeper with guest, employer with employee, parent with child
By statute	Statute imposes obligation to act for another's protection
Land possessor	Duty to mitigate risks posed by natural or artificial conditions on land

An actor has a **duty** to use reasonable care to **protect a victim** if the actor knows (or reasonably should know) that his/her conduct has exposed the victim to an **unreasonable risk of harm from third parties**. The actor may either be:

directly liable for negligence if his/her breach of that duty caused the victim harm *or*

vicariously liable (under the doctrine of **respondeat superior**) for his/her **employee's negligence** if it occurred within the scope of employment.

Here, the accountant struck the lawyer after a flight attendant served him nine drinks on a flight. The flight attendant had a duty to use reasonable care to protect the other passengers since the flight attendant should have known that the accountant was becoming intoxicated (creating an unreasonable risk of harm). The flight attendant then breached that duty by failing to protect the lawyer before the blow was struck. And since serving

drinks fell within the scope of the flight attendant's employment, the airline is vicariously liable for negligence.

(Choice A) A person generally is not required to come to the assistance of another who is imperiled by a third party. But a person *does* have a duty to assist another when the person's conduct has exposed the other to an unreasonable risk of harm from a third party (as seen here).

(Choice B) In a comparative negligence jurisdiction (default rule on the MBE), a plaintiff's recovery for negligence is reduced—not barred—if he/she failed to use reasonable care for his/her own protection. Therefore, the fact that the lawyer remained in her seat when she could have easily moved would not defeat her claim.

(Choice C) Strict liability applies to strict products liability, certain animals, and abnormally dangerous activities. Here, the lawyer was not harmed by a product sold by the airline (no strict products liability), an animal, or an abnormally dangerous activity.

Educational objective:

An actor has a duty to use reasonable care to protect others if the actor knows, or reasonably should know, that his/her conduct has exposed others to an unreasonable risk of harm from third parties.

References

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 6 (Am. Law Inst. 2010) (negligence liability).

Restatement (Third) of Agency §§ 2.04, 7.07 (Am. Law Inst. 2006) (vicarious liability of employer).

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 19 (Am. Law Inst. 2010) (duty when conduct exposes others to an unreasonable risk of harm from a third party).

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A 14-year-old girl of low intelligence received her parents' permission to drive their car. She had very little experience driving a car and did not have a driver's license. Although she did the best she could, she lost control of the car and hit a pedestrian.

The pedestrian has brought a negligence action against the girl.

Is the pedestrian likely to prevail?

A. No, because only the girl's parents are subject to liability.

B. No, because the girl was acting reasonably for a 14-year-old of low intelligence and little driving experience.

C. Yes, because the girl was engaging in an adult activity.

D. Yes, because the girl was not old enough to obtain a driver's license.

Explanation:

Standards of care for negligence

Adult	Must act in same manner as ordinary, reasonable adult in similar circumstances
	Standard adjusted for physical disabilities, superior skill & knowledge, involuntary intoxication
	Standard not adjusted for mental & emotional disabilities, voluntary intoxication
Professional	Must demonstrate same knowledge, skill & care as another professional in similar community
	National (not community) standard applied to medical specialists*
Child	Must act in same manner as reasonable child of same age, intelligence & experience
	Adult standard applied to children engaged in dangerous adult activity
	Children under five years old incapable of negligence

*A modern trend applies a national standard of care to *all* physicians.

Children are generally required to act like a reasonable child of the same age, intelligence, and experience. But **children who engage in** a **dangerous activity** that is **normally undertaken by adults** are held to an **adult standard of care**. This means that the child's conduct will be **measured against** that of an **ordinary, reasonable adult**—irrespective of individual shortcomings like low intelligence and lack of experience. A child whose conduct falls below this standard of care and causes the plaintiff physical harm is liable for negligence.

Here, the 14-year-old girl engaged in a dangerous adult activity when she drove her parents' car. As a result, the adult standard of care applies, and it will not be adjusted to reflect the girl's low intelligence or limited driving experience **(Choice B)**. And since the girl's conduct fell below that standard of care when she lost control of the car and hit the pedestrian, the pedestrian will likely prevail in his negligence action against her.

(Choice A) The girl's parents are likely subject to liability for negligently entrusting their car to her. But this does not mean that the girl cannot be held liable for her own negligence.

(Choice D) The mere fact that the girl was not old enough to obtain a driver's license does not establish that her conduct fell below the adult standard of care at the time of the accident.

Educational objective:

Children are generally required to act in the same manner as a reasonable child of the same age, intelligence, and experience. But a child who engages in a dangerous adult activity will be held to an adult standard of care, under which the child's conduct will be measured against that of an ordinary, reasonable adult.

References

Restatement (Third) of Torts § 10 (Am. Law Inst. 2010) (standard of care for children).

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A young woman who attended a rock concert at a nightclub was injured when the band opened its performance with illegal fireworks that ignited foam insulation in the club's ceiling and walls. The young woman sued the radio station that sponsored the performance. The radio station has moved for summary judgment, claiming that it owed no duty to audience members.

The evidence has established the following facts: The station advertised its sponsorship on the radio and in print, distributed free tickets to the concert, staffed the event with the station's interns to assist with crowd control, and provided a station disc jockey to serve as master of ceremonies. The master of ceremonies had the authority to stop or delay the performance at any time on the basis of any safety concern. The station knew or should have known that the band routinely used unlicensed, illegal fireworks in its performances.

Should the court grant the radio station's motion for summary judgment?

A. No, because there is sufficient evidence of knowledge and control on the part of the station to impose on it a duty of care to audience members.

B. No, because under respondeat superior, the radio station is vicariously liable for the negligent actions of the band.

C. Yes, because it is the band and the nightclub owners who owed audience members a duty of care.

D. Yes, because the conduct of the band in setting off illegal fireworks was criminal and was a superseding cause as a matter of law.

Explanation:

A defendant's motion for summary judgment should be granted when there is insufficient evidence to support one or more elements of the plaintiff's claim. Therefore, summary judgment for the defendant is warranted on a **negligence** claim when there is no evidence that the defendant:

owed the plaintiff a **duty to use reasonable care**

breached that duty *or*

caused the plaintiff harm.

When the defendant is a **land possessor** (ie, one who **occupies and controls** the land), the defendant owes a **duty** to use reasonable care to **identify and mitigate** any **foreseeable risk of harm** to land entrants.

Here, the radio station was a land possessor because it staffed the event (occupation) and provided a disc jockey who had the authority to stop the concert for any safety concern (control). And since the station knew or should have known that the band routinely used illegal fireworks in its performances, the risk of a fire was foreseeable. Therefore, there is sufficient evidence that the station owed audience members a duty to use reasonable care to identify and mitigate that risk, so the station's motion for summary judgment should be denied.

(Choice B) The doctrine of respondeat superior holds employers vicariously liable for their employees' torts. Here, the band was not the radio station's employee, so this doctrine does not apply.

(Choice C) Although the band and nightclub owners likely owed the audience a duty of care, that does not eliminate the radio station's concurrent duty of care.

(Choice D) A superseding cause is an *unforeseeable* force or act that negates a defendant's tort liability. Here, the band's illegal use of fireworks was reasonably *foreseeable*, so its conduct was not a superseding cause and does not absolve the station of liability.

Educational objective:

Land possessors—persons who occupy and control the land—owe land entrants a duty to use reasonable care to identify and mitigate foreseeable risks of harm.

References

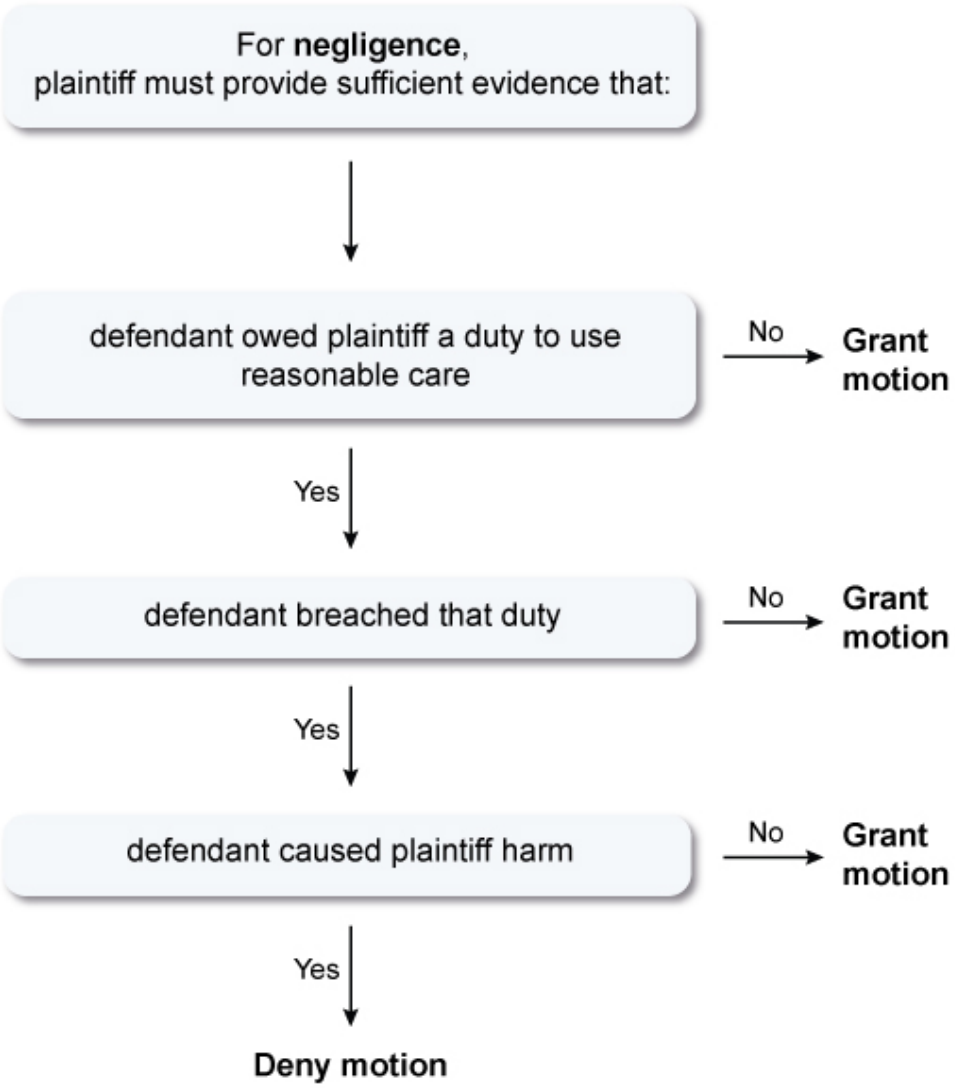
Restatement (Third) of Torts: Liab. for Physical & Emotional Harm §§ 49, 51 (Am. Law Inst. 2012) (duty owed by land possessors).

Fed. R. Civ. P. 56(a) (motion for summary judgment).

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Defendant's motion for summary judgment



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A customer fell and injured himself when he slipped on a banana peel while shopping at a grocery store. The banana peel was fresh and unblemished except for a mark made by the heel of the customer's shoe. In an action brought by the customer against the store, these are the only facts in evidence.

Should the trial judge permit the case to go to the jury?

A. No, because the customer had an obligation to watch where he stepped.

B. No, because there is not a reasonable basis for inferring that the store knew or should have known of the banana peel.

C. Yes, because it is more likely than not that the peel came from a banana offered for sale by the store.

D. Yes, because the store could foresee that a customer might slip on a banana peel.

Explanation:

Land possessor's duty to land entrants

(traditional approach)*

Status	Characteristics	Duty
Trespasser	Intentionally enters land without permission	Known or frequent trespassers – warn of known artificial dangers & use reasonable care in active operations Unknown or unanticipated trespassers – no duty
Licensee	Enters land with permission (eg, social guest)	Warn of known latent dangers & use reasonable care in active operations
Invitee	Enters land open to public (eg, churchgoer) Enters land for business purpose (eg, store customer)	Inspect for unknown dangers Make premises safe or provide adequate warnings Prevent harm from active operations

*In jurisdictions that follow the modern approach, land possessors owe a duty of reasonable care to all land entrants, except flagrant trespassers.

When an invitee (eg, customer) is harmed by a **dangerous condition on the premises**, the **land possessor** (eg, grocery store) is liable for **negligence** if it:

knew or should have known about the condition *and*

failed to use reasonable care to protect the invitee from it.

In the absence of direct evidence, the doctrine of res ipsa loquitur allows **negligence** to be **inferred** from circumstantial evidence. This doctrine may be applied to a defect in the building or its fixtures (eg, escalator malfunction). But it **does not apply** to a **temporary danger** that could have arisen immediately before the plaintiff was harmed (eg, spill).

Here, the customer injured himself when he slipped on a banana peel at the grocery store. But there is no basis for inferring that the store knew or should have known of this temporary danger since the fresh and unblemished peel could have been dropped immediately before the accident. Therefore, the doctrine of res ipsa loquitur does not apply, and the trial judge should not permit the case to go to the jury.

(Choice A) The customer had an obligation to use reasonable care for his own protection—eg, by watching where he stepped. But the customer's contributory negligence would not bar his claim.

(Choice C) The grocery store would be strictly liable had (1) the customer been injured by a defective product and (2) the store been the likely seller of that product. But strict liability is inappropriate because the customer was harmed by a discarded banana peel—not a defective product.

(Choice D) The store had a duty to inspect and clean the floor periodically since it could foresee that a customer might slip on debris (eg, banana peel). But the banana peel was *fresh and unblemished*, indicating that it had not been on the floor for an unreasonably long time.

Educational objective:

The doctrine of res ipsa loquitur does not permit an inference of negligence when the plaintiff was harmed by a temporary danger that could have arisen immediately before the injury occurred (eg, spill).

References

Restatement (Second) of Torts § 328D (Am. Law Inst. 1965) (explaining when a defendant's negligence can be inferred based on the type of accident that injured the plaintiff).

Cox v. Wal-Mart Stores East, L.P., 350 F. App'x 741, 744 (3d Cir. 2009) (explaining that res ipsa loquitur applies to defects in buildings and fixtures, but not to transitory dangers that cause slip-and-falls).

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A real estate developer purchased a large tract of land intending to construct residential housing on it. The developer hired a pool company to build a large in-ground swimming pool on the tract. The contract provided that the pool company would carry out blasting operations that were necessary to create an excavation large enough for the pool. The blasting caused cracks to form in the walls of a man's home in a nearby residential neighborhood.

Will the man prevail on an action for damages against the real estate developer?

A. No, if the pool company used reasonable care in conducting the blasting operations.

B. No, if the real estate developer used reasonable care to hire a competent contractor.

C. Yes, because the blasting that the pool company was hired to perform damaged the man's home.

D. Yes, but only if the real estate developer retained the right to direct and control the pool company's construction of the pool.

Explanation:

A principal is generally **not vicariously liable** for torts committed by its **independent contractor**. However, **vicarious liability will be imposed** when the independent contractor's work involves a **nondelegable duty**—ie, a duty retained by the defendant even when the performance of that duty is assigned to an independent contractor. That type of work includes **abnormally dangerous activities**—uncommon activities in the community that present a foreseeable and highly significant risk of harm that cannot be mitigated by reasonable care.

Here, the real estate developer hired the pool company (independent contractor) to build an in-ground swimming pool. Although the developer normally would not be vicariously liable for the pool company's torts, the pool company had to carry out blasting operations in a residential area (abnormally dangerous activity) to build the pool. And since that work involved a nondelegable duty, the developer is vicariously liable for damages caused by the blasting (cracks in the man's nearby home).

(Choice A) Strict liability (liability without proof of fault) is imposed for abnormally dangerous activities since the risk of harm cannot be mitigated by reasonable care. And since reasonable care could not have reduced the risk of harm from blasting (abnormally dangerous activity), the man can prevail against the real estate developer.

(Choice B) A principal can be *directly* liable for his/her own negligence in hiring an incompetent independent contractor or *vicariously* liable for the independent contractor's torts if they involved a nondelegable duty. Therefore, even if the real estate developer used reasonable care in hiring a competent contractor (no direct liability), the developer is still vicariously liable for the damage caused by the pool company's blasting.

(Choice D) A principal who retains the right to control any part of an independent contractor's work may be liable for failing to use reasonable care when exercising that control. But if the work involves an abnormally dangerous activity (as seen here), the principal will be vicariously liable for the plaintiff's harm (eg, damage to home)—regardless of whether the principal retained the right to control the work.

Educational objective:

A principal generally is not vicariously liable for its independent contractor's torts. However, vicarious liability will be imposed when the principal had a nondelegable duty of care—eg, when the contractor's work involved an abnormally dangerous activity.

References

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 57 (Am. Law Inst. 2012) (general rule – no vicarious liability for independent contractors).

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 58 (Am. Law Inst. 2012) (exception – vicarious liability for independent contractor's abnormally dangerous activities).

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Vicarious liability for nondelegable duty



A pedestrian was walking on a crowded public path when she was struck by a speeding bicyclist who swerved wildly to avoid a jogger. As a result, the pedestrian suffered a dislocated vertebra in her spine that would have required several months of treatment to completely heal. The jogger, who witnessed the accident, had no medical training but believed in good faith that it was medically necessary to lift the pedestrian's head and slip his jacket underneath. This unnecessary act resulted in additional damage to the pedestrian's spine that left the pedestrian permanently unable to walk.

This jurisdiction has enacted the following Good Samaritan statute: "Any person who in good faith renders gratuitous emergency medical care or assistance shall not be liable for civil damages for any act or omission, not amounting to gross negligence, in rendering such aid."

In a suit against both the bicyclist and the jogger for negligence, is the pedestrian likely to prevail?

A. No, because the jogger's act is protected by the statute and is a superseding cause that cut off the bicyclist's liability.

B. Yes, but only against the bicyclist because the jogger's conduct was a foreseeable intervening cause.

C. Yes, but only against the jogger because his gross negligence actually caused the pedestrian's enhanced injury.

D. Yes, since both the bicyclist and the jogger are jointly and severally liable for the pedestrian's injury.

Explanation:

Standards of care for negligence

Adult	Must act in same manner as ordinary, reasonable adult in similar circumstances
	Standard adjusted for physical disabilities, superior skill & knowledge, involuntary intoxication
	Standard not adjusted for mental & emotional disabilities, voluntary intoxication
Professional	Must demonstrate same knowledge, skill & care as another professional in similar community
	National (not community) standard applied to medical specialists*
Child	Must act in same manner as reasonable child of same age, intelligence & experience
	Adult standard applied to children engaged in dangerous adult activity
	Children under five years old incapable of negligence

*A modern trend applies a national standard of care to *all* physicians.

A plaintiff will prevail on a negligence claim if four elements are established: duty, breach, causation, and damages. Duty refers to the obligation to protect another against unreasonable risk of injury. The **duty of care** imposed on a defendant is that of a **reasonably prudent person** under the **circumstances**—ie, one in the defendant's **same position**, with the **same information** and **level of competence**.

Here, the bicyclist breached the duty of care by speeding and swerving wildly to avoid a jogger since a reasonably prudent person would ride in a controlled manner. Since that breach caused the bicyclist to hit and injure the pedestrian, the bicyclist is liable for negligence.

The jogger's attempted aid did not negate the bicyclist's liability because it was not a superseding cause—ie, an *unforeseeable* intervening event that breaks the chain of proximate causation *between* the defendant's tortious act and the plaintiff's harm. Instead, the jogger's intervention was foreseeable and occurred *after* the plaintiff's injury **(Choice A)**.

This foreseeable intervention would make the jogger jointly and severally liable to the plaintiff if his actions were negligent. But **less may be expected** of a reasonably prudent person forced to **act in an emergency** such as this one—so long as the defendant's conduct did not cause the emergency.*

Here, the jogger acted as a reasonably prudent person during this emergency by rendering aid to the injured pedestrian. Therefore, the jogger did not breach a duty of care—and is not liable for negligence—even though his aid exacerbated the pedestrian's injuries. Even if the jogger had been negligent, he would have been shielded by the jurisdiction's Good Samaritan statute since his actions did not amount to gross negligence. As a result, the pedestrian will not prevail against the jogger **(Choices C & D)**.

*But if the defendant's conduct created the emergency, then the defendant may be liable for failing to rescue the plaintiff from that situation even if a reasonably prudent person would not have been expected to do so.

Educational objective:

The duty of care imposed on a defendant is that of a reasonably prudent person under the circumstances—ie, one in the defendant's same position, with the same information and level of competence. Therefore, less may be expected of a reasonably prudent person acting in an emergency.

References

Restatement (Second) of Torts § 283 (Am. Law Inst. 1981) (reasonable-man standard).

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A male attendant who worked at a hospital had sexual relations with a severely mentally incompetent patient in her room at the hospital.

In a tort action brought on the patient's behalf against the hospital, will the patient prevail?

A. No, if the male attendant's actions were outside the scope of his employment.

B. No, if the patient initiated the relationship with the male attendant and encouraged his actions.

C. Yes, if the hospital failed to use reasonable care to protect the patient from such conduct.

D. Yes, if the male attendant was an employee of the hospital.

Explanation:

Special relationships

imposing duty to protect others

Parent/child
Hospital/patient
Employer/employees
Shopkeeper/business invitees
Common carrier/passengers
Custodian/person in custody
Innkeeper/guests
Mnemonic: **P**lease **H**elp **E**liminate **S**afety **C**oncerns **C**ausing **I**njuries

A defendant generally has **no duty to protect** a plaintiff from harm. But when the defendant has a **special relationship** with the plaintiff (eg, hospitals and their patients), the defendant has a **duty to exercise reasonable care** to protect the plaintiff from harm arising within the **scope of that relationship**. A defendant is liable for negligence if it breaches this duty and causes the plaintiff harm.

Here, the hospital had a duty to use reasonable care to protect the patient from harm arising within the scope of the hospital-patient relationship. Since the male attendant had sexual relations with the patient in her hospital room, her harm occurred within the scope of that relationship. Therefore, the patient will prevail in her action against the hospital if it failed to use reasonable care to protect her from the male attendant's conduct.

(Choice B) Consent to another's conduct is a complete bar to recovery for the resulting harm. But a person can only consent if he/she has the capacity to do so—ie, the ability to understand the nature and effect of his/her actions. And since the patient was *severely* mentally incompetent (no capacity), the fact that she initiated the relationship with the male attendant or encouraged his actions would not defeat her claim.

(Choices A & D) Under the doctrine of respondeat superior, an employer is vicariously liable for torts committed by its employees while acting within the scope of employment—ie, while (1) performing assigned work or (2) engaging in conduct subject to the employer's control. But even if the male attendant was not an employee or was acting outside the scope of employment (no vicarious liability), the hospital will still be directly liable for its own negligence.

Educational objective:

A hospital owes a duty to exercise reasonable care to protect its patients from harm arising within the scope of the hospital-patient relationship.

References

Restatement (Second) of Torts § 282 (Am. Law Inst. 1979) (definition of negligence).

Restatement (Second) of Torts § 314 (Am. Law Inst. 1979) (no duty to act to protect or aid another).

Restatement (Second) of Torts § 314A (Am. Law Inst. 1979) (duty to protect or aid based on special relationship).

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While a businesswoman was leaving an elevator, it suddenly dropped several inches, causing her to fall. An investigation of the accident revealed that the elevator dropped because it had been negligently maintained by an elevator company. The elevator company had a contract with the owner of the building to inspect and maintain the elevator. The businesswoman's fall severely aggravated a preexisting physical disability.

If the businesswoman sues the elevator company for damages for her injuries, what should she recover?

A. Damages for the full amount of her disability, because a tortfeasor must take its victim as it finds her.

B. Damages for the injury caused by the falling elevator, including the aggravation of her preexisting disability.

C. Nothing, if the accident would not have caused significant harm to an ordinarily prudent elevator passenger.

D. Nothing, if the elevator company could not reasonably have been expected to foresee the extent of the harm that the businesswoman suffered as a result of the accident.

Explanation:

Relevance of foreseeability for negligence

Duty	Defendant's duty only extends to *foreseeable* risks of his/her conduct
Breach	Defendant fails to act like reasonable person under similar circumstances by not mitigating *foreseeable* risks
Causation	Actual (but for) cause – foreseeability irrelevant Proximate cause – plaintiff's harm must have been *foreseeable* consequence of defendant's breach
Damages	Foreseeability irrelevant (ie, eggshell-skull rule)

To recovery under a theory of negligence, the plaintiff must prove duty, breach, causation, and **damages**. Under the **eggshell-skull rule**, damages are available for ***all* of the harm** stemming from the defendant's negligence. This is true **even if** the extent of that harm was **unforeseeable** and unusually severe—eg, due to the plaintiff's preexisting vulnerability or medical condition.

Here, the elevator company's negligent maintenance caused the elevator to suddenly drop several inches while the businesswoman was leaving it. Since this caused the businesswoman to fall, she can recover damages for her injury, including the aggravation of her preexisting disability. This is true even if the elevator company could not have reasonably foreseen the extent of the businesswoman's harm **(Choice D)**.

(Choice A) Under the eggshell-skull rule, a tortfeasor "takes its victim as it finds her." This means that the elevator company must pay for the full extent of the businesswoman's injuries *caused* by its negligence (eg, the aggravation of her disability). But it need not pay for any injury that was *not* caused by its negligence (eg, her entire disability).

(Choice C) The extent and severity of the plaintiff's harm never has to be foreseeable, so the fact that the accident would not have caused an ordinary elevator passenger significant harm is irrelevant.

Educational objective:

Under the eggshell-skull rule, a tortfeasor is liable for all of the harm resulting from his/her tortious conduct—even if the extent of that harm was unforeseeable and unusually severe (eg, due to the victim's preexisting vulnerability).

References

Restatement (Second) of Torts § 435 (Am. Law Inst. 1965) (explaining that a tortfeasor can be liable for harm that he/she neither foresaw nor should have foreseen).

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A municipal builder constructed a strip mall in an area designated as a flood zone, which had a one percent annual chance of flooding. The municipal builder negligently failed to adhere to a local building code that set forth flood-resistant construction requirements on structures built within the zone and imposed penalties for failing to meet those requirements.

Upon completing construction, the municipal builder leased storefronts to various local businesses. The following year, one of the storefronts flooded, destroying all of the merchandise therein. Even if the builder had adhered to the local building code, however, the storefront would have suffered the same damage due to the unusual severity of the flood.

The tenant of the flooded storefront sued the municipal builder in a negligence action for the value of the merchandise destroyed by the flood.

The jurisdiction continues to follow traditional rules regarding municipal tort immunity.

Will the tenant be likely to prevail?

A. No, because the municipal builder enjoys immunity from tort liability.

B. No, because the storefront would have suffered the same damage even if the municipal builder had adhered to the local building code.

C. Yes, because the municipal builder's failure to adhere to the local building code was negligence per se.

D. Yes, because the risk of damage to the merchandise was the type of risk that the local building code was intended to prevent.

Explanation:

Government immunity from tort liability

Federal government	Immunity governed by Federal Tort Claims Act U.S. government waives immunity in tort actions except for: certain enumerated torts (not including negligence) discretionary functions government contractors in products liability cases certain traditional government activities
State governments	Immunity governed by state tort-claims acts (which vary greatly)
Municipalities	Immunity governed by state tort-claims acts Traditional rule – immunity for performance of traditional *government* functions but not *proprietary* functions Public-duty rule – no liability to one citizen for failure to fulfill duty owed to public at large unless special relationship exists
Government officials	Immunity for *discretionary* acts done without malice or improper purpose but not *ministerial* acts (eg, driving while on government business)

Traditionally, the immunity of a **municipal actor** depended on the act giving rise to the tort claim.* **Immunity attached** to the performance of **traditional government functions** (eg, police, court systems) but **not** to the performance of a **proprietary function** that is often performed by a private company (eg, utilities, parking lots). Building a shopping mall falls under the latter category, so the municipal builder here is *not* immune from tort liability **(Choice A)**.

However, the tenant will only prevail in this **negligence** action if the tenant proves that the builder's negligent failure to adhere to the local building code actually and proximately caused the tenant's harm. **Actual causation** exists when, **but for** the defendant's **tortious conduct**, the plaintiff's **harm would not have occurred**. Since the storefront would have suffered the same damage *even if* the builder had adhered to the building code, the builder's negligence was not the actual cause of that harm. Therefore, the tenant is unlikely to prevail.

*Today, municipal tort liability is usually governed by the provisions of state tort-claims acts.

(Choice C) Violating a statute (eg, building code) can constitute negligence per se (ie, negligence as a matter of law). But unless that negligence actually and proximately caused the plaintiff's injuries, there can be no liability.

(Choice D) While the risk of flood damage (eg, destruction of merchandise) was the very risk that the local building code was imposed to address, compliance with the code would not have prevented the damage to the storefront here.

Educational objective:

Traditionally, municipal tort immunity attached to the performance of traditional government functions but not to the performance of proprietary functions that are usually performed by a private company.

References

Restatement (Second) of Torts § 895C cmt. e (Am. Law Inst. 1981) (governmental and proprietary functions).

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A 13-year-old girl was operating a high-speed motorboat. The boat was towing a 9-year-old boy in an inner tube tied to the rear of the motorboat by a rope. The rope became tangled around the boy's foot, causing him to suffer severe injuries.

In a suit brought on the boy's behalf against the girl, the boy has introduced uncontroverted evidence that the girl drove carelessly in such a way as to entangle the boy in the rope.

Is the boy likely to prevail?

A. No, because the boy assumed the risk.

B. No, because the girl was too young to be expected to appreciate and avoid the risk to which she exposed the boy.

C. Yes, because children of the girl's age should have the capacity to operate motorboats.

D. Yes, because the girl will be held to an adult standard of care.

Explanation:

Standards of care for negligence

Adult	Must act in same manner as ordinary, reasonable adult in similar circumstances
	Standard adjusted for physical disabilities, superior skill & knowledge, involuntary intoxication
	Standard not adjusted for mental & emotional disabilities, voluntary intoxication
Professional	Must demonstrate same knowledge, skill & care as another professional in similar community
	National (not community) standard applied to medical specialists*
Child	Must act in same manner as reasonable child of same age, intelligence & experience
	Adult standard applied to children engaged in dangerous adult activity
	Children under five years old incapable of negligence

*A modern trend applies a national standard of care to *all* physicians.

Children are generally expected to conform to a child's standard of care, which requires them to act like a reasonable child of the same age, intelligence, and experience. But a **child who engages** in a **dangerous activity** that is **normally undertaken by adults** (eg, driving a car) will be held to an **adult standard of care**. The child's conduct will then be measured against that of an **ordinary, reasonable adult** under the circumstances. And if the child breaches this duty of care and causes the plaintiff physical harm, the child is liable for negligence.

Here, the 13-year-old girl may have been too young to appreciate and avoid the risk to which she exposed the boy by towing him in an inner tube behind the motorboat. But she will be held to an adult standard of care because she was engaged in a dangerous adult activity **(Choice B)**. And since the girl breached that duty of care by driving carelessly and caused the boy to suffer severe injuries, the boy will likely prevail in his suit against her.

(Choice A) In most jurisdictions, a plaintiff's voluntary assumption of the risk reduces—but does not bar—recovery. So even if the boy assumed the risk by choosing to ride in the inner tube, his recovery will not be barred.

(Choice C) Children of the girl's age should *not* be expected to have the capacity to operate motorboats. Instead, the boy's claim will likely succeed because the girl will be held to an adult standard of care.

Educational objective:

Children who engage in a dangerous adult activity (eg, driving a motor vehicle) will be held to an adult standard of care, which requires them to conform their conduct to that of an ordinary, reasonable adult.

References

Restatement (Third) of Torts § 10 (Am. Law Inst. 2010) (standard of care for children).

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A private school held a bake sale to raise money. Three parents separately made chocolate chip cookies at their own homes, following their own recipes. The parents brought their cookies to school on the designated day, and a volunteer divided the cookies among small plates for sale. Each small plate contained at least one cookie from each of the three parents. Several people who purchased treats from the bake sale became ill and were diagnosed with food poisoning. After an investigation, the Health Department determined that the chocolate chip cookies caused the outbreak, and that someone who made the cookies did not follow appropriate food-safety measures.

A student who purchased a plate of the chocolate chip cookies became so ill that she required hospitalization. She sued the three parents who made the chocolate chip cookies for negligence, claiming that the parents are jointly and severally liable for her harm. The student was able to conclusively establish that the chocolate chip cookies were the cause of her illness, but not which specific parent made the contaminated cookies.

Is the student likely to succeed in her negligence suit?

A. No, because the student cannot sue multiple defendants for the same harm.

B. No, because there is no evidence that each of the parents was negligent.

C. Yes, because the parents have the burden to prove that they did not cause the student's harm.

D. Yes, because the parents were acting in concert to raise money through the bake sale.

Explanation:

Joint and several liability arises when **two or more defendants** were negligent and any one of them **could have caused** the **plaintiff's indivisible harm**. This allows the plaintiff to recover the full amount of damages from any of the negligent defendants, even if it is impossible to prove which one actually caused the harm. However, the plaintiff must first prove that **each defendant was negligent**.

Here, the parents were not acting in concert—ie, pursuant to a common plan or design—because they each made the cookies in their own homes, following their own recipes **(Choice D)**. And there is no evidence that each parent was negligent because the Health Department merely determined that someone (not everyone) failed to follow appropriate food-safety measures. This means that the parents are *not* jointly and severally liable for the student's illness. Therefore, the student is unlikely to succeed in her negligence suit.

(Choice A) A plaintiff can sue multiple defendants for the same harm based on joint and several liability. However, the plaintiff must still prove that each defendant acted negligently.

(Choice C) In a joint and several liability action, the burden shifts to each defendant to prove that his/her negligence did not cause the plaintiff's harm *only* after the plaintiff proves that each defendant was negligent (not seen here).

Educational objective:

If multiple defendants were negligent and any one of them could have caused the plaintiff's harm, joint and several liability allows the plaintiff to recover from any of them even if it is impossible to prove which defendant actually caused the harm. But the plaintiff must first show that each of the defendants was negligent.

References

Restatement (Second) of Torts § 875 (Am. Law Inst. 1979) (explaining that multiple tortfeasors who cause an indivisible harm can be held liable individually for the entire harm).

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A homeowner was injured when he slipped and fell in a puddle of water on his sunroom floor; the water had accumulated on the floor during a rainstorm because of leaks in the roof. The roof's manufacturer had supplied nondefective materials to the installer, who was a franchisee (and not an employee) of the manufacturer. The leaks resulted from the carelessness of the installer during the installation of the roof.

The installer's truck, which had been parked in front of the homeowner's house during the roof installation, bore the manufacturer's logo. The manufacturer was aware that the truck and the literature supplied by the installer both displayed the manufacturer's logo.

Is there any basis for a claim by the homeowner against the manufacturer?

A. No, because a franchisor has no duty to supervise the conduct of a franchisee.

B. No, under the rule that a manufacturer is liable only for defects in a product that existed at the time the product left the hands of the manufacturer.

C. Yes, because the installer was a franchisee of the manufacturer.

D. Yes, under the rule of apparent agency.

Explanation:

A defendant may be **vicariously liable** for a third party's torts if an **agency relationship** existed between them—ie, when the third party agreed to act on the defendant's behalf and subject to the defendant's control. Since a franchisor does not control a franchisee's day-to-day operations (no agency relationship), the franchisor is generally not vicariously liable for the franchisee's torts. But under the **rule of apparent agency** (ie, apparent authority), **vicarious liability can be imposed** if:

the plaintiff **reasonably believed** that the third party was acting within the **scope of an agency relationship** with the defendant *and*

that belief was **traceable to the defendant's manifestations** (ie, words or conduct).

Here, the manufacturer (franchisor) would generally not be vicariously liable for the installer's (franchisee's) conduct **(Choice C)**. But the homeowner could have reasonably believed that the installer was acting as the manufacturer's agent since the installer's truck and literature displayed the manufacturer's logo. And since the manufacturer knew about this and permitted the installer to do so, that belief was traceable to the manufacturer's manifestations. Therefore, the homeowner has a basis for a claim against the manufacturer under the rule of apparent agency.

(Choice A) Although a franchisor is not *directly* liable for a franchisee's conduct (since the franchisor has no duty to supervise the franchisee), a franchisor can still be *vicariously* liable for a franchisee's torts under the rule of apparent agency.

(Choice B) Under strict products liability, a manufacturer is only liable for product defects that existed when the product left the manufacturer's hands. Here, the manufacturer supplied *nondefective* materials to the installer so there is no basis for a strict products liability claim.

Educational objective:

Under the rule of apparent agency, a defendant may be vicariously liable for a third party's torts if (1) the plaintiff reasonably believed that the third party was acting within the scope of an agency relationship with the defendant and (2) that belief was traceable to the defendant's manifestations.

References

Restatement (Third) of Agency § 1.01 (Am. Law Inst. 2006) (definition of agency).

Restatement (Third) of Agency § 2.03 (Am. Law Inst. 2006) (apparent agency).

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Apparent agency

Reasonable belief of agency relationship + Traceable to defendant's manifestations





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A student had weekly sessions with a psychotherapist. During every session, the student would tell the psychotherapist that he was convinced that his roommate was impersonating him and slowly trying to take over his life. For the past several weeks, the student had become more and more agitated when speaking about the roommate, and at their most recent session, the student told the psychotherapist about his plans to kill the roommate. The student explained to her that he had not quite figured out how he was going to carry out his plan, but that he planned to kill the roommate before the upcoming winter break.

A statute in the jurisdiction imposes an affirmative duty to act "for the protection of another whom the individual has found in peril."

Is the psychotherapist under a legal duty to warn the roommate?

A. No, because the psychotherapist has no affirmative duty to act.

B. No, because the student's threats of future harm do not put the roommate in imminent danger.

C. Yes, because the student has made credible threats of physical violence against the roommate.

D. Yes, because under the statute, the psychotherapist has an affirmative duty to act.

Explanation:

Affirmative duty to act

Assumption of duty	Defendant who voluntarily aids or rescues another has duty to use reasonable care when rendering aid or performing rescue
Creation of risk	Defendant whose conduct creates foreseeable risk of harm or places another in peril has duty to exercise reasonable care to prevent further harm by rendering care or aid
By contract	Duty to use care when performing contractual obligations
By authority	Duty to exercise reasonable control over third party whom defendant has actual ability & authority to control Examples: parent over child, custodian over person in custody, employer over employee, mental-health professional over patient
By relationship	Duty to protect, aid, or assist plaintiff with whom defendant shares unique relationship Examples: business proprietor with patron, common carrier with passenger, innkeeper with guest, employer with employee, parent with child
By statute	Statute imposes obligation to act for another's protection
Land possessor	Duty to mitigate risks posed by natural or artificial conditions on land

A person generally has no duty to control another unless the parties share a special relationship. **Mental-health professionals** share a special relationship with their **patients**, so they have a duty to use reasonable care to identify dangerous patients and mitigate the risks they pose to others. So when a patient makes a **credible threat of physical violence** against an **ascertainable victim**, the mental-health professional has a **duty to warn** the would-be victim or take other steps to mitigate the risk posed by the patient (eg, notify law enforcement).*

Here, the student told the psychotherapist that he planned to kill his roommate before the upcoming winter break. This was a credible threat of physical violence, especially since the student had become increasingly agitated when speaking to the psychotherapist about the roommate over the past several weeks. And because of the psychotherapist's special relationship with the student, she has a legal duty to warn the roommate of the student's plan **(Choice A)**.

*Whether a threat of physical violence is credible is determined by the objective standard of a reasonable mental-health professional in the same circumstance.

(Choice B) Threats of future harm do not put others in apprehension of imminent danger and therefore cannot support a claim for assault. But imminence is irrelevant in determining whether a mental-health professional's duty to warn has attached.

(Choice D) The psychotherapist's duty to warn the roommate arises from the psychotherapist's special relationship with the student who poses a risk of harm to the roommate—not from the jurisdiction's statute. Additionally, it is unclear whether the statute would even apply here since the psychotherapist did not necessarily "find the roommate in peril."

Educational objective:

A special relationship exists between mental-health professionals and their patients. Therefore, if a patient makes a credible threat of physical violence against an ascertainable victim, the mental-health professional must warn the would-be victim of the risk posed by the patient or take other steps to mitigate that risk.

References

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 41 (Am. Law Inst. 2010) (duty to third parties based on special relationship with person posing risks).

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An elderly neighbor hired a 17-year-old boy with a reputation for reckless driving to drive the neighbor on errands once a week. One day the teenager, driving the neighbor's car, took the neighbor to the grocery store. While the neighbor was in the store, the teenager drove out of the parking lot and headed for a party on the other side of town. While on his way to the party, the teenager negligently turned in front of a moving car and caused a collision. The other driver was injured in the collision.

The injured driver has brought an action for damages against the neighbor, based on negligent entrustment, and against the teenager. The jury has found that the injured driver's damages were $100,000, that the injured driver was 10% at fault, that the teenager was 60% at fault, and that the neighbor was 30% at fault for entrusting his car to the teenager.

Based on these damage and responsibility amounts, what is the maximum that the injured driver could recover from the neighbor?

A. $100,000.

B. $90,000.

C. $60,000.

D. $30,000.

Explanation:

To determine the amount of compensatory damages a plaintiff may recover in a negligence action, the following rules apply (unless the question otherwise indicates):

Pure comparative negligence – when the plaintiff's own negligence contributes to his/her harm, the plaintiff's **recovery is reduced** by his/her **proportionate share of fault**

Joint and several liability – when multiple defendants cause the plaintiff indivisible harm, the plaintiff can recover the **total amount of damages** from **any defendant** (who can then sue the others for contribution)

Here, the jury determined that the injured driver sustained $100,000 in damages and apportioned liability as follows: the driver (10%), the neighbor (30%), and the teenager (60%). The driver's recovery will be reduced by his proportionate share of fault ($100,000 - $10,000 = $90,000) **(Choice A)**. The driver may then recover the $90,000 from *any* of the defendants, including the neighbor.*

*The neighbor could then bring a contribution action against the teenager for $60,000—the amount attributable to the teenager's fault.

(Choices C & D) Had the jurisdiction adopted several liability (not seen here), each defendant would have been liable only for his/her proportionate share of fault. This would mean that the driver could only recover $30,000 from the neighbor for negligently entrusting his car and $60,000 from the teenager for his negligent driving (as opposed to recovering the full $90,000 from either defendant).

Educational objective:

Under pure comparative negligence, a negligent plaintiff's recovery is reduced by his/her proportionate share of fault. And if multiple defendants cause the plaintiff indivisible harm, joint and several liability allows the plaintiff to recover the total amount of recoverable damages from any defendant.

References

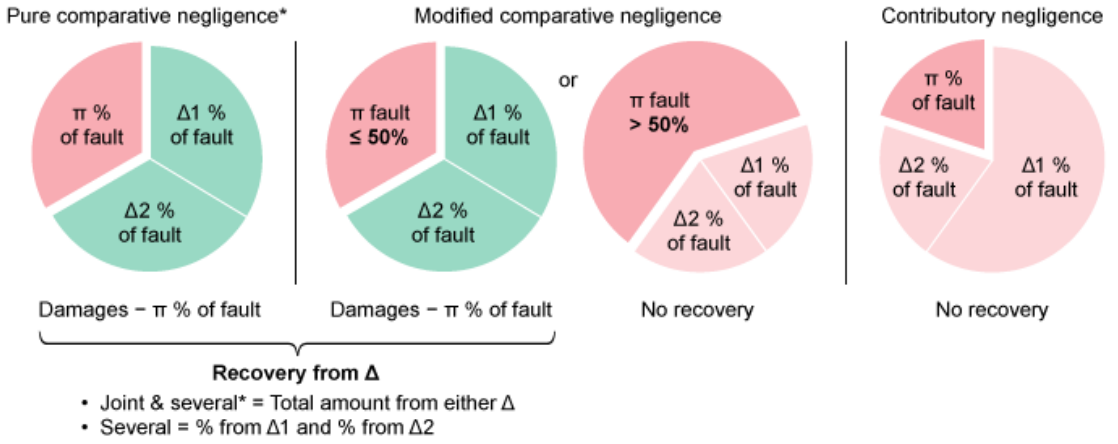
Restatement (Third) of Torts: Apportionment of Liab. § 7 (Am. Law Inst. 2000) (pure comparative negligence).

Restatement (Third) of Torts: Apportionment of Liab. § 10 (Am. Law Inst. 2000) (joint and several liability).

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Negligence rules of recovery



Recovery from Δ

- Joint & several* = Total amount from either Δ
- Several = % from Δ1 and % from Δ2

*Default rule on MBE; **π** = plaintiff; **Δ** = defendant

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While visiting at his son's home, a grandfather tripped on a toy left on the floor by his four-year-old grandson. The grandfather fell and was severely injured. The grandfather regularly visited his son's home and was aware that the grandson routinely left toys scattered about the house. The son had never warned the grandfather to look out for toys.

The grandfather brought an action against his son to recover for his injuries. At trial, after the close of evidence, both the grandfather and the son have moved for judgment as a matter of law as to liability. The jurisdiction has abolished intra-family immunity and applies the traditional rules of landowner liability.

What action should the court take?

A. Deny both motions and submit the case to the jury based on negligence.

B. Deny both motions and submit the case to the jury based on strict liability.

C. Grant the grandfather's motion, because the son is liable as a matter of law for failing to warn about the risk of toys being left on the floor.

D. Grant the son's motion, because the son had no duty to warn that the grandson might leave toys on the floor.

Explanation:

After the parties have presented their evidence to the jury, any party may move for **judgment as a matter of law** (JMOL). This motion asks the judge to bypass the jury and render a decision in favor of the moving party because no reasonable jury could find in favor of the opposing party. Therefore, a judge should **grant a defendant's motion** for JMOL if there is **legally insufficient evidence** to support **any element** of the plaintiff's claim.

In a **negligence claim**, the plaintiff must first prove that the **defendant owed a duty** to the plaintiff. When the defendant is a land possessor, the duty owed to the plaintiff under the traditional rules of landowner liability depends on the plaintiff's status on the land. Many land entrants are licensees—ie, persons who enter another's land with permission (eg, social guests). And a land possessor has a **duty to warn licensees** about **latent (ie, hidden) dangers** of which the land possessor is, or should be, aware.

Here, the grandfather (plaintiff) was injured when he tripped on his grandson's toy. The grandfather was a licensee because he was visiting his son's (defendant's) home at the time. But since the grandfather already knew that his grandson routinely left toys scattered about the house, the son had *no duty* to warn the grandfather that toys might be on the floor. And since the grandfather cannot establish this element of negligence, the court should grant the son's motion (and deny the grandfather's motion) for JMOL **(Choices A & C)**.

(Choice B) Strict liability (ie, liability regardless of fault) is appropriate only in limited situations—none of which apply here.

Educational objective:

A land possessor traditionally owes licensees (eg, social guests) a duty to warn about latent dangers of which the land possessor is, or should be, aware.

References

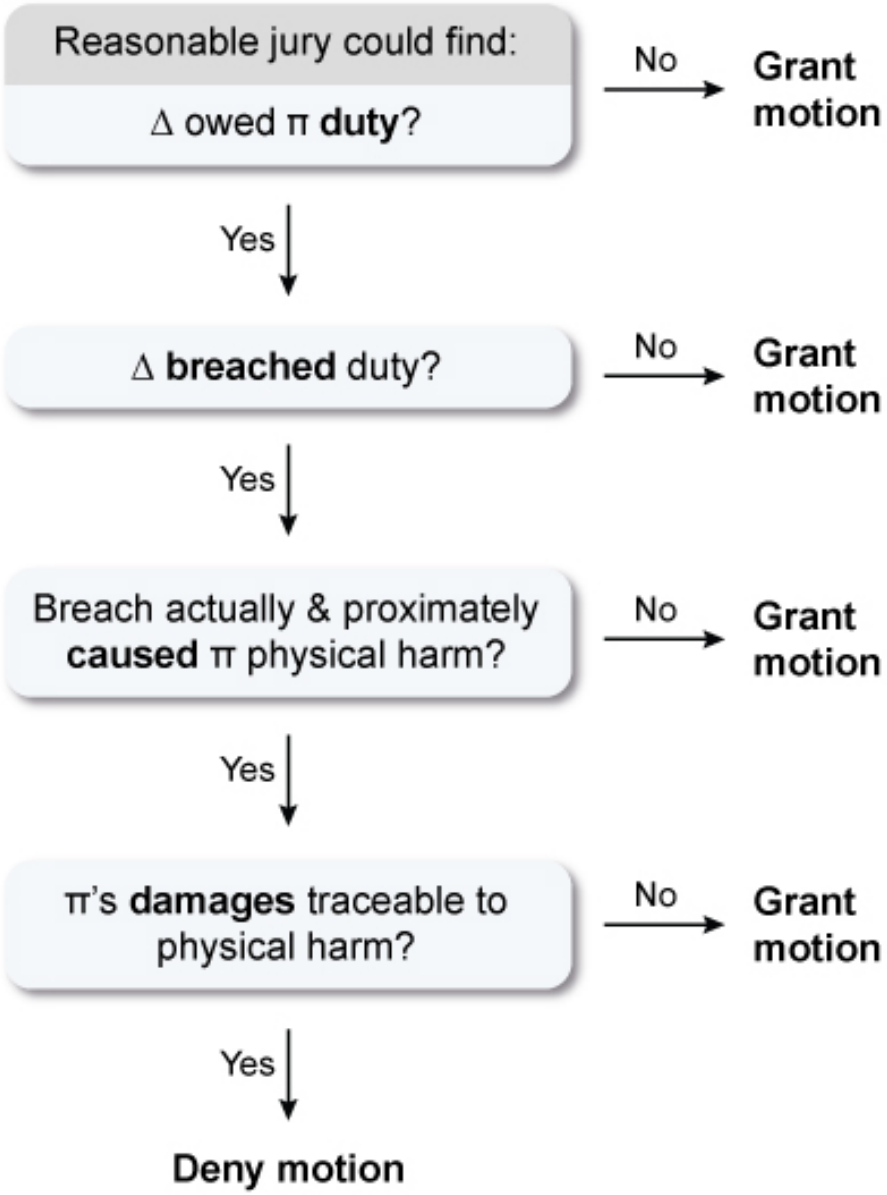
Restatement (Second) of Torts § 342 (Am. Law Inst. 1965) (duty to licensees).

Fed. R. Civ. P. 50(a) (judgment as a matter of law).

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Defendant's motion for judgment as a matter of law
(negligence claim)



Δ = defendant; **π** = plaintiff

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A woman went hunting in a remote forest at the beginning of winter, when no other hunters were in the area. Tired after a long day and fearing a possible snowstorm, the woman decided to stay at her brother-in-law's cottage rather than drive home. The cottage was located near several identical cottages, all of which were unoccupied. The woman entered a cottage that she thought was owned by her brother-in-law but actually belonged to someone else.

The owner of the cottage knew that uninvited hunters used the cottage during the summer and that one of those hunters had damaged the fireplace, rendering it hazardous to use. However, because the owner had posted no warning about the defective fireplace, the woman had no idea that it was defective and started the fireplace. Due to the defect in the fireplace, the cottage went up in flames, causing her to sustain third-degree burns on her arms and legs.

The woman sued the owner of the cottage to recover for her injuries.

Is the woman likely to prevail?

A. No, because the owner had no duty to warn trespassers of the defective fireplace.

B. No, because the woman was an unknown and unanticipated trespasser.

C. Yes, because it was reasonably necessary for the woman to take shelter in the cottage and start the fireplace for warmth.

D. Yes, because the owner knew that the fireplace was defective and had an affirmative duty to repair it.

Explanation:

Land possessor's duty to land entrants

(traditional approach)*

Status	Characteristics	Duty
Trespasser	Intentionally enters land without permission	Known or frequent trespassers – warn of known artificial dangers & use reasonable care in active operations Unknown or unanticipated trespassers – no duty
Licensee	Enters land with permission (eg, social guest)	Warn of known latent dangers & use reasonable care in active operations
Invitee	Enters land open to public (eg, churchgoer) Enters land for business purpose (eg, store customer)	Inspect for unknown dangers Make premises safe or provide adequate warnings Prevent harm from active operations

*In jurisdictions that follow the modern approach, land possessors owe a duty of reasonable care to all land entrants, except flagrant trespassers.

A land possessor owes a **duty** of reasonable care **to *foreseeable* plaintiffs** who enter the land. But a land possessor owes **no duty to trespassers**—ie, persons who intentionally enter another's land without permission—**unless** the land possessor **knows of or has reason to anticipate** their presence. A land possessor who breaches this duty and causes the plaintiff physical harm is liable for negligence.

Here, the woman was a trespasser because she intentionally entered the cottage without the owner's permission, thinking that it belonged to her brother-in-law. Her presence was *unforeseeable* because the owner (1) did not know that the woman was present and (2) had no reason to anticipate her presence since no other hunters were in the area during winter. The owner therefore did not owe the woman a duty of care, and she likely will *not* prevail.

(Choice A) A land possessor has a duty to warn known or anticipated trespassers (here, the summer hunters) about known, artificial (ie, man-made) dangers. But since the woman was an unknown and unanticipated trespasser, the owner owed the woman no such duty.

(Choice C) Despite the woman's fear of a possible snowstorm, it was not necessary for her to stay at the cottage because she could have driven home (ie, no private necessity). But this fact is irrelevant because the owner's duty depends on whether the woman's presence was foreseeable.

(Choice D) Land possessors generally have a duty to use reasonable care to prevent harm to persons on their land (eg, to repair known defects). But this duty does not extend to unanticipated trespassers such as the woman.

Educational objective:

A land possessor owes no duty of reasonable care to unforeseeable plaintiffs (eg, undiscovered or unanticipated trespassers).

References

Restatement (Third) of Torts § 7 (Am. Law Inst. 2010) (duty of reasonable care).

Restatement (Second) of Torts § 333 (Am. Law Inst. 1979) (no duty to unknown trespassers).

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A patient in a hospital was placed in a wheelchair with his broken leg extended straight out in front of him. As a nurse employed by the hospital was pushing the wheelchair through a set of automatic doors at a normal pace, the doors closed on the patient's foot, injuring it. The nurse attempted to pull the wheelchair back through the doors. This action caused the doors to close more tightly on the patient's foot, injuring it further.

The patient sued the hospital, alleging improper maintenance of the doors. The patient has produced no evidence of specific conduct or neglect on the part of the hospital that would have caused the automatic doors to malfunction. The hospital has moved for summary judgment.

Should the court grant the hospital's motion?

A. No, because a jury could find that there was a latent defect in the doors.

B. No, because a jury could find the hospital liable for negligence based on res ipsa loquitur.

C. Yes, because proof of an accident, by itself, does not establish that an injured person was a victim of negligence.

D. Yes, because the nurse's action was a superseding cause of the injury.

Explanation:

Negligence doctrines

	Applicability	Effect
Res ipsa loquitur	Plaintiff suffered type of harm usually caused by someone in defendant's position Evidence eliminates other potential causes of harm	*Permissible inference* that defendant was negligent
Negligence per se	Defendant violated statute Statute was intended to prevent plaintiff's type of harm Plaintiff is within class of persons statute was intended to protect	*Rebuttable presumption* that defendant was negligent

Lawsuits alleging improper maintenance of equipment are often based on negligence, which generally requires direct evidence that the defendant was negligent. But in the absence of such evidence, the doctrine of **res ipsa loquitur** allows the fact finder (eg, jury) to **infer** that the **defendant was negligent** if:

the plaintiff suffered a **type of harm** that is **usually caused by negligence** of someone in the defendant's position *and*

the evidence tends to **eliminate other potential causes** of that harm.

Here, the hospital's automatic doors closed on the patient's foot, injuring it. Although there is no direct evidence of the hospital's negligence, automatic doors should not malfunction when properly maintained. And though the nurse's action caused the doors to close more tightly on the patient's foot, injuring it further, the nurse was pushing his wheelchair at a normal pace when the initial injury occurred—eliminating other potential causes of harm. Therefore, a jury could infer the hospital's negligence, and the court should deny its motion for summary judgment.

(Choice A) Product defects can also be inferred under the doctrine of res ipsa loquitur. But that inference is inappropriate here since (1) the patient sued the hospital—not a seller of automatic doors—and (2) the patient alleged improper maintenance—not a latent defect.

(Choice C) Proof of an accident, by itself, does not establish that an injured person was a victim of negligence. But here, the hospital's negligence can be inferred from the nature and circumstances of the patient's accident.

(Choice D) The nurse's action was *not* a superseding cause of the patient's injury since it was foreseeable that a nurse would (1) push patients in wheelchairs through the hospital's doors and (2) attempt to help a patient who had been injured by a hospital door.

Educational objective:

Negligence can be inferred under the doctrine of res ipsa loquitur if (1) the plaintiff suffered a type of harm that is usually caused by negligence of someone in the defendant's position and (2) the evidence tends to eliminate other potential causes of that harm.

References

Restatement (Second) of Torts § 328D (Am. Law Inst. 1965) (explaining when a defendant's negligence can be inferred based on the type of accident that injured the plaintiff).

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Under the Federal Tort Claims Act, with certain exceptions not relevant here, the federal government is liable only for negligence. A federally owned and operated nuclear reactor emitted substantial quantities of radioactive matter that settled on a nearby dairy farm, killing the dairy herd and contaminating the soil. At the trial of an action brought against the federal government by the farm's owner, the trier of fact found the following: (1) the nuclear plant had a sound design, but a valve made by an engineering company had malfunctioned and allowed the radioactive matter to escape; (2) the engineering company was universally regarded as a quality manufacturer of components for nuclear plants; and (3) there was no way the federal government could have anticipated or prevented the emission of the radioactive matter.

If there is no other applicable statute, for which party should the court enter judgment?

A. The farm owner, on the ground that one who allows dangerous material to escape to the property of another is liable for the damage done.

B. The farm owner, on the ground that the doctrine of res ipsa loquitur applies.

C. The government, on the ground that a case under the Federal Tort Claims Act has not been proved.

D. The government, on the ground that the engineering company is the proximate cause of the farm owner's damage.

Explanation:

Elements of negligence

Duty – defendant owed duty of reasonable care because his/her conduct created foreseeable risk of harm to others

Breach – defendant breached duty by failing to use reasonable care

Causation – defendant's breach actually & proximately caused plaintiff's harm

Damages – plaintiff suffered physical harm (ie, bodily injury or property damage)

Land possessors owe a **duty** of reasonable care when they **know or should know** that an **activity** on the land poses an **unreasonable risk** of **physical harm** (ie, bodily harm or property damage) to others. A land possessor who breaches this duty and causes the plaintiff physical harm is liable for negligence.

Here, the federally owned and operated nuclear reactor emitted radioactive matter that killed the farm owner's dairy herd and contaminated his soil. But since the federal government could not have anticipated the emission, it could not have known that the reactor posed an unreasonable risk of harm. Therefore, the court should enter judgment for the government on the ground that negligence cannot be proved.

(Choice A) Strict liability—ie, liability without proof of fault—is imposed for harm caused by abnormally dangerous activities. Operating a nuclear reactor may be abnormally dangerous. But under the Federal Tort Claims Act, the federal government is liable only for negligence.

(Choice B) The doctrine of res ipsa loquitur would not permit an inference of negligence by the federal government here. That is because the nuclear reactor is complex machinery that could have malfunctioned for reasons other than negligence by the federal government—eg, negligence by the engineering company that made its parts.

(Choice D) More than one defendant may be a proximate cause of the plaintiff's harm. Therefore, the fact that the engineering company proximately caused the farm owner's damage would not eliminate the federal government's liability had that damage also been a foreseeable consequence of the government's conduct.

Educational objective:

Land possessors have a duty of reasonable care when they know or should know that an activity on the land poses an unreasonable risk of physical harm to others (ie, when such a risk is foreseeable).

References

Restatement (Second) of Torts § 371 (Am. Law Inst. 1965) (explaining that land possessors are subject to liability for harm caused by activities on their land that pose an unreasonable risk of harm to others).

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In a civil action, a plaintiff sued a decedent's estate to recover damages for injuries she suffered in a collision between her car and one driven by the decedent. At trial, the plaintiff introduced undisputed evidence that the decedent's car had swerved across the centerline of the highway into oncoming traffic, where it had collided with the plaintiff's car. The decedent's estate introduced undisputed evidence that, before he swerved across the centerline, the decedent had suffered a fatal heart attack which he had no reason to foresee and that, just prior to the heart attack, the decedent had been driving at a reasonable speed and in a reasonable manner.

A statute makes it a traffic offense to cross the centerline of a highway.

In this case, which party is likely to prevail?

A. The decedent's estate, because its rebuttal evidence is undisputed.

B. The decedent's estate, because the plaintiff has not established a prima facie case of liability.

C. The plaintiff, because the accident was of a type that does not ordinarily happen in the absence of negligence on the actor's part.

D. The plaintiff, because the decedent crossed the centerline in violation of the statute.

Explanation:

Defenses to negligence per se

Violation of law excused by:

use of reasonable care
incapacity
need to avoid greater risk of harm
impossibility of complying
vagueness of law
reasonable ignorance (rare)

To recover damages for accidental injuries, a plaintiff must establish a prima facie negligence case by proving the following elements: duty, breach, causation, and damages. Under the doctrine of **negligence per se**, the elements of **duty and breach are presumed** if:

the defendant **violated a statute**
the statute was **intended to prevent** the type of harm suffered by the plaintiff *and*
the plaintiff is within a **class of persons** that the statute was intended to protect.

However, the defendant's **violation** of an applicable statute or ordinance will be **excused** if the defendant presents rebuttal evidence that he/she was using **reasonable care** or was **incapacitated** while attempting to comply with the statute or ordinance. If the plaintiff fails to dispute this excuse with counterevidence, then the defendant will prevail.

Here, the plaintiff showed that she was injured when the decedent's car swerved across the centerline of the highway in violation of a statute designed to protect drivers like her from head-on collisions. Therefore, the plaintiff established a prima facie negligence case **(Choice B)**. But the decedent's estate presented rebuttal evidence that the decedent was driving with reasonable care when he was incapacitated by an unforeseeable heart attack. Since that evidence is *undisputed*, the decedent's estate will likely prevail **(Choice D)**.

(Choice C) When an accident was of a type that does not ordinarily happen in the absence of negligence on the actor's part, the actor's negligence can be presumed under the doctrine of res ipsa loquitur. But this presumption can be rebutted by evidence that the defendant was using reasonable care (as seen here).

Educational objective:

A defendant's violation of an applicable statute or ordinance will be excused, and negligence per se will not apply, if the defendant presents evidence that he/she was using reasonable care or was incapacitated while attempting to comply with the statute or ordinance.

References

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 15 (Am. Law Inst. 2010) (discussing excused violations of a statute).

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An airport-shuttle company employs drivers to operate vans that carry multiple passengers to and from the airport along a regular route. The company exercises reasonable care in hiring and supervising all of its drivers. One day, one of the drivers was distracted by a conversation he was having with a passenger and failed to make a correct turn. Rather than immediately turning around, the driver decided to continue to deviate from the regular route and take an alternate route. While the van was on this alternate route, a sinkhole unexpectedly opened under the van and swallowed it. The van's passengers were injured.

If the passengers file a negligence action against the airport-shuttle company, will they be likely to succeed?

A. No, because the company exercised reasonable care in selecting and supervising the driver.

B. No, because there was no causal link between the driver's negligence and the passengers' injuries.

C. Yes, because an airport-shuttle company is a common carrier and therefore subject to a heightened duty of care.

D. Yes, because but for the driver's negligence, the van would not have been at the place where the sinkhole appeared.

Explanation:

Tort causation

Actual (factual) cause	Single cause – but for defendant's conduct, plaintiff would not have been harmed Multiple causes: Second Restatement (majority rule) – defendant's conduct was substantial factor causing plaintiff's harm Third Restatement (minority rule) – defendant's conduct regarded as factual cause of plaintiff's harm
Proximate (legal) cause	Plaintiff's harm was reasonably foreseeable consequence of defendant's conduct

To succeed in a **negligence** claim, the plaintiff must prove that there was a **causal link** (ie, connection) **between** the **defendant's tortious conduct** and the **plaintiff's harm**. This requires proof that the defendant's conduct was both the actual and proximate cause of that harm:

Actual cause – but for the defendant's conduct, the plaintiff would not have been harmed

Proximate cause – the plaintiff's harm was a reasonably foreseeable consequence of the defendant's conduct, meaning that the conduct was of a type that generally increases the risk of that harm

Here, the van would not have been where the sinkhole appeared but for the driver's missing a turn and taking an alternate route (actual cause). But since the driver's conduct was *not* of a type that generally increases the risk of being swallowed by a sinkhole, the passengers' injuries were not a foreseeable consequence of that conduct (no proximate cause).* Therefore, the passengers are unlikely to succeed in their negligence action because there was no causal link between the driver's conduct and the passengers' injuries **(Choice D)**.

*Even if the driver's conduct were treated as the proximate cause of the passengers' injuries, the sinkhole, as an extraordinary act of nature, constitutes an unforeseeable intervening cause that would break the chain of causation.

(Choice A) A company that used reasonable care in its hiring and supervisory activities is not liable in negligence for its own conduct (eg, for negligent hiring). But this would not preclude the company from being vicariously liable for its *employee's* negligent conduct while acting within the scope of employment.

(Choice C) At common law and in most jurisdictions, a common carrier (eg, plane, train, bus) has a heightened duty of care to its passengers. This means that a common carrier can be held liable for even "slight negligence." But here, even if the shuttle company is treated

as a common carrier, the driver's conduct was not the proximate cause of the passengers' injuries (no liability).

Educational objective:

To succeed in a negligence claim, the plaintiff must establish a causal link between the defendant's tortious conduct and the plaintiff's harm. Stated differently, the defendant's conduct must have been the actual and proximate cause of that harm.

References

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm §§ 29–30 (proximate cause).

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A man decided to have lunch at a new restaurant. While the man was eating his lunch, an accidental fire broke out in the kitchen, and the dining room quickly filled with smoke. The other restaurant patrons experienced mild discomfort, which did not require medical treatment. However, the man had been born with an acute and discerning sense of smell, and he had a job as a senior perfumer at a fragrance corporation. He subsequently sued the restaurant in negligence for the injury to the olfactory sensory cells in his nasal cavity that left him unable to work. His annual salary had been $250,000 before the accident.

Assuming that the man can otherwise establish the elements of negligence, can he recover damages for the injury to his olfactory sensory cells as well as for his loss of employment?

A. No, because economic damages due to loss of employment are not recoverable in a negligence action.

B. No, because the man's acute and discerning sense of smell was a preexisting condition.

C. Yes, because the man can recover even if the extent of his injuries was not reasonably foreseeable.

D. Yes, because the man's damages were severe and exceeded those of the other restaurant patrons.

Explanation:

A successful negligence claim requires proof that the plaintiff suffered physical harm (ie, personal injury or property damage) as a result of the defendant's negligent conduct. Assuming all other elements are proved, the plaintiff can then recover **compensatory damages** for his/her **initial physical harm** AND any **subsequent harm** (physical, economic, or emotional) that is **traceable to** that **initial harm**. This is true **even if** the **extent of the harm** was **unusual or unforeseeable** because "the defendant takes the victim as found."*

Here, the man suffered injuries to his olfactory sensory cells (initial physical harm) as a result of the fire. This left the man unable to perform his job as a senior perfumer (economic harm traceable to initial harm). Therefore, the man can recover compensatory damages for the injury to his olfactory sensory cells as well as for his loss of employment—even if the extent of his injuries was not reasonably foreseeable.

*This is known colloquially as the "thin-skull" or "eggshell plaintiff" rule.

(Choice A) A plaintiff who suffers economic damages (eg, due to loss of employment) without any related personal injury or property damage cannot recover in a negligence action. But economic damages stemming from physical harm (as seen here) are recoverable.

(Choice B) The physical harm required for negligence includes the exacerbation of a preexisting condition, so the fact that the man's acute and discerning sense of smell was a preexisting condition does not defeat his claim.

(Choice D) While a negligence plaintiff must prove actual damages, the damages need not be severe or exceed those suffered by others who did not have a preexisting condition.

Educational objective:

A successful negligence plaintiff can recover compensatory damages for his/her initial physical harm as well as any subsequent harm (physical, economic, or emotional) that stems from that initial harm. This is so even if the extent of the harm was unusual or unforeseeable.

References

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 31 (Am. Law Inst. 2010) (preexisting conditions and unforeseeable harm).

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Recovery of compensatory damages
(initial harm + normal consequences)

Initial physical harm



Subsequent physical harm



Subsequent economic harm



Subsequent emotional harm



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When a tire of a motorist's car suffered a blowout, the car rolled over and the motorist was badly injured. Vehicles made by the manufacturer of the motorist's car have been found to be negligently designed, making them dangerously prone to rolling over when they suffer blowouts. A truck driver who was driving behind the motorist when the accident occurred stopped to help. Rescue vehicles promptly arrived, and the truck driver walked along the side of the road to return to his truck. As he approached his truck, he was struck and injured by a speeding car. The truck driver has sued the manufacturer of the injured motorist's car.

Is the truck driver likely to prevail in a suit against the car manufacturer?

A. No, because the car manufacturer's negligence was not the proximate cause of the truck driver's injuries.

B. No, because the truck driver assumed the risk of injury when he undertook to help the motorist.

C. Yes, because it is foreseeable that injuries can result from rollovers.

D. Yes, because the car manufacturer's negligence caused the dangerous situation that invited the rescue by the truck driver.

Explanation:

In a negligence suit, the plaintiff must prove actual and proximate cause. Proximate cause is satisfied when the plaintiff's harm was a **foreseeable consequence** of the defendant's negligence. And when a defendant negligently endangers him/herself or others, the law deems it foreseeable that someone will be injured in a rescue attempt. As a result, a plaintiff can recover for negligence under the **rescue doctrine** if:

the plaintiff was **injured while attempting to rescue** another *and*

that person's **peril was caused by** the **defendant's negligence**.

Here, the motorist was badly injured when his car suffered a blowout and rolled over. The car manufacturer's negligent design made the car dangerously prone to this type of accident—thereby causing the motorist's peril and inviting rescue by another. The truck driver, who had stopped to help the motorist, was then struck and injured by a speeding car. Since injury to rescuers is sufficiently foreseeable to satisfy proximate cause, the truck driver will likely prevail in a suit against the manufacturer **(Choice A)**.

(Choice B) A rescuer does not assume the risk of injury by undertaking a rescue attempt unless he/she (1) knew the rescue attempt was dangerous and (2) could have proceeded in a reasonable alternative manner. Here, there is no indication that the truck driver had a reasonable alternative. And even if he did, this would merely reduce (not bar) his recovery in most jurisdictions.

(Choice C) Although it is foreseeable that injuries can result from rollovers, the truck driver cannot prevail unless he also shows that the defendant's negligence caused the motorist's peril.

Educational objective:

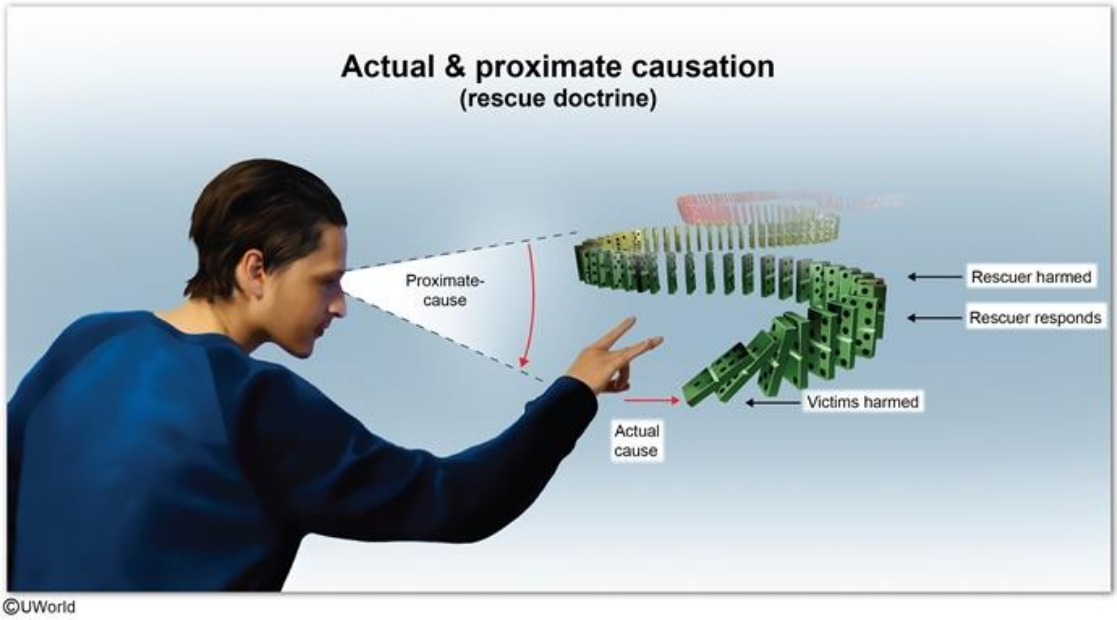
Injuries to rescuers are sufficiently foreseeable to satisfy proximate cause. As a result, a rescuer can recover for negligence if (1) he/she was injured while attempting to rescue another and (2) that person's peril was caused by the defendant's negligence.

References

Restatement (Second) of Torts § 294 (Am. Law Inst. 1965) (explaining that a defendant's conduct may be negligent to a potential rescuer even though that conduct poses no direct risk to the rescuer).

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Actual & proximate causation
(rescue doctrine)
Proximate-cause
Rescuer harmed
Rescuer responds
Victims harmed
Actual cause
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A longshoreman fell to his death through an open hatch on the deck of a ship. The longshoreman was an employee of a company that had contracted with the ship's owner to load and unload the ship. The fall occurred at night, when loading work was over for the day, and there was no reason for the longshoreman to have been near the hatch.

A negligence action was filed against the ship's owner for the death of the longshoreman. In that action, the owner has moved for summary judgment and has provided unrebutted evidence that it is customary for the crews of ships to open the hatches for ventilation after the longshoremen have left the ships.

How should the court respond to the motion?

A. Deny the motion and submit the case to the jury with instructions that the custom is relevant but not conclusive on the issue of negligence.

B. Deny the motion and submit the case to the jury with instructions that the ship's owner should win if the longshoreman was improperly near the hatch.

C. Deny the motion, because the probability of serious injury caused by falling down an open hatch clearly outweighs the burden of keeping the hatch closed.

D. Grant the motion, because the custom should be considered conclusive on the issue of negligence.

Explanation:

Elements of negligence

Duty – defendant owed duty of reasonable care because his/her conduct created foreseeable risk of harm to others

Breach – defendant breached duty by failing to use reasonable care

Causation – defendant's breach actually & proximately caused plaintiff's harm

Damages – plaintiff suffered physical harm (ie, bodily injury or property damage)

To determine whether a defendant was **negligent**, the trier of fact (eg, the jury) can consider all relevant factors—including whether the **defendant complied** with **community or industry custom**. But **custom is not conclusive** on the issue of negligence since, among other things, the entire community or industry may be negligent. Therefore, this court should deny the ship owner's summary judgment motion and instruct the jury that the custom of opening the hatches after the longshoremen have left the ship is relevant—but not conclusive **(Choice D)**.

(Choice B) The fact that the longshoreman was improperly near the hatch could show that he was contributorily negligent—ie, failed to use reasonable care for his own protection. This would completely *bar* his recovery if the traditional common law rule applied. But under the comparative negligence rule (default rule on the MBE), contributory negligence only *reduces* recovery. Therefore, the ship's owner cannot win on this basis.

(Choice C) In determining negligence issues, the jury can consider whether the probability of harm outweighed the burden of avoiding that harm (ie, the Hand formula). But here, there is no indication that the probability of serious injury caused by falling down an open hatch outweighs the burden of keeping the hatch closed. This is particularly true since it is customary to only open the hatches after the longshoremen have left the ship.

Educational objective:

Evidence that the defendant complied with (or deviated from) community or industry custom is relevant—but not conclusive—on the issue of negligence.

References

Restatement (Second) of Torts § 295A (Am. Law Inst. 1965) (explaining that the customs of the community are relevant but not conclusive on the issue of negligence).

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A rancher owns a herd of cattle that are permitted to freely roam his ranch. The cattle's blood is more alkaline than normal because their diet consists primarily of the natural grasses that grow in the ranch's slightly alkaline soil. The primary source of water for the ranch is a stream that runs through it.

Two upstream landowners use water from the stream to operate mills. Recently, each landowner has negligently increased the alkaline nature of the water. As a result, several of the rancher's cattle have died from alkalosis, a disease caused by an animal's bodily fluids being too alkaline, and the rancher has had to treat the rest of his herd to prevent their deaths. The alkali added to the water by each landowner was a substantial factor in causing the injuries to the rancher's cattle. Although each alkali addition alone would have been a factual cause of the injuries to the cattle, neither landowner added enough alkali to the water to have caused the injuries in the absence of the naturally occurring alkali in the stream.

The rancher has brought a negligence action against the two landowners for the harm suffered by his herd.

Is each landowner's conduct a cause in fact of the damage suffered by the rancher?

A. No, because neither landowner's conduct as the sole source of alkali in the stream would have caused the damage.

B. No, because neither landowner's conduct was the "but for" cause of the damage since it would have been caused by the action of the other landowner.

C. Yes, because each landowner's conduct in adding additional alkali to the stream was a substantial factor in causing the damage.

D. Yes, because it was foreseeable that each landowner's negligence in adding alkali to the stream could cause alkalosis.

Explanation:

Tort causation

Actual (factual) cause	Single cause – but for defendant's conduct, plaintiff would not have been harmed Multiple causes: Second Restatement (majority rule) – defendant's conduct was substantial factor causing plaintiff's harm Third Restatement (minority rule) – defendant's conduct regarded as factual cause of plaintiff's harm
Proximate (legal) cause	Plaintiff's harm was reasonably foreseeable consequence of defendant's conduct

A **negligence** action requires proof that the defendant's conduct was a **cause in fact** (ie, actual cause) of the plaintiff's injury. The predominant test for actual causation is the but-for test, which is satisfied if the plaintiff's injury would not have occurred without the defendant's conduct. However, this test will not work if **multiple forces combine** to cause the plaintiff's injury and **any one alone** would have been **sufficient to cause the injury**. In that case, the test is whether the defendant's conduct was a **substantial factor** in causing the injury.

Here, each landowner negligently added alkali to the stream, and each addition was sufficient to cause the injuries to the rancher's cattle when combined with the naturally occurring alkali in the stream. As a result, the substantial-factor test (not the but-for test) applies. And since the facts stipulate that each landowner's conduct was a substantial factor in causing the injuries to the rancher's cattle, each landowner's conduct is a cause in fact of the damage suffered by the rancher **(Choices A & B)**.

(Choice D) The foreseeability of the plaintiff's harm is relevant to *proximate* cause, which is considered only after a defendant's conduct is determined to be a cause in fact of that harm.

Educational objective:

Where multiple forces combine to cause the plaintiff's injury and any one alone would have been sufficient to cause the injury, the test for actual causation is whether the defendant's conduct was a *substantial factor* in causing the injury.

References

Restatement (Second) of Torts § 432(2) (Am. Law Inst. 1965) (substantial-factor test for multiple causes).

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A man was admitted to a hospital after complaining of persistent severe headaches. While he was there, hospital staff failed to diagnose his condition, and he was discharged. Two days later, the man died of a massive brain hemorrhage due to a congenital defect in an artery.

The man's wife has brought a wrongful death action against the hospital. The wife offers expert testimony that the man would have had a "reasonable chance" (not greater than 50%) of surviving the hemorrhage if he had been given appropriate medical care at the hospital.

In what type of jurisdiction would the wife's suit most likely be successful?

A. A jurisdiction that allows recovery based on strict liability.

B. A jurisdiction that allows recovery for the loss of the chance of survival.

C. A jurisdiction that applies traditional common law rules concerning burden of proof.

D. A jurisdiction that recognizes loss of spousal consortium.

Explanation:

Actual causation

(in wrongful death claims based on medical malpractice)

Traditional common law rule	Decedent probably would have survived (ie, greater than 50% chance) but for defendant's malpractice
Modern rule (loss-of-chance doctrine)	Decedent's chance of survival was reduced by defendant's malpractice (eg, 45% chance reduced to 20%)

Wrongful death statutes allow a decedent's spouse, next of kin, or personal representative to sue a defendant for wrongfully causing the decedent's death. These lawsuits are often based on **medical malpractice** (eg, failure to diagnose—as seen here), which requires the plaintiff to prove **actual causation** by a preponderance of the evidence. Traditionally, this standard is met if it is **more likely than not** (ie, **greater than 50% chance**) that the decedent **would have survived** but for the defendant's malpractice.

Here, the wife offered expert testimony that the man had a *reasonable* chance—not greater than 50 percent—of survival had he received appropriate medical care. As a result, her suit would not be successful in a jurisdiction that applies traditional common law rules concerning burden of proof **(Choice C)**. However, most jurisdictions recognize the **loss-of-chance doctrine**, which allows the plaintiff to recover if the malpractice caused ***any* loss of the chance of survival**. Therefore, the wife's suit is most likely to be successful in such a jurisdiction.

(Choice A) Strict liability subjects a defendant to liability regardless of the defendant's level of fault. But it would still require proof of actual causation, which cannot be proved here unless this jurisdiction allows recovery for loss of chance.

(Choice D) In a wrongful death action, most jurisdictions allow recovery for loss of spousal consortium (ie, spousal support, companionship, and sexual relations). But even if this jurisdiction does so, the wife cannot establish actual causation or succeed in her claim unless this is a loss-of-chance jurisdiction.

Educational objective:

The loss-of-chance doctrine allows a plaintiff to recover in a wrongful death action based on medical malpractice if the defendant's malpractice caused *any* reduction in the decedent's chance of survival.

References

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm, § 26 cmt. n (Am. Law Inst. 2010) (explaining that many courts recognize a lost chance for cure of a medical condition as a legally cognizable harm).

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A man and a woman were competing in an illegal drag race. Both of them were driving over the speed limit but were otherwise driving very carefully. However, when a tire on the woman's car suddenly blew out, she lost control of her car and crashed, injuring a pedestrian.

The pedestrian later sued the man, because the woman had no insurance or assets.

Will the pedestrian be likely to prevail in that action?

A. No, because the man did not cause the injury.
B. No, because the man was driving very carefully.
C. Yes, because the man and the woman were acting in concert in a dangerous activity.
D. Yes, because the man was exceeding the speed limit.

Explanation:

Liability of multiple negligent actors

	Indivisible injuries	**Separable injuries**
Acting independently	Joint & several liability*	Several liability only
Acting in concert	Joint & several liability	

*Default rule on MBE.

Tort claims for personal injury generally require proof that the defendant's tortious conduct actually and proximately caused the plaintiff's harm. However, when **two or more tortfeasors** act pursuant to a common plan or design (ie, **act in concert**) AND **one or more** of them **cause the plaintiff's harm**, *all* of the tortfeasors are jointly and severally liable for 100% of the harm.

Here, the man and woman were competing in an illegal drag race (acting in concert) when the woman crashed her car and injured the pedestrian. As a result, the man and woman are jointly and severally liable for the pedestrian's injury, and the pedestrian will prevail against the man—regardless of whether he also caused the injury **(Choice A)**.

(Choices B & D) Even if the man was driving carefully, he was likely negligent per se since he was speeding in an illegal drag race in violation of traffic laws designed to protect persons like the pedestrian from harm. But this alone does not subject the man to liability since it does not prove that his tortious conduct *caused* the pedestrian's injury. Instead, the man is liable because he was acting in concert with the woman who caused the injury.

Educational objective:

If multiple tortfeasors act pursuant to a common plan or design (ie, act in concert) and at least one of them causes the plaintiff's harm, then *all* of the tortfeasors are jointly and severally liable for the harm.

References

Restatement (Second) of Torts § 876 (Am. Law Inst. 1965) (explaining that a defendant is subject to liability if the defendant commits a tortious act in concert with others or pursuant to a common design).

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The owner of a shopping mall hired a construction company to design and construct a new entryway to the mall. The construction company negligently selected an unusually slippery material for the floor covering. A week after the entryway was completed, a customer who had come to the mall to buy cosmetics slipped on the floor of the entryway, sustaining injuries. The customer sued the mall owner for the construction company's negligent design of the mall's entryway.

Will the injured customer be likely to recover damages?

A. No, because no other customers had previously slipped on the floor.

B. No, because the construction company will likely be considered an independent contractor.

C. Yes, because the customer intended to make a purchase at the mall.

D. Yes, because the mall owner's duty to maintain safe conditions was nondelegable.

Explanation:

Nondelegable duties

(duties that cannot be assigned to another to avoid liability)

Maintain safe conditions on premises open to public (eg, store, restaurant)
Safely perform activities that:
are abnormally or highly dangerous
infringe on private property right (eg, nuisance, trespass)
are regulated by law *or*
are conducted in public place
A principal is generally not vicariously liable for torts committed by its **independent contractor**—one who performs work for another outside an employment relationship. However, **vicarious liability will be imposed** if the independent contractor's work breaches a **nondelegable duty** owed by the principal—a duty of care that cannot be assigned to a third party to avoid liability. This includes the **duty of a land possessor** who holds his/her land open to the public to **keep the premises safe for business visitors**.

Here, the construction company was likely an independent contractor since it was hired for a one-time job—to design and construct a new entryway to the mall. And though the mall owner ordinarily would not be liable for an independent contractor's torts, the mall owner had a nondelegable duty to maintain safe conditions for its customers **(Choice B)**. Since the construction company's work—selecting a slippery material for the floor—breached that duty, the mall owner is vicariously liable for the customer's resulting injuries.

(Choice A) Proof of prior accidents could help show that the entryway was negligently designed. But such proof is not required here since (1) land possessors have a nondelegable duty to use reasonable care to discover dangerous conditions on the land before an injury occurs and (2) the construction company's negligence is stipulated above.

(Choice C) Since the mall was held open to the public, the mall owner had a nondelegable duty to maintain safe premises for *all* business visitors (eg, window shoppers)—not just those intending to make a purchase. Therefore, the customer's intention to make a purchase is irrelevant to her recovery.

Educational objective:

A principal is generally not vicariously liable for its independent contractor's torts. However, vicarious liability will be imposed when the independent contractor breaches a nondelegable duty of care owed by the principal—eg, a land possessor's duty to keep the premises safe for business visitors.

References

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 57 (Am. Law Inst. 2012) (no vicarious liability generally for independent contractors).

Restatement (Second) of Torts § 344 (nondelegable duty to keep business premises safe).

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A pedestrian was crossing a street in a crosswalk when a woman walking just ahead of him was hit by a truck. The pedestrian, who had jumped out of the way of the truck, administered CPR to the woman, who was a stranger. The woman bled profusely, and the pedestrian was covered in blood. The woman died in the ambulance on the way to the hospital. The pedestrian became very depressed immediately after the incident and developed physical symptoms as a result of his emotional distress.

The pedestrian has brought an action against the driver of the truck for negligent infliction of emotional distress. In her defense, the driver asserts that she should not be held liable, because the pedestrian's emotional distress and resulting physical symptoms are not compensable.

What is the strongest argument that the pedestrian can make in response to the driver's defense?

A. The pedestrian saw the driver hit the woman.
B. The pedestrian was acting as a Good Samaritan.
C. The pedestrian was covered in the woman's blood and developed physical symptoms as a result of his emotional distress.
D. The pedestrian was in the zone of danger.

Explanation:

A plaintiff can establish **negligent infliction of emotional distress** (NIED) under the **zone-of-danger theory** when:

the defendant's negligent conduct placed the plaintiff in **danger of immediate bodily harm** *and*

that danger caused the plaintiff **serious emotional distress**.

Here, the truck driver's negligence forced the pedestrian to jump out of the truck's way to avoid being run over in the crosswalk (danger of immediate bodily harm). And since this danger likely caused the pedestrian's depression and resulting physical symptoms (serious emotional harm), the pedestrian's strongest argument for recovery is that he was in the zone of danger.

(Choice A) Under the bystander theory for NIED, the plaintiff must suffer serious emotional distress upon witnessing the defendant negligently causing serious physical harm to the plaintiff's close relative. Here, although the pedestrian saw the driver hit the woman, she was a stranger—not a close relative. Therefore, the pedestrian cannot recover under this theory.

(Choice B) "Good Samaritan" refers to the rescue doctrine, which holds a defendant liable for any *physical* harm the plaintiff sustains during an attempt to aid a person that the defendant placed in harm's way. Here, the pedestrian's rescue attempt caused him *emotional* harm that later resulted in physical symptoms—not direct physical harm. Therefore, he cannot recover under this doctrine.

(Choice C) The fact that the pedestrian was covered in the woman's blood shows that he came to the woman's aid—not that he had been placed in the zone of danger.

Educational objective:

Negligent infliction of emotional distress (NIED) liability arises under the zone-of-danger theory when (1) the defendant negligently placed the plaintiff at risk of immediate bodily injury and (2) that risk caused the plaintiff serious emotional harm.

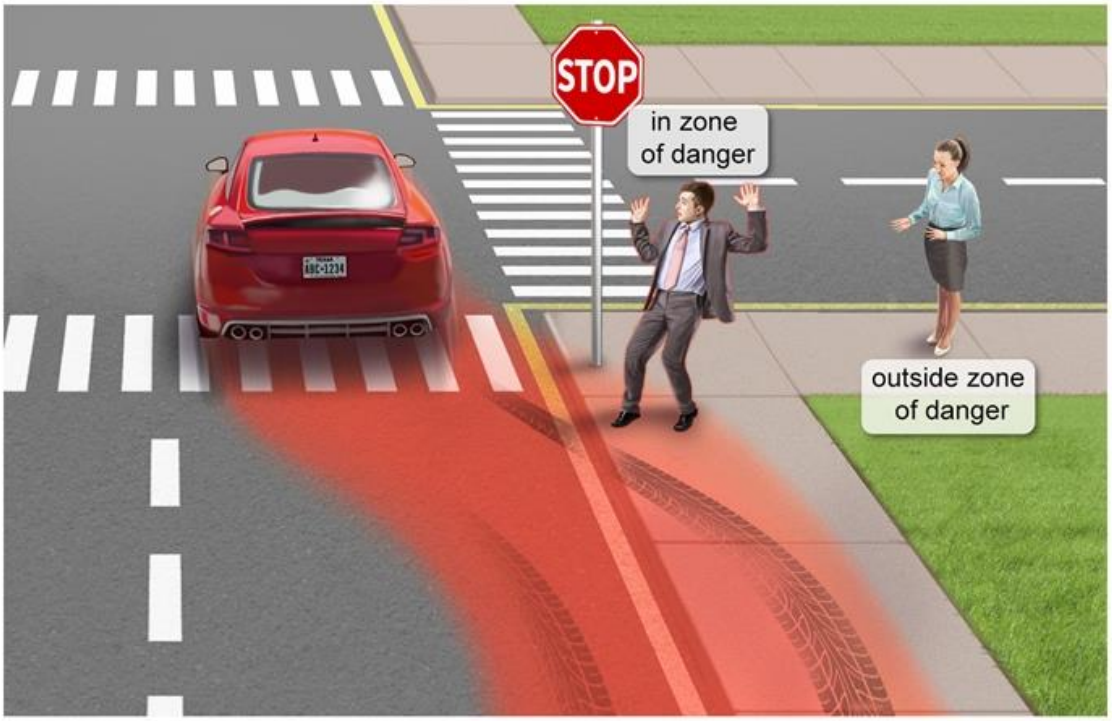
References

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 47 (Am. Law Inst. 2012) (negligent infliction of emotional distress).

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Zone of danger theory



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A bright 12-year-old child attended a day-care center after school. The day-care center was located near a man-made duck pond on the property of a corporation. During the winter, the pond was used for ice-skating when conditions were suitable.

At a time when the pond was obviously only partially frozen, the child sneaked away from the center's property and walked out onto the ice over the pond. The ice gave way, and the child fell into the cold water. He suffered shock and would have drowned had he not been rescued by a passerby.

At the time of the incident, the pond was clearly marked with numerous signs that stated, "THIN ICE—KEEP OFF." When the child sneaked away from the day-care center, the center was staffed with a reasonable number of qualified employees, and the employees were exercising reasonable care to ensure that the children in their charge did not leave the premises. There had not been a previous instance of a child coming onto the corporation's property from the day-care center.

The jurisdiction follows a rule of pure comparative negligence.

In a suit brought on the child's behalf against the corporation and based only on the facts above, who is likely to prevail?

A. The child, because the corporation owes a duty to keep its premises free of dangerous conditions.

B. The child, because the pond was an attractive nuisance.

C. The corporation, because the danger of thin ice may reasonably be expected to be understood by a 12-year-old child.

D. The corporation, because the day-care center had a duty to keep the child off the ice.

Explanation:

Attractive nuisance doctrine

(land possessor's duty to child trespassers)

Duty to protect child trespassers from artificial condition on land when:

condition exists where land possessor knows or should know children are likely to trespass
land possessor knows or should know condition poses unreasonable risk of death or serious bodily harm to children
children of trespasser's age cannot reasonably discover or appreciate risk *and*
risk outweighs condition's utility and burden of eliminating risk

Land possessors owe only limited duties to trespassers. But most jurisdictions apply a special rule to child trespassers since they lack the same experience and judgment as adults. This rule, known as the **attractive nuisance doctrine**, gives land possessors the **duty to protect child trespassers** from **artificial (ie, man-made) conditions** on the land when:

the condition exists where the land possessor knows or should know that **children are likely to trespass**

the land possessor knows or should know that the condition poses an **unreasonable risk of serious bodily harm** or death to children

children of the trespasser's age **cannot reasonably discover or appreciate** the risk *and*

the **risk outweighs** the condition's **utility and the burden** of eliminating the risk.

A land possessor is liable for negligence if he/she breaches this duty (ie, fails to exercise reasonable care) and causes the child physical harm.

Here, the 12-year-old child was injured when he trespassed on the corporation's property and fell through obviously thin ice on its man-made pond (artificial condition). But a 12-year-old child may reasonably be expected to understand the danger of thin ice—especially since the pond was clearly marked with numerous warning signs. As a result, the pond was not an attractive nuisance and the corporation will likely prevail **(Choice B)**.

(Choice A) The corporation owed no duty to the child since the attractive nuisance doctrine does not apply. But even if it did, that duty would be to exercise reasonable care to protect him from the artificial condition—not to keep the premises free of dangerous conditions.

(Choice D) The day-care center's duty to protect the child (eg, by keeping him off the ice) would not negate the corporation's liability had the attractive nuisance doctrine applied.

Educational objective:

The attractive nuisance doctrine governs the duty of land possessors to protect child trespassers from artificial conditions on their land. But this doctrine does not apply when children of the trespasser's age can reasonably discover or appreciate the risk presented by the condition.

References

Restatement (Second) of Torts § 339 (Am. Law Inst. 1965) (attractive nuisance doctrine).

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A patient who had suffered a severe fracture of her leg was treated by an orthopedist, who set the patient's leg and put it in a cast. When the leg continued to bother the patient six months later, she consulted a second orthopedist in the same town. The second orthopedist surgically inserted a pin to facilitate healing.

The patient brought a malpractice action against the first orthopedist, claiming that he should have surgically inserted a pin at the time of initial treatment.

The only evidence that the patient offered in support of her malpractice claim was the testimony of the second orthopedist, as follows:

In response to the question "Would you have inserted a pin initially?" the second orthopedist testified, "I personally would not have been satisfied that the leg would heal properly without a pin."

At the close of the patient's evidence, the first orthopedist moved for judgment as a matter of law. Should the motion be granted?

A. No, because the patient has introduced evidence that the first orthopedist failed to give the care that the second orthopedist would have provided.

B. No, because the second orthopedist practices in the same town and field of specialty as the first orthopedist.

C. Yes, because the patient has failed to introduce evidence that the first orthopedist's care fell below the professional standard of care.

D. Yes, because the second orthopedist also treated the patient and is thus not sufficiently objective to offer expert testimony.

Explanation:

Elements of professional malpractice

Duty	All professionals (eg, physicians, lawyers, nurses) owe clients professional standard of care
Breach	Professional failed to exercise same knowledge, skill & care as another professional in similar community National (not community) standard applied to medical specialists*
Causation	Breach actually & proximately caused plaintiff's harm
Damages	Plaintiff suffered physical harm (ie, personal injury or property damage)

*A modern trend applies a national standard of care to *all* physicians.

All **professionals** owe their clients a professional standard of care. For most professionals, this means that they must demonstrate the **same knowledge, skill, and care** as a **normal member** of the profession in a **similar community**. However, **medical specialists** (eg, orthopedists) are held to a **national standard** of care. Any professional whose conduct falls below the applicable standard of care and causes the plaintiff physical harm is liable for malpractice (a specialized negligence claim).

Here, the first orthopedist set the patient's fractured leg and put it in a cast without inserting a pin. In the patient's malpractice action, a second orthopedist testified that he *personally* would not have been satisfied that the leg would heal without a pin. However, this testimony does not establish that the first orthopedist failed to provide the same level of care as normal orthopedists *nationwide* **(Choice A)**. And since the patient has offered no other evidence to support her claim, the court should grant the first orthopedist's motion for judgment as a matter of law.

(Choice B) The fact that both orthopedists practice in the same town and field shows that they are comparable professionals in similar communities—but a national standard of care applies here. And the second orthopedist's testimony as to his *personal* standard of care does not prove that the first orthopedist breached a *national* (or community) standard of care.

(Choice D) The fact that the second orthopedist also treated the patient does not bar his expert testimony establishing breach of the applicable standard of care. However, his testimony failed to do so.

Educational objective:

Most professionals are required to demonstrate the same knowledge, skill, and care as a normal member of the profession in a similar community. But medical specialists (eg, orthopedists) are held to a national standard.

References

Restatement (Second) of Torts § 299A (Am. Law Inst. 1965) (explaining the professional standard of care in malpractice cases).

O'Neil v. Great Plains Women's Clinic, Inc., 759 F.2d 787, 789–91 (10th Cir. 1985) (applying a national standard of care in a malpractice action against a specialist).

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A socialite attended a cocktail party where the host provided large amounts of alcohol to the guests. The host noticed that the socialite had become visibly intoxicated during the party but did not prevent her from consuming more alcohol. After the party ended, the socialite drove to a bar, where the bartender initially refused to serve her because she was exhibiting outward signs of intoxication. However, the socialite eventually persuaded the bartender to serve her one last alcoholic drink. After consuming her drink, the socialite left the bar and drove home. On her way home, the socialite accidentally struck and seriously injured a pedestrian.

The pedestrian sued the host of the cocktail party for all of his injuries. The jurisdiction has enacted a dram-shop law that imposes negligence liability on sellers of intoxicating beverages, but otherwise the jurisdiction follows the common law.

Is the pedestrian likely to prevail in his action?

A. No, because the bar's subsequent tortious conduct was a superseding cause that cut off the host's liability.

B. No, because the host of the cocktail party is not liable for serving alcohol to the socialite, despite the socialite's visible intoxication.

C. Yes, because as a social host, the host of the cocktail party is liable under the jurisdiction's dram-shop law.

D. Yes, because the pedestrian's injuries were proximately caused by the socialite's state of intoxication.

Explanation:

Vicarious liability

(liability for tortious acts of another)

Respondeat superior	Employee's conduct occurred within scope of employment—ie, under employer's control or while performing assigned work
Nondelegable duty	Independent contractor's work involved abnormally or inherently dangerous activity, condition on land open to general public, or activity regulated by law
Parent	Child committed tort while acting as parent's agent
Business partner	Business partner's conduct occurred within scope of business
Automobile owner	Family member drove car with permission (family-car doctrine) *or* any person drove car with permission under owner-liability statute
Dram shop* & social host	Alcohol sold (dram shop) *or* served at noncommercial setting (social liability) to visibly intoxicated person or minor

*Only applies when question provides dram-shop statute.

Many jurisdictions have enacted **dram-shop laws**, which allow a plaintiff injured as a result of another's intoxication to sue the business (eg, bar, restaurant) that provided the alcohol to the intoxicated person.* To sustain a cause of action under a dram-shop law, the plaintiff generally must prove the following:

The **business sold alcohol** to a minor or **someone who was visibly intoxicated** at the **time of the sale**.
The **plaintiff's injuries** were a **proximate result** (foreseeable consequence) of that person's **intoxication**.
Several jurisdictions have also extended liability to *social* hosts who serve alcohol to visibly intoxicated guests. But **social-host liability** is **not recognized by the common law**, which considers the plaintiff's consumption—not the host's provision—of alcohol to be the proximate cause of the plaintiff's injury.

Here, the host of the cocktail party continued to serve the socialite alcohol despite her visible intoxication. But the host is not liable for the pedestrian's injuries because (1) the host is not a commercial seller subject to the jurisdiction's dram-shop law and (2) the jurisdiction otherwise follows the common law, which does not recognize social-host liability **(Choice C)**. Therefore, the pedestrian is *not* likely to prevail in his action against the host.

*Dram-shop laws exist to circumvent the common-law rule that sellers of alcohol are not liable for injuries resulting from a buyer's intoxication.

(Choice A) Had the host been liable for the socialite's conduct, the bar's subsequent tortious conduct—serving the socialite despite her visible intoxication—likely would not have been a superseding cause. That is because subsequent tortious conduct (other than intentional tortious conduct) is considered foreseeable.

(Choice D) The pedestrian's injuries likely were proximately caused by (ie, were a foreseeable consequence of) the socialite's intoxication, and the pedestrian could likely prevail in an action against the socialite. But since this jurisdiction does not recognize social-host liability, the pedestrian cannot prevail in his action against the host.

Educational objective:

In a dram-shop action, the plaintiff generally must prove that (1) a business sold alcohol to a minor or someone who was visibly intoxicated at the time and (2) the plaintiff's injuries were a proximate result of that person's intoxication. Some jurisdictions—but not the common law—extend liability to social hosts who serve visibly intoxicated guests.

References

45 Am. Jur. 2d Intoxicating Liquors § 443 (2020) (common law on providing alcohol to social guests).

45 Am. Jur. 2d Intoxicating Liquors § 455 (2020) (elements of dram-shop action).

45 Am. Jur. 2d Intoxicating Liquors § 468 (2020) (proximate cause in dram-shop action).

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A security guard, dressed in plain clothes, was working for a discount store when a customer got into a heated argument with a cashier over the store's refund policy. Without identifying himself as a security guard, the security guard suddenly grabbed the customer's arm. The customer attempted to push the security guard away, and the security guard knocked the customer to the floor, causing him injuries.

The customer sued the store for battery on a theory of vicarious liability for the injuries caused by the security guard. The store filed an answer to the customer's complaint, asserting the affirmative defense of contributory negligence. The customer has moved to strike the affirmative defense. Traditional rules of contributory negligence apply.

Should the trial court grant the customer's motion?

A. No, because contributory negligence is an affirmative defense to a cause of action based on vicarious liability.

B. No, because the customer should have known that his argument with the cashier might provoke an action by a security guard.

C. Yes, because contributory negligence is not a defense to battery.

D. Yes, because the customer did not know that he was pushing away someone who was employed as a security guard.

Explanation:

Contributory negligence is an affirmative defense that completely bars the plaintiff's recovery when his/her conduct falls below the standard of care persons should use for their own protection (ie, the plaintiff's own negligence contributed to the harm). However, under the traditional rules of contributory negligence, contributory negligence serves only as a defense to **negligence** claims—not **intentional tort** claims like battery.

Since the customer sued the store for battery—not negligence—contributory negligence is not a defense. Therefore, the court should grant the customer's motion to strike that defense.

(Choice A) A principal can only assert contributory negligence as a defense to a negligence cause of action based on a theory of vicarious liability. Here, the customer alleged that the store was vicariously liable for the guard's battery. Because the guard could not assert contributory negligence as a defense to battery, neither can the store.

(Choices B & D) If the store could assert the defense of contributory negligence, then the court would consider whether the customer should have known that a heated argument with the cashier might provoke the guard or did not know that he was pushing away a guard. But since contributory negligence is not a defense to battery, these factual issues do not matter.

Educational objective:

Under the traditional rules of contributory negligence, contributory negligence completely bars the plaintiff's recovery when his/her own negligence was a contributing cause of the harm. This affirmative defense only applies to negligence claims.

References

Fed. R. Civ. P. 12(f) (motion to strike).

Restatement (Second) of Torts § 463 (Am. Law Inst. 1965) (definition of contributory negligence).

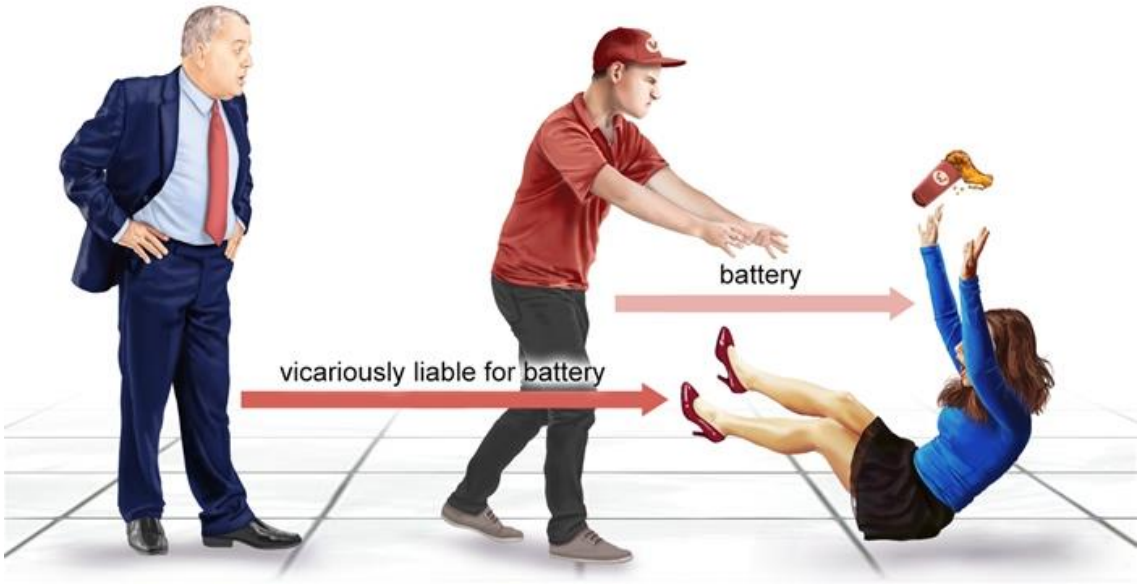
Restatement (Second) of Torts § 467 (Am. Law Inst. 1965) (effect of contributory negligence).

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Vicarious liability

Defenses limited to those agent could have raised for the underlying tort



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A pedestrian was injured when hit by a chair that was thrown from an upper-story hotel window. The pedestrian sued the occupants of all the rooms from which the chair might have been thrown.

At trial, the pedestrian has been unable to offer any evidence as to the exact room from which the chair was thrown. The defendants have filed a motion for a directed verdict.

Should the court grant the motion?

A. No, because it is unreasonable to expect the pedestrian to prove which of the defendants caused the harm.

B. No, because of the doctrine of alternative liability.

C. Yes, because a plaintiff always has the burden to prove that a particular defendant's conduct was the factual cause of the plaintiff's physical harm.

D. Yes, because the pedestrian has failed to offer evidence that the defendants jointly engaged in tortious conduct.

Explanation:

Liability of multiple negligent actors

	Indivisible injuries	**Separable injuries**
Acting independently	Joint & several liability*	Several liability only
Acting in concert	Joint & several liability	

*Default rule on MBE.

Tort claims for personal injury generally require proof that a particular defendant's tortious conduct was the actual and proximate cause of the plaintiff's harm. But when two or more **defendants jointly engage** in **tortious conduct** (ie, act in concert)—and at least one of them causes the plaintiff's harm—all of the defendants are **jointly and severally liable** for the harm **(Choice C)**.

Here, the pedestrian was injured by a chair that was thrown from a hotel window. She then sued the occupants of *all* the rooms from which it might have been thrown. Since she offered no evidence as to the exact room from which the chair was thrown, she cannot prove which defendant(s) caused her injury. And since she also offered no evidence of joint tortious conduct, the defendants' motion for a directed verdict should be granted.

(Choices A & B) The doctrine of alternative liability applies when (1) there were multiple tortfeasors, (2) at least one of them caused the plaintiff's harm, and (3) it is impossible to tell which one of them did. The burden then shifts to each defendant to prove that he/she did *not* cause the harm. Here, it may be unreasonable to expect the pedestrian to prove which defendant caused her harm. But alternative liability only applies if each defendant's tortious conduct is proved (not seen here).

Educational objective:

When multiple defendants engage in joint tortious conduct and one or more of them causes the plaintiff's harm, *all* of the defendants are jointly and severally liable for the harm.

References

Restatement (Second) of Torts § 876 (Am. Law Inst. 1965) (explaining that a defendant is subject to liability if he/she does a tortious act in concert with others or pursuant to a common design).

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A fire that started in the defendant's warehouse spread to the plaintiff's adjacent warehouse. The defendant did not intentionally start the fire, and the plaintiff can produce no evidence as to how the fire started. However, the defendant had failed to install a sprinkler system, which was required by a criminal statute. The plaintiff can produce evidence that had the sprinkler system been installed, it could have extinguished the fire before it spread.

In an action by the plaintiff against the defendant to recover for the fire damage, is it possible for the plaintiff to prevail?

A. No, because there is no evidence that the defendant negligently caused the fire to start.
B. No, because the statute provides only for criminal penalties.
C. Yes, because a landowner is strictly liable for harm to others caused by the spread of fire from his premises under the doctrine of *Rylands v. Fletcher*.
D. Yes, because the plaintiff was harmed as a result of the defendant's violation of a statute that was meant to protect against this type of occurrence.

Explanation:

Elements of negligence per se

Defendant violated statute or ordinance

Plaintiff suffered type of harm statute or ordinance was intended to prevent

Plaintiff is in class of persons statute or ordinance was intended to protect

Civil actions for accidental fire damage are typically based on negligence. To prevail on a negligence claim, the plaintiff must prove the following elements: duty, breach, causation, and damages. And under the doctrine of **negligence per se**, the elements of **duty and breach are presumed** if:

the defendant **violated a statute**

that statute was **intended to prevent** the **type of harm** suffered by the plaintiff *and*

the plaintiff is within a **class of persons** that the statute was **intended to protect**.

Here, the defendant violated a statute designed to protect buildings and people from fire by failing to install a sprinkler system. As a result, the defendant's duty and breach will be presumed. And though there is no evidence that he negligently caused the fire to *start*, there is evidence that a sprinkler system could have prevented the fire from *spreading* to the plaintiff's warehouse **(Choice A)**. As a result, there is evidence that the defendant's failure to install a sprinkler system caused the plaintiff's loss—making it possible for the plaintiff to prevail.

(Choice B) The fact that a statute provides only for criminal penalties does not preclude it from establishing a duty of care for a civil negligence claim.

(Choice C) Under the modern interpretation of *Rylands v. Fletcher*, a landowner is strictly liable for harm caused by an abnormally dangerous activity on his/her land. Since there is no indication that the defendant was engaging in any such activity in his warehouse here, this precedent does not apply.

Educational objective:

Under the doctrine of negligence per se, duty and breach are presumed if (1) the defendant violated a statute, (2) that statute was intended to prevent the type of harm suffered by the plaintiff, and (3) the plaintiff is within a class of persons that the statute was intended to protect.

References

Restatement (Second) of Torts § 288B (Am. Law Inst. 1965) (explaining that it is negligent per se to violate a statute that establishes a duty of care).

Rylands v. Fletcher [1868] UKHL 1, [1868] LR 3 (HL) 330 (appeal taken from Eng.) (holding the defendant strictly liable for storing water that flooded the plaintiff's adjacent land).

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The day after a man completed the sale of his house and moved out, one of the slates flew off the roof during a windstorm. The slate struck the man's former neighbor, who was on the public sidewalk. The neighbor was seriously injured. Both the man and the neighbor were aware that the roof is old and had lost several slates in ordinary windstorms on other occasions.

If the neighbor sues the man to recover damages for his injuries, will the neighbor likely prevail?

A. No, because the man was neither the owner nor the occupier of the house when the neighbor was injured.

B. No, because the neighbor knew that in the past slates had blown off the roof during windstorms.

C. Yes, because the man was aware of the condition of the roof and should have realized that it was dangerous to persons outside the premises.

D. Yes, because the roof was defective when the man sold the house.

Explanation:

Sellers of real property

(negligence liability arising from dangerous condition on land)

Injured party	**Seller's liability**	**Duration of liability**
Person on land	Liable for physical harm caused by *natural or artificial* condition if: condition existed at time of sale seller knew or should have known condition existed & posed unreasonable risk to persons on land buyer neither knew nor should have known of condition or risk *and* seller had reason to believe buyer would not discover condition or realize risk	If seller created or actively concealed condition, liable until buyer discovers condition & has reasonable opportunity to remedy it Otherwise, liable until buyer has reasonable opportunity to discover & remedy condition
Person off land	Liable for physical harm caused by *artificial* condition if: condition existed at time of sale *and* seller knew or should have known condition existed & posed unreasonable risk to persons off land	

Obligations associated with real property are generally owed by whoever occupies and controls the land—ie, the current land possessor. But a **seller** (previous land possessor) remains **liable for negligence** to persons off the land for **physical harm caused by** an **artificial condition** on the land that:

existed at the **time of the sale** *and*

the **seller knew, or should have known**, existed and posed an **unreasonable risk of harm** to such persons.

That liability continues at least **until the buyer** has had a **reasonable opportunity to discover and remedy** the condition.*

Here, the day after the man sold his home and moved out, a slate flew off the roof (artificial condition) during a windstorm and struck his former neighbor on the public sidewalk. The man knew that the roof was old and had lost several slates in previous windstorms, so he should have realized that it was dangerous to persons outside the premises. And since the new owner had not yet had a reasonable opportunity to discover and remedy this danger, the neighbor will likely prevail against the man **(Choice A)**.

*If the seller created or actively concealed the condition, the seller's liability continues until the buyer has discovered and had a reasonable opportunity to remedy the condition.

(Choice B) In comparative negligence jurisdictions (default rule on the MBE), a plaintiff's recovery is reduced (not barred) if the plaintiff failed to exercise reasonable care. Therefore, the fact that the neighbor knew that slates had blown off the roof during windstorms and walked on the sidewalk anyway does not bar his claim.

(Choice D) Although the roof was defective when the man sold the house, he is only liable for negligence if he knew or should have known that the defect existed and was dangerous.

Educational objective:

A seller remains liable to persons off the land for physical harm caused by an artificial condition on the land that (1) existed at the time of sale and (2) the seller knew, or should have known, existed and posed an unreasonable risk of harm to such persons.

References

Restatement (Second) of Torts § 373 (duty of sellers to those off the land).

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During a professional baseball game, a pitcher was continuously heckled by some spectators seated behind a wire mesh fence in the stands above the dugout. On several occasions, the pitcher turned and looked directly at the hecklers with a scowl on his face, but the heckling continued. The pitcher then wound up as though he was preparing to pitch in the direction of his catcher but threw a fastball toward the hecklers instead. The ball passed through the wire mesh fence and struck a woman who was one of the hecklers.

The woman brought an action against the pitcher and the team to recover damages for battery. The trial court entered judgment as a matter of law in favor of the defendants on the battery claim. The woman has appealed the judgment, contending that the trial court erred in entering judgment as a matter of law in favor of the defendants. The appellate court has held that the battery claim presents a jury issue.

How should the court rule on the judgment as a matter of law entered in favor of the team?

A. Affirm, because an employer is not vicariously liable for a servant's battery.

B. Affirm, if the pitcher's act was a knowing violation of team rules.

C. Reverse and remand, because a jury could find the team vicariously liable for a battery committed by the pitcher in the course of his employment.

D. Reverse and remand, if a jury could find negligence on the part of the team's management.

Explanation:

An employer is vicariously liable under the doctrine of **respondeat superior** for any tort committed by its employee while acting within the scope of the **employment relationship**—ie, when:

the employee's conduct is **inherent** in the **employment** position (eg, a security guard batters a thieving customer) *or*

the employee acts to **further** the **employer's business** (eg, a waiter batters a customer who is complaining about food quality to protect the restaurant's integrity).

Here, a reasonable jury could find that the pitcher committed the battery within the course of his employment—eg, to further the team's success by quieting the hecklers. Therefore, the appellate court should reverse the judgment as a matter of law and remand the case for a jury to ultimately determine the team's vicarious liability **(Choice A)**.

(Choice B) An employer (master) may be vicariously liable for a tort committed by its employee (servant) acting within the scope of the employment relationship, even if the employee knowingly violated employment guidelines or rules.

(Choice D) Vicarious liability holds the employer liable for torts committed by its employee within the scope of employment based solely on the relationship between the two parties—not based on the employer's negligent supervision or control of its employee. Therefore, it is irrelevant whether the team's management acted negligently.

Educational objective:

Under the doctrine of respondeat superior, an employer is vicariously liable for its employee's torts committed within the scope of the employment relationship. Torts are committed within the scope of employment when the employee's conduct is (1) inherent to the job or (2) in furtherance of the employer's business.

References

Restatement (Third) of Agency §§ 2.04, 7.07 (Am. Law Inst. 2006) (doctrine of respondeat superior).

Fed. R. Civ. P. 50(a) (judgment as a matter of law).

Manning v. Grimsley, 643 F.2d 20 (1st Cir. 1981).

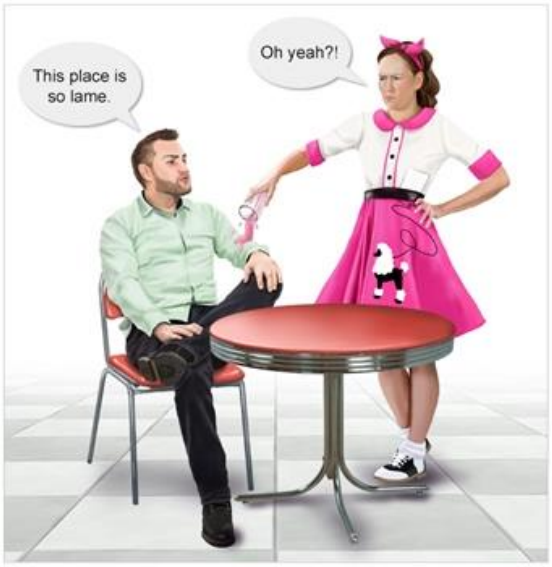
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Respondeat superior

Employer vicariously liable when employee's conduct:





is inherent in employment position *or* furthers employer's business

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As a shopper was leaving a supermarket, an automatic door that should have opened outward opened inward, striking and breaking the shopper's nose. The owner of the building had installed the automatic door. The lease, pursuant to which the supermarket occupied the building, provided that the supermarket was responsible for all maintenance of the premises.

The shopper sued the supermarket. At trial, neither the shopper nor the supermarket offered any testimony, expert or otherwise, as to why the door had opened inward. At the close of evidence, both the shopper and the supermarket moved for judgment as a matter of law.

How should the trial judge rule?

A. Grant judgment for the shopper, because it is undisputed that the door malfunctioned.

B. Grant judgment for the supermarket, because the shopper failed to join the owner of the building as a defendant.

C. Grant judgment for the supermarket, because the shopper failed to offer proof of the supermarket's negligence.

D. Submit the case to the jury, because on these facts negligence may be inferred.

Explanation:

Land possessors (eg, the supermarket) have a nondelegable duty to keep their premises safe for invitees (eg, the shopper). A land possessor who breaches this duty and causes the plaintiff physical harm is liable for negligence. And if there is no direct evidence of negligence, the doctrine of **res ipsa loquitur** permits—but does not require—an **inference** of **negligence** when:

the plaintiff suffered a **type of harm** that is **usually caused by negligence** of someone in the defendant's position *and*

the evidence tends to **eliminate other potential causes** of that harm (eg, the instrumentality that inflicted the harm was under the defendant's **exclusive control**).

If reasonable juries could reach differing conclusions on the issue of negligence, the court should deny both parties' motions for judgment as a matter of law and submit the case to the jury.

Here, an automatic door in the supermarket opened in the wrong direction and broke the shopper's nose. A reasonable jury could conclude that the supermarket was not negligent—eg, if the injury was caused by the building owner's installation. But a reasonable jury could also infer negligence because (1) an automatic door would not usually malfunction unless negligently maintained and (2) the supermarket had exclusive control of maintaining the door **(Choice C)**. Therefore, the court should deny both motions and submit the case to the jury.

(Choice A) The undisputed fact that the door malfunctioned does not prove the supermarket's negligence. And strict liability is inappropriate here since there was no commercial sale of a defective product.

(Choice B) The shopper is not required to sue all possibly negligent persons. Therefore, the shopper's failure to join the building owner as a defendant does not justify judgment as a matter of law for the supermarket.

Educational objective:

The doctrine of res ipsa loquitur permits an inference of negligence if (1) the plaintiff suffered a type of harm that is usually caused by negligence of someone in the defendant's position and (2) the evidence tends to eliminate other potential causes of that harm.

References

Restatement (Second) of Torts § 328D (Am. Law Inst. 1965) (explaining when a defendant's negligence can be inferred based on the type of accident that injured the plaintiff).

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Res ipsa loquitur—"the thing speaks for itself"
(*Byrne v. Boadle*)



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A philanthropist operates a residential rehabilitation center for emotionally disturbed and ungovernable children who have been committed to his custody by their parents or by juvenile authorities. The center's purpose is to modify the behavior of the children through a teaching program carried out in a family-like environment. Though the children are not permitted to leave the center without his permission, there are no bars or guards to prevent them from doing so. It has been held in the state where the center is located that persons having custody of children have the same duties and responsibilities that they would have if they were the parents of the children.

An orphan, aged 12, who had been in the philanthropist's custody for six months while exhibiting no signs of violence, left the center without permission. The philanthropist became aware of the orphan's absence almost immediately, but made no attempt to locate him or secure his return, though reports reached him that the orphan had been seen in the vicinity. Thirty-six hours after the orphan left the center, he committed a brutal assault upon a five-year-old girl, causing her to suffer extensive permanent injury.

If an action is brought against the philanthropist on behalf of the girl to recover damages for her injuries, is the girl likely to prevail?

A. No, because custodians are not personally liable for the intentional torts of those in custody.

B. No, because the philanthropist did not know or have reason to know that the orphan had a propensity to attack younger children.

C. Yes, because the orphan was in the philanthropist's custody.

D. Yes, because the orphan was old enough to be liable for battery.

Explanation:

Defendants generally have no duty to control the conduct of others absent some **special relationship**. Custodians have a special relationship with persons in their custody, so custodians owe a **duty to use reasonable care** to mitigate any **foreseeable risks of harm** that those persons pose to others (eg, where a custodian knows of a prisoner's threat or propensity for violence). If a custodian breaches that duty and causes the plaintiff physical harm, the custodian will be liable for **negligence**.

Here, the orphan was in the philanthropist's custody (special relationship). But since the orphan exhibited no signs of violence, the philanthropist neither knew nor had reason to know of the orphan's propensity for attacking younger children (no foreseeable risk of harm). Therefore, the philanthropist did not breach a duty of care owed to the girl, and the girl is unlikely to prevail.

(Choice A) A custodian is personally liable (ie, directly liable) for the intentional tort of a person in his/her custody if the custodian encouraged the person to commit that tort.

(Choice C) Although the philanthropist's custody of the orphan imposed a duty of reasonable care, that duty only required the philanthropist to mitigate *foreseeable* risks of harm. Since any risk of harm by the orphan was *unforeseeable*, the philanthropist did not breach that duty.

(Choice D) The fact that the orphan was old enough to be liable for battery is insufficient to establish the philanthropist's liability. The philanthropist would be liable only if the orphan posed a foreseeable risk of harm (liability for negligent failure to control) *or* acted on the philanthropist's behalf (direct liability for battery).

Educational objective:

Because of their special relationship with persons in their custody, custodians have a duty to use reasonable care to mitigate any foreseeable risks of harm that those persons pose to others. Therefore, a custodian may be liable for negligence if he/she breaches that duty and a person in his/her custody harms the plaintiff.

References

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 41 (Am. Law Inst. 2012) (duty to control another's foreseeable risk of harm).

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Special relationships creating a duty to control others



Parent and child



Mental-health professional and patient



Employer and employee



Custodian and prisoner

Mnemonic: **P**lease **M**ake **E**veryone **C**areful

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An employer retained a doctor to conduct physical examinations of prospective employees. After reviewing one applicant's test results, the doctor informed the employer and the applicant that the applicant suffered from AIDS. The applicant was shocked by this news and suffered a heart attack as a result. One month later, the applicant learned that she in fact did not have AIDS and that the doctor had negligently confused her file with that of another prospective employee.

If the applicant sues the doctor to recover damages, under which cause(s) of action is she most likely to prevail?

A. Invasion of privacy.

B. Invasion of privacy and negligent misrepresentation.

C. Negligent infliction of emotional distress.

D. Negligent infliction of emotional distress and negligent misrepresentation.

Explanation:

Negligent infliction of emotional distress

Theories of recovery	Required elements
Zone of danger	Defendant's negligence put plaintiff in danger of immediate bodily harm
	Danger caused plaintiff serious emotional distress
Bystander	Defendant negligently injured plaintiff's close relative
	Plaintiff contemporaneously perceived that event
	Event caused plaintiff serious emotional distress
Special situations	Defendant negligently:
	delivered erroneous announcement of death or illness
	mishandled corpse or bodily remains
	contaminated food with repulsive foreign object
	Caused plaintiff serious emotional distress

A plaintiff can recover for **negligent infliction of emotional distress** (NIED) in three situations: (1) zone of danger, (2) bystander, or (3) special situations. Liability under the **special-situations theory** arises when the plaintiff suffers **serious emotional distress** because the defendant **negligently**:

delivered an **erroneous announcement of death or illness**

mishandled a **corpse or bodily remains** *or*

contaminated food with a **repulsive foreign object**.

Here, the doctor negligently misdiagnosed the applicant with AIDS because he confused her file with that of another prospective employee. The erroneous announcement of this illness caused the applicant serious emotional distress—she went into shock and suffered a heart attack upon being informed of this diagnosis. As a result, she will most likely prevail on her cause of action against the doctor for NIED.

(Choices A & B) There are four theories of recovery for invasion of privacy—none of which apply here. That is because the doctor did not (1) conduct the physical examination of the applicant without her authorization (ie, no intrusion upon seclusion), (2) publicize her private information, (3) publicize the misdiagnosis to cast her in a false light, or (4) use her name or likeness for personal benefit.

(Choices B & D) Negligent misrepresentation occurs in a commercial setting when (1) the defendant negligently provides the plaintiff with false information and (2) the plaintiff reasonably relies on that information and suffers pecuniary loss. Here, the doctor provided

the applicant with false information, but she never relied on his misdiagnosis. Therefore, negligent misrepresentation does not apply.

Educational objective:

Negligent infliction of emotional distress occurs under the special-situations theory when the plaintiff suffers serious emotional distress because the defendant negligently (1) delivered an erroneous announcement of death or illness, (2) mishandled a corpse or bodily remains, or (3) contaminated food with a repulsive foreign object.

References

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 47(b) cmt. f (Am. Law Inst. 2012) (special-situations theory of negligent infliction of emotional distress).

Restatement (Second) of Torts §§ 652A–652E (Am. Law Inst. 1977) (invasion of privacy).

Restatement (Second) of Torts § 552 (Am. Law Inst. 1977) (negligent misrepresentation).

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A man has a small trampoline in his backyard which, as he knows, is commonly used by neighbor children as well as his own. The trampoline is in good condition, is not defective in any way, and normally is surrounded by mats to prevent injury if a user should fall off.

Prior to leaving with his family for the day, the man leaned the trampoline up against the side of the house and placed the mats in the garage. While the family was away, a new boy in the neighborhood, aged 11, wandered into the man's yard and saw the trampoline. The boy had not previously been aware of its presence, but having frequently used a trampoline before, he decided to set it up and started to jump. He lost his balance on one jump and took a hard fall on the bare ground, suffering a serious injury that would have been prevented by the mats.

An action has been brought against the man on the boy's behalf to recover damages for the injuries the boy sustained from his fall. In this jurisdiction, the traditional common law rules pertaining to contributory negligence have been replaced by a pure comparative negligence rule.

If the boy's suit fails, what will be the most likely reason?

A. An 11-year old child who has frequently used a trampoline should reasonably understand the danger of using a trampoline without mats.

B. The boy did not know about the trampoline before entering the man's yard and thus was not "lured" onto the premises.

C. The boy entered the man's yard and used the trampoline without the man's permission.

D. The boy failed to exercise reasonable care commensurate with his age, intelligence, and experience.

Explanation:

Under the **attractive nuisance doctrine**, land possessors have a **duty** to exercise reasonable care to **protect child trespassers** from **artificial (ie, man-made) conditions** on their land when:

the condition is located where the land possessor knows or should know that **children are likely to trespass**

the land possessor knows or should know that the condition poses an **unreasonable risk of serious bodily harm** or death to children

children of the trespasser's age **cannot reasonably discover or appreciate** the risk *and*

the **risk outweighs** the condition's **utility and the burden** of eliminating the risk.

A land possessor who breaches this duty and causes the child trespasser physical harm is liable for negligence.

Here, the 11-year-old boy was a trespasser because he wandered into the man's yard without permission. The boy then suffered a serious injury when he fell off the man's trampoline (artificial condition). But an 11-year old child—especially one who has frequently used a trampoline—should reasonably understand the risk of using a trampoline without mats. Therefore, the attractive nuisance doctrine does not apply, and the boy's suit will likely fail.

(Choice B) Traditionally, the attractive nuisance doctrine only applied when the child was attracted (ie, lured) onto the property by the artificial condition. But since this is no longer required, the fact that the boy did not know about the trampoline before entering the man's yard is irrelevant.

(Choice C) Although the boy trespassed by entering the man's yard without permission, the boy could have recovered had the attractive nuisance doctrine applied.

(Choice D) The boy's failure to exercise reasonable care commensurate with his age, intelligence, and experience would completely *bar* his recovery if traditional contributory negligence rules applied. But this jurisdiction has adopted a pure comparative negligence rule, which would only *reduce* his recovery.

Educational objective:

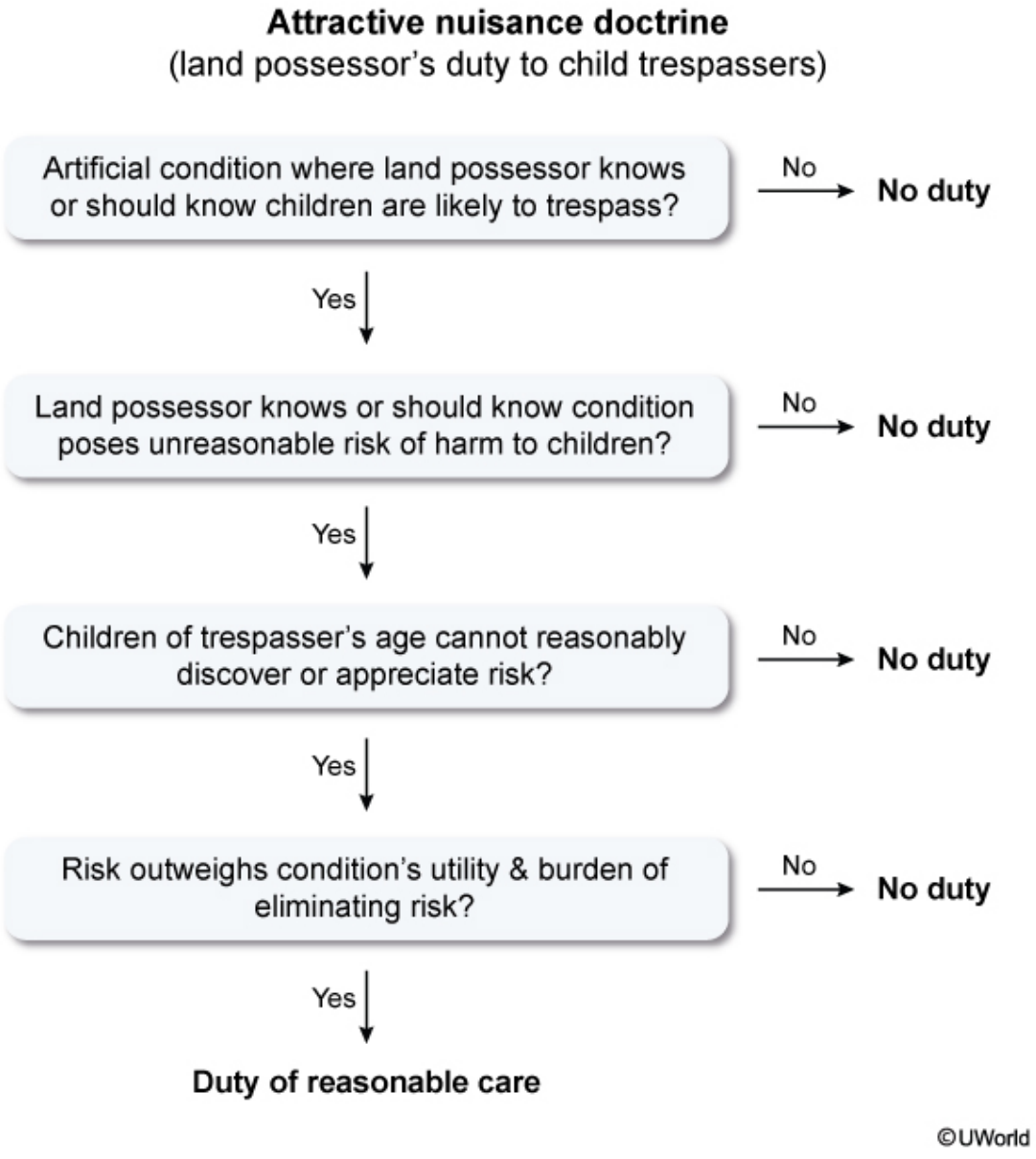
Under the attractive nuisance doctrine, land possessors have a duty to protect child trespassers from artificial conditions on their land under certain circumstances. But this doctrine does not apply when children of the trespasser's age could reasonably discover or appreciate the risk presented by the condition.

References

Restatement (Second) of Torts § 339 (Am. Law Inst. 1965) (attractive nuisance doctrine).

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A man entered a drug store to make some purchases. As he was searching the aisles for various items, he noticed a display card containing automatic pencils. The display card was on a high shelf behind a cashier's counter. The man saw a sign on the counter that read, "No Admittance, Employees Only." Seeing no clerks in the vicinity to help him, the man went behind the counter to get a pencil. A clerk then appeared behind the counter and asked whether she could help him. He said he just wanted a pencil and that he could reach the display card himself. The clerk said nothing further.

While reaching for the display card, the man stepped sideways into a hidden, open shaft and fell to the basement, ten feet below. The clerk knew of the presence of the open shaft but assumed incorrectly that the man had noticed it.

The man sued the drug store to recover damages for the injuries he sustained in the fall. The jurisdiction has adopted a rule of pure comparative negligence, and it follows traditional common law rules governing the duties of a land possessor.

Will the man likely recover a judgment against the drug store?

A. No, because the man was a trespasser.

B. No, because the man's injuries did not result from the defendant's willful or wanton misconduct.

C. Yes, because the clerk had reason to believe that the man was unaware of the open shaft.

D. Yes, because the premises were defective with respect to a public invitee.

Explanation:

Under the traditional common law approach,* **land possessors** owe a **duty of reasonable care** to foreseeable land entrants—including **invitees**. But an invitee is treated as a trespasser if that person intentionally enters an area without permission. And if that person is a **known or anticipated trespasser**, the landowner owes a **limited duty** to:

warn the trespasser about **hidden, artificial (ie, man-made) dangers** that are known to the land possessor but **unlikely to be discovered** by the trespasser *and*

use reasonable care in active operations (ie, activities conducted on the land).

A land possessor who breaches this duty and causes the trespasser physical harm is liable for negligence. And if the land possessor is an employer, the doctrine of respondeat superior holds the land possessor vicariously liable for its employees' negligence while on the job.

Here, the man was an invitee when he entered the drug store to shop. But he became a trespasser when he intentionally went behind the cashier's counter without permission **(Choice D)**. Nevertheless, the clerk owed him a duty to warn since she knew he was there and had reason to believe that he was unaware of the *hidden*, open shaft **(Choice A)**. And since her failure to warn the man caused him to fall into the shaft and suffer harm, the man will likely recover a judgment from the drug store (employer) for the clerk's (employee's) negligence.

*The traditional approach is followed in about half the jurisdictions. The other half follow the modern approach, under which land possessors owe a duty of reasonable care to all land entrants (except flagrant trespassers).

(Choice B) Although the man's injuries did not result from the drug store's willful or wanton (ie, intentional or reckless) misconduct, the store is still vicariously liable for its employee's negligence under the doctrine of respondeat superior.

Educational objective:

A land possessor owes a duty to known or anticipated trespassers to (1) warn them about hidden, artificial dangers that are known to the land possessor but unlikely to be discovered by trespassers and (2) use reasonable care in active operations.

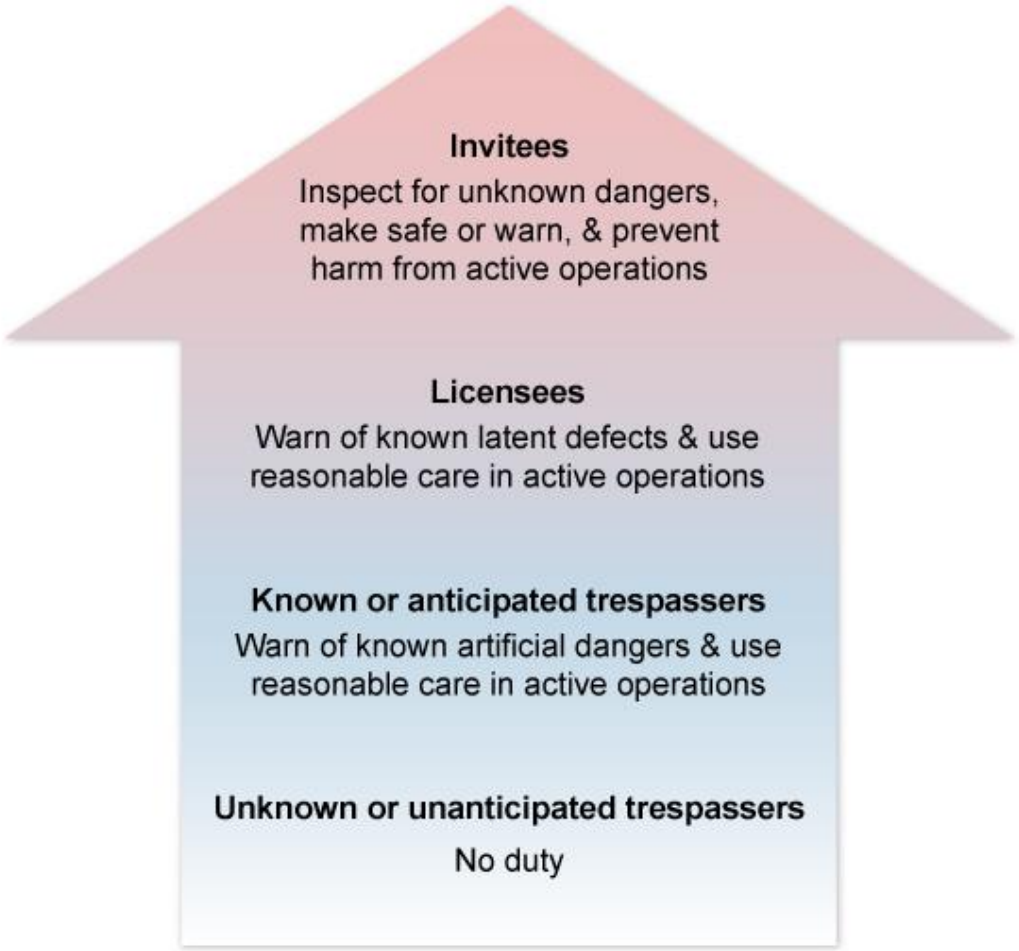
References

Restatement (Second) of Torts § 337 (Am. Law Inst. 1965) (duty to known trespassers).

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Land possessor's duty to land entrants



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A hotel employed a carefully selected independent contractor to rebuild its swimming pool. The hotel continued to operate while the pool was being rebuilt. The contract between the hotel and the contractor required the contractor to indemnify the hotel for any liability arising from the contractor's negligent acts. A guest of the hotel fell into the excavation, which the contractor had negligently left unguarded.

In an action by the guest against the hotel to recover for his injuries, what would be the most likely outcome?

A. Liability, because the contract between the hotel and the contractor required the contractor to indemnify the hotel for any liability arising from the contractor's negligent acts.

B. Liability, because the hotel had a nondelegable duty to the guest to keep a safe premises.

C. No liability, because the contractor was the actively negligent party.

D. No liability, because the hotel exercised reasonable care in employing the contractor.

Explanation:

A principal is generally **not vicariously liable** for torts committed by its **independent contractor**. However, **vicarious liability will be imposed** if the independent contractor's work breaches a nondelegable duty owed by the principal—ie, a duty retained by the principal even when the performance of that duty is assigned to an independent contractor. This includes the **duty of a land possessor** that holds its land open to the public to **keep the premises safe for business visitors**.

Here, the hotel hired an independent contractor to rebuild its swimming pool. While performing that work, the contractor negligently left the excavation unguarded. A guest then fell into the excavation and sustained injuries. And since the hotel had a nondelegable duty to keep the premises safe for its guests, the hotel is vicariously liable for the guest's injuries caused by the contractor's negligence.

(Choice A) The contractor's agreement to indemnify (ie, reimburse) the hotel for any liability arising from the contractor's negligent acts does not affect the hotel's liability to its guests. Instead, the indemnity agreement provides a basis for the hotel to seek reimbursement from the contractor if the guest's suit is successful.

(Choice C) Active negligence is negligence resulting from an affirmative act (eg, rebuilding the swimming pool), while passive negligence is negligence resulting from inaction (eg, failing to maintain safe premises). However, these distinctions are outdated and, even if they applied, merely address the apportionment of damages between multiple defendants—not one defendant's liability to the plaintiff.

(Choice D) The fact that the hotel exercised reasonable care in employing the contractor shows that the hotel is not *directly* liable for its own negligence in hiring an incompetent worker. But the hotel is still *vicariously* liable for the contractor's negligence since the hotel owed its guests a nondelegable duty to maintain safe premises.

Educational objective:

A principal is generally not vicariously liable for its independent contractor's torts. However, vicarious liability will be imposed when the independent contractor breaches a nondelegable duty of care owed by the principal—eg, a land possessor's duty to keep the premises safe for business visitors.

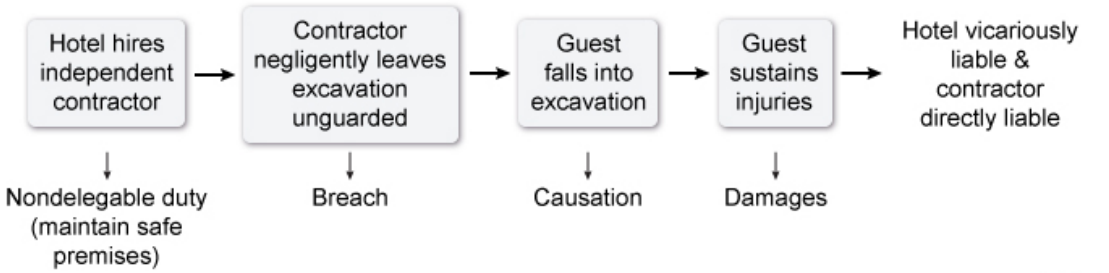
References

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 57 (Am. Law Inst. 2012) (no vicarious liability generally for independent contractor's torts).

Restatement (Second) of Torts § 344 (nondelegable duty to keep business premises safe).

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Hotel hires independent contractor
Contractor negligently leaves excavation unguarded
Guest falls into excavation
Guest sustains injuries
Hotel vicariously liable & contractor directly liable
Nondelegable duty (maintain safe premises)
Breach
Causation
Damages

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In an action by a man against a pharmacy, the man offered only the following evidence:

The man took a clearly written prescription to a pharmacy. The pharmacy's employee filled the prescription by providing pills with 30 milligrams of the active ingredient instead of 20 milligrams, as was prescribed. Shortly after taking the pills as directed, the man, who had no previous history of heart problems, suffered a heart attack. Overdoses of the active ingredient had previously been associated with heart problems.

Does the man have a valid claim against the pharmacy?

A. No, because pharmacies are not strictly liable for injuries caused by incorrectly filled prescriptions.

B. No, because the man offered no specific proof as to the pharmacy's negligence.

C. Yes, because a jury could reasonably conclude that the man would not have suffered a heart attack had the pharmacist provided the correct dosage.

D. Yes, because by providing the 30-milligram pills rather than the 20-milligram pills, the pharmacy sold the man a defective product.

Explanation:

Vicarious liability

(liability for tortious acts of another)

Respondeat superior	Employee's conduct occurred within scope of employment—ie, under employer's control or while performing assigned work
Nondelegable duty	Independent contractor's work involved abnormally or inherently dangerous activity, condition on land open to general public, or activity regulated by law
Parent	Child committed tort while acting as parent's agent
Business partner	Business partner's conduct occurred within scope of business
Automobile owner	Family member drove car with permission (family-car doctrine) *or* any person drove car with permission under owner-liability statute
Dram shop* & social host	Alcohol sold (dram shop) *or* served at noncommercial setting (social liability) to visibly intoxicated person or minor

*Only applies when question provides dram-shop statute.

A valid negligence claim requires proof that another's failure to use reasonable care caused the plaintiff harm. Under the doctrine of **respondeat superior**, an **employer is vicariously liable** for its **employee's negligence** if the negligent act occurred within the **scope of the employment relationship**—ie, while (1) performing assigned work or (2) engaging in conduct subject to the employer's control.

Here, the pharmacist (employee) filled the man's prescription (performing assigned work) with 30 milligrams of the active ingredient instead of 20 milligrams, as prescribed. That ingredient had been associated with heart problems. Since the man had no history of heart problems, he can likely prove that he would not have suffered a heart attack had the pharmacist used reasonable care to provide the correct dosage. And since the pharmacy (employer) is vicariously liable for the pharmacist's negligence, the man has a valid negligence claim against the pharmacy.

(Choice A) Pharmacies are generally not strictly liable (liable without proof of fault) for harm caused by incorrectly filled prescriptions since they are considered service providers—not commercial sellers. But the man still has a valid negligence claim against the pharmacy under vicarious liability principles.

(Choice B) An employer can be *directly* liable for its own negligence (eg, hiring an incompetent employee) or *vicariously* liable for its employee's negligence. Therefore, the

man does not need to offer specific proof as to the pharmacy's negligence since he has a valid claim against the pharmacy based on its pharmacist's negligence.

(Choice D) A product is defective when it contains a manufacturing defect, design defect, or inadequate warning/instruction at the time of sale or distribution. But proof that a product is defective is only necessary for a products liability claim—not a negligence claim. And since pharmacies (service providers) are generally not subject to products liability, the man will not prevail on this basis.

Educational objective:

Under the doctrine of respondeat superior, an employer is vicariously liable for torts committed by its employees while acting within the scope of employment—ie, performing assigned work or engaging in conduct subject to the employer's control.

References

Restatement (Third) of Agency § 2.04 (Am. Law Inst. 2006) (respondeat superior).

Restatement (Third) of Agency § 7.07 (Am. Law Inst. 2006) (scope of employment).

Restatement (Second) of Torts § 282 (Am. Law Inst. 1979) (definition of negligence).

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A quarterback and a linebacker were competing against one another in a professional football game. At one point during the game, the quarterback attempted to throw the football to one of his teammates. At the same time, the linebacker was chasing the quarterback in order to tackle him before the ball could be thrown. Just as the linebacker was about to tackle the quarterback, the referee blew her whistle, indicating that the play was over and that the players should stop what they were doing. Nevertheless, the linebacker tackled the quarterback two seconds after the whistle was blown and broke the quarterback's arm.

If the quarterback files a negligence action against the linebacker, will the quarterback be likely to prevail?

A. No, because the linebacker did not intend to break the quarterback's arm.

B. No, because the quarterback assumed the risk of breaking his arm by playing football.

C. Yes, because the linebacker breached the duty of care he owed to the quarterback.

D. Yes, because the linebacker tackled the quarterback after the referee blew the whistle.

Explanation:

Assumption of risk

(tort defense)

	Applicability	**Public policy limitations**
Express	Plaintiff assented to liability waiver intended to cover type of conduct that caused plaintiff's harm	Not a defense when defendant: is plaintiff's employer is a hotel or common carrier is a public servant/service has substantially more bargaining power
Implied	Plaintiff voluntarily accepted known risk of harm	Not a defense when plaintiff: suffered intentional harm is member of statutorily protected class

A defendant is liable for **negligence** if he/she breaches a duty of care owed to the plaintiff and causes the plaintiff harm. However, **assumption of the risk** is a **complete defense** to negligence liability. Implied assumption of the risk arises when the plaintiff **voluntarily engages in an activity** with the **knowledge that it carries inherent risks**. For example, an athlete who participates in a sport impliedly assumes the inherent risks of that sport.*

Here, the linebacker may have breached the duty of care he owed to the quarterback by tackling him after the referee blew the whistle. However, this is the type of risk that is inherent to the sport of football, especially since the linebacker tackled the quarterback only two seconds after the whistle was blown. Therefore, the quarterback assumed the risk of being injured by a tackle while playing football, and he is unlikely to prevail in a negligence action **(Choices C & D)**.

*Spectators similarly assume certain risks inherent in watching the sport (eg, the risk of being struck by a game ball).

(Choice A) Intent is irrelevant to negligence, which merely requires proof that the defendant's conduct fell below the applicable standard of care.

Educational objective:

Implied assumption of the risk is a complete defense to negligence liability when the plaintiff voluntarily engages in an activity (eg, football) with the knowledge that it carries inherent risks (eg, risk of being injured during a tackle).

References

Restatement (Second) of Torts §§ 496A-496C (Am. Law Inst. 1981) (assumption of risk principles).

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After her husband died in a hospital, a widow directed the hospital to send her husband's body to a funeral home for burial. The hospital negligently misidentified the husband's body and sent it to be cremated. When she was informed of the hospital's mistake, the widow suffered serious emotional distress. She has sued the hospital.

Is the hospital likely to be held liable to the widow?

A. No, because the widow did not witness the cremation.

B. No, because the widow was never in any danger of bodily harm.

C. Yes, because hospitals are strictly liable if they do not properly dispose of corpses.

D. Yes, because the negligent handling of the husband's body was especially likely to cause his widow serious emotional distress.

Explanation:

Negligent infliction of emotional distress

Theories of recovery	Required elements
Zone of danger	Defendant's negligence put plaintiff in danger of immediate bodily harm
	Danger caused plaintiff serious emotional distress
Bystander	Defendant negligently injured plaintiff's close relative
	Plaintiff contemporaneously perceived that event
	Event caused plaintiff serious emotional distress
Special situations	Defendant negligently:
	delivered erroneous announcement of death or illness
	mishandled corpse or bodily remains
	contaminated food with repulsive foreign object
	Caused plaintiff serious emotional distress

A plaintiff can recover for **negligent infliction of emotional distress** (NIED) under one of three theories: (1) zone of danger, (2) bystander, or (3) special situations. The **special-situations theory** applies to three scenarios where the defendant's negligence is especially likely to cause the plaintiff serious emotional harm. Liability arises under this theory when the plaintiff suffers **serious emotional distress** because the defendant **negligently**:

delivered an erroneous announcement of death or illness

mishandled a corpse or bodily remains *or*

contaminated food with a repulsive foreign object (eg, a used condom in a soda bottle).

Here, the hospital negligently mishandled the husband's corpse by mistakenly cremating it. And since the widow suffered serious emotional distress upon learning of that mistake, the hospital will likely be liable to the widow for NIED.

(Choice A) A plaintiff must contemporaneously perceive an event to recover under the *bystander theory* for NIED. Since the widow did not witness the cremation, she cannot recover under that theory. However, she can still prevail under the special-situations theory, which does not require contemporaneous perception.

(Choice B) A plaintiff must be placed in danger of immediate bodily harm to recover under the *zone-of-danger theory* for NIED. The widow cannot recover under this theory since she was never in danger of bodily harm. However, she can still prevail under the special-situations theory, which does not require imminent physical danger.

(Choice C) A defendant may be *strictly liable* (ie, liable without a finding of fault) for physical harm caused by his/her participation in an abnormally dangerous activity (eg, storing explosives in a thickly populated area). Although the mishandling of corpses will likely cause serious emotional distress, it is not considered an abnormally dangerous activity. Therefore, the hospital is not strictly liable for improperly disposing of the husband's corpse.

Educational objective:

Negligent infliction of emotional distress occurs under the *special-situations theory* when the plaintiff suffers serious emotional distress because the defendant negligently (1) delivered an erroneous announcement of death or illness, (2) mishandled a corpse or bodily remains, or (3) contaminated food with a repulsive foreign object.

References

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 47(b), cmt. f (Am. Law Inst. 2012) (special-situations theory of negligent infliction of emotional distress).

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A driver negligently ran into a pedestrian who was walking along a road. The pedestrian sustained an injury to his knee, causing it to buckle from time to time. Several months later, the pedestrian sustained an injury to his shoulder when his knee buckled, causing him to fall down a flight of stairs. The pedestrian then brought an action against the driver for the injuries to his knee and shoulder.

In his action against the driver, for which of his injuries may the pedestrian recover damages?

A. For the injuries to his knee and shoulder, because the driver takes the victim as he finds him.

B. For the injuries to his knee and shoulder, if the jury finds that the pedestrian's fall down a flight of stairs was a normal consequence of his original injury.

C. For the injury to his knee only, because the injury to the pedestrian's shoulder is separable.

D. For the injury to his knee only, if the jury finds that the driver could not have foreseen that his negligent driving would cause the pedestrian to fall down a flight of stairs.

Explanation:

To prevail on a **negligence** claim, the plaintiff must prove each element by a preponderance of the evidence. Once the plaintiff has done so, he/she is entitled to recover **compensatory damages** for (1) his/her **initial physical harm** (ie, personal injury, property damage) and (2) any **subsequent harm**—physical, economic, or emotional—that occurs as a **normal consequence** of that initial harm.

Here, the pedestrian suffered a knee injury when he was struck by the driver. Several months later, the pedestrian's knee buckled, causing him to fall and injure his shoulder. The pedestrian can recover compensatory damages for his knee injury because it was caused by the driver's negligence. And if the jury finds that the pedestrian's fall was a normal consequence of his original knee injury, then he can also recover compensatory damages for his shoulder injury.

(Choice A) Under the eggshell-skull rule, a tortfeasor "takes the victim as he finds him." This means that a tortfeasor is liable for the full extent of the victim's harm, even if the victim was unusually vulnerable. But here, there is no indication that the pedestrian was unusually vulnerable to either injury when the driver hit him.

(Choice C) When multiple tortfeasors cause the plaintiff to sustain separable (ie, distinct) injuries, each tortfeasor is only liable for the specific injury he/she caused—ie, no joint and several liability. But here, the separability of the pedestrian's injuries is irrelevant since they were both caused by a single tortfeasor.

(Choice D) Foreseeability applies to duty and proximate cause—not damages. Therefore, the driver could be liable for *both* of the pedestrian's injuries even if the driver could not have foreseen that his negligent driving would cause the pedestrian to fall down a flight of stairs.

Educational objective:

A successful plaintiff for negligence and other tort claims can recover compensatory damages for (1) the initial harm caused by the defendant's tort and (2) any subsequent harm that was a normal consequence of that initial harm.

References

Restatement (Second) of Torts § 460 (Am. Law Inst. 1965) (explaining that a negligent defendant is liable for subsequent harm when it was a normal consequence of the initial harm).

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Recovery of compensatory damages
(initial harm + normal consequences)

Initial physical harm



Subsequent physical harm



Subsequent economic harm



Subsequent emotional harm



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A mother purchased an expensive television from an appliance store for her adult son. Two years after the purchase, a fire started in the son's living room in the middle of the night. The fire department concluded that the fire had started in the television. No other facts are known.

The son sued the appliance store for negligence. The store has moved for summary judgment.

Should the court grant the store's motion?

A. No, because televisions do not catch fire in the absence of negligence.

B. No, because the store sold the television.

C. Yes, because the son is not in privity with the store.

D. Yes, because there is no evidence of negligence on the part of the store.

Explanation:

Products liability claims

Claims	Required elements
Strict products liability	Commercial seller (ie, manufacturer, distributor, retailer) produced or sold defective product
	Defect caused plaintiff harm
Negligence	Seller (commercial or noncommercial) failed to use reasonable care in producing or inspecting defective product
	Product caused plaintiff harm
Intentional tort	Seller (commercial or noncommercial) purposefully or knowingly produced or sold defective product
	Product caused plaintiff harm
Misrepresentation*	Commercial seller misrepresented material fact about product
	Consumer justifiably relied on misrepresentation when purchasing product
	Product caused plaintiff harm
Warranty	Merchantability (implied)
	Commercial seller warranted product is generally acceptable & reasonably fit for its ordinary purpose
	Fitness for particular purpose (implied)
	Seller (commercial or noncommercial) warranted product is fit for particular purpose
	Purchaser relied on seller's judgment or skill to purchase product
	Express
	Seller (commercial or noncommercial) made affirmation of fact or promise that is part of basis of bargain

*Commercial sellers are strictly liable for the misrepresentations they make regarding their products—regardless of whether those products are defective.

To prevail on a products liability claim based on **negligence**, the plaintiff generally must prove that the defendant's failure to use reasonable care caused the plaintiff harm. But in the absence of direct evidence of negligence, the doctrine of **res ipsa loquitur** allows the defendant's negligence to be **inferred** when:

the plaintiff suffered a **type of harm** that is **usually caused by negligence** of someone in the defendant's position *and*

the evidence tends to **eliminate other potential causes** of that harm.

If the plaintiff fails to provide sufficient evidence to support such an inference of negligence (ie, no reasonable jury could find in the plaintiff's favor), the court should grant the defendant's motion for summary judgment.

Here, the fire in the son's living room started in his television, which had been purchased from an appliance store two years earlier. But there is no direct evidence of the store's negligence. And even if televisions do not usually catch fire in the absence of a store's negligence, the evidence does *not* eliminate other potential causes of the fire—eg, manufacturing defect, improper repair **(Choice A)**. Therefore, there is insufficient evidence to infer that the store was negligent, and the court should grant the store's motion for summary judgment.

(Choice B) Commercial sellers (ie, manufacturers, wholesalers, and retailers) are strictly liable for harm caused by defective products that they sell. But here, the son sued the store for negligence—not strict products liability.

(Choice C) Negligence does not require the plaintiff to be in privity (ie, in a contractual relationship) with the defendant. Instead, any foreseeable plaintiff can recover for injuries caused by the defendant's negligence.

Educational objective:

Under the doctrine of res ipsa loquitur, the defendant's negligence can be inferred when (1) the plaintiff suffered a type of harm that is usually caused by negligence of someone in the defendant's position and (2) the evidence tends to eliminate other potential causes of that harm.

References

Restatement (Second) of Torts § 328D (Am. Law Inst. 1965) (explaining when a defendant's negligence can be inferred based on the type of accident that injured the plaintiff).

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A child was bitten by a dog while playing in a fenced-in common area of an apartment complex owned by a landlord. The child was the guest of a tenant living in the complex, and the dog was owned by another tenant. The owner of the dog knew that the dog had a propensity to bite, but the landlord did not have any notice of the dog's vicious propensities.

In an action by the child against the landlord, will the child be likely to prevail?

A. No, because a landlord owes no duty to a tenant's guests.

B. No, because the landlord did not have notice of the dog's vicious propensities.

C. Yes, because a landlord's duty to protect a tenant's guests from dangerous conditions is nondelegable.

D. Yes, because in these circumstances a landlord is strictly liable.

Explanation:

Dangerous conditions on land

(landlord's duties)

Warn tenant of known latent (hidden) defects on land
Safely perform repairs
Ensure common areas are in safe condition
Maintain areas necessary for safe use of land (eg, walls, roof)
Keep land in good repair (lease provision required)
Protect entrants from dangerous condition on land leased for public purpose

Landlords are **generally not liable for harm** that occurs on the leased premises. This is because they give up possession and control of the premises to their tenants and are unlikely to be aware of subsequent dangers. However, landlords **owe tenants** and other **foreseeable persons on the premises** (eg, their guests) a **duty to use reasonable care** to ensure the **safety of common areas** that remain **under the landlord's control (Choice A)**. A landlord who breaches this duty and causes the plaintiff physical harm is liable for negligence.

Here, the child's presence in the apartment complex was foreseeable since he was a tenant's guest. The child was then bitten by another tenant's dog in a *common area* of the apartment complex. As a result, the landlord owed the child a duty of reasonable care. But since the landlord had no reason to know that the dog posed a risk to those on his property, his failure to take precautions against that risk did not breach this duty of care. Therefore, the child is unlikely to prevail in an action against the landlord.

(Choice C) Landlords owe tenants and their guests a nondelegable duty to protect them from dangerous physical conditions on the property that remain under the landlord's control (eg, broken elevators). But a vicious dog is *not* such a condition. Additionally, it does not matter whether the landlord's duty was nondelegable here since there is no evidence that he assigned its performance to a third party whose negligence caused the child's injuries.

(Choice D) Strict liability for harm caused by a dog (or other animal) with vicious propensities extends to the dog's owners or possessors who know or should know of that propensity. But since the landlord neither owned nor possessed the dog, strict liability is inapplicable.

Educational objective:

Landlords owe foreseeable persons on the leased premises (eg, tenants and their guests) a duty to use reasonable care to ensure the safety of common areas that remain under the landlord's control.

References

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 53 (Am. Law Inst. 2012) (lessor's duties).

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A customer went to a restaurant for lunch. The customer told the server that he had a severe peanut allergy and requested that the chef be extra cautious about not putting peanuts in his food. The server conveyed this information to the head chef. The head chef then asked a line cook to prepare the customer's meal and told the line cook not to put any peanuts in it because the customer was allergic to them. The line cook, who had a mental disability, did not think that the dish he was preparing for the customer would taste good without peanuts. He chopped up a few peanuts and added them to the dish, thinking that a few peanuts would not harm the customer. The customer took a bite of his meal, went into anaphylactic shock, and was rushed to a nearby hospital.

If the customer files a negligence action against the line cook, is the customer likely to prevail?

A. No, because the line cook did not act in bad faith when he decided to put peanuts in the customer's food.

B. No, because the line cook's mental disability prevented him from understanding the effect of putting peanuts in the customer's food.

C. Yes, because a person with a mental disability is held to the same standard as someone of ordinary intelligence and knowledge.

D. Yes, because the line cook intentionally put peanuts into the customer's food.

Explanation:

Standards of care for negligence

Adult	Must act in same manner as ordinary, reasonable adult in similar circumstances
	Standard adjusted for physical disabilities, superior skill & knowledge, involuntary intoxication
	Standard not adjusted for mental & emotional disabilities, voluntary intoxication
Professional	Must demonstrate same knowledge, skill & care as another professional in similar community
	National (not community) standard applied to medical specialists*
Child	Must act in same manner as reasonable child of same age, intelligence & experience
	Adult standard applied to children engaged in dangerous adult activity
	Children under five years old incapable of negligence

*A modern trend applies a national standard of care to *all* physicians.

In negligence cases, the **standard of care** most often imposed is that of a **reasonably prudent person** under the circumstances. Under this standard, a defendant is presumed to have the same mental abilities and knowledge as an average member of the community. A defendant's own mental or emotional disability is *not* a factor in determining whether the defendant was negligent (unless the defendant is a child). Therefore, a **mentally incompetent person** is held to the **same standard** as **someone of ordinary intelligence and knowledge**.

Here, a person of ordinary intelligence and knowledge who knew that the customer had a severe peanut allergy would not have put peanuts in the customer's food. The line cook will be held to that standard, even if his mental disability prevented him from understanding the ramifications of putting peanuts in the customer's food **(Choice B)**. And since the line cook failed to conform to this standard (ie, breached his duty of care) and caused the customer's injuries, the customer is likely to prevail.

(Choice A) The standard of care for negligence is an objective one; it is measured by what a reasonably prudent person would have done rather than whether a particular defendant acted in good faith or used his/her best efforts. Therefore, the fact that the line cook did not act in bad faith when he decided to put peanuts in the customer's food will not be considered in determining whether he breached his duty of care.

(Choice D) It is not enough that the line cook intentionally put peanuts in the customer's food. For negligence liability, the line cook also must have breached a duty that he owed to the customer (as seen here).

Educational objective:

In negligence cases, a mentally incompetent person is held to the same standard as a reasonably prudent person with ordinary intelligence and knowledge.

References

Restatement (Third) of Torts § 11 cmt. e (Am. Law Inst. 1965) (explaining that an adult's mental or emotional disability is not a factor in determining whether he/she was negligent).

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A complaint filed on behalf of a woman against a nursing home and an ambulance service included the following allegations:

The woman, who was 86 years old and unable to speak after suffering a stroke, was picked up from her daughter's house by the ambulance service and taken to the nursing home to stay while her daughter was out of town. When the woman's daughter returned a few days later, the ambulance service picked up the woman from the nursing home and returned her to the daughter's house. The daughter was shocked to discover that the woman had a broken leg; her leg had been uninjured when she left for the nursing home.

A physician's report attached to the complaint stated that the woman's leg injury would not have occurred in the absence of negligence.

The complaint further alleged that the woman was under the control, successively, of the ambulance service and the nursing home during the time when she must have sustained the injury, and that either the ambulance service or the nursing home must have negligently moved or handled the woman, causing the injury to her leg.

Both defendants have argued that the allegations in the complaint are inadequate to support a negligence claim.

What is the best response to the defendants' argument?

A. Both defendants owed a duty to the woman.

B. One of the two defendants probably caused the injury, and the circumstances of the injury are primarily within the knowledge and control of the defendants rather than the woman or her representative.

C. The defendants are concurrent tortfeasors, so each is vicariously liable for any tortious act committed by the other.

D. There are grounds for the fact finder to infer that both defendants were negligent.

Explanation:

The ambulance service and nursing home argued that the allegations in the woman's complaint are inadequate to support her negligence claim. This is likely because the woman cannot identify the direct cause of her injury—the ambulance service's or nursing home's negligence. In such a situation, the doctrine of **res ipsa loquitur** allows a **defendant's** (or, in this case, defendants') **negligence** to be **inferred** from circumstantial evidence when:

the plaintiff suffered a **type of harm** that is **usually caused by negligence** of someone in the defendant's position (as stated in the physician's report) *and*

the evidence tends to **eliminate other potential causes** of that harm (eg, evidence that the injury did not exist before the woman left her daughter's house).

This suggests that evidence regarding the cause of the plaintiff's injury is primarily within the defendants' knowledge and control and allows the fact finder to infer that one of the defendants caused the injury. Therefore, res ipsa loquitur is the woman's best response to support her negligence claim.

(Choice A) Both defendants owed the woman a duty of reasonable care because she was entrusted to their control. But this is not her *best* response since it does not address the other elements of her negligence claim—namely, the cause of her injury.

(Choice C) Even if the defendants are concurrent tortfeasors, they are not vicariously liable for each other's actions since they do not share an agency relationship (eg, employer-employee).

(Choice D) The woman alleged grounds for the fact finder (eg, jury) to infer that one (not both) of the defendants was negligent.

Educational objective:

The doctrine of res ipsa loquitur allows a defendant's negligence to be inferred from circumstantial evidence if (1) the plaintiff suffered a type of harm that is usually caused by negligence of someone in the defendant's position and (2) the evidence tends to eliminate other potential causes of that harm.

References

Restatement (Second) of Torts § 328D (Am. Law Inst. 1965) (defining the doctrine of res ipsa loquitur).

Collins v. Superior Air-Ground Ambulance Serv., Inc., 789 N.E.2d 394, 402 (Ill. App. Ct. 2003) (explaining how res ipsa loquitur can be alleged in an action involving multiple defendants).

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Res ipsa loquitur—"the thing speaks for itself"
(*Byrne v. Boadle*)



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A homeowner resides downhill from a metal fabrication facility. She has sued both the owner of the facility and the supplier of a solvent used at the facility. She contends that contaminants, consisting mostly of the solvent, were released into the ground at the facility and have migrated and continue to migrate to her property, contaminating the soil, the groundwater, and her well. She alleges various acts of negligence on the part of the facility owner in causing the release of the contaminants into the ground. She also alleges that employees of the solvent supplier were negligent in frequently spilling some of the solvent onto the ground while filling a rooftop tank at the facility.

The solvent supplier has moved for summary judgment, arguing that if there was any contamination, the facility owner and the supplier independently contributed indeterminate amounts to the contamination and that therefore the homeowner cannot show how much damage each has inflicted on her.

There is no evidence that the facility owner and the solvent supplier acted in concert.

Should the court grant the summary judgment motion?

A. No, because concurrent tortfeasors are jointly and severally liable for an indivisible injury.
B. No, because the solvent supplier is vicariously liable for damage inflicted by the facility owner.
C. Yes, because there is no basis for allocating damages against the solvent supplier.
D. Yes, because there is no evidence that the facility owner and the solvent supplier acted in concert.

Explanation:

Liability of multiple negligent actors

	Indivisible injuries	**Separable injuries**
Acting independently	Joint & several liability*	Several liability only
Acting in concert	Joint & several liability	

*Default rule on MBE.

A movant is entitled to summary judgment when there is no genuine dispute of material fact and the movant is entitled to judgment as a matter of law—eg, when the nonmovant fails to prove his/her claim. A claim for negligence requires proof that a tortfeasor's conduct actually and proximately caused the alleged harm. If the harm was caused by **multiple tortfeasors**, then those tortfeasors can be held:

severally liable – when each tortfeasor is liable for a **proportionate amount** of damages because his/her **independent actions** caused ***separable* injuries** *or*

jointly and severally liable – when any tortfeasor can be held liable for the **total amount** of damages because his/her **independent or concerted actions** concurrently caused an ***indivisible* injury**.*

Here, the solvent supplier's motion for summary judgment alleges that both parties contributed indeterminate amounts to the contamination. This allegation shows that the homeowner suffered an *indivisible* injury, so either the solvent supplier or the facility owner can be held jointly and severally liable for all of her harm—even though they did not act in concert. As a result, the solvent supplier is not entitled to judgment as a matter of law, and the court should deny its summary judgment motion **(Choice C)**.

*When a plaintiff recovers the full amount of damages from any one of the tortfeasors, that tortfeasor can then sue the others for indemnity or contribution.

(Choice B) Under vicarious liability, a principal is strictly liable for its agent's tortious acts committed within the scope of an agency relationship (eg, employer-employee). Here, the solvent supplier is vicariously liable for the damage caused by its employees—but not for the damage caused by the facility owner.

(Choice D) Joint and several liability applies if the concerted *or* independent acts of multiple tortfeasors concurrently caused an indivisible injury. Therefore, evidence that the facility owner and the solvent supplier acted in concert is not required.

Educational objective:

When multiple tortfeasors caused the plaintiff harm, each will be liable for a *proportionate* amount of damages if his/her independent actions caused *separable* injuries (ie, several liability) OR for the *total* amount if their independent or concerted actions concurrently caused an *indivisible* injury (ie, joint and several liability).

References

Restatement (Third) of Torts: Apportionment of Liab. § A18 (Am. Law Inst. 2000) (joint & several liability).

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A seller sold his boat to a buyer. During negotiations, the buyer said that he planned to sail the boat on the open seas. The seller told the buyer that the boat was seaworthy and had never sustained any significant damage. In fact, the hull of the boat had been badly damaged when the seller had run the boat aground. The seller had then done a cosmetic repair to the hull rather than a structural repair.

The buyer relied on the seller's representations and paid a fair price for a boat in good repair, only to discover after the sale was completed that the hull was in fact badly damaged and in a dangerous condition. The seller has refused to refund any of the buyer's money, and the buyer is contemplating suing the seller.

Under what theory would the buyer be most likely to recover?

A. Fraud.

B. Intentional endangerment.

C. Negligent misrepresentation.

D. Strict products liability.

Explanation:

Misrepresentation

(fraudulent v. negligent)

	Conduct	**Setting**	**Harm**
Fraudulent	Knowingly or recklessly misrepresented material fact to induce reliance	Any setting	Justifiable reliance caused pecuniary loss
Negligent	Negligently provided plaintiff false information	Commercial setting or setting with risk of physical harm	Justifiable reliance caused pecuniary loss *or* physical harm

To recover for **fraud** (ie, intentional misrepresentation or deceit), the plaintiff must show that:

the defendant knowingly or recklessly **misrepresented a material fact** with the **intent to induce** the plaintiff's reliance *and*

the plaintiff **justifiably relied** on the defendant's misrepresentation and suffered **pecuniary loss** (ie, monetary loss).

Here, the seller knowingly misrepresented that the boat had never sustained significant damage with the intent to persuade the buyer to purchase it. Since the seller had cosmetically repaired the boat's damaged hull, the buyer's reliance on that misrepresentation was reasonable. The buyer then suffered a pecuniary loss when he paid a fair price for a boat in good repair but received a badly damaged one. Therefore, the buyer will likely recover for fraud.

(Choice B) Intentional endangerment (conduct that is likely to cause death or serious bodily harm to another) is a theory of criminal liability—not civil liability.

(Choice C) Negligent misrepresentation occurs when a defendant negligently provides the plaintiff with false information in a transaction where the defendant has a pecuniary interest (ie, a commercial setting). Although the seller had a pecuniary interest in the boat transaction, his misrepresentation was made knowingly—not merely negligently. As a result, negligent misrepresentation is not the best theory of recovery.

(Choice D) Strict products liability is only imposed on a commercial supplier (eg, manufacturer, distributor, retailer)—not a casual seller (eg, an individual selling a car to a friend). Since there is no evidence that the seller is a commercial supplier, the buyer is unlikely to recover on this basis.

Educational objective:

Fraud (ie, intentional misrepresentation or deceit) liability arises when (1) the defendant knowingly or recklessly misrepresents a material fact with the intent to induce the plaintiff's reliance and (2) the plaintiff reasonably relies on that misrepresentation and suffers pecuniary loss.

References

Restatement (Second) of Torts § 525 (Am. Law Inst. 1977) (fraudulent misrepresentation).

Restatement (Second) of Torts § 552 (Am. Law Inst. 1977) (negligent misrepresentation).

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A homeowner owns a house on a lake. A neighbor owns a house across a driveway from the homeowner's property. The neighbor's house sits on a hill and the neighbor can see the lake from his living room window. The homeowner and the neighbor got into an argument and the homeowner erected a large spotlight on his property that automatically comes on at dusk and goes off at sunrise. The only reason the homeowner installed the light was to annoy the neighbor. The glare from the light severely detracts from the neighbor's view of the lake.

In a suit by the neighbor against the homeowner, will the neighbor prevail?

A. No, because the neighbor's view of the lake is not always obstructed.

B. No, if the spotlight provides added security to the homeowner's property.

C. Yes, because the homeowner installed the light solely to annoy the neighbor.

D. Yes, if, and only if, the neighbor's property value is adversely affected.

Explanation:

Unreasonable interferences as a matter of law

Malicious or indecent conduct	Defendant's sole purpose is to harm plaintiff (eg, fence built to block view) *or* Defendant's conduct is indecent (eg, obscene gestures)
Severe harm	Plaintiff's harm is severe (eg, physical harm)
Avoidable harm	Defendant could avoid plaintiff's harm without undue hardship
Conduct unsuited to location	Defendant's conduct is *unsuited* to location (eg, tavern in residential area) *and* Plaintiff's use & enjoyment of property is *suited* to location

When a person **interferes** with the plaintiff's **use and enjoyment of his/her property**, the plaintiff can sue for **private nuisance**. To prevail in that suit, the plaintiff must prove that the interference was both:

substantial – offensive, annoying, or intolerable to a normal person in the community *and*
unreasonable – the severity of the plaintiff's harm outweighs the utility of the defendant's conduct.
An interference is **unreasonable as a matter of law** if the defendant's **sole purpose was to harm** the plaintiff because a harmful interference has no legal utility (eg, no social value).

Here, the homeowner substantially interfered with the neighbor's use and enjoyment of his property by installing a spotlight that severely detracted from his view of the lake each night. And since the spotlight was *only* installed to annoy the neighbor, that interference was unreasonable as a matter of law (no utility). Therefore, the neighbor will likely prevail in a private nuisance claim.

(Choice A) While evidence that an interference is continuous may prove that the interference is substantial and unreasonable, such evidence is not always required. Therefore, though his view of the lake was not *always* obstructed, the neighbor can prevail since the spotlight was a substantial and unreasonable interference.

(Choice B) Although the spotlight may add security to the homeowner's property (utility), the homeowner installed it for the *sole purpose* of annoying the neighbor—not for added security. Therefore, the interference was unreasonable as a matter of law and the neighbor will prevail.

(Choice D) Private nuisance does not require proof that the plaintiff's property value decreased. Instead, the neighbor will prevail because the spotlight substantially interfered

with his use and enjoyment of his property and the homeowner installed it solely to annoy him.

Educational objective:

Private nuisance is a substantial and unreasonable interference with the plaintiff's use and enjoyment of his/her property. An interference is unreasonable if the severity of the plaintiff's harm outweighs the utility of the defendant's conduct—eg, when the defendant's sole purpose was to harm the plaintiff.

References

Restatement (Second) of Torts §§ 821D, 822 (Am. Law Inst. 1979) (liability for private nuisance).

Restatement (Second) of Torts § 826 (Am. Law Inst. 1979) (unreasonableness requirement).

Restatement (Second) of Torts § 829 (Am. Law Inst. 1979) (malicious or indecent conduct).

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A woman and a man, who were professional rivals, were attending a computer industry dinner where each was to receive an award for achievement in the field of data processing. The man engaged the woman in conversation and expressed the opinion that if they joined forces, they could do even better. The woman replied that she would not consider him as a business partner. When the man demanded to know why, the woman attempted to offend him by stating that he was incompetent.

The exchange was overheard by a guest who attended the dinner. The man suffered emotional distress but no pecuniary loss.

If the man asserts a claim against the woman based on defamation, will he prevail?

A. No, because the man suffered no pecuniary loss.
B. No, because the woman's statement was made to the man and not to the guest.
C. Yes, because the woman intended to cause the man emotional distress.
D. Yes, because the woman should have foreseen that her statement would be overheard by another person.

Explanation:

Intentional v. Negligent communication

Intentional communication	Knowledge or substantial certainty that statement will be communicated to third party—eg: speaking directly to third person sending message in group chat screaming near crowd
Negligent communication	Foreseeable risk that statement will be communicated to third party—eg: leaving document on desk in open area speaking loudly in public

Defamation can be either libel (written statements) or **slander** (**spoken statements**—as seen here). To establish a defamation claim based on slander, the plaintiff must prove all of the following:

The defendant knowingly made a false statement about the plaintiff *or* should have known that the statement was false.

That type of statement would tend to harm the plaintiff's reputation.

The defendant intentionally or **negligently communicated** that statement to a third party.

That statement caused the plaintiff special harm *or* was slanderous per se—eg, accused the plaintiff of conduct adversely affecting the plaintiff's occupation.

Negligent communication (ie, publication) occurs when it is **reasonably foreseeable** that a **third party might hear** the defendant's statement.

Here, the woman stated that the man was incompetent in his field of data processing (slander per se) during a dinner. Since the man received an achievement award at the dinner, the woman should have known that her statement was false. And though she directed the statement at the man, it was reasonably foreseeable that another dinner guest would overhear her (negligent communication) **(Choice B)**. Therefore, the man will prevail on his defamation claim.

(Choice A) Slander generally requires proof of special harm (pecuniary/monetary loss). But since the woman accused the man of professional incompetence (slander per se), his harm is presumed and no proof of special harm is required.

(Choice C) Intent to cause emotional distress is not an element of defamation, so the fact that the woman intended to cause the man emotional distress by offending him has no

effect on the viability of his claim. However, such intent would be required had the man sued for intentional infliction of emotional distress.

Educational objective:

Defamation requires proof that the defendant intentionally or negligently communicated a false statement about the plaintiff to a third party. Negligent communication occurs when it is reasonably foreseeable that a third party might hear the defendant's statement.

References

Restatement (Second) of Torts § 577 (Am. Law Inst. 1977) (intentional or negligent communication).

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A lawyer conducted a free consultation with a businessman who wanted advice on a tax matter for which he sought a refund from the IRS. The lawyer declined to represent the businessman, but an eager intern who had overheard their conversation stopped the businessman as he was leaving the office. The intern told the businessman that she was a law student and wanted to share her opinion with him. She then told the businessman that she believed that the applicable statute of limitations for claiming a refund had more than a year to run and that he had plenty of time in which to act before his legal rights would expire.

Although the intern believed this statement to be accurate, the statute of limitations for claiming a refund had only days to run at the time of the consultation. Relying on the intern's statement, the businessman delayed in contacting another attorney to assist him with the tax refund claim. As a result, his refund claim was barred by the statute of limitations.

The businessman has sued the intern for negligent misrepresentation, seeking damages for financial loss resulting from his inability to timely file for a refund. The intern has filed a motion to dismiss for failure to state a claim.

How should the court rule on the intern's motion?

A. Deny it, because the businessman is seeking to recover only pecuniary damages and not damages for physical harm.

B. Deny it, because the intern should have known that her statement about the statute of limitations was false.

C. Grant it, because the intern believed that the statute of limitations had more than a year to run when she made that statement.

D. Grant it, because the intern was expressing a lay opinion that the businessman should not have relied upon.

Explanation:

Misrepresentation

(fraudulent v. negligent)

	Conduct	**Setting**	**Harm**
Fraudulent	Knowingly or recklessly misrepresented material fact to induce reliance	Any setting	Justifiable reliance caused pecuniary loss
Negligent	Negligently provided plaintiff false information	Commercial setting or setting with risk of physical harm	Justifiable reliance caused pecuniary loss *or* physical harm

Negligent misrepresentation is based upon a **breach** of the **duty to supply correct information** and often arises in the context of accountants and other suppliers of commercial information (eg, attorneys). This tort requires proof of the following elements:

The defendant negligently provided **false information** during the **course of his/her business** or profession.

The plaintiff **justifiably relied** upon the false information and suffered **pecuniary (ie, financial) loss** as a result **(Choice A)**.

The plaintiff was in a **contractual relationship** with the defendant or was a third party known by the defendant as one for whose benefit the information was supplied.

A plaintiff's **reliance was not justified if** the information was **obviously false** or if the defendant was clearly stating a **lay opinion**.

Here, the intern provided the businessman with false information regarding the statute of limitations. However, she was clearly expressing a lay opinion since she told the businessman that she was still a law student and merely offering an opinion. As a result, the businessman cannot establish that he was justified in relying upon the information provided, and the intern's motion to dismiss should be granted **(Choice B)**.*

*Additionally, there was no contractual relationship between the businessman and the intern, so the businessman also cannot establish that element of negligent misrepresentation.

(Choice C) Negligent misrepresentation requires that the defendant act negligently. Negligence will be found if the defendant failed to exercise the same level of care and competence as a reasonable person in his/her business or professional position. The standard is an objective one, so the intern's subjective belief that her statement was true is irrelevant.

Educational objective:

One of the elements of negligent misrepresentation is that the plaintiff's reliance on the false information provided was justifiable. Reliance was not justified if the information was obviously false or the defendant was clearly stating a lay opinion.

References

Restatement (Second) of Torts § 552 (Am. Law Inst. 1977) (negligent misrepresentation).

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A newspaper published an editorial in which an editor asserted that a candidate for high political office was a user of illegal drugs. The accusation was untrue. The editor acted unreasonably in not investigating the accusation before publishing it; however, the editor honestly believed that the accusation was true.

The candidate sued the editor for defamation.

Is the candidate entitled to recover?

A. No, because the accusation appeared in an editorial and was therefore merely an opinion.

B. No, because the editor honestly believed that the accusation was true.

C. Yes, because calling someone an illegal drug user is defamatory per se.

D. Yes, because the accusation was false and injurious to the candidate's reputation.

Explanation:

Defamation can be either slander (spoken statements) OR **libel** (**written statements**—as seen here). A defamation claim based on libel *ordinarily* requires proof that:

the defendant knowingly made a false statement about the plaintiff or negligently failed to determine its falsity

that type of statement would tend to harm the plaintiff's reputation *and*

the defendant intentionally or negligently communicated that statement to a third party.

But when the plaintiff is a **public figure or official** (eg, celebrity, governor), he/she must prove that the false statement was made with **actual malice**. Actual malice exists when the defendant **knew** that the statement was false or **recklessly disregarded** its falsity (ie, had serious doubts about its truthfulness). Therefore, proof of negligence—failure to use reasonable care to determine a statement's falsity—is not enough.

Here, the editor falsely accused the candidate of using illegal drugs in a published editorial. Since the candidate is a public figure, he can only recover for defamation if the editor acted with actual malice. And since the editor *honestly believed* that the accusation was true (no actual malice), the candidate cannot recover for defamation.

(Choice A) Defamation can stem from a statement alleging a fact *or* an opinion that appears to be based on specific facts. Here, the editorial asserted that the candidate used illegal drugs (factual allegation). But a stated belief about the candidate's drug use (opinion) would still be actionable if it implied knowledge of specific facts.

(Choice C) Statements that are presumptively harmful to the plaintiff's reputation are considered defamatory per se. Though accusing someone of a criminal act (illegal drug use) is defamatory per se, the candidate will not prevail because the editor believed that the accusation was true (no actual malice).

(Choice D) Although the editor's accusation was false and likely injurious to the candidate's reputation, the candidate will not prevail because the editor did not act with actual malice.

Educational objective:

A public figure or public official can only recover for defamation if he/she proves that the defendant made a false statement with actual malice—ie, with knowledge or reckless disregard of the statement's falsity.

References

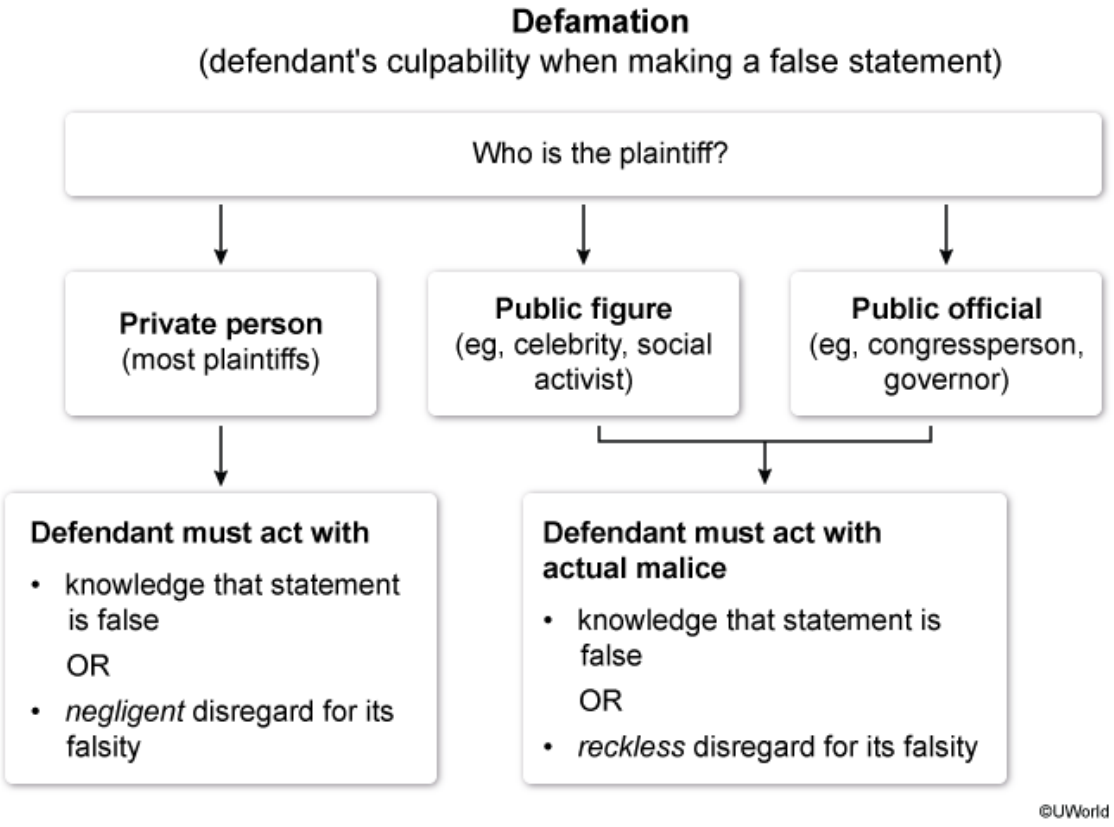
Restatement (Second) of Torts § 558 (Am. Law Inst. 1977) (elements of defamation).

Restatement (Second) of Torts § 568 (Am. Law Inst. 1977) (libel and slander distinguished).

Restatement (Second) of Torts § 580A (Am. Law Inst. 1977) (defamation of public official or public figure).

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An assistant to a famous writer surreptitiously observed the writer as the writer typed her private password into her personal computer in order to access her email. On several subsequent occasions in the writer's absence, the assistant read the writer's email messages and printed out selections from them.

The assistant later quit his job and earned a considerable amount of money by leaking information to the media that he had learned from reading the writer's email messages. All of the information published about the writer as a result of the assistant's conduct was true and concerned matters of public interest.

The writer's secretary had seen the assistant reading the writer's emails and printing out selections, and she has told the writer what she saw. The writer now wishes to sue the assistant for damages. At trial, the writer can show that the media leaks could have come only from someone reading her email.

Can the writer recover damages from the assistant?

A. No, because the assistant was an invitee on the premises.

B. No, because the published information resulting from the assistant's conduct was true and concerned matters of public interest.

C. Yes, because the assistant invaded the writer's privacy.

D. Yes, because the published information resulting from the assistant's conduct constituted publication of private facts concerning the writer.

Explanation:

Invasion of privacy

Theories of recovery	Required elements
Intrusion upon seclusion	Intentional intrusion (physical or otherwise) on plaintiff's solitude, seclusion, or private affairs Intrusion would be highly offensive to reasonable person
Appropriation of name or likeness	Unauthorized use of plaintiff's name or likeness for personal benefit (typically for commercial purpose)
Public disclosure of private facts	Publicity given to plaintiff's private matter Matter publicized would be both: highly offensive to reasonable person not of legitimate public concern Results in damages
Publicity in a false light	Publicity given to false information that places plaintiff in false light False light would be highly offensive to reasonable person Publication is made with actual malice Results in damages

Intrusion upon seclusion is an invasion of privacy that occurs when the defendant **intentionally intrudes** on the plaintiff's **private affairs** in a manner that would be **highly offensive** to a reasonable person—eg, tapping telephone wires, examining private bank account, opening personal mail.

Here, the assistant opened and read the writer's private, password-protected emails. Since a reasonable person would be highly offended by that intrusion, the writer can likely recover damages from the assistant for invasion of privacy (intrusion upon seclusion).

(Choice A) The fact that the assistant was an invitee shows that he had permission to enter the writer's premises, but does not show that he had permission to open and read the writer's private, password-protected emails. Therefore, the assistant's status as an invitee does not shield him from liability.

(Choice B) Truth is generally not a defense to invasion of privacy. And though public interest in the disclosed material may preclude an invasion of privacy claim based on *public disclosure of private facts*—publicizing a private matter that is highly offensive and not of legitimate public concern—it is irrelevant to *intrusion upon seclusion*.

(Choice D) A privacy claim for the public disclosure of private facts requires proof that the publicized matter would be highly offensive to a reasonable person. Since there is no

evidence that the writer's emails would be highly offensive, the writer cannot prevail on that claim.

Educational objective:

Intrusion upon seclusion (a type of invasion of privacy) occurs when the defendant intentionally intrudes on the plaintiff's private affairs in a manner that would be highly offensive to a reasonable person.

References

Restatement (Second) of Torts § 652B (Am. Law Inst. 1977) (intrusion upon seclusion).

Restatement (Second) of Torts § 652D (Am. Law Inst. 1977) (publicity given to private life).

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A manufacturing company constructed a factory near a small town. Five years later, a woman purchased a home one mile away from the factory. Her home is the only residence within five miles of the factory. During this time, the company had steady business but produced very little smoke.

Two years after the woman moved into her home, the company secured several large contracts and expanded its factory to add several large smokestacks that emit smoke on a continual basis. Other factories commonly use the same number of smokestacks in their operations, and such use complies with government regulations. The woman's home is downwind from the factory, so the smoke constantly blows toward her home. The woman has suffered breathing difficulties, constant headaches, and other sicknesses ever since the factory expanded. The value of her property has also severely declined.

The woman sued the manufacturing company for private nuisance.

Will the woman be likely to prevail as a matter of law?

A. No, because the company used the same number of smokestacks in its operations as other companies and complied with government regulations.

B. No, because the woman knowingly purchased a home one mile away from a factory that was in operation at the time of purchase.

C. Yes, because the smoke caused the value of the woman's property to severely decline.

D. Yes, because the smoke unreasonably interfered with the woman's use and enjoyment of her property.

Explanation:

A **private nuisance** claim requires proof that the defendant's **interference** with the plaintiff's use and enjoyment of his/her property was both:

substantial – offensive, annoying, or intolerable to a normal person in the community *and*

unreasonable – the severity of the plaintiff's harm outweighs the utility of the defendant's conduct.

Severe harm (eg, physical harm to those on the property) always outweighs the utility of the defendant's conduct. As a result, an interference that causes severe harm is **unreasonable as a matter of law**.

Here, the smoke from the factory interfered with the woman's use and enjoyment of her property by causing her physical harm and reducing the value of her property. The interference was substantial since a normal homeowner would find it annoying or intolerable. It was also unreasonable because the smoke caused the woman severe harm—including difficulty breathing and constant headaches. Therefore, she will likely prevail on this claim.

(Choice A) The company's interference is *unreasonable* as a matter of law because it caused severe harm. Therefore, evidence of the company's *reasonableness*—ie, operating with the same number of smokestacks as other companies and complying with government regulations—is no defense.

(Choice B) Whether a plaintiff "came to the nuisance" because the nuisance existed before the plaintiff moved in is merely one factor that may be considered in determining whether an interference is actionable. It is not a defense.

(Choice C) The woman could recover damages for the reduction of her property's value caused by the smoke, but this is not required for her to prevail. Instead, she will prevail because the smoke unreasonably interfered with her use and enjoyment of her property.

Educational objective:

Private nuisance is an interference with the plaintiff's use and enjoyment of his/her property that is both substantial (ie, offensive, annoying, or intolerable to a normal person in the community) and unreasonable (ie, severity of the harm outweighs the utility of the conduct). Severe harm is unreasonable as a matter of law.

References

Restatement (Second) of Torts §§ 167, 821D (Am. Law Inst. 1979) (private nuisance).

Restatement (Second) of Torts § 826 (Am. Law Inst. 1979) (unreasonable interference required).

Restatement (Second) of Torts § 829A cmt. b (Am. Law Inst. 1979) (severe harm).

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Private nuisance
(substantial interference requirement)



Substantial interference



No substantial interference

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A man lived in a lakefront home. The man suspected that his neighbor was emptying her septic tank into the lake. Although he did not have any tangible proof, the man had seen the neighbor putting a large hose that led from an area in the neighbor's backyard where the septic tank was located into the lake late at night. Based upon this observation, the man identified the neighbor by name and made the following statement to a local reporter: "She is polluting the lake and ruining its ecosystem by dumping the contents of her septic tank into it every night!"

The reporter published the statement in the newspaper. Upon reading it, the neighbor was horrified because in actuality she had simply been pumping water from the lake into her backyard.

If the neighbor brings a defamation action against the man, will the neighbor be likely to prevail?

A. No, because pollution of the lake is a matter of public concern.

B. No, because the man did not act with actual malice.

C. Yes, because the man acted negligently when he spoke to the reporter about the neighbor.

D. Yes, because the reporter published the man's defamatory statement about the neighbor.

Explanation:

At common law, **defamation** liability could be strict. This means that the plaintiff was not required to prove that the defendant was at fault (eg, knew that the defamatory statement was false). However, a number of Supreme Court decisions based on the **First Amendment** have since imposed the following **fault requirements**:

If the plaintiff is a **public official** or figure, the plaintiff must prove that the defendant acted with **actual malice**—ie, knowledge that the defamatory statement was false or reckless disregard for its falsity.

If the plaintiff is a **private person** and the defamatory statement involves a **matter of public concern**, the plaintiff must prove that the defendant was **at least negligent** as to the falsity of the statement.*

Here, the man falsely told the reporter that the neighbor was dumping the contents of her septic tank into the lake. The neighbor is a private person and the man's statement involves a matter of public concern—the potential pollution and destruction of the lake's ecosystem. This means that the neighbor is constitutionally required to prove that the man was negligent. The neighbor can likely do so since the man made the statement to the reporter despite having no tangible proof that it was true. Therefore, the neighbor is likely to prevail **(Choices A & B)**.

*If the plaintiff is a private person and the defamatory statement involves a matter of private concern, then the constitutional requirements do not apply. However, most states today require at least negligence by the defendant for all defamation actions.

(Choice D) Defamation requires proof that the defendant published the defamatory statement by intentionally or negligently communicating it to a third party. And here, publication occurred when the man spoke to the reporter. However, the reporter may also be subject to defamation liability for republishing the man's statement.

Educational objective:

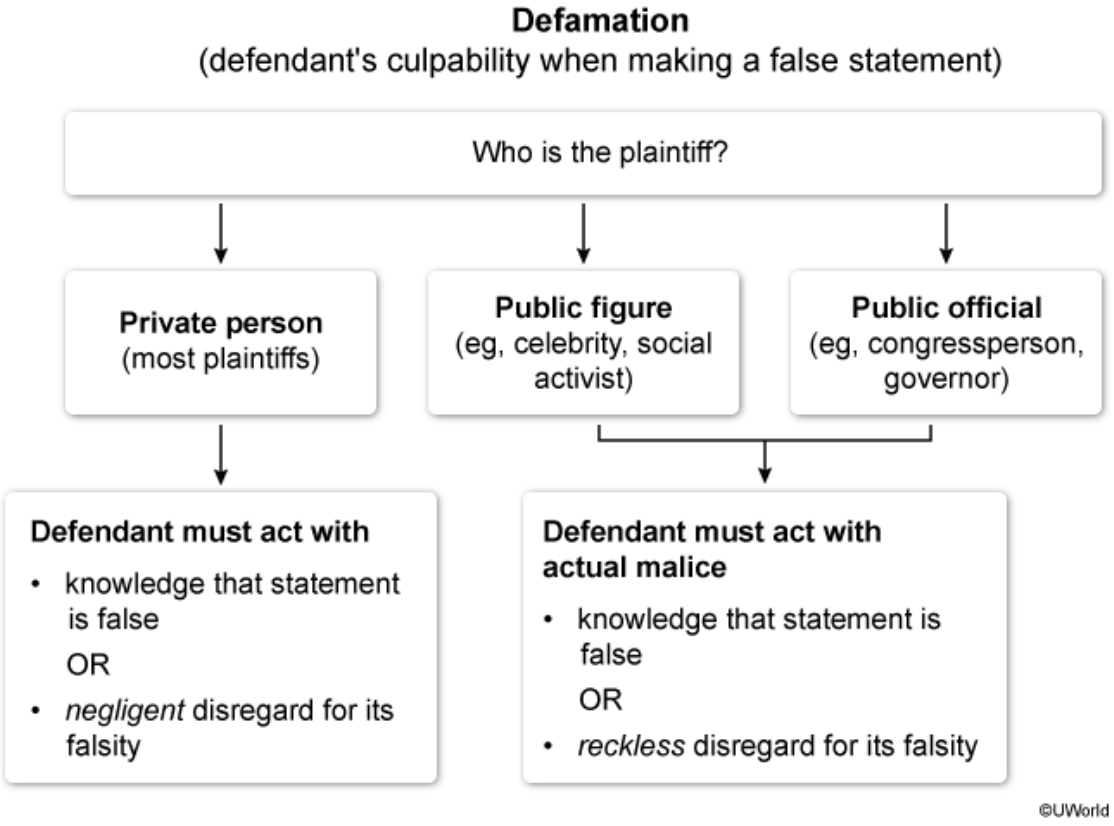
A defamation plaintiff is constitutionally required to prove that the defendant acted with fault if the plaintiff is a public official or figure (actual malice required) OR a matter of public concern is involved (at least negligence required).

References

New York Times v. Sullivan, 376 U.S. 254, 283–84 (1964) (holding that the First Amendment affects the plaintiff's right to recover under the common law tort of defamation).

Restatement (Second) of Torts §§ 580A, 580B (Am. Law Inst. 1981) (fault requirement for defamation of public or private person).

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A college junior applied for membership in a college honor society. One of the current members of the society, an academic rival of the junior, sent an email to the other members of the society claiming that the junior was an alcoholic. Although some of the members believed the email, most did not. Consequently, the junior was admitted to the society. The junior subsequently sued her rival for libel. At trial, the junior established that she had never consumed alcohol and that her rival knew this. The rival offered proof that the junior was a user of illegal drugs at the time of the email.

Is the junior likely to prevail?

A. No, because she failed to prove that a third party acted adversely toward her.

B. No, because she was a user of illegal drugs.

C. Yes, because of the doctrine of libel per quod.

D. Yes, because she is entitled to general damages for reputational harm.

Explanation:

Libel is defamation in words **written, printed, or otherwise recorded** in permanent form. Most courts addressing the issue have held that **email messages** are categorized as libel. A libel claim requires proof of the following:

The defendant knowingly made a false statement about the plaintiff or negligently failed to determine its falsity.

The statement was defamatory, meaning that the statement would have a general tendency to harm the plaintiff's reputation.

The defendant intentionally or negligently communicated the statement to a third party.

Once proved, the plaintiff can recover **general damages**, which are any damages that compensate the plaintiff for harm to the plaintiff's reputation. **Reputational harm** can be **presumed for libel** because it is more permanent and more easily spread than slander (ie, spoken defamation).

Here, the rival's email claimed that the junior was an alcoholic even though the rival knew that the junior had never consumed alcohol. That statement would have a general tendency to harm the junior's reputation. And since the rival intentionally communicated the statement to third parties by emailing the other members of the honor society, the junior is entitled to recover general damages for reputational harm. Therefore, the junior will likely prevail.

(Choice A) Special damages are a prerequisite to recovery for *slander* and require the plaintiff to prove that a third party acted adversely to the plaintiff as a result of the defendant's defamatory statement. But since the junior sued for *libel*, the fact that she faced no adverse action because she was admitted to the honor society is irrelevant.

(Choice B) Even if the junior was a user of illegal drugs at the time of the email, she was not an alcoholic, so the rival's statement was false.

(Choice C) The doctrine of libel per quod applies when reference to extrinsic facts is needed to show that the statement is defamatory (not seen here).

Educational objective:

Libel is defamation by words written, printed, or otherwise recorded in permanent form (eg, emails). A libel plaintiff can recover general damages to compensate the plaintiff for the presumed harm to his/her reputation.

References

Restatement (Second) of Torts § 568 (Am. Law Inst. 1977) (distinguishing libel and slander).

Restatement (Second) of Torts § 621 (Am. Law Inst. 1977) (explaining that general damages are imposed to compensate the plaintiff for reputational harm).

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Slander	**Slander per se**	**Libel**
less permanent & less harmful	more harmful	more permanent
≠	=	=
harm presumed	harm presumed	harm presumed



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A factory manager and one of her employees speak fluent Spanish. No other employees at the factory speak or understand Spanish. One day, the manager accused the employee, in Spanish and in front of other employees, of stealing a valuable item from the manager's office. Shortly after making this accusation, the manager discovered that she had accidently failed to see the item on her desk and apologized to the employee.

The employee sued the manager for defamation.

Is the employee likely to prevail in his suit?

A. No, because none of the other employees understood Spanish.

B. No, because the manager mistakenly believed that the employee stole the item.

C. Yes, because the manager made the defamatory statement in front of other employees.

D. Yes, because the manager's accusation amounted to slander per se.

Explanation:

Defamation can be either libel (written statements) OR **slander** (**spoken statements**—as seen here). For defamation based on slander, the plaintiff must prove that:

the defendant knowingly made a false statement about the plaintiff OR negligently failed to determine its falsity

that type of statement would tend to harm the plaintiff's reputation

the defendant intentionally or negligently **communicated** (ie, published) that statement to a **third party who understood** the statement's message *and*

that statement caused the plaintiff special damage (monetary loss) OR constituted slander per se (eg, accused the plaintiff of theft or other serious crime).

Here, the manager falsely stated that the employee stole a valuable item from her office in front of other employees. But since that statement was made in Spanish, none of the other employees understood. Therefore, the employee will likely not prevail on his defamation claim **(Choice C)**.

(Choice B) A plaintiff who is a public figure or official must prove that the defendant made the defamatory statement with actual malice—ie, knowledge or reckless disregard of the statement's falsity. But since the employee is a private individual, he need only prove that the manager *negligently* failed to determine falsity.

(Choice D) Although the manager's accusation that the employee committed theft (a serious crime) constituted slander per se, the employee will not prevail because none of the other employees understood the accusation.

Educational objective:

Defamation requires proof that the defendant intentionally or negligently communicated a false statement about the plaintiff to a third party who understood its meaning.

References

Restatement (Second) of Torts §§ 558–59, 568, 570, 577, 580B (Am. Law Inst. 1977) (elements of defamation).

Restatement (Second) of Torts §§ 570–74 (Am. Law Inst. 1977) (slander per se).

Restatement (Second) of Torts § 577 (Am. Law Inst. 1977) (communication/publication requirement).

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Publication of defamatory statement



statement understood
=
publication

statement not understood
=
no publication

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The owner of a truck leasing company asked one of his employees to deliver $1,000 to the dealership's main office. The following week, as a result of the owner's belief that the money had not been delivered, the owner instructed the employee to come to the office to submit to a lie detector test.

When the employee reported to the owner's office for the test, it was not administered. Instead, without hearing the employee's story, the owner shouted at him, "You're a thief!" and fired him. The owner's shout was overheard by several other employees who were in another office, which was separated from the owner's office by a thin partition. The next day, the employee accepted another job at a higher salary. Several weeks later, upon discovering that the money had not been stolen, the owner offered to rehire the employee.

In a suit for slander by the employee against the owner, will the employee prevail?

A. No, because the statement was made to the employee alone and intended for his ears only.

B. No, because the owner made the charge in good faith, believing it to be true.

C. Yes, because the employee was fraudulently induced to go to the office for a lie detector test, which was not, in fact, given.

D. Yes, because the owner should have foreseen that the statement would be overheard by other employees.

Explanation:

Slander is defamation through **speech**, gesture, or any other form that is not libel. To prevail in a suit for slander, the plaintiff must prove all of the following:

The defendant knowingly made a false statement about the plaintiff or negligently failed to determine its falsity.

That type of statement would tend to harm the plaintiff's reputation.

The defendant intentionally or **negligently communicated** that statement to a third party (ie, **should have foreseen** that it would be heard by a third party).

That statement caused the plaintiff special harm (ie, pecuniary/monetary loss).

However, **no proof of harm** is required when the defamatory statement constitutes **slander per se**—ie, the statement accused the plaintiff of any of the following:

a serious crime (eg, theft, murder, rape)

conduct that adversely affects the plaintiff's occupation (eg, performing surgeries while intoxicated)

serious sexual misconduct (eg, infidelity)

having a loathsome disease (eg, sexually transmitted infection).

Here, the owner falsely accused the employee of theft (slander per se). Since the owner made that statement without listening to the employee's story, the owner was likely negligent in failing to determine that his statement was false. Additionally, though the accusation may have been intended for the employee's ears only, the owner should have foreseen that other employees would overhear him shouting through the thin partition (negligent communication) **(Choice A)**. Therefore, the employee will likely prevail on his slander claim.

(Choice B) Slander requires proof that the defendant knew *or* negligently failed to determine that his/her statement was false. Here, although the owner believed in good faith that his accusation was true (no knowledge of falsity), he could still be liable for slander if he negligently failed to determine that his accusation was false.

(Choice C) Fraudulent inducement is an element of intentional misrepresentation, which requires proof that the defendant knowingly or recklessly misrepresented a material fact to induce the plaintiff's reliance. But since the employee only sued for slander, his fraudulent inducement is irrelevant.

Educational objective:

Slander (ie, spoken defamation) requires proof that the defendant intentionally or negligently communicated a false statement about the plaintiff to a third party. Negligent

communication occurs when the defendant should have foreseen that his/her statement would be heard by a third party.

References

Restatement (Second) of Torts § 577 (Am. Law Inst. 1977) (intentional or negligent communication).

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Defamation
(intentional or negligent communication requirement)



Intentional communication | Negligent communication | Unforeseeable communication

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A recently established law school constructed its building in a quiet residential neighborhood. The law school had obtained all the necessary municipal permits for the construction of the building, which included a large clock tower whose clock chimed every hour. The chimes disturbed only one homeowner in the neighborhood, who had purchased her house prior to the construction of the building. The homeowner was abnormally sensitive to ringing sounds, such as bells and sirens, and found the chimes to be extremely annoying.

In a nuisance action by the homeowner against the law school, will the homeowner be likely to prevail?

A. No, because the chimes do not disturb the other residents of the neighborhood.
B. No, because the law school had obtained the requisite municipal permits to erect the clock tower.
C. Yes, because the chimes interfere with the homeowner's use and enjoyment of her property.
D. Yes, because the homeowner purchased her house prior to the construction of the building.

Explanation:

Nuisance can be either public (interfering with a right common to the general public) OR private (interfering with a private property right—as alleged here). Liability for **private nuisance** arises when the defendant's **interference** with the plaintiff's use and enjoyment of his/her property is both:

substantial – offensive, annoying, or intolerable to a **normal person** in the community *and*

unreasonable – the severity of the plaintiff's harm outweighs the utility of the defendant's conduct.

An interference is **not substantial** if the plaintiff's **abnormal sensitivity** causes him/her to find the interference offensive, annoying, or intolerable when a normal person in the community would not.

Here, the law school interfered with the homeowner's use and enjoyment of her property by constructing a large clock tower whose clock chimed every hour. But since the homeowner was abnormally sensitive to ringing sounds, she was the only one who found the chimes extremely annoying when no other residents were disturbed. Therefore, the interference was not substantial and the homeowner's nuisance action will likely fail **(Choice C)**.

(Choice B) Although compliance with zoning regulations (eg, obtaining municipal permits) helps show that the defendant's interference was not unreasonable, it is not a defense to nuisance. Instead, the homeowner's claim will fail because no other residents were disturbed by the chimes (no substantial interference).

(Choice D) Courts may consider priority in time (ie, whether the plaintiff came to the nuisance) when determining if a nuisance is actionable. Here, the homeowner's nuisance claim is *actionable* since she purchased her house before the clock tower was built. However, she will only *prevail* on this claim if she proves that the law school's interference was both substantial and unreasonable.

Educational objective:

An interference with a plaintiff's use and enjoyment of his/her property is not substantial (and will not support a nuisance claim) if the plaintiff's abnormal sensitivity causes him/her to find that interference offensive, annoying, or intolerable when a normal person in the community would not.

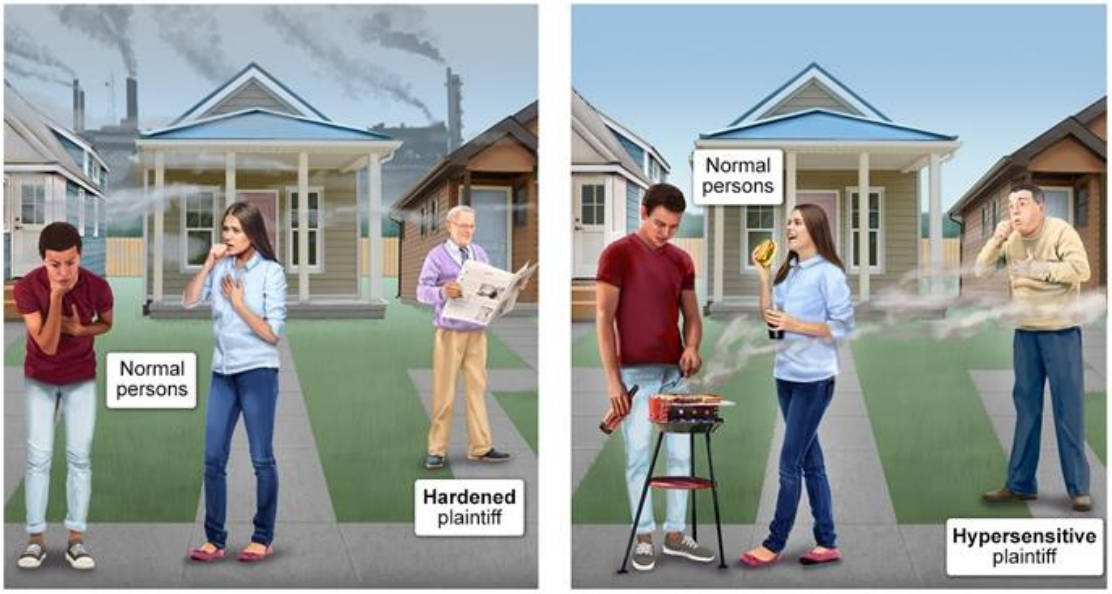
References

Restatement (Second) of Torts § 821D (Am. Law Inst. 1977) (private nuisance).

Restatement (Second) of Torts § 821F (Am. Law Inst. 1977) (substantial interference required).

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Private nuisance
(substantial interference requirement)



Substantial interference

No substantial interference

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Upon the recommendation of her child's pediatrician, a mother purchased a vaporizer for her child, who had been suffering from respiratory congestion. The vaporizer consisted of a gallon-size glass jar, which held water to be heated until it became steam, and a metal heating unit into which the jar fit. The jar was covered by a plastic cap with an opening to allow the steam to escape. At the time the vaporizer was manufactured and sold, there was no safer alternative design.

The booklet that accompanied the vaporizer read: "This product is safe, spillproof, and practically foolproof. It shuts off automatically when the water is gone." The booklet had a picture of a vaporizer sending steam over a baby's crib.

The mother used the vaporizer whenever the child was suffering from congestion. She placed the vaporizer on the floor near the child's bed.

One night, the child got out of bed to get a drink of water and tripped over the cord of the vaporizer as she crossed the room. The top of the vaporizer separated from the base, and boiling water from the jar spilled on the child when the vaporizer tipped over. The child suffered serious burns as a consequence.

The child's representative brought an action for damages against the manufacturer of the vaporizer. The manufacturer moved to dismiss after the representative presented the evidence above.

Should the manufacturer's motion be granted?

A. No, because a jury could find that the manufacturer expressly represented that the vaporizer was spillproof.

B. No, because the vaporizer caused a serious injury to the child.

C. Yes, because it should have been obvious to the mother that the water in the jar would become boiling hot.

D. Yes, because there was no safer alternative design.

Explanation:

A court should grant a defendant's motion to dismiss if the plaintiff fails to present legally sufficient evidence to support every element of his/her claim (ie, no reasonable jury could find in the plaintiff's favor). Therefore, a court should grant a motion to dismiss a **products liability** action based on **misrepresentation** if there is insufficient evidence to support any of the following elements:

The defendant (a **commercial seller**) made a **misrepresentation of material fact** about a product to the public.

A consumer (not necessarily the plaintiff) justifiably relied on this misrepresentation when purchasing that product.

That product caused the plaintiff harm.

Here, the manufacturer sold the vaporizer with a booklet that *expressly stated* that the vaporizer was spillproof and included a picture that implied that the vaporizer could be safely used beside a child's crib (misrepresentation). Because a reasonable jury could conclude that the mother justifiably relied on these assertions when she purchased the vaporizer and that the vaporizer caused her child harm, the manufacturer's motion to dismiss should be denied.

(Choice B) The fact that the vaporizer seriously injured the child provides evidence of harm. However, the child cannot recover for that harm unless there also is evidence that the manufacturer falsely represented that the vaporizer was spillproof. Since there is such evidence, the court should deny the manufacturer's motion.

(Choice C) While it should have been obvious to the mother that the water in the vaporizer would become extremely hot, it was still reasonable for her to rely on the manufacturer's assertion that the product was spillproof.

(Choice D) Even if a reasonable jury could find that the manufacturer did not defectively *design* the vaporizer because there was no safer alternative design, the manufacturer may still be liable for *misrepresenting* the vaporizer's safety.

Educational objective:

Products liability based on misrepresentation arises when (1) the defendant (a commercial supplier) misrepresents a material fact about a product, (2) a consumer justifiably relied on that misrepresentation, and (3) the product caused the plaintiff harm.

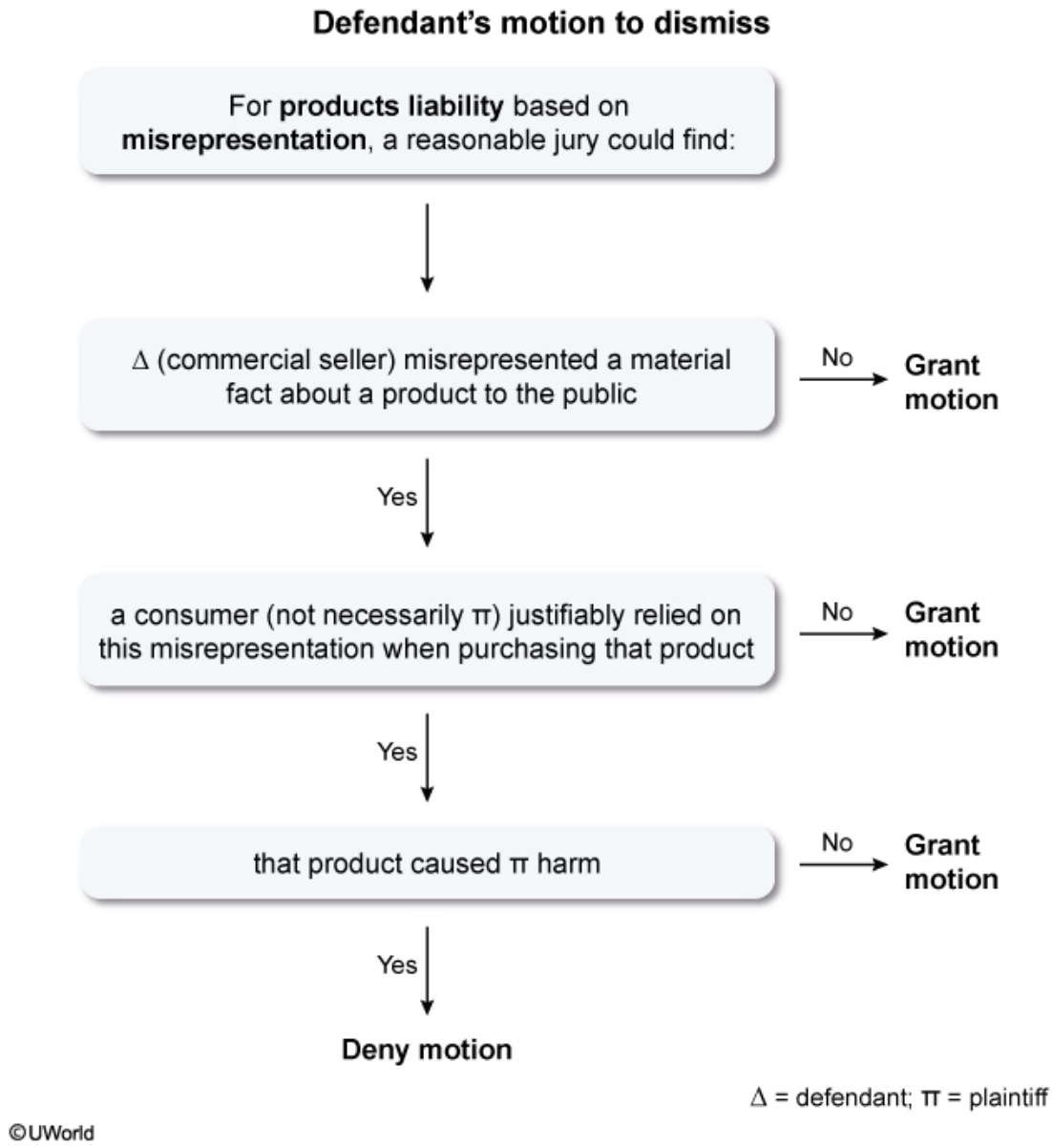
References

Restatement (Third) of Torts: Prods. Liab. § 9 (Am. Law Inst. 1998) (products liability by misrepresentation).

Restatement (Second) of Torts § 402B (Am. Law Inst. 1965) (strict products liability by misrepresentation).

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A company operates a factory that requires the use of very high voltage electricity. A man owns property adjacent to the company's plant where he has attempted to carry on a business that requires the use of sensitive electronic equipment. The effectiveness of the man's electronic equipment is impaired by electrical interference arising from the high voltage currents used in the company's plant. The man has complained to the company several times, with no result. There is no way that the company, by taking reasonable precautions, can avoid the interference with the man's operation that arises from the high voltage currents necessary to the company's operation.

In the man's action against the company to recover damages for the economic loss caused to him by the electrical interference, will the man prevail?

A. No, because the man's harm was purely economic and did not arise from physical harm to his person or property.

B. No, unless the company caused a substantial and unreasonable interference with the man's business.

C. Yes, because the company's activity is abnormally dangerous.

D. Yes, for loss suffered by the man after the company was made aware of the harm its activity was causing to the man.

Explanation:

A plaintiff can recover **damages for economic loss** and other injuries related to a **private nuisance**. To recover such damages, the plaintiff must prove that the defendant's **interference** with the plaintiff's use and enjoyment of his/her property was both:

substantial – offensive, annoying, or intolerable to a normal person in the community *and*

unreasonable – the severity of the plaintiff's harm outweighs the utility of the defendant's conduct.

An interference is **not substantial** if harm only results from the **plaintiff's hypersensitivity** (eg, abnormal aversion to the normal ringing of nearby church bells) or **abnormal use of his/her own property** (eg, sensitive photographic film harmed by heat from nearby factory).

Here, the company interfered with the use and enjoyment of the man's property through high-voltage electricity that impaired the *sensitive* electronic equipment required for his business (an abnormal use of the man's property). Therefore, the man will not recover economic damages for the company's interference with his business unless he can show that the interference was substantial—eg, that the high-voltage electricity interfered with the *normal* use of his property—and unreasonable.

(Choice A) Negligence requires proof of physical harm before a plaintiff can recover for economic loss, but nuisance allows a plaintiff to recover for pure economic loss (ie, economic loss not arising from physical harm). Therefore, the man's lack of physical harm does not preclude his recovery for economic loss based on nuisance.

(Choice C) The use of high-voltage electricity may be an abnormally dangerous activity—ie, an uncommon activity in the community that creates a foreseeable and highly significant risk of physical harm that cannot be eliminated by reasonable care. But the company would not be liable for engaging in that activity since the man's harm was caused by electrical interference—not the abnormal danger of that activity (eg, electric shock).

(Choice D) Private nuisance does not require proof that the defendant was aware of the harm caused by his/her activity. Therefore, if the company's interference was substantial and unreasonable, the man could recover for losses suffered before *and* after the company was made aware of his harm.

Educational objective:

Private nuisance requires proof that the defendant substantially and unreasonably interfered with the plaintiff's use and enjoyment of his/her property. An interference is not substantial if the plaintiff's harm results from his/her hypersensitivity or abnormal use of the property.

References

Restatement (Second) of Torts § 822 (Am. Law Inst. 1979) (private nuisance liability).

Restatement (Second) of Torts § 821F (Am. Law Inst. 1979) (substantial harm requirement).

Restatement (Second) of Torts § 826 (Am. Law Inst. 1979) (unreasonable interference requirement).

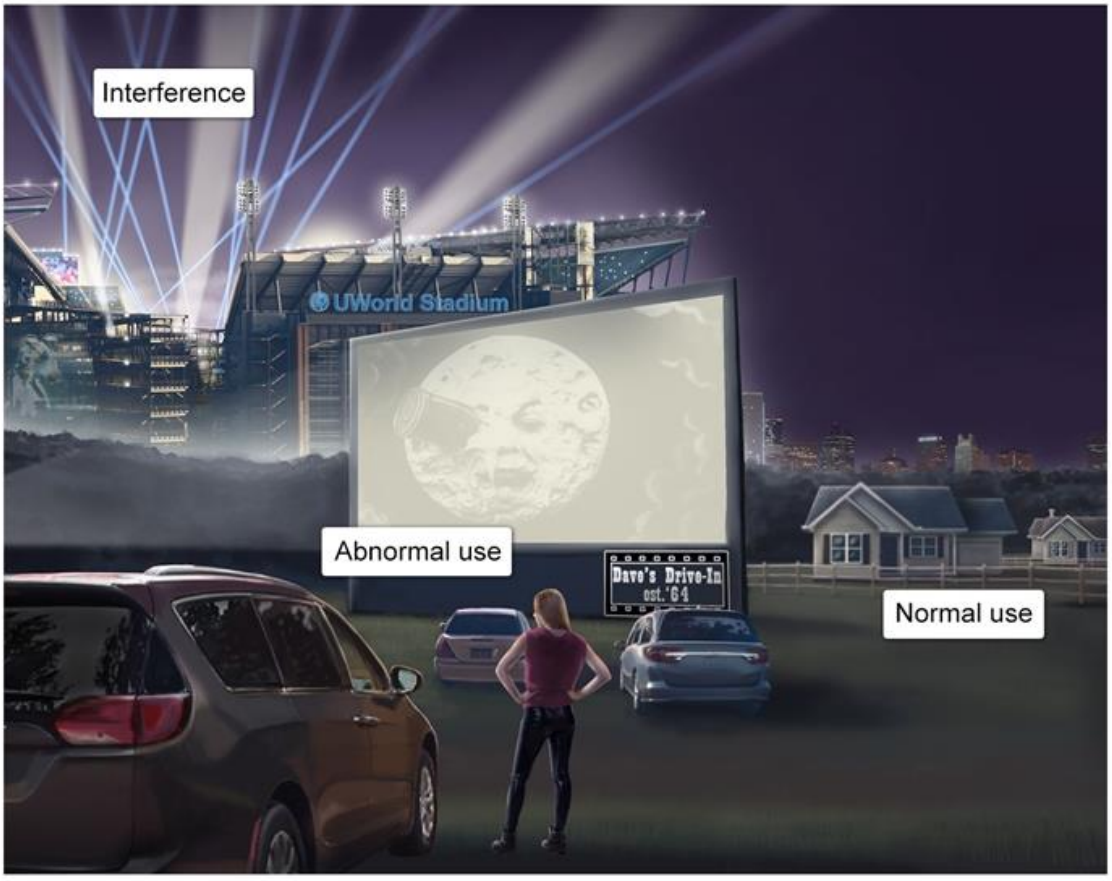
Postal Tel.-Cable Co. v. Pac. Gas & Elec. Co., 202 Cal. 382, 385 (1927) (using sensitive electrical equipment is an abnormal use of property).

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Private nuisance

Normal & abnormal use harmed = substantial interference
Only abnormal use harmed ≠ substantial interference



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A manufacturing plant emitted a faint noise even though the owner had installed state-of-the-art sound dampeners. The plant operated only on weekdays and only during daylight hours. A homeowner who lived near the plant worked a night shift and could not sleep when he arrived home because of the noise from the plant. The other residents in the area did not notice the noise.

Does the homeowner have a viable nuisance claim against the owner of the plant?

A. No, because the homeowner is unusually sensitive to noise during the day.

B. No, because the plant operates only during the day.

C. Yes, because the noise is heard beyond the boundaries of the plant.

D. Yes, because the operation of the plant interferes with the homeowner's quiet use and enjoyment of his property.

Explanation:

Private nuisance v. Public nuisance

(action brought by private plaintiff)

	Interference	**Unreasonable**	**Harm**
Public	Public right—eg, health, safety, peace, property	Interference is significant or violated law	Special harm—harm different from that of public at large*
Private	Use & enjoyment of property	Severity of harm outweighs utility of interference	Substantial interference—offensive, annoying, or intolerable to normal person

*Proof of harm not required when plaintiff is public entity or government actor.

Nuisance can be either public (interfering with a right common to the general public) OR private (interfering with a private property right—as seen here). Liability for **private nuisance** arises when the defendant's tortious **interference** with the plaintiff's use and enjoyment of his/her property is both:

substantial – offensive, annoying, or intolerable to a **normal person** in the community *and* **unreasonable** – the severity of the plaintiff's harm outweighs the utility of the defendant's conduct.

An interference is **not substantial** if the plaintiff has an **unusual sensitivity** that causes him/her to find it offensive, annoying, or intolerable when a normal person in the community would not.

Here, the manufacturing plant interfered with the homeowner's use and enjoyment of his property by emitting a noise that kept him awake during the day **(Choice D)**. But since the homeowner worked a night shift, he was unusually sensitive to the noise that other residents in the community did not notice. Therefore, the interference was not substantial and the homeowner does not have a viable nuisance claim.

(Choice B) Although the plant only operates during the day, the homeowner could still recover if the noise was offensive, annoying, or intolerable to normal people in the community (eg, had the other residents found the noise too loud for daytime).

(Choice C) The noise was heard beyond the boundaries of the plant—but only by the homeowner. Since the homeowner was disturbed by that noise when none of the other residents noticed it (ie, he was unusually sensitive), his nuisance claim will fail.

Educational objective:

Private nuisance is a substantial and unreasonable interference with the plaintiff's use and enjoyment of his/her property. An interference is not substantial if the plaintiff's unusual sensitivity causes him/her to find it offensive, annoying, or intolerable when a normal person in the community would not.

References

Restatement (Second) of Torts § 821D (Am. Law Inst. 1979) (private nuisance).

Restatement (Second) of Torts § 821F (Am. Law Inst. 1979) (significant harm requirement).

Restatement (Second) of Torts § 822 (Am. Law Inst. 1979) (liability for nuisance).

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A chef wrote a cookbook that contained the recipes for the most requested dishes that she cooked at her popular restaurant. After the chef died, a sous chef who worked at the restaurant began telling the restaurant's customers that the chef was a fraud and that a dishwasher at the restaurant had actually created all of the recipes that were contained in the cookbook. However, when asked by a customer, the dishwasher denied having written any of the recipes in the cookbook and said that the sous chef probably lied because he and the chef had hated each other.

The chef's estate learned of the sous chef's statements to the restaurant's customers. Concerned about the effect the statements might have had on the cookbook's sales, the chef's estate filed a defamation suit against the sous chef.

Will the chef's estate prevail?

A. No, because the chef is deceased.

B. No, because there was no publication.

C. Yes, because the statements damaged the chef's reputation.

D. Yes, because the statements likely impacted cookbook sales.

Explanation:

Defamation can be either libel (written statements) OR **slander** (**spoken statements**—as seen here). A plaintiff has an action for defamation based on slander if all of the following elements are met:

The defendant knowingly made a false statement about the plaintiff (or negligently failed to determine its falsity).

The statement was defamatory, meaning that the type of statement would tend to harm the plaintiff's reputation.

The defendant intentionally or negligently communicated the statement to a third party who understood it.

The statement caused the plaintiff special damage (usually monetary loss) or was slanderous per se.

However, defamation of a **deceased person** is **not actionable**.* Therefore, the chef's estate will *not* prevail in a defamation suit against the sous chef.

*A statement about a dead person may amount to defamation of a living person. Additionally, whether an action for defamation of a living person survives the person's death depends on the state's survival statute.

(Choice B) The publication (ie, communication) element for defamation was met when the sous chef intentionally told the restaurant's customers that the chef was a fraud and that a dishwasher had created the recipes.

(Choices C & D) Calling the chef a fraud was harmful to her reputation and may have impacted cookbook sales (special damage). But defamation of a deceased person is not actionable.

Educational objective:

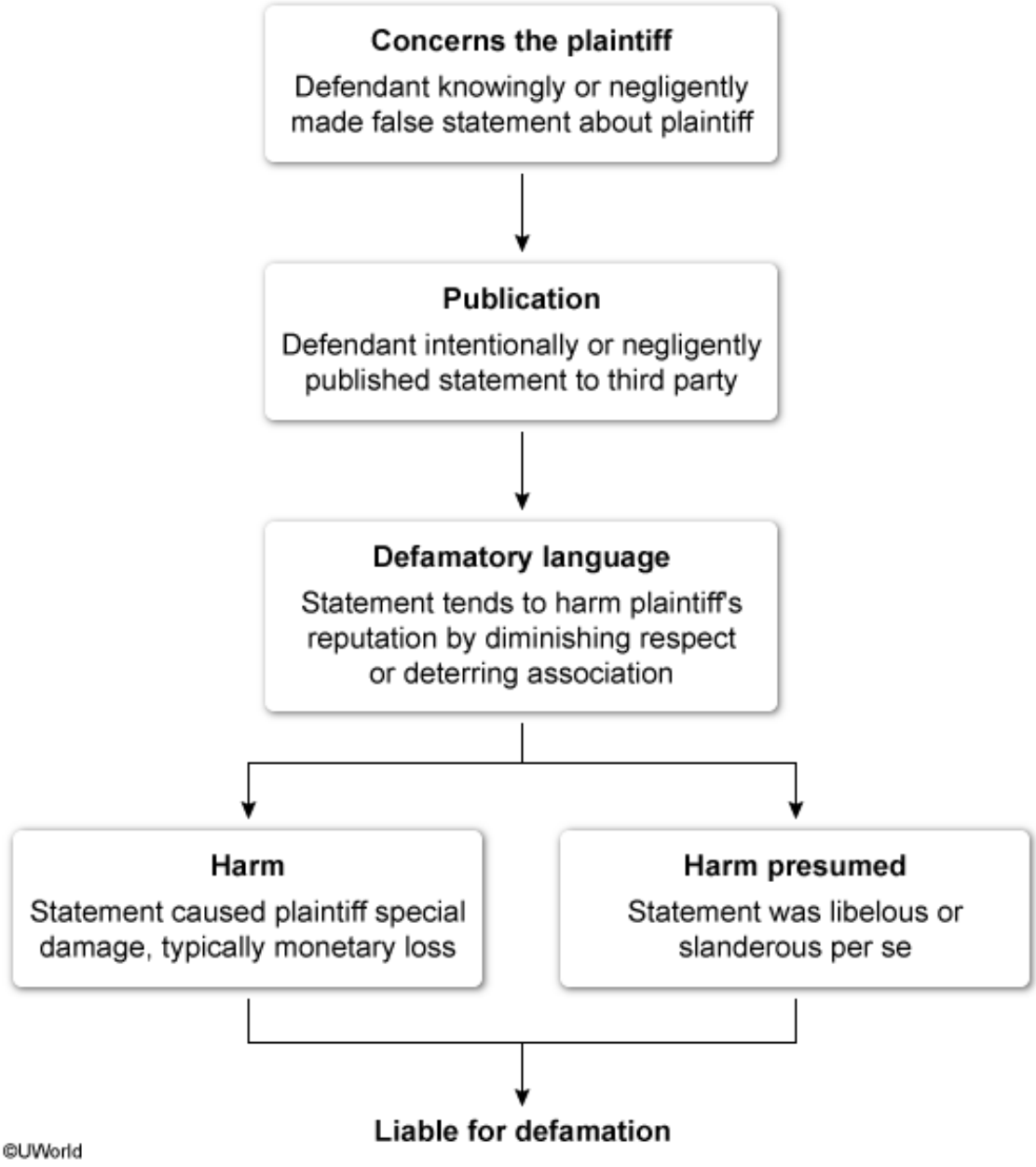
A defamation claim based on libel (written statements) or slander (spoken statements) of a deceased person is not actionable.

References

Restatement (Second) of Torts § 560 (Am. Law Inst. 1981) (defamation of deceased persons).

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Defamation liability



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A statistics professor told a friend that one of the professor's graduate students had failed an introductory statistics course in the second quarter of his sophomore year in college. The friend repeated this statement to an economics professor, but the friend prefaced it with the proviso that she had heard the information from the statistics professor and had no personal knowledge of whether it was true.

The student later learned of the statement and initiated a lawsuit against the friend for slander. At trial, the student proved that he had failed the introductory statistics course in the first quarter, not the second quarter, of his sophomore year in college.

Can the student likely recover?

A. No, because the friend merely repeated what she had heard from the statistics professor.

B. No, because the statement is substantially true.

C. Yes, because the friend was negligent in failing to verify the statement before repeating it.

D. Yes, because the friend's statement was inaccurate.

Explanation:

Defamation defenses

(libel, slander, slander per se)

Absolute privileges	**Truth**	Truthful statements are not defamatory
	Consent	Actual – plaintiff agreed to publication
		Apparent – defendant reasonably believed plaintiff agreed to publication
	Other	Statement made during:
		Judicial, administrative, or legislative proceeding
		Communication to spouse
		Publication required by law (eg, emergency alert system)
Conditional privileges (lost if abused)	Statement made:	
	about an important public interest	
	to protect defendant's interests, family members, or third party owed a legal duty (eg, business partner)	
	to person authorized to act in public's interest (eg, 911 call to police)	
	in report of official proceeding or public meeting	

Defamation can be either libel (ie, written statements) or **slander** (ie, spoken statements—as seen here). To establish a defamation claim based on slander, the plaintiff must prove all of the following:

The defendant **knowingly made a *false* statement** about the plaintiff or **negligently failed to determine its falsity**.

That type of statement would tend to harm a person's reputation.

The defendant intentionally or negligently communicated the statement to a third party.

The statement caused the plaintiff special damage (ie, monetary loss).

But since defamation requires proof that the defendant made a false statement, **truth is a complete defense**. A statement that contains **slight inaccuracies** may nevertheless be considered true and therefore **not defamatory**.

Here, the friend told the economics professor that the student failed an introductory statistics course in the second quarter of his sophomore year. Although the friend was merely repeating what she had heard from the statistics professor, she may have been negligent in failing to verify the statement before doing so **(Choices A & C)**. But even

though the statement was slightly inaccurate—the student failed the class in the first quarter, not the second quarter—the statement was substantially true **(Choice D)**. Therefore, the student likely cannot recover for slander.

Educational objective:

Proof of a statement's falsity is essential to all defamation (ie, libel and slander) claims, so truth serves as a complete defense. A statement that contains slight inaccuracies may nevertheless be considered true and therefore not defamatory.

References

Restatement (Second) of Torts § 558 (Am. Law Inst. 1977) (defining the elements of defamation).

Restatement (Second) of Torts § 581A (Am. Law Inst. 1977) (explaining that truth is a defense to defamation).

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A cigarette maker created and published a magazine advertisement that featured a person dressed as a race-car driver with a helmet on standing in front of a distinctive race car. In fact, the car looked almost exactly like the very unusually marked car driven by a famous and popular driver. The driver in the ad was not identified, and his face was not shown. The cigarette maker published the advertisement without obtaining the famous driver's permission.

The famous race-car driver sued the cigarette maker for economic loss only, based on common law misappropriation of the right of publicity. The cigarette maker moved to dismiss the complaint.

Will the cigarette maker's motion to dismiss the complaint be granted?

A. No, because there are sufficient indicia of the famous driver's identity to support a verdict of liability.

B. Yes, because the driver is a public figure.

C. Yes, because the famous driver did not claim any emotional or dignitary loss.

D. Yes, because there was no mention of the famous driver's name in the ad.

Explanation:

A defendant's **motion to dismiss** will be granted if the plaintiff's complaint fails to allege facts sufficient to support his/her claim. For a **misappropriation of the right to publicity** (ie, appropriation of name or likeness) claim, the plaintiff must allege that the defendant:

used the plaintiff's **identity** (ie, name, likeness, or **item closely associated with the plaintiff**) without authorization

to receive a **benefit** (typically for a commercial purpose—eg, using the plaintiff's picture to advertise a product).

Here, though the cigarette maker did not use the famous driver's name or picture, it did feature a distinctive race car that was *almost identical* to his unusually marked car (item closely associated with the driver) in its advertisement (commercial purpose). Therefore, that advertisement contained sufficient indicia of the driver's identity to support his complaint and the court will likely deny the cigarette maker's motion to dismiss.

(Choice B) Public figures (persons who achieve pervasive fame/notoriety or who voluntarily involve themselves in a public controversy) have the same right to control the use of their identity as everyone else. Therefore, the driver's status as a public figure will not prevent him from recovering for misappropriation of his right to publicity.

(Choice C) Misappropriation of the right to publicity allows the plaintiff to recover for emotional distress or personal humiliation, but neither is required. Therefore, the driver's complaint did not need to allege any emotional or dignitary loss.

(Choice D) Although the cigarette maker's ad did not mention the famous driver by name, its use of his unusually marked race car was sufficient to depict or identify him.

Educational objective:

Misappropriation of the right to publicity is the unauthorized use of the plaintiff's identity—ie, name, likeness, or item closely associated with the plaintiff—for the defendant's benefit (typically for a commercial purpose).

References

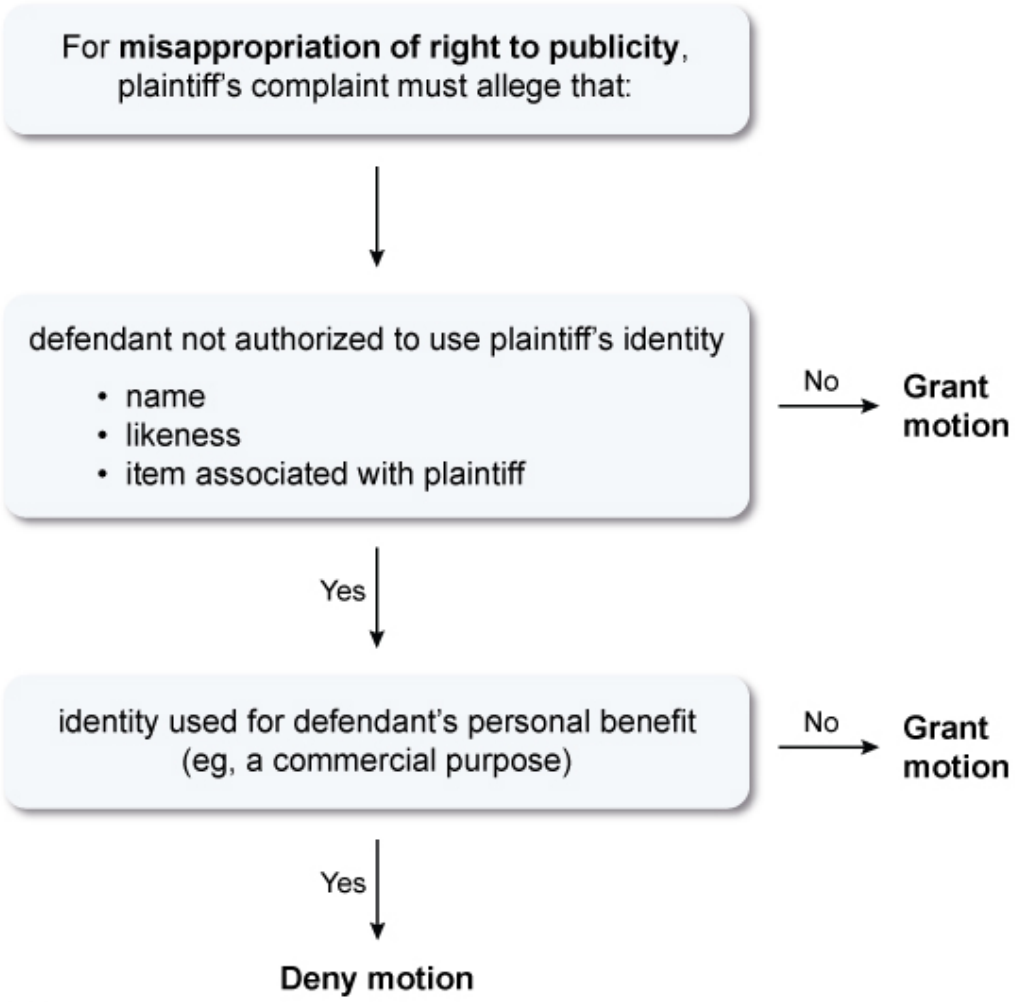
Restatement (Second) of Torts § 652C (Am. Law Inst. 1977) (appropriation of name or likeness).

Fed. R. Civ. P. 12(b)(6) (motion to dismiss).

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Defendant's motion to dismiss



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A real estate developer was trying to purchase land on which he intended to build a large commercial development. An elderly widow had rejected all of the developer's offers to buy her ancestral home, where she had lived all her life and which was located in the middle of the developer's planned development. Finally, the developer offered her $250,000. He told her that it was his last offer and that if she rejected it, state law authorized him to have her property condemned.

The widow then consulted her nephew, a law student, who researched the question and advised her that the developer had no power of condemnation under state law. The widow had been frightened by the developer's threat and was outraged when she learned that the developer had lied to her.

If the widow asserts a claim based on misrepresentation against the developer, will she prevail?

A. No, because the widow suffered no pecuniary loss.
B. No, if the developer's offer of $250,000 equaled or exceeded the market value of the widow's property.
C. Yes, if the developer knew he had no legal power of condemnation.
D. Yes, if the developer tried to take unfair advantage of a gross difference between himself and the widow in commercial knowledge and experience.

Explanation:

To establish a prima facie case of **intentional misrepresentation** (ie, fraud or deceit), the plaintiff must show that:

the defendant knowingly or recklessly **misrepresented a material fact** with the intent to induce the plaintiff's reliance *and*

the plaintiff **reasonably relied** on the misrepresentation and suffered **pecuniary loss** (ie, monetary loss) as a result.

Here, the developer may have knowingly or recklessly misrepresented state law with the intent to persuade the widow to sell her home. But since the widow did not rely on the developer's statement (eg, by selling her home) and suffered no pecuniary loss (eg, by selling her home for less than its worth), she will not prevail on a misrepresentation claim.

(Choice B) The widow did not sell her home in reliance on the developer's statement (and therefore could not have suffered pecuniary loss), so it does not matter whether the developer's offer equaled or exceeded the market value of her home.

(Choice C) Even if the developer knew that he had no legal power of condemnation (ie, he knowingly misrepresented a material fact), the widow will not prevail because she did not rely on his misrepresentation or suffer a pecuniary loss.

(Choice D) The developer's superior commercial knowledge and his experience go to whether the widow could have reasonably relied on his misrepresentation. But since the widow did not rely on his statement, his knowledge and experience are irrelevant.

Educational objective:

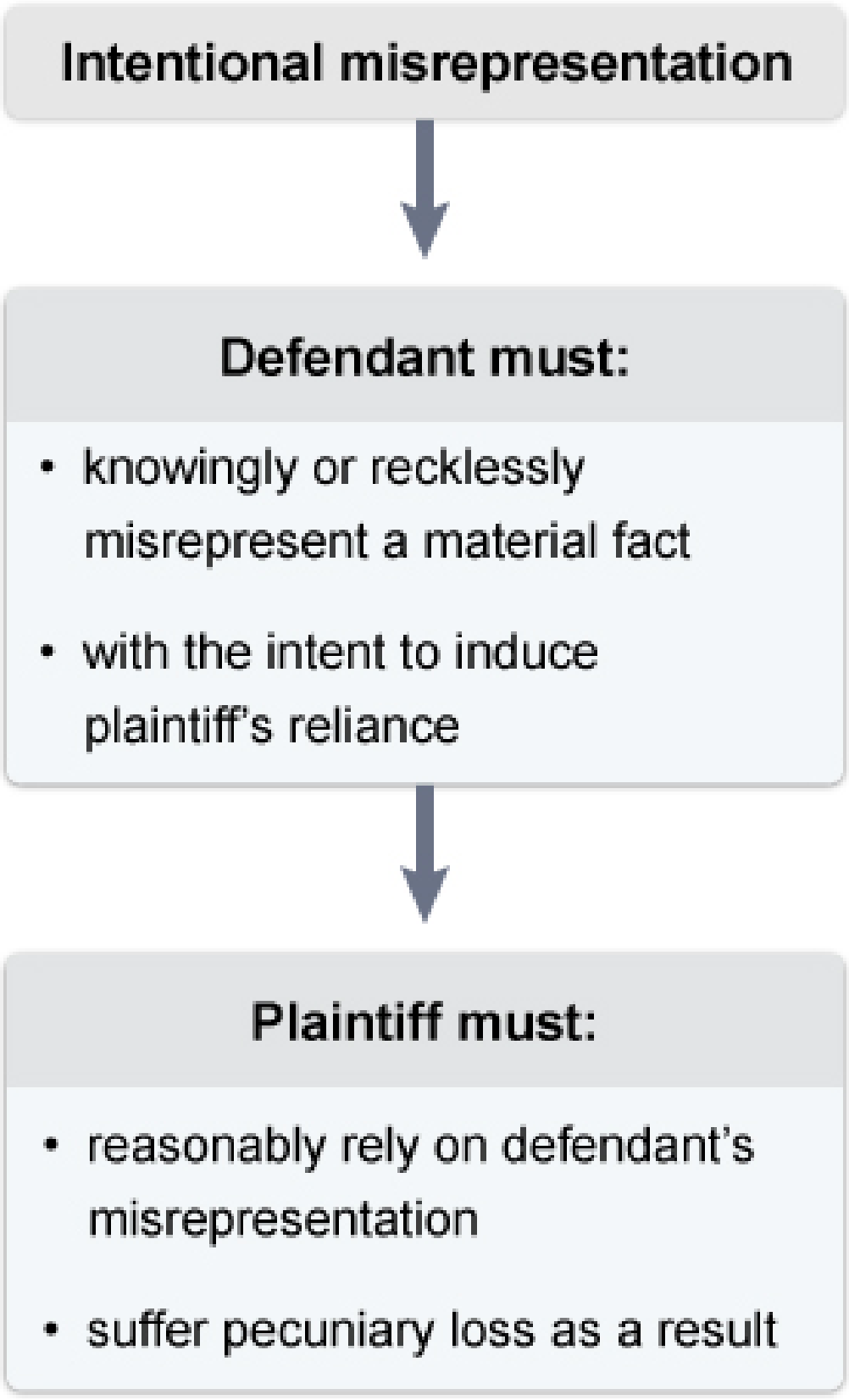
Liability for intentional misrepresentation arises when (1) the defendant knowingly or recklessly misrepresents a material fact with the intent to induce the plaintiff's reliance and (2) the plaintiff reasonably relies on the misrepresentation and suffers pecuniary loss as a result.

References

Restatement (Second) of Torts § 525 (Am. Law Inst. 1977) (fraudulent misrepresentation).

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Intentional misrepresentation
Defendant must:
• knowingly or recklessly misrepresent a material fact
• with the intent to induce plaintiff's reliance
Plaintiff must:
• reasonably rely on defendant's misrepresentation
• suffer pecuniary loss as a result

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A businesswoman owns a tract of land in fee simple, and an environmentalist owns the adjoining tract of land in fee simple. The businesswoman has kept the lawns and trees on her land trimmed and neat. The environmentalist "lets nature take its course" on his land. The result on the environmentalist's land is a tangle of underbrush, fallen trees, and standing trees that are in danger of losing limbs. Many of the trees on the environmentalist's land are near the businesswoman's property line. In the past, debris and large limbs have been blown from the environmentalist's land onto the businesswoman's land. By local standards the environmentalist's land is an eyesore that depresses market values of real property in the vicinity, but the condition of the land violates no applicable laws or ordinances.

The businesswoman has demanded that the environmentalist keep the trees near her land trimmed. The environmentalist has refused.

The businesswoman brought an appropriate action against the environmentalist to require him to abate what she alleges to be a nuisance. In the lawsuit, the only issue is whether the condition of the environmentalist's land constitutes a nuisance.

What is the businesswoman's strongest argument?

A. The condition of the environmentalist's land cannot otherwise be challenged under any law or ordinance.
B. The condition of the environmentalist's land has an adverse impact on real estate values.
C. The condition of the environmentalist's land poses a danger to the occupants of her land.
D. The condition of the environmentalist's land violates community aesthetic standards.

Explanation:

Private nuisance is a substantial and unreasonable interference with the use and enjoyment of the plaintiff's property. An interference arising from a **natural condition on land** (eg, encroaching trees or plants) is **generally not a nuisance**. However, some courts have held that a natural condition on land **may be a nuisance** if it caused—or poses an **imminent danger** of—**actual harm** to adjoining property or those on it.

Here, the environmentalist has kept his land in its natural condition. As a result, debris and large tree limbs from his land have blown onto the businesswoman's property in the past. And since many of the environmentalist's trees are near the businesswoman's property line and in danger of losing limbs, her strongest argument for why the environmentalist's land constitutes a nuisance is that the condition of his land poses an imminent danger to the occupants of her land.

(Choice A) Compliance with the law is one factor that weighs in favor of a finding that the interference was not unreasonable. Therefore, the fact that the condition of the environmentalist's land cannot be challenged under any law or ordinance favors the environmentalist—not the businesswoman.

(Choices B & D) A natural condition on land can only support a private nuisance claim if the condition caused—or poses an imminent danger of—actual harm to adjoining property or those on it. Adverse impacts on real estate values and violations of community aesthetic standards do not cause—or pose an imminent danger of—actual harm to adjoining property or those on it. Therefore, these are not the businesswoman's strongest arguments.

Educational objective:

An interference arising from a natural condition on land is generally not a nuisance. However, some courts have held that a natural condition may be a nuisance if it caused, or poses an imminent danger of, actual harm to adjoining property or those on it.

References

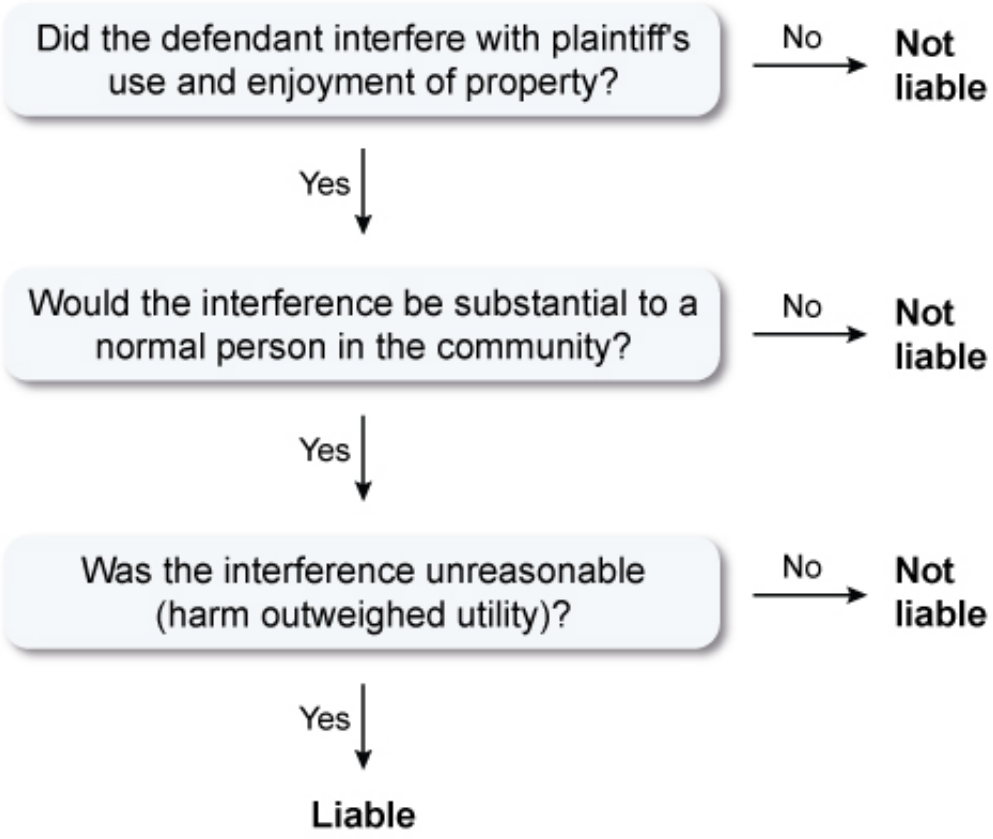
Restatement (Second) of Torts § 821D (Am. Law Inst. 1977) (private nuisance).

Restatement (Second) of Torts § 840 (Am. Law Inst. 1977) (failure to abate harmful natural condition on land).

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Private nuisance claim



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A man sued his neighbor for defamation based on the following facts: The neighbor told a friend that the man had set fire to a house in the neighborhood. The friend, who knew the man well, did not believe the neighbor's allegation, and the neighbor in fact knew that it was false. The friend told the man about the neighbor's allegation. The man was very upset by the allegation, but neither the man nor the neighbor nor the friend communicated the allegation to anyone else.

Should the man prevail in his lawsuit?

A. No, because the friend did not believe what the neighbor had said.

B. No, because the man cannot prove that he suffered pecuniary loss.

C. Yes, because the man was very upset at hearing what the neighbor had said.

D. Yes, because the neighbor communicated to the friend the false accusation that the man had committed a serious crime.

Explanation:

Defamation can be either libel (written statements) OR **slander** (**spoken statements**—as seen here). To establish a defamation claim based on slander, the plaintiff must prove all of the following:

The defendant knowingly made a false statement about the plaintiff (or negligently failed to determine its falsity).

That type of statement would tend to harm the plaintiff's reputation.

The defendant intentionally or negligently communicated that statement to a third party.

That statement caused the plaintiff **special damage** (ie, pecuniary/monetary loss).

However, some spoken statements are **slanderous per se** because they are so harmful to the plaintiff's reputation that **damages are presumed**. Therefore, proof of special damage is unnecessary when a statement falsely accused the plaintiff of any of the following:

committing a serious crime (eg, arson, murder, rape, theft)
engaging in conduct that adversely affects the plaintiff's occupation (eg, butcher sells rotten meats)
committing serious sexual misconduct (eg, adultery)
having a loathsome disease (eg, sexually transmitted infection)

Here, the neighbor falsely told the friend that the man had set fire to a house in the neighborhood (serious crime). Since that type of statement constitutes slander per se, the man's harm is presumed. Therefore, the man should prevail in his defamation lawsuit even if he cannot prove pecuniary loss **(Choice B)**.

(Choice A) Defamation requires proof that the defendant's false statement was *communicated* to a third party—not that the third party *believed* it. Therefore, the man can prevail even if the friend did not believe the neighbor's allegation.

(Choice C) Defamation does not require proof of emotional distress, so the fact that the man was very upset after hearing the neighbor's allegation has no effect on the viability of the man's claim. However, proof of emotional distress would be required in an intentional or negligent infliction of emotional distress claim.

Educational objective:

Slander generally requires proof of special damage. However, damage is presumed when the statement was slanderous per se—ie, it accused the plaintiff of (1) a serious crime, (2) conduct that adversely affects his/her occupation, (3) serious sexual misconduct, or (4) having a loathsome disease.

References

Restatement (Second) of Torts § 558 (Am. Law Inst. 1977) (defamation elements).

Restatement (Second) of Torts § 568 (Am. Law Inst. 1977) (libel and slander distinguished).

Restatement (Second) of Torts §§ 570–74 (Am. Law Inst. 1977) (slander per se).

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A gas company built a large refining facility that conformed to zoning requirements on land near a landowner's property. The landowner had his own home and a mini-golf business on his property.

In a nuisance action against the gas company, the landowner established that the refinery emitted fumes that made many people feel quite sick when they were outside on his property for longer than a few minutes. The landowner's mini-golf business had greatly declined as a consequence, and the value of his property had gone down markedly.

Is the landowner likely to prevail?

A. No, because the landowner has offered no evidence demonstrating that the gas company was negligent.

B. No, because the refinery conforms to the zoning requirements.

C. Yes, because the refinery has substantially and unreasonably interfered with the landowner's use and enjoyment of his property.

D. Yes, because the value of the landowner's property has declined.

Explanation:

A nuisance can be either public (interfering with a public right—eg, blocking a public highway) *or* private (interfering with a private property right—as seen here). Liability for **private nuisance** arises when the defendant's **interference with the use and enjoyment** of the plaintiff's property is both:

substantial – offensive, annoying, or intolerable to a normal person in the community *and*

unreasonable – the gravity of the plaintiff's harm outweighs the utility of the defendant's conduct.

Severe harm (eg, bodily harm to persons on the property) will always outweigh the utility of the defendant's conduct. Therefore, an interference that causes severe harm is **unreasonable as a matter of law**.

Here, the gas company's refinery substantially interfered with the use and enjoyment of the landowner's property (home and business) by emitting fumes that made people feel quite sick when they were on the property for more than a few minutes. And since the fumes caused physical illness (severe harm), that interference was unreasonable as a matter of law. Therefore, the landowner will likely prevail on his nuisance claim.

(Choice A) For private nuisance, the defendant's conduct must be tortious—but not necessarily negligent (ie, creating an unreasonable risk of interference). Therefore, the landowner can prevail even if he offers no evidence demonstrating that the gas company was negligent.

(Choice B) Compliance with zoning requirements—although not a complete defense to private nuisance—can help show that the defendant's interference was not unreasonable. But here, since the gas company's interference was unreasonable as a matter of law (because the company's fumes caused severe harm), the company's regulatory compliance is inconsequential.

(Choice D) Private nuisance allows the plaintiff to recover damages for a reduction in property value, but a reduction in property value is not required to prevail. Therefore, the landowner will likely prevail because the refinery substantially and unreasonably interfered with the use and enjoyment of his property—not because the value of the property has declined.

Educational objective:

Private nuisance is a substantial and unreasonable interference with the use and enjoyment of the plaintiff's property. An interference is unreasonable as a matter of law when the plaintiff's harm is severe.

References

Restatement (Second) of Torts § 822 (Am. Law Inst. 1979) (private nuisance liability).

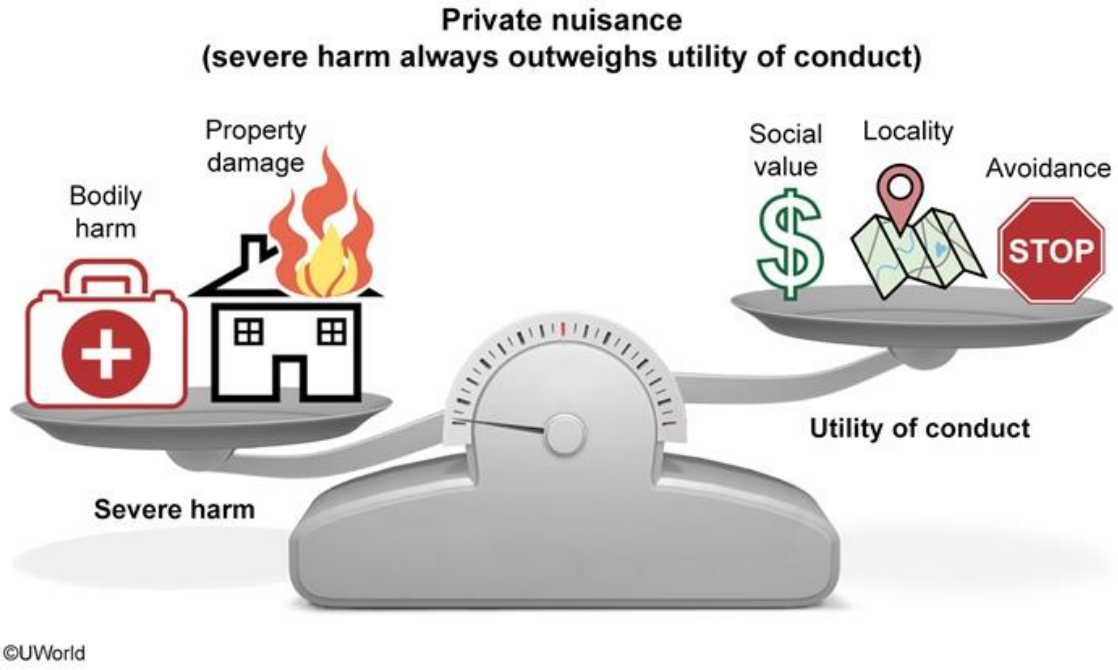
Restatement (Second) of Torts § 821F (Am. Law Inst. 1979) (substantial harm requirement).

Restatement (Second) of Torts § 826 (Am. Law Inst. 1979) (unreasonable interference requirement).

Restatement (Second) of Torts § 829A (Am. Law Inst. 1979) (severe harm is unreasonable).

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At a country auction, a collector acquired an antique cabinet that he recognized as an extremely rare and valuable collector's item. Unfortunately, the cabinet had several coats of varnish and paint over the original finish. Its potential value could only be realized if these layers could be removed without damaging the original finish. Much of the value of the cabinet depended on the condition of a unique oil finish, the secret of which died with the cabinet's inventor.

A professional restorer of antique furniture recommended that the collector use a certain paint-stripping product to remove the paint and varnish from the cabinet. The collector obtained and read a sales brochure published by the manufacturer of the paint-stripping product. The brochure stated: "This product will renew all antique furniture. Will not damage original oil finishes."

The collector purchased this paint-stripping product and used it on his cabinet, being very careful to follow the accompanying instructions exactly. Despite the collector's care, the cabinet's original finish was irreparably damaged. When finally refinished, the cabinet was worth less than 20% of what it would have been worth if its original finish had been preserved.

If the collector sues the manufacturer of the paint-stripping product to recover the loss he has suffered as a result of the destruction of the cabinet's original finish, will the collector likely prevail?

A. No, if the product was not dangerous to persons.

B. No, unless the product was defective when sold by the manufacturer.

C. Yes, if the loss would not have occurred had the statement in the brochure been true.

D. Yes, unless no other known removal technique would have preserved the cabinet's original finish.

Explanation:

Products liability claims

Claims	Required elements
Strict products liability	Commercial seller (ie, manufacturer, distributor, retailer) produced or sold defective product
	Defect caused plaintiff harm
Negligence	Seller (commercial or noncommercial) failed to use reasonable care in producing or inspecting defective product
	Product caused plaintiff harm
Intentional tort	Seller (commercial or noncommercial) purposefully or knowingly produced or sold defective product
	Product caused plaintiff harm
Misrepresentation*	Commercial seller misrepresented material fact about product
	Consumer justifiably relied on misrepresentation when purchasing product
	Product caused plaintiff harm
Warranty	Merchantability (implied)
	Commercial seller warranted product is generally acceptable & reasonably fit for its ordinary purpose
	Fitness for particular purpose (implied)
	Seller (commercial or noncommercial) warranted product is fit for particular purpose
	Purchaser relied on seller's judgment or skill to purchase product
	Express
	Seller (commercial or noncommercial) made affirmation of fact or promise that is part of basis of bargain

*Commercial sellers are strictly liable for the misrepresentations they make regarding their products—regardless of whether those products are defective.

A **commercial seller** (ie, manufacturer, distributor, retailer) is subject to strict liability for harm caused by defective products. In addition, a commercial seller can be strictly liable for **misrepresentations** regarding any of its products—regardless of whether that product is defective. To recover based on misrepresentation, the plaintiff must show that:

the commercial seller **misrepresented a material fact** about a product—ie, a fact that would be important to a normal purchaser

the plaintiff **justifiably relied** on that misrepresentation when purchasing the product *and*

the product **caused** the plaintiff physical harm—ie, harm that would not have occurred had the seller's representation been true.

Here, the manufacturer's brochure falsely stated that its paint-stripping product "[w]ill not damage original oil finishes" (misrepresentation). The collector read the brochure before purchasing the product to use on his antique cabinet (justifiable reliance). And since the destruction of the cabinet's original finish would not have occurred had the statement in the brochure been true (causation), the collector will likely prevail.

(Choice A) Products liability based on misrepresentation applies to *any* type of physical harm (ie, personal injury or *property* damage), so the fact that this product was not dangerous to persons would not absolve the manufacturer of liability.

(Choice B) A commercial seller is strictly liable for harm caused by its misrepresentations about *any* of its products—not just defective ones.

(Choice D) Products liability can be based on a commercial seller's misrepresentation about a product even if no other product can satisfy that representation.

Educational objective:

Products liability based on misrepresentation arises when (1) a commercial seller misrepresented a material fact about a product, (2) the plaintiff justifiably relied on that misrepresentation, and (3) the product caused the plaintiff physical harm.

References

Restatement (Second) of Torts § 402B (Am. Law Inst. 1965) (explaining that a commercial seller is subject to strict liability for physical harm caused by its misrepresentations regarding its products).

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A woman was touring a house that was "for sale by owner." She noticed water stains on the living-room ceiling and asked the seller about them. The seller responded that the roof did not leak even though he knew otherwise. The woman entered into a contract with the seller to purchase the house. The contract had a provision that conditioned the woman's obligation to purchase the house on the receipt of a favorable inspection report by an inspector of her choosing.

The inspection report prepared by the woman's inspector indicated that the roof substantially leaked. However, the woman really wanted the home and purchased it in reliance on the seller's statement regarding the roof's condition. One month later, during the first heavy rain after the purchase, the roof leaked and caused extensive damage to the house.

If the woman sues the seller for fraud, who is likely to prevail?

A. The seller, because the woman did not justifiably rely on the seller's statement that the roof did not leak.

B. The seller, because the woman had a contractual obligation to perform an inspection of the house.

C. The woman, because the roof's condition was a material fact in her decision to purchase the home.

D. The woman, because the seller told her that the roof did not leak even though he knew otherwise.

Explanation:

Misrepresentation

(fraudulent v. negligent)

	Conduct	**Setting**	**Harm**
Fraudulent	Knowingly or recklessly misrepresented material fact to induce reliance	Any setting	Justifiable reliance caused pecuniary loss
Negligent	Negligently provided plaintiff false information	Commercial setting or setting with risk of physical harm	Justifiable reliance caused pecuniary loss *or* physical harm

A prima facie case of **fraud** (also called "intentional misrepresentation" or "deceit") is established by proof of the following elements:

The defendant knowingly or recklessly **misrepresented a material fact** with the intent to induce the plaintiff's reliance.

The plaintiff **justifiably relied** on the misrepresentation and suffered **pecuniary (ie, financial) loss** as a result.

Justifiable reliance does not require the plaintiff to investigate the truth or falsity of the defendant's statement. But **reliance is not justifiable if** the statement is **obviously false** OR the defendant is stating a lay opinion.

Here, the seller knowingly misrepresented a material fact when he told the woman that the roof did not leak. The seller presumably intended to induce the woman to purchase the home, and the woman *did* purchase it in reliance on the seller's statement. But that statement was obviously false in light of the water stains and the report by the woman's own inspector that the roof substantially leaked. Therefore, the woman's reliance was not justifiable and the seller will likely prevail **(Choices C & D)**.

(Choice B) The contract did not obligate the woman to have the house inspected. Instead, it gave her the right to obtain a favorable inspection report before concluding the sale. The woman received an unfavorable report yet chose to rely (unjustifiably) on the seller's statement instead. For this reason, the seller will prevail in the fraud suit.

Educational objective:

Fraud (ie, intentional misrepresentation or deceit) requires proof that the plaintiff's reliance on the defendant's misrepresentation was justifiable. Reliance was not justifiable if the representation was obviously false or the defendant was stating a lay opinion.

References

Restatement (Second) of Torts § 525 (Am. Law Inst. 1977) (fraudulent misrepresentation).

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A man and a woman were law school classmates who had competed for the position of editor of the law review. The man had the higher grade point average, but the woman was elected editor, largely in recognition of a long and important note that had appeared in the review with the woman credited as the author.

During the following placement interview season, the man was interviewed by a representative of a nationally prominent law firm. In response to the interviewer's request for information about the authorship of the law review note, the man said that he believed that the note attributed to the woman was largely the work of another student.

The firm told the woman that it would not interview her because of doubts about the authorship of the note. This greatly distressed the woman. In fact, the note had been prepared by the woman without assistance from anyone else.

If the woman asserts a claim against the man based on defamation, will she recover?

A. No, because the statement was made by the man only after the interviewer inquired about the authorship of the note.

B. No, unless the woman proves pecuniary loss.

C. Yes, because the man's statement was false.

D. Yes, if the man had substantial doubts about the accuracy of the information he gave the interviewer.

Explanation:

Defamation (libel or slander) occurs when a defendant communicates (ie, publishes) a false statement about the plaintiff to a third party and harms the plaintiff's reputation. But the defendant is not liable for defamation if that communication is **privileged**. One such privilege arises when the defendant **reasonably believes** that:

the statement affects an **important interest** of the third party *and*

communicating that statement to the third party is **socially acceptable**—eg, the statement is made in response to a request rather than volunteered.

However, this is a conditional privilege that is **lost when abused**. Abuse occurs when the defendant knows that the statement is false or recklessly disregards that possibility (ie, has **substantial doubts** about the statement's accuracy).

Here, the man falsely told the interviewer that the woman's law review note was largely the work of another student (defamation). This communication was privileged since (1) the man could reasonably believe that his statement would affect the interviewer's hiring decision (important interest) and (2) the statement was made in response to the interviewer's inquiry about the note (socially acceptable) **(Choice A)**. But if the man had *substantial doubts* about the accuracy of his statement, then the privilege will be lost and the woman will recover for defamation.

(Choice B) Slander (spoken defamation) ordinarily requires proof of special harm (pecuniary loss). But such proof is *not* required when the defendant's statement constitutes slander per se—eg, a statement accusing the plaintiff of conduct that adversely affects his/her occupation. Here, since an accusation of plagiarism would harm a law student's job prospects (slander per se), the woman can recover without proving pecuniary loss.

(Choice C) Since defamation requires proof of falsity, the fact that the man's statement was false supports the woman's claim. But since the man's statement was privileged, the woman will only recover if this privilege was abused—ie, the man knew or recklessly disregarded the possibility that his statement was false.

Educational objective:

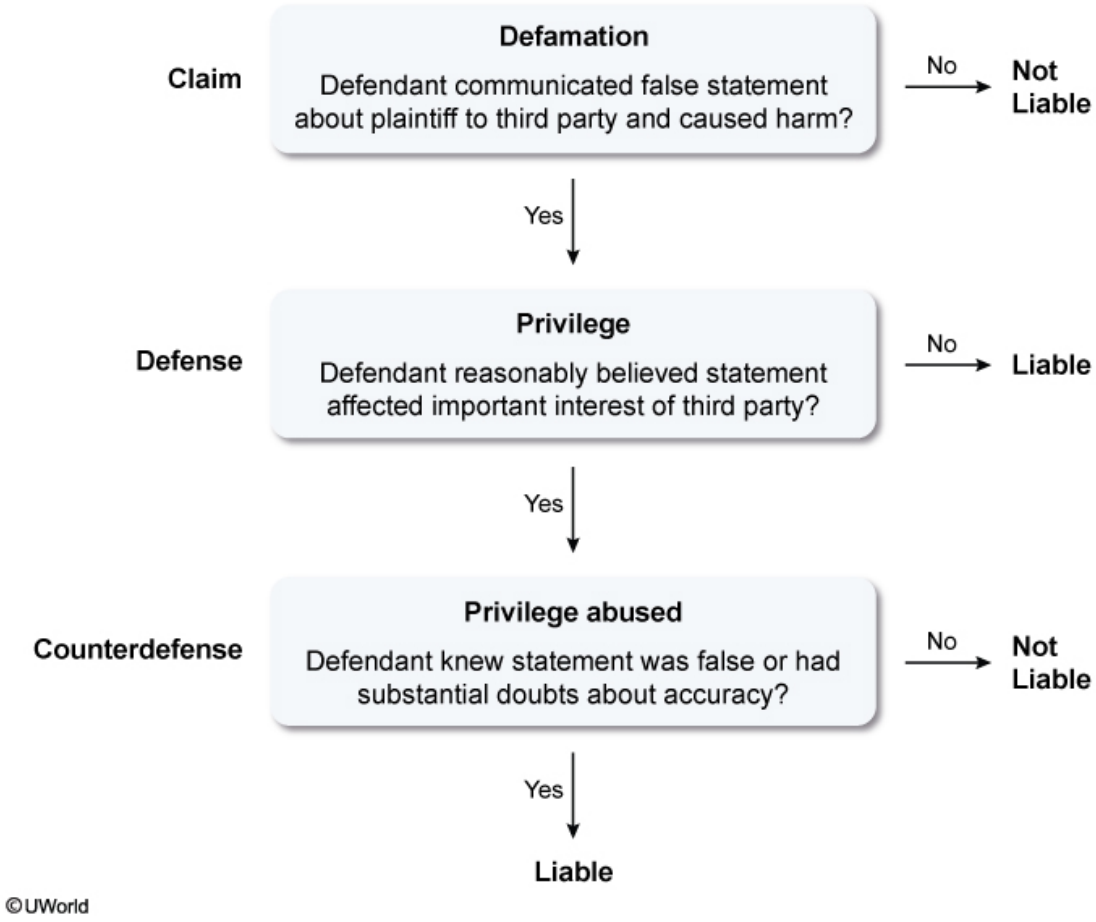
A defamatory statement communicated to a third party is privileged when the defendant reasonably believes that (1) the statement affects an important interest of the third party and (2) the communication is socially acceptable. This privilege is lost if the defendant knows that the statement is false or recklessly disregards that possibility.

References

Restatement (Second) of Torts § 558 (Am. Law Inst. 1977) (elements of defamation).

Restatement (Second) of Torts § 595 (Am. Law Inst. 1977) (statements made to protect third party's interest).

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A newspaper printed an article that stated: "The popular restaurant on the town square has closed its doors. The restaurant's employees have said that the closing resulted from the owner's belief that the restaurant's general manager has embezzled thousands of dollars from the restaurant over the last several years. A decision on reopening the restaurant will be made after the completion of an audit of the restaurant's books."

The restaurant's general manager brought a libel action against the newspaper based on the publication of this article. The parties stipulated that the general manager never embezzled any funds from the restaurant.

The case went to trial before a jury. The newspaper filed a motion for a directed verdict at the close of the evidence.

Why should the court grant the motion?

A. The evidence is not clear and convincing that the newspaper published the article with "actual malice."

B. The record contains no evidence that the general manager suffered special harm as a result of the publication.

C. The record contains no evidence that the newspaper was negligent as to the truth or falsity of the charge of embezzlement.

D. The record contains uncontradicted evidence that the article accurately reported what the employees told the newspaper.

Explanation:

Libel is defamation that appears in **written or other physical form**. To prevail in a suit for libel, the plaintiff must prove all of the following:

The defendant **knowingly made a false statement** about the plaintiff OR **negligently failed to determine its falsity** (ie, failed to use reasonable care).

That type of statement would tend to harm the plaintiff's reputation.

The defendant intentionally or negligently communicated that statement to a third party.

If the plaintiff fails to present **legally sufficient evidence** to support all of these elements at trial (ie, no reasonable jury could find in the plaintiff's favor), the court should grant the defendant's motion for a **directed verdict**.

Here, the newspaper falsely reported that the general manager had embezzled thousands of dollars in a published article. But there is no evidence that the newspaper knew or negligently failed to determine that the embezzlement charge was false since it used *reasonable care* by consulting with former restaurant employees about that charge. As a result, the court should grant the newspaper's motion for a directed verdict.

(Choice A) A libel claim brought by a public figure or official (eg, celebrity, politician) requires *clear and convincing evidence* that the defendant made a statement with actual malice—knowledge or reckless disregard of the statement's falsity. But a claim brought by a private person (eg, the general manager) only requires proof by a *preponderance of the evidence* that the defendant knew or negligently failed to determine the statement's truth.

(Choice B) Libel (written defamation) does not require proof of special harm (ie, monetary loss), so the fact that the general manager suffered no special harm does not defeat his libel claim. In contrast, special harm must be proven for slander (spoken defamation).

(Choice D) A defamation claim can be brought against *any person* who communicates a false statement to a third party (ie, a person who repeats a defamatory statement is just as liable as the original defamer). Therefore, the newspaper could be liable for defamation even if its article merely reported the employees' comments.

Educational objective:

Libel requires proof that the defendant (1) knowingly communicated a false statement about the plaintiff to a third party *or* (2) negligently failed to determine the statement's falsity (ie, no reasonable care used to determine its truth).

References

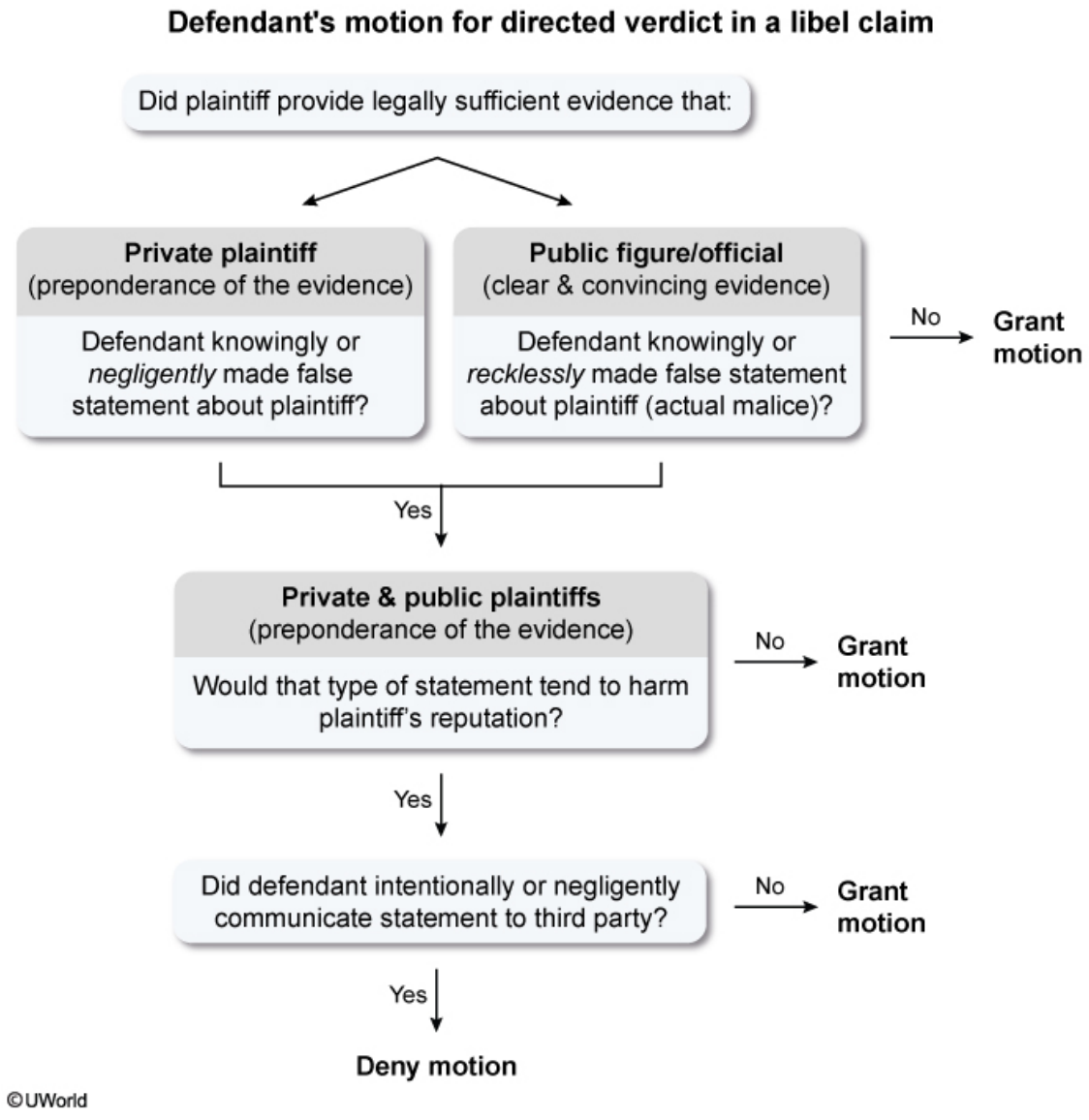
Restatement (Second) of Torts § 558 (Am. Law Inst. 1977) (elements of defamation).

Restatement (Second) of Torts § 580B (Am. Law Inst. 1977) (knowing or negligent statement of falsity).

Fed. R. Civ. P. 50(a) (judgment as a matter of law).

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A hotel company owns and operates a beachfront hotel. Under a contract with the city to restore a public beach, a dredging company placed a large and unavoidably dangerous stone-crushing machine on the city's land near the hotel. The machine creates a continuous and intense noise that is so disturbing to the hotel guests that they have canceled their hotel reservations in large numbers, resulting in a substantial loss to the hotel company.

The hotel company's best chance to recover damages for its financial losses from the dredging company is under the theory that the operation of the stone-crushing machine constitutes which of the following?

A. A private nuisance.

B. A trespass.

C. An abnormally dangerous activity.

D. Negligence.

Explanation:

Damages for private nuisance

Compensatory	Property damage (eg, repair cost, depreciation)
	Personal injury (eg, sickness, loss of consortium)
	Emotional distress (requires personal injury in some jurisdictions)
	Deprivation of use & enjoyment of property (ie, personal discomfort, inconvenience, annoyance)
	Financial loss (eg, lost business)
Punitive	Available when interference was intentional, willful, or malicious

Liability for **private nuisance** arises when the defendant's **interference** with the use and enjoyment of the plaintiff's property is both:

substantial – offensive, annoying, or intolerable to a normal person in the community *and*
unreasonable – the severity of the plaintiff's harm outweighs the utility of the defendant's conduct.
Once these elements are met, the plaintiff can recover **damages for *any* type of harm** caused by the interference—including financial loss (eg, lost business).

Here, the dredging company interfered with the use and enjoyment of the hotel company's property when it placed a stone-crushing machine that created a continuous and intense noise nearby. The interference was likely substantial since it caused many hotel guests to cancel their reservations. And if that interference was also unreasonable—ie, if the hotel company's financial losses outweighed the utility of restoring the public beach—then the company could recover damages for its financial losses under the theory of private nuisance.

(Choice B) Trespass requires proof that the defendant intentionally *entered* the plaintiff's property without his/her consent. Here, since the dredging company's interference was caused by noise (not by an entry onto the hotel company's property), the dredging company is not liable for trespass.

(Choice C) A defendant who engages in an abnormally dangerous activity is strictly liable (ie, liable regardless of fault) for *physical harm* caused by a hazard that made the activity abnormally dangerous. Here, though the machine's operation was unavoidably (and possibly abnormally) dangerous, the hotel company cannot recover under this theory since it only suffered financial loss—not physical harm (eg, property damage, bodily harm).

(Choice D) The *economic loss rule* eliminates negligence liability for financial harm unaccompanied by physical harm. And since the hotel company is only seeking damages for financial harm—not physical harm such as property damage—it cannot recover under this theory.

Educational objective:

Private nuisance—a substantial and unreasonable interference with the use and enjoyment of the plaintiff's property—allows the plaintiff to recover damages for any type of harm, including financial loss.

References

Restatement (Second) of Torts § 822 (Am. Law Inst. 1979) (private nuisance liability).

Restatement (Second) of Torts § 821F (Am. Law Inst. 1979) (substantial harm requirement).

Restatement (Second) of Torts § 826 (Am. Law Inst. 1979) (unreasonable interference requirement).

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A retired couple had lived in their home in a residential neighborhood for 20 years when a large family moved into the house next door and built a swimming pool in the backyard. The family's four young children frequently played in the pool after school. They often were joined by other neighborhood children. The retired couple was in the habit of reading and listening to classical music in the afternoons. Sometimes the couple took naps. The boisterous sounds of the children playing in the pool disturbed the couple's customary enjoyment of quiet afternoons.

In a nuisance action for damages against the family, is the couple likely to prevail?

A. No, because the children's interest in healthy play has priority over the couple's interest in peace and quiet.

B. No, unless the noise constituted a substantial and unreasonable disturbance to persons of normal sensibilities.

C. Yes, because the couple's interest in the quiet enjoyment of their home takes precedence in time over the family's interests.

D. Yes, if the children's noise constituted a substantial interference with the couple's use and enjoyment of their home.

Explanation:

A plaintiff can sue for **private nuisance** when a person interferes with the plaintiff's **use and enjoyment of his/her property**. To prevail in that suit, the plaintiff must show that the **interference** was both:

substantial – offensive, annoying, or intolerable to a **normal person** in the community *and*

unreasonable – the severity of the plaintiff's harm outweighed the utility of the defendant's conduct.

An interference is **not substantial** if the plaintiff's **unusual sensitivity** causes him/her to regard the interference as offensive, annoying, or intolerable when a person with normal sensibilities would not.

Here, the boisterous sounds of the family's children playing next door interfered with the couple's enjoyment of quiet afternoons at home. But the couple will not prevail on their nuisance claim unless that interference was both substantial (eg, residents with normal sensibilities would be annoyed) *and* unreasonable (ie, the severity of the couple's harm outweighs the utility of the children's conduct) **(Choice D)**.

(Choice A) The children's interest in healthy play (utility) does not necessarily have priority over the couple's interest in peace and quiet (harm) since courts weigh multiple factors to determine whether an interference was unreasonable. And even if the interference was unreasonable, the couple will prevail only if the interference was also substantial.

(Choice C) Courts may consider precedence in time (ie, whether the plaintiff came to the nuisance) when determining if a nuisance is actionable. Therefore, the fact that the couple's interest in the quiet enjoyment of their home takes precedence in time over the family's interests helps show that the couple's claim is *actionable*. But they will only *prevail* if the children's interference was substantial and unreasonable.

Educational objective:

An interference with the plaintiff's use and enjoyment of his/her property is not substantial—and will not support a private nuisance claim—unless a person with normal sensibilities would regard the interference as offensive, annoying, or intolerable.

References

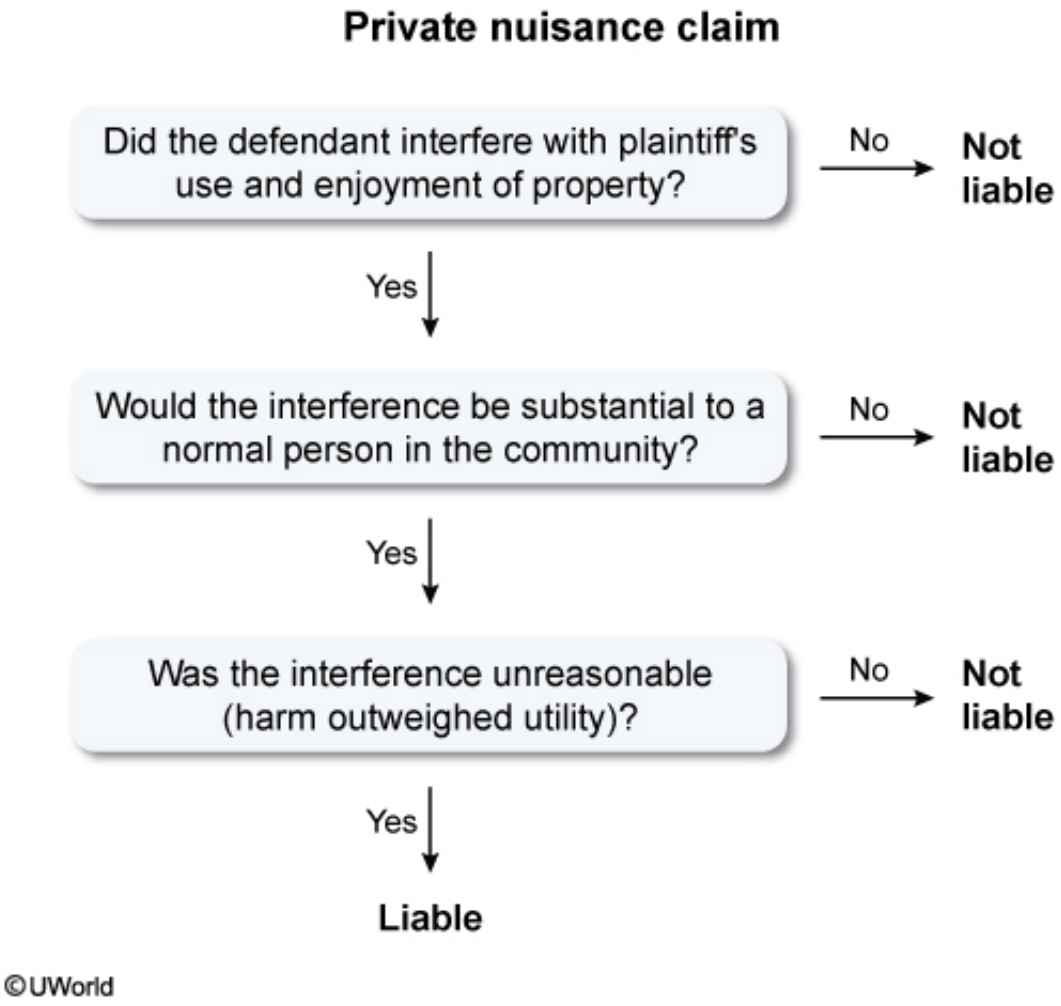
Restatement (Second) of Torts §§ 821D, 822 (Am. Law Inst. 1979) (private nuisance).

Restatement (Second) of Torts § 821F (Am. Law Inst. 1979) (substantial harm requirement).

Restatement (Second) of Torts § 826 (Am. Law Inst. 1979) (unreasonable interference requirement).

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A buyer bought a large, nicely kept house near a university campus. She was able to buy the house for a very good price because it was located directly across the street from a fraternity house known for its frequent late-night parties. The buyer knew of the fraternity's reputation before she bought the house.

The reputation was well deserved, and the buyer found the noise from the parties extremely unpleasant and disruptive.

The buyer has asked an attorney for legal advice regarding a possible nuisance claim against the fraternity.

Which of the following responses would best express the applicable law?

A. "You have no nuisance claim, because the fraternity members have the right to use their property as they please."

B. "You have no nuisance claim, because you came to the nuisance."

C. "You might have a nuisance claim, but the fact that you bought the house fully aware of the fraternity's habitual late-night activities will count against your claim and could help defeat it."

D. "You will be able to recover damages in a nuisance action, because the late-night activities of the fraternity members violate your right to the quiet enjoyment of your property."

Explanation:

Liability for **private nuisance** arises when the defendant's **interference** with the plaintiff's use and enjoyment of his/her property was both:

substantial – offensive, annoying, or intolerable to a normal person in the community *and*

unreasonable – the severity of the plaintiff's harm outweighs the utility of the defendant's conduct.

But if the plaintiff **came to the nuisance** (ie, acquired or improved property next to a known nuisance), then the court will consider this factor in determining **whether the nuisance is actionable** (ie, whether the plaintiff can recover for the nuisance).

Here, the buyer might have a private nuisance claim since the fraternity's late-night parties were extremely unpleasant and disruptive to her at home (substantial and unreasonable interference). But since she bought her home knowing the fraternity's reputation for late-night parties (ie, she came to the nuisance), this fact will count against her claim and could help defeat it.

(Choice A) Landowners have the right to use their property in any *reasonable* way—not in any way they please. Therefore, the buyer could prevail on her nuisance claim if the fraternity's activities were *unreasonable* and substantially interfered with the use and enjoyment of her home.

(Choice B) The fact that the buyer came to the nuisance is a factor in determining whether the nuisance is actionable but does not bar her claim.

(Choice D) Even if the fraternity's activities violate the buyer's right to enjoy her property, the fact that she knew the fraternity's reputation (ie, she came to the nuisance) could help defeat her claim.

Educational objective:

Coming to the nuisance—ie, acquiring or improving property next to a known nuisance—does not bar a nuisance claim. However, the court will consider this factor in determining whether the plaintiff can recover.

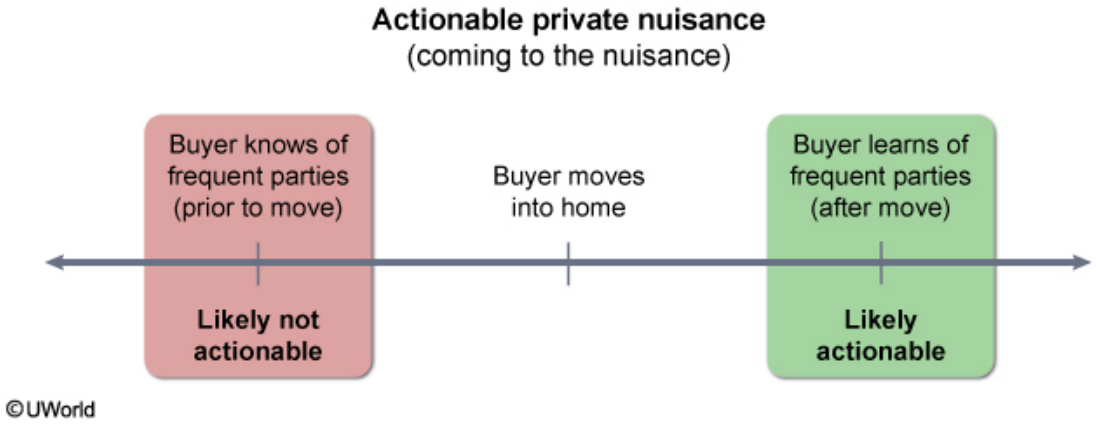
References

Restatement (Second) of Torts § 821D (Am. Law Inst. 1979) (private nuisance).

Restatement (Second) of Torts § 840D (Am. Law Inst. 1979) (coming to the nuisance).

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Actionable private nuisance
(coming to the nuisance)
Buyer knows of frequent parties (prior to move)
Buyer moves into home
Buyer learns of frequent parties (after move)
Likely not actionable
Likely actionable
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A female quarterback was the only female on an otherwise all-male college football team. During training one day, one of the team's offensive linemen saw the female quarterback hidden behind the bleachers, injecting herself with a needle. The lineman immediately told the football team's coach that he had just seen the female quarterback injecting herself with steroids. The female quarterback was diabetic and had actually been injecting insulin into her arm when the lineman saw her behind the bleachers. However, not knowing this, the coach suspended the female quarterback from the team.

If the female quarterback files a defamation suit against the lineman, who is likely to prevail?

A. The female quarterback, because she is a private person and this is not a matter of public concern.

B. The female quarterback, because the statement was false and the lineman was negligent in making it.

C. The lineman, because he was not acting with actual malice.

D. The lineman, because there was no publication.

Explanation:

Because defamation consists of speech, the Supreme Court has decided that the First Amendment imposes a fault requirement in cases involving public officials, public figures, and matters of public concern. But if the plaintiff is a private person and the defamatory statement involves a matter of private concern (as seen here), the constitutional requirements do not apply **(Choice A)**.

However, most states require at least negligence by the defendant for all defamation actions. Accordingly, the following elements must generally be proved in all actions for **defamation of a private person**:

The defendant **knowingly made a false statement** about the plaintiff or **negligently failed to determine its falsity**.

The statement was defamatory, meaning that the type of statement would tend to harm the plaintiff's reputation.

The defendant published the statement by intentionally or negligently communicating it to a third party.

The statement caused the plaintiff special damage* OR amounted to libel or slander per se.

Here, the lineman falsely told the coach (publication) that the female quarterback was injecting herself with steroids (defamatory statement), and she was suspended from the team as a result (special damage). Since the lineman made no effort to check the accuracy of his statement first, he was likely negligent in making it. Therefore, the female quarterback is likely to prevail in her defamation suit.

*Special damage requires proof that a third party heard the defendant's defamatory comment and then acted adversely to the plaintiff. Most often, special damage involves an economic loss to the plaintiff, but it would also include such things as the coach suspending the female quarterback from the team.

(Choice C) In defamation actions by public officials or public figures (not seen here), the plaintiff is constitutionally required to prove that the defendant acted with actual malice. Actual malice is the knowledge of, or reckless disregard for, the falsity of the defamatory statement.

(Choice D) Publication can be *any* form of communication to a third party. Therefore, publication occurred here when the lineman told the coach that he had seen the female quarterback injecting herself with steroids.

Educational objective:

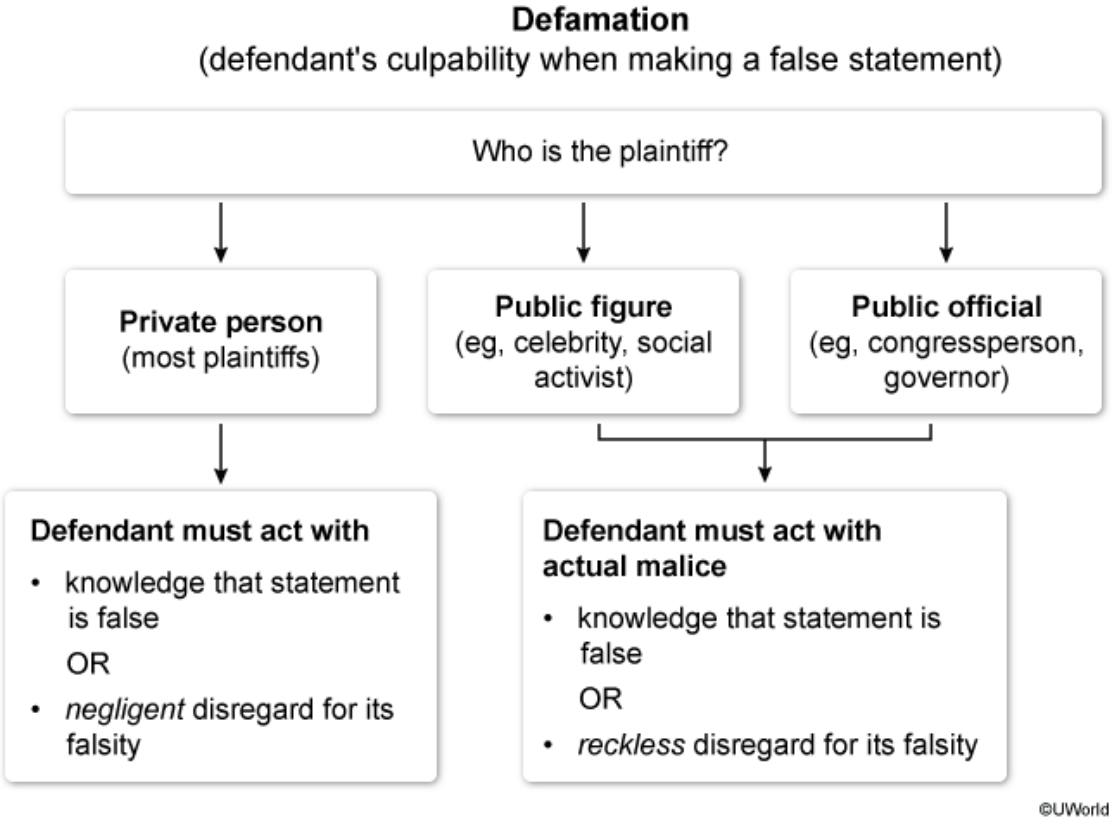
In defamation actions by private persons, the level of fault required is that the defendant knowingly made a false statement about the plaintiff or negligently failed to determine its falsity.

References

New York Times v. Sullivan, 376 U.S. 254, 283–84 (1964) (holding that the First Amendment affects the plaintiff's right to recover under the common law tort of defamation).

Restatement (Second) of Torts §§ 580A, 580B (Am. Law Inst. 1981) (explaining the fault requirement for defamation of public or private person).

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A venture capitalist read through a publicly held corporation's most recent financial statement, which was available on the corporation's website. The corporation's financial statement disclosed that the book value of the corporation's stock was $10 per share, but its actual value is $50 per share. The venture capitalist also noticed that the corporation had invested heavily to develop a new social media platform over the previous year. After doing more research, she became convinced that this platform would become extremely popular and would, in turn, drive up the price of the corporation's stock.

The venture capitalist approached one of the corporation's shareholders whom she had never met. She offered to buy his 500 shares at $15 a share. The shareholder said that he thought that the shares were worth more. The venture capitalist did not respond. Eventually, the shareholder agreed to the venture capitalist's price for the 500 shares. Two months after this sale, the shareholder learned about the actual value of the stock and the corporation's investment in the new social media platform.

The shareholder asserted a misrepresentation claim against the venture capitalist.

Will the shareholder likely prevail on his claim?

A. No, because the shareholder had access to the corporation's most recent financial statement at the time of the sale.

B. No, because the venture capitalist had no duty to disclose the shares' actual value.

C. Yes, because the venture capitalist had a duty to disclose the shares' actual value when she made the offer.

D. Yes, because the venture capitalist had a duty to disclose the shares' actual value when the shareholder commented about their actual worth.

Explanation:

Liability for **misrepresentation** generally arises when a defendant actively misrepresents a material fact. However, nondisclosure of a **material fact** will also subject a defendant to liability if the defendant had a **duty to disclose** it. This duty arises when the defendant is engaged in a **business transaction** with a plaintiff who is:

in a **fiduciary relationship** with the defendant

likely to be misled by the defendant's prior statements *or*

mistaken about a basic fact of the transaction that the defendant is aware of and can **reasonably be expected to disclose**.

Here, the venture capitalist knew that her offer to buy the shareholder's shares of the corporation's stock was less than their actual value (material fact) but did not disclose that information to the shareholder. However, she had *no duty* to disclose it because:

the parties had just met (no fiduciary relationship)

she only offered to purchase his shares and made no misleading statement before or after his comment about their actual worth **(Choice D)** *and*

she could not reasonably be expected to reveal that her offer was low because people routinely try to buy stocks for as little as possible to increase the value of the purchase in the long run **(Choice C)**.

Therefore, the shareholder likely will not prevail on his misrepresentation claim.

(Choice A) The fact that the shareholder had access to the corporation's financial statement would not have defeated his misrepresentation claim had the venture capitalist owed him a duty to disclose that information—eg, had the venture capitalist been his financial advisor (fiduciary relationship).

Educational objective:

A defendant must disclose material facts during a business transaction with a plaintiff who is (1) in a fiduciary relationship with the defendant, (2) likely to be misled by the defendant's prior statements, or (3) mistaken about a basic fact of the transaction that the defendant is aware of and can reasonably be expected to disclose.

References

Restatement (Second) of Torts § 551 (Am. Law Inst. 1977) (liability for nondisclosure).

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Duty to disclose material facts

Fiduciary relationship
(attorney-client)



Misled by prior statements
(car for sale "in mint condition" later sustains damage)



Mistaken about basic facts
(seller must disclose that house has termites)



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A man lives in a small community where there is only one judge. The man recently lost a highly publicized court case that had been adjudicated by her, and he was convinced that she had issued an unfair judgment. As the man left the courthouse, he made this statement to a reporter: "Judges are crooks, and they will accept bribes if you pay them enough!" The statement was subsequently printed in the local newspaper.

The judge had never accepted a bribe, and after reading the statement in the newspaper, she filed a defamation action against the man.

Will the judge be likely to prevail?

A. No, because the defamatory language applied to judges in general.

B. No, because the man's statement did not cause the judge actual harm.

C. Yes, because a reasonable person would conclude that the man's statement referred to the judge.

D. Yes, because the statement was published in the local newspaper.

Explanation:

When a defendant's defamatory statement applies to a **group** of people, the general rule is that no member of the group can recover for defamation. This is because a reasonable person who hears or reads the statement would not conclude that it refers to a specific member of the group. However, an **individual member** can maintain a **defamation action if**:

the **group is so small** that a reasonable person would conclude that the statement refers to that member *or*

the **circumstances of publication** would cause a reasonable person to conclude that the statement **refers to the member**.

Here, the man told the reporter that "judges" are crooks who accept bribes. Although this defamatory statement did not identify the judge by name, it was made in a community with one judge as the man was leaving the courthouse after a highly publicized trial. As a result, the circumstances of publication reasonably give rise to the conclusion that the statement was a reference to this particular judge and not judges in general **(Choice A)**. For this reason, the judge will likely prevail in her defamation action.

(Choice B) Defamation generally requires proof that the statement caused the plaintiff special damage, typically monetary loss. However, harm is *presumed* when the statement is slanderous per se—eg, accuses the plaintiff of engaging in conduct that adversely affects the plaintiff's occupation (as seen here).

(Choice D) Publication occurs when a defamatory statement is transmitted to a third party. Therefore, publication occurred here when the man made the statement to a reporter—not when it was published in the newspaper.

Educational objective:

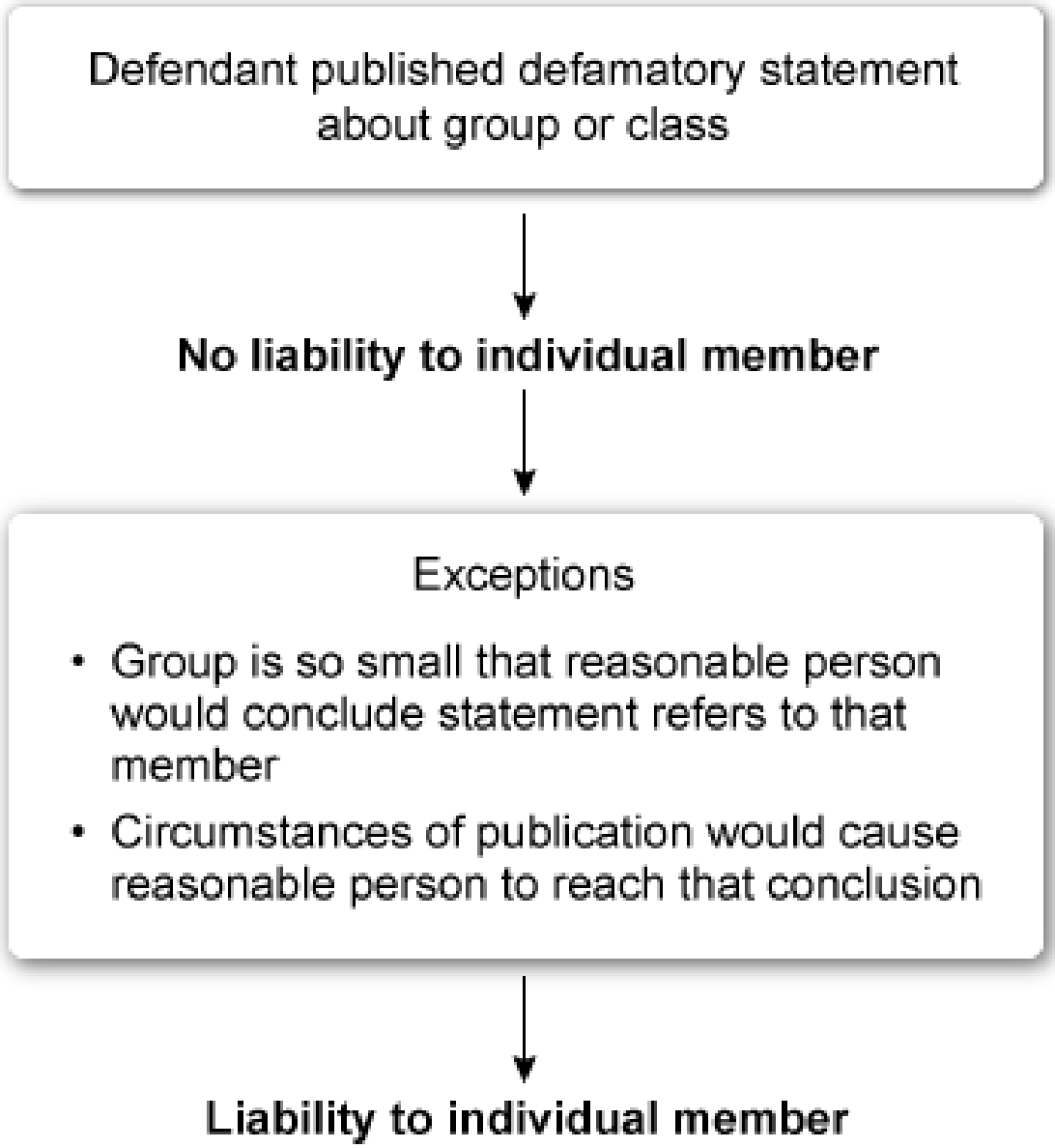
A defendant who makes a defamatory statement about a group of people is liable to an individual member of that group only if (1) the group is so small that a reasonable person would conclude that the statement refers to that member or (2) the circumstances of publication would cause a reasonable person to reach that same conclusion.

References

Restatement (Second) of Torts § 564A (Am. Law Inst. 1981) (defamation of a group or class).

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Group defamation



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A popular sports magazine published an investigative article detailing the prohibited tactics used by a university football program to recruit and retain top players. The article stated that at least five players had received postgame cash from their coaches based on performance during the game. One of those players, the quarterback, was quoted as saying that he lived "rent-free at the ranch of a booster club member" who had told him, "I'll pay you $400 a week to shoe horses and shovel manure." The quarterback was further quoted as saying, "I never even touched a horse [at the ranch]."

Soon after the article was published, the booster club member was asked to leave the club because of the public outrage created by the article. The booster club member now seeks to file an action against the magazine, alleging that the quarterback did odd jobs to earn his keep and that the magazine had published the article with reckless disregard for its truthfulness.

Under which theory would the booster club member be most likely to recover?

A. Intrusion upon seclusion.

B. Public disclosure of private facts.

C. Publicity in a false light.

D. Slander.

Explanation:

Invasion of privacy

Intrusion upon seclusion	Highly offensive & intentional intrusion on plaintiff's solitude, seclusion, or private affairs
Appropriation of name or likeness	Unauthorized use of plaintiff's name or likeness for personal benefit—eg, commercial advantage
Public disclosure of private facts	Publicity given to highly offensive & private matter concerning plaintiff that is not of legitimate public concern & results in damages
Publicity in a false light	Publicity given to false information about plaintiff with actual malice that places him/her in highly offensive & false light & results in damages

Invasion of privacy based on **publicity in a false light** (recognized in most jurisdictions) requires the following elements:

The defendant **publicized false information** that **placed the plaintiff in a false light** (eg, the magazine published an article falsely stating that the quarterback lived rent-free at the booster club member's ranch, which falsely portrayed the member as someone willing to engage in prohibited recruiting tactics).

The false light would be **highly offensive** to a **reasonable person** (eg, the public was outraged by the booster club member's engagement in prohibited tactics).

The publication was made with **actual malice** (eg, the magazine published the article with reckless disregard for its truthfulness).

The plaintiff suffered **damages** (eg, the booster club member was asked to leave the club).

Here, all of the elements of publicity in a false light have been satisfied. Therefore, the booster club member is most likely to recover under a false-light theory.

(Choice A) Intrusion upon seclusion requires a highly offensive intrusion on the plaintiff's solitude, seclusion, or private affairs. Here, the magazine interviewed the *quarterback*, who voluntarily spoke about his *own* housing arrangement. This means there was no intrusion upon the private affairs of the booster club member.

(Choice B) Public disclosure of private facts is grounded in the disclosure of *truthful* information about the plaintiff. Here, the booster club member is alleging that the magazine article was *false*. Therefore, he is unlikely to recover for public disclosure of private facts.

(Choice D) Defamation by words written, printed, or otherwise recorded in permanent form is libel. In contrast, defamation by spoken word, gesture, or any form other than libel is slander. Since the publication was made in a magazine article (printed word), it may constitute libel—but not slander.

Educational objective:

Invasion of privacy based on publicity in a false light requires proof that (1) the defendant publicized false information that placed the plaintiff in a false light, (2) the false light would be highly offensive to a reasonable person, (3) the publication was made with actual malice, and (4) the plaintiff suffered damages.

References

Restatement (Second) of Torts § 652E (Am. Law Inst. 1977) (publicity placing person in false light).

New York Times Co. v. Sullivan, 376 U.S. 254, 279–280 (1964) (standard for actual malice).

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A disgruntled science teacher had recently been fired from her job at the local high school. She told a parent, who was the communications chairperson for the high school's parent-teacher organization, that the principal was having an affair with the married assistant principal. The parent immediately sent a group email to all of the parents at the high school that included the following statement: "I'm not sure if this is true or not, but the science teacher said that the principal is having an affair with the assistant principal!"

The principal, who was not having an affair with the assistant principal, subsequently sued the parent for libel.

Is the principal likely to prevail?

A. No, because the parent expressed a lack of knowledge as to the truthfulness of the science teacher's statement.

B. No, because the parent identified the science teacher as the originator of the statement.

C. Yes, because the original statement made by the science teacher was false.

D. Yes, because the parent repeated a defamatory statement.

Explanation:

Libel is defamation in words that are **written, printed, or otherwise recorded** in permanent form. Most courts addressing the issue have held that **email messages** are categorized as libel. A libel claim requires proof of the following:

The defendant knowingly made a false statement about the plaintiff or negligently failed to determine its falsity.

The statement was defamatory, meaning that the statement would have a general tendency to harm the plaintiff's reputation.

The defendant published the statement by intentionally or negligently communicating it to a third party.

A **third party who repeats** (ie, republishes) a defamatory statement to someone else is **independently liable** for defamation. This is true even if the republisher identifies the originator of the statement and expresses a lack of knowledge as to its truthfulness.*

Here, the science teacher's statement to the parent, whether knowingly or negligently made, was false and harmful to the principal's reputation at the school. The parent then repeated the defamatory statement to all of the parents at the high school via email. Although the parent identified the science teacher as the statement's originator and expressed a lack of knowledge as to its truthfulness, the republication makes the parent liable for defamation. Therefore, the principal is likely to prevail in his libel suit **(Choices A, B & C)**.

*Note that secondary publishers who merely disseminate material published by others (eg, bookstores, newspaper vendors) are liable only if they know or should know of the defamatory statements in the material.

Educational objective:

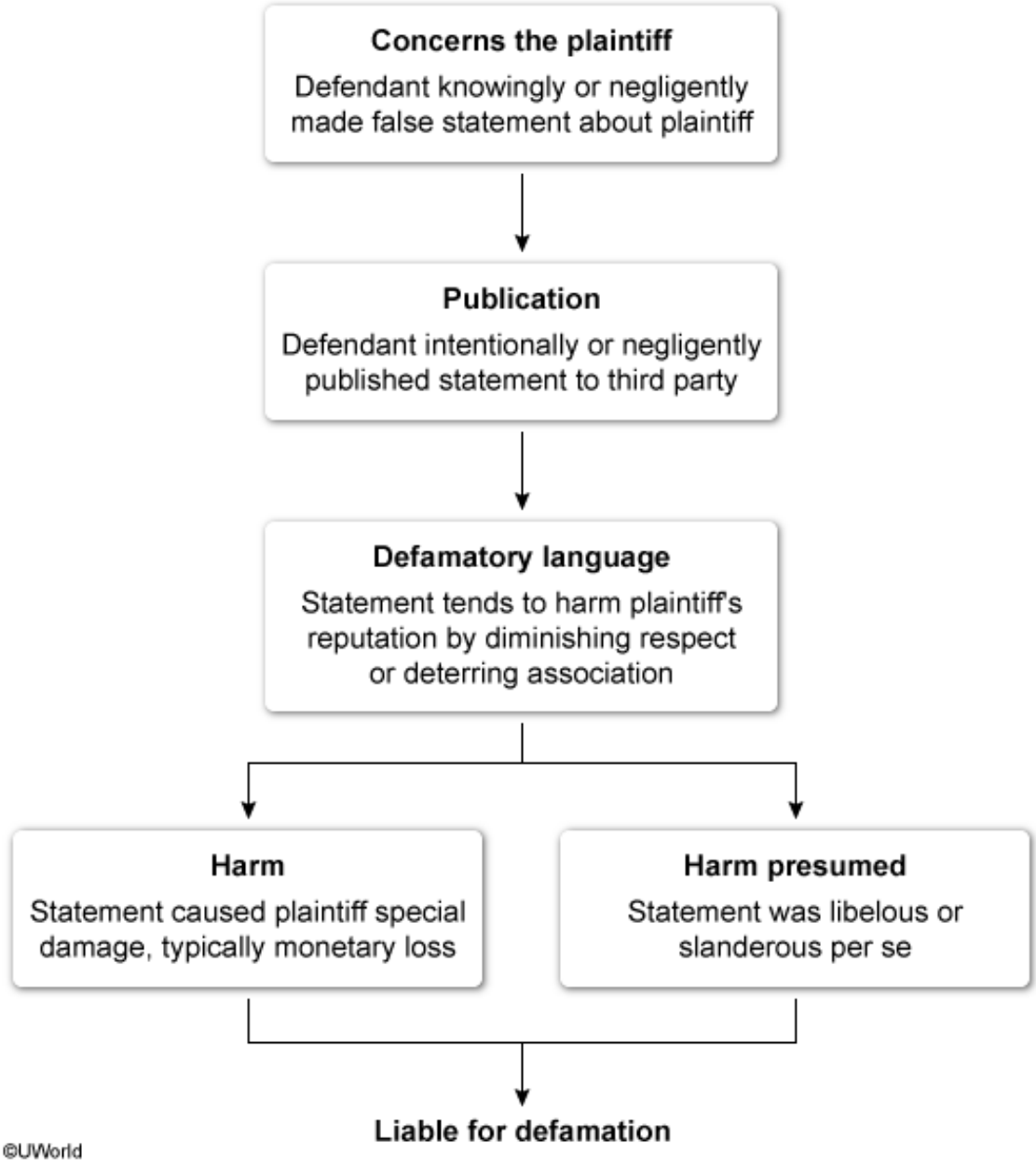
A third party who repeats (ie, republishes) a defamatory statement to someone else is liable for defamation even if the republisher identifies the originator of the statement and expresses a lack of knowledge as to its truthfulness.

References

Restatement (Second) of Torts § 578 (Am. Law Inst. 1981) (republisher's liability for defamation).

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Defamation liability



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The governor of State A signed a death warrant for a convicted murderer. At a demonstration protesting the execution of the murderer, two opponents of the death penalty carried large signs that stated, "The governor is a murderer!" A television station broadcasted news coverage of the demonstration, including pictures of the signs carried by the two protestors. The broadcast caused the governor severe emotional distress.

If the governor asserts a defamation claim against the television station, will he prevail?

A. No, if the only reasonable interpretation of the signs was that the term "murderer" was intended as a characterization of one who would sign a death warrant.

B. No, unless the governor proves he suffered pecuniary loss resulting from harm to his reputation proximately caused by the protestors' signs.

C. Yes, because the signs would cause persons to hold the governor in lower esteem.

D. Yes, if the governor proves that the television station showed the signs with knowledge of falsity or reckless disregard of the truth that the governor had not committed homicide.

Explanation:

Defamatory statements

Statements that would tend to harm plaintiff's reputation by either:

lowering plaintiff's standing in community (eg, allegations challenging plaintiff's integrity or financial reputation) *or*
deterring third parties from associating or dealing with plaintiff (eg, allegations that plaintiff is insane or diseased)

Defamation can be either slander (spoken statements) OR **libel** (statements made in physical form or that appear on radio or **television**—as seen here). When a defamation claim based on libel is brought by a public official or public figure, he/she must prove all of the following:

The defendant made a false statement about the plaintiff with actual malice—knowledge or reckless disregard of the statement's falsity.

That type of statement would **tend to harm the plaintiff's reputation**.

The defendant intentionally or negligently communicated that statement to a third party.

A statement would only tend to harm the plaintiff's reputation if a third party's **reasonable interpretation** of that statement would tend to do so.

Here, the television station broadcasted pictures of protestors' signs that stated, "The governor is a murderer!" But those signs would *not* tend to harm the governor's reputation if they could only be reasonably interpreted to mean that a person who signs a death warrant should be characterized as a murderer—not that the governor actually committed murder. In that case, the governor's defamation claim would fail.

(Choice B) Libel does not require proof of pecuniary loss (ie, financial harm). Instead, the governor's claim would fail if a reasonable interpretation of the protestors' signs would not harm his reputation.

(Choice C) Even if the signs would cause persons to hold the governor in lower esteem (ie, harm his reputation), the governor (public official) can only prevail if he also proves that the television station acted with actual malice.

(Choice D) Assuming that the governor proves that the television station knew that the signs were false or recklessly disregarded their falsity (actual malice), he would still have to prove that a third party's reasonable interpretation of those signs would tend to harm his reputation.

Educational objective:

A plaintiff can only recover for libel (defamation in physical form or that appears on radio or television) if a third party's reasonable interpretation of the defendant's statement would tend to harm the plaintiff's reputation.

References

Restatement (Second) of Torts § 558 (Am. Law Inst. 1977) (elements of defamation).

Restatement (Second) of Torts § 568 (Am. Law Inst. 1977) (libel and slander distinguished).

Restatement (Second) of Torts § 580A (Am. Law Inst. 1977) (defamation of public official or public figure).

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A well-known movie star was drinking a vineyard's wine at a nightclub. A bottle of the vineyard's wine, with its label plainly showing, was on the table in front of the movie star. An amateur photographer asked the movie star if he could take his picture and the movie star said, "Yes." Subsequently, the photographer sold the photo to the vineyard. The vineyard, without the movie star's consent, used the photo in a wine advertisement in a nationally circulated magazine. The caption below the photo stated, "A movie star enjoys the vineyard's wine."

If the movie star sues the vineyard to recover damages as a result of the vineyard's use of the photograph, will the movie star prevail?

A. No, because the movie star consented to being photographed.

B. No, because the movie star is a public figure.

C. Yes, because the vineyard made commercial use of the photograph.

D. Yes, unless the movie star did, in fact, enjoy the vineyard's wine.

Explanation:

To recover damages for an **invasion of privacy** claim based on **appropriation of name or likeness** (ie, misappropriation of the right to publicity), the plaintiff must prove that the defendant:

used the plaintiff's picture, name, or likeness **without authorization** *and* **obtained a benefit** (typically a commercial advantage—eg, advertising) from that use.

Here, the vineyard used the movie star's photo in an advertisement in a nationally circulated magazine. Although the movie star consented to being photographed, he did not authorize the vineyard to use his photo **(Choice A)**. And since the vineyard made commercial use of that photo (wine advertisement) without authorization, the movie star will recover damages from the vineyard.

(Choice B) Public figures have the same right to control the use of their identities as anyone else, so the fact that the movie star is a public figure does not preclude his recovery. Instead, this fact strengthens his claim by establishing the commercial value (ie, benefit) of using his identity.

(Choice D) Truth is a defense to an invasion of privacy claim based on *publicity in false light*, which requires proof that the defendant published false information about the plaintiff. But truth is no defense here since falsity is not an element of *appropriation of name or likeness*. Therefore, the movie star will recover even if the photo caption truthfully claimed that he enjoyed the vineyard's wine.

Educational objective:

Invasion of privacy based on appropriation of name or likeness requires proof that the defendant (1) used the plaintiff's name, picture, or likeness without his/her authorization and (2) obtained a benefit—typically a commercial advantage.

References

Restatement (Second) of Torts § 652C (Am. Law Inst. 1977) (appropriation of name or likeness).

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Appropriation of name or likeness (benefit requirement)



Name / likeness used for advertisement
=
benefit



Name / likeness used for news
≠
benefit

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A 15-year-old boy was killed during a gang fight. Two days after his funeral, the boy's mother saw a television program about gang violence and was shocked to see video of herself weeping over the boy's body. The video had been shot by the television reporting team while the boy's body was still lying on a public street. The mother suffered severe emotional distress as a result of seeing the video.

If the mother sues the television station for invasion of her privacy and that of her son, will the mother be likely to prevail?

A. No, because a person has no right to privacy after his or her death.

B. No, because the street was open to the public and the subject was newsworthy.

C. Yes, because the mother did not give permission to have the video used in the program.

D. Yes, because the mother suffered severe emotional distress as a result of viewing the video.

Explanation:

There are four theories of recovery for **invasion of privacy**:

intrusion upon seclusion – an intentional intrusion (physical or otherwise) on the plaintiff's solitude, seclusion, or *private affairs* that would be highly offensive to a reasonable person

public disclosure of private facts – publicity given to the plaintiff's *private matter* (1) that does not address a *legitimate public concern*, (2) would be highly offensive to a reasonable person and (3) causes damages

appropriation of name or likeness – the unauthorized use of the plaintiff's name, picture, or likeness for a *personal benefit* (e.g., a monetary advantage)

publicity in a false light – publicity given to *false information* about the plaintiff with actual malice that places him/her in a false light that would be highly offensive to a reasonable person and causes damages

Here, the woman's invasion of privacy claim will likely fail because the video was taken when the woman and son were on a *public* street, so it did not intrude upon their private affairs. Additionally, the video was used to present a *newsworthy topic* and address a legitimate *public concern*—not for personal benefit or to present false information.

(Choice A) A person has a right to privacy against the appropriation of his/her name or likeness—even after death. But since the television station did not use her son's likeness for personal benefit (e.g., for an advertisement), the mother, suing on her dead son's behalf, will not prevail.

(Choice C) Although the mother did not give the television station permission to use the video in its program, her consent was unnecessary because she was in a public place and the video addressed a newsworthy issue.

(Choice D) Evidence of emotional distress alone is insufficient to prove invasion of privacy. The mother must also show some type of intrusion, publicity, or unauthorized use.

Educational objective:

The four theories of recovery for invasion of privacy are: (1) intrusion upon seclusion, (2) appropriation of name or likeness, (3) public disclosure of private facts, and (4) publicity in a false light.

References

Restatement (Second) of Torts §§ 652A–652E (Am. Law Inst. 1977) (invasion of privacy).

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A board-certified vascular surgeon applied for privileges at a newly built hospital to expand his practice. The chief of vascular surgery at the hospital decided to sabotage the surgeon's application in order to maintain exclusive control over the vascular surgery department. The chief told the hospital's board members, who were responsible for reviewing the surgeon's application, that she had received disturbing data about his practice's unusually high patient-mortality rates. She then presented the board with data that she had fabricated. The board was disturbed by the fabricated data and therefore decided to reject the surgeon's application.

As a result of the board's decision to reject his application, the surgeon is unable to perform surgeries at the newly built hospital. The surgeon claims that his practice has suffered pecuniary losses in the form of lost revenue. He has sought the advice of his attorney regarding which action against the chief of vascular surgery is most likely to succeed.

What sort of action against the chief of vascular surgery should the attorney recommend?

A. Intentional interference with an existing contract.

B. Intentional misrepresentation of the mortality rates of the surgeon's practice.

C. Slander of title regarding the ownership of the surgeon's practice.

D. Trade libel for a false statement regarding the surgeon's practice.

Explanation:

Injurious falsehoods

Defamation	False & derogatory statements that harm plaintiff's *personal reputation*
Slander of title	False & derogatory statements that harm or call into question plaintiff's *ownership of real property*
Trade libel	False & derogatory statements that harm plaintiff's *business or products*

Trade libel imposes tort liability for statements (oral or written) that injure a plaintiff's business or products. To recover for trade libel, the plaintiff must prove the following:

The defendant made a **false and derogatory statement** about the **quality of the plaintiff's business or products** (eg, the chief stated that the surgeon's practice had unusually high patient-mortality rates, which reflected poorly on the medical services provided by the surgeon).

The statement was made with **actual malice**, meaning that the defendant knew of or recklessly disregarded its falsity (eg, the chief fabricated the patient-mortality data).

The defendant **intentionally or negligently communicated** the statement to a third party, **knowing** that this **would likely cause** the plaintiff to suffer **pecuniary loss** (eg, the chief presented the data to the hospital's board members to sabotage the surgeon's application).

The plaintiff suffered **pecuniary loss** as a result (eg, the board rejected the surgeon's application, and the surgeon's practice lost revenue as a result).

Therefore, the surgeon's attorney should recommend an action for trade libel against the chief.

(Choice A) A defendant can be liable in tort for intentionally interfering with an existing contract between the plaintiff and a third party. But here, the surgeon and the hospital only had a prospective business relationship, not a valid contract.

(Choice B) Intentional misrepresentation requires proof that the defendant knowingly misrepresented a material fact with the intent to induce the plaintiff's reliance. But here, the chief's misrepresentation was intended to induce the board's (not the surgeon's) reliance, so the surgeon should not assert this claim against the chief.

(Choice C) Slander of title protects against false statements that harm or call into question the plaintiff's ownership of real property (not seen here).

Educational objective:

A defendant may be liable for trade libel if he/she makes a false and derogatory statement about the quality of the plaintiff's business or products with actual malice and communicates the statement to a third party knowing that it will likely cause (and does cause) the plaintiff to suffer pecuniary loss.

References

Restatement (Second) of Torts § 623A (Am. Law Inst. 1977) (injurious falsehoods).

Restatement (Second) of Torts § 626 (Am. Law Inst. 1977) (trade libel).

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For ten years, a woman and her neighbor have owned summer vacation homes on adjoining lots. A stream flows through both lots. As a result of a childhood swimming accident, the woman is afraid of water and has never gone close to the stream.

The neighbor built a dam on his property that has completely stopped the flow of the stream to the woman's property.

In a suit by the woman against the neighbor, will the woman prevail?

A. No, because the woman made no use of the stream.

B. No, if the dam was built in conformity with all applicable laws.

C. Yes, if the damming unreasonably interferes with the use and enjoyment of the woman's property.

D. Yes, if the neighbor intended to affect the woman's property.

Explanation:

Liability for **private nuisance** arises when a defendant's **interference** with the **use and enjoyment of the plaintiff's property** is both:

substantial – offensive, annoying, or **intolerable to a normal person** in the community
and
unreasonable – the severity of the plaintiff's harm outweighs the utility of the defendant's conduct.

Therefore, a plaintiff who is not bothered by an interference with the use and enjoyment of his/her property can still prevail as long as a normal person in the community would find the interference offensive, annoying, or intolerable (ie, the interference is still substantial).

Here, the neighbor's dam interfered with the use and enjoyment of the woman's property by stopping the flow of a stream to her property. Although the woman was afraid of water and made no use of the stream, the interference was still *substantial* since a normal person in her community of summer vacation homes would likely be annoyed by the damming of the stream **(Choice A)**. Therefore, the woman will prevail if the interference was also *unreasonable*.

(Choice B) Although a defendant's compliance with the law is a factor that weighs in favor of a finding that an interference was not unreasonable, compliance with the law is not a complete defense to private nuisance. Therefore, though the dam's conformity with applicable laws weighs in the neighbor's favor, it does not—by itself—defeat the woman's claim.

(Choice D) Private nuisance requires proof that the defendant's conduct was tortious—but not necessarily intentional. So even if the neighbor did not intend to affect the woman's property, the woman could still prevail if the neighbor's conduct was negligent, reckless, or abnormally dangerous.

Educational objective:

Private nuisance is a substantial and unreasonable interference with the use and enjoyment of the plaintiff's property. An interference is substantial if a normal person in the community would find the interference offensive, annoying, or intolerable—even if the plaintiff is not personally bothered by it.

References

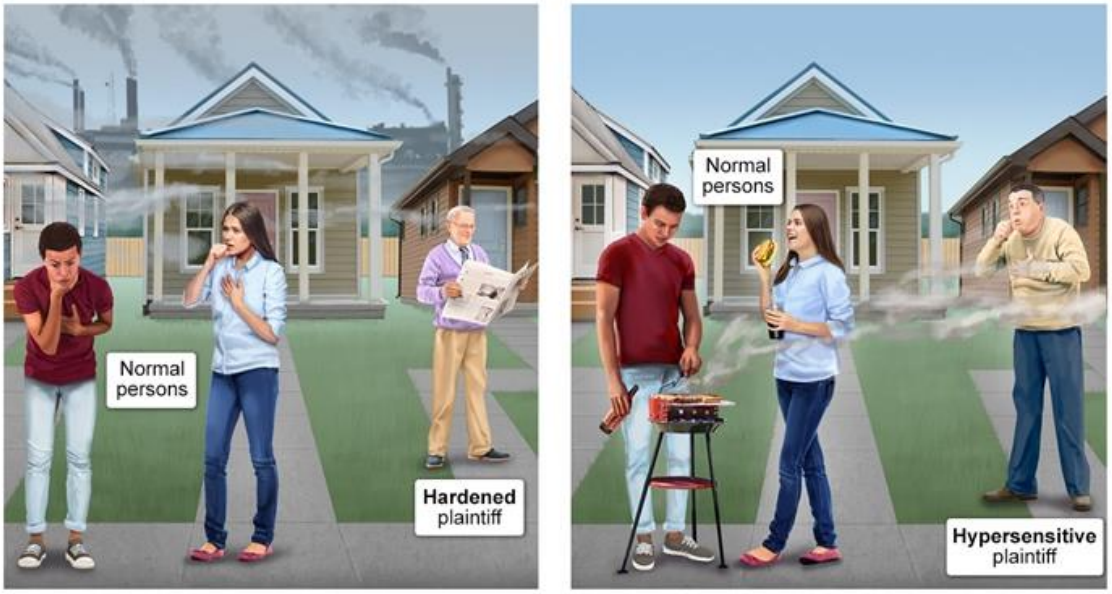
Restatement (Second) of Torts §§ 821D, 822 (Am. Law Inst. 1979) (private nuisance).

Restatement (Second) of Torts § 821F (Am. Law Inst. 1979) (substantial interference requirement).

Restatement (Second) of Torts § 826 (Am. Law Inst. 1979) (unreasonable interference requirement).

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Private nuisance
(substantial interference requirement)



Substantial interference

No substantial interference

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A toy collector attended a flea market at which a variety of second-hand goods were sold. A seller who specialized in dolls also displayed a mechanical bank for sale at a price of $50. Although the collector had no knowledge of the seller, the collector was an expert in such banks and knew that this particular bank was actually worth $10,000. He paid the seller her asking price without any discussion regarding the bank or its value.

If the seller, upon learning of the bank's true value, asserts a tort claim against the collector based on fraud, will the seller be likely to prevail?

A. No, because fraud requires an active misrepresentation.

B. No, because the collector had no duty to disclose the worth of the bank to the seller.

C. Yes, because the bank's true value was 200 times the price paid by the collector.

D. Yes, because the collector was aware of the seller's mistake.

Explanation:

Fraud (ie, intentional misrepresentation) can occur when a defendant actively misrepresents or conceals a material fact. It can also occur when a defendant **fails to disclose a material fact**—but **only if** the defendant had a **duty to disclose** it. There is an affirmative duty to disclose a material fact in three limited circumstances:

The plaintiff has a **fiduciary relationship** with the defendant.

The plaintiff is **likely to be misled** by the defendant's **prior statements**.

The plaintiff is **mistaken about a basic fact** of the transaction that the defendant is aware of and should disclose (in a minority of jurisdictions).

Here, the collector did not know the seller (no fiduciary relationship) and did not discuss the bank or its value with the seller before purchasing it (no prior misleading statements). And though the collector was aware of the seller's mistake about the bank's worth, he would not be expected to correct it—even in a minority jurisdiction—since people are generally entitled to use their superior knowledge or expertise while bargaining **(Choice D)**. Therefore, the collector had no duty to disclose the bank's worth to the seller, and the seller is unlikely to prevail.*

*The outcome would likely be the same even if the collector did have a duty to disclose the bank's true value to the seller because fraud also requires proof that the plaintiff relied on the defendant's misrepresentation. Here, there was no reliance since the seller set the price for the bank before the collector approached her.

(Choice A) Fraud can occur absent an active misrepresentation if the defendant has an affirmative duty to disclose a material fact to the plaintiff (not seen here) but fails to do so.

(Choice C) The difference between the price paid by the collector and the bank's true value has no bearing on the collector's duty of disclosure (or lack thereof).

Educational objective:

An affirmative duty to disclose a material fact exists if the plaintiff is (1) in a fiduciary relationship with the defendant, (2) likely to be misled by the defendant's prior statements, or (3) mistaken about a basic fact of the transaction that the defendant is aware of and should disclose (minority of jurisdictions).

References

Restatement (Second) of Torts § 551 (Am. Law Inst. 1981) (liability for nondisclosure).

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Duty to disclose material facts

Fiduciary relationship
(attorney-client)



Misled by prior statements
(car for sale "in mint condition" later sustains damage)



Mistaken about basic facts
(seller must disclose that house has termites)



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The personnel director of an investment company told a job applicant during an interview that the company was worth millions of dollars and that the company's portfolio would triple in the next several months. The applicant was very excited about the company's prospects and accepted an offer to work for the company. Two days later, the applicant read in the newspaper that the investment company had filed for bankruptcy reorganization. As a result of reading this news, the applicant suffered severe emotional distress, but he immediately found another comparable position.

Is the applicant likely to prevail in an action for negligent misrepresentation?

A. No, because the applicant did not suffer any physical injury or pecuniary loss.

B. No, because the personnel director's statement was purely speculative.

C. Yes, because the applicant relied on the personnel director's misrepresentations about the investment company.

D. Yes, because the personnel director should have foreseen that his misrepresentations would cause the applicant to be distressed.

Explanation:

Liability for **negligent misrepresentation** arises when:

the defendant negligently provides the plaintiff with false information in a **commercial setting** (eg, in the course of the defendant's business or profession) *and*

the plaintiff reasonably relies on that information and suffers **pecuniary loss** (ie, monetary loss)

OR

the defendant negligently provides the plaintiff with false information under circumstances posing a **risk of physical harm** *and*

the plaintiff reasonably relies on that information and suffers **physical harm**.

Here, the personnel director may have negligently misrepresented the company's worth and prospects to the applicant. And the applicant may have reasonably relied on those misrepresentations by accepting an offer to work for the company **(Choice C)**. But since the applicant immediately found a comparable position (no pecuniary loss) and faced no risk of—and did not suffer—physical harm, his claim will likely fail.

(Choice B) Reliance on *purely speculative* information is generally unreasonable. But since the personnel director's statement appeared to include *factual* information (eg, that the company was worth millions of dollars), the applicant's reliance may have been reasonable. Regardless, the applicant will not prevail because he did not suffer the requisite harm.

(Choice D) A victim of negligent misrepresentation can only recover damages for pecuniary loss or physical harm—not *any* foreseeable harm (eg, stand-alone emotional distress). Therefore, whether the personnel director should have foreseen that his misrepresentations would cause the applicant emotional distress is irrelevant.

Educational objective:

Liability for negligent misrepresentation arises when a defendant negligently provides false information to a plaintiff who reasonably relies on that information (1) in a commercial setting and suffers pecuniary loss *or* (2) under circumstances posing a risk of physical harm and suffers physical harm.

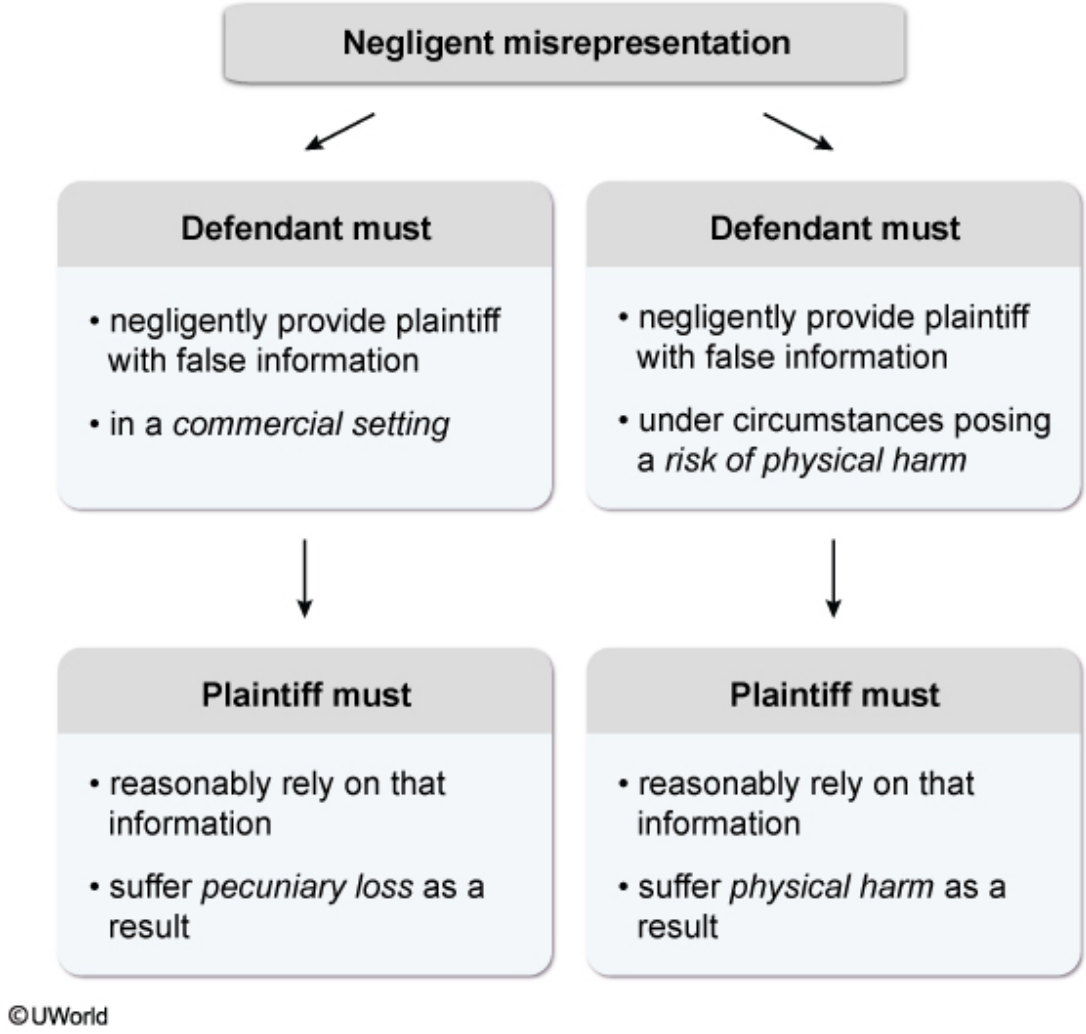
References

Restatement (Second) of Torts § 552 (Am. Law Inst. 1977) (negligent misrepresentation).

Restatement (Second) of Torts § 311 (Am. Law Inst. 1965) (negligent misrepresentation involving risk of physical harm).

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An associate professor in the pediatrics department of a local medical school was denied tenure. He asked a national education lobbying organization to represent him in his efforts to have the tenure decision reversed. In response to a letter from the organization on the professor's behalf, the dean of the medical school wrote to the organization explaining truthfully that the professor had been denied tenure because of reports that he had abused two of his former patients. Several months later, after a thorough investigation, the allegations were proven false, and the professor was granted tenure. He had remained working at the medical school at full pay during the tenure decision review process and thus suffered no pecuniary harm.

In a suit for libel by the professor against the dean of the medical school, will the professor be likely to prevail?

A. No, because the professor invited the libel.

B. No, because the professor suffered no pecuniary loss.

C. Yes, because the dean had a duty to investigate the rumor before repeating it.

D. Yes, because the dean's defamatory statement was in the form of a writing.

Explanation:

Libel is a defamatory statement that appears in **written or other physical form**. To prevail in a suit for libel, the plaintiff must prove all of the following:

The defendant knowingly made a false statement about the plaintiff *or* negligently failed to determine its falsity.

That type of statement would tend to harm the plaintiff's reputation.

The defendant intentionally or negligently communicated that statement to a third party (the key to a defamation claim).

However, consent (apparent, actual, or implied) is a **complete defense** to defamation. **Apparent consent** exists when the plaintiff's words or conduct were **reasonably understood** by the defendant as consent to the defamatory communication.

Here, the dean's written response to the organization may have been libelous since it contained false allegations that the professor had abused patients. But since the professor had authorized the organization to investigate his case, it was *reasonable* for the dean to understand that the professor had invited a response to the organization's inquiry (apparent consent). Therefore, the dean has a valid defense and the professor's claim will likely fail.

(Choice B) Although pecuniary loss is an element of slander (spoken defamation), it is not required for libel (written defamation) since harm is presumed. Therefore, the fact that the professor suffered no pecuniary loss would not defeat his libel claim.

(Choice C) Even if the dean had a duty to investigate the rumor before repeating it (and breached that duty by negligently failing to determine its falsity), the professor will not prevail because the dean has a valid defense to libel (apparent consent).

(Choice D) Although the dean's defamatory statement appeared in physical form (libel) as a written response to the organization's inquiry, the professor will not prevail because he gave the dean apparent consent to respond to that inquiry.

Educational objective:

Apparent consent is a defense to defamation when the plaintiff's words or conduct were reasonably understood by the defendant to indicate consent to the defamatory communication.

References

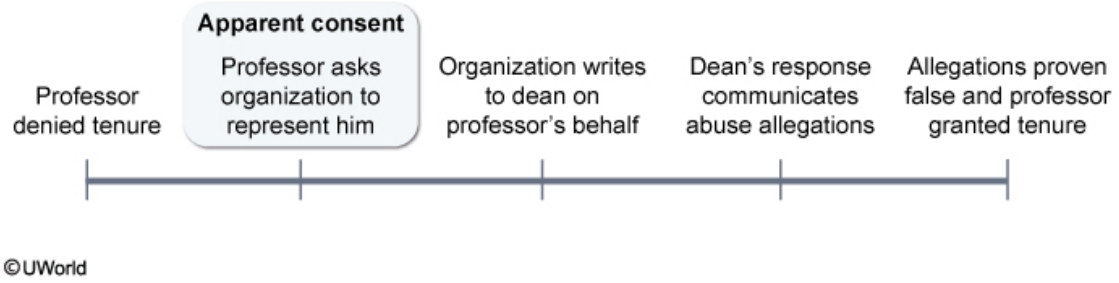
Restatement (Second) of Torts § 558 (Am. Law Inst. 1977) (elements of defamation).

Restatement (Second) of Torts § 568 (Am. Law Inst. 1977) (libel and slander distinguished).

Restatement (Second) of Torts § 583 (Am. Law Inst. 1977) (consent as a defense to defamation).

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A food company contracted with a delivery service to supply food to remote areas around the world. The contract between the food company and the delivery service was terminable at will. The delivery service then entered into a contract with an airline to provide an airplane to deliver the food. The contract between the delivery service and the airline was also terminable at will.

The food company was displeased with the airline because of a previous business dispute between them. Upon learning of the delivery service's contract with the airline, the food company terminated its contract with the delivery service in order to cause the airline to lose the business. After the food company terminated the delivery service's contract, the delivery service had no choice but to terminate the airline contract.

If the airline sues the delivery service for tortious interference with contract, will the airline prevail?

A. No, because the airline and the delivery service were the parties to the contract.
B. No, because the airline was not in privity with the food company.
C. Yes, because the delivery service did not terminate the contract because of poor performance.
D. Yes, because the delivery service's termination of the contract made it a party to the food company's acts.

Explanation:

To prevail on a **tortious interference with contract** claim, the plaintiff must prove all of the following:

A valid contract existed **between the plaintiff and a third party**.

The defendant intentionally and improperly interfered with the contract's performance—eg, using physical violence or economic pressure to prevent or hinder performance of the contract.

The interference caused the plaintiff pecuniary (monetary) loss.

Therefore, the plaintiff can only prevail if the defendant interfered with a contract between the plaintiff and a third party—**not** a contract between **the plaintiff and the defendant**.

Here, the delivery service (defendant) entered into a contract with the airline (plaintiff). Although the delivery service terminated that contract, the delivery service is not liable for tortious interference with contract because the delivery service interfered with its own contract with the airline—not a contract between the airline and a third party (eg, the food company). Therefore, the airline will not prevail.

(Choice B) The airline's claim for tortious interference with contract will fail because the contract at issue involves the airline (plaintiff) and the delivery service (defendant)—not the airline and a third party. Therefore, the airline's lack of privity (ie, contractual relationship) with the food company (third party) is inconsequential.

(Choice C) Since the airline's suit stems from the airline's contract with the delivery service, the claim against the delivery service should be based on that contract (eg, breach of contract)—not tort (eg, tortious interference with contract). And since the contract was terminable at will, the contract could be terminated by either party for *any* reason—not just poor performance.

(Choice D) The food company's acts forced the delivery service to terminate its contract with the airline, but did not make the delivery service a party to (or liable for) the food company's acts.

Educational objective:

Tortious interference with contract requires proof that (1) a valid contract existed between the plaintiff and a third party, (2) the defendant intentionally and improperly interfered with the contract's performance, and (3) that interference caused the plaintiff pecuniary loss.

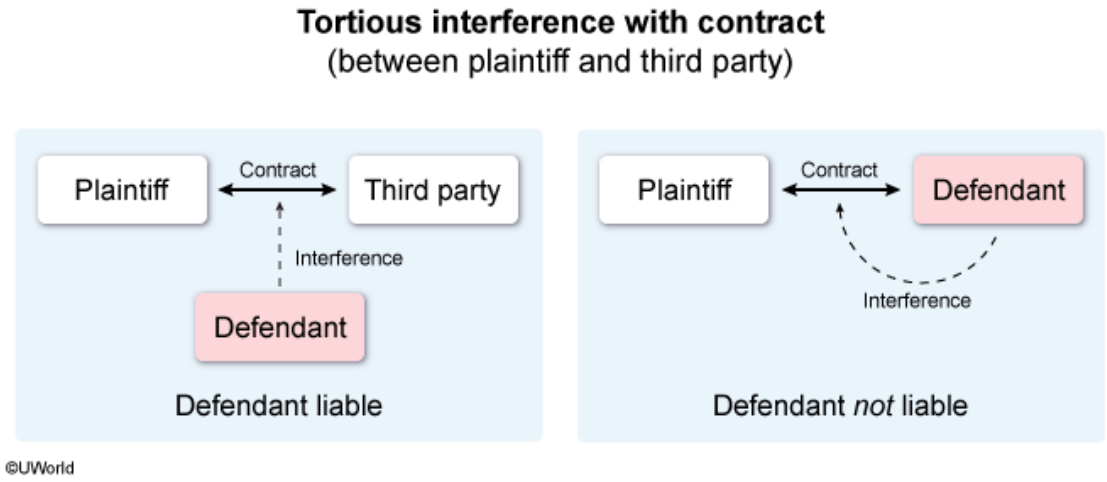
References

Restatement (Second) of Torts §§ 766, 766A (Am. Law Inst. 1979) (intentional interference with contract).

Restatement (Second) of Torts § 767 (Am. Law Inst. 1979) (improper interference requirement).

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An elderly man has resided in a particular neighborhood throughout his life. As has always been his habit, the man brings stale bread to a nearby public park each day to feed the pigeons. There is no state law or local ordinance prohibiting him from doing so. However, in addition to the pigeon droppings and feathers generated by his actions, the food attracts rats.

Several mothers who recently started frequenting the park with their children have brought a private nuisance action against the man to enjoin him from feeding the pigeons. The mothers contend that the man's actions have created an unsafe environment for themselves and their children, interfered with their enjoyment of the park, and defaced park property.

Which of the following is the man's best defense to this action?

A. The man's habit of feeding the pigeons predates the mothers' use of the park.
B. The mothers do not have a possessory interest in the park.
C. The mothers have not alleged an injury different in kind from the general public.
D. There is no state law or local ordinance that prohibits feeding pigeons in public parks.

Explanation:

Private nuisance v. Public nuisance

(action brought by private plaintiff)

	Interference	**Unreasonable**	**Harm**
Public	Public right—eg, health, safety, peace, property	Interference is significant or violated law	Special harm—harm different from that of public at large*
Private	Use & enjoyment of property	Severity of harm outweighs utility of interference	Substantial interference—offensive, annoying, or intolerable to normal person

*Proof of harm not required when plaintiff is public entity or government actor.

A **private nuisance** is a thing or activity that substantially and unreasonably interferes with another individual's use or enjoyment of real property. To have **standing** to sue for private nuisance, the plaintiff must have some **possessory interest** in that property (eg, ownership, lease).

Here, the mothers do not have a possessory interest in a *public* park. Since the mothers have not alleged harm to their own real property interests—eg, that rats attracted to the park are invading their homes—they lack standing to bring a private nuisance action against the man. Therefore, that is the man's best defense.

(Choice A) A plaintiff "comes to the nuisance" by purchasing (not merely using) property near the defendant's premises, knowing of the nuisance operated by the defendant. This is one factor that the trier of fact may consider in deciding whether the plaintiff can recover for the nuisance, but it is not an automatic defense.

(Choice C) Private citizens (eg, the mothers) have a claim for *public* nuisance only if they suffer a different kind of injury than the general public. But this limitation does not apply to *private* nuisance actions.

(Choice D) The defendant's compliance with a statute, ordinance, or administrative regulation may be admitted in a nuisance action as evidence that the defendant's actions were reasonable. But it is not a complete defense.

Educational objective:

A person with a possessory interest in real property (eg, ownership, lease) may bring a private nuisance action if the defendant substantially and unreasonably interfered with the person's use and enjoyment of that property.

References

Restatement (Second) of Torts §§ 821D, 821E (Am. Law Inst. 1981) (recovery for private nuisance).

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A senior member of the high school choir sued his music teacher for defamation based on the following facts: The director of a local choir called the teacher about the senior. The teacher, accidentally confusing the senior with another choir member with the same last name, stated that the senior was a bass. The senior was actually a tenor. The director did not contact the senior about joining the local choir because it needed more tenors, not basses.

Should the senior prevail in his lawsuit?

A. No, because describing a person as a bass instead of a tenor is not a derogatory statement.

B. No, because the senior cannot prove special damages in connection with the false statement.

C. Yes, because the statement was false and the teacher was negligent in making it.

D. Yes, because the teacher's false statement cost the senior a position in the local choir.

Explanation:

Defamation can be either libel (written statements) or **slander** (**spoken statements**—as seen here). A defamation claim based on slander requires proof of the following:

The defendant knowingly made a false statement about the plaintiff *or* negligently failed to determine its falsity.

The statement was defamatory, meaning that the **type of statement** would **tend to harm the plaintiff's reputation**.

The defendant intentionally or negligently communicated the statement to a third party.

The statement caused the plaintiff to suffer special damages *or* amounted to slander per se.

A statement is harmful to the plaintiff's reputation if it either **diminishes respect, esteem, or goodwill** toward the plaintiff or **deters others from associating** with the plaintiff—eg, had the teacher told the director that the senior had a poor work ethic. But since the teacher's statement that the senior was a bass instead of a tenor was not derogatory or harmful to his reputation in any way, the senior should not prevail in his defamation lawsuit.

(Choices B & D) Special damages require the plaintiff to prove that a third party heard the defendant's defamatory comments and acted adversely to the plaintiff. Most often, special damages involve an economic loss to the plaintiff, but they also would include such things as the director not contacting the senior about joining the local choir. In spite of this, the senior will not prevail because the teacher's statement was not defamatory.

(Choice C) The fact that the statement was false and that the teacher was negligent (ie, failed to use reasonable care) in making it is not a reason for the senior to prevail since the statement was not defamatory.

Educational objective:

A statement is defamatory if the type of statement would tend to harm the plaintiff's reputation by diminishing respect, esteem, or goodwill toward the plaintiff OR deterring others from associating with the plaintiff.

References

Restatement (Second) of Torts § 559 (Am. Law Inst. 1977) (defamatory statement defined).

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Defamatory statements harmful to plaintiff's reputation

Diminishing respect, esteem, or goodwill toward plaintiff



Deterring others from associating or dealing with plaintiff



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When two parents were told that their son should repeat second grade, they sought to have him evaluated by a psychologist. The psychologist, who charged $300, determined that the son had a learning disability. Based upon the report, the school board placed the son in special classes. At an open meeting of the school board about school expenditures, the parents asked that the $300 they had paid to the psychologist be reimbursed by the school district. A reporter attending the meeting wrote a newspaper article about this request, mentioning the son by name.

In a privacy action brought by the son's legal representative against the newspaper, will the plaintiff recover?

A. No, if the parents knew that the reporter was present.

B. No, if the story is a fair and accurate report of what transpired at the meeting.

C. Yes, because the son is under the age of consent.

D. Yes, because the story is not newsworthy.

Explanation:

Invasion-of-privacy privileges

Absolute privileges	**Consent** to publication
	Publication by participant in **judicial or legislative proceeding**
	Publication by **executive or administrative officer**
	Publication to **spouse**
	Publication **required by law**
Conditional privileges (lost if abused)	Publication serves important **public or private interest**
	Publication to someone with **common interest** (eg, business partner)
	Publication by **inferior state officer**
	Report of **official proceeding or public meeting**

Liability for **invasion of privacy** based on **public disclosure of private facts** arises when:

the defendant publicly disclosed facts about the plaintiff's private life

that disclosure would be highly offensive to a reasonable person

the disclosed facts are not of legitimate public interest *and*

the disclosure caused the plaintiff harm.

However, the defendant is **privileged** to disclose such facts if (1) the disclosure was in a **fair and accurate report** of a **public meeting** and (2) the meeting dealt with **matters of legitimate public interest** (ie, newsworthy topics).

Here, the reporter publicized the son's psychological evaluation (private fact)—a disclosure that would be highly offensive to a reasonable person and is not of legitimate public interest. However, the parents requested reimbursement for that evaluation at an open school board meeting about a matter of public interest—school expenditures. Therefore, the reporter's disclosure would be privileged if it was a fair and accurate report of that meeting, and the son's privacy action would fail.

(Choice A) A defendant's privilege to publicize a fair and accurate report of a public meeting does not depend on anyone's knowledge of the defendant's presence. Therefore, it does not matter whether the parents knew that the reporter was present.

(Choice C) Although consent is a defense to a privacy claim based on public disclosure of private facts, it does not apply here since the son was under the age of consent. Nevertheless, the reporter may have been privileged to publicize the son's psychological evaluation since it was discussed at a public meeting regarding a matter of public interest. In that case, the son would not recover.

(Choice D) The story is newsworthy because a school board's consideration of expenditures (eg, reimbursing the parents for the son's psychological evaluation) is a matter of public interest.

Educational objective:

A defendant is privileged to publicly disclose facts about the plaintiff's private life if (1) the disclosure is in a fair and accurate report of a public meeting and (2) that meeting dealt with matters of legitimate public interest.

References

Restatement (Second) of Torts § 652D (Am. Law Inst. 1977) (public disclosure of private facts).

Restatement (Second) of Torts §§ 611, 652G (Am. Law Inst. 1977) (privilege to report public meeting).

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A construction worker was working at the construction site of a new building. An open elevator, which had been installed in the building by the elevator manufacturer, was used to haul workers and building materials between floors. While the worker was riding the elevator, it stalled between floors due to a manufacturing defect in the elevator. The worker called for assistance and was in no danger, but after waiting 15 minutes for help, he became anxious and jumped 12 feet to get out. He severely injured his back when he landed.

In an action by the worker against the elevator manufacturer to recover for his back injury, is the worker likely to obtain a judgment for 100% of his damages?

A. No, because such risks are inherent in construction work.

B. No, because the worker was not in danger while on the stalled elevator.

C. Yes, because the elevator stalled due to a manufacturing defect.

D. Yes, because the worker was falsely imprisoned in the stalled elevator.

Explanation:

Contributory negligence

(defense to strict products liability)

Traditional *contributory* negligence jurisdiction	Plaintiff's negligence is no defense (no bar & no reduction in recovery)
Pure *comparative* negligence jurisdiction*	Plaintiff's negligence reduces recovery by plaintiff's proportionate fault (eg, plaintiff 90% at fault can recover 10% of damages)

*Default rule on MBE

Commercial suppliers are subject to **strict products liability** when their defective product caused the plaintiff harm. But if the plaintiff contributed to that harm by failing to use the level of reasonable care that should have been used for his/her own protection (**contributory negligence**), then recovery will be **proportionally reduced** according to the plaintiff's share of fault in a pure comparative negligence jurisdiction (default rule).

Here, the elevator stalled between floors due to a manufacturing defect and caused the worker to jump out of the elevator and injure his back **(Choice C)**. But since the stalled elevator did not place the worker in any danger, it was unreasonable for him to jump after waiting only 15 minutes for help (contributory negligence). Therefore, the worker's damages will likely be *reduced* by an amount proportionate to his share of fault.

(Choice A) The risk of an elevator stalling may be inherent in constructing a new building, but it is not a basis for denying or reducing the worker's recovery. Instead, his recovery will be reduced because he created an additional risk not inherent to construction work by jumping out of the elevator when he was in no danger.

(Choice D) False imprisonment requires proof that (1) the defendant intentionally confined the plaintiff within a fixed space and (2) the plaintiff was aware of such confinement or harmed by it. Here, there is no evidence that the elevator manufacturer intended to confine the worker, so it is not liable for false imprisonment.

Educational objective:

In a pure comparative negligence jurisdiction, a plaintiff's recovery for strict products liability is reduced in proportion to the plaintiff's contributory negligence (failure to use reasonable care for his/her own protection).

References

Restatement (Third) of Torts: Prods. Liab. §§ 1, 2(a) (Am. Law Inst. 1998) (strict products liability for manufacturing defects).

Restatement (Third) of Torts: Prods. Liab. § 17 (Am. Law Inst. 1998) (apportionment of liability).

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A manufacturing plant located near a busy highway uses and stores highly volatile explosives. The owner of the plant has imposed strict safety measures to prevent an explosion at the plant. During an unusually heavy windstorm, a large tile was blown off the roof of the plant and crashed into a passing car, damaging the hood and the windshield. The driver of the car brought a strict liability action against the owner of the plant to recover for the damage to his car.

Is the driver likely to prevail?

A. No, because the damage to the car did not result from the abnormally dangerous aspect of the plant's activity.

B. No, because the severity of the windstorm was unusual.

C. Yes, because the plant's activity was abnormally dangerous.

D. Yes, because the plant's location near a busy highway was abnormally dangerous.

Explanation:

An **abnormally dangerous activity** is an uncommon activity that poses a foreseeable and highly significant risk of physical harm—even when reasonable care is used. A defendant is **strictly liable** (liable without proof of fault) for bodily harm or property damage **resulting from the abnormal dangers** of that activity.

Here, the manufacturing plant stored highly volatile explosives (uncommon activity) near a busy highway, which created a foreseeable and highly significant risk of a harmful explosion that could not be mitigated by the exercise of reasonable care. However, the damage to the driver's car was caused by a windstorm—a hazard unrelated to the abnormal danger of storing explosives. Therefore, even though the plant engaged in an abnormally dangerous activity **(Choice C)**, the driver will not prevail on a strict liability claim.

(Choice B) The unusual severity of the windstorm is irrelevant to the driver's strict liability claim. Instead, the driver's claim will fail because the windstorm was unrelated to the danger of storing explosives.

(Choice D) The plant's location near a busy highway increased the abnormal danger of the stored explosives. However, the driver will not prevail because his property damage was not caused by a risk associated with storing explosives.

Educational objective:

A defendant is strictly liable for bodily harm or property damage caused by his/her abnormally dangerous activity—not for harm caused by a risk unrelated to the abnormal dangers of the activity.

References

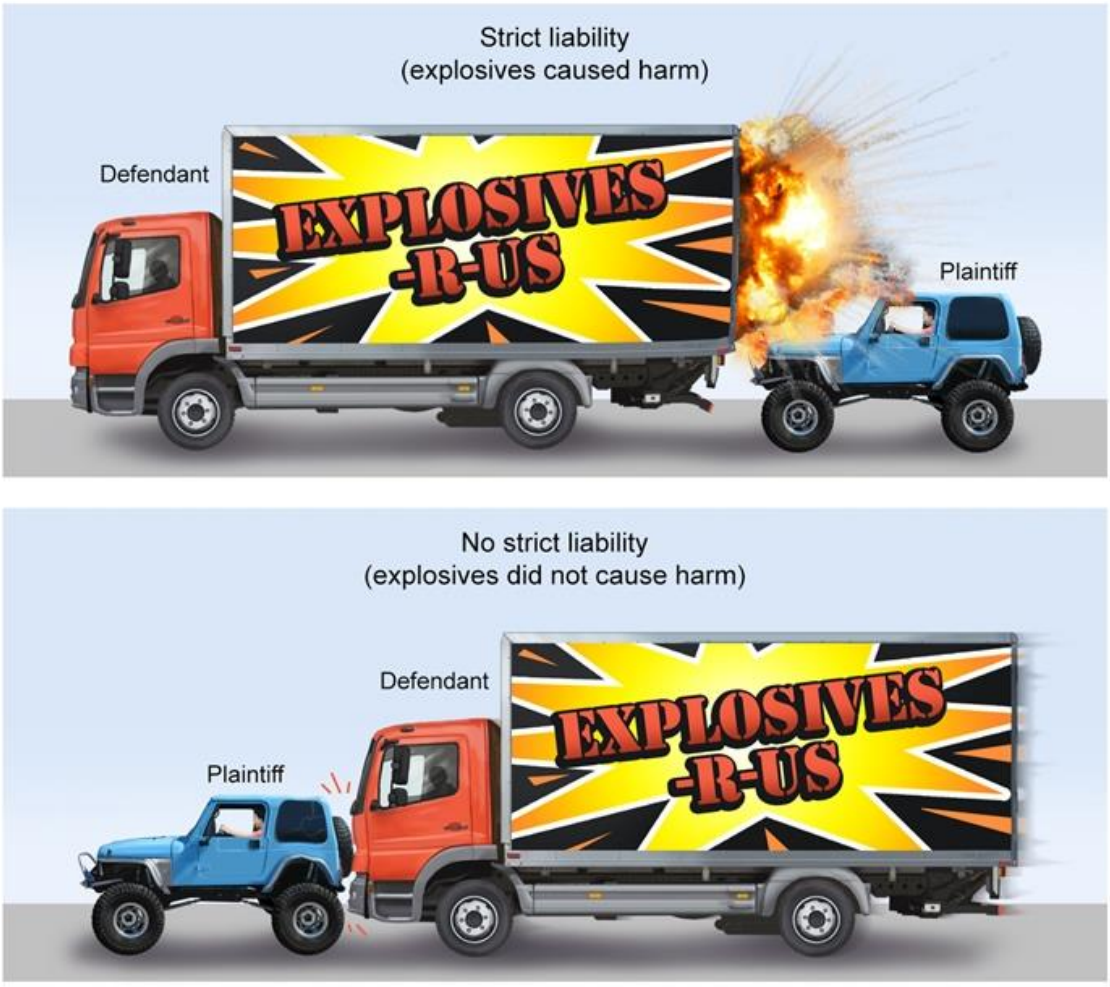
Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 20 (Am. Law Inst. 2010) (strict liability for abnormally dangerous activities).

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 29 cmt. d (Am. Law Inst. 2010) (limitations on strict liability).

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Strict liability for abnormally dangerous activity



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A homeowner purchased an over-the-range microwave and planned to hire someone to install it. The microwave's manual, which the homeowner read, contained a warning that the microwave should not be operated on a kitchen countertop because the underside does not provide a stable surface, hot liquids could spill and cause serious injury, and over time, the position could cause excessive wear on the power cord. Before the homeowner was able to have the microwave installed, he used it while it was resting on his kitchen countertop to heat a cup of coffee. Due to an improperly manufactured thermal fuse in the microwave, the microwave caught fire while heating the coffee and caused extensive damage to the home.

The homeowner has filed a complaint based on strict products liability against the microwave's manufacturer.

Will the homeowner be likely to prevail?

A. No, because the homeowner assumed the risk by ignoring the manufacturer's warning.

B. No, because the homeowner was negligent in using the microwave before it was installed.

C. Yes, because the homeowner's misuse of the microwave while it was unmounted was foreseeable.

D. Yes, because the microwave contained a manufacturing defect that caused it to catch fire.

Explanation:

A plaintiff can recover in a **strict products liability** action against a manufacturer, retailer, or other distributor (ie, commercial seller) if the following facts are proved:

The product was defective (in manufacture, design, or failure to warn).

The defect existed when the product **left the defendant's control**.

The defect **caused the plaintiff's injuries** when the product was used in an **intended or reasonably foreseeable way**.

A product has a **manufacturing defect** if it deviates from the manufacturer's intended design (eg, due to incorrect assembly).

Here, the microwave contained an improperly manufactured thermal fuse when the microwave left the manufacturer's control. This manufacturing defect caused the microwave to catch fire and damage the home when the homeowner used it to heat a cup of coffee. As a result, the homeowner will likely prevail in a strict products liability action against the manufacturer.

(Choice A) Assumption of the risk is a defense that reduces the plaintiff's recovery if the plaintiff voluntarily exposed him/herself to a known risk of harm. Here, the homeowner knew the risk associated with using the microwave while it was unmounted—but not the risk stemming from the improperly manufactured thermal fuse that caused his harm. Therefore, this defense does not apply.

(Choice B) The homeowner's negligence in using the microwave before installing it is irrelevant because his injury was caused by the defective fuse—not by using the microwave without mounting it.

(Choice C) Using a product in an unintended and unforeseeable manner may negate liability if the misuse leads to the plaintiff's harm. Here, the homeowner's misuse was foreseeable because the manufacturer's manual specifically addressed it. But the misuse did not lead to the microwave catching fire (the defective fuse did), so the homeowner will not prevail on this basis.

Educational objective:

An action based on strict products liability requires proof that the product was defective (eg, in manufacture) when it left the defendant's control AND that the defect caused the plaintiff's injuries when the product was used in an intended or reasonably foreseeable way.

References

Restatement (Third) of Torts: Prod. Liab. § 2 (Am. Law Inst. 2010) (categories of product defect).

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Elements of strict products liability



π = plaintiff; Δ = defendant

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A company manufactured metal stamping presses that were usually sold with an installed safety device that made it impossible for a press to close on a worker's hands. The company strongly recommended that its presses be purchased with the safety device installed, but would sell a press without the safety device at a slightly reduced price.

Rejecting the company's advice, a worker's employer purchased a stamping press without the safety device. The press closed on the worker's hand, crushing it.

If the worker were to sue the company, would the worker be likely to prevail?

A. No, because the company strongly recommended that the worker's employer purchase the press with the safety device.

B. No, because the failure of the worker's employer to purchase the press with a safety device was a superseding cause of the worker's injury.

C. Yes, because the company sold the press to the worker's employer without an installed safety device.

D. Yes, because the company's press was the cause in fact of the worker's injury.

Explanation:

Types of product defects

Manufacturing defect	Deviation from intended design (eg, incorrect assembly)
Design defect	Foreseeable risk of harm that could have been mitigated by feasible alternative design (ie, reasonable in cost)
Inadequate warning	No reasonable instructions or warnings about risks of harm

Strict products liability is imposed on a commercial seller (eg, manufacturer, wholesaler, retailer) when its defective product causes the plaintiff harm. A product is **defective by design** when:

the design creates a **foreseeable risk** of physical harm *and*

that risk could have been mitigated by a **reasonable alternative design** (eg, a modification that reduces the risk for a reasonable cost).

Here, the company's metal stamping presses posed a foreseeable risk of closing on a worker's hands. As a result, the company usually sold its presses with a pre-installed safety device that eliminated the risk of harm for a slightly increased cost (reasonable alternative design). But since the company still sold presses *without* the safety device (defective design) and that defect caused the press to crush the worker's hand, the company is strictly liable for the worker's harm.

(Choice A) When a manufacturer has a reasonable alternative design, it cannot avoid strict liability by merely warning the purchaser of the product's danger. Therefore, the company's recommendation that customers purchase presses *with* the safety device installed does not extinguish its strict liability for selling presses *without* the safety device.

(Choice B) A superseding cause is an *unforeseeable* intervening act or force that breaks the chain of causation between the defendant's tortious conduct and the plaintiff's harm. Here, since presses were sold without the safety device, it was *foreseeable* that the worker's employer might purchase one without the device. Therefore, the company's purchase was not a superseding cause.

(Choice D) Although a plaintiff must prove that a product was the cause of his/her injury to prevail on a strict products liability claim, the plaintiff must also prove that the product was defective.

Educational objective:

Strict products liability is imposed on a commercial seller whose defective product caused the plaintiff harm. A product is defective by design if (1) the design creates a foreseeable risk of physical harm and (2) that risk could have been mitigated by a reasonable alternative design (a safer design available at a reasonable cost).

References

Restatement (Third) of Torts: Prods. Liab. §§ 1, 2(b) (Am. Law Inst. 1998) (liability for defectively designed products).

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A car enthusiast, who was 20 years old, purchased a new, high-powered sports car that was marketed with an intended and recognized appeal to youthful drivers. The car was designed with the capability to attain speeds in excess of 100 miles per hour. It was equipped with tires designed and tested only for a maximum safe speed of 85 miles per hour. The owner's manual that came with the car stated that "continuous driving over 90 miles per hour requires high-speed-capability tires," but did not describe the speed capability of the tires sold with the car.

The car enthusiast took his new car out for a spin on a straight, smooth country road where the posted speed limit was 55 miles per hour. Intending to test the car's power, he drove for a considerable distance at over 100 miles per hour. While he was doing so, the tread separated from the left rear tire, causing the car to leave the road and hit a tree. The car enthusiast sustained severe injuries.

The car enthusiast has brought a strict products liability action in tort against the manufacturer of the car. Assume that pure comparative fault principles apply to this case.

Will the car enthusiast prevail?

A. No, because the car enthusiast's driving at an excessive speed constituted a misuse of the car.

B. No, because the car was not defective.

C. Yes, if the statement in the manual concerning the tires did not adequately warn of the danger of high-speed driving on the tires mounted on the car.

D. Yes, unless the car enthusiast's driving at a speed in excess of the posted speed limit was negligence per se that, by the law of the jurisdiction, was not excusable.

Explanation:

Adequacy of instructions/warnings

Content & comprehensibility	Unclear or ambiguous instructions
	Technical language
	Incomplete or excessive information
Intensity of expression	Text size
	Location (eg, manual v. product)
	Inconspicuous color
	Depiction of danger (eg, skull & crossbones)
Expected users	Children/adolescents
	Education/skill level
	Disability

A **commercial supplier** is subject to **strict products liability** for harm caused by the commercial supplier's **defective** product. A product is defective for failure to warn if (1) the product posed a **foreseeable and unobvious risk of harm** and (2) that risk could have been reduced or eliminated by providing **reasonable warnings or instructions**. In assessing the reasonableness of a product's warnings or instructions, courts consider:

the **content** and comprehensibility of the warnings or instructions
the **intensity** (eg, prominence) of the warnings or instructions *and*
the **characteristics** of the **expected user groups**.

Here, while the 20-year-old car enthusiast was driving at over 100 miles per hour, the tread separated from a tire, causing him to crash into a tree and sustain injuries. The owner's manual warned that "continuous driving over 90 miles per hour requires high-speed-capability tires." But it failed to warn expected users (youthful drivers prone to drive at high speed) that the car was *not sold with high-speed-capability tires* (inadequate content). That inadequate warning rendered the car defective, so the car enthusiast will prevail **(Choice B)**.

(Choice A) A commercial supplier is strictly liable for harm resulting from the supplier's failure to provide adequate warnings or instructions regarding a foreseeable misuse of its product. Therefore, the foreseeability of high-speed driving by youthful drivers (misuse of the sports car) *necessitates* an adequate warning.

(Choice D) Under the doctrine of negligence per se, an unexcused violation of a statute (eg, the car enthusiast's speeding violation) is automatically deemed negligent if the statute was designed to prevent the kind of accident that occurred. However, in a pure comparative fault jurisdiction (default rule), the car enthusiast's contributory negligence will merely *reduce* recovery by his share of fault—not bar his strict liability claim.

Educational objective:

A commercial supplier must provide reasonable instructions or warnings about any foreseeable and unobvious risk posed by its product. Reasonableness is determined by (1) the content and comprehensibility of the warnings or instructions, (2) the intensity of the warnings or instructions, and (3) the characteristics of the expected user groups.

References

Restatement (Third) of Torts: Prods. Liab. §§ 1, 2(c) (Am. Law Inst. 1998) (commercial sellers' liability for inadequate instructions or warnings).

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A construction worker was using a nail gun to reshingle the roof of a residence. While the construction worker was near the edge of the roof, a manufacturing defect in the gun caused a nail to be discharged from the gun at an angle rather than directly downward. A 10-year-old child, who was playing in the yard below, was struck by the nail and seriously injured. The child's parents, on behalf of their child, have brought a strict products liability action against the construction company that employed the construction worker. The construction company can establish that, although the child was not negligent, her parents were negligent in allowing her to play near the construction work occurring on the roof.

Can the construction company successfully defend against this action?

A. No, because the construction company is vicariously liable for the construction worker's conduct.

B. No, because the nail gun used by the construction worker had a manufacturing defect.

C. Yes, because the nail gun was used to provide a service.

D. Yes, because the parents' contributory negligence will be imputed to the child to reduce the construction company's damages.

Explanation:

Strict products liability actions can only be maintained against commercial sellers who are in the business of selling or otherwise distributing the type of defective product that harmed the plaintiff. As a result, someone who **merely used a defective product** to **provide a *service*** is **not subject to strict products liability** for any harm to persons or property caused by the defect.

Here, the child was injured because of a manufacturing defect in the nail gun. But since the construction worker—and vicariously the construction company—was using the nail gun to reshingle the roof, the defective product was merely used to provide a service. As a result, the construction company can successfully defend against this action for strict products liability.

(Choice A) Employers can be held vicariously liable for an employee's tortious conduct under the doctrine of respondeat superior. But here, the construction worker (employee) is not strictly liable for the child's injury caused by the defective nail gun because the worker was not a commercial seller of the nail gun. As a result, the construction company (employer) is also not strictly liable.

(Choice B) The nail gun did have a manufacturing defect, which could impose strict liability (ie, liability without proof of fault) on the manufacturer and other commercial sellers of the gun. But strict liability would not be imposed on someone who merely used the nail gun to provide a service (eg, reshingle a roof).

(Choice D) Under the rule of pure comparative negligence (default rule on the MBE), a plaintiff's contributory negligence reduces the plaintiff's recovery by his/her proportionate share of fault. However, a parent's negligence will *not* be imputed (ie, assigned) to a child-plaintiff in a suit against a third party. And even if it were, this would merely reduce the child's damages—not serve as a complete defense to strict products liability.

Educational objective:

Someone who merely used a defective product to provide a service is not subject to strict products liability for harm to persons or property caused by the defect.

References

Restatement (Third) of Torts: Prods. Liab. §§ 1, 20 (Am. Law Inst. 1998) (liability of commercial suppliers).

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Commercial supplier/seller
(subject to strict
products liability)





Service provider
(not subject to strict
products liability)



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A homeowner owned a large poisonous snake which had been defanged and was kept in a cage. A storm damaged the homeowner's house and the snake's cage, allowing the snake to escape. During the cleanup after the storm, a volunteer worker came across the snake. The worker tried to run away from the snake and fell, breaking his arm.

In a suit by the worker against the homeowner based on strict liability in tort to recover for his injury, will the worker prevail?

A. No, because the snake's escape was caused by a force of nature.

B. No, because the worker should have anticipated an injury during his volunteer work.

C. Yes, because the homeowner did not take adequate precautions to secure the snake.

D. Yes, because the worker's injury was the result of his fear of the escaped snake.

Explanation:

Strict animal liability

Livestock	Wild animals	Abnormally dangerous animals
Cattle	Lions	Rabid dogs/cats
Goats	Monkeys	Aggressive birds
Horses	Coyotes	Skittish horses
Deer	Zebras	Dangerously playful dogs
Rabbits	Venomous snakes	

Strict liability (liability without proof of fault) is imposed for certain activities that create unusual risks for other people—eg, owning or possessing a **wild animal**. An animal is wild if that **category** of animal typically is **undomesticated** and **likely to cause personal injury** unless restrained. A defendant is strictly liable for physical harm caused by his/her wild animal, but only if that harm stemmed from the animal's **abnormally dangerous characteristic**.

Here, although the homeowner's poisonous snake was defanged, it falls into a wild animal category because snakes typically are undomesticated and likely to cause personal injury (poisoning) unless restrained. And since the worker did not know that the snake was defanged and broke his arm while trying to run from its seemingly venomous bite, his harm stemmed from the dangerous characteristic of snakes. Therefore, the homeowner will be strictly liable for that harm.

(Choice A) Because there is very little social utility in owning wild animals, strict liability applies even if a force of nature (whether foreseeable or unforeseeable) allows a wild animal to escape.

(Choice B) In a pure comparative negligence jurisdiction (default rule), contributory negligence will reduce—but not bar—the plaintiff's recovery. As a result, even if the worker negligently contributed to his harm by failing to anticipate an injury, he would still prevail (but his recovery would be reduced by his share of fault).

(Choice C) Strict liability does not require proof of fault. Therefore, the homeowner is strictly liable even if he took adequate precautions to secure the snake.

Educational objective:

A wild animal is a category of animal that typically is undomesticated and likely to cause personal injury unless restrained (eg, chimpanzee, tarantula, poisonous frog). The owner of a wild animal is strictly liable for physical harm stemming from the animal's abnormally dangerous characteristic.

References

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 22 (Am. Law Inst. 2010) (strict liability for wild animals).

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 29 cmt. l (Am. Law Inst. 2010) (strict liability limited to wild animal's abnormally dangerous characteristic).

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A homeowner was injured when an automatic cutoff switch failed to function on a snowblower he was using. The cutoff switch had functioned well for a year after he purchased the snowblower but failed after the machine had been improperly repaired by a mechanic. The snowblower's operating manual contained a clear and prominent warning against making the very alteration to the switch mechanism that was made by the mechanic. The mechanic, however, did not have a manual available when he repaired the snowblower.

Does the homeowner have a viable claim against the manufacturer of the snowblower for damages?

A. No, because the homeowner was contributorily negligent in failing to furnish the snowblower's manual to the mechanic.

B. No, because the injury resulted from a substantial alteration of the snowblower by a third party.

C. Yes, because a defect in the snowblower caused the homeowner's injury.

D. Yes, because the manufacturer should have made the manual available to repair personnel.

Explanation:

When a product poses a **foreseeable risk of harm** (eg, injury resulting from an unsafe repair), commercial suppliers must provide **reasonable warnings or instructions** if doing so would reduce that risk. Failure to provide adequate warnings or instructions renders the **product defective** and subjects commercial suppliers to **strict products liability**.

Here, the homeowner's injury occurred when his snowblower's automatic cutoff switch failed due to the mechanic's improper repair (foreseeable risk). But since the manufacturer provided a *clear* and *prominent* warning about that very alteration in the operating manual (reasonable warning) and there is no evidence that the snowblower was otherwise defective, the manufacturer is not liable for the homeowner's damages **(Choice C)**.

(Choice A) Contributory negligence occurs when a plaintiff fails to use reasonable care for his/her own protection. Here, the homeowner was not contributorily negligent in failing to furnish the manual to the mechanic because the homeowner could reasonably rely on the mechanic's expertise.

(Choice D) A commercial supplier is only required to provide *reasonable* warnings or instructions. Here, the manufacturer could not identify every repair person who might work on its snowblowers, so it would be unreasonable to impose strict liability on the manufacturer for failing to provide a manual to the mechanic.

Educational objective:

To avoid strict products liability, a commercial seller must provide reasonable warnings or instructions regarding any foreseeable risk of harm posed by its product if doing so will reduce that risk. Failure to provide adequate warnings or instructions renders the product defective.

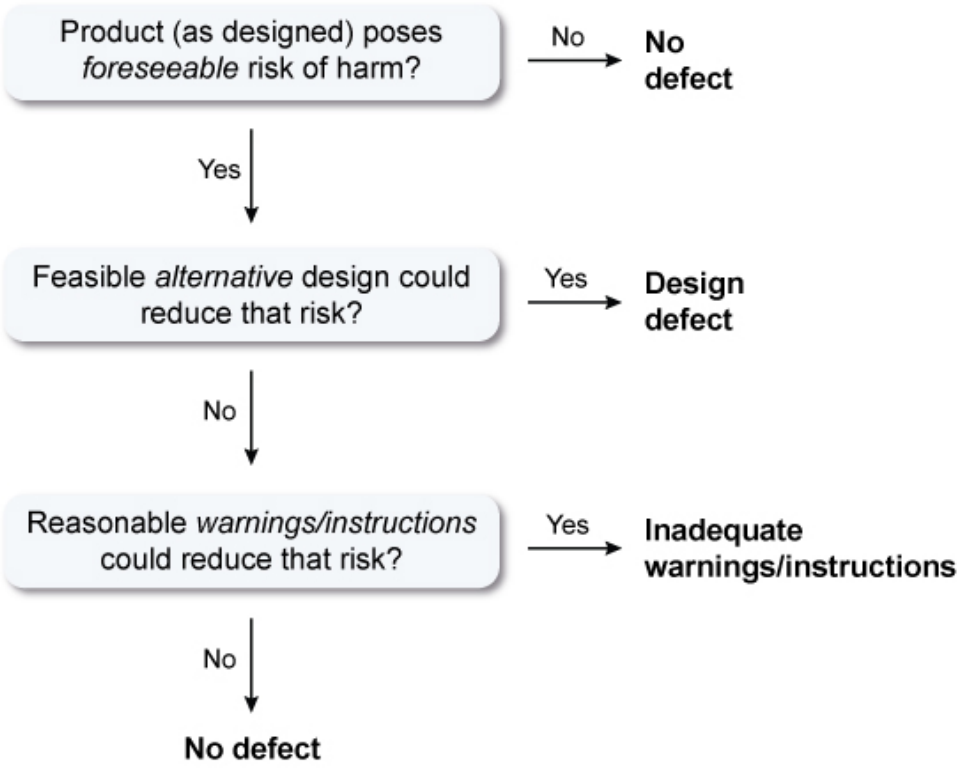
References

Restatement (Third) of Torts: Prods. Liab. § 2 (Am. Law Inst. 1998) (product defective due to the lack of reasonable warnings or instructions).

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Product defects caused by design or inadequate warnings/instructions



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A consumer bought a kitchen blender from a manufacturer. Soon after the purchase, the consumer was using the blender in an appropriate way when the blender jar shattered, throwing a piece of glass into the consumer's eye.

The consumer brought an action against the manufacturer based solely on strict products liability. The consumer's expert testified that the blender was defectively designed. However, because the blender jar had been destroyed in the accident, the expert could not determine whether the accident had been caused by the design defect or a manufacturing defect. The manufacturer's expert testified that the blender was not defective.

If, at the conclusion of the evidence, both parties move for directed verdicts, how should the trial judge rule?

A. Deny both motions and send the case to the jury, because a jury reasonably could conclude that the harm was caused by a defect present in the product when it was sold.

B. Direct a verdict for the consumer, because the blender was new when the jar shattered, and thus was undeniably defective.

C. Direct a verdict for the manufacturer, because the consumer's action was brought solely on a strict liability theory.

D. Direct a verdict for the manufacturer, because the consumer's expert was unable to specify the nature of the defect.

Explanation:

A motion for a directed verdict should be granted if no reasonable jury could find in the nonmovant's favor. For example, a defendant's motion should be granted if there is insufficient evidence to support any element of the plaintiff's claim. Conversely, a plaintiff's motion should be granted if every element of the claim has been established beyond dispute.

A **strict products liability** claim requires proof of the following elements:

The defendant was a commercial seller (eg, manufacturer—as seen here).

The product was defective at the time it left the defendant's control.

The defect caused the plaintiff physical harm (eg, bodily injury—as seen here).

The trier of fact can **infer** that the product was **defective** and **caused the plaintiff's harm** if that harm (1) is of a kind that **ordinarily results from a product defect** and (2) was **not solely due to other causes**. This is true even when the plaintiff lacks direct evidence on these last two elements.

Here, the consumer's expert witness could not specify the nature of the blender's defect. But the jury may infer that the blender was defective when purchased from the manufacturer. That is because (1) a new blender jar typically shatters because of a defect and (2) the consumer's appropriate use soon after the purchase negates other causes. As a result, the judge should deny the manufacturer's motion **(Choices C & D)**.

However, the fact that the blender was new when the jar shattered does not require the jury to conclude that the blender was *undeniably* defective. The jury may infer that the blender was defective OR rely on the manufacturer's expert testimony and conclude that it was not. Therefore, the judge should deny both motions and send the case to the jury **(Choice B)**.

Educational objective:

In a strict products liability action, it can be inferred that a product was defective and caused the plaintiff's harm if that harm is of a kind that ordinarily results from a product defect AND was not solely due to other causes.

References

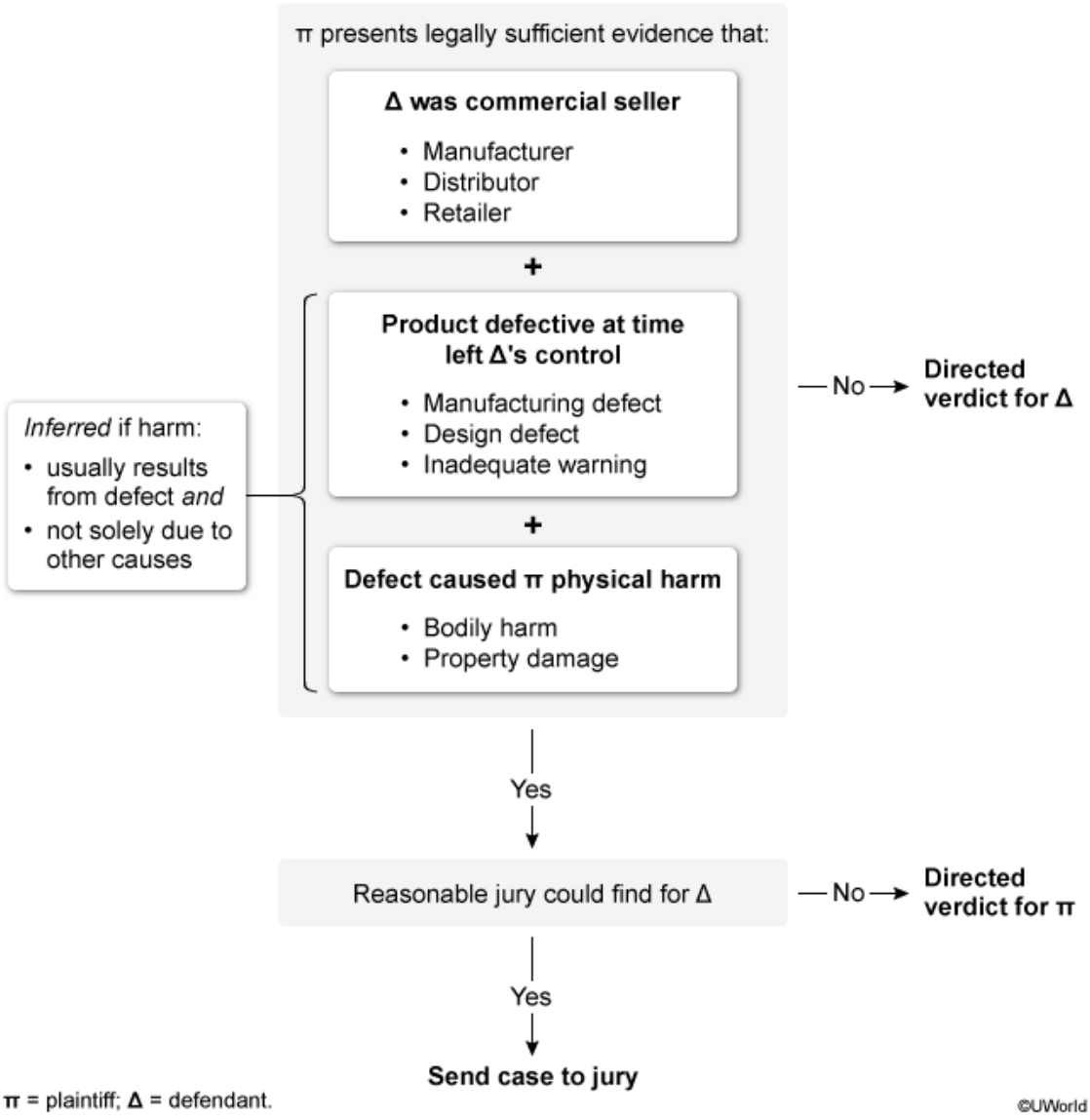
Restatement (Third) of Torts: Prods. Liab. § 1 (Am. Law Inst. 1998) (requirements for strict products liability).

Restatement (Third) of Torts: Prods. Liab. § 3 (Am. Law Inst. 1998) (inference of product defect).

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Directed verdict
(strict products liability)



π = plaintiff; Δ = defendant.

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A farmer owns a small farm with several head of cattle, which are kept in a fenced grazing area. One day the cattle were frightened by a thunderstorm, an occasional occurrence in the area. The cattle broke through the fence, entered onto a neighbor's property, and severely damaged the neighbor's crops. Under the law of the state, landowners are not required to erect fences to prevent the intrusion of livestock.

If the neighbor sues the farmer to recover for the damage done to his crops, will the neighbor prevail?

A. No, because the thunderstorm was a force of nature.

B. No, unless the fence was negligently maintained by the farmer.

C. Yes, because the farmer's cattle caused the damage to the neighbor's crops.

D. Yes, if the farmer's cattle had panicked during previous thunderstorms.

Explanation:

Imposition of strict liability

(liability imposed regardless of fault)

Abnormally dangerous activities	Uncommon activity in community that poses foreseeable & highly significant risk of physical harm Risk cannot be minimized by reasonable care *and* Physical harm caused by abnormal danger
Intrusion by livestock	Foreseeable intrusion of livestock onto land of another *and* Intrusion causes physical harm typical of livestock (eg, consumption of grass)
Wild animals	Category of typically undomesticated animal likely to cause personal injury unless restrained (eg, poisonous snake) *and* Physical harm caused by animal's abnormal danger
Abnormally dangerous animals	Animal with dangerous tendencies other animals in that category typically lack (eg, rabid dog) Owner/possessor knows or should know of danger *and* Physical harm results from that danger
Strict products liability	Harm caused by commercial supplier's defective product *and* Defect existed when product left commercial supplier's control

Strict liability (liability without proof of fault) is imposed when **livestock** or other animals (not dogs or cats) **enter another's land** and cause bodily harm or **property damage** typical of livestock (eg, consumption of grass). But since the cause of the intrusion must be **foreseeable**, strict liability is not imposed when the intrusion is caused by an unforeseeable event or force—eg, stranger opens cattle gate, unpredictable tornado destroys fence.

Here, the farmer's cattle broke through his fence because they were frightened by a thunderstorm—an occasional (and therefore foreseeable) occurrence in the area. And since the cattle intruded onto the neighbor's land and damaged his crops, the farmer is strictly liable for that damage.

(Choice A) Because the thunderstorm was a *foreseeable* force of nature, it does not relieve the farmer of strict liability.

(Choice B) Although the farmer kept his cattle in a fenced area, he had no duty to erect a fence to prevent the cattle from escaping under state law. And since strict liability is imposed without proof of fault, the farmer's negligent maintenance of the fence is irrelevant.

(Choice D) While the intervening event that caused the intrusion must have been foreseeable to impose strict liability, the *effect* of that event need not have been. Therefore,

the farmer would be strictly liable even if his cattle had never panicked during a previous thunderstorm.

Educational objective:

A defendant is strictly liable when his/her livestock foreseeably enter onto another's land and cause physical harm (ie, bodily harm or property damage) typical of livestock. However, a defendant is not strictly liable for a livestock intrusion caused by an unforeseeable act or force—eg, an unprecedented earthquake.

References

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 21 (Am. Law Inst. 2010) (strict liability for livestock intrusion).

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 34 reporter's note to cmt. d (Am. Law Inst. 2010) (foreseeable force of nature does not negate strict liability).

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A manufacturer of baby gear designed a baby bouncer that allowed infants to jump up and down without parental assistance. The baby bouncer could be attached to a doorframe with a plastic clamp, which was connected to the baby seat via a spring and safety cord. The manufacturer designed the baby bouncer to safely withstand a maximum weight of 20 pounds, but if an infant exceeded that weight, there was a risk that the clamp could slip off of the doorframe and severely injure the infant. For a slightly higher cost, the manufacturer could have used a metal clamp that withstood a maximum weight of 40 pounds, but the manufacturer opted for the cheaper plastic clamp so that it could undercut its competitors. The manufacturer attached a warning label to the baby bouncer stating the weight limit and that if the limit was exceeded, the clamp could slip off the doorframe and injure an infant.

A mother purchased the manufacturer's baby bouncer for her nine-month-old infant who weighed 25 pounds. She read the warning label but chose to ignore the weight limit. After a few uses, the clamp slipped off the doorframe, and the infant suffered a concussion and broken leg from the fall.

The mother brought a strict products liability action against the manufacturer in a jurisdiction that applies traditional contributory negligence.

Who will likely prevail?

A. The manufacturer, because it put a warning label on the baby bouncer regarding the weight limit.

B. The manufacturer, because the mother chose to ignore the weight limit on the warning label.

C. The mother, because the baby bouncer was defectively designed.

D. The mother, because the weight limit was the result of a manufacturing defect.

Explanation:

Assumption of the risk

(defense to strict liability)

Traditional *contributory* negligence jurisdiction	*Bars* recovery when plaintiff voluntarily exposed him/herself to known risk
Pure *comparative* negligence jurisdiction*	*Reduces* recovery when plaintiff voluntarily exposed him/herself to known risk Narrow exception: *Bars* recovery when plaintiff received *benefit* (eg, financial gain, employment) from his/her exposure to risk

* Default rule on MBE.

A plaintiff can prevail on a **strict products liability** claim if the defendant is a commercial supplier (eg, manufacturer) and its defective product caused the plaintiff harm. Under the **risk-utility test**, a product is **defective by design** when:

the design creates a **foreseeable risk** of harm *and*

that risk could have been mitigated by a **reasonable alternative design** (eg, a modification that reduces the risk for a reasonable cost).

However, in jurisdictions that apply the traditional rules of **contributory negligence** (as seen here), **assumption of the risk** completely **bars** a plaintiff's recovery for strict products liability when the plaintiff (1) **knows** of the product's risk of harm and (2) **voluntarily uses** the product **despite that risk**.

Here, the manufacturer's baby bouncer used a plastic clamp that could only withstand a maximum weight of 20 pounds. This created a foreseeable risk that the clamp could slip off and severely injure an infant. And this risk of harm could have been mitigated by using a metal clamp for a slightly higher cost. As a result, the bouncer was defectively designed **(Choice C)**. But the mother assumed this risk because she read the warning label describing the risk (knowledge of risk) and chose to ignore it (voluntary use). Therefore, the manufacturer will likely prevail.

(Choice A) The fact that the manufacturer put a warning label on the baby bouncer regarding the weight limit is relevant to establishing that the mother knew about the risk of harm. But this fact alone does not absolve the manufacturer from strict products liability.

(Choice D) A product has a manufacturing defect if it deviates from the manufacturer's intended design (eg, due to incorrect assembly). Here, the baby bouncer was manufactured

according to the manufacturer's design, so its weight limit was not the result of a manufacturing defect.

Educational objective:

In a traditional contributory-negligence jurisdiction, the plaintiff's assumption of the risk—ie, voluntary use of a product despite its known risk of harm—is a complete bar to recovery for strict products liability.

References

Restatement (Third) of Torts: Prods. Liab. § 1 (Am. Law Inst. 1998) (defining strict products liability).

Restatement (Second) of Torts: § 523 (Am. Law Inst. 1977) (explaining strict liability and assumption of the risk).

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A tanker truck filled with a flammable gas properly displayed the warning signs required by the U.S. Department of Transportation. As the truck driver was driving on an interstate highway, he failed to signal when changing lanes as required by a state statute. As a result, an automobile driver traveling in the next lane had to swerve sharply onto the shoulder of the road. Due to debris on the shoulder and the fact that he was speeding, the driver lost control of the automobile. In the resulting accident, the automobile driver suffered serious injuries.

The automobile driver brought a strict liability action against the truck driver to recover personal-injury damages.

In a contributory negligence jurisdiction, is the automobile driver likely to prevail?

A. No, because the accident was not caused by the transportation of the hazardous chemicals.

B. No, because the automobile driver's own negligence bars his recovery.

C. Yes, because the transportation of hazardous chemicals is an abnormally dangerous activity.

D. Yes, because the truck driver violated a statute by failing to signal when changing lanes.

Explanation:

An **abnormally dangerous activity** is an uncommon activity that creates a foreseeable and highly significant risk of physical harm (ie, bodily injury or property damage) even when reasonable care is used. A defendant can be held **strictly liable** for an abnormally dangerous activity (eg, transporting hazardous chemicals) **if** the plaintiff's **harm results from** the **risk that made the activity abnormally dangerous** in the first place.

Here, the truck driver was transporting a flammable gas (hazardous chemical), which is traditionally considered abnormally dangerous because of the highly significant risk of fire or explosion that it poses.* However, the automobile driver swerved and lost control of his car because the truck driver unexpectedly changed lanes without signaling—a hazard unrelated to the abnormal dangers of transporting hazardous chemicals. Therefore, the automobile driver is unlikely to prevail in his strict liability action **(Choice C)**.

*Some modern courts have found that transportation of hazardous chemicals does not qualify as an abnormally dangerous activity because of its current frequency.

(Choice B) In contributory negligence jurisdictions (including this one), the plaintiff's own negligence is a complete bar to recovery in a negligence action. But it is no defense to strict liability (ie, it does not bar recovery).** Therefore, the fact that the automobile driver's speeding contributed to the accident does not bar his recovery.

**In comparative negligence jurisdictions, courts are divided as to whether the plaintiff's own negligence will reduce the plaintiff's recovery by his/her proportionate share of fault in a strict liability action.

(Choice D) The truck driver did violate a statute by failing to signal when changing lanes. This was negligent per se because the statute was designed to protect persons like the automobile driver from traffic accidents. But proof of negligence is irrelevant to this strict liability action.

Educational objective:

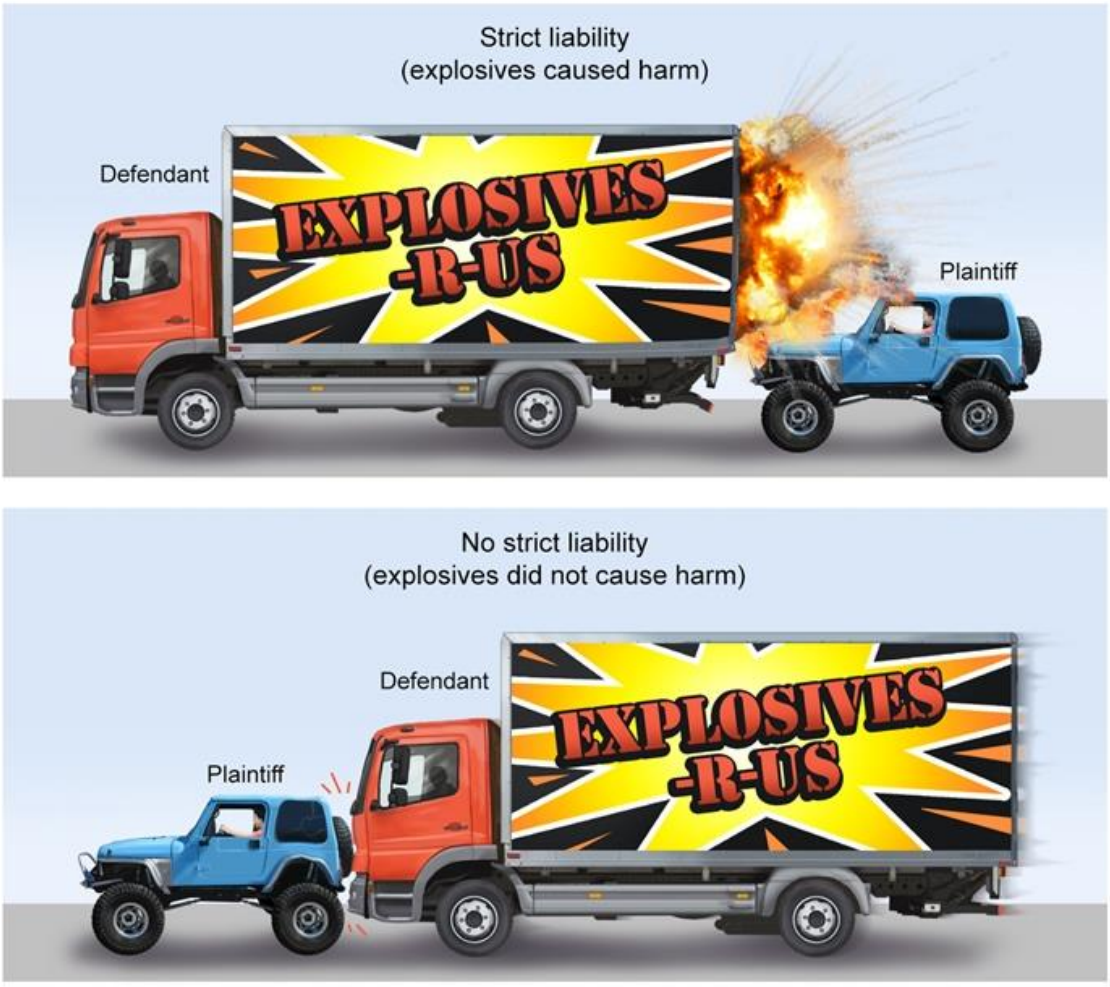
A defendant may be held strictly liable for an abnormally dangerous activity if the plaintiff's harm results from the risk that made the activity abnormally dangerous in the first place.

References

Restatement (Third) of Torts: Liab. for Physical and Emotional Harm § 20 (strict liability for abnormally dangerous activities).

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Strict liability for abnormally dangerous activity



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The driver of a newly purchased automobile encountered problems with its power steering. Due to a manufacturing defect in the steering system that was present when the automobile left the manufacturer, the driver was unable to control the automobile. Fortunately, the driver was able to bring the automobile to a stop, but not before hitting and destroying a parked bicycle. Seeking to recover the cost of her bicycle, the bicyclist has sued the automobile manufacturer in a breach-of-warranty action.

Is the bicyclist likely to succeed in a jurisdiction that follows the majority approach to breach-of-warranty actions?

A. No, because the bicyclist did not suffer any personal injuries due to the defective steering system.

B. No, because the bicyclist was not in privity with the automobile manufacturer.

C. Yes, because the defect in the automobile's steering system that destroyed the bicycle existed at the time the automobile left the manufacturer's control.

D. Yes, because the property damage suffered by the bicyclist was a foreseeable result of an automobile with a faulty steering system.

Explanation:

Products liability actions based on breach of warranty can be asserted against a variety of defendants (eg, retailers, distributors, manufacturers). However, the **plaintiff** must establish **privity with the defendant** to have **standing to sue** for **breach of warranty**. This becomes an issue when the plaintiff is someone other than the purchaser. Under the majority approach, the purchaser's privity extends only to members of the **purchaser's family or household**—but they can only recover for **personal injury**.

Here, the driver (not the bicyclist) was the purchaser of the automobile, and the bicyclist is not a member of the driver's family or household. This means that the bicyclist was *not* in privity with the automobile manufacturer under the majority approach and has no standing to sue. As a result, her breach-of-warranty action against the manufacturer will not succeed.*

*Had this jurisdiction followed a minority approach—under which privity extends to any person reasonably expected to use, consume, or be affected by the product—the bicyclist would have had standing and could have recovered for any injury.

(Choice A) Whether the bicyclist suffered any personal injuries would matter only if she were in privity with the manufacturer and had standing to sue. But even if she had standing, the bicyclist could not recover because she only sustained property damage—not personal injury.

(Choice C) Because the steering system defect existed when the automobile left the manufacturer's control, the manufacturer is a proper defendant. But the bicyclist is not a proper plaintiff because she is not in privity with the manufacturer and therefore lacks standing to sue.

(Choice D) A strict products liability action can be brought by anyone foreseeably injured by a defective product or whose property is harmed by the product. But the foreseeability of the property damage suffered by the bicyclist is not a reason for her to prevail in this breach-of-warranty action.

Educational objective:

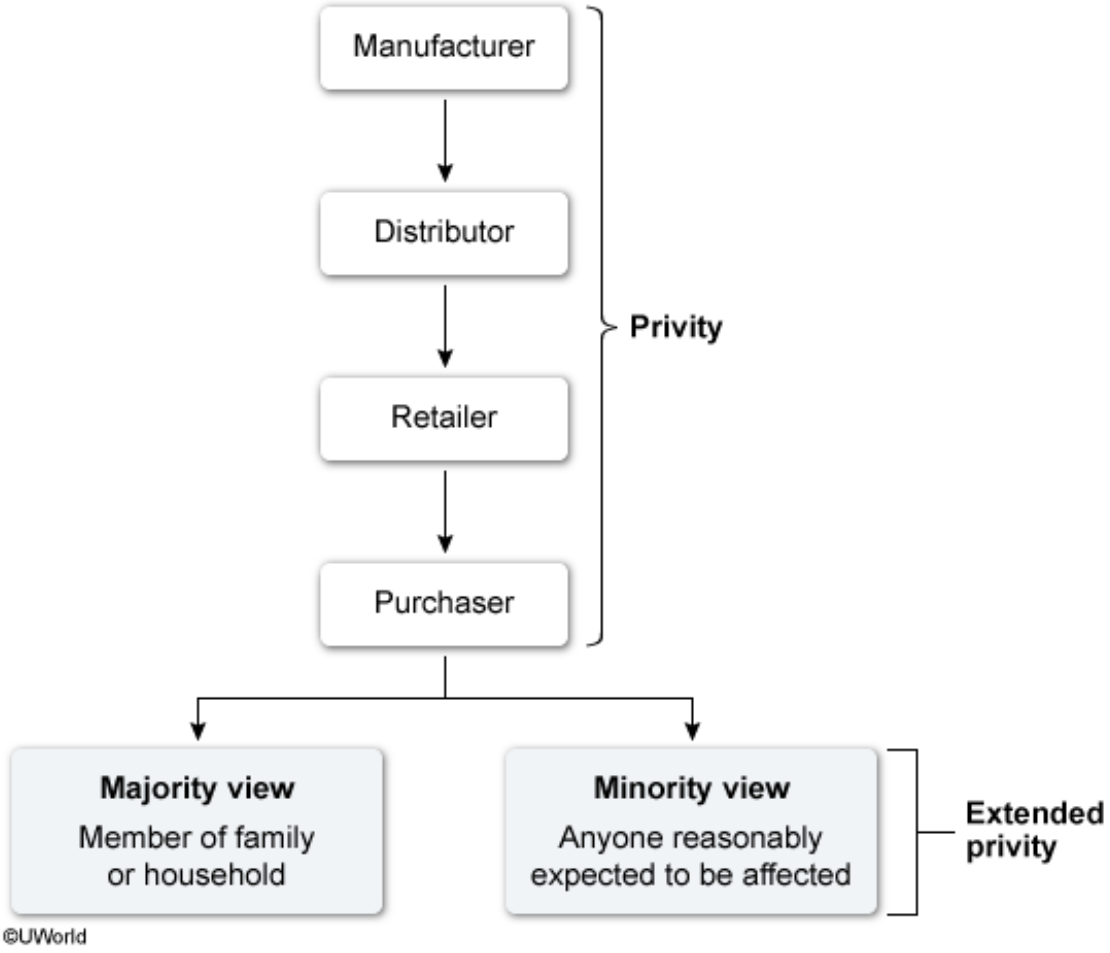
Under the majority approach, only a purchaser or members of a purchaser's family or household have standing to sue for breach of a product warranty, but they can only recover for personal injury.

References

U.C.C. § 2-318 (Am. Law Inst. & Unif. Law Comm'n 2020) (extended privity for breach-of-warranty actions).

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Privity for standing to sue for breach of product warranty



A retired man who had been a sales representative for a drill manufacturer listed a few of his tools manufactured by his former employer on an online garage-sale website. A woman purchased one of the man's listed power drills to use in her home-remodeling business. The power drill had never been used and was still sealed in its original box. The drill manufacturer had used all available techniques to inspect the drill for defects. The drill manufacturer intended the power drill to be used on wood only and therefore included on the drill's box a warning against using the drill on metal or masonry.

One week later, the woman was using the power drill to put holes in a brick wall when the drill bit flew off the drill due to a defective component and caused her to sustain a severe eye injury.

Traditional common-law rules regarding contributory negligence apply in this jurisdiction.

If the woman asserts a strict products liability claim against the man, is she likely to recover?

A. No, because the man was not a commercial supplier.

B. No, because the woman used the drill in an unintended manner.

C. Yes, because the drill had a defective component part.

D. Yes, because the man was a retailer of the power drill.

Explanation:

Strict products liability applies to **commercial suppliers**—ie, persons in the business of manufacturing, distributing, or selling the type of defective product that caused the plaintiff harm. However, it **does not apply to casual sellers**—ie, persons conducting occasional sales *outside* their regular course of business.

Here, the man is a casual seller (not a commercial supplier) because he sold the power drill at an online garage sale—not in the regular course of business. Therefore, although the man sold the defective drill to the woman, he is not subject to strict products liability, and the woman is unlikely to recover.

(Choice B) Misuse is a defense to strict products liability when a product was used in an unintended, unforeseeable manner. Here, the woman used the drill in an unintended manner, despite the manufacturer's warning against using the drill on masonry (ie, brick). But that warning shows that her misuse was foreseeable.

(Choice C) It is irrelevant in this case that the drill had a defective component part. The man is only a casual seller, so he cannot be held strictly liable for the defective drill.

(Choice D) Any commercial supplier along the chain of distribution—including retailers—may be subject to strict products liability if the product contained a defect when it left the supplier's control. While the man likely would have been considered a retailer in his former job, he is only a casual seller in this case.

Educational objective:

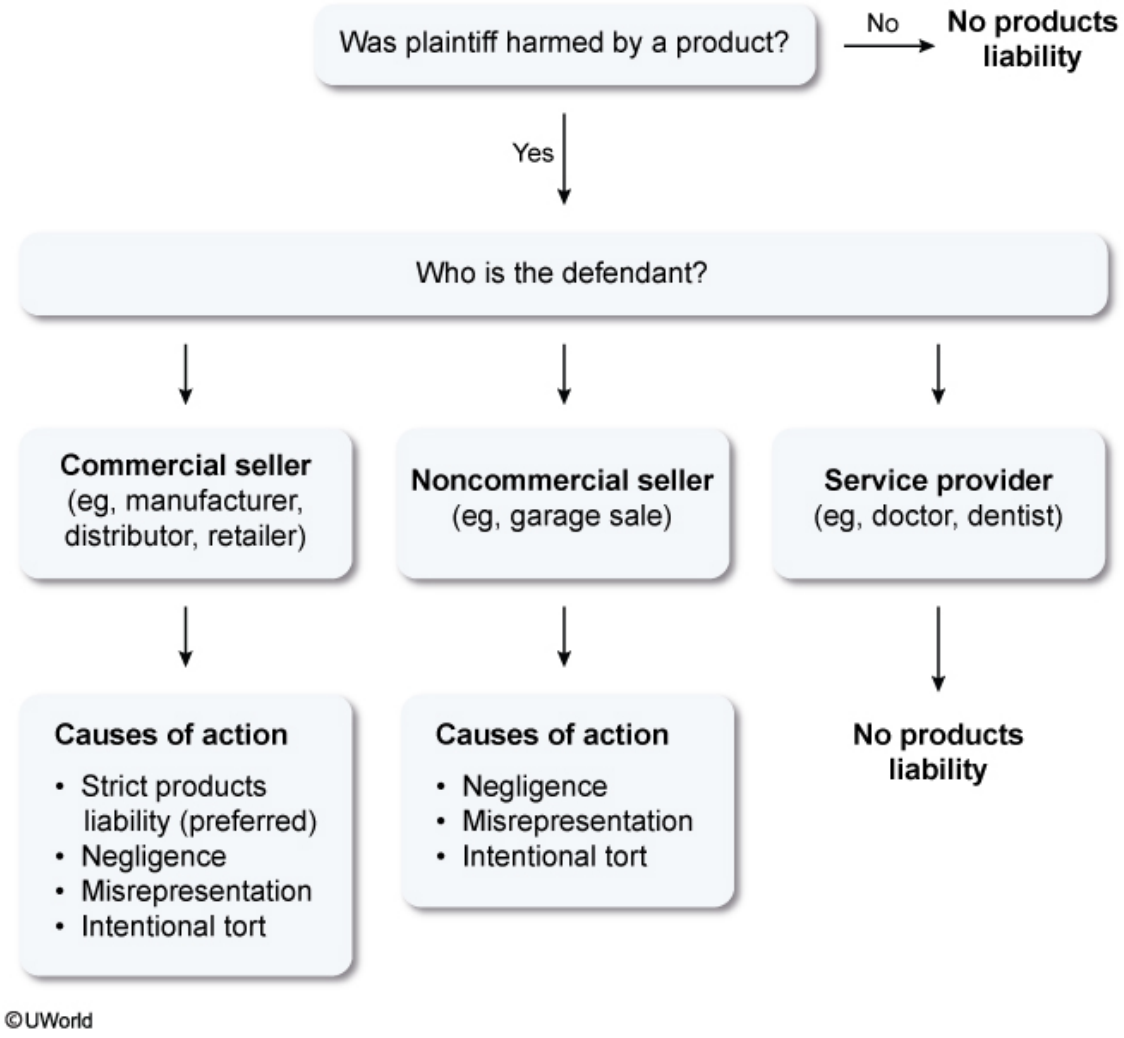
Strict products liability is only imposed on commercial suppliers (persons who manufacture, distribute, or sell products as part of their business)—not casual sellers (persons conducting occasional sales outside their regular course of business).

References

Restatement (Third) of Torts: Prods. Liab. §§ 1 cmt. c, 20 (Am. Law Inst. 1998) (defining commercial supplier).

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Products liability



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A bartender was removing the restraining wire from a bottle of champagne produced and bottled by a wine company when the plastic stopper suddenly shot out of the bottle. The stopper struck and injured the bartender's eye. The bartender had opened other bottles of champagne, and occasionally the stoppers had shot out with great force, but he had not been injured.

The bartender brought an action against the wine company, and the jury found that the bottle that caused his injury was defective and unreasonably dangerous because its label did not warn that the stopper might suddenly shoot out during opening. The state has merged contributory negligence and unreasonable assumption of risk into a pure comparative fault system that is applied in strict products liability actions.

Will the bartender recover a judgment in his favor?

A. No, if a reasonable bartender would have realized that a stopper could eject from the bottle and hit his eye.

B. No, if the jury finds that a legally sufficient warning would not have prevented the bartender's injury.

C. Yes, with damages reduced by the percentage of any contributory fault on the bartender's part.

D. Yes, with no reduction in damages, because foreseeable lack of caution is the reason for requiring a warning.

Explanation:

Under products liability law, **commercial suppliers** are required to provide **adequate warnings** (or instructions) when:

their product poses a foreseeable and unobvious risk of physical harm *and*

reasonable warnings could reduce that risk.

Failure to provide adequate warnings renders a product defective and subjects a commercial supplier to **strict liability** when that **defect causes the plaintiff harm**. To prove that the defect caused his/her harm, the plaintiff must show that the harm would not have occurred had a legally sufficient warning been provided.

Here, the bartender was injured by a champagne bottle stopper. The jury found that the bottle was defective due to its lack of warning about the stopper. But if the jury also finds that a legally sufficient warning would not have prevented the bartender's injury—eg, that even with a warning the bartender would have opened the bottle the same way he had in the past—then the bottle's absent warning did not cause his injury and he will not prevail.

(Choice A) If a reasonable bartender would have realized the stopper's risk of harm, then the bartender may have contributed to his harm by failing to protect himself against that risk (contributory negligence). However, the bartender's contributory negligence would merely reduce—not bar—his recovery in this pure comparative fault jurisdiction.

(Choice C) If the bartender could obtain a judgment in his favor, his recovery would be reduced by his percentage of contributory fault in this pure comparative fault system—eg, bartender 60% at fault would still recover 40% of his damages. But if the jury finds that a sufficient warning would not have prevented his injury (eg, because he would have ignored the warning), then *none* of his harm was caused by the absent warning and he will recover nothing.

(Choice D) The fact that a user's lack of caution may have been foreseeable would support the jury's finding that the bottle was defective. But to recover, the bartender must also prove that a legally sufficient warning would have prevented his injury.

Educational objective:

A commercial supplier is strictly liable for harm caused by a defective product that lacks adequate warnings if legally sufficient warnings would have prevented the plaintiff's harm.

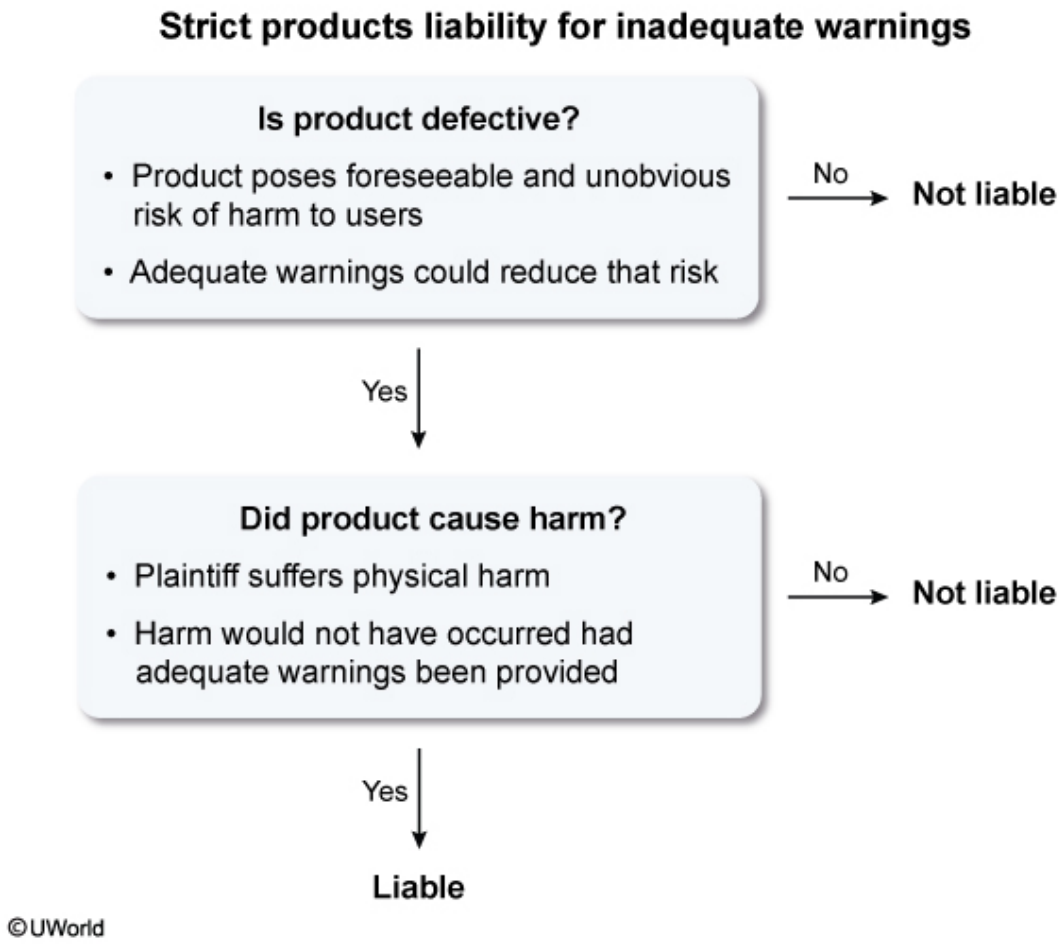
References

Restatement (Third) of Torts: Prods. Liab. §§ 1, 2(c) cmt. i (Am. Law Inst. 1998) (strict products liability for inadequate warnings or instructions).

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 26 cmt. g (Am. Law Inst. 2010) (harm caused by inadequate warnings).

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A 16-year-old student purchased an educational chemistry set manufactured by a chemical company.

The student invited his classmate to assist him in a chemistry project. Referring to a website on explosives and finding that the chemistry set contained all of the necessary chemicals, the student and classmate agreed to make a bomb. During the course of the project, the student carelessly knocked a lighted Bunsen burner into a bowl of chemicals from the chemistry set. The chemicals burst into flames, injuring the classmate.

In a suit by the classmate against the chemical company based on strict liability, will the classmate likely prevail?

A. No, because the student's negligence was the cause in fact of the classmate's injury.

B. No, if the chemistry set was as safe as possible, consistent with its educational purposes, and its benefits exceeded its risks.

C. Yes, because manufacturers of chemistry sets are engaged in an abnormally dangerous activity.

D. Yes, if the chemistry set did not contain a warning that its contents could be combined to form dangerous explosives.

Explanation:

A commercial supplier is subject to **strict products liability** for harm caused by its defective product. A product is **defective by design** if:

it poses a foreseeable risk of harm *and*

that risk could have been reduced by a feasible alternative design (ie, the **risk-utility test**—**comparing** the risks and benefits of the **original design** to those of an **alternative design**).

Here, it may have been foreseeable that the chemistry set would be used in a harmful manner (to make a bomb). But if the chemistry set was as safe as possible, consistent with its educational purposes, and its benefits exceeded its risks, then the benefits of its original design would surpass those of an alternative design. In that case, the chemistry set would not be defective and the chemical company would not be strictly liable.

(Choice A) A "cause in fact" is an event that plays such a substantial role in causing the plaintiff's injury that the injury would not have occurred *but for* that event. But here, the classmate cannot prevail—regardless of whether the student's negligence was a cause in fact of the classmate's injury—because the chemistry set was not defective.

(Choice C) Strict liability may be imposed for harm caused by an abnormally dangerous activity. Although it may be abnormally dangerous to manufacture chemistry sets, the classmate was harmed by his attempt to make a bomb with a chemistry set—not by the chemical company's earlier manufacturing of that set. Therefore, the company is not liable under this theory.

(Choice D) Commercial suppliers may be strictly liable for not providing adequate warnings about a product's risk of harm—but only if those warnings would have prevented the plaintiff's harm. Here, the student and the classmate already knew (from the website) that the chemicals could be combined to make explosives and knowingly ignored that risk. Therefore, a warning would have been ineffective and a failure to warn claim would likely fail.

Educational objective:

A product is defectively designed if (1) it poses a foreseeable risk of harm and (2) that risk could have been reduced by a feasible alternative design, as determined by the risk-utility test (comparing the risks and benefits of the original and alternative designs).

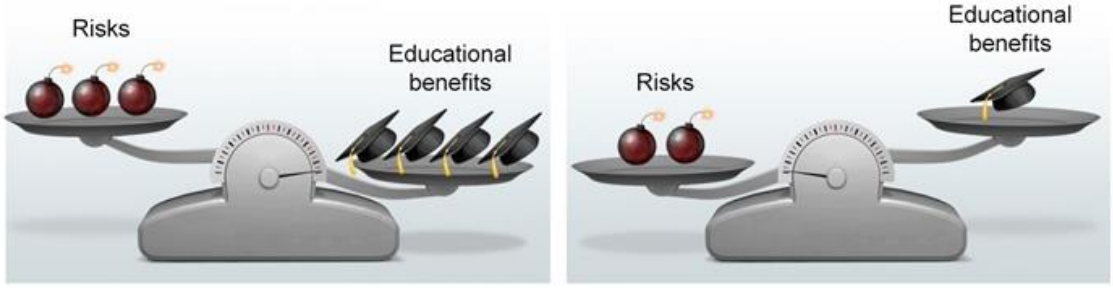
References

Restatement (Third) of Torts: Prods. Liab. §§ 1, 2(b) (Am. Law Inst. 1998) (strict liability for defectively designed products).

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Risk-utility test



Original chemistry set
(benefits outweigh risks)

Alternative design
(risks outweigh benefits)

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One weekend, a retired man conducted a garage sale at his home. A woman came to the garage sale in search of a power drill to use in her home-remodeling business. The man happened to have a power drill for sale that fit the woman's needs. The power drill had never been used and was still sealed in its original box. The power drill was manufactured by a drill company, which uses all available techniques to inspect its products for defects. The drill company only intended the power drill to be used on plywood.

One week later, the woman suffered a severe eye injury while using the power drill to put holes in a thick metal sheet when the drill bit flew off the drill due to a defective component and caused her eye injury.

Traditional common law rules regarding contributory negligence apply in this jurisdiction.

If the woman asserts a claim based on strict products liability against the drill company, which of the following facts will most likely negate the drill company's liability?

A. The drill company used every available means to inspect the drill for defects.
B. The drill was being put to an improper use.
C. The woman did not directly purchase the drill from the drill company.
D. The woman was contributorily negligent in using the drill on a thick sheet of metal.

Explanation:

When a commercial supplier's defective product causes harm to the plaintiff, the supplier is subject to **strict products liability** absent some defense. One **defense** that negates a commercial supplier's strict liability is the plaintiff's **improper use** of a product—ie, using the product in an **unintended *and* unforeseeable** manner.

Here, the woman used the drill in an *unintended* manner because the drill was intended to be used only on plywood—not metal. So if it is established that the woman's use of the drill was also *unforeseeable*, then her improper use of the drill would negate the company's strict liability.

(Choice A) A commercial supplier's use of every available means to inspect a product would be relevant to a *negligence* action, which considers the defendant's use of reasonable care. But the drill company's reasonable care is irrelevant to the woman's *strict liability* action, which imposes liability without proof of culpability.

(Choice C) A commercial supplier is strictly liable when its defective product causes harm to any foreseeable plaintiff—not just direct purchasers. Therefore, the fact that the woman did not purchase the drill directly from the drill company is irrelevant.

(Choice D) Contributory negligence refers to the plaintiff's failure to use the standard of care that a person should use for his/her own protection. This is no defense to strict products liability in this jurisdiction, which follows the traditional common law rules of contributory negligence.

Educational objective:

A plaintiff's improper use of a defective product—ie, using the product in an unintended and unforeseeable fashion—negates a commercial supplier's strict liability.

References

Restatement (Third) of Torts: Prods. Liab. § 15 (Am. Law Inst. 1998) (misuse of a product).

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Foreseeable use
(intended + foreseeable)



Misuse
(unintended + unforeseeable)



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A window manufacturer made windows for a commercial skyscraper. The manufacturer made the windows in strict accordance with the specifications provided by the general contractor for the building and used reasonable care in making the windows. Nevertheless, a defect in the design of the windows resulted in one of the windows suddenly shattering and injuring an office worker who sat next to the window in the completed building.

Is the office worker likely to recover damages in an action against the manufacturer based solely on strict products liability?

A. No, because the manufacturer strictly adhered to the specifications provided.

B. No, because the windows' defective design was attributable to the general contractor's negligence.

C. Yes, because the manufacturer was in privity with the general contractor.

D. Yes, because the office worker was injured by the defective window.

Explanation:

To recover in an action based on **strict products liability**, the plaintiff must prove the following elements:

The defendant was a commercial seller (eg, manufacturer—as seen here).*

The **product was defective** when it **left the defendant's control**.

The defect caused the plaintiff **physical harm** (ie, bodily harm or property damage).

Here, there was a defect in the design of the windows, which necessarily existed when the windows left the manufacturer's control. That defect resulted in one of the windows suddenly shattering and injuring the office worker. Therefore, the office worker is likely to recover damages in an action against the manufacturer based on strict products liability.

*A commercial seller does not include someone who makes casual or occasional sales that are not part of his/her regular business (eg, an individual car owner who sells a car to his neighbor).

(Choices A & B) The manufacturer's strict adherence to the specifications provided by the general contractor shows that the windows' defective design was attributable to the general contractor. But strict products liability is imposed on commercial sellers without proof of fault (eg, negligence)—even if the seller did not create the defect—so long as the defect existed at the time it left the seller's control (as seen with the manufacturer here).

(Choice C) Although the manufacturer and the general contractor were in privity, privity is not a requirement in a strict liability action. Additionally, even if privity were a requirement, it would be based on the relationship of the manufacturer (as defendant) and the office worker (as plaintiff)—not the manufacturer and the general contractor.

Educational objective:

A strict products liability claim requires proof that (1) the defendant was a commercial seller, (2) the product was defective when it left the defendant's control, and (3) the defect caused the plaintiff physical harm.

References

Restatement (Third) of Torts: Prods. Liab. §§ 1, 2(b) (Am. Law Inst. 1998) (liability for products that are defective in design).

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Elements of strict products liability

Δ was commercial seller

- Manufacturer
- Distributor
- Retailer

+

Product defective at time left Δ's control

- Manufacturing defect
- Design defect
- Failure to warn

+

Defect caused π physical harm

- Bodily harm
- Property damage

π = plaintiff; Δ = defendant

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In preparation for a mountain-climbing expedition, a climber purchased the necessary climbing equipment from a retailer in sporting goods. A week later, the climber fell from a rock face when a safety device he had purchased from the retailer malfunctioned because of a defect in its manufacture. Thereafter, a paramedic was severely injured when he tried to reach and give assistance to the climber on the ledge to which the climber had fallen. The paramedic's injury was not caused by any fault on his own part. This jurisdiction does not recognize the firefighter's rule in products liability actions.

If the paramedic brings an action against the retailer to recover damages for his injuries, will the paramedic prevail?

A. No, because the paramedic did not rely on the representation of safety implied from the sale of the safety device by the retailer.

B. No, unless the retailer could have discovered the defect by a reasonable inspection of the safety device.

C. Yes, because injury to a person in the paramedic's position was foreseeable if the safety device failed.

D. Yes, unless the climber was negligent in failing to test the safety device.

Explanation:

Under **products liability** law, a **commercial seller** is strictly liable when (1) it produces or **sells a defective product** and (2) the product's defect **harms a foreseeable plaintiff**—ie, a person who is reasonably likely to suffer harm because of the defect. A rescuer is a foreseeable plaintiff because a rescuer is likely to risk injury by aiding a person endangered by the defective product.*

Here, the retailer sold a defective safety device that caused the climber to fall. The paramedic then tried to assist the fallen climber and was severely injured in the process. Since it was reasonably foreseeable that the paramedic would risk injury by attempting to aid a climber who was injured by the defective safety device, the paramedic will likely prevail.

*In jurisdictions that recognize the firefighter's rule in products liability actions (not seen here), professional rescuers are generally precluded from recovering for injuries sustained in attempting to rescue an individual harmed by the defective product.

(Choice A) Products sold by a commercial seller have an implied warranty of merchantability—a seller's implied representation that the product is safe and suitable for its ordinary purpose. However, a plaintiff's reliance on a seller's implied warranty is irrelevant to a strict products liability claim since reliance is not an element of that claim.

(Choice B) Since strict liability is imposed without proof of the defendant's culpability, the retailer would be strictly liable regardless of whether it could have discovered the defect by a reasonable inspection of the safety device.

(Choice D) A consumer has no duty to inspect a product for manufacturing defects. Therefore, the climber could not have been negligent in failing to test the safety device.

Educational objective:

A commercial seller (eg, manufacturer, wholesaler, retailer) is subject to strict products liability when (1) it sells a defective product and (2) the product's defect harms a foreseeable plaintiff (eg, purchaser, rescuer).

References

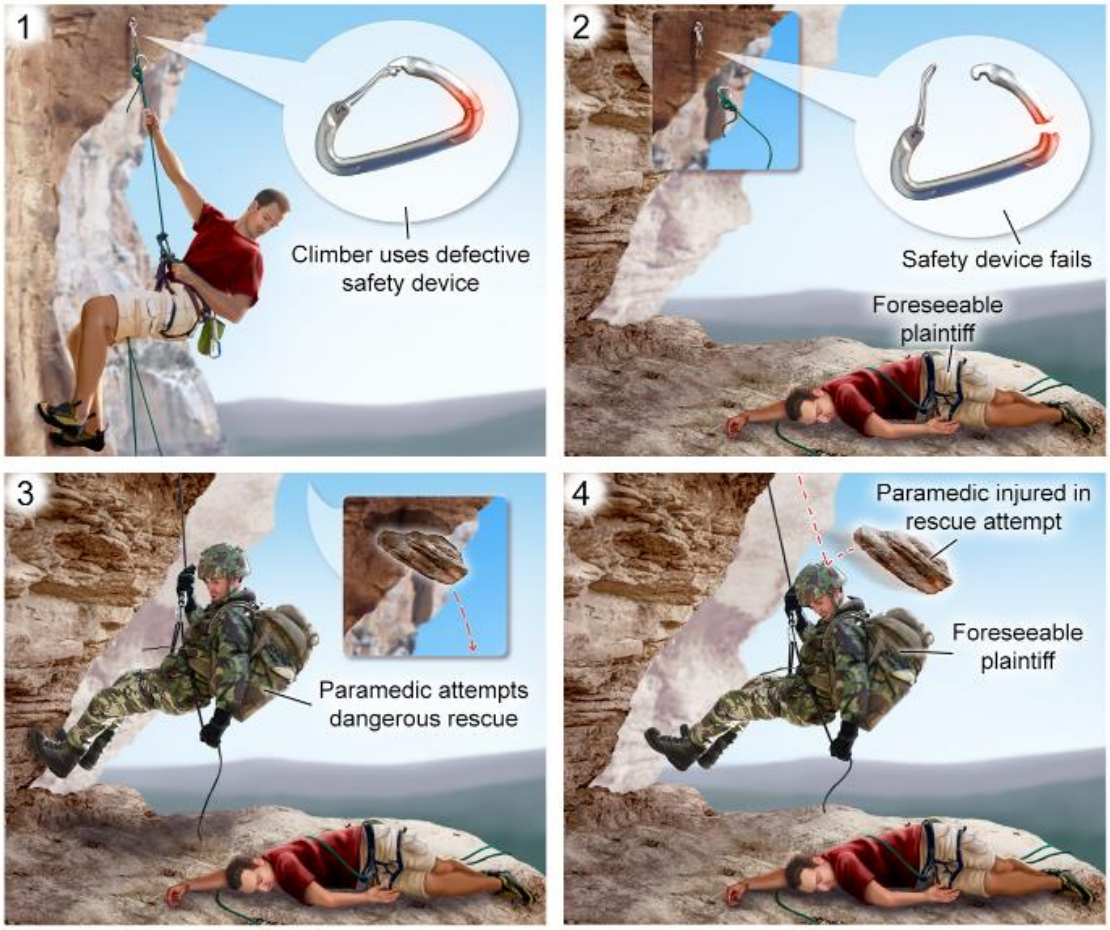
Restatement (Third) of Torts: Prods. Liab. §§ 1, 2(a) (Am. Law Inst. 1998) (liability for products that contain manufacturing defects).

Restatement (Third) of Torts: Liab. for Physical &; Emotional Harm § 32 (Am. Law Inst. 2010) (liability to rescuers).

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Foreseeable plaintiff



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A man was driving his new car along a dark road with the car's high-beam headlights on to illuminate the road. When he saw the headlights of another car appear in the distance, he reached to turn the high beams off. Instead of turning from high-beam to low-beam, the headlights on the car turned off completely. The man tried repeatedly to turn the lights on again but could not do so. He collided with the other car and suffered injuries.

The man has brought an action against the manufacturer of the headlight controls in his car, the manufacturer of his car, and the retailer who sold him the car.

If the man can establish that a defect in the controls caused the accident, from whom can he recover?

A. Only the manufacturer of the car.

B. Only the manufacturer of the car and the retailer of the car.

C. Only the manufacturer of the headlight controls and the manufacturer of the car.

D. All three defendants.

Explanation:

Any **commercial supplier** in the chain of distribution (eg, manufacturer, distributor, retailer) may be subject to **strict products liability** if (1) the product contained a **defect when it left that commercial supplier's control** and (2) the defect caused the plaintiff's harm. Strict liability (liability without proof of fault) is imposed even when the commercial supplier did not directly cause—or was unaware of—the product defect.

Here, a defect in the man's headlight controls caused him to collide with another car and suffer injuries. That defect existed at the time the *headlight manufacturer* sold the headlight controls to the car manufacturer. And the defect continued to exist when the *car manufacturer* sold the car (with the defective headlight controls) to the retailer and when the *retailer* sold that car to the man. As a result, all three defendants are strictly liable for the man's injuries **(Choices A, B, & C)**.

Educational objective:

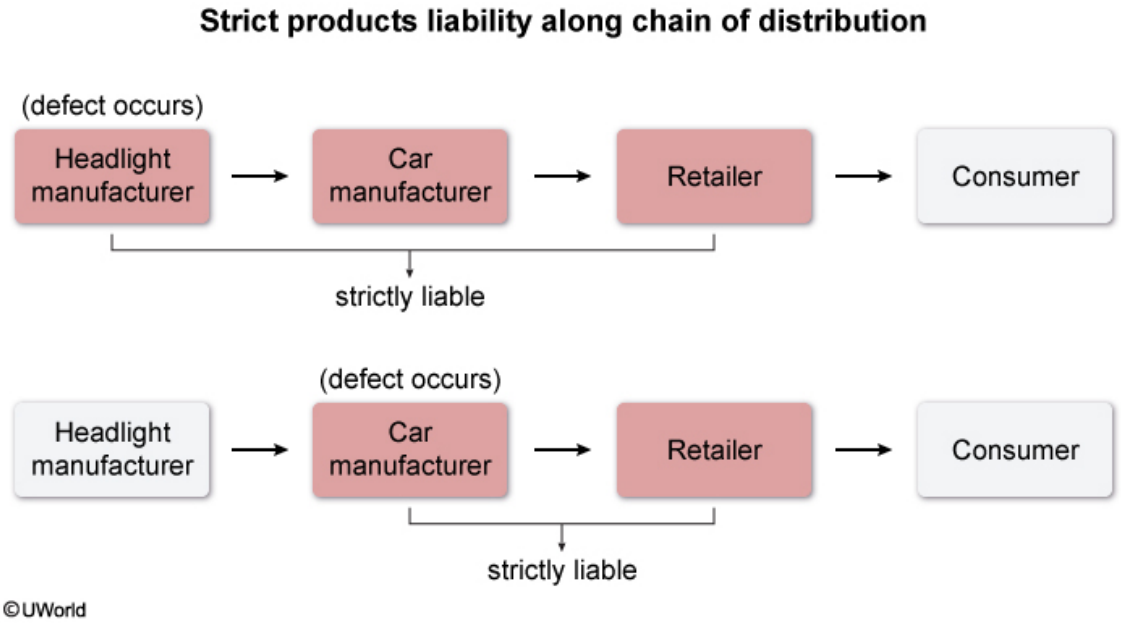
Any commercial supplier in the chain of distribution may be strictly liable for a defective product that harms the plaintiff if the defect existed at the time the product left the commercial supplier's control.

References

Restatement (Third) of Torts: Prods. Liab. § 1 cmt. e (Am. Law Inst. 1998) (commercial supplier liability).

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An environmentalist purchased a newly released electric car from a car manufacturer. The car possessed many innovative features, including the ability to drive and maneuver itself through traffic with minimal assistance from the driver. One day, the environmentalist entered an address into the car's computer system and followed all protocol regarding the amount of assistance she needed to give the car in order to reach her destination. However, as the car was driving her to the destination, the computer system malfunctioned. The car swerved violently into oncoming traffic, causing a car accident in which the environmentalist sustained a broken arm.

The environmentalist subsequently filed a strict products liability action against the car manufacturer under a design-defect theory of recovery. At trial, the environmentalist introduced evidence that a reasonable alternative design for the computer system was available to the car manufacturer and that failure to use that design rendered the car not reasonably safe. In its defense, the car manufacturer introduced evidence that the car's computer system complied with all governmental safety standards for electric cars. In addition, the car manufacturer demonstrated that the car's computer system was "state of the art" by introducing as evidence the level of relevant technological knowledge existing and reasonably feasible at the time the car was distributed.

Will the environmentalist likely prevail?

A. No, because the car's computer system complied with all governmental safety standards for electric cars.

B. No, because the car's computer system was "state of the art" based upon the technological knowledge existing and reasonably feasible at the time the car was released.

C. Yes, because the car manufacturer negligently designed the car's computer system since there was a reasonable alternative design available to it.

D. Yes, because the car's computer system was defective and the environmentalist was injured as a result of the computer system's malfunction.

Explanation:

Strict liability may be imposed on a commercial seller (eg, manufacturer) that produces or sells a defective product that causes the plaintiff physical harm. A product is **defective by design** if:

the product's design is **unreasonably dangerous** to consumers *and*

that danger could have been mitigated by a **feasible alternative design**—ie, a less dangerous and economically reasonable modification or alternative design.

In its **defense**, the commercial seller may introduce evidence that the product's design was "**state of the art**." The "state of the art" standard is met if the design complied with the level of relevant scientific, technological, and safety knowledge existing and reasonably feasible at the time the product was distributed. However, compliance with this standard **does NOT bar** the **plaintiff's recovery** against the commercial seller as a matter of law.*

Here, the environmentalist introduced evidence that a reasonable alternative design for the car's computer system was available to the car manufacturer and that failure to use that design rendered the car not reasonably safe (design defect). Although the manufacturer then introduced evidence that the car's computer system was "state of the art," this does not bar recovery against the manufacturer **(Choice B)**. Therefore, the environmentalist will likely prevail because the car's computer system was defective and she was injured as a result of its malfunction.

*Some states have enacted statutes providing that compliance with the state-of-the-art standard is a total bar to recovery (not seen here).

(Choice A) A product that fails to comply with governmental safety standards is deemed defective. But a product's compliance with such standards is not conclusive evidence that the product is free from defects.

(Choice C) Whether the car manufacturer negligently designed the car's computer system is irrelevant in this strict liability action.

Educational objective:

In a strict products liability action brought under a defective-design theory of recovery, the manufacturer's evidence that the product's design was "state of the art" does not bar the plaintiff's recovery as a matter of law.

References

Restatement (Third) of Torts: Prods. Liab. §§ 1, 2(b) (Am. Law Inst. 1998) (liability of commercial seller for design defects).

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Elements of strict products liability

Δ was commercial seller

- Manufacturer
- Distributor
- Retailer

+

Product defective at time left Δ's control

- Manufacturing defect
- Design defect
- Failure to warn

+

Defect caused π physical harm

- Bodily harm
- Property damage

π = plaintiff; Δ = defendant

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A fumigation company was hired to eliminate pests in one of two buildings in a condominium complex that shared a common wall. The owners of the complex told the fumigation company that the common wall separating the infested building from the uninfested building was an impenetrable fire wall. The fumigation company did its own thorough inspection and determined that the buildings were indeed completely separated by the wall. Residents of the condominium units in the building that was to be sprayed were told to evacuate, but the residents of the uninfested building were told that they could remain while the other building was treated.

During and shortly after the fumigation, in which a highly toxic chemical was used, many residents of the uninfested building became sick. It was determined that their illnesses were caused by the fumigation chemical.

In fact, there was a hole in the fire wall separating the two buildings, but because it could only be observed from a specific position in the crawl space underneath the floor of the uninfested building, it had not been discovered by either the fumigation company or any previous building inspector.

Are the residents of the uninfested building likely to prevail in a tort action against the fumigation company?

A. No, because the condominium complex owners were responsible for accurately conveying the condition of their buildings.
B. No, because the fumigation company exercised a high level of care.
C. Yes, because the fumigation company can be held strictly liable for its activity.
D. Yes, because the fumigation company put a dangerous product into the stream of commerce.

Explanation:

Abnormally dangerous activity

An activity is abnormally dangerous when:

it is uncommon in the community *and*
it presents a foreseeable & highly significant risk of physical harm that cannot be mitigated by reasonable care
A defendant is **strictly liable** (liable regardless of fault) for the plaintiff's harm caused by an **abnormally dangerous activity**. An activity is abnormally dangerous when it (1) is **uncommon** in the community and (2) creates a **foreseeable and highly significant risk** of physical harm to the plaintiff that **cannot be mitigated by reasonable care**.

Here, the use of highly toxic chemicals to fumigate a building (uncommon activity in the community) is an abnormally dangerous activity since it is highly probable that persons exposed to the chemicals will become sick (foreseeable and significant risk of harm). And since several residents became sick after their exposure to the chemicals, the fumigation company will likely be strictly liable for their harm.

(Choice A) The significant risk of harm posed by an abnormally dangerous activity cannot be mitigated by *anyone's* use of reasonable care. Therefore, the condominium owners' failure to exercise reasonable care (by not accurately conveying the condition of their buildings) will not extinguish the fumigation company's strict liability.

(Choice B) A defendant engaged in an abnormally dangerous activity is strictly liable for the plaintiff's harm regardless of the level of care used in carrying out the activity. Therefore, the fumigation company's exercise of a high level of care does not negate its strict liability to the sick residents.

(Choice D) A defendant may be strictly liable for distributing a defective or dangerous product into the stream of commerce, but that is irrelevant here since the fumigation company provided a service—not a product.

Educational objective:

A defendant is strictly liable for harm caused by an abnormally dangerous activity—an uncommon activity that poses a foreseeable and highly significant risk of physical harm that cannot be mitigated by reasonable care. Therefore, the use of reasonable care is no defense.

References

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 20 (Am. Law Inst. 2010) (abnormally dangerous activity).

Old Island Fumigation, Inc. v. Barbee, 604 So. 2d 1246 (Fla. Dist. Ct. App. 1992).

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A homeowner hired an arsonist to set fire to the homeowner's house so that the homeowner could collect the insurance proceeds from the fire. After pouring gasoline around the house, the arsonist lit the fire with his cigarette lighter and then put the lighter in his pocket. As the arsonist was standing back admiring his work, the lighter exploded in his pocket. The arsonist suffered severe burns to his leg.

The arsonist brought an action against the manufacturer of the lighter based on strict products liability. Under applicable law, the rules of pure comparative fault apply in such actions.

Will the arsonist prevail?

A. No, because the arsonist was injured in the course of committing a felony by the device used to perpetrate the felony.

B. No, because the lighter was not being used for an intended or reasonably foreseeable purpose.

C. Yes, if the arsonist can establish that the lighter was the proximate cause of his injury.

D. Yes, if the lighter exploded because of a defect caused by a manufacturing error.

Explanation:

To prevail in an action based on **strict products liability**, the plaintiff must prove that the defendant is a **commercial supplier**—one engaged in the business of manufacturing, distributing, or selling products—who produced or sold a **defective product** that caused the plaintiff harm. A product is defective if a manufacturing error caused the product to **deviate from its intended design** despite the manufacturer's exercise of all possible care.

Here, the cigarette lighter exploded in the arsonist's pocket and caused him severe burns. If that explosion resulted from a manufacturing error that made the lighter deviate from its intended design, then the manufacturer will be strictly liable for the arsonist's harm.

(Choices A & B) A commercial supplier is strictly liable for harm caused by a defective product used in a *foreseeable* manner. Therefore, a plaintiff's misuse of a product—using the product in an *unintended* and *unforeseeable* manner—negates a commercial supplier's strict liability. Here, the arsonist will prevail because the lighter exploded while he stored it in his pocket (foreseeable use)—not while he was using it to perpetrate a felony (misuse).

(Choice C) Commercial suppliers are only strictly liable for harm proximately caused by the product's manufacturing error. Therefore, mere evidence that the lighter—not a manufacturing error in the lighter—proximately caused the arsonist's injury is insufficient to establish strict products liability.

Educational objective:

A commercial supplier is strictly liable for harm caused by a manufacturing defect—a deviation from the product's intended design despite the manufacturer's exercise of all possible care.

References

Restatement (Third) of Torts: Prods. Liab. § 1 (Am. Law Inst. 1998) (liability of commercial supplier).

Restatement (Third) of Torts: Prods. Liab. § 2(a) (Am. Law Inst. 1998) (manufacturing defect).

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A hot-air balloon touring company operated near a golf course. The company's property was separated from the golf course by a fence on which the company had posted signs warning people not to enter the property because of the dangers of balloons landing.

A golfer on the golf course hit an errant shot onto the company's property, ignored the warning signs, and jumped over the fence to retrieve her golf ball. At about the same time, one of the company's balloons experienced mechanical problems and had to make an emergency landing to avoid crashing. The balloon, which was out of control when it landed, struck the golfer and injured her.

The jurisdiction has decided that hot-air ballooning is an abnormally dangerous activity.

In an action by the golfer against the company, does the company have any affirmative defenses?

A. No, because the balloon was out of control when it struck the golfer.

B. No, because the company was engaged in an abnormally dangerous activity.

C. Yes, because the balloon landed to avoid crashing.

D. Yes, because the golfer assumed the risk by coming onto the company's property.

Explanation:

Generally, a defendant is **strictly liable**—liable regardless of fault—for physical harm caused to the plaintiff by an **abnormally dangerous activity**. However, **assumption of the risk** is an affirmative defense to a strict liability claim when the plaintiff (1) **knows** of the risk of harm and (2) **voluntarily accepts** that risk.

Here, the company is strictly liable for the golfer's injury because one of its hot-air balloons (an abnormally dangerous activity in this jurisdiction) struck her as it landed. But since the golfer ignored the signs warning about the dangers of the balloons (knowledge) and entered the property (voluntary acceptance), the company can assert that the golfer assumed the risk as an affirmative defense **(Choice B)**.

(Choice A) Although the balloon was out of control when it struck the golfer, the company had posted signs warning people about the dangers of balloons landing. Because the golfer entered the property despite those warning signs, she assumed the risk of being harmed by a dangerous or out-of-control balloon landing.

(Choice C) Since a defendant is strictly liable for harm caused by an abnormally dangerous activity (eg, hot-air ballooning), the use of reasonable care is no defense. Therefore, while it may have been reasonable to land the balloon to avoid a crash, the reasonableness of the company's conduct is irrelevant.

Educational objective:

Assumption of the risk is an affirmative defense to strict liability when the plaintiff (1) knows of the risk of harm and (2) voluntarily accepts that risk.

References

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 20 (Am. Law Inst. 2010) (abnormally dangerous activity).

Restatement (Second) of Torts § 523 (Am. Law Inst. 1977) (assumption of the risk as defense against abnormally dangerous activity).

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Assumption of risk as a defense to strict liability



known risk + voluntary acceptance
=
assumption of the risk



unknown risk + no voluntary acceptance
≠
assumption of the risk

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A construction company was engaged in blasting operations to clear the way for a new road. The construction company had erected adequate barriers and posted adequate warning signs in the vicinity of the blasting. Although a hiker read and understood the signs, he entered the area to walk his dog. As a result of the blasting, the hiker was hit by a piece of rock and sustained head injuries. The jurisdiction follows the traditional common law rules governing the defenses of contributory negligence, assumption of risk, and last clear chance.

In an action by the hiker against the construction company to recover damages for his injuries, will the hiker prevail?

A. No, because the construction company exercised reasonable care to protect the public from harm.

B. No, because the hiker understood the signs and disregarded the warnings.

C. Yes, because the hiker was harmed by the construction company's abnormally dangerous activity.

D. Yes, unless the hiker failed to use reasonable care to protect himself from harm.

Explanation:

Assumption of the risk

(defense to strict liability)

Traditional *contributory* negligence jurisdiction	*Bars* recovery when plaintiff voluntarily exposed him/herself to known risk
Pure *comparative* negligence jurisdiction*	*Reduces* recovery when plaintiff voluntarily exposed him/herself to known risk Narrow exception: *Bars* recovery when plaintiff received *benefit* (eg, financial gain, employment) from his/her exposure to risk

* Default rule on MBE.

Individuals who engage in abnormally dangerous activities (eg, blasting—as seen here) are generally subject to strict liability. To prevail on a **strict liability** claim, the plaintiff must show that he/she was harmed by the defendant's **abnormally dangerous activity**. But under the traditional common law rules, **assumption of the risk** is a **complete defense** to strict liability when the plaintiff **voluntarily confronted** a **known risk** of harm.

Here, the construction company erected barriers and warning signs near its blasting operations. The hiker read and understood these signs, so he knew that entering the area was risky. And he voluntarily confronted that risk by disregarding the warnings and entering the area. Therefore, although the hiker was harmed by the company's abnormally dangerous activity, he assumed the risk and cannot prevail in this common law jurisdiction **(Choice C)**.

(Choice A) Strict liability claims do not require proof of fault. Therefore, the construction company could be liable even though it exercised reasonable care by erecting adequate barriers and posting adequate warning signs.

(Choice D) Contributory negligence is not a defense to strict liability in common law jurisdictions. Therefore, the hiker's mere failure to use reasonable care for his own protection would not bar his recovery. Instead, the hiker's recovery is barred by his voluntary assumption of the risk.

Educational objective:

Individuals who engage in abnormally dangerous activities are generally subject to strict liability for any resulting harm. But in traditional common law jurisdictions, assumption of the risk is a complete defense to strict liability if the plaintiff voluntarily confronted a known risk of harm.

References

Restatement (Second) of Torts § 524 (Am. Law Inst. 1965) (explaining that contributory negligence is not a defense to strict liability unless the plaintiff's negligence amounts to assumption of the risk).

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A consumer became physically ill after drinking part of a bottle of soda that contained a large decomposed snail. The consumer sued the store from which she had bought the soda to recover damages for her injuries. The parties agreed that the snail had been put into the bottle during the bottling process, over which the store had no control. The parties also agreed that the snail would have been visible in the bottle before the consumer opened it.

Will the consumer likely prevail in an action against the store?

A. No, because the consumer could have seen the snail in the bottle before she drank out of it.

B. No, because the store was not responsible for the bottling process.

C. Yes, because the consumer was injured by a defective product sold to her by the store.

D. Yes, because the store had exclusive control over the bottle before selling it to the consumer.

Explanation:

Commercial suppliers (eg, manufacturers, distributors, retailers) are **strictly liable** for harm caused by **manufacturing defects** in products that they produced or sold. Manufacturing defects include any deviation from a product's intended design that renders it more dangerous than a reasonable consumer would expect—eg, damaged or incorrectly assembled products.

Here, the store (commercial supplier) sold a bottle of soda that contained a decomposed snail (deviation from intended design). And since this manufacturing defect caused the consumer to become physically ill (unreasonable danger to consumer's health), the consumer will likely prevail against the store.

(Choice A) Under pure comparative fault (default rule), a plaintiff's contributory negligence may *reduce* his/her recovery of damages but will not *absolve* the defendant of strict liability. Therefore, the store is strictly liable even though the consumer could have avoided harm by inspecting the bottle before drinking.

(Choice B) Every commercial supplier along the chain of distribution—even one that did not create the defect—is subject to strict liability if the defect was present when the product left the supplier's control. Here, although the store did not bottle the soda, it is strictly liable because the bottle contained a snail at the time of sale (when the bottle left the store's control).

(Choice D) Exclusive control is relevant to a negligence claim based on res ipsa loquitur. However, strict products liability may be imposed on any commercial supplier in the chain of distribution, regardless of whether it had exclusive control over the product before it reached the consumer. Here, the store did not have exclusive control of the bottle. But even if it did, that control has no effect on the store's strict liability.

Educational objective:

A commercial supplier is strictly liable for harm caused by a manufacturing defect—any deviation from a product's intended design that renders it more dangerous than a reasonable consumer would expect—in a product that it produced or sold.

References

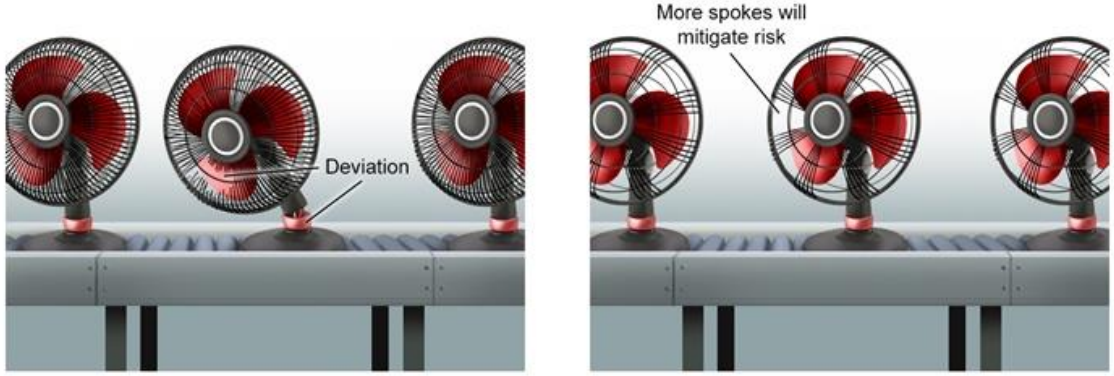
Restatement (Third) of Torts: Prods. Liab. § 1 (Am. Law Inst. 1998) (liability of commercial supplier).

Restatement (Third) of Torts: Prods. Liab. § 2(a) (Am. Law Inst. 1998) (manufacturing defect).

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Manufacturing defect **v.** **Design defect**



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A cell phone manufacturer purchased batteries from a battery manufacturer for use in its cell phones. The batteries were defectively designed. The cell phone manufacturer was aware of the defect in the batteries but nevertheless sold the cell phones directly to consumers without any warning regarding this problem. The defect caused the cell phones to function only when plugged into a charger, greatly diminishing their use and value. However, no consumer was injured, and no property damage was sustained, as a result of the defective batteries.

Consumers whose cell phones were adversely affected by the defect in the batteries brought a class action lawsuit against the cell phone manufacturer based in negligence. The consumers now seek replacement of their cell phone batteries.

Assuming that the consumers can clear the procedural hurdles for bringing a class action lawsuit, are they likely to succeed?

A. No, because the batteries are defective component parts and, therefore, the battery manufacturer is the liable party.

B. No, because the consumers cannot recover for a purely economic loss.

C. Yes, because the batteries were defective.

D. Yes, because the cell phone manufacturer failed to warn the consumers about the defective batteries despite being aware of the defect.

Explanation:

Products liability for a defective product can arise under several theories, including negligence. Under a negligence theory, the plaintiff can recover damages resulting from any personal injury or damage to property other than the defective product itself. However, a claim for **purely economic loss** is **not allowed**. In this context, purely economic loss includes any **damage to the defective product** itself.*

Here, the consumers sued the cell phone manufacturer in negligence after the manufacturer sold them cell phones with defectively designed batteries. The defectively designed batteries adversely affected the cell phones themselves but caused no harm to persons or *other* property—eg, had they caused the cell phones to explode and destroy surrounding property. Therefore, the consumers are unlikely to succeed because they are seeking to recover damages for an unrecoverable, purely economic loss.

*Other common examples of purely economic loss include lost profits, the diminished value of the defective product, and the cost of repairing the defective product.

(Choice A) Although the battery manufacturer is liable for the defectively designed batteries, this does not preclude the consumers from suing the cell phone manufacturer that sold them the phones. That is because anyone who supplies a defective product to another owes a duty of care.

(Choices C & D) The cell phone manufacturer was aware that the batteries were defective and nevertheless used them in its cell phones without warning consumers about the defect. While this conduct may show that the cell phone manufacturer was at least negligent (ie, failed to use reasonable care), the consumers cannot recover for harm to the cell phones alone through a negligence action.**

**However, the consumers may be able to bring a contracts-based claim for breach of warranty to recover for this purely economic loss.

Educational objective:

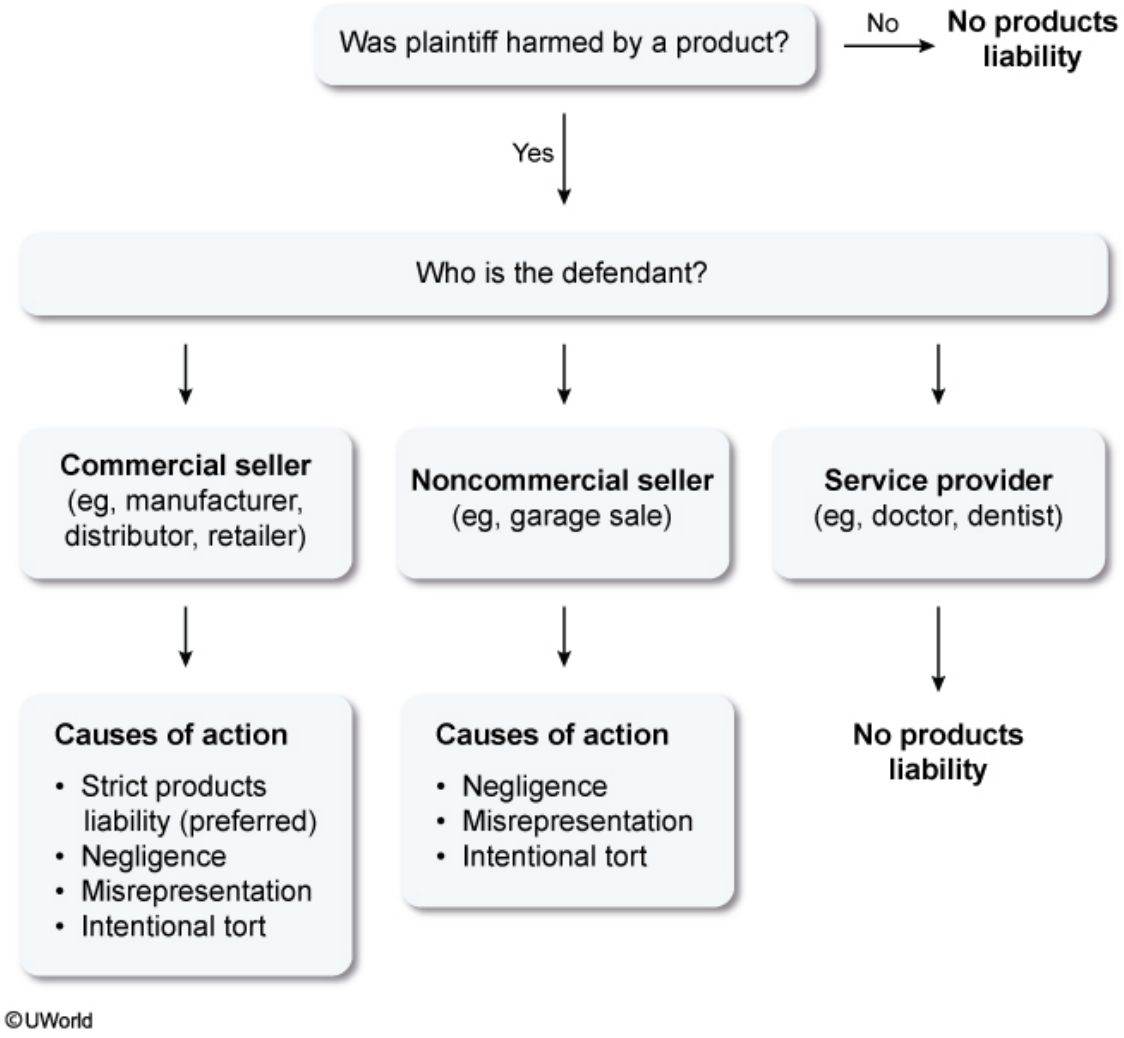
In a products liability action based on negligence, the plaintiff can recover damages stemming from personal injury or damage to property other than the defective product itself. Claims for purely economic loss, which includes any damage to the defective product itself, are not allowed.

References

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 4 cmt. e (Am. Law Inst. 2010) (claims for property damage).

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Products liability



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A homeowner was using a six-foot stepladder to clean the furnace in his home. The homeowner broke his arm when he slipped and fell from the ladder. The furnace had no warnings or instructions on how it was to be cleaned.

In a suit by the homeowner against the manufacturer of the furnace to recover for his injury, is the homeowner likely to prevail?

A. No, because the danger of falling from a ladder is obvious.

B. No, because the homeowner should have hired a professional to clean the furnace.

C. Yes, because the furnace did not have a ladder attached to it for cleaning purposes.

D. Yes, because the lack of warnings or instructions for how to clean the furnace made the furnace defective.

Explanation:

Under products liability law, a commercial supplier is **strictly liable** for harm caused by its **defective product**. A product is defective due to **inadequate warnings or instructions** when:

the product poses a **foreseeable risk of harm** (eg, from improper maintenance) *and* **reasonable instructions or warnings** by the commercial supplier could have **reduced that risk**.

However, a product is **not defective for failing to warn or instruct** about **obvious risks** (eg, the risk of cutting oneself with a sharp knife).

Here, although it may have been foreseeable that a homeowner would use a stepladder to clean the furnace, there is nothing about a home furnace that adds to the obvious dangers associated with working on a stepladder. And since the risk of falling from a stepladder is obvious, the furnace was not defective in failing to provide warnings or instructions about that risk **(Choice D)**. Therefore, the homeowner is unlikely to prevail.

(Choice B) If cleaning the home furnace was so dangerous as to require a professional, then the manufacturer would be strictly liable for failing to provide a warning or instruction about that danger.

(Choice C) A manufacturer is strictly liable to a plaintiff harmed by its defectively designed product—a product that poses a risk of harm that could have been mitigated by a reasonable alternative design. Here, a stepladder is a common household tool, and there is no indication that attaching a ladder to the furnace would have reduced the homeowner's risk of falling (no design defect), so the manufacturer is not liable for failing to attach a ladder.

Educational objective:

If a product poses a foreseeable risk of physical harm, the manufacturer must mitigate that risk by providing adequate warnings or instructions. However, a manufacturer is not required to provide warnings or instructions about obvious risks.

References

Restatement (Third) of Torts: Prods. Liab. §§ 1, 2(c) (Am. Law Inst. 1998) (liability for failure to warn about a product's risks).

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Warning label



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A pop star hired a seamstress to sew several leather outfits for his upcoming musical tour. The seamstress needed a new sewing machine for the project, so she went to a retail store that specialized in sewing machines. While she was browsing, a sales associate approached her. Although the sales associate did not know the particular purpose for which the seamstress was buying a sewing machine, he told her to buy a specific model, stating, "This model is the best one on the market!" Relying upon his opinion, the seamstress purchased the sewing machine. However, when the seamstress tried to sew the pieces of the leather outfits together, the sewing machine could not sew through the thick leather. As a result, the seamstress was unable to make the leather outfits in time for the pop star's musical tour, and she lost thousands of dollars in profit.

The seamstress brought a products liability action against the retail store, alleging a breach of the implied warranty of fitness for a particular purpose.

For whom will the court likely decide?

A. The retail store, because the sales associate did not know the particular purpose for which the sewing machine was being purchased.

B. The retail store, because the seamstress cannot recover for purely economic loss.

C. The seamstress, because she relied on the sales associate's opinion when purchasing the sewing machine.

D. The seamstress, because the sewing machine was not generally acceptable or reasonably fit for the purpose for which it had been sold.

Explanation:

Warranties for products liability actions

Implied	Merchantability	Product is generally acceptable & reasonably fit for its ordinary purpose—if seller is merchant
	Fitness for particular purpose	Product is fit for particular purpose—if seller has reason to know purchaser is relying on seller's skill or judgment to furnish suitable product
Express		Any affirmation of fact or promise made by seller regarding product that is part of basis of bargain

A buyer may bring a **products liability** action against a seller of goods for breach of certain warranties, including the **implied warranty of fitness for a particular purpose**. This implied warranty guarantees that a product is fit for a particular purpose, but only if:

the **seller knows** the **particular purpose** for which the product is being purchased *and* the **buyer relies on** the **seller's judgment or skill** in selecting a product suitable for that purpose.

The warranty is breached if a product fails to live up to the standards imposed by this warranty, and the buyer need not prove that the seller was at fault. The buyer can then recover damages for personal injury or property damage, as well as for purely economic loss **(Choice B)**.*

Here, the sales associate did not know the particular purpose for which the sewing machine was being purchased (ie, to sew leather), so there was no implied warranty that the sewing machine was fit for that purpose. This is true even though the seamstress relied on the sales associate's opinion when purchasing the sewing machine **(Choice C)**. Therefore, the sewing machine's inability to sew through leather was not a breach of this warranty, and the court will likely decide for the retail store.

*In most states, an injured party other than the buyer cannot recover for property damage or purely economic loss arising from a breach of warranty.

(Choice D) The implied warranty of *merchantability* guarantees that a product is acceptable and reasonably fit for the ordinary purpose for which it is being sold—eg, a sewing machine can sew through ordinary fabrics. But here, the seamstress's claim is based solely on the implied warranty of *fitness for a particular purpose*.

Educational objective:

The implied warranty of fitness for a particular purpose applies when (1) the seller knows the particular purpose for which the product is being purchased and (2) the buyer relies on

the seller's judgment or skill in selecting a product suitable for that purpose. Breach of this warranty can give rise to a products liability claim.

References

U.C.C. § 2-315 (Am. Law Inst. & Unif. Law Comm'n 2020) (implied warranty of fitness for a particular purpose).

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A mother went to a retail toy store to purchase a birthday gift for her eight-year-old daughter. Without inspecting it, a toy-store employee sold an electric toy oven to the mother. The toy oven could bake small batches of real food using heat generated from light bulbs located in the interior of the oven. The instructions that came with the toy oven clearly stated that adult supervision was required when operating the oven, so the mother helped the daughter use the oven to bake brownies. While the brownies were baking, a six-year-old boy who lived next door came over to play with the daughter. When the brownies were done baking, the mother allowed the boy to open the oven and remove them. As he was doing so, a broken light bulb inside of the oven suddenly caught on fire, causing second-degree burns on the boy's hands.

The boy's father subsequently filed a negligence action against the manufacturer of the toy oven. At trial, it was established that had the manufacturer or the toy store exercised reasonable care in the inspection of the toy oven, the broken light bulb would have been discovered.

Who is likely to prevail?

A. The boy's father, because the manufacturer breached its duty of reasonable care toward the boy.

B. The boy's father, because the manufacturer is strictly liable for the toy oven's defect.

C. The manufacturer, because it was not reasonably foreseeable that the boy would be injured by the daughter's defective toy oven.

D. The manufacturer, because the toy store's negligent failure to inspect the toy oven before selling it to the mother is a superseding cause of the boy's injuries.

Explanation:

A **commercial manufacturer**, distributor, retailer, or seller of a product owes a **duty of reasonable care** to **any foreseeable plaintiff** (ie, purchaser, user, bystander). **Failure to exercise reasonable care** in the **inspection or sale** of a product constitutes a **breach** of that duty. If the breach causes the plaintiff physical harm (ie, personal injury or property damage), the plaintiff will prevail in a negligence action.

Here, the manufacturer owed a duty of reasonable care to the boy as a user of the toy oven because it was foreseeable that other children might play with the daughter's toy **(Choice C)**. Had the manufacturer exercised reasonable care in the inspection of the oven, it would have discovered the broken light bulb and the boy would not have suffered second-degree burns. Therefore, the boy's father will prevail because the manufacturer breached its duty of reasonable care toward the boy and caused his injuries.

(Choice B) A strict products liability action requires proof that the product was defective, the defect existed when it left the defendant's control, and the defect caused the plaintiff's injuries. But here, the father filed a negligence action—not a strict products liability action.

(Choice D) The toy store's failure to inspect the toy oven before selling it to the mother is *not* a superseding cause that would relieve the manufacturer of liability for the boy's harm. That is because the toy store's failure to inspect the toy oven was *foreseeable*.

Educational objective:

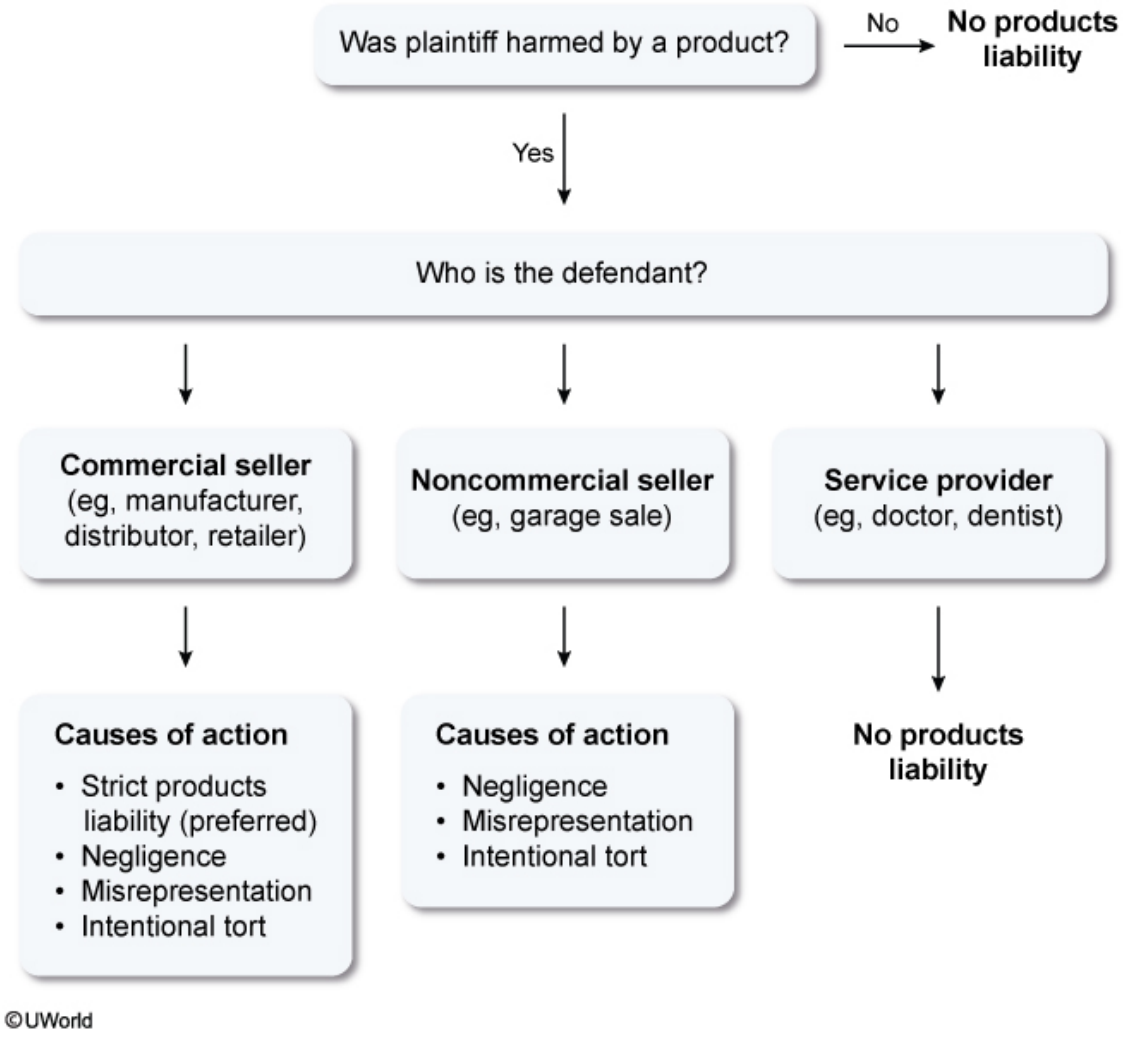
Commercial manufacturers, distributors, retailers, and sellers of a product owe a duty of reasonable care to any foreseeable plaintiff (ie, purchaser, user, or bystander). The failure to exercise reasonable care in the inspection or sale of a product constitutes a breach of that duty.

References

Restatement (Third) of Torts: Prods. Liab. § 15 (Am. Law Inst. 1998) (failure to inspect product).

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Products liability



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A shop operates an aircraft supply business serving the needs of owners of private airplanes. A pilot contracted with the shop to replace the engine in his plane with a more powerful engine manufactured by an engine company. The shop purchased the replacement engine through a representative of the engine company and sold it to the pilot. A short time after it was put into use, the new engine failed, and the plane crashed into a warehouse owned by a woman, destroying the warehouse and its contents.

The shop was guilty of no negligence in the procurement or inspection of the engine. The failure of the engine was caused by a manufacturing defect that would not be disclosed by inspection and testing procedures available to a supplier. There was also no negligence on the part of the pilot in the installation of the engine or the piloting of the plane.

The woman recovered a judgment for damages from the shop for the destruction of her warehouse and its contents, and the shop has asserted a claim against the engine company to recover compensation on account of that liability.

In that action, what amount of compensation will the shop most likely recover?

A. No compensation, because the shop sold the engine to the pilot.

B. No compensation, because the woman's judgment established the shop's responsibility to the woman.

C. Contribution only, because the shop and the engine company were equally innocent.

D. Full compensation, because the engine was defective.

Explanation:

Any **commercial supplier** along the **chain of distribution** may be **strictly liable** for physical harm caused by a product's manufacturing defect that existed when the product left the supplier's control. However, commercial suppliers who did not negligently, recklessly, or intentionally fail to discover the product defect (ie, **no independent culpability**) can seek **indemnity** (ie, full compensation) from commercial suppliers earlier in the chain of distribution.

Here, the woman recovered a judgment against the shop (retailer) because it sold the pilot a defective engine that caused his plane to crash into her warehouse (physical harm). But since the shop was not negligent in failing to discover the engine defect, it was not independently culpable. Therefore, the shop can recover full compensation from an earlier commercial supplier—the engine company (manufacturer).

(Choice A) Although the shop is subject to strict products liability because it sold the defective engine to the pilot, it can still recover full compensation (indemnity) from the engine company because it was not independently culpable.

(Choice B) The judgment establishing the shop's responsibility to the woman does not prevent the shop from recovering full compensation from the engine company since the judgment did not address whether the shop negligently, recklessly, or intentionally failed to discover the engine defect (independent culpability). But if the shop had been found independently culpable, the judgment would have precluded its indemnity claim.

(Choice C) Contribution allows one independently culpable commercial seller to recover the proportional share of damages attributable to another independently culpable commercial seller (eg, if a negligent retailer pays 100% of an injured party's claim but is only 60% at fault, it can recover 40% from the negligent manufacturer). But since the shop was not independently culpable, it can recover full compensation (indemnity)—not just a share (contribution).

Educational objective:

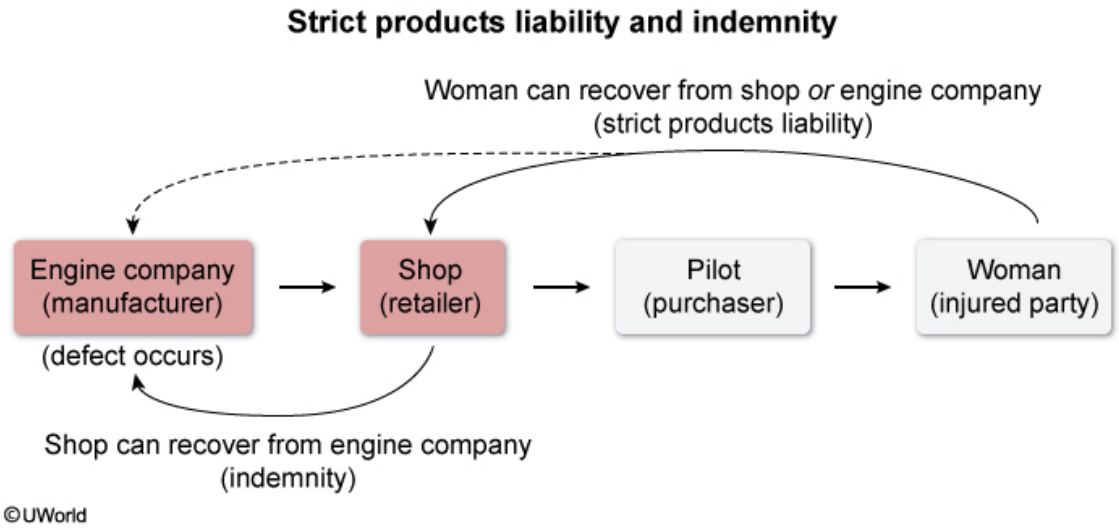
Although any commercial supplier in the chain of distribution may be subject to strict products liability, suppliers who did not negligently, recklessly, or intentionally fail to discover the product defect (no independent culpability) can recover full compensation (indemnity) from suppliers earlier in the distribution chain.

References

Restatement (Third) of Torts: Apportionment of Liab. § 22 (Am. Law Inst. 2000) (indemnity).

Restatement (Third) of Torts: Prods. Liab. §§ 1, 2(a) (Am. Law Inst. 1998) (strict products liability for manufacturing defects).

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A member of a health club was exercising on an elliptical machine when the machine malfunctioned due to a defectively manufactured part, seriously injuring the member. The machine had not been modified since the health club purchased it from the manufacturer. The member had signed a waiver that absolved the health club from any liability, including strict liability, for injuries suffered by the member while at the health club. The member filed a complaint against the health club seeking to recover damages for her personal injuries on the basis of strict liability. The health club has moved to dismiss the complaint.

How should the court rule on the health club's motion?

A. Deny the motion, because the elliptical machine contained a manufacturing defect.

B. Deny the motion, because the health club purchased the machine directly from the manufacturer.

C. Grant the motion, because the health club is a service provider.

D. Grant the motion, because the member exculpated the club's liability.

Explanation:

Strict products liability claims can only be brought against **commercial suppliers or sellers**. This means that the defendant must be in the business of selling or otherwise distributing the type of defective product that harmed the plaintiff. Accordingly, those in the **business of providing *services*** are **not subject to strict products liability**.

Health clubs are in the business of providing fitness services to its members, including access to facilities and equipment—not selling exercise machines like the one that injured the member. As a result, the health club's motion to dismiss the member's complaint should be granted.

(Choice A) Because the elliptical machine contained a manufacturing defect, commercial suppliers or sellers of the machine can be held strictly liable for the member's injuries caused by the defective machine. But service providers like the health club cannot.

(Choice B) Any commercial supplier or seller in the chain of distribution (eg, wholesaler, retailer) can be sued for strict products liability if the product in question was defective when it left the supplier or seller's control. Had the health club been in the business of selling exercise machines to its members, it could have been liable for the member's injuries regardless of whether it purchased the machine directly from the manufacturer.

(Choice D) An exculpatory agreement (eg, the waiver absolving the health club of liability) does not bar an otherwise valid strict products liability claim for personal injury or property damage.

Educational objective:

Strict products liability claims can only be brought against commercial suppliers or sellers—ie, those in the business of selling or otherwise distributing products of the type that harmed the plaintiff. Service providers are not subject to strict products liability.

References

Restatement (Third) of Torts: Prods. Liab. §§ 1, 20 (Am. Law Inst. 1998) (liability of commercial suppliers).

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Commercial supplier/seller
(subject to strict
products liability)





Service provider
(not subject to strict
products liability)



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A mining company that operated a copper mine in a remote location kept dynamite in a storage facility at the mine. The storage facility was designed and operated in conformity with state-of-the-art safety standards. In the jurisdiction, the storage of dynamite is deemed an abnormally dangerous activity.

Dynamite that was stored in the mining company's storage facility and that had been manufactured by an explosives manufacturer exploded due to an unknown cause. The explosion injured a state employee who was at the mine performing a safety audit. The employee brought an action in strict liability against the mining company.

What would be the mining company's best defense?

A. The mine was in a remote location.

B. The mining company did not manufacture the dynamite.

C. The state employee assumed the risk of injury inherent in the job.

D. The storage facility conformed to state-of-the-art safety standards.

Explanation:

Assumption of the risk

(defense to strict liability)

Traditional *contributory* negligence jurisdiction	*Bars* recovery when plaintiff voluntarily exposed him/herself to known risk
Pure *comparative* negligence jurisdiction*	*Reduces* recovery when plaintiff voluntarily exposed him/herself to known risk Narrow exception: *Bars* recovery when plaintiff received *benefit* (eg, financial gain, employment) from his/her exposure to risk

* Default rule on MBE.

A defendant is **strictly liable** (liable without proof of fault) for bodily harm caused by his/her abnormally dangerous activity. However, in a pure comparative negligence jurisdiction (default rule), **assumption of the risk** is a **defense** to strict liability that:

reduces recovery when the plaintiff **knowingly and voluntarily exposed** him/herself to an abnormally dangerous activity *and*

bars recovery when the plaintiff **received a benefit** from his/her exposure to that activity.

Here, the mining company's storage of dynamite (abnormally dangerous activity) injured the state employee. But since the employee performed the safety audit as part of his *employment*, he assumed the risk of injury for a *benefit* and his recovery would likely be barred. Therefore, the mining company's best defense is that the state employee assumed the risk of injury inherent in his job.

(Choice A) The location of an activity may be relevant to whether that activity is abnormally dangerous. But since this jurisdiction has already determined that storing dynamite is an abnormally dangerous activity, the location of the mine is irrelevant.

(Choice B) Although the mining company did not manufacture the dynamite (no strict products liability), the company is still strictly liable for harm caused by storing the dynamite (abnormally dangerous activity).

(Choice D) Because strict liability is imposed without proof of fault, the defendant's use of reasonable care is not a defense. Therefore, the storage facility's conformance with state-of-the-art safety standards (evidence of reasonable care) has no effect on the company's strict liability.

Educational objective:

Assumption of the risk is a defense to strict liability that (1) reduces recovery when the plaintiff knowingly and voluntarily exposed him/herself to a risk of harm (eg, abnormally dangerous activity) and (2) bars recovery when the plaintiff received a benefit from his/her exposure to that risk.

References

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm §§ 20, 24, 25 (Am. Law Inst. 2010) (assumption of the risk as a defense to strict liability).

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Toxic materials being transported by truck from a manufacturer's plant to a warehouse leaked from the truck onto the street a few miles from the plant. A driver lost control of his car when he hit the puddle of spilled toxic materials on the street, and he was injured when his car hit a stop sign.

In an action for damages by the driver against the manufacturer based on strict liability, is the driver likely to prevail?

A. No, because the driver's injury did not result from the toxicity of the materials.

B. No, because the driver's loss of control was an intervening cause.

C. Yes, because the leak occurred near the manufacturer's plant.

D. Yes, because the manufacturer is strictly liable for leaks of its toxic materials.

Explanation:

Common examples of abnormally dangerous activities

Transporting & storing hazardous materials & gasoline
Fumigating & crop dusting with toxic chemicals
Storing explosives & blasting
Operating nuclear facility
Burning fields

A defendant is **strictly liable**—liable regardless of fault—for harm caused by an **abnormally dangerous activity**. An activity is abnormally dangerous if it is (1) **uncommon** in the community and (2) poses a **foreseeable** and **highly significant risk** of physical harm to the plaintiff that cannot be mitigated by reasonable care. However, the defendant is only strictly liable for harm that stems from the **abnormally dangerous characteristic** of that activity.

Here, the transportation of toxic materials (uncommon activity in the community) is an abnormally dangerous activity since persons exposed to the materials have a high probability of becoming seriously ill (foreseeable and significant risk of harm). However, the manufacturer is not strictly liable to the driver since the driver's injury resulted from the puddle of spilled materials—not the materials' abnormally dangerous toxicity. Therefore, the driver's *strict liability* claim against the manufacturer will likely fail **(Choice D)**.

(Choice B) Only an *unforeseeable* intervening cause will negate the defendant's strict liability. Here, however, it was *foreseeable* that a person driving over spilled toxic materials would lose control of the vehicle, so the driver's loss of control will not negate the manufacturer's liability.

(Choice C) A defendant is strictly liable for harm resulting from his/her abnormally dangerous activity regardless of where the harm occurs. Therefore, the location of the leak is irrelevant.

Educational objective:

A defendant engaged in an abnormally dangerous activity is strictly liable for harm resulting from the abnormally dangerous characteristic of that activity—eg, illness caused by exposure to spilled toxic chemical, but not injury from a car accident caused by spilled chemicals.

References

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 20 (Am. Law Inst. 2010) (abnormally dangerous activity).

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 29 cmt. l (Am. Law Inst. 2010) (limitations on tortious conduct).

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A chemical company's plant was located in a residential community. The manufacturing process used at the plant generated a toxic chemical as a by-product. The chemical was stored in a state-of-the-art tank on the site before being moved to an off-site disposal facility. The on-site storage arrangement conformed to the requirements of reasonable care and to the applicable government regulations. However, the storage of the toxic chemical created a foreseeable and highly significant risk of physical harm even when reasonable care was exercised.

Despite the chemical company's proper use and care of the storage tank, toxic fumes escaped from the tank and made residents of the area seriously ill.

No state or federal statutes address the issue of the company's liability.

In an action by one of the affected residents against the chemical company, will the resident be likely to prevail?

A. No, because the chemical company conformed to the requirements of reasonable care and to the applicable government regulations.

B. No, because the chemical company used a state-of-the-art storage tank.

C. Yes, because the chemical company is strictly liable in tort for any harm caused by the toxic chemicals it produced.

D. Yes, because the storage of toxic chemicals in a residential community created a highly significant risk of physical harm even when reasonable care was exercised.

Explanation:

An **abnormally dangerous activity** is an **uncommon** activity that poses a **foreseeable and highly significant risk** of physical harm that cannot be mitigated by the exercise of reasonable care. A defendant is **strictly liable** when (1) the defendant's abnormally dangerous activity causes physical harm and (2) that harm results from the hazards that make the activity abnormally dangerous.

Here, the chemical company's storage of a toxic chemical (uncommon activity) was abnormally dangerous because it posed a foreseeable and highly significant risk of physical harm despite the company's exercise of reasonable care. And since the resident's illness was caused by the chemical's toxicity (the hazard that made storing the chemical abnormally dangerous), the resident will likely prevail.

(Choices A & B) Evidence that the company used a state-of-the-art storage tank, conformed to the requirements of reasonable care, and abided by applicable government regulations shows that the company exercised reasonable care. But these facts are irrelevant since the use of reasonable care is not a defense to strict liability (liability imposed without proof of fault).

(Choice C) A defendant who engages in an abnormally dangerous activity is only strictly liable for harm that results from the abnormal dangers or hazards of that activity. Therefore, the company is strictly liable for harm resulting from the chemical's toxicity (eg, illness caused by exposure to toxic fumes), but not for harm unrelated to that toxicity (eg, car accident caused by toxic fumes that obscured a motorist's view).

Educational objective:

A defendant is strictly liable for physical harm caused by his/her abnormally dangerous activity, as long as that harm resulted from the abnormal dangers or hazards of the activity. The use of reasonable care is no defense.

References

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 20 (Am. Law Inst. 2010) (strict liability for abnormally dangerous activities).

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 29 cmt. l (Am. Law Inst. 2010) (limitations on strict liability).

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Strict liability
(abnormal danger must cause harm)



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A dentist was anesthetizing a patient's jaw before pulling a tooth. Although the dentist used due care, the hypodermic needle broke off in the patient's gum tissue, causing injury. The needle broke because of a manufacturing defect that the dentist could not have detected.

Is the patient likely to recover damages in an action against the dentist based on strict products liability and malpractice?

A. No, on neither basis.

B. Yes, based on malpractice, but not on strict products liability.

C. Yes, based on strict products liability, but not on malpractice.

D. Yes, on both bases.

Explanation:

Strict products liability claims require proof that the defendant is a **commercial supplier**—one in the business of **manufacturing or selling** the type of defective product that harmed the plaintiff. Here, the patient was injured by a manufacturing defect in a hypodermic needle. But since the dentist is a *service* provider (not in the business of manufacturing or selling needles), the patient cannot recover under this claim **(Choices C & D)**.

Malpractice claims require proof that a **professional** (eg, dentist, doctor, lawyer) deviated from the standard of care that reasonable professionals in his/her field would have used under similar circumstances. Here, the dentist used due care and could not have detected the needle's defect. Since there is no evidence that the dentist deviated from professional standards, the patient is unlikely to recover on this basis **(Choices B & D)**.

Educational objective:

Strict products liability arises when a commercial supplier produces or sells a defective product (not a service) that causes the plaintiff harm. Malpractice liability arises when a professional fails to use the standard of care that reasonable professionals in his/her field would have used under similar circumstances.

References

Restatement (Third) of Torts: Prods. Liab. §§ 1, 20 (Am. Law Inst. 1998) (liability of commercial suppliers).

Restatement (Second) of Torts § 299A (Am. Law Inst. 1965) (professional standard of care).

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Commercial supplier/seller
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products liability)





Service provider
(not subject to strict
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A cattle rancher owns property near the bottom of a steep mountain slope. A logging company recently clear-cut all of the standing timber on the slope and transported it to an out-of-state lumber processing plant.

Soon thereafter, a heavy rainstorm triggered several landslides in the mountain range where the rancher's property is located. One of the landslides dumped masses of earth, rock, and debris from the cleared slope onto the rancher's property, destroying several structures and rendering much of the land unsuitable for grazing cattle. The rancher has brought an action in strict liability against the logging company.

Which of the following facts, if true, best supports the logging company's defense to this action?

A. Commercial logging is prevalent in the area and requires specialized equipment, skills, and permits before a person can engage in this activity.

B. New housing starts are on the rise in the community and the need for lumber is high.

C. The heavy rainstorm triggered landslides in forested and unforested areas throughout the mountain range.

D. The logging company conducted the work according to industry-wide safety standards.

Explanation:

Abnormally dangerous activity

Definition	Activity is abnormally dangerous if it: is not commonly engaged in *and* presents foreseeable & highly significant risk of harm even when reasonable care is used
Relevant factors	Gravity of harm resulting from activity Inappropriateness of place where activity is conducted Limited value of activity to community

A defendant engaged in an **abnormally dangerous activity** may be held strictly liable for personal injuries or property damage caused by the activity. Abnormally dangerous means the activity (1) is **not commonly engaged in** and (2) presents a **foreseeable and highly significant risk** of physical harm even when reasonable care is exercised. In determining whether an activity meets these criteria, courts often consider these factors:

The **gravity of the harm** resulting from the activity

The **inappropriateness of the place** where the activity is being conducted

The **limited value of the activity** to the community in which it is performed

Here, although commercial logging is prevalent in the area, it can only be carried out by persons having specialized equipment, skills, and permits. This tends to show that logging is not carried out by a large percentage of the population (uncommon activity) **(Choice A)**. And though the need for lumber is high in the community, the logging company sent all of its timber out-of-state (limited value to community) **(Choice B)**. As a result, both of these facts weigh in favor of a finding that the logging company's activity was abnormally dangerous.

However, even if that activity was abnormally dangerous, the logging company can successfully defend this action on the ground that it did not cause the rancher's property damage. The fact that the rainstorm triggered landslides in both forested *and* unforested areas tends to show that clear-cutting the slope was not the but-for cause of the rancher's property damage (ie, the damage would have occurred anyway). So this fact, if proved, best supports the logging company's defense to the rancher's action.

(Choice D) Strict liability for an abnormally dangerous activity cannot be negated by the use of reasonable care, so the logging company's compliance with industry-wide safety standards would not affect the outcome of this action.

Educational objective:

In deciding whether an activity is abnormally dangerous, courts often consider (1) the gravity of the harm resulting from the activity, (2) the inappropriateness of the place where it is being conducted, and (3) its limited value to the community.

References

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 20 (Am. Law Inst. 2010) (abnormally dangerous activities).

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A movie theater brought an action against a manufacturer and a retailer based solely on strict products liability for damages suffered when the theater's $20,000 movie projector caught on fire. While the fire destroyed the projector, it caused no property damage to its surroundings and no bodily harm because the projectionist put out the fire before it could spread. The movie theater sought economic damages based on the cost of the projector, as well as lost profits for the week the theater was closed until a replacement projector could be obtained.

At trial, the court ruled that because the projector had been destroyed, the theater was entitled to an inference that it was defective, which the defendants were free to rebut. The manufacturer presented evidence clearly showing that the only damage sustained by the theater was the destruction of the projector. The manufacturer and the retailer then filed a joint motion for a directed verdict.

Should the court grant the motion?

A. No as to both defendants, because the court must infer that the projector was defective.
B. No as to both defendants, because the theater is entitled to recover economic losses.
C. Yes as to both defendants, because the theater suffered purely economic losses.
D. Yes as to the retailer only, because the retailer was not involved in the manufacture of the projector.

Explanation:

A motion for a directed verdict should be granted if no reasonable jury could find in the nonmovant's favor. For example, a defendant's motion should be granted if there is insufficient evidence to support any element of the plaintiff's claim. A **strict products liability** claim requires proof of the following elements:

The defendant(s) were commercial sellers (eg, manufacturer, retailer—as seen here).

The product was defective at the time it left the defendant's control.

The **defect caused** the **plaintiff *physical* harm** (ie, bodily harm or property damage).

As a result, claims for **purely *economic* loss** are **not allowed**. In products liability cases, purely economic loss includes any **harm to the defective product** itself as well as **consequential damages arising therefrom** (eg, lost profits).

Here, the movie theater is only seeking to recover damages based on the cost of the defective projector and lost profits—both of which are purely economic loss. Therefore, the theater has not suffered adequate damages to recover under its strict products liability claim, and the motion for a directed verdict should be granted as to *both* defendants.

(Choice A) Although the theater was entitled to an inference that the projector was defective, the theater cannot recover for its purely economic losses. And since the theater failed to allege property damage or personal injury, the court should grant the defendants' motion for a directed verdict.

(Choice B) The movie theater may have been entitled to recover economic losses had they stemmed from bodily harm or damage to property *other than* the defective product itself (not seen here).

(Choice D) Commercial sellers are subject to strict liability for a defective product even if they were not responsible for the defect in any way. Accordingly, the retailer cannot escape liability on the basis that it was not involved in the manufacture of the projector.

Educational objective:

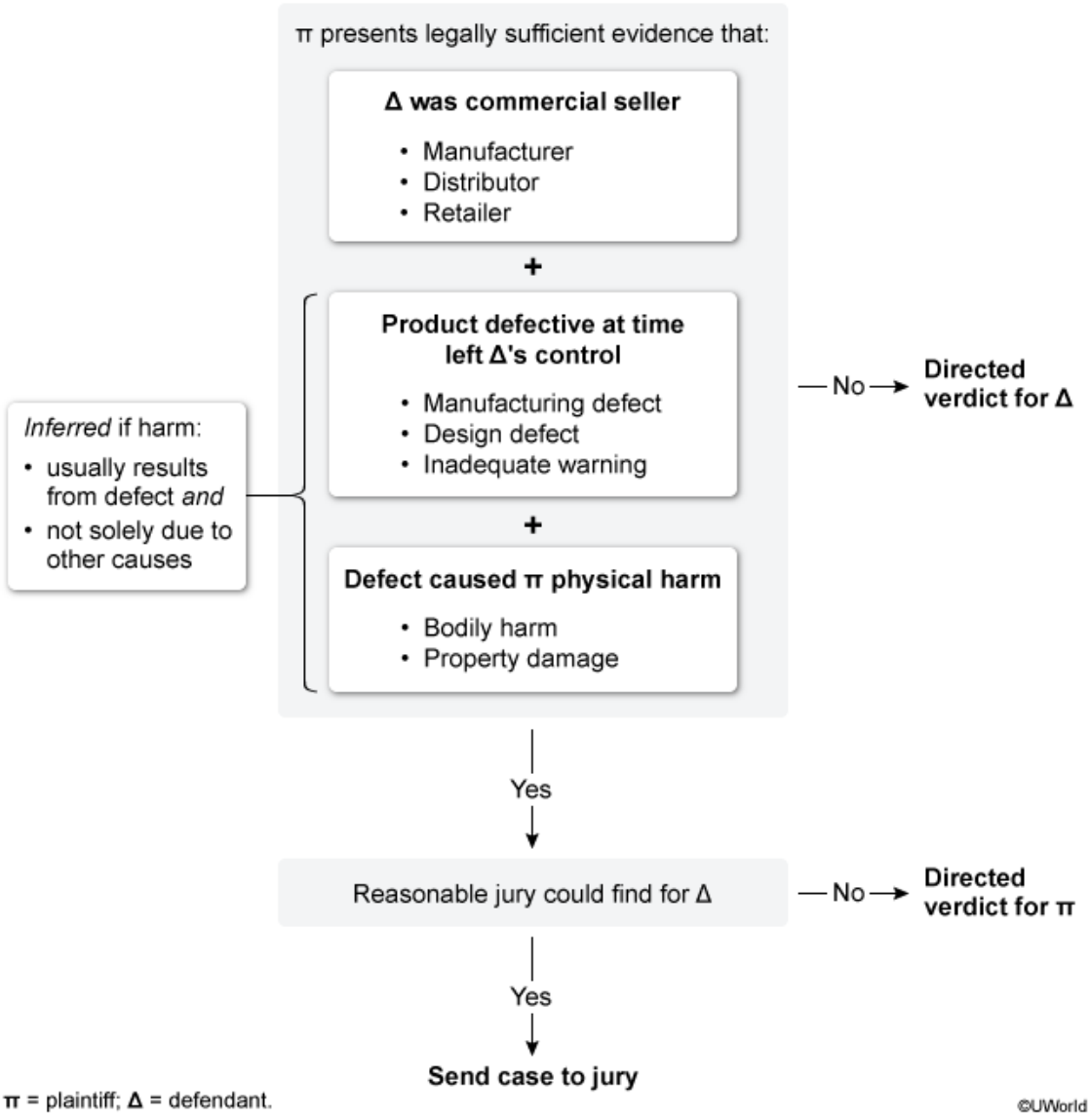
Strict products liability claims require proof of physical harm (ie, bodily harm or property damage). Claims for purely economic loss, including harm to the defective product itself and consequential damages arising therefrom, are not allowed.

References

Restatement (Third) of Torts: Prods. Liab. § 21 (Am. Law Inst. 1998) (economic loss).

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Directed verdict
(strict products liability)



π = plaintiff; Δ = defendant.

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An amusement park purchased an oversized caricature mask from a manufacturer. One of the amusement park's employees was wearing the mask when she was accidentally tripped by a customer. The employee fell, injuring her neck from the strain caused by the weight of the mask. The employee filed a worker's compensation claim but only received limited compensation that did not cover the full cost of treating her injury.

The employee brought a negligence suit against the manufacturer and has established that, in designing the mask, the manufacturer failed to include a safety harness that would protect the wearer's neck from strain caused by a fall. In its defense, the manufacturer established that the mask's design complied with all government standards for flammability and composition, and that those standards did not require the masks to have safety harnesses.

Is the employee likely to be awarded damages from the manufacturer?

A. No, because the employee's injury was caused by an intervening negligent act.
B. No, because the manufacturer's compliance with safety standards is conclusive evidence that it was not negligent.
C. Yes, because negligent intervening acts are generally regarded as foreseeable.
D. Yes, because the manufacturer was a commercial seller of the mask.

Explanation:

A plaintiff harmed by a defective product can prevail in a **negligence** suit against a manufacturer (or other seller) by proving that the manufacturer's failure to use reasonable care actually and proximately caused the plaintiff's harm. An **intervening act or event** that contributed to the plaintiff's harm **will *not* break** the **chain of causation** and relieve the manufacturer from liability if that act or event was **reasonably foreseeable**.* And, as a general rule, **negligent intervening acts** are regarded as foreseeable.

Here, the employee sued the manufacturer of the mask after she fell and injured her neck from the strain caused by the weight of the mask. The manufacturer likely failed to use reasonable care in designing the mask without a safety harness to prevent this type of injury. And though a customer accidentally tripped the employee, causing her to fall, that intervening negligent act is regarded as *foreseeable*. Therefore, it did not cut off the manufacturer's liability, and the employee is likely to be awarded damages from the manufacturer **(Choice A)**.

*By contrast, intervening acts or events that were NOT reasonably foreseeable become superseding causes that break the chain of causation between the defendant's tortious conduct and the plaintiff's harm.

(Choice B) Compliance with governmental safety standards is *not* conclusive evidence that a product was not defective or that the manufacturer was not negligent. However, a jury may consider whether a product complied with governmental safety standards when determining these issues.

(Choice D) Unlike a products liability action based in strict liability, an action based in negligence can be brought against a commercial *or* noncommercial seller. Therefore, the fact that the manufacturer was a commercial seller of the mask is irrelevant.

Educational objective:

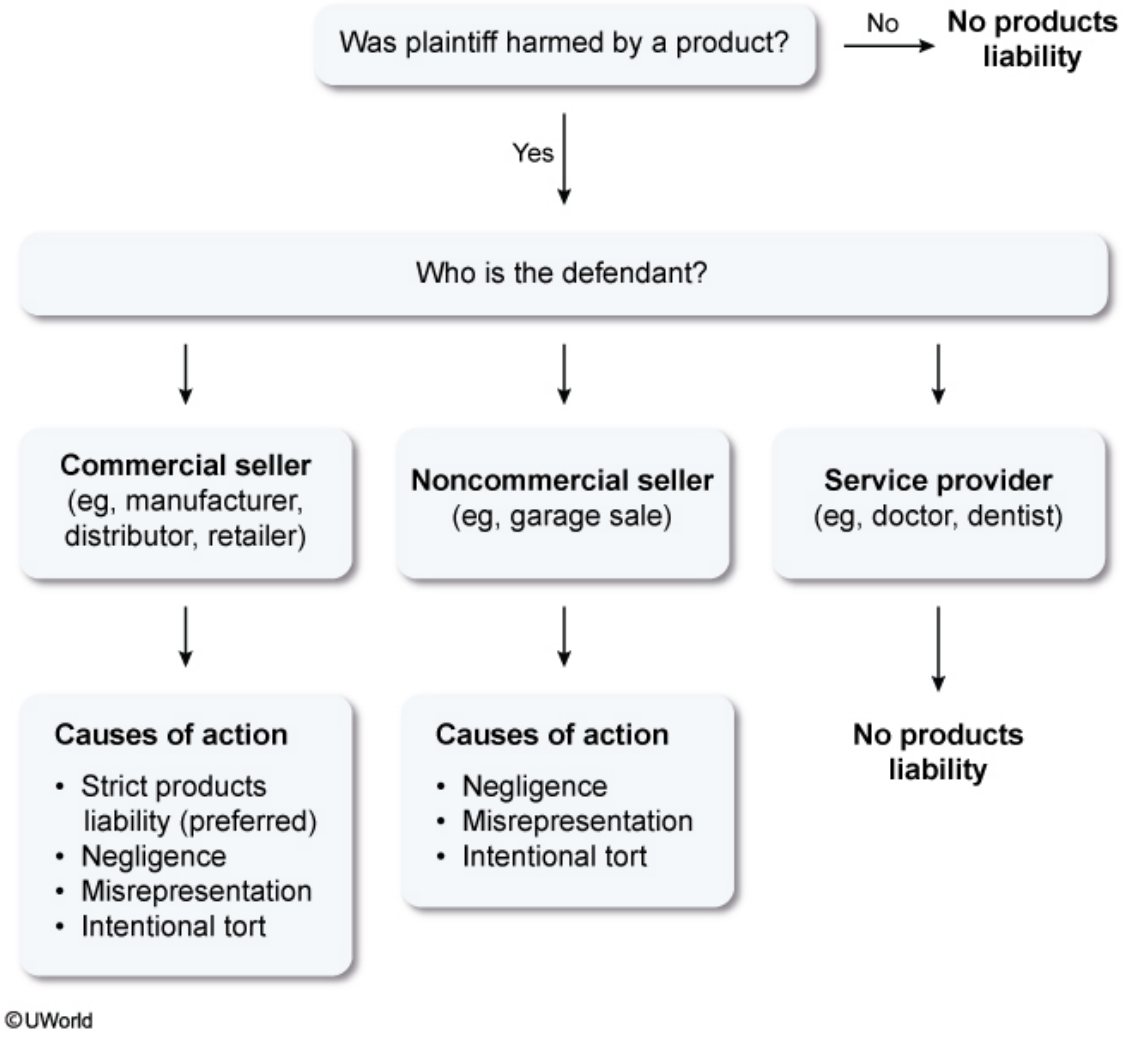
A products liability claim based in negligence requires proof that the defendant's (eg, manufacturer's) failure to use reasonable care caused the plaintiff's harm. An intervening act or event that contributed to the plaintiff's harm will NOT cut off the defendant's liablity if the act or event was reasonably foreseeable (eg, a negligent intervening act).

References

Restatement (Third) of Torts: Liab. for Physical & Emotional Harm § 6 (Am. Law Inst. 2010) (negligence liability).

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Products liability



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